Sub-cluster 2020-24:2.3

Judicial review of agency action: deference and reasoned decision-making

Judicial review of agency action: deference and reasoned decision-making

How courts review agencies: deference to agency interpretations (Chevron and its limits in Mead, Christensen and Brown & Williamson; Skidmore weight; Auer/Seminole Rock for an agency's own regulations; Brand X), and the arbitrary-and-capricious requirement of reasoned decision-making (State Farm, Overton Park), with NEPA review (Marsh).

Label written once by a language model from script-built evidence (cocite_labels.json); not part of the record.

Size: 644 cases; 346,224 citing decisions in 2020-24.

Within cluster: 2020-24:2 Public law: constitutional challenges, standing and agency review (5,809 cases).

Lineage: 19722, 1975-79 – 2020-24.

Area: Standing and judicial review of agency action.

Anchor case: State Farm.

Good law: red, yellow or green from the cached check; ? = quick check (the newest 100 citing opinions: status now, no year); dormant = no citing decision 2021 or later; not calc. = never checked (Build, or subdoc `--goodlaw`).

Cases

Ordered by fit: the share of each case's co-citations in 2020-24 that are with this sub-cluster's members (decisions citing both, from the co-citation cache; binary counts, so a sentence view's own weights can differ a little). Cases whose best-fitting sub-cluster is this one come first. In slice: decisions in 2020-24 citing it (appellate courts). In all: every citing case in the bulk data (cached profile) or CourtListener's count. Good law: red, yellow or green from the cached check; ? = quick check (the newest 100 citing opinions: status now, no year); dormant = no citing decision 2021 or later. Tap a name for its details; the ↑ in the margin there comes back here.

Best fit here (622)

#	Case	Court, year	In slice	In all	Fit	Good law
1	United States v. Roberto Castillo	9th Cir., 2023	22	37	100%	green
2	United States v. Lenair Moses	4th Cir., 2022	25	29	100%	green
3	United States v. Lewis	1st Cir., 2020	19	22	100%	green
4	United States v. Martez Smith	7th Cir., 2021	20	54	100%	green
5	Breeze Smoke, LLC v. FDA	6th Cir., 2021	14	17	100%	green?
6	Myersville Citizens for a Rural Community, Inc. v. Federal Energy…	D.C. Cir., 2015	20	76	100%	green?
7	Baltimore Gas & Electric Co. v. Natural Resources Defense Council…	SCOTUS, 1983	36	1,274	100%	green
8	Prohibition Juice Co. v. FDA	D.C. Cir., 2022	14	20	100%	green?
9	Association of American Railroads v. United States Department of…	D.C. Cir., 2013	11	35	100%	yellow?
10	United States v. Darryl Rollins	7th Cir., 2016	12	38	100%	green
11	Loving v. United States	SCOTUS, 1996	21	350	100%	green?
12	United States v. Charles O. Kallestad	5th Cir., 2000	11	86	100%	green?
13	United States v. Dickson	5th Cir., 2011	14	62	100%	green?
14	United States v. Grimaud	SCOTUS, 1911	9	600	100%	green?
15	Thomas Jefferson University v. Shalala	SCOTUS, 1994	23	1,371	100%	green?
16	Yeison Meza Morales v. William Barr	7th Cir., 2020	18	21	100%	green?
17	Delaware Riverkeeper Network v. Federal Energy Regulatory Commission	D.C. Cir., 2014	17	80	100%	green?
18	United States v. Virgil Bailey, Jr.	5th Cir., 2019	20	48	100%	green?
19	United States v. Darius Thomas	6th Cir., 2020	19	22	100%	green?
20	Currin v. Wallace	SCOTUS, 1939	9	312	100%	green?
21	Estate of Kim Ex Rel. Alexander v. Coxe	Alaska, 2013	13	40	100%	green?
22	Sierra Club v. Lynn	5th Cir., 1974	8	24	100%	green?
23	New York Central Securities Corporation v. United States	SCOTUS, 1932	8	215	100%	green?
24	Porto Rico Railway, Light & Power Co. v. Mor	SCOTUS, 1920	24	170	100%	green?
25	Wages and White Lion Invst v. FDA	5th Cir., 2022	8	12	100%	green?
26	Liquid Labs LLC v. FDA	3rd Cir., 2022	8	11	100%	green?
27	South Carolina Public Service Authority v. Federal Energy Regulatory…	D.C. Cir., 2014	27	67	100%	green?
28	Big Time Vapes, Incorporated v. FDA	5th Cir., 2020	15	28	100%	green?
29	Douglas Carlson v. PRC	D.C. Cir., 2019	22	44	100%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
30	Home Box Office, Inc. v. Federal Communications Commission and United…	D.C. Cir., 1977	13	376	100%	green?
31	State of TX v. USA	5th Cir., 2021	11	22	100%	green?
32	Midwest Iso Transmission Owners v. Federal Energy Regulatory…	D.C. Cir., 2004	17	78	100%	green?
33	Old Dominion Elec. Coop. v. Fed. Energy Regulatory Comm'n	D.C. Cir., 2018	18	20	100%	green?
34	Roberto Hernandez-Serrano v. William Barr	6th Cir., 2020	11	14	100%	green?
35	Downhole Pipe & Equipment, L.P. v. United States	Fed. Cir., 2015	13	82	100%	green?
36	Skinner v. Mid-America Pipeline Co.	SCOTUS, 1989	8	83	100%	green?
37	Holly v. Auld	Fla., 1984	43	690	100%	green?
38	Guam v. United States	SCOTUS, 2021	11	27	100%	green
39	National Horsemen's Benevolent v. Black	5th Cir., 2022	9	21	100%	green?
40	Federal Trade Commission v. Mandel Bros.	SCOTUS, 1959	14	269	100%	green?
41	Aposhian v. Wilkinson	10th Cir., 2021	10	14	100%	green?
42	Harrison v. PPG Industries, Inc.	SCOTUS, 1980	15	333	100%	green?
43	EarthReports, Inc. v. Federal Energy Regulatory Commission	D.C. Cir., 2016	13	40	100%	green?
44	United States v. Wong Kim Bo, A/K/A Yee Kuk Ho, Etc.	5th Cir., 1972	18	367	100%	green?
45	Birckhead v. Fed. Energy Regulatory Comm'n	D.C. Cir., 2019	8	16	100%	green
46	West Deptford Energy, LLC v. Federal Energy Regulatory Commission	D.C. Cir., 2014	17	45	100%	green?
47	Food & Water Watch v. FERC	D.C. Cir., 2022	13	19	100%	green?
48	A. R. Douglass, Inc. v. McRainey, as Admrx.	Fla., 1931	19	233	100%	green?
49	California Communities Against Toxics v. United States Environmental…	9th Cir., 2012	22	115	100%	green?
50	Janet S. Delana, Individually, and as the Wife of Decedent Tex C.…	Mo., 2016	10	21	100%	green?
51	Rubin v. United States	SCOTUS, 1981	26	794	100%	green?
52	Catawba County v. Environmental Protection Agency	D.C. Cir., 2009	21	143	100%	green?
53	Ameren Services Co. v. Federal Energy Regulatory Commission	D.C. Cir., 2018	10	13	100%	green?
54	Reiter v. Sonotone Corp.	SCOTUS, 1979	8	921	100%	green?
55	Maria Medina Tovar v. Laura Zuchowski	9th Cir., 2020	14	15	100%	green?
56	San Luis & Delta-Mendota Water v. Pacific Coast Federation Etc.	9th Cir., 2014	17	108	100%	green?
57	Minisink Residents for Environmental Preservation & Safety v. Federal…	D.C. Cir., 2014	13	41	100%	green?
58	Federal Power Commission v. Texaco Inc.	SCOTUS, 1974	11	401	100%	green?
59	Bradley v. School Bd. of Richmond	SCOTUS, 1974	22	1,787	100%	green?
60	National Ass'n of Home Builders v. Environmental Protection Agency	D.C. Cir., 2012	15	67	100%	green?
61	Chase Bank USA, N. A. v. McCoy	SCOTUS, 2011	14	219	100%	green?
62	Public Citizen, Inc., Aviation Consumer Action Project, and Families…	D.C. Cir., 1993	11	266	100%	green?
63	United States v. Riverside Bayview Homes, Inc.	SCOTUS, 1985	14	664	100%	green?
64	Organized Village of Kake v. United States Department of Agriculture	9th Cir., 2015	15	89	100%	green?
65	Vecinos para el Bienestar de la Comunidad Costera v. FERC	D.C. Cir., 2021	11	15	100%	green?
66	Donald Larry Martin v. Social Security Administration, Commissioner	11th Cir., 2018	10	20	100%	green?
67	New England Power Generators Ass'n v. Federal Energy Regulatory…	D.C. Cir., 2018	9	15	100%	green?
68	Morton v. Ruiz	SCOTUS, 1974	23	1,106	100%	green?
69	Kleppe v. Sierra Club	SCOTUS, 1976	22	1,085	100%	green
70	Commonwealth Edison Co. v. Will County Collector	Ill., 2001	15	165	100%	green?
71	Atlantic City Electric Co. v. Federal Energy Regulatory Commission	D.C. Cir., 2002	12	105	100%	green?
72	United States v. Luis Mercado	3rd Cir., 2023	8	14	100%	green?
73	San Luis & Delta-Mendota Water v. Natural Resources Defense Coun	9th Cir., 2014	21	204	100%	green
74	Decker v. Northwest Environmental Defense Center	SCOTUS, 2013	31	283	100%	green
75	Reiter v. Cooper	SCOTUS, 1993	27	621	100%	green?
76	Mozilla Corporation v. FCC	D.C. Cir., 2019	18	40	100%	green?
77	United States v. Phillip Zabawa	6th Cir., 2013	15	34	100%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
78	RAJAH	BIA, 2009	8	57	100%	green?
79	Ileto v. Glock, Inc.	9th Cir., 2009	8	97	100%	green?
80	Blue Mountains Biodiversity Project v. Blackwood	9th Cir., 1998	14	274	100%	green?
81	Hallowell v. Commons	SCOTUS, 1916	8	222	100%	green?
82	Altera Corp. v. Cir	9th Cir., 2019	8	26	100%	green?
83	Chamber of Commerce of United States v. Securities & Exchange…	D.C. Cir., 2005	14	85	100%	green?
84	United States v. Shimer	SCOTUS, 1961	12	486	100%	green?
85	Sw. Airlines Co. v. Fed. Energy Regulatory Comm'n	D.C. Cir., 2019	10	13	100%	green?
86	Long Island Power Authority v. FERC	D.C. Cir., 2022	12	19	100%	green?
87	Iselin v. United States	SCOTUS, 1926	25	286	100%	green?
88	Transcanada Power Marketing Ltd. v. Federal Energy Regulatory…	D.C. Cir., 2015	15	26	100%	green?
89	United States v. Arnold Maurice Mathis	11th Cir., 2014	12	46	100%	green?
90	Alliance for the Wild Rockies v. Usfs	9th Cir., 2018	12	72	100%	green?
91	State ex rel. Plain Dealer Publishing Co. v. City of Cleveland	Ohio, 2005	8	34	100%	green?
92	Entergy Corp. v. Riverkeeper, Inc.	SCOTUS, 2009	19	157	100%	green?
93	Hydro Resources, Inc. v. United States Environmental Protection Agency	10th Cir., 2010	10	41	100%	green?
94	American Fuel & Petrochemical v. EPA	D.C. Cir., 2019	10	24	100%	green?
95	United States v. Western Pacific Railroad	SCOTUS, 1956	25	1,446	100%	green?
96	State ex rel. LetOhioVote.org v. Brunner	Ohio, 2009	17	44	100%	green?
97	Environmental Defense Fund v. FERC	D.C. Cir., 2021	10	23	100%	green?
98	United States v. Home Concrete & Supply, LLC	SCOTUS, 2012	9	93	100%	green?
99	Kientz v. Commissioner, SSA	10th Cir., 2020	9	13	100%	green?
100	Lightfoot v. Cendant Mortg. Corp.	SCOTUS, 2017	21	199	100%	green?
101	United States v. Lightbourn	5th Cir., 1997	18	34	100%	green?
102	National Family Farm Coalition v. Usepa	9th Cir., 2020	16	42	100%	green?
103	Nyunt v. Chairman, Broadcasting Board of Governors	D.C. Cir., 2009	12	89	100%	green?
104	Business Roundtable v. Securities & Exchange Commission	D.C. Cir., 2011	8	30	100%	green?
105	Quinchia v. U.S. Attorney General	11th Cir., 2008	8	71	100%	green?
106	United States Sugar Corp. v. Environmental Protection Agency	D.C. Cir., 2016	12	61	100%	green?
107	Leedom v. Kyne	SCOTUS, 1958	11	910	100%	green?
108	Good Fortune Shipping SA v. Comm'r of Internal Revenue	D.C. Cir., 2018	11	19	100%	green?
109	City of Oberlin, Ohio v. FERC	D.C. Cir., 2019	8	12	100%	green?
110	Nan Ya Plastics Corporation v. United States	Fed. Cir., 2016	19	93	100%	green?
111	Dickinson v. Zurko	SCOTUS, 1999	17	944	100%	green?
112	Fishgold v. Sullivan Drydock & Repair Corp.	SCOTUS, 1946	14	535	100%	green
113	The Wilderness Society Alaska Center for the Environment v. United…	9th Cir., 2003	10	155	100%	green?
114	United States v. Sathon Evans	6th Cir., 2012	8	60	100%	yellow?
115	United States v. La Franca	SCOTUS, 1931	9	243	100%	green?
116	Hudgens v. McDonald	Fed. Cir., 2016	9	28	100%	green?
117	Northwestern Youth Services, Inc. v. Commonwealth	Pa., 2013	19	46	100%	green?
118	Republic National Bank of Miami v. United States	SCOTUS, 1992	14	312	100%	green?
119	Barnes v. United States Department of Transportation	9th Cir., 2011	14	87	100%	green?
120	United States v. Calimlim	7th Cir., 2008	12	58	100%	green?
121	Manuel Campos-Hernandez v. Jefferson Sessions	9th Cir., 2018	8	15	100%	green?
122	Neal v. United States	SCOTUS, 1996	16	237	100%	green?
123	Serrano v. U.S. Attorney General	11th Cir., 2011	12	56	100%	green?
124	Sorenson Communications Inc. v. Federal Communications Commission	D.C. Cir., 2014	11	55	100%	green?
125	State of Okla. v. United States	6th Cir., 2023	8	19	100%	green?
126	Good Samaritan Hospital v. Shalala	SCOTUS, 1993	16	471	100%	green?
127	Rural Cellular Ass'n v. Federal Communications Commission	D.C. Cir., 2009	16	97	100%	green?
128	Genuine Parts Co. v. Envtl. Prot. Agency	D.C. Cir., 2018	11	42	100%	green?
129	Biodiversity Conservation Alliance v. Jiron	10th Cir., 2014	10	50	100%	green?
130	Nicopure Labs, LLC v. FDA	D.C. Cir., 2019	10	19	100%	green?
131	Daniela Guerra-Rocha v. William P. Barr	7th Cir., 2020	10	11	100%	green?
132	Nat'l Assoc. of Regulatory v. FERC	D.C. Cir., 2020	9	10	100%	green?
133	TOMAC v. Norton, Gale A.	D.C. Cir., 2006	8	112	100%	green?
134	Daniels v. Florida Dept. of Health	Fla., 2005	25	153	100%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
135	Turtle Island Restoration Network v. United States Department of...	9th Cir., 2017	14	47	100%	green?
136	American Wild Horse Preservation Campaign v. Sonny Perdue	D.C. Cir., 2017	10	77	100%	green?
137	Joseph Egan v. Delaware River Port Authority	3rd Cir., 2017	13	68	100%	green?
138	Bark v. Usfs	9th Cir., 2020	13	35	100%	green
139	Wyoming v. United States Department of Agriculture	10th Cir., 2011	11	83	100%	green
140	United States v. Jackson	2d Cir., 1995	11	26	100%	green?
141	SoundExchange, Inc. v. Copyright Royalty Bd.	D.C. Cir., 2018	11	21	100%	green?
142	United States v. Troy Kendrick, Jr.	5th Cir., 2020	11	12	100%	green?
143	Sierra Club v. EPA	5th Cir., 2019	10	25	100%	green?
144	Renewable Fuels Association v. EPA	10th Cir., 2020	11	18	100%	green?
145	Mississippi Power & Light Co. v. Mississippi Ex Rel. Moore	SCOTUS, 1988	10	224	100%	green
146	National Labor Relations Board v. Brown	SCOTUS, 1965	8	614	100%	green?
147	State of Maryland v. EPA	D.C. Cir., 2020	9	10	100%	green
148	Minnick v. Commissioner	9th Cir., 2015	8	19	100%	green?
149	In Defense of Animals v. U.S. Department of the Interior	9th Cir., 2014	7	50	100%	green?
150	New Mexico Ex Rel. Richardson v. Bureau of Land Management	10th Cir., 2009	17	189	100%	green
151	United States v. Vicente Cuevas-Lopez	9th Cir., 2019	14	18	100%	green?
152	Consumer Product Safety Commission v. GTE Sylvania, Inc.	SCOTUS, 1980	30	2,295	100%	green?
153	Goodman v. Shulkin	Fed. Cir., 2017	22	57	100%	green?
154	George v. McDonough	SCOTUS, 2022	21	54	100%	green
155	United States v. Morgan	SCOTUS, 1941	16	906	100%	green?
156	Catskill Mountains Chapter of Trout Unlimited, Inc. v. United States...	2d Cir., 2017	15	63	100%	green?
157	United States v. John Booker, Jr.	6th Cir., 2021	13	17	100%	green?
158	Hughes Aircraft Co. v. United States Ex Rel. Schumer	SCOTUS, 1997	12	551	100%	green?
159	Cheney Railroad Company, Inc. v. Interstate Commerce Commission	D.C. Cir., 1990	10	76	100%	green?
160	Lindsay Rafferty v. Denny's, Inc.	11th Cir., 2021	9	25	100%	green?
161	Jesus Ramirez v. Linda Dougherty	9th Cir., 2017	8	27	100%	green?
162	Kaiser Aluminum & Chemical Corp. v. Bonjorno	SCOTUS, 1990	22	967	100%	green?
163	Standing Rock Sioux Tribe v. United States Army Corps	D.C. Cir., 2021	17	55	100%	green?
164	United States v. Jeffrey H. Feingold	9th Cir., 2006	13	64	100%	green?
165	At&T Corp. v. Iowa Utilities Board	SCOTUS, 1999	12	487	100%	green?
166	City of Bos. Delegation v. Fed. Energy Regulatory Comm'n	D.C. Cir., 2018	11	20	100%	green?
167	Amer Bioscience Inc v. Thompson, Tommy G.	D.C. Cir., 2001	9	610	100%	green?
168	Communications Workers of America v. Public Service Commission	Md., 2012	9	21	100%	green?
169	Town of Easton v. Public Service Commission	Md., 2003	9	33	100%	green?
170	Adirondack Medical Center v. Kathleen Sebelius	D.C. Cir., 2014	9	62	100%	green?
171	Lichter v. United States	SCOTUS, 1948	8	404	100%	green?
172	UAW-Labor Employment & Training Corp. v. Chao	D.C. Cir., 2003	8	35	100%	green?
173	Becerra v. Empire Health Foundation, For Valley Hospital Medical...	SCOTUS, 2022	14	29	100%	green?
174	United States Steel Corp. v. United States	Fed. Cir., 2010	12	66	100%	green?
175	Karuk Tribe v. United States Forest Service	9th Cir., 2012	12	146	100%	green?
176	Karpova v. Snow	2d Cir., 2007	12	88	100%	green?
177	Yangzhou Bestpak Gifts & Crafts Co. v. United States	Fed. Cir., 2013	11	136	100%	green?
178	BCCA Appeal Group v. United States Environmental Protection Agency	5th Cir., 2003	9	32	100%	green?
179	Caveney v. Bower	Ill., 2003	9	129	100%	green?
180	City of Shoreacres v. Waterworth	5th Cir., 2005	8	41	100%	green?
181	Atlantic Refining Co. v. Public Service Commission	SCOTUS, 1959	8	313	100%	green?
182	United States v. O'Hagan	SCOTUS, 1997	23	448	100%	green?
183	Arkansas Louisiana Gas Co. v. Hall	SCOTUS, 1981	22	466	100%	green?
184	Environmental Protection Agency v. California Ex Rel. State Water...	SCOTUS, 1976	18	405	100%	yellow?
185	American Wildlands v. Kempthorne	D.C. Cir., 2008	18	355	100%	green?
186	Marjorie Lynch v. Gabriel Jackson	4th Cir., 2017	13	27	100%	green?
187	Jorge Baez-Sanchez v. William Barr	7th Cir., 2020	13	15	100%	green?
188	Cape Cod Hospital v. Sebelius	D.C. Cir., 2011	12	53	100%	green?
189	Don Olenhouse v. Commodity Credit Corporation	10th Cir., 1994	11	346	100%	green?
190	Defenders of Wildlife v. Ryan Zinke	9th Cir., 2017	11	36	100%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
191	United States v. David Rothenberg	11th Cir., 2019	11	25	100%	green?
192	United States v. Steven Wang	9th Cir., 2019	11	17	100%	green?
193	John Boerschig v. Trans-Pecos Pipeline, L.L.C.	5th Cir., 2017	10	24	100%	green?
194	Louisiana Public Service Commission v. Federal Energy Regulatory…	D.C. Cir., 2008	9	49	100%	green?
195	Dennis A. Dickson v. Secretary of Defense	D.C. Cir., 1995	9	263	100%	green?
196	Webster v. United States Department of Agriculture	4th Cir., 2012	9	77	100%	green
197	American Whitewater v. Thomas Tidwell	4th Cir., 2014	8	23	100%	green?
198	Paulsen v. Daniels	9th Cir., 2005	8	85	100%	green?
199	State of Texas v. United States	5th Cir., 2022	8	38	100%	green?
200	Adames v. Sheahan	Ill., 2009	27	130	100%	green?
201	County of Maui v. Hawaii Wildlife Fund	SCOTUS, 2020	25	81	100%	green?
202	Crawford Fitting Co. v. J. T. Gibbons, Inc.	SCOTUS, 1987	22	1,432	100%	green?
203	Director, Office of Workers' Compensation Programs v. Newport News…	SCOTUS, 1995	15	165	100%	green?
204	Pablo Mejia-Castanon v. Attorney General United States	3rd Cir., 2019	13	16	100%	green?
205	Neustar, Inc. v. Federal Communications Commission	D.C. Cir., 2017	12	27	100%	green?
206	Old Dominion Elec. Coop. v. Fed. Energy Regulatory Comm'n	D.C. Cir., 2018	12	24	100%	green?
207	Crystallex Int'l Corp. v. Bolivarian Republic De Venezuela (In Re De…	3rd Cir., 2019	12	31	100%	green?
208	Ford Motor Credit Co. v. Milhollin	SCOTUS, 1980	11	826	100%	green
209	Corrosion Proof Fittings v. The Environmental Protection Agency and…	5th Cir., 1991	11	37	100%	green?
210	Barbara Combs v. Commissioner of Social Security	6th Cir., 2006	10	544	100%	green?
211	Erie Brush & Manufacturing Corp. v. National Labor Relations Board	D.C. Cir., 2012	10	46	100%	green?
212	Florida Health Sciences Center, Inc. v. Secretary of Health & Human…	D.C. Cir., 2016	10	42	100%	green?
213	United States v. Jesus Villalobos	5th Cir., 2018	10	20	100%	green?
214	District Hospital Partners v. Sylvia Mathews Burwell	D.C. Cir., 2015	9	141	100%	green?
215	Susquehanna International Group, LLP v. Securities & Exchange…	D.C. Cir., 2017	9	17	100%	green?
216	In Re Comiskey	Fed. Cir., 2009	8	54	100%	green?
217	Center for Biological Diversity v. United States Bureau of Land…	9th Cir., 2012	8	66	100%	green?
218	District of Columbia v. Beretta U.S.A. Corp.	D.C., 2008	8	51	100%	green?
219	Ctr. for Biological Diversity v. Ryan Zinke	9th Cir., 2018	8	33	100%	green?
220	Lands Council v. McNair	9th Cir., 2010	14	94	100%	green?
221	CTS Corp. v. Environmental Protection Agency	D.C. Cir., 2014	19	156	100%	green?
222	Stephen West v. Charter Communications, Inc.	7th Cir., 2019	15	23	100%	green?
223	United States v. Charles Sands	6th Cir., 2020	15	21	100%	green?
224	Oglala Sioux Tribe v. U.S. Nuclear Regulatory Comm'n	D.C. Cir., 2018	11	32	100%	green?
225	Butte County, Cal. v. Hogen	D.C. Cir., 2010	9	114	100%	green?
226	Advanced Energy Management Alliance v. Federal Energy Regulatory…	D.C. Cir., 2017	9	17	100%	green?
227	Hamdan v. Rumsfeld	SCOTUS, 2006	30	326	100%	red?
228	S. D. Warren Co. v. Maine Board of Environmental Protection	SCOTUS, 2006	21	126	100%	green?
229	Perry v. Department of Financial & Professional Regulation	Ill., 2018	18	36	100%	green?
230	Lafferty v. Wells Fargo Bank, N.A.	Cal. Ct. App. 5th, 2018	14	20	100%	green?
231	Montgomery Ward & Co., Incorporated v. Federal Trade Commission	9th Cir., 1982	13	81	100%	green?
232	United States v. Douglas Lee Dunford, Sr.	4th Cir., 1998	12	123	100%	green?
233	Commissioner v. Glenshaw Glass Co.	SCOTUS, 1955	11	1,168	100%	green?
234	Sherley v. Sebelius	D.C. Cir., 2010	11	94	100%	green?
235	Pesquera Mares Australes Ltda. v. United States v. Coalition for Fair…	Fed. Cir., 2001	10	150	100%	green?
236	City of Parker v. State	Fla., 2008	10	16	100%	green?
237	Chamber of Commerce of the U.S. v. U.S. Dep't of Labor	5th Cir., 2018	10	38	100%	green?
238	R.J. Reynolds Vapor v. FDA	5th Cir., 2023	10	17	100%	green?
239	Edward W. Dalheim v. Kdfw-Tv	5th Cir., 1990	9	182	100%	green?
240	Eagle Pharmaceuticals, Inc. v. Alex Azar, II	D.C. Cir., 2020	9	35	100%	green?
241	United States v. Tre Tate	6th Cir., 2021	9	14	100%	green

#	Case	Court, year	In slice	In all	Fit	Good law
242	Loper Bright Enterprises, Inc v. Gina Raimondo	D.C. Cir., 2022	9	13	100%	green?
243	Medina County Environmental Action Ass'n v. Surface Transportation...	5th Cir., 2010	8	110	100%	green?
244	Nantahala Power & Light Co. v. Thornburg	SCOTUS, 1986	8	233	100%	green?
245	American Radio Relay League, Inc. v. Federal Communications Commission	D.C. Cir., 2008	8	99	100%	green?
246	Esi Energy, LLC v. Fed. Energy Regulatory Comm'n	D.C. Cir., 2018	8	9	100%	green?
247	Baldwin v. United States	SCOTUS, 2020	8	13	100%	green?
248	Baltimore Gas and Electric Company v. FERC	D.C. Cir., 2020	8	13	100%	green?
249	Forsythe v. Longboat Key Beach Erosion	Fla., 1992	35	282	100%	green?
250	Republic of Sudan v. Harrison	SCOTUS, 2019	30	116	100%	green?
251	Pavelic & LeFlore v. Marvel Entertainment Group, Div. of Cadence...	SCOTUS, 1990	29	572	100%	green?
252	Beecham v. United States	SCOTUS, 1994	29	246	100%	green?
253	Washington State Department of Social & Health Services v....	SCOTUS, 2003	28	387	100%	green?
254	Immigration & Naturalization Service v. National Center for...	SCOTUS, 1991	26	235	100%	green?
255	Arkansas v. Oklahoma	SCOTUS, 1992	25	411	100%	green
256	Federal Land Bank of St. Paul v. Bismarck Lumber Co.	SCOTUS, 1941	23	333	100%	green?
257	State Farm Fire & Cas. Co. v. United States Ex Rel. Rigsby	SCOTUS, 2016	22	107	100%	green?
258	United States v. Ruslan Kirilyuk	9th Cir., 2022	22	34	100%	green?
259	United States Ex Rel. Attorney General of the United States v....	SCOTUS, 1909	20	476	100%	green?
260	United States v. James Herrera	9th Cir., 2020	18	25	100%	green?
261	Tri-Valley Cares v. U.S. Department of Energy	9th Cir., 2012	17	139	100%	green?
262	Manuel Olivas-Motta v. Matthew Whitaker	9th Cir., 2018	17	27	100%	green?
263	Save Our Sound OBX, Inc. v. NC Dept of Transportation	4th Cir., 2019	16	193	100%	green?
264	Gozlon-Peretz v. United States	SCOTUS, 1991	15	497	100%	green?
265	United States v. Carlton	SCOTUS, 1994	15	256	100%	green?
266	United States v. Evers	6th Cir., 2012	14	87	100%	green?
267	Defenders of Wildlife v. North Carolina Department of Transportation	4th Cir., 2014	14	116	100%	green?
268	United States v. James Johnman, Jr.	3rd Cir., 2020	14	17	100%	green?
269	Commonwealth of Ky. v. Janet Yellen	6th Cir., 2022	14	24	100%	green?
270	Sierra Club v. Van Antwerp	11th Cir., 2008	13	89	100%	green?
271	Flores v. Holder	2d Cir., 2015	13	39	100%	green?
272	Unemployment Compensation Comm'n of Alaska v. Aragon	SCOTUS, 1946	11	660	100%	green?
273	Montana-Dakota Utilities Co. v. Northwestern Public Service Co.	SCOTUS, 1951	11	562	100%	green?
274	United States v. Oregon State Medical Society	SCOTUS, 1952	11	507	100%	green?
275	Beth Israel Hospital v. National Labor Relations Board	SCOTUS, 1978	11	291	100%	green?
276	Bureau of Alcohol, Tobacco & Firearms v. Federal Labor Relations...	SCOTUS, 1983	11	470	100%	green?
277	City of Tacoma v. Federal Energy Regulatory Commission	D.C. Cir., 2006	11	48	100%	green?
278	Lewis Hodge, Claimant-Appellant v. Togo D. West, Jr., Secretary of...	Fed. Cir., 1998	11	227	100%	green
279	United States v. Larry Jo Leeson	4th Cir., 2006	11	53	100%	green?
280	State v. Gelman	N.J., 2008	11	60	100%	green?
281	National Mining Association v. Ryan Zinke	9th Cir., 2017	11	22	100%	green?
282	New England Power Generators Ass'n v. Federal Energy Regulatiory...	D.C. Cir., 2018	11	20	100%	green?
283	Am. Rivers v. Fed. Energy Regulatory Comm'n	D.C. Cir., 2018	11	34	100%	green?
284	Physicians for Social Responsibility v. Andrew Wheeler	D.C. Cir., 2020	11	39	100%	green?
285	United States v. Demetrius Jefferson	8th Cir., 2020	11	12	100%	green?
286	National Cable Television Assn., Inc. v. United States	SCOTUS, 1974	10	327	100%	green?
287	Verizon Communications Inc. v. Federal Communications Commission	SCOTUS, 2002	10	218	100%	green?
288	South Florida Water Management District v. Miccosukee Tribe of Indians	SCOTUS, 2004	10	121	100%	green?
289	Pit River Tribe v. United States Forest Service	9th Cir., 2010	10	43	100%	green?
290	United States v. Juan Rivera-Constantino	9th Cir., 2015	10	23	100%	green?
291	Advanced Life Sys. Inc. v. Nat'l Labor Relations Bd.	D.C. Cir., 2018	10	10	100%	green?
292	Tenn. Hosp. Ass'n v. Alex M. Azar, II	6th Cir., 2018	10	28	100%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
293	Uniontown Area School District v. Pennsylvania Human Relations…	Pa., 1973	10	138	100%	green?
294	Vien-Phuong Thi Ho v. ReconTrust Co.	9th Cir., 2016	10	103	100%	green?
295	Nelson v. Reynolds	D.D.C., 2017	10	40	100%	green?
296	Ladner v. United States	SCOTUS, 1958	9	496	100%	green?
297	Massachusetts Trustees of Eastern Gas & Fuel Associates v. United…	SCOTUS, 1964	9	113	100%	green?
298	New Process Steel, L. P. v. National Labor Relations Board	SCOTUS, 2010	9	177	100%	green?
299	Wabash Valley Power Ass'n v. Federal Energy Regulatory Commission	D.C. Cir., 2001	9	34	100%	green?
300	American Hospital Association v. Otis R. Bowen, Secretary, H.H.S.	D.C. Cir., 1987	9	203	100%	green
301	North Carolina Department of Revenue v. Hudson	N.C. Ct. App., 2009	9	25	100%	green?
302	United States v. Rogelio Ruiz	6th Cir., 2015	9	22	100%	green?
303	United States v. Baha Jaffal	6th Cir., 2023	9	18	100%	green?
304	Swayne & Hoyt, Ltd. v. United States	SCOTUS, 1937	8	183	100%	green?
305	Grand Canyon Air Tour Coalition v. Federal Aviation Administration	D.C. Cir., 1998	8	69	100%	green?
306	Heartland Regional Medical Center v. Sebelius	D.C. Cir., 2009	8	88	100%	green?
307	Theodore Roosevelt Conservation Partnership v. Salazar	D.C. Cir., 2011	8	100	100%	green?
308	United States v. Lambert	9th Cir., 2007	8	33	100%	green?
309	American Farm Bureau Federation v. United States Environmental…	3rd Cir., 2015	8	44	100%	green?
310	United States v. Martinez-Cruz	10th Cir., 2016	8	14	100%	green?
311	Ludimilla Ramos Da Silva v. Attorney General United States	3rd Cir., 2020	8	19	100%	green?
312	Willie Goffney, Jr. v. Xavier Becerra	9th Cir., 2021	8	32	100%	green?
313	Sierra Club v. Federal Energy Regulatory Commission	D.C. Cir., 2017	37	108	97%	green?
314	HASHMI	BIA, 2009	30	193	96%	green?
315	United States v. Trey Campbell	4th Cir., 2022	40	71	96%	green
316	National Broadcasting Co. v. United States	SCOTUS, 1943	20	661	96%	green?
317	Vahora v. Holder	7th Cir., 2010	11	58	96%	green?
318	GUTIERREZ	BIA, 1996	9	57	96%	green?
319	L-N-Y	BIA, 2020	18	21	96%	green?
320	Touby v. United States	SCOTUS, 1991	23	175	96%	green?
321	Finest Meridor v. U.S. Attorney General	11th Cir., 2018	12	18	96%	green?
322	Maine v. Federal Energy Regulatory Commission	D.C. Cir., 2017	22	41	95%	green?
323	L. D. G. v. Eric Holder, Jr.	7th Cir., 2014	9	36	95%	green?
324	KHAN	BIA, 2016	9	16	95%	green?
325	Jesus Zuniga Romero v. William Barr	4th Cir., 2019	31	46	95%	green?
326	Nevada v. Department of Energy	D.C. Cir., 2006	19	141	95%	green
327	Zulfigar Qureshi v. Alberto R. Gonzales	7th Cir., 2006	13	53	95%	green?
328	Peter Pan Bus Lines, Inc. v. Federal Motor Carrier Safety…	D.C. Cir., 2006	9	62	95%	green?
329	Carter v. Carter Coal Co.	SCOTUS, 1936	18	556	95%	yellow?
330	W-Y-U	BIA, 2017	23	52	94%	green?
331	CASTRO-TUM	BIA, 2018	51	84	93%	green?
332	HollyFrontier Cheyenne Refining, LLC v. Renewable Fuels Assn.	SCOTUS, 2021	31	54	93%	green?
333	Sunshine Anthracite Coal Co. v. Adkins	SCOTUS, 1940	26	694	92%	green?
334	Bowles v. Seminole Rock & Sand Co.	SCOTUS, 1945	48	1,408	91%	green
335	Greater Boston Television Corp. v. Federal Communications Commission	D.C. Cir., 1970	13	464	91%	green?
336	SANCHEZ SOSA	BIA, 2012	34	59	91%	green?
337	Public Citizen, Inc. v. Federal Energy Regulatory Commission	D.C. Cir., 2016	12	24	90%	green?
338	Shalala v. Guernsey Memorial Hospital	SCOTUS, 1995	19	396	90%	green?
339	United States v. Kevin Hightower	3rd Cir., 1994	12	44	90%	green?
340	Fed. Energy Regulatory Comm'n v. Elec. Power Supply Ass'n	SCOTUS, 2016	57	173	90%	green?
341	Martin v. Occupational Safety & Health Review Commission	SCOTUS, 1991	30	770	90%	green
342	Panama Refining Co. v. Ryan	SCOTUS, 1935	24	931	90%	green?
343	Taniguchi v. Kan Pacific Saipan, Ltd.	SCOTUS, 2012	77	548	90%	green?
344	Christopher v. Smithkline Beecham Corp.	SCOTUS, 2012	87	574	89%	green?
345	Pollinator Stewardship Council v. U.S. Environmental Protection Agency	9th Cir., 2015	18	79	89%	green?
346	Ohio Valley Environmental Coalition v. Aracoma Coal Co.	4th Cir., 2009	17	381	89%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
347	New York v. Federal Energy Regulatory Commission	SCOTUS, 2002	31	214	88%	green?
348	Black Oak Energy, LLC v. Federal Energy Regulatory Commission	D.C. Cir., 2013	18	42	88%	green?
349	United States v. Piper	1st Cir., 1994	17	118	88%	green?
350	Solarworld Americas, Inc. v. United States, Yingli Green Energy...	Fed. Cir., 2018	14	30	88%	green?
351	FCC v. Prometheus Radio Project	SCOTUS, 2021	23	158	88%	green?
352	Auer v. Robbins	SCOTUS, 1997	162	2,423	87%	red 2024
353	Marsh v. Oregon Natural Resources Council	SCOTUS, 1989	56	1,943	87%	green
354	Erick Carter v. Welles-Bowen Realty, Inc.	6th Cir., 2013	15	34	87%	green
355	Christensen v. Harris County	SCOTUS, 2000	67	1,831	87%	green
356	Long Island Care at Home, Ltd. v. Coke	SCOTUS, 2007	25	309	87%	green?
357	United States v. Ron Pair Enterprises, Inc.	SCOTUS, 1989	62	4,334	87%	green?
358	AVETISYAN	BIA, 2012	54	127	86%	green?
359	Pauley v. BethEnergy Mines, Inc.	SCOTUS, 1991	21	479	86%	green?
360	Bowen v. Georgetown University Hospital	SCOTUS, 1988	69	1,830	86%	green
361	Rapanos v. United States	SCOTUS, 2006	31	373	85%	green
362	Department of Transportation v. Public Citizen	SCOTUS, 2004	47	557	85%	green
363	Ransom v. FIA Card Services, N. A.	SCOTUS, 2011	21	397	85%	green?
364	Facebook, Inc. v. Duguid	SCOTUS, 2021	72	384	85%	green?
365	Barnhart v. Walton	SCOTUS, 2002	22	1,174	84%	green?
366	Griffin v. Oceanic Contractors, Inc.	SCOTUS, 1982	28	1,430	84%	green?
367	United States v. Jose Maria Mendoza-Figueroa	8th Cir., 1995	36	77	84%	green?
368	Luminant Generation Co. v. United States Environmental Protection...	5th Cir., 2012	18	43	84%	green?
369	Lugo v. Holder	2d Cir., 2015	9	22	84%	green?
370	United States v. Richardson	2d Cir., 2020	25	34	84%	green?
371	Robertson v. Methow Valley Citizens Council	SCOTUS, 1989	53	1,384	84%	green
372	Allegheny Defense Project v. FERC	D.C. Cir., 2020	25	37	84%	green?
373	Morgan Stanley Capital Group Inc. v. Public Util. Dist. No. 1 of...	SCOTUS, 2008	41	162	84%	green?
374	Mills v. Green	SCOTUS, 1895	44	955	83%	green?
375	Michigan v. Envtl. Prot. Agency	SCOTUS, 2015	33	176	83%	green?
376	BedRoc Limited, LLC v. United States	SCOTUS, 2004	65	519	83%	green
377	Allina Health Services v. Kathleen Sebelius	D.C. Cir., 2014	22	133	83%	green?
378	United States v. Mead Corp.	SCOTUS, 2001	134	2,774	83%	green
379	Sacramento Municipal Utility District v. Federal Energy Regulatory...	D.C. Cir., 2010	13	37	83%	green?
380	United States v. Aumbrey Winstead	D.C. Cir., 2018	31	82	83%	green
381	Smiley v. Citibank (South Dakota), N. A.	SCOTUS, 1996	29	546	83%	green?
382	DCH Regional Medical Center v. Alex M. Azar II	D.C. Cir., 2019	11	41	82%	green?
383	Harmon v. Unemployment Comp. Bd. of Review	Pa., 2019	27	33	82%	green?
384	Industrial Union Dept., AFL-CIO v. American Petroleum Institute	SCOTUS, 1980	21	347	82%	green?
385	Wayman v. Southard	SCOTUS, 1825	31	639	82%	green?
386	United States Forest Service v. Cowpasture River Preservation Assn.	SCOTUS, 2020	18	31	81%	green?
387	Boone v. Lightner	SCOTUS, 1943	9	320	81%	green
388	United States v. Vargas	5th Cir., 2023	28	45	81%	green
389	Huawei Tech USA v. FCC	5th Cir., 2021	18	35	81%	green?
390	United States v. Edward Merritt	8th Cir., 2019	26	29	81%	green?
391	Aposhian v. Barr	10th Cir., 2020	15	57	81%	green?
392	Sierra Club v. Federal Energy Regulatory Commission	D.C. Cir., 2016	16	48	81%	green?
393	Fred Meyer Stores, Inc. v. National Labor Relations Board	D.C. Cir., 2017	17	35	80%	green?
394	United States Telecom Association v. Federal Communications...	D.C. Cir., 2004	20	158	80%	green?
395	Adams Fruit Co. v. Barrett	SCOTUS, 1990	14	273	80%	green?
396	Barnhart v. Thomas	SCOTUS, 2003	96	1,926	80%	green?
397	National Wildlife Federation v. National Marine Fisheries Service	9th Cir., 2008	14	152	79%	green?
398	United States v. Steven Adams	7th Cir., 2019	17	21	78%	green?
399	MCI Telecommunications Corp. v. American Telephone & Telegraph Co.	SCOTUS, 1994	60	472	78%	green?
400	Rimini Street, Inc. v. Oracle USA, Inc.	SCOTUS, 2019	45	214	78%	green?
401	Burlington Truck Lines, Inc. v. United States	SCOTUS, 1962	91	2,394	78%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
402	Michigan v. EPA	SCOTUS, 2015	74	170	77%	green?
403	Vermont Yankee Nuclear Power Corp. v. Natural Resources Defense…	SCOTUS, 1978	79	2,135	77%	green
404	Bowman Transportation, Inc. v. Arkansas-Best Freight System, Inc.	SCOTUS, 1975	104	2,745	77%	green?
405	Alaska Department of Environmental Conservation v. Environmental…	SCOTUS, 2004	31	503	77%	green?
406	United States v. Havis	6th Cir., 2019	19	30	77%	green
407	United States v. Trinity Phillips	6th Cir., 2022	10	14	77%	green?
408	United States v. Fisher	SCOTUS, 1805	12	476	77%	green?
409	De Niz Robles v. Lynch	10th Cir., 2015	10	32	77%	green?
410	Allentown MacK Sales & Service, Inc. v. National Labor Relations Board	SCOTUS, 1998	47	535	77%	green?
411	Lamie v. United States Trustee	SCOTUS, 2004	102	1,817	77%	green?
412	Cargill v. Garland	5th Cir., 2021	8	8	76%	green?
413	Zhejiang Dunan Hetian Metal Co., Ltd. v. United States	Fed. Cir., 2011	10	105	76%	green?
414	Pension Benefit Guaranty Corporation v. RA Gray & Co.	SCOTUS, 1984	28	843	76%	green?
415	American Power & Light Co. v. Securities & Exchange Commission	SCOTUS, 1946	35	547	76%	green?
416	Federal Trade Commission v. Bunte Bros.	SCOTUS, 1941	14	211	75%	green?
417	United States v. Schooner Peggy	SCOTUS, 1801	23	705	75%	green?
418	Southwestern Elec. Power Co. v. U.S. E.P.A.	5th Cir., 2019	21	38	75%	green?
419	United States v. Marcus Crum	9th Cir., 2019	16	16	75%	green?
420	Miccosukee Tribe of Indians of Florida v. United States	11th Cir., 2009	17	109	75%	green?
421	City of New York v. Beretta U.S.A. Corp.	2d Cir., 2008	10	125	75%	green?
422	United States v. Antoinette Adair	3rd Cir., 2022	20	36	75%	green
423	Wages and White Lion Invst v. FDA	5th Cir., 2021	20	56	75%	green?
424	Camp v. Pitts	SCOTUS, 1973	37	2,265	75%	green
425	Rodriguez v. United States	SCOTUS, 1987	80	507	74%	green
426	Baez-Sanchez v. Sessions	7th Cir., 2017	15	21	74%	green?
427	United States v. Reorganized CF&I Fabricators of Utah, Inc.	SCOTUS, 1996	10	228	74%	green?
428	Interstate Commerce Commission v. Cincinnati, New Orleans & Texas…	SCOTUS, 1897	9	155	73%	green?
429	Barnhart v. Peabody Coal Co.	SCOTUS, 2003	58	372	73%	green?
430	Perez v. Mortgage Bankers Assn.	SCOTUS, 2015	92	420	73%	green
431	United States v. Apel	SCOTUS, 2014	16	38	73%	green?
432	National Labor Relations Board v. Wyman-Gordon Co.	SCOTUS, 1969	57	721	72%	green?
433	United States v. Moore	SCOTUS, 1975	23	279	72%	green?
434	Securities & Exchange Commission v. Chenery Corp.	SCOTUS, 1947	176	3,615	72%	green?
435	City of Milwaukee v. Illinois	SCOTUS, 1981	27	477	72%	green
436	Brock v. Pierce County	SCOTUS, 1986	15	347	71%	green?
437	Richard A. Batterton, Secretary of Employment & Social Services of…	D.C. Cir., 1980	11	265	71%	green?
438	Skidmore v. Swift & Co.	SCOTUS, 1944	220	4,160	71%	green
439	Gonzales v. Oregon	SCOTUS, 2006	74	567	71%	green
440	Gutierrez-Brizuela v. Lynch	10th Cir., 2016	29	86	71%	green?
441	Obeya v. Sessions	2d Cir., 2018	15	31	71%	green?
442	Lorillard v. Pons	SCOTUS, 1978	48	1,330	71%	green
443	Lockhart v. United States	SCOTUS, 2016	95	262	71%	green
444	Council For Urological Interes v. Sylvia Mathews Burwell	D.C. Cir., 2015	10	39	71%	green?
445	United States v. Gonzales	SCOTUS, 1997	83	812	71%	green?
446	United States v. LaBonte	SCOTUS, 1997	24	378	71%	green?
447	Chevron U. S. A. Inc. v. Echazabal	SCOTUS, 2002	33	289	71%	green
448	New York v. U.S. Environmental Protection Agency	D.C. Cir., 2005	12	141	71%	green?
449	Lindeen v. Securities & Exchange Commission	D.C. Cir., 2016	11	22	71%	green?
450	J. W. Hampton, Jr., & Co. v. United States	SCOTUS, 1928	35	726	70%	green?
451	Crandon v. United States	SCOTUS, 1990	30	599	70%	green
452	Chickasaw Nation v. United States	SCOTUS, 2001	38	354	70%	green?
453	Guedes v. Bureau of Alcohol, Tobacco, Firearms and Explosives	SCOTUS, 2020	18	27	70%	green
454	Davis v. Michigan Department of the Treasury	SCOTUS, 1989	106	1,051	69%	green
455	Thorpe v. Housing Authority of Durham	SCOTUS, 1969	23	968	69%	green?
456	United States v. Woods	SCOTUS, 2013	59	304	69%	green?
457	Tamm v. UST-United States Trustee (In Re Hokulani Square, Inc.)	9th Cir., 2015	9	23	69%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
458	First National City Bank v. Banco Para El Comercio Exterior De Cuba	SCOTUS, 1983	24	561	69%	yellow?
459	United States v. Smith	11th Cir., 1995	9	28	69%	green?
460	Obduskey v. McCarthy & Holthus LLP	SCOTUS, 2019	34	220	69%	green?
461	Snyder Bros., Inc. v. Pa. Pub. Util. Comm'n	Pa., 2018	31	55	69%	green?
462	United States v. Kyle Boleyn	8th Cir., 2019	28	37	68%	green?
463	A. L. A. Schechter Poultry Corp. v. United States	SCOTUS, 1935	45	1,158	68%	green?
464	Appalachian Power Co. v. Environmental Protection Agency	D.C. Cir., 2000	18	186	68%	green?
465	Federal Communications Commission v. Fox Television Stations, Inc.	SCOTUS, 2009	183	1,259	68%	green
466	Motor Vehicle Mfrs. Assn. of United States, Inc. v. State Farm Mut.. . .	SCOTUS, 1983	437	8,045	68%	green
467	Ali v. Federal Bureau of Prisons	SCOTUS, 2008	107	606	67%	green?
468	Encino Motorcars, LLC v. Navarro	SCOTUS, 2016	106	473	67%	green
469	Sebelius v. Cloer	SCOTUS, 2013	40	900	67%	green?
470	United States v. Jennifer Riccardi	6th Cir., 2021	73	94	67%	green
471	Jorge O. Arevalo v. U.S. Attorney General	11th Cir., 2017	8	19	67%	green?
472	Sierra Club, Inc. v. U.S. Forest Service	4th Cir., 2018	9	26	67%	green?
473	Center for Biological Diversity v. National Highway Traffic Safety. . .	9th Cir., 2008	13	132	67%	green?
474	Wildearth Guardians v. Heather Provencio	9th Cir., 2019	11	26	67%	green?
475	Ad Hoc Shrimp Trade Action Committee v. United States	Fed. Cir., 2015	12	88	67%	green?
476	City of Olmsted Falls, Ohio v. Federal Aviation Administration and. . .	D.C. Cir., 2002	18	178	67%	green?
477	Shinseki, Secretary of Veterans Affairs v. Sanders	SCOTUS, 2009	98	2,912	66%	green
478	Texas v. United States Environmental Protection Agency	5th Cir., 2016	36	104	66%	green?
479	Gustafson v. Alloyd Co.	SCOTUS, 1995	74	1,142	66%	green?
480	Francisco Garfias-Rodriguez v. Eric Holder, Jr.	9th Cir., 2012	23	125	66%	green?
481	Perrin v. United States	SCOTUS, 1979	101	1,266	65%	green?
482	Nat'l Labor Relations Bd. v. SW Gen., Inc.	SCOTUS, 2017	90	352	65%	green?
483	United States v. Trudale Raymond Williams	8th Cir., 2019	16	21	65%	green?
484	New Jersey v. Environmental Protection Agency	D.C. Cir., 2008	8	53	65%	green?
485	Cargill v. Garland	5th Cir., 2023	18	34	65%	green?
486	United States v. Malik Nasir	3rd Cir., 2020	51	77	64%	green?
487	William Akins v. United States	11th Cir., 2009	12	25	64%	green?
488	Eric White v. UAL	7th Cir., 2021	24	80	64%	green?
489	Mississippi Commission on Environmental Quality v. Environmental. . .	D.C. Cir., 2015	14	39	64%	green?
490	United States v. Brandon Romel Dupree	11th Cir., 2023	58	118	64%	green?
491	Solid Waste Agency of Northern Cook County v. United States Army. . .	SCOTUS, 2001	42	415	64%	yellow 2003
492	United States v. R. L. C.	SCOTUS, 1992	16	149	64%	green?
493	Guedes v. Bureau of Alcohol, Tobacco, Firearms	D.C. Cir., 2019	42	136	63%	green?
494	Corley v. United States	SCOTUS, 2009	99	855	63%	green?
495	Steward MacHine Co. v. Davis	SCOTUS, 1937	10	644	63%	green?
496	Martin v. Hadix	SCOTUS, 1999	26	312	63%	green?
497	Carcieri v. Salazar	SCOTUS, 2009	40	296	63%	green?
498	Brown v. Gardner	SCOTUS, 1994	57	884	63%	yellow 2017
499	United States v. Malik Nasir	3rd Cir., 2021	69	112	63%	green
500	Securities & Exchange Commission v. Chenery Corp.	SCOTUS, 1943	210	3,574	62%	green?
501	National Cable & Telecommunications Assn. v. Brand X Internet Services	SCOTUS, 2005	115	1,312	62%	green
502	Kennecott Utah Copper Corporation v. United States Department of the. . .	D.C. Cir., 1996	13	156	62%	green?
503	Robinson v. Shell Oil Co.	SCOTUS, 1997	171	2,486	62%	green?
504	K Mart Corp. v. Cartier, Inc.	SCOTUS, 1988	69	997	62%	green?
505	Chrysler Corp. v. Brown	SCOTUS, 1979	54	1,284	62%	green?
506	Florida Power & Light Co. v. Lorion	SCOTUS, 1985	58	1,747	62%	green?
507	City of Philadelphia v. Attorney General United States	3rd Cir., 2019	12	36	62%	green?
508	United States v. Menasche	SCOTUS, 1955	41	927	62%	green?
509	Federal Communications Commission v. AT&T Inc.	SCOTUS, 2011	59	203	62%	green?
510	National Assn. of Mfrs. v. Department of Defense	SCOTUS, 2018	60	174	62%	green
511	United Sav. Assn. of Tex. v. Timbers of Inwood Forest Associates, Ltd.	SCOTUS, 1988	71	1,760	62%	green?

#	Case	Court, year	In slice	In all	Fit	Good law
512	United States v. Xiaorong You	6th Cir., 2023	26	37	62%	green
513	Usery v. Turner Elkhorn Mining Co.	SCOTUS, 1976	19	1,123	62%	green?
514	National Ass'n of Home Builders v. Defenders of Wildlife	SCOTUS, 2007	87	857	61%	green
515	Marx v. General Revenue Corp.	SCOTUS, 2013	107	736	61%	green?
516	Kisor v. Wilkie	SCOTUS, 2019	457	1,048	61%	green
517	Hibbs v. Winn	SCOTUS, 2004	67	607	61%	green?
518	Stinson v. United States	SCOTUS, 1993	195	2,016	61%	red 2023
519	Spector v. Norwegian Cruise Line Ltd.	SCOTUS, 2005	10	114	61%	green?
520	Crooks v. Harrelson	SCOTUS, 1930	24	488	61%	green?
521	Atlantic Cleaners & Dyers, Inc. v. United States	SCOTUS, 1932	38	539	61%	green
522	United States v. Willie Garth	6th Cir., 2020	29	47	61%	green?
523	Food & Drug Administration v. Brown & Williamson Tobacco Corp.	SCOTUS, 2000	212	1,756	60%	green
524	Citizens to Preserve Overton Park, Inc. v. Volpe	SCOTUS, 1971	78	7,189	60%	green?
525	Azar v. Allina Health Services	SCOTUS, 2019	74	202	60%	green?
526	United States v. David Prien-Pinto	9th Cir., 2019	13	16	60%	green?
527	United States v. Price	SCOTUS, 1960	15	457	60%	green?
528	Hartford Underwriters Insurance v. Union Planters Bank, N. A.	SCOTUS, 2000	54	1,205	59%	green?
529	United States v. Granderson	SCOTUS, 1994	20	272	59%	green?
530	Roberts v. Sea-Land Services, Inc.	SCOTUS, 2012	36	283	59%	green
531	Judulang v. Holder	SCOTUS, 2011	55	372	59%	green?
532	National Mining Association v. Gina McCarthy	D.C. Cir., 2014	13	116	59%	green?
533	Americans for Clean Energy v. Environmental Protection Agency	D.C. Cir., 2017	8	21	59%	green?
534	Babbitt v. Sweet Home Chapter, Communities for Great Ore.	SCOTUS, 1995	41	569	58%	green
535	Wildearth Guardians v. Sally Jewell	D.C. Cir., 2013	17	159	58%	green?
536	Sullivan v. Finkelstein	SCOTUS, 1990	20	672	58%	green?
537	California Wilderness Coalition v. U.S. Department of Energy	9th Cir., 2011	14	69	58%	green?
538	Appalachian Power Company v. Environmental Protection Agency, Public...	D.C. Cir., 1998	8	105	58%	green?
539	Department of Transportation v. Association of American Railroads	SCOTUS, 2015	47	159	58%	green?
540	United States v. Camp	5th Cir., 2003	10	15	58%	green?
541	Alabama Assn. of Realtors v. Department of Health and Human Servs.	SCOTUS, 2021	56	141	57%	green
542	Henson v. Santander Consumer USA Inc.	SCOTUS, 2017	105	556	57%	green
543	Pension Benefit Guaranty Corporation v. LTV Corp.	SCOTUS, 1990	40	706	57%	green?
544	Connecticut National Bank v. Germain	SCOTUS, 1992	165	2,832	56%	green
545	Md. Office of People's Counsel v. Md. Pub. Serv. Comm'n	Md., 2018	10	13	56%	green?
546	Hughes v. Talen Energy Marketing, LLC	SCOTUS, 2016	23	85	55%	green
547	BST Holdings, L.L.C. v. OSHA	5th Cir., 2021	20	51	55%	green?
548	United States v. Montes Miller	4th Cir., 2023	11	23	55%	green?
549	United States v. American Trucking Associations	SCOTUS, 1940	20	1,873	55%	green?
550	Masih v. Mukasey	5th Cir., 2008	15	46	55%	green?
551	Barragan-Lopez v. Mukasey	9th Cir., 2007	12	42	55%	green?
552	American Bankers Association v. National Credit Union Administration	D.C. Cir., 2019	12	31	55%	green?
553	American Bar Ass'n v. Federal Trade Commission	D.C. Cir., 2005	9	66	55%	green?
554	Natural Resources Defense Council v. Environmental Protection Agency	D.C. Cir., 2009	9	32	54%	green?
555	King v. Burwell	SCOTUS, 2015	177	852	54%	green
556	Natural Resources Defense Council v. Andrew Wheeler	D.C. Cir., 2020	12	45	54%	green?
557	United States v. Wiltberger	SCOTUS, 1820	79	749	54%	green?
558	Vartelas v. Holder	SCOTUS, 2012	34	214	54%	green?
559	Encino Motorcars, LLC v. Navarro	SCOTUS, 2018	107	408	54%	green
560	United States v. Bass	SCOTUS, 1971	82	1,424	53%	yellow 2016
561	Yakus v. United States	SCOTUS, 1944	67	1,678	53%	green?
562	Department of Homeland Security v. Regents of Univ. of Cal.	SCOTUS, 2020	148	440	52%	green
563	Gustavo Monteon-Camargo v. William Barr, U. S. Att	5th Cir., 2019	33	43	52%	green?
564	United States v. Montalvo-Murillo	SCOTUS, 1990	21	207	52%	green?
565	City of Chicago v. Jefferson B. Sessions III	7th Cir., 2018	11	51	52%	yellow?

#	Case	Court, year	In slice	In all	Fit	Good law
566	Field v. Clark	SCOTUS, 1892	20	772	52%	green?
567	Wisconsin Central Ltd. v. United States	SCOTUS, 2018	121	273	51%	green
568	Whitman v. American Trucking Assns., Inc.	SCOTUS, 2001	242	1,259	51%	green
569	Huddleston v. United States	SCOTUS, 1974	19	364	51%	green?
570	United States v. Butler	SCOTUS, 1936	27	706	50%	green?
571	State ex rel. Holdridge v. Industrial Commission	Ohio, 1967	10	62	50%	green?
572	National Labor Relations Board v. United Food & Commercial Workers…	SCOTUS, 1987	24	460	50%	green?
573	Sinclair Wyo. Ref. Co. v. U.S. Envtl. Prot. Agency	10th Cir., 2017	12	20	50%	green?
574	TX Assn of Manufacturers v. CPSC	5th Cir., 2021	8	14	50%	green?
575	Duncan v. Walker	SCOTUS, 2001	110	2,203	50%	green?
576	United States Telecom Assoc. v. FCC [Order In Slip Opinion Format]	D.C. Cir., 2017	17	33	49%	green?
577	United States v. Universal C. I. T. Credit Corp.	SCOTUS, 1952	21	539	48%	green?
578	Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.	SCOTUS, 1984	784	18,640	48%	red 2024
579	Gundy v. United States	SCOTUS, 2019	120	265	47%	green
580	L-A-B-R	BIA, 2018	67	93	47%	green?
581	United States v. Malachi Glass	3rd Cir., 2018	22	52	47%	green?
582	King v. St. Vincent's Hospital	SCOTUS, 1991	45	621	46%	green
583	Merrill Lynch, Pierce, Fenner & Smith Inc. v. Dabit	SCOTUS, 2006	40	531	46%	green?
584	Moskal v. United States	SCOTUS, 1990	45	627	46%	green?
585	Branch v. Smith	SCOTUS, 2003	25	223	45%	green?
586	United States v. Zimmian Tabb	2d Cir., 2020	28	35	45%	green?
587	United States v. Jeffery Havis	6th Cir., 2019	146	267	45%	green
588	Ramon Jasso Arangure v. Matthew Whitaker	6th Cir., 2018	32	65	44%	green?
589	Environmental Defense v. Duke Energy Corporation	SCOTUS, 2007	32	175	43%	green?
590	Bragdon v. Abbott	SCOTUS, 1998	61	1,283	43%	green
591	Mistretta v. United States	SCOTUS, 1989	149	2,104	42%	yellow 2021
592	Exxon Mobil Corp. v. Allapattah Services, Inc.	SCOTUS, 2005	71	2,634	42%	green?
593	Maracich v. Spears	SCOTUS, 2013	75	282	42%	green?
594	Jones v. United States	SCOTUS, 2000	31	568	42%	green?
595	Cyan, Inc. v. Beaver County Employees Retirement Fund	SCOTUS, 2018	66	128	41%	green?
596	Landgraf v. USI Film Products	SCOTUS, 1994	261	4,389	41%	green?
597	Jama v. Immigration and Customs Enforcement	SCOTUS, 2005	87	516	41%	green?
598	South Dakota v. Dole	SCOTUS, 1987	44	590	41%	green?
599	McBoyle v. United States	SCOTUS, 1931	46	412	40%	green
600	Bell v. United States	SCOTUS, 1955	33	1,069	40%	green?
601	Food Marketing Institute v. Argus Leader Media	SCOTUS, 2019	87	315	39%	green
602	United States v. Kozminski	SCOTUS, 1988	25	385	39%	green
603	Holder v. Martinez Gutierrez	SCOTUS, 2012	16	94	39%	green?
604	Yates v. United States	SCOTUS, 2015	40	331	39%	green?
605	Keene Corp. v. United States	SCOTUS, 1993	41	824	39%	green
606	Louisiana Pub. Serv. Comm'n v. FCC	SCOTUS, 1986	44	839	38%	green
607	Microsoft Corp. v. i4i Ltd. Partnership	SCOTUS, 2011	56	771	38%	green?
608	SIBRUN	BIA, 1983	18	144	38%	green?
609	Chapman v. United States	SCOTUS, 1991	61	1,209	37%	green?
610	Bond v. United States	SCOTUS, 2014	113	351	37%	yellow 2024
611	Reiter v. Sonotone Corp.	SCOTUS, 1979	93	1,137	36%	green?
612	New York v. United States	SCOTUS, 1992	81	1,121	34%	green
613	National Federation of Independent Business v. Sebelius	SCOTUS, 2012	187	949	34%	green
614	Paroline v. United States	SCOTUS, 2014	151	533	34%	green?
615	Immigration & Naturalization Service v. Aguirre-Aguirre	SCOTUS, 1999	65	1,027	33%	green?
616	Negusie v. Holder	SCOTUS, 2009	52	292	33%	green?
617	Parker Drilling Management Services, Ltd. v. Newton	SCOTUS, 2019	34	119	33%	green
618	The Emily and the Caroline	SCOTUS, 1824	11	73	33%	green?
619	Gregory v. Ashcroft	SCOTUS, 1991	88	1,127	31%	green
620	Russello v. United States	SCOTUS, 1983	226	2,433	29%	green
621	PDK Laboratories Inc. v. United States Drug Enforcement Administration	D.C. Cir., 2004	102	609	27%	green?
622	Printz v. United States	SCOTUS, 1997	69	803	23%	green

Fit better in another sub-cluster (22)

#	Case	Court, year	In slice	In all	Fit	Good law
623	Standefer v. United States *best: 2020-24:2.4 Substantive due process: family, privacy and reproduction (50%)*	SCOTUS, 1980	18	606	50%	green?
624	National Ass'n of Reversionary Property Owners v. Surface… *best: 2020-24:2.1 Article III standing (50%)*	D.C. Cir., 1998	8	58	50%	green?
625	Johnson v. United States *best: 2020-24:1.3 Federal habeas: AEDPA deference and procedural default (50%)*	SCOTUS, 2005	23	399	50%	green?
626	United States v. Dennis Smith *best: 2020-24:3.1 Reasonableness review of federal sentences (50%)*	6th Cir., 2020	12	17	50%	green?
627	NFIB v. OSHA *best: 2020-24:2.10 Separation of powers: removal power and non-Article III… (50%)*	SCOTUS, 2022	12	56	50%	green
628	Federal Communications Commission v. Pottsville Broadcasting Co. *best: 2020-24:2.10 Separation of powers: removal power and non-Article III… (50%)*	SCOTUS, 1940	11	642	50%	green?
629	Cal. Cmty. Against Toxics v. Envtl. Prot. Agency *best: 2020-24:2.1 Article III standing (51%)*	D.C. Cir., 2019	13	33	49%	green
630	Reno v. Koray *best: 2020-24:3.17 around United States v. Larry E. Stott, Jr., Robert A.… (55%)*	SCOTUS, 1995	28	629	45%	green?
631	Palmer v. Hoffman *best: 2020-24:6.4 Confrontation Clause after Crawford (57%)*	SCOTUS, 1943	26	1,035	43%	green?
632	Delaware Department of Natural Resources & Environmental Control v.… *best: 2020-24:2.1 Article III standing (58%)*	D.C. Cir., 2015	12	50	42%	green?
633	Levin v. Commerce Energy, Inc. *best: 2020-24:2.6 Federal Indian law and tribal sovereignty (60%)*	SCOTUS, 2010	17	200	40%	green?
634	Rivers v. Roadway Express, Inc. *best: 2020-24:3.9 around Schriro (38%)*	SCOTUS, 1994	42	734	38%	green?
635	Nixon v. Missouri Municipal League *best: 2020-24:2.12 Federal preemption (63%)*	SCOTUS, 2004	14	102	37%	green?
636	Mont v. United States *best: 2020-24:3.8 around Alleyne (67%)*	SCOTUS, 2019	37	73	33%	green?
637	Republic of Iraq v. Beaty *best: 2020-24:3.3 ACCA and the categorical approach (39%)*	SCOTUS, 2009	16	123	33%	green?
638	United States v. Jose Garcia *best: 2020-24:9.4 Texas Anders procedure in the 2020s, incl.… (72%)*	8th Cir., 2019	25	27	28%	green?
639	Posadas v. National City Bank *best: 2020-24:3.6 around United States v. Orbie Chambliss (50%)*	SCOTUS, 1936	15	426	27%	green?
640	Home Depot U. S. A., Inc. v. Jackson *best: 2020-24:2.1 Article III standing (33%)*	SCOTUS, 2019	50	714	27%	green?
641	Tennessee Valley Authority v. Hill *best: 2020-24:2.1 Article III standing (34%)*	SCOTUS, 1978	40	1,711	26%	green?
642	I4i Ltd. Partnership v. Microsoft Corp. *best: 2020-24:26.2 Patent claim construction (74%)*	Fed. Cir., 2010	20	350	26%	green?
643	BFP v. Resolution Trust Corporation *best: 2020-24:4.3 Eighth Amendment deliberate indifference in prisons (50%)*	SCOTUS, 1994	47	969	24%	green?
644	Florida Department of Revenue v. Piccadilly Cafeterias, Inc. *best: 2020-24:4.3 Eighth Amendment deliberate indifference in prisons (40%)*	SCOTUS, 2008	32	249	20%	green?

Lineage 19722

1975-79:6.2 181 • 1980-84:7.1 275 • 1985-89:8.2 192 • 1990-94:8.1 409 • 1995-99:7.1 550 • 2000-04:9.1 456 • 2005-09:8.1 720 • 2010-14:6.1 691 • 2015-19:3.2 657 • **2020-24:2.3 644**

Merges and splits

from 2015-19:3.2 Judicial review of agency action: deference and reasoned decision-making • 204 shared, Jaccard 0.35 (this lineage)
to 2025-29:3.10 Agency review after Loper Bright (2025) • 41 shared, Jaccard 0.15
to 2025-29:3.5 Statutory surplusage, delegation and immigration detention (2025) • 34 shared, Jaccard 0.10
from 2015-19:3.4 Federal powers: commerce clause and separation of powers (2010s) • 30 shared, Jaccard 0.05

Joined since 2015-19 (not in the lineage's 2015-19 sub-cluster; where they were then): 440

not a node in 2015-19 (cited too rarely then, or not yet decided) (278): Department of Homeland Security v. Regents of Univ. of Cal.; Michigan v. EPA; United States v. Jennifer Riccardi; United States v. Malik Nasir; ATF; United States v. Trey Campbell; W-Y-U; United States v. Brandon Romel Dupree; United States v. Roberto Castillo; Alabama Assn. of Realtors v. Department of Health and Hum...; Texas v. United States Environmental Protection Agency; United States v. Lenair Moses; NBC v. USA; Jesus Zuniga Romero v. William Barr; Duguid; Lewis; United States v. Martez Smith; United States v. Richardson; Guedes; United States v. Edward Merritt; FDA; United States v. Malik Nasir; L-N-Y; GUTIERREZ; Baez-Sanchez; FERC; Aposhian; Finest Meridor v. U.S. Attorney General; United States Telecom Assoc. v. FCC [Order In Slip Opinio...; FDA; KHAN; Association of American Railroads v. United States Depart...; FDA; Interstate Commerce Commission v. Cincinnati, New Orleans...; City of Philadelphia v. Attorney General United States; Rimini Street, Inc. v. Oracle USA, Inc.; Federal Trade Commission v. Bunte Bros.; Yeison Meza Morales v. William Barr; William Akins v. United States; L-A-B-R; HollyFrontier Cheyenne Refining, LLC v. Renewable Fuels A...; United States v. Willie Garth; United States v. Virgil Bailey, Jr.; FERC; United States v. Darius Thomas; Havis; Solarworld Americas, Inc. v. United States, Yingli Green ...; Currin; Cargill; Sierra Club v. Lynn; New York Central Securities Corporation v. United States; United States v. Xiaorong You; Cargill; FDA; FDA; OSHA; FDA; United States v. Zimmian Tabb; UAL; PRC; Home Box Office, Inc. v. Federal Communications Commissio...; Camp; State of TX v. USA; Midwest Iso Transmission Owners v. Federal Energy Regulat...; Ferc; FERC; FERC; Roberto Hernandez-Serrano v. William Barr; Obeya; Downhole Pipe & Equipment, L.P. v. United States; United States v. Kevin Hightower; Skinner; Southwestern Elec. Power Co. v. U.S. E.P.A.; Apel; Guam v. United States; National Horsemen's Benevolent v. Black; FCC v. Prometheus Radio Project; Aposhian; Luminant Generation Co. v. United States Environmental Pr...; FERC; FERC; Pollinator Stewardship Council v. U.S. Environmental Prot...; United States Forest Service v. Cowpasture River Preserva...; FERC; Jorge O. Arevalo v. U.S. Attorney General; Janet S. Delana, Individually, and as the Wife of Deceden...; Fred Meyer Stores, Inc. v. National Labor Relations Board; FERC; Gustavo Monteon-Camargo v. William Barr, U. S. Att; Vargas; Maria Medina Tovar v. Laura Zuchowski; United States v. David Prien-Pinto; Council For Urological Interes v. Sylvia Mathews Burwell; Lugo; United States v. Marcus Crum; Texaco; Newton; FERC; Donald Larry Martin v. Social Security Administration, Co...; FERC; Zhejiang Dunan Hetian Metal Co., Ltd. v. United States; Spector; United States v. Luis Mercado; United States v. Antoinette Adair; Huawei Tech USA v. FCC; Boone; Ramon Jasso Arangure v. Matthew Whitaker; Mozilla Corporation v. FCC; United States v. Phillip Zabawa; Cal. Cmty. Against Toxics v. Envtl. Prot. Agency; United States v. Trudale Raymond Williams; Richard A. Batterton, Secretary of Employment & Social Se...; DCH Regional Medical Center v. Alex M. Azar II; Hallowell; Cir; Shimer; Reorganized CF&I; FERC; FERC; FERC; Usfs; United States v. Trinity Phillips; State ex rel. Plain Dealer Publishing Co. v. City of Clev...; Sierra Club, Inc. v. U.S. Forest Service; American Fuel & Petrochemical v. EPA; UCBR; Brunner; FERC; Md. Office of People's Counsel v. Md. Pub. Serv. Comm'n; United States v. Steven Adams; Kientz; Lightbourn; National Family Farm Coalition v. Usepa; Nyunt v. Chairman, Broadcasting Board of Governors; Business Roundtable v. Securities & Exchange Commission; Good Fortune Shipping SA v. Comm'r of Internal Revenue; FERC; Fishgold; United States v. La Franca; Tamm v. UST-United States Trustee (In Re Hokulani Square,...; Hudgens; Calimlim; Manuel Campos-Hernandez v. Jefferson Sessions; Serrano; State of Okla. v. United States; United States v. Kyle Boleyn; Genuine Parts Co. v. Envtl. Prot. Agency; Jiron; FDA; Daniela Guerra-Rocha v. William P. Barr; FERC; Turtle Island Restoration Network v. United States Depart...; Lindeen v. Securities & Exchange Commission; Bark; The Emily and the Caroline; United States v. Jackson; LOC; United States v. Troy Kendrick, Jr.; Sierra Club v. EPA; United States v. Smith; Renewable Fuels Association v. EPA; Center for Biological Diversity v. National Highway Traff...; Wildearth Guardians v. Heather Provencio; State of Maryland v. EPA; Cir; In Defense of Animals v. U.S. Department of the Interior; United States v. Vicente Cuevas-Lopez; Goodman; George; Catskill Mountains Chapter of Trout Unlimited, Inc. v. Un...; United States v. John Booker, Jr.; Cheney Railroad Company, Inc. v. Interstate Commerce Comm...; State ex rel. Holdridge v. Industrial Commission; Natural Resources Defense Council v. Environmental Protec...; Lindsay Rafferty v. Denny's, Inc.; Jesus Ramirez v. Linda Dougherty; Standing Rock Sioux Tribe v. United States Army Corps; Ad Hoc Shrimp Trade Action Committee v. United States; City of Bos. Delegation v. Fed. Energy Regulatory Comm'n; PSC; Lichter; UAW-Labor Employment & Training Corp. v. Chao; Becerra; Yangzhou Bestpak Gifts & Crafts Co. v. United States; BCCA Appeal Group v. United States Environmental Protecti...; Waterworth; Atlantic Rfg. Co; New Jersey v. Environmental Protection Agency; Marjorie Lynch v. Gabriel Jackson; Jorge Baez-Sanchez v. William Barr; Sebelius; Defenders of Wildlife v. Ryan Zinke; United States v. David Rothenberg; United States v. Steven Wang; United States v. Montes Miller; John Boerschig v. Trans-Pecos Pipeline, L.L.C.; USDA; American Whitewater v. Thomas Tidwell; Paulsen; Americans for Clean Energy v. Environmental Protection Ag...; State of Texas v. United States; United States v. Jose Garcia; County of Maui v. Hawaii Wildlife Fund; Newport News; Pablo Mejia-Castanon v. Attorney General United States; Delaware Department of Natural Resources & Environmental ...; Neustar, Inc. v. Federal Communications Commission; FERC; Crystallex Int'l Corp. v. Bolivarian Republic De Venezuel...; Corrosion Proof Fittings v. The Environmental Protection ...; Barbara Combs v. Commissioner of Social Security; Erie Brush & Manufacturing Corp. v. National Labor Relati...; United States v. Jesus Villalobos; Susquehanna International Group, LLP v. Securities & Exch...; In Re Comiskey; Ctr. for Biological Diversity v. Ryan Zinke; Home Depot U. S. A., Inc. v. Jackson; Stephen West v. Charter Communications, Inc.; United States v. Charles Sands; California Wilderness Coalition v. U.S. Department of Energy; Natural Resources Defense Council v. Andrew Wheeler; NRC; FERC; Lafferty; Barragan-Lopez; American Bankers Association v. National Credit Union Adm...; Pesquera Mares Australes Ltda. v. United States v. Coalit...; City of Parker v. State; Chamber of Commerce of the U.S. v. U.S. Dep't of Labor; FDA; American Bar Ass'n v. Federal Trade Commission; Eagle Pharmaceuticals, Inc. v.

Alex Azar, II; United States v. Tre Tate; Loper Bright Enterprises, Inc v. Gina Raimondo; Medina County Environmental Action Ass'n v. Surface Trans...; FERC; Baldwin; FERC; National Ass'n of Reversionary Property Owners v. Surface...; Harrison; United States v. Ruslan Kirilyuk; United States v. James Herrera; Manuel Olivas-Motta v. Matthew Whitaker; Save Our Sound OBX, Inc. v. NC Dept of Transportation; United States v. James Johnman, Jr.; Commonwealth of Ky. v. Janet Yellen; Sierra Club v. Van Antwerp; Sinclair Wyo. Ref. Co. v. U.S. Envtl. Prot. Agency; United States v. Dennis Smith; NFIB; Federal Communications Commission v. Pottsville Broadcast...; Aragon; Montana-Dakota Utilities Co. v. Northwestern Public Servi...; FLRA; FERC; Lewis Hodge, Claimant-Appellant v. Togo D. West, Jr., Sec...; United States v. Larry Jo Leeson; National Mining Association v. Ryan Zinke; FERC; FERC; Physicians for Social Responsibility v. Andrew Wheeler; United States v. Demetrius Jefferson; Advanced Life Sys. Inc. v. Nat'l Labor Relations Bd.; Tenn. Hosp. Ass'n v. Alex M. Azar, II; Uniontown Area School District v. Pennsylvania Human Rela...; Reynolds; MA Trustees; FERC; Hudson; United States v. Rogelio Ruiz; United States v. Baha Jaffal; Swayne & Hoyt, Ltd. v. United States; FAA; Lambert; Martinez-Cruz; Ludimilla Ramos Da Silva v. Attorney General United States; CPSC; Willie Goffney, Jr. v. Xavier Becerra

in no cluster in 2015-19 (cited, but too loosely tied to any) (34): Gundy; Azar; CASTRO-TUM; SANCHEZ SOSA; Food Marketing Institute v. Argus Leader Media; Zulfigar Qureshi v. Alberto R. Gonzales; Coxe; United States v. R. L. C.; Mor; Branch; Piper; California Communities Against Toxics v. United States En...; Posadas; Mont; Lightfoot; Fisher; Butler; Neal; Wyoming v. United States Department of Agriculture; Brown; United States v. Jeffrey H. Feingold; Obduskey; Usfs; Ferc; District of Columbia v. Beretta U.S.A. Corp.; United States v. American Trucking Associations; Perry; United States v. Douglas Lee Dunford, Sr.; Commissioner; Kdfw-Tv; Tri-Valley Cares v. U.S. Department of Energy; Gozlon-Peretz; National Cable; Pit River Tribe v. United States Forest Service

2015-19:3.4 Federal powers: commerce clause and separation of powers (2010s) (30): Mistretta; NFIB; New York v. United States; Department of Transportation v. Association of American R...; J. W. Hampton, Jr., & Co. v. United States; Schechter Poultry; Gregory v. Ashcroft; Bond; Wayman; Printz; American Power & Light Co. v. Securities & Exchange Commi...; Adkins; Ryan; Touby; Carter; Dole; Nat'l Labor Relations Bd. v. SW Gen., Inc.; Loving; Grimaud; Field; Wyman-Gordon; United States v. Schooner Peggy; Atlantic Cleaners & Dyers, Inc. v. United States; Jones; BFP; Nixon; Iselin; Davis; Hamdan; New Process Steel, L. P. v. National Labor Relations Board

2015-19:3.3 Article III standing (11): Mills; Wildearth Guardians v. Sally Jewell; National Mining Association v. Gina McCarthy; Leedom; Sorenson Communications Inc. v. Federal Communications Co...; Appalachian Power Co. v. Environmental Protection Agency; BLM; Kennecott Utah Copper Corporation v. United States Depart...; Sherley; United States v. Oregon State Medical Society; American Hospital Association v. Otis R. Bowen, Secretary...

2015-19:3.9 Dormant Commerce Clause (11): Landgraf; Vartelas; Bradley; Commonwealth Edison Co. v. Will County Collector; Martin; Pension Benefit Guaranty Corporation v. RA Gray & Co.; Republic National; Usery; Bonjorno; Caveney; Carlton

2015-19:7.5 around Johnson (8): Stinson; United States v. Jeffery Havis; United States v. Aumbrey Winstead; United States v. Jose Maria Mendoza-Figueroa; United States v. Darryl Rollins; LaBonte; Rivers; United States Ex Rel. Attorney General of the United Stat...

2015-19:7.11 around Nosal (8): Bass; Wiltberger; McBoyle; Moskal; Kozminski; Bell v. United States; Universal CIT; Granderson

2015-19:22.13 around HASHMI (6): AVETISYAN; HASHMI; Vahora; RAJAH; SIBRUN; Masih

2015-19:7.2 Federal plain-error review (Fifth Circuit) (5): Yakus; United States v. Charles O. Kallestad; Dickson; Echazabal; Thorpe

2015-19:7.3 ACCA and the categorical approach (5): Lockhart; Barnhart; United States v. Sathon Evans; United States v. Malachi Glass; United States v. Juan Rivera-Constantino

2015-19:3.5 Federal preemption (4): City of Chicago v. Jefferson B. Sessions III; Hughes; City of Milwaukee v. Illinois; Immigration & Naturalization Service v. National Center f...

2015-19:62.1 around Holly (4): Holly; A. R. Douglass, Inc. v. McRainey, as Admrx.; Daniels; Forsythe

2015-19:1.2 Pro se pleadings and Twombly/Iqbal in prisoner suits (3): Cyan, Inc. v. Beaver County Employees Retirement Fund; Dabit; O'Hagan

2015-19:8.3 Federal Arbitration Act (sub-cluster) (3): Reiter; United States v. Western Pacific Railroad; Beth Israel Hospital v. National Labor Relations Board

2015-19:2.3 Right to counsel: self-representation and conflicts (2): Morgan; Johnson v. US

2015-19:3.1 Speech regulation: content neutrality, forums, expressive conduct (2): Paroline; Harrison

2015-19:3.17 Second Amendment (2): Huddleston; Beecham

2015-19:5.5 Double jeopardy: same offense and multiple punishment (2): Standefer; Ladner

2015-19:7.1 Reasonableness review of federal sentences (2): Chapman; Evers

2015-19:34.2 Patent claim construction (2): i4i Ltd; I4i Ltd. Partnership v. Microsoft Corp.

2015-19:310 around Ileto (2): City of New York v. Beretta U.S.A. Corp.; Ileto

2015-19:1.7 Ninth Circuit prisoner civil-rights appeals: PLRA and waiver (1): Vien-Phuong Thi Ho v. ReconTrust Co.

2015-19:2.8 around Valdez (1): Maracich

2015-19:3.12 Civil-rights attorney's fees (§ 1988) (1): Sullivan

2015-19:3.13 around Taylor (1): Levin

2015-19:3.20 around McCutcheon (1): FCC v. AT&T

2015-19:7.4 Eleventh Circuit sentencing reasonableness (1): United States v. Arnold Maurice Mathis

2015-19:9.5 Confrontation Clause after Crawford (1): Hoffman

2015-19:17.6 New Jersey: statutory interpretation and appellate deference (1): Gelman

2015-19:22.12 around Anaya-Ortiz (1): Flores

2015-19:25.2 Illinois premises liability: open and obvious danger (1): Adames

2015-19:34.13 around Dickinson (1): Dickinson

2015-19:35 Supreme Court minimum-contacts line, International Shoe to Goodyear (1): First National City Bank v. Banco Para El Comercio Exteri...

2015-19:47.2 Pennsylvania standing, ripeness and single-subject challenges (1): Commonwealth

2015-19:47.7 around T. Marchenko v. The ZHB of Pocono Twp., Monroe County, PA... (1): Snyder Bros., Inc. v. Pa. Pub. Util. Comm'n

2015-19:58.1 around Surina (1): CWA.
2015-19:62.6 around Hackley (1): Crooks

Left since 2015-19 (in the lineage in 2015-19, not here; where they are in 2020-24): 453

not a node in 2020-24 (cited too rarely then, or not yet decided) (234): Morales-Izquierdo, 600 F.3d 1076 (2010); NRG Power Marketing, LLC v. Maine Public Utilities Commis..., 558 U.S. 165 (2010); Cohen, 498 F.3d 111 (2007); Mizrahi, 492 F.3d 156 (2007); OSHC, 459 F.3d 604 (2006); Alabama-Tombigbee Rivers Coalition v. Kempthorne, 477 F.3d 1250 (2007); Helvering, 293 U.S. 84 (1934); Helvering, 293 U.S. 121 (1934); FPC, 315 U.S. 575 (1942); Walling, 324 U.S. 490 (1945); Heikkila, 345 U.S. 229 (1953); United Gas Pipe Line Co. v. Mobile Gas Service Corp., 350 U.S. 332 (1956); FPC, 350 U.S. 348 (1956); Mallory, 354 U.S. 449 (1957); Arnold, 361 U.S. 388 (1960); Wise, 370 U.S. 405 (1962); Atchison Co, 412 U.S. 800 (1973); Dunlop, 421 U.S. 560 (1975); Train, 430 U.S. 112 (1977); Larionoff, 431 U.S. 864 (1977); Leo Sheep, 440 U.S. 668 (1979); Yeshiva U, 444 U.S. 672 (1980); Watt, 451 U.S. 259 (1981); Curran, 456 U.S. 353 (1982); PANE, 460 U.S. 766 (1983); Crowley, 467 U.S. 526 (1984); Sullivan, 494 U.S. 83 (1990); National Railroad, 503 U.S. 407 (1992); NationsBank, 513 U.S. 251 (1995); Quality King Distributors, Inc. v. L'Anza Research Intern..., 523 U.S. 135 (1998); Cleveland Indians, 532 U.S. 200 (2001); Pfennig, 541 U.S. 232 (2004); Zuni Public School District No. 89 v. Department of Educa..., 550 U.S. 81 (2007); Metrophones, 550 U.S. 45 (2007); Quanta, 553 U.S. 617 (2008); Coueur Alaska, 557 U.S. 261 (2009); FERC, 604 F.3d 636 (2010); Salazar, 616 F.3d 497 (2010); ConocoPhillips Co. v. United States Environmental Protect..., 612 F.3d 822 (2010); In Re Natural Gas Royalties, 562 F.3d 1032 (2009); Gallimore, 619 F.3d 216 (2010); De Leon-Ochoa v. Attorney General of the United States, 622 F.3d 341 (2010); Catwell, 623 F.3d 199 (2010); Locke, 626 F.3d 1040 (2010); Serono Labs Inc v. Ferring Pharm. Inc., 158 F.3d 1313 (1998); DEA, 259 F.3d 731 (2001); Holland, Michael H. v. Barnhart, Jo Anne B., 309 F.3d 808 (2002); Holy Land Foundation for Relief & Development v. Ashcroft, 333 F.3d 156 (2003); Ramaprakash, 346 F.3d 1121 (2003); Amgen Inc. v. Scully, Thomas, 357 F.3d 103 (2004); FERC, 373 F.3d 1323 (2004); MSHA, 407 F.3d 1250 (2005); DEA, 412 F.3d 165 (2005); Tripoli Rocketry Ass'n v. Bureau of Alcohol, Tobacco, Fir..., 437 F.3d 75 (2006); Friends of the Earth, Inc. v. Environmental Protection Ag..., 446 F.3d 140 (2006); Goldstein v. Securities & Exchange Commission, 451 F.3d 873 (2006); FERC, 493 F.3d 239 (2007); FAA, 509 F.3d 593 (2007); California Valley Miwok Tribe v. United States, 515 F.3d 1262 (2008); Larsen, 525 F.3d 1 (2008); National Telephone Cooperative Ass'n v. Federal Communica..., 563 F.3d 536 (2009); Ferc, 569 F.3d 477 (2009); Day, 555 F.3d 42 (2009); Dudas, 536 F.3d 1330 (2008); Padilla-Caldera, 637 F.3d 1140 (2011); Village of Barrington v. Surface Transportation Board, 636 F.3d 650 (2011); FAA, 641 F.3d 515 (2011); FERC, 643 F.3d 963 (2011); Pinnacle Armor, Inc. v. United States, 648 F.3d 708 (2011); Vasquez De Alcantar v. Holder, 645 F.3d 1097 (2011); Guevara, 649 F.3d 1086 (2011); Salazar, 644 F.3d 1130 (2011); Prometheus Radio Project v. Federal Communications Commis..., 652 F.3d 431 (2011); Electronic Privacy Information Center v. United States De..., 653 F.3d 1 (2011); Pinto, 648 F.3d 976 (2011); United States v. Klinghoffer Bros. Realty Corp., Irving J..., 285 F.2d 487 (1961); cluster 332168, 528 F.2d 645 (1976); Compton James Richards v. Immigration and Naturalization ..., 554 F.2d 1173 (1977); Environmental Defense Fund, Inc. v. Douglas M. Costle, as..., 657 F.2d 275 (1981); Sierra Club v. Douglas M. Costle, Administrator of the En..., 657 F.2d 298 (1981); Robert Robbins v. Ronald Reagan Robert Robbins v. Ronald ..., 780 F.2d 37 (1985); Coalition on Sensible Transportation, Inc. v. Elizabeth Dole, 826 F.2d 60 (1987); Natural Resources Defense Council, Inc. v. Donald P. Hode..., 865 F.2d 288 (1988); John F. Kreis v. Secretary of the Air Force, 866 F.2d 1508 (1989); C & W Fish Company, Inc. v. William W. Fox, Jr., Assistan..., 931 F.2d 1556 (1991); Texas Rural Legal Aid, Inc. v. Legal Services Corporation, 940 F.2d 685 (1991); United States of America, Ex Rel. Stinson, Lyons, Gerlin ..., 944 F.2d 1149 (1991); Chen-Cheng Wang, AKA C.C. Wang, an Individual and Ex Rel...., 975 F.2d 1412 (1992); National Family Planning and Reproductive Health Associat..., 979 F.2d 227 (1992); Marshall County Health Care Authority v. Donna E. Shalala..., 988 F.2d 1221 (1993); Cordova-Soto, 659 F.3d 1029 (2011); Ricardo Calma v. Eric Holder, Jr., 663 F.3d 868 (2011); Air Transport Ass'n of America, Inc. v. National Mediatio..., 663 F.3d 476 (2011); Sierra Club v. United States Environmental Protection Agency, 671 F.3d 955 (2012); Zheng, 672 F.3d 178 (2012); Avinesh Rohit v Eric Holder, 670 F.3d 1085 (2012); Petit, 675 F.3d 769 (2012); Herbert Cooper, United States of America, Ex Rel v. Blue ..., 19 F.3d 562 (1994); Crowley Caribbean Transport, Inc. Crowley Maritime Corpor..., 37 F.3d 671 (1994); Ethyl Corporation v. Environmental Protection Agency, Ame..., 51 F.3d 1053 (1995); United States Department of Labor v. Cole Enterprises, In..., 62 F.3d 775 (1995); United States of America, Ex Rel. D.J. Findley v. Fpc-Bor..., 105 F.3d 675 (1997); United States Ex Rel. Allen Lamers v. City of Green Bay, 168 F.3d 1013 (1999); cluster 766307, 192 F.3d 1005 (1999); Fulvio Stanziale v. Lester Jargowsky, Public Health Coord..., 200 F.3d 101 (2000); American Petroleum Institute,petitioners v. United States..., 216 F.3d 50 (2000); cluster 770271, 225 F.3d 379 (2000); Fox Television Stations, Inc. v. Federal Communications C..., 280 F.3d 1027 (2002); Aid Association for Lutherans v. United States Postal Ser..., 321 F.3d 1166 (2003); United States of America Ex Rel. Richard Feingold v. Admi..., 324 F.3d 492 (2003); Northeast Maryland Waste Disposal Authority v. Environmen..., 358 F.3d 936 (2004); Nen Ying Wang v. John Ashcroft, Attorney General of the U..., 368 F.3d 347 (2004); Nuradin Ahmed v. John Ashcroft, Attorney General of the U..., 388 F.3d 247 (2004); Mylan Laboratories, Inc. v. Tommy G. Thompson, Secretary,..., 389 F.3d 1272 (2005); Sabino Gonzalez-Gonzalez v. John Ashcroft, Attorney General, 390 F.3d 649 (2004); John F. Roberto v. Department of the Navy, 440 F.3d 1341 (2006); United States v. Paul J. Leahy United States of America v..., 445 F.3d 634 (2006); Pedro Garcia-Quintero v. Alberto R. Gonzales, Attorney Ge..., 455 F.3d 1006 (2006); Islander East Pipeline Company, LLC v. State of Connectic..., 482 F.3d 79 (2006); Coburn, 679 F.3d 924 (2012); Texas Alliance For Home Care v. Kathleen Sebelius, 681 F.3d 402 (2012); NRC, 681 F.3d 471 (2012); Armando Ruiz-Lopez v. Eric Holder, Jr., 682 F.3d 513 (2012); Martin v. Spring Break '83 Productions, L.L.C., 688 F.3d 247 (2012); John Miller, Jr. v. Hillary Clinton, 687 F.3d 1332 (2012); Maria Banda Nino v. Eric Holder, Jr., 690 F.3d 691 (2012); Price v. Stevedoring Services of America, Inc., 697 F.3d 820 (2012); Mark Hagans v. Commissioner Social Security, 694 F.3d 287 (2012); Native Ecosystems Council v. Leslie Weldon, 697 F.3d 1043 (2012); Matilde Carrillo De Palacios v. Eric Holder, Jr., 708 F.3d 1066 (2013); Nick Koretoff v. Tom Vilsack, 707 F.3d 394 (2013); Muwekma Ohlone Tribe v. Kenneth Salazar, 708 F.3d 209 (2013); Great Old Broads for Wildernes v. Abigail Kimbell, 709 F.3d 836 (2013); Lone Mountain Processing, Inc. v. Secretary of Labor, 709 F.3d 1161 (2013); Union Steel v. United States, 713 F.3d 1101 (2013); HHS, 718 F.3d 488 (2013); VanDevender, 50 Tex. Sup. Ct. J. 701 (2007); Western Watersheds Project v. Bob Abbey, 719 F.3d 1035 (2013); Zuh, 547 F.3d 504 (2008); Oklahoma v. United States Environmental Protection Agency, 723 F.3d 1201 (2013); Nrdc, 725 F.3d 1194 (2013); NCAA, 730 F.3d 208 (2013); Independent Training & Apprenticeship Program v. Californ..., 730 F.3d 1024 (2013); Christ the King Manor, Inc. v. Secretary United States De...,

730 F.3d 291 (2013); Defenders of Wildlife v. United States Department of the ..., 733 F.3d 1106 (2013); National Labor Relations Board v. Health Care & Retiremen..., 511 U.S. 571 (1994); Leavitt, 545 F.3d 98 (2008); Chupina, 570 F.3d 99 (2009); Cordiano, 575 F.3d 199 (2009); Doar, 571 F.3d 247 (2009); Scalia, 182 W. Va. 289 (1989); McCarthy, 525 F.3d 141 (2008); Castaneda, 574 F.3d 652 (2009); Singh, 499 F.3d 969 (2007); Parrott, 536 F.3d 629 (2008); Brong, 492 F.3d 1120 (2007); Northwest Environmental Advocates v. United States Enviro..., 537 F.3d 1006 (2008); Middleton, 578 F.3d 655 (2009); Springer, 498 F. Supp. 2d 203 (2007); Mainella, 459 F. Supp. 2d 76 (2012); Darby, 227 W. Va. 525 (2011); Fiero, 660 F.3d 569 (2011); Bryant, 2007 Colo. App. LEXIS 99 (2007); Fischbach, 2009 Colo. App. LEXIS 1036 (2009); Agape Church, Inc. v. Federal Communications Commission, 738 F.3d 397 (2013); Verizon, 740 F.3d 623 (2014); Becky Roberts v. United States, 741 F.3d 152 (2014); Woods, 743 F.3d 689 (2014); Ronda Nunnally v. District of Columbia Metropolitan Polic..., 2013 D.C. App. LEXIS 794 (2013); FMCSA, 744 F.3d 142 (2014); Gustavo Urbina v. Eric Holder, Jr., 745 F.3d 736 (2014); Shaun Roberts v. Eric H. Holder, Jr., 745 F.3d 928 (2014); White Stallion Energy Center, LLC v. Environmental Protec..., 748 F.3d 1222 (2014); Steven O. Dale v. Anthony Ciccone, 233 W. Va. 652 (2014); Scialabba, 134 S. Ct. 2191 (2014); Amerijet International, Inc. v. John Pistole, 753 F.3d 1343 (2014); FHWA, 756 F.3d 447 (2014); Loughrin, 134 S. Ct. 2384 (2014); Natural Resources Defense Council v. Environmental Protec..., 755 F.3d 1010 (2014); Yi Wang v. Eric Holder, Jr., 759 F.3d 670 (2014); Debra Leveski v. ITT Educational Services, Inc, 719 F.3d 818 (2013); Sierra Club v. U.S. Environmental Protection Agency, 762 F.3d 971 (2014); United States Ex Rel. Absher v. Momence Meadows Nursing C..., 764 F.3d 699 (2014); OSHC, 765 F.3d 434 (2014); United States Ex Rel. Oliver v. Philip Morris USA Inc., 763 F.3d 36 (2014); Friends of the Wild Swan v. Chip Weber, 767 F.3d 936 (2014); United States v. Eduardo Rodriguez-Salazar, 768 F.3d 437 (2014); Fogo De Chao (Holdings) Inc. v. United States Department ..., 769 F.3d 1127 (2014); Jorge Gonzalez-Garcia v. Eric Holder, Jr., 770 F.3d 431 (2014); Whitman, 135 S. Ct. 352 (2014); Integrity Staffing, 135 S. Ct. 513 (2014); Pedro Cano-Oyarzabal v. Eric Holder, Jr., 774 F.3d 914 (2014); BNSF Railway Company v. United States, 775 F.3d 743 (2015); Ozark Automotive Distributors, Inc. v. National Labor Rel..., 779 F.3d 576 (2015); Saley Souley v. Eric Holder, Jr., 779 F.3d 720 (2015); Pierce v. Securities & Exchange Commission, 786 F.3d 1027 (2015); Pharmaceutical Research & Manufacturers of America v. Fed..., 790 F.3d 198 (2015); FERC, 807 F.3d 267 (2015); Bryana Bible v. United Student Aid Funds, Inc., 799 F.3d 633 (2015); Sierra Club v. United States Army Corps of Engineers, 803 F.3d 31 (2015); Ohio v. United States Army Corps of Engineers, 803 F.3d 804 (2015); Canonsburg General Hospital v. Sylvia Mathews Burwell, 807 F.3d 295 (2015); Dalton Trucking, Inc. v. United States Environmental Prot..., 808 F.3d 875 (2015); Hymas, 810 F.3d 1312 (2016); United States Ex Rel. Moore & Co. P.A. v. Majestic Blue F..., 812 F.3d 294 (2016); United States Ex Rel. Advocates for Basic Legal Equality,..., 816 F.3d 428 (2016); Protect Our Communities Foundation v. Jewell, 825 F.3d 571 (2016); DOE, 832 F.3d 654 (2016); Sandoz Inc. v. Amgen Inc., 582 U.S. 1 (2017); Humane Society of the United States v. Ryan Zinke (Lead), 865 F.3d 585 (2017); Mellow Partners, A Partnership v. Cmsnr. IRS, 890 F.3d 1070 (2018); Romero, 179 P.3d 984 (2007); CAMARILLO, 25 I. & N. Dec. 644 (2011); CORTEZ, 25 I. & N. Dec. 301 (2010); BRIONES, 24 I. & N. Dec. 355 (2007); TORRES-GARCIA, 23 I. & N. Dec. 866 (2006); AJAMI, 22 I. & N. Dec. 949 (1999); Arent, 70 F.3d 610 (1995); Allied Local & Regional Manufacturers Caucus v. U.S. Envi..., 215 F.3d 61 (2000); Landmark Legal Foundation v. Internal Revenue Service, 267 F.3d 1132 (2001); Muszynski, 268 F.3d 91 (2001); Michigan v. Environmental Protection Agency, 268 F.3d 1075 (2001); Arizona Cattle Growers' Ass'n v. United States Fish & Wil..., 273 F.3d 1229 (2001); Advocates for Highway & Auto Safety v. Federal Motor Carr..., 429 F.3d 1136 (2005); United States Postal Service v. Postal Regulatory Commission, 785 F.3d 740 (2015); United States ex rel. Jamison v. McKesson Corp., 649 F.3d 322 (2011); Annachamy, 733 F.3d 254 (2012); Bautista, 744 F.3d 54 (2014); Centurion, 755 F.3d 115 (2014); United States ex rel. Kraxberger v. Kansas City Power & L..., 756 F.3d 1075 (2014); Barboza, 799 F.3d 1257 (2015); Natural Resources Defense Council v. United States Enviro..., 808 F.3d 556 (2015); Bell v. City of Milwaukee, 746 F.2d 1205 (1984); Conner, 848 F.2d 1441 (1988)

in no cluster in 2020-24 (cited, but too loosely tied to any) (91): Texas Oil & Gas Ass'n v. United States Environmental Prot..., 161 F.3d 923 (1998); United States v. Gold Star Medical Services, 180 F.3d 1277 (1999); Murray, 6 U.S. 64 (1804); Montclair, 107 U.S. 147 (1883); Helvering, 302 U.S. 238 (1937); Walling, 325 U.S. 419 (1945); Udall, 380 U.S. 1 (1965); Mourning, 411 U.S. 356 (1973); Kleppe, 426 U.S. 529 (1976); Donovan, 452 U.S. 490 (1981); Garcia, 469 U.S. 70 (1985); Dimension Financial, 474 U.S. 361 (1986); Worthington, 475 U.S. 709 (1986); Sorenson, 475 U.S. 851 (1986); Edward J. DeBartolo Corp. v. Florida Gulf Coast Building ..., 485 U.S. 568 (1988); Pangilinan, 486 U.S. 875 (1988); Sullivan, 496 U.S. 478 (1990); Norfolk & Western Railway Co. v. American Train Dispatche..., 499 U.S. 117 (1991); Toibb, 501 U.S. 157 (1991); Estate of Cowart v. Nicklos Drilling Co., 505 U.S. 469 (1992); Holly Farms, 517 U.S. 392 (1996); JEM Ag, 534 U.S. 124 (2001); Rucker, 535 U.S. 125 (2002); Nigh, 543 U.S. 50 (2004); Cuomo, 557 U.S. 519 (2009); United States v. Eurodif S. A., 555 U.S. 305 (2009); Jicarilla Apache Nation v. United States Department of th..., 613 F.3d 1112 (2010); United States v. Tohono O'odham Nation, 131 S. Ct. 1723 (2011); Talk America, 131 S. Ct. 2254 (2011); Garcia, 659 F.3d 1261 (2011); Lezama-Garcia, 666 F.3d 518 (2011); Northern Plains Resource Council, Inc. v. Surface Transpo..., 668 F.3d 1067 (2011); Jem Broadcasting Company, Inc. v. Federal Communications ..., 22 F.3d 320 (1994); Hobart N. Crocker, Jr. v. Piedmont Aviation, Inc., Hobart..., 49 F.3d 735 (1995); General Electric Company v. United States Environmental P..., 53 F.3d 1324 (1995); United States v. Michael C. Coyle, 63 F.3d 1239 (1995); Janice R. Lachance, Director, Office of Personnel Managem..., 174 F.3d 1378 (1999); cluster 787064, 376 F.3d 853 (2004); Zheng Zheng v. Alberto Gonzales, Attorney General of the ..., 422 F.3d 98 (2005); Roberto Ferrer Miranda Alvarado Madeleine Janet Morales L..., 449 F.3d 915 (2006); Association of Private Sector Colleges & Universities v. ..., 681 F.3d 427 (2012); Kenneth Fox v. Hillary Clinton, 684 F.3d 67 (2012); Salazar, 132 S. Ct. 2181 (2012); Adams, 692 F.3d 91 (2012); Hanif v. Attorney General of United States, 694 F.3d 479 (2012); American Road & Transportation Builders Ass'n v. Environm..., 705 F.3d 453 (2013); Asif Dhuka v. Eric Holder, Jr., 716 F.3d 149 (2013); DOL, 717 F.3d 1121 (2013); Jadhav, 555 F.3d 337 (2009); Comtran Group, Inc. v. U.S. Department of Labor, 722 F.3d 1304 (2013); United States Ex Rel. Zizic v. Q2Administrators, LLC, 728 F.3d 228 (2013); Vijay Kumar v. Eric H. Holder Jr., 728 F.3d 993 (2013); Alvarez-Sanchez, 511 U.S. 350 (1994); Pud No. 1 of Jefferson County v. Washington Department of..., 511 U.S. 700 (1994); Martinez, 519 F.3d 532 (2008); Glaser, 570 F.3d 907 (2009); Satterfield, 569 F.3d 946 (2009); Unites States Ex Rel. Poteet v. Medtronic, Inc., 552 F.3d 503 (2009); Texas v. United States, 497 F.3d 491 (2007); Rowe, 559 F.3d 1028 (2009); Blanco, 518 F.3d 714 (2008); Yusupov, 518 F.3d 185 (2008); Disabled in Action of Pennsylvania v. Southeastern Pennsy..., 539 F.3d 199 (2008); Khan, 584 F.3d 773 (2009); Kempthorne, 538 F.3d 124 (2008); Geiser, 527 F.3d 288 (2008); United States Ex Rel. May v. Purdue Pharma L.P., 737 F.3d 908 (2013); Juana Negrete-Ramirez v. Eric Holder, Jr., 741 F.3d 1047 (2014); Loving v. Internal Revenue Service, 742 F.3d 1013 (2014); Lawson, 134 S. Ct. 1158 (2014); Feldman v. Law Enforcement Associates Corp., 752 F.3d 339 (2014); Utility Air, 134 S. Ct. 2427 (2014); Exelon

Wind 1, L.L.C. v. Donna Nelson, et a, 766 F.3d 380 (2014); United States Ex Rel. Hartpence v. Kinetic Concepts, Inc., 792 F.3d 1121 (2015); Kirtsaeng, 133 S. Ct. 1351 (2013); Aleksandr Yeremin v. Eric Holder, Jr., 738 F.3d 708 (2013); Hankins, 456 F.3d 955 (2006); FEC, 811 F.3d 486 (2016); Idaho Wool Growers Assn v. Tom Vilsack, 816 F.3d 1095 (2016); Sturgeon, 577 U.S. 424 (2016); United States Telecom Ass'n v. Federal Communications Com..., 825 F.3d 674 (2016); Delaware Riverkeeper Network v. Secretary Pennsylvania De..., 833 F.3d 360 (2016); Chai, 851 F.3d 190 (2017); CIR, 854 F.3d 1178 (2017); Yoselin Martinez Cazun v. Attorney General United State, 856 F.3d 249 (2017); Clean Air Council v. E. Scott Pruitt, 862 F.3d 1 (2017); Somers, 583 U.S. 149 (2018); Merit Management Group, LP v. FTI Consulting, Inc., 583 U.S. 366 (2018); Carley Ex Rel. Situated v. Crest Pumping Techs., L. L.C., 890 F.3d 575 (2018); Busey, 938 F.2d 190 (1991); Rowland, 826 F.3d 100 (2016)

2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24) (22): Kucana, 558 U.S. 233 (2010); Train, 421 U.S. 60 (1975); Block, 467 U.S. 340 (1984); Bowen, 476 U.S. 667 (1986); Stone v. Immigration & Naturalization Service, 514 U.S. 386 (1995); Lamagno, 515 U.S. 417 (1995); Immigration & Naturalization Service v. St. Cyr, 533 U.S. 289 (2001); Andrews, 534 U.S. 19 (2001); Fernandez-Vargas, 548 U.S. 30 (2006); Dada, 554 U.S. 1 (2008); Lorenzo, 508 F.3d 1278 (2007); National Mining Association v. U.S. Army Corps of Engineers, 145 F.3d 1399 (1998); Alejandro Ortiz-Alfaro v. Eric Holder, Jr., 694 F.3d 955 (2012); Jose Verde-Rodriguez v. Attorney General United States, 734 F.3d 198 (2013); Tamenut, 521 F.3d 1000 (2008); Sandifer, 134 S. Ct. 870 (2014); E.P.A. v. EME Homer City Generation, L.P., 134 S. Ct. 1584 (2014); Sama Abdisalan v. Eric Holder, Jr., 774 F.3d 517 (2015); Luna-Garcia, 777 F.3d 1182 (2015); Mach Mining, 575 U.S. 480 (2015); Stapleton, 581 U.S. 468 (2017); ABDELGHANY, 26 I. & N. Dec. 254 (2014)

2020-24:2.1 Article III standing (20): Texas Office of Public Utility Counsel v. Federal Communi..., 183 F.3d 393 (1999); Erlenbaugh, 409 U.S. 239 (1972); Heckler, 470 U.S. 821 (1985); Interstate Commerce Commission v. Brotherhood of Locomoti..., 482 U.S. 270 (1987); Gwaltney, 484 U.S. 49 (1987); Webster, 486 U.S. 592 (1988); Richmond, 496 U.S. 414 (1990); Vigil, 508 U.S. 182 (1993); ACF Industries, 510 U.S. 332 (1994); National Credit Union Administration v. First National Ba..., 522 U.S. 479 (1998); Lopez, 531 U.S. 230 (2001); Schmidt, 546 U.S. 303 (2006); Rockwell International Corp. v. United States, 549 U.S. 457 (2007); Sugar Cane Growers Cooperative of Florida v. Veneman, 289 F.3d 89 (2002); City of Waukesha v. Environmental Protection Agency, 320 F.3d 228 (2003); Nuclear Energy Institute, Inc. v. Environmental Protectio..., 373 F.3d 1251 (2004); Freeman, 132 S. Ct. 2034 (2012); Weyerhaeuser Co. v. United States Fish and Wildlife Serv., 586 U.S. 9 (2018); Department of Commerce v. New York, 588 U.S. 752 (2019); Swan, 100 F.3d 973 (1996)

2020-24:18.9 around In Re Matter of Stephen Yagman, Jerry Brown and Gerry Fle... (7): Tennessee Coal, Iron & Railroad v. Muscoda Local No. 123, 321 U.S. 590 (1944); Wantock, 323 U.S. 126 (1944); Anderson, 328 U.S. 680 (1946); Steiner, 350 U.S. 247 (1956); Kellar, 664 F.3d 169 (2011); Alvarez, 546 U.S. 21 (2005); Alvarez, 339 F.3d 894 (2003)

2020-24:37 West Virginia abuse-and-neglect and criminal appeals (6): Martin, 195 W. Va. 297 (1995); Muscatell, 196 W. Va. 588 (1996); Shepherdstown Volunteer Fire Dept. v. State Ex Rel. State..., 172 W. Va. 627 (1983); In Re Queen, 196 W. Va. 442 (1996); Cahill, 208 W. Va. 177 (2000); Martin, 228 W. Va. 238 (2011)

2020-24:2.8 around Winter (5): Shaugnessy, 347 U.S. 260 (1954); Service, 354 U.S. 363 (1957); Cardoza-Fonseca, 480 U.S. 421 (1987); Martinez, 543 U.S. 371 (2005); McNair, 537 F.3d 981 (2008)

2020-24:16.3 Immigration: persecution and notice to appear (Tenth Circuit) (4): Raul Morales-Izquierdo v. Alberto R. Gonzales, Attorney G..., 486 F.3d 484 (2007); Garcia De Rincon v. Department of Homeland SEC., 539 F.3d 1133 (2008); Alejandro Villa-Anguiano v. Eric H. Holder Jr., 727 F.3d 873 (2013); Rony Perez-Guzman v. Loretta E. Lynch, 835 F.3d 1066 (2016)

2020-24:21.1 Federal Arbitration Act (sub-cluster) (4): Missel, 316 U.S. 572 (1942); O'Neil, 324 U.S. 697 (1945); Morton, 417 U.S. 535 (1974); Radzanower, 426 U.S. 148 (1976)

2020-24:291 around Schindler Elevator Corp. v. United States ex rel. Kirk (4): Graham County Soil & Water Conservation District v. Unite..., 559 U.S. 280 (2010); Schindler Elevator Corp. v. United States ex rel. Kirk, 179 L. Ed. 2d 825 (2011); United States of America, Ex Rel. Springfield Terminal Ra..., 14 F.3d 645 (1994); United States Ex Rel. Osheroff v. Humana, Inc., 776 F.3d 805 (2015)

2020-24:293 around Federal Power Commission v. Hope Natural Gas Co. (4): Bluefield Water Works & Improvement Co. v. Public Service..., 262 U.S. 679 (1923); Federal Power Commission v. Hope Natural Gas Co., 320 U.S. 591 (1944); Permian Basin Area Rate Cases, 390 U.S. 747 (1968); Barasch, 488 U.S. 299 (1989)

2020-24:2.4 Substantive due process: family, privacy and reproduction (3): Rice, 528 U.S. 495 (2000); Cline, 540 U.S. 581 (2004); Bruesewitz, 131 S. Ct. 1068 (2011)

2020-24:2.11 Second Amendment (3): Brotherhood of Railroad Trainmen v. Baltimore & Ohio Rail..., 331 U.S. 519 (1947); Robison, 415 U.S. 361 (1974); Small, 544 U.S. 385 (2005)

2020-24:3.3 ACCA and the categorical approach (3): Uppal, 605 F.3d 712 (2010); Jean Patrick Michel v. Immigration and Naturalization Ser..., 206 F.3d 253 (2000); Augustin Valenzuela Gallardo v. Loretta E. Lynch, 818 F.3d 808 (2016)

2020-24:12.25 around Riser (3): Brennan, 417 U.S. 188 (1974); Gunther, 452 U.S. 161 (1981); Mickelson, 460 F.3d 1304 (2006)

2020-24:16.6 Sixth Circuit asylum: persecution, nexus and well-founded fear (3): Dolores Tapia-Martinez v. Alberto R. Gonzales, Attorney G..., 482 F.3d 417 (2007); Barry, 524 F.3d 721 (2008); Muhammad Rais v. Eric Holder, Jr., 768 F.3d 453 (2014)

2020-24:2.6 Federal Indian law and tribal sovereignty (2): John, 437 U.S. 634 (1978); Dolan, 546 U.S. 481 (2006)

2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s) (2): Barnhart, 534 U.S. 438 (2002); City of Arlington v. Fed. Commc'ns Comm'n, 133 S. Ct. 1863 (2013)

2020-24:2.12 Federal preemption (2): Dole, 494 U.S. 26 (1990); Jacobson, 525 U.S. 432 (1999)

2020-24:2.14 Implied private rights of action (Cort v. Ash) and § 1983 (2): Murphy, 548 U.S. 291 (2006); Astra USA, 131 S. Ct. 1342 (2011)

2020-24:3.17 around United States v. Larry E. Stott, Jr., Robert A. Gaughan, ... (2): Bates, 522 U.S. 23 (1997); Dean, 556 U.S. 568 (2009)

2020-24:12.1 Employment discrimination: McDonnell Douglas pretext (2): Casey, 499 U.S. 83 (1991); Mohamad, 132 S. Ct. 1702 (2012)

2020-24:16.5 Asylum: credibility and persecution (Third Circuit) (2): Stevic, 467 U.S. 407 (1984); Nune Mamouzian v. John Ashcroft, Attorney General, 390 F.3d 1129 (2004)

2020-24:26.6 around Rokki Knee Carr v. Social Security Administration (2): F. Prescott Ward v. Merit Systems Protection Board, 981

F.2d 521 (1992); Donald B. Ellison v. Merit Systems Protection Board, 7 F.3d 1031 (1993)

2020-24:1.6 Brady/Giglio disclosure and lost evidence (1): McNabb, 318 U.S. 332 (1943)

2020-24:2.5 Ballot access and election regulation: Anderson-Burdick (1): Hirabayashi, 320 U.S. 81 (1943)

2020-24:2.16 Copyright: originality, infringement and fair use (1): Star Athletica, L. L. C. v. Varsity Brands, Inc., 580 U.S. 405 (2017)

2020-24:3.8 around Alleyne (1): Andrus, 446 U.S. 608 (1980)

2020-24:3.13 around Kelly (1): Jarecki, 367 U.S. 303 (1961)

2020-24:4.1 Pro se pleadings and Twombly/Iqbal in prisoner suits (1): Lashawn A. v. Marion S. Barry, Jr., 87 F.3d 1389 (1996)

2020-24:4.5 around United States v. Laschell Harris (1): CBS Inc., Fox Broadcasting Co. v. Primetime 24 Joint Venture, 245 F.3d 1217 (2001)

2020-24:4.10 Eleventh Amendment: state sovereign immunity and Ex parte Young (1): Osborn, 549 U.S. 225 (2007)

2020-24:4.11 around Ziglar (1): Hamilton, 560 U.S. 505 (2010)

2020-24:12.5 around Jacqueline Lewis v. City of Union City, Georgia (1): Merritt, 120 F.3d 1181 (1997)

2020-24:12.33 around Araujo (1): Araujo, 708 F.3d 152 (2013)

2020-24:16.1 Ninth Circuit asylum: particular social group and nexus (1): Elton Mendoza Rizo v. Loretta E. Lynch, 810 F.3d 688 (2016)

2020-24:16.2 Asylum credibility and corroboration (Second Circuit) (1): Rodriguez v. Gonzales, 451 F.3d 60 (2006)

2020-24:16.7 around Yasmick Jeune v. U.S. Attorney General (1): Harris, 216 F.3d 970 (2000)

2020-24:16.12 around FRENTESCU (1): Miguel-Miguel, 500 F.3d 941 (2007)

2020-24:19.10 around Nelson (1): Rubin, 583 U.S. 202 (2018)

2020-24:21.3 around Futch (1): SCDHEC, 411 S.C. 16 (2014)

2020-24:26.7 around Universal Camera Corp. v. National Labor Relations Board (1): National Labor Relations Board v. Kentucky River Communit..., 532 U.S. 706 (2001)

2020-24:28.6 around Tooley (1): Caminetti, 242 U.S. 470 (1917)

2020-24:30.7 around United States v. Shawn Siegel (1): Isaac Russ and Vera Love v. Van B. Watts, Phillip Banazki..., 414 F.3d 783 (2005)

2020-24:48.3 around Dept. of Env. v. Carroll Cnty. Frederick Cnty. v. Dept. o... (1): Piney Run Preservation Ass'n v. County Commissioners of C..., 268 F.3d 255 (2001)

The lineage does not continue into 2025-29 (a partial slice, where lineages are still forming); where these cases are there: 644

not a node in 2025-29 (cited too rarely then, or not yet decided) (372): Department of Homeland Security v. Regents of Univ. of Cal.; ATF; United States v. Aumbrey Winstead; Michigan v. Envtl. Prot. Agency; Judulang; HASHMI; United States v. Lenair Moses; United States v. Jose Maria Mendoza-Figueroa; Jesus Zuniga Romero v. William Barr; Touby; SANCHEZ SOSA; Carter; Lewis; Pension Benefit Guaranty; United States v. Martez Smith; Vahora; Guedes; McBoyle; United States v. Edward Merritt; FDA; United States v. Malik Nasir; L-N-Y; GUTIERREZ; Gutierrez-Brizuela; Baez-Sanchez; Alaska Conservation; FERC; Aposhian; Finest Meridor v. U.S. Attorney General; United States Telecom Assoc. v. FCC [Order In Slip Opinio...; Martin; L. D. G. v. Eric Holder, Jr.; FDA; Barnhart; KHAN; Association of American Railroads v. United States Depart...; United States v. Darryl Rollins; United States v. Charles O. Kallestad; Interstate Commerce Commission v. Cincinnati, New Orleans...; Zulfigar Qureshi v. Alberto R. Gonzales; City of Philadelphia v. Attorney General United States; FMCSA; Grimaud; Yeison Meza Morales v. William Barr; William Akins v. United States; FERC; United States v. Willie Garth; United States v. Darius Thomas; Havis; FERC; Solarworld Americas, Inc. v. United States, Yingli Green ...; Shalala; Currin; City of Chicago v. Jefferson B. Sessions III; Coxe; Sierra Club v. Lynn; United States v. R. L. C.; New York Central Securities Corporation v. United States; Pauley; Mor; Cargill; FDA; FDA; OSHA; FDA; United States v. Zimmian Tabb; UAL; PRC; Home Box Office, Inc. v. Federal Communications Commissio...; Camp; State of TX v. USA; Ferc; FERC; FERC; Roberto Hernandez-Serrano v. William Barr; Obeya; Gutierrez; Downhole Pipe & Equipment, L.P. v. United States; United States v. Kevin Hightower; Skinner; Holly; Southwestern Elec. Power Co. v. U.S. E.P.A.; Apel; Brock; Guam v. United States; National Horsemen's Benevolent v. Black; Mandel Bros; Piper; Aposhian; FERC; United States v. Wong Kim Bo, A/K/A Yee Kuk Ho, Etc.; FERC; Pollinator Stewardship Council v. U.S. Environmental Prot...; United States Forest Service v. Cowpasture River Preserva...; Ohio Valley Environmental Coalition v. Aracoma Coal Co.; FERC; FERC; A. R. Douglass, Inc. v. McRainey, as Admrx.; California Communities Against Toxics v. United States En...; Jorge O. Arevalo v. U.S. Attorney General; Janet S. Delana, Individually, and as the Wife of Deceden...; Catawba County v. Environmental Protection Agency; Fred Meyer Stores, Inc. v. National Labor Relations Board; FERC; Reiter; Maria Medina Tovar v. Laura Zuchowski; United States v. David Prien-Pinto; Council For Urological Interes v. Sylvia Mathews Burwell; San Luis & Delta-Mendota Water v. Pacific Coast Federatio...; Erick Carter v. Welles-Bowen Realty, Inc.; Lugo; United States v. Marcus Crum; Texaco; National Ass'n of Home Builders v. Environmental Protecti...; McCoy; Public Citizen, Inc., Aviation Consumer Action Project, a...; Riverside Homes; FERC; Donald Larry Martin v. Social Security Administration, Co...; FERC; Morton; Montalvo-Murillo; Posadas; Atlantic City Electric Co. v. Federal Energy Regulatory C...; Zhejiang Dunan Hetian Metal Co., Ltd. v. United States; United States Telecom Association v. Federal Communicatio...; City of New York v. Beretta U.S.A. Corp.; Spector; San Luis & Delta-Mendota Water v. Natural Resources Defen...; Huawei Tech USA v. FCC; Boone; Martin; Crooks; Universal CIT; City of Milwaukee v. Illinois; Granderson; United States v. Phillip Zabawa; RAJAH; Barrett; Cal. Cmty. Against Toxics v. Envtl. Prot. Agency; Dabit; United States v. Trudale Raymond Williams; Nixon; Richard A. Batterton, Secretary of Employment & Social Se...; Hallowell; Cir; National Wildlife Federation v. National Marine Fisheries...; Chamber of Commerce of United States v. Securities & Exch...; Shimer; Reorganized CF&I; FERC; FERC; Allina Health Services v. Kathleen Sebelius; FERC; FERC; United States v. Arnold Maurice Mathis; Usfs; United States v. Trinity Phillips; State ex rel. Plain Dealer Publishing Co. v. City of Clev...; Entergy Corp. v. Riverkeeper, Inc.; Hydro Resources, Inc. v. United States Environmental Prot...; Sierra Club, Inc. v. U.S. Forest Service; American Fuel & Petrochemical v. EPA; UCBR; Brunner; Price; Md. Office of People's Counsel v. Md. Pub. Serv. Comm'n; Mont; United States v. Steven Adams; Home Concrete; Kientz; Moore; Lightfoot; Lightbourn; National Family Farm Coalition v. Usepa; Fisher; Business Roundtable v. Securities & Exchange Commission; Quinchia; United States Sugar Corp. v. Environmental Protection Agency; New York v. U.S. Environmental Protection Agency; Good Fortune Shipping SA v. Comm'r of Internal Revenue;

FERC; Nan Ya Plastics Corporation v. United States; Fishgold; The Wilderness Society Alaska Center for the Environment ...; United States v. Sathon Evans; Francisco Garfias-Rodriguez v. Eric Holder, Jr.; United States v. La Franca; Tamm v. UST-United States Trustee (In Re Hokulani Square,...; Hudgens; Commonwealth; Republic National; Barnes; Calimlim; Manuel Campos-Hernandez v. Jefferson Sessions; Serrano; Sorenson Communications Inc. v. Federal Communications Co...; State of Okla. v. United States; United States v. Kyle Boleyn; Appalachian Power Co. v. Environmental Protection Agency; Shalala; Rural Cellular Ass'n v. Federal Communications Commission; Genuine Parts Co. v. Envtl. Prot. Agency; Jiron; FDA; Daniela Guerra-Rocha v. William P. Barr; De Niz Robles v. Lynch; FERC; TOMAC; Daniels; Turtle Island Restoration Network v. United States Depart...; Lindeen v. Securities & Exchange Commission; American Wild Horse Preservation Campaign v. Sonny Perdue; United States v. Malachi Glass; Joseph Egan v. Delaware River Port Authority; Bark; The Emily and the Caroline; Wyoming v. United States Department of Agriculture; United States v. Jackson; LOC; United States v. Troy Kendrick, Jr.; Sierra Club v. EPA; United States v. Smith; Levin; Renewable Fuels Association v. EPA; Mississippi Power & Light; Brown; Wildearth Guardians v. Heather Provencio; State of Maryland v. EPA; Cir; In Defense of Animals v. U.S. Department of the Interior; BLM; United States v. Vicente Cuevas-Lopez; Catskill Mountains Chapter of Trout Unlimited, Inc. v. Un...; United States v. John Booker, Jr.; Hughes Aircraft Co. v. United States Ex Rel. Schumer; Cheney Railroad Company, Inc. v. Interstate Commerce Comm...; State ex rel. Holdridge v. Industrial Commission; Natural Resources Defense Council v. Environmental Protec...; Lindsay Rafferty v. Denny's, Inc.; Jesus Ramirez v. Linda Dougherty; Standing Rock Sioux Tribe v. United States Army Corps; United States v. Jeffrey H. Feingold; Ad Hoc Shrimp Trade Action Committee v. United States; City of Bos. Delegation v. Fed. Energy Regulatory Comm'n; Amer Bioscience Inc v. Thompson, Tommy G.; CWA.; PSC; Adirondack Medical Center v. Kathleen Sebelius; Lichter; UAW-Labor Employment & Training Corp. v. Chao; United States Steel Corp. v. United States; Karpova; Yangzhou Bestpak Gifts & Crafts Co. v. United States; Caveney; Waterworth; Atlantic Rfg. Co; New Jersey v. Environmental Protection Agency; Hall; Water Resources; City of Olmsted Falls, Ohio v. Federal Aviation Administr...; SIBRUN; Kennecott Utah Copper Corporation v. United States Depart...; Marjorie Lynch v. Gabriel Jackson; Jorge Baez-Sanchez v. William Barr; Sebelius; Don Olenhouse v. Commodity Credit Corporation; Defenders of Wildlife v. Ryan Zinke; John Boerschig v. Trans-Pecos Pipeline, L.L.C.; Ferc; Dennis A. Dickson v. Secretary of Defense; USDA; American Whitewater v. Thomas Tidwell; Paulsen; Americans for Clean Energy v. Environmental Protection Ag...; United States v. Jose Garcia; County of Maui v. Hawaii Wildlife Fund; Crawford Fitting; Pablo Mejia-Castanon v. Attorney General United States; Delaware Department of Natural Resources & Environmental ...; Neustar, Inc. v. Federal Communications Commission; FERC; Crystallex Int'l Corp. v. Bolivarian Republic De Venezuel...; Milhollin; Corrosion Proof Fittings v. The Environmental Protection ...; Barbara Combs v. Commissioner of Social Security; Erie Brush & Manufacturing Corp. v. National Labor Relati...; Florida Health Sciences Center, Inc. v. Secretary of Heal...; District Hospital Partners v. Sylvia Mathews Burwell; Susquehanna International Group, LLP v. Securities & Exch...; In Re Comiskey; Blm; District of Columbia v. Beretta U.S.A. Corp.; Ctr. for Biological Diversity v. Ryan Zinke; McNair; CTS Corp. v. Environmental Protection Agency; Stephen West v. Charter Communications, Inc.; California Wilderness Coalition v. U.S. Department of Energy; Natural Resources Defense Council v. Andrew Wheeler; NRC; Hogen; Appalachian Power Company v. Environmental Protection Age...; Perry; Masih; Lafferty; Montgomery Ward & Co., Incorporated v. Federal Trade Comm...; United States v. Douglas Lee Dunford, Sr.; Barragan-Lopez; American Bankers Association v. National Credit Union Adm...; Commissioner; Sherley; Pesquera Mares Australes Ltda. v. United States v. Coalit...; City of Parker v. State; Chamber of Commerce of the U.S. v. U.S. Dep't of Labor; FDA; American Bar Ass'n v. Federal Trade Commission; Kdfw-Tv; Eagle Pharmaceuticals, Inc. v. Alex Azar, II; United States v. Tre Tate; Loper Bright Enterprises, Inc v. Gina Raimondo; Medina County Environmental Action Ass'n v. Surface Trans...; Nantahala; American Radio Relay League, Inc. v. Federal Communicatio...; FERC; Baldwin; FERC; National Ass'n of Reversionary Property Owners v. Surface...; United States Ex Rel. Attorney General of the United Stat...; Tri-Valley Cares v. U.S. Department of Energy; Manuel Olivas-Motta v. Matthew Whitaker; Save Our Sound OBX, Inc. v. NC Dept of Transportation; Defenders of Wildlife v. North Carolina Department of Tra...; United States v. James Johnman, Jr.; Flores; Sinclair Wyo. Ref. Co. v. U.S. Envtl. Prot. Agency; Aragon; Montana-Dakota Utilities Co. v. Northwestern Public Servi...; United States v. Oregon State Medical Society; FERC; Lewis Hodge, Claimant-Appellant v. Togo D. West, Jr., Sec...; United States v. Larry Jo Leeson; Gelman; National Mining Association v. Ryan Zinke; FERC; FERC; Physicians for Social Responsibility v. Andrew Wheeler; United States v. Demetrius Jefferson; Verizon v. FCC; South Florida Water Management District v. Miccosukee Tri...; Pit River Tribe v. United States Forest Service; United States v. Juan Rivera-Constantino; Advanced Life Sys. Inc. v. Nat'l Labor Relations Bd.; Tenn. Hosp. Ass'n v. Alex M. Azar, II; Uniontown Area School District v. Pennsylvania Human Rela...; Vien-Phuong Thi Ho v. ReconTrust Co.; Reynolds; Ladner; MA Trustees; New Process Steel, L. P. v. National Labor Relations Board; FERC; American Hospital Association v. Otis R. Bowen, Secretary...; Hudson; Swayne & Hoyt, Ltd. v. United States; FAA; Sebelius; Salazar; Lambert; American Farm Bureau Federation v. United States Environm...; Martinez-Cruz; Ludimilla Ramos Da Silva v. Attorney General United States; CPSC; Willie Goffney, Jr. v. Xavier Becerra

in no cluster in 2025-29 (cited, but too loosely tied to any) (141): United States v. Jeffery Havis; Christopher; Bass; Christensen; Electric Power Supply; Solid Waste Agency of Northern Cook County v. United Stat...; Brown; Texas v. United States Environmental Protection Agency; Corley; Aguirre-Aguirre; Smiley; Duguid; Brown; United States v. Richardson; Maracich; Negusie; Babbitt; Hibbs; Moskal; Navarro; Louisiana Pub. Serv. Comm'n v. FCC; Long Island Care; Nevada v. Department of Energy; FERC; Ron Pair Enterprises; FCC v. AT&T; i4i Ltd; FDA; Cyan, Inc. v. Beaver County Employees Retirement Fund; Dickson; Shalala; Bragdon; L-A-B-R; HollyFrontier Cheyenne Refining, LLC v. Renewable Fuels A...; FERC; BedRoc; Menasche; Cargill; United States v. Xiaorong You; Greater Boston Television Corp. v. Federal Communications...; Woods; Kozminski; Branch; Carcieri; Vartelas; Midwest Iso Transmission Owners v. Federal Energy Regulat...; Rapanos; Huddleston; United States v. Schooner Peggy; I4i Ltd. Partnership v. Microsoft Corp.; Lorillard; Exxon Mobil Corp. v. Allapattah Services, Inc.; Chapman; Chickasaw Nation v. United States; Luminant Generation Co. v. United States Environmental Pr...; Harrison; Atlantic Cleaners & Dyers, Inc. v. United States; K Mart; Sebelius; Jones; Rubin; Gustavo Monteon-Camargo v. William Barr, U. S. Att; FERC; Bradley; Newton; Hughes; Agri; Bell v. United States; Miccosukee Tribe of Indians of Florida v. United States; Wildearth Guardians v. Sally Jewell; United States v. Luis Mercado; Hoffman; BFP; Ramon Jasso Arangure v. Matthew Whitaker; Decker; Yates; Reiter; Ransom; Mozilla Corporation v. FCC; Ileto; National Mining Association v. Gina McCarthy; DCH Regional Medical Center v. Alex M. Azar II; Mississippi Commission on Environmental Quality v. Enviro...; Koray; Iselin; Thorpe; United States v. Western Pacific Railroad; FERC; PICCADILLY; Leedom; Davis; Duke Energy; Rivers; Usery; Keene Corp. v. United States; First National City Bank v. Banco Para El Comercio Exteri...; Center for Biological Diversity v. National

Highway Traff...; Consumer Product Safety Commission v. GTE Sylvania, Inc.; Goodman; George; Morgan; Bonjorno; At&T Corp. v. Iowa Utilities Board; Obduskey; Snyder Bros., Inc. v. Pa. Pub. Util. Comm'n; Usfs; BCCA Appeal Group v. United States Environmental Protecti...; National Labor Relations Board v. United Food & Commercia...; O'Hagan; Kempthorne; Beaty; United States v. David Rothenberg; United States v. Steven Wang; Adames; Newport News; Home Depot U. S. A., Inc. v. Jackson; Sullivan; United States v. Charles Sands; FERC; S. D. Warren Co. v. Maine Board of Environmental Protection; Standefer; Forsythe; Harrison; Marvel Entertainment; Beecham; Washington State Department of Social & Health Services v...; AR v. OK; Federal Land Bank of St. Paul v. Bismarck Lumber Co.; Johnson v. US; State Farm Fire; United States v. James Herrera; Gozlon-Peretz; Commonwealth of Ky. v. Janet Yellen; Sierra Club v. Van Antwerp; United States v. Dennis Smith; Federal Communications Commission v. Pottsville Broadcast...; Beth Israel Hospital v. National Labor Relations Board; FLRA; National Cable; United States v. Rogelio Ruiz; United States v. Baha Jaffal

2025-29:3.10 Agency review after Loper Bright (2025) (41): Chevron; State Farm; Kisor; FCC v. Fox; Auer; Mead; Encino Motorcars; Stinson; Skidmore; Burlington Truck Lines, Inc. v. United States; Securities & Exchange Commission v. Chenery Corp.; Brand X Internet; Michigan v. EPA; Securities & Exchange Commission v. Chenery Corp.; Bowles; Perez; Gonzales v. Oregon; Bowman Transp; United States v. Jennifer Riccardi; Russello; United States v. Malik Nasir; Vermont Yankee Nuclear Power Corp. v. Natural Resources D...; Volpe; National Ass'n of Home Builders v. Defenders of Wildlife; United States v. Trey Campbell; FERC; United States v. Roberto Castillo; Marsh; Robertson; Department of Transportation v. Public Citizen; NRDC; Camp; Lorion; FCC v. Prometheus Radio Project; Vargas; Kleppe; Blackwood; United States v. Montes Miller; State of Texas v. United States; United States v. American Trucking Associations; United States v. Ruslan Kirilyuk

2025-29:3.5 Statutory surplusage, delegation and immigration detention (2025) (34): Whitman; Gundy; Wisconsin Central Ltd. v. United States; Robinson; Department of Transportation v. Association of American R...; Germain; J. W. Hampton, Jr., & Co. v. United States; Perrin; Schechter Poultry; MCI Telecommunications Corp. v. American Telephone & Tele...; Azar; Henson; Marx; Wayman; American Power & Light Co. v. Securities & Exchange Commi...; Jama; Adkins; Duncan; Ryan; Alabama Assn. of Realtors v. Department of Health and Hum...; Industrial Union; NBC v. USA; Gustafson; Nat'l Labor Relations Bd. v. SW Gen., Inc.; Taniguchi; Loving; Rimini Street, Inc. v. Oracle USA, Inc.; Federal Trade Commission v. Bunte Bros.; King; Field; National Assn. of Mfrs. v. Department of Defense; Becerra; Hamdan; NFIB

2025-29:10.5 around Woodbury (6): Brown & Williamson; King; Davis; United Sav. Assn. of Tex. v. Timbers of Inwood Forest Ass...; Sea-Land; Griffin

2025-29:3.6 Dormant Commerce Clause (5): NFIB; Morgan Stanley; New York; FERC; Butler

2025-29:10.2 around Puckett (4): Yakus; Barnhart; Echazabal; United States v. Antoinette Adair

2025-29:20 Second Amendment (4): Bond; United States v. Virgil Bailey, Jr.; DEA; Immigration & Naturalization Service v. National Center f...

2025-29:3.3 Class actions, standing and immunity in challenges to government (2025) (3): New York v. United States; Gregory v. Ashcroft; Printz

2025-29:3.7 Federal preemption (3): Ali; United States v. Gonzales; Crandon

2025-29:8.5 around Coleman (3): Landgraf; Bowen; Commonwealth Edison Co. v. Will County Collector

2025-29:15.17 around AVETISYAN (3): AVETISYAN; W-Y-U; CASTRO-TUM

2025-29:19.8 around United States v. Barton Crandall (3): Mistretta; LaBonte; Neal

2025-29:2.1 Pro se pleadings and Twombly/Iqbal in prisoner suits (2): Lamie; Hartford Underwriters

2025-29:2.2 Employment discrimination: McDonnell Douglas pretext (2): Paroline; United States v. Jesus Villalobos

2025-29:3.2 Article III standing (2): Mills; TVA

2025-29:3.4 Preliminary injunctions and stays against the government (2025) (2): Nyunt v. Chairman, Broadcasting Board of Governors; Pension Benefit Guaranty Corporation v. RA Gray & Co.

2025-29:15.3 around Wilkinson (2): Rodriguez; Dickinson

2025-29:72 around Slawek (2): Lockhart; Barnhart

2025-29:2.8 Implied private rights of action (Cort v. Ash) and § 1983 (1): Dole

2025-29:3.8 around Miller (1): Food Marketing Institute v. Argus Leader Media

2025-29:3.13 around Hemi Group, LLC v. City of New York (1): Reiter

2025-29:4.2 Texas criminal: evidentiary rulings and harm analysis (1): Shinseki

2025-29:10.1 Reasonableness review of federal sentences (1): Evers

2025-29:10.3 Eleventh Circuit sentencing reasonableness (1): United States v. Brandon Romel Dupree

2025-29:15.1 Ninth Circuit asylum: particular social group and nexus (1): Wyman-Gordon

2025-29:19.3 around Taylor (1): Wiltberger

2025-29:27.3 around Cheney (1): Carlton

2025-29:174 around Universal Camera Corp. v. National Labor Relations Board (1): Allentown Mack

Case details

Best fit here

1. United States v. Roberto Castillo

69 F.4th 648, 9th Cir., 2023
In 2020-24: cited by 22 decisions (appellate) · in all: 37 · 2021–2025: 37 · weight in the sub-cluster 40
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 37 of 37 citing opinions)
Role changed 2025-29: likely successor Trumbull, 114 F.4th 1114 (2024) (50% of the 12 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: United States v. Brandon Romel Dupree (cosine 0.21, 9 both); United States v. Jennifer Riccardi (cosine 0.15, 7 both); United States v. Malik Nasir (cosine 0.13, 6 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (The "distinction between definitions in neighboring subsections within the same provision shows that the drafters knew how to include inchoate offenses in defining 'controlled substance offense' for sentencing enhancement purposes, but chose not to do so.") — *Mao, 1st Cir., 2026*
- **1** ("Federal Rule of Criminal Procedure 52(b) affords appellate courts discretion 'to correct a forfeited error' if the appellant shows (1) an error, (2) that is plain, (3) that affects substantial rights, and (4) — *United States v. John Romero, 9th Cir., 2023*
- **1** ("[T]he assumption that de novo review applies to purely legal questions that have not been argued below has been called into question both by our court and by the Supreme Court.") — *Gomez, 9th Cir., 2026*
- **1** ("[U]nstated assumptions on non-litigated issues are not precedential holdings binding future decisions." (quoting Medina-Rodriguez v. Barr, 979 F.3d 738, 747 (9th Cir. 2020))) — *United States v. Joshua Flores, 9th Cir., 2024*
- **1** ("The text of § 4B1.2(b) does not identify conspiracy to commit any of the offenses as such an offense.") — *Vargas, 5th Cir., 2023*
- **1** (noting "grave constitutional concerns" raised by deference to Application Note 1) — *Vargas, 5th Cir., 2023*
- **1** (distinguishing meaning of text only in the commentary to the Guidelines) — *Carver, 9th Cir., 2025*
- **1** (observing that the relevant inquiry "requires us to examine the plain text of the guideline, determine whether there is any ambiguity, and if there is not, to disregard the interpretive gloss set forth in the guideline's commentary") — *United States v. Felix Cisneros, Jr., 9th Cir., 2024*

2. United States v. Lenair Moses

23 F.4th 347, 4th Cir., 2022
In 2020-24: cited by 25 decisions (appellate) · in all: 29 · 2021–2025: 29 · weight in the sub-cluster 36
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 29 of 29 citing opinions)
Travels with: United States v. Trey Campbell (cosine 0.21, 13 both); United States v. Jennifer Riccardi (cosine 0.13, 12 both); United States v. Martez Smith (cosine 0.13, 6 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("[E]ven though the two cases addressed analogous circumstances, Stinson nonetheless continues to apply when courts are addressing Guidelines commentary, while Kisor applies when courts are addressing executive agency interpretations of legislative rules.") — *Oladokun, 2d Cir., 2025*
- **2** ("[I]t is noteworthy that Kisor did not purport to overrule Stinson, and it is not our role to say it did.") — *Fabio Alicea and Sarah J Zabek, Bankr. E.D.N.C., 2023*
- **1** ("Stinson continues to apply unaltered by Kisor.") — *United States v. Lenair Moses, 4th Cir., 2022*
- **1** ("Were we now to relegate commentary to a status where it could be considered only when the relevant Guideline is genuinely ambiguous, we would negate much of the Commission's efforts in providing commentary to fulfill its congressionally designated mission.") — *Vargas, 5th Cir., 2023*
- **1** ("Kisor deference, as the Kisor Court explained, comes into play only when agencies are interpreting their regulations. But the Sentencing Guidelines provide a broader role for commentary, as recognized in Stinson.") — *Oladokun, 2d Cir., 2025*
- **1** ("[T]he Commission, in practice, generally follows the same process for adopting and amending policy statements and commentary as it uses for the promulgation and amendment of the Guidelines themselves.") — *Rainford, 2d Cir., 2024*
- **1** (stating since Kisor did not purport to overrule Stinson, it is not the court's role to find that it did) — *United States v. Remberto Rivera, 8th Cir., 2023*
- **1** (noting that the Commission "promulgated commentary specifically to satisfy that purpose" (emphasis omitted)) — *Vargas, 5th Cir., 2023*

3. United States v. Lewis

963 F.3d 16, 1st Cir., 2020
In 2020-24: cited by 19 decisions (appellate) · in all: 22 · 2021–2025: 22 · weight in the sub-cluster 30
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 22 of 22 citing opinions)
Travels with: United States v. Martez Smith (cosine 0.19, 7 both); United States v. Richardson (cosine 0.13, 6 both); United States

v. Lenair Moses (cosine 0.09, 6 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("None of this is to say how we would rule today were the option of an uncircumscribed review available. That the circuits are split suggests that the underlying question is close.") — *United States v. Brandon Romel Dupree, 11th Cir., 2023*
- **1** (declining to revisit a guideline interpretation in light of Kisor's clari□cation of Auer deference) — *United States v. Charles States, 7th Cir., 2023*
- **1** (adhering to the law-of-the-circuit doctrine where three sister circuits retained allegiance to this Circuit's reasoning despite a recent Supreme Court decision) — *Perez, 1st Cir., 2023*
- **1** (relying on pre-Kisor circuit precedent to interpret a Guideline because nothing in Kisor would have altered that precedent) — *United States v. Christopher Mitchell, 4th Cir., 2024*
- **1** (adhering to circuit precedent finding Application Note 1 "authoritative" while acknowledging the "question is close") — *United States v. Keith White, 7th Cir., 2024*
- **1** (concluding, with respect to a pure question of law, that "any error, if there was one, could not have been 'clear or obvious' as required to establish plain error") — *Gadson, 1st Cir., 2023*
- **1** (explaining that the law of the circuit must be followed unless undermined or called into doubt by subsequent authority) — *In Re: Raimondo v., 1st Cir., 2021*

↑

4. United States v. Martez Smith

989 F.3d 575, 7th Cir., 2021
In 2020-24: cited by 20 decisions (appellate) · in all: 54 · 2021–2025: 54 · weight in the sub-cluster 29
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 54 of 54 citing opinions)
Travels with: Lewis (cosine 0.19, 7 both); United States v. Lenair Moses (cosine 0.13, 6 both); United States v. Richardson (cosine 0.12, 5 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("We give special weight to a defendant's sworn testimony in a Rule 11 plea colloquy. That testimony is presumed true, and the defendant bears a heavy burden to overcome this presumption.") — *Brazier, N.D. Ind., 2025*
- **2** ("When the alleged deficiency is based on counsel's failure to move to suppress evidence, a defendant must 'prove the motion was meritorious.' ") — *Eddington, S.D. Ill., 2025*
- **2** (reaffirming that the Guidelines commentary is authoritative) — *United States v. Remberto Rivera, 8th Cir., 2023*
- **2** ("conclud[ing] that § 4B1.2's Application Note 1 is authoritative and that 'controlled substance offense' includes inchoate offenses" (citation omitted)) — *United States v. Trey Campbell, 4th Cir., 2022*
- **1** (same with re- spect to the term "controlled substance o□ense") — *United States v. Olalekan Ponle, 7th Cir., 2024*
- **1** (courts must "look to contemporaneous evidence to substantiate a defendant's expressed preferences and only allow a [plea] withdrawal if we are convinced that the defendant would have pleaded differently") — *Tucker, James v. Redeker, Nicholas, W.D. Wis., 2023*
- **1** (evidentiary hearing not required "if the petitioner makes allegations that are vague, conclusory, or palpably incredible, rather than detailed and specific.") — *ADKINSON, S.D. Ind., 2021*
- **1** (collective knowledge doctrine "per- mits a stop at the direction of, or based on information relayed from, another law enforcement agency") — *United States v. Rex Hammond, 7th Cir., 2021*

↑

5. Breeze Smoke, LLC v. FDA

18 F.4th 499, 6th Cir., 2021
In 2020-24: cited by 14 decisions (appellate) · in all: 17 · 2021–2025: 17 · weight in the sub-cluster 26
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 17 of 17 citing opinions, filed 2022–2024: status now, not the year it changed)
Travels with: FDA (cosine 0.21, 7 both); FDA (cosine 0.19, 6 both); FDA (cosine 0.19, 6 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (holding that "the FDA's 2019 guidance does not qualify as 'longstanding'") — *State of Ohio v. Xavier Becerra, 6th Cir., 2023*
- **1** (denying motion to stay similar MDOs) — *FDA, 5th Cir., 2022*
- **1** ("[T]he FDA's 2019 language and its 2021 order likely did not fail to consider reliance interests, . . . and did not introduce a new standard of review in adjudication such that it likely deprived Breeze Smoke of fair warning.") — *FDA, 5th Cir., 2024*
- **1** ("The FDA likely should have more thoroughly considered Breeze Smoke's marketing plan.") — *FDA, D.C. Cir., 2022*
- **1** (denying a judicial stay from a substantially similar marketing denial order) — *FDA, 4th Cir., 2022*
- **1** ("declin[ing] to embrace" petitioner's claim "that the FDA's willingness to consider some forms of evidence, explicitly phrased as such, required the FDA to accept that evidence as meeting a statutory requirement even where the FDA found the evidence unsatisfactory") — *FDA, 3rd Cir., 2022*
- **1** ("Considering all of Breeze Smoke's evidence, we disagree with Breeze Smoke, and with our colleagues on the Fifth Circuit, who say that the FDA orchestrated a 'surprise switcheroo.'") — *FDA, 5th Cir., 2022*
- **1** (upholding the FDA's determination that generalized evidence included in an open-system e-liquid application could not overcome the clear preference of children for flavored e-cigarettes) — *FDA, 10th Cir., 2024*

↑

6. Myersville Citizens for a Rural Community, Inc. v. Federal Energy Regulatory Commission

783 F.3d 1301, D.C. Cir., 2015
In 2020-24: cited by 20 decisions (appellate) · in all: 76 · 2021–2025: 39 · weight in the sub-cluster 22
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 78 of 78 citing opinions, filed 2015–2026: status now, not the year it changed)
Role changed 2020-24: likely successor FERC, 937 F.3d 599 (2019) (30% of the 20 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: FERC (cosine 0.21, 5 both); FERC (cosine 0.16, 6 both); FERC (cosine 0.11, 11 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (upholding "[the] Commission's consideration of the [proposed] alternative in its Environmental Assessment [as] adequate") — *Jewell, D.C. Cir., 2018*
- **1** ("To issue a FONSI and decline to prepare an EIS, an agency must have concluded that 'there would be no significant impact or have planned measures to mitigate such impacts.'" (emphasis added) — *Food & Water Watch v. United States Department of Agriculture, D.D.C., 2020*
- **1** ("[T]he Commission in this case made clear that the Allegheny Storage Project and the Cove Point LNG terminal are unrelated, and that neither depends on the other for its justification.") — *FERC, D.C. Cir., 2024*
- **1** (agencies cannot overlook a single environmental consequence if it is even "arguably significant") — *FERC, D.C. Cir., 2018*
- **1** (precedent agreement showing full subscription was "adequate to support a finding of market need" (cleaned up)) — *FERC, D.C. Cir., 2024*
- **1** ("when considering FERC's evaluation of scientific data within its technical expertise, we afford FERC an extreme degree of deference") — *FERC, D.C. Cir., 2022*
- **1** ("[A] rebuttal opportunity that arises before the issuance of a final order is sufficient for purposes of due process.") — *Colley, D.D.C., 2017*
- **1** (upholding "1the1 Commission's consideration of the 1proposed] alternative in its Environmental Assessment 1as1 adequate") — *Zinke, D.D.C., 2018*

↑

7. Baltimore Gas & Electric Co. v. Natural Resources Defense Council, Inc.

462 U.S. 87, SCOTUS, 1983
In 2020-24: cited by 36 decisions (appellate) · in all: 1,274 · 2021–2025: 148 · weight in the sub-cluster 22
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 506 of 1,328 citing opinions)
Travels with: FERC (cosine 0.05, 10 both); Nevada v. Department of Energy (cosine 0.05, 7 both); FERC (cosine 0.05, 5 both)
How later courts describe it (161 parentheticals; groups of similar wording, largest first; other courts' words)

- **100** (holding that when examining decisions made under conditions of scientific uncertainty "a reviewing court must generally be at its most deferential") — *Salazar, 9th Cir., 2009*
- **7** (NEPA requires agency to take hard look at environmental consequences and disclose the environmental impact of its action to the public) — *Hall, W.D. Wash., 1988*
- **7** (limiting a court's role to determining whether the agency "has considered the relevant factors and articulated a rational connection between the facts found and the choice made") — *Ehrman, D.D.C., 2006*
- **4** (NEPA requires an agency to take a "hard look" at the potential environmental consequences of proposed projects before taking action) — *Concerned Citizens Alliance, Inc. v. Rodney Slater, 3rd Cir., 1999*
- **4** (concluding that "NEPA requires an EIS to disclose the significant health, socioeconomic, and cumulative consequences of the environmental impact of a proposed action") — *Clean Wisconsin, Inc. v. Public Service Commission, Wis., 2005*
- **3** ("NEPA does not require agencies to adopt any particular internal decisionmaking structure") — *Robertson, SCOTUS, 1989*
- **2** (approving NRC's "zero-release assumption" for nuclear waste storage)
- **2** ("Congress in enacting NEPA . . . required only that the agency take a 'hard look' at the environmental consequences before taking a major action." (quoting Kleppe v. Sierra Club, 427 U.S. 390, 410 n.21 (1976))) — *Naec, 9th Cir., 2020*

↑

8. Prohibition Juice Co. v. FDA

45 F.4th 8, D.C. Cir., 2022
In 2020-24: cited by 14 decisions (appellate) · in all: 20 · 2021–2025: 20 · weight in the sub-cluster 21
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 20 of 20 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: FDA (cosine 0.60, 8 both); FDA (cosine 0.28, 7 both); FDA (cosine 0.21, 7 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (explaining that "self-verification of age at the point of sale and . . . less vibrant marketing unappealing to youth" "track measures the FDA in its 2020 guidance deemed inadequate") — *FDA, 3rd Cir., 2022*
- **2** (concluding petitioner failed to show that the FDA's failure to consider its marketing plan "could have changed the agency's decision on their applications") — *FDA, 3rd Cir., 2022*
- **1** ("We hold that the FDA did not misdirect applicants.") — *FDA, 5th Cir., 2024*
- **1** ("Where a 3 petitioner had ample opportunity yet failed to show that an agency error harmed 4 it, vacatur and remand

to give the agency an opportunity to fix the error is 5 unwarranted.") — *Magellan Technology, Inc. v. United States Food and Drug Administration, 2d Cir., 2023*

1 ("[T]he [TCA] not only 7 allows but expressly instructs the FDA to consider evidence regarding just the 8 comparison that the manufacturers say the FDA lacks statutory authority to 9 make.") — *Magellan Technology, Inc. v. United States Food and Drug Administration, 2d Cir., 2023*

1 ("The FDA did not 18 reverse course. . . . The text of the FDA's 2019 Guidance makes that clear.") — *Magellan Technology, Inc. v. United States Food and Drug Administration, 2d Cir., 2023*

1 ("Businesses seeking to make a profit selling tobacco products . . . face powerful economic incentives to reach younger customers") — *Six Brothers, Inc. v. Town of Brookline, Mass., 2024*

1 ("Agencies must explain changes in position, par- ticularly once a prior position has engendered regulated par- ties' reliance.") — *FDA, 3rd Cir., 2023*

↑

9. Association of American Railroads v. United States Department of Transportation

721 F.3d 666, D.C. Cir., 2013

In 2020-24: cited by 11 decisions (appellate) · in all: 35 · 2021–2025: 15 · weight in the sub-cluster 20

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: yellow? (read the newest 44 of 44 citing opinions, filed 2013–2025: status now, not the year it changed)

2018 (D.C. Cir.): other grounds "vacated", could overrule — *CFPB*: use removal protection are not separately unconstitutional, their combination might be. See Pet'rs' Br. 28 (citing Ass'n of Am. R.Rs. v. U.S. Dep't of Transp., [721 F.3d 666, 673673] (D.C. Cir. 2013), vacated on other grounds, — U.S. —, 135 S.Ct. 1225, 191 L.Ed.2d 153 (2015)). But that combination…

2015 (S.D.): other grounds "vacated" — *Pesall*: . Pesall also relies on two federal cases. See Ass'n of Am. R.Rs. v. U.S. Dep't of Transp., [721 F.3d 666] (D.C.Cir.2013), vacated on other grounds sub nom. Dep't of Transp. v. Ass'n of Am. R.Rs., — U.S. -, 135 S.Ct. 1225, 191

Travels with: Adkins (cosine 0.24, 8 both); Sierra Club v. Lynn (cosine 0.19, 5 both); Department of Transportation v. Association of American R... (cosine 0.17, 7 both)

How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("The constitutional avoidance canon is an interpretive aid, not an invitation to rewrite statutes to satisfy constitutional strictures.") — *Ali Hamza Ahmad al Bahlul v. United States, D.C. Cir., 2014*

2 (noting that, although a statute may not "empower[ ] private parties to wield regulatory authority!,] [s]ueh entities may ... help a government agency make its regulatory decisions") — *Gentiva Healthcare Corp. v. Kathleen Sebelius, D.C. Cir., 2013*

2 (stating that, if the regulatory authority to set metrics and standards is wielded by a governmental agency, "[Section] 207 is of no constitutional moment") — *DOT, D.C. Cir., 2018*

1 (describing the SROs' role as "purely advisory or ministerial") — *Alpine Securities Corporation v. National Securities Clearing, D. Utah, 2024*

1 ("No case prefigures the unprecedented regulatory powers delegated to Amtrak.") — *Natl Horsemen's Benevolent v. Black, 5th Cir., 2024*

1 (cleaned 4 See also generally A.L.A. Schechter Poultry Corp. v. United States, 295 U.S. 495, 537 (1935); Carter v. Carter Coal Co., 298 U.S. 238, 311 (1936); Currin v. Wallace, 306 U.S. 1, 15–16 (1939) — *Natl Horsemen's Benevolent v. Black, 5th Cir., 2024*

1 ("Even an intelligible principle cannot rescue a statute empowering private parties to wield regulatory authority.") — *Alpine Securities Corporation v. Financial Industry Regulatory Authority, Inc., D.C. Cir., 2024*

1 ("[J]ust because two structural features raise no constitutional concerns independently does not mean Congress may combine them in a single statute.") — *CFPB, D.C. Cir., 2018*

↑

10. United States v. Darryl Rollins

836 F.3d 737, 7th Cir., 2016

In 2020-24: cited by 12 decisions (appellate) · in all: 38 · 2021–2025: 12 · weight in the sub-cluster 20

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green (read 40 of 40 citing opinions)

Role changed 2020-24: likely successor United States v. Jeffery Havis, 927 F.3d 382 (2019) (83% of the 12 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: United States v. Jeffery Havis (cosine 0.12, 10 both); United States v. Martez Smith (cosine 0.12, 5 both); Stinson (cosine 0.07, 10 both)

How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("If the application note's list is not interpreting one of [the career-offender guideline's] two sub-parts — and it isn't once the residual clause drops out — then it is in effect adding to the definition." (first emphasis added)) — *Givens, D. Nev., 2017*

1 (possession of a sawed-off shotgun) — *Espinoza, D. Nev., 2019*

1 (Commentary is given "controlling weight unless it is plainly erroneous or inconsistent with the text of the guideline it interprets.") — *United States v. Eric D. Wagner, 7th Cir., 2017*

1 ("To sum up, application note 1 is enforceable only as an interpretation of the residual clause in §4B1.2(a)(2) — *Summer, D.D.C., 2022*

1 (Guidelines commen- tary "are interpretations of, not additions to, the Guidelines themselves; [com- mentary] has no independent force." (emphasis omitted)) — *United States v. Brandon Romel Dupree, 11th Cir., 2023*

1 (possession of a sawed-off shotgun is not a crime of violence under the force clause) — *United States v. Deandre Enoch, 7th Cir., 2017*

1 (addressing the same portion of application note 1 at issue in Soto-Rivera said concluding that the First Circuit "has it exactly right.") — *Givens, D. Nev., 2017*

↑

11. Loving v. United States

517 U.S. 748, SCOTUS, 1996
In 2020-24: cited by 21 decisions (appellate) · in all: 350 · 2021–2025: 47 · weight in the sub-cluster 19
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 414 citing opinions, filed 2016–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Gundy, 588 U.S. 128 (2019) (46% of the 22 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Touby (cosine 0.13, 6 both); J. W. Hampton, Jr., & Co. v. United States (cosine 0.09, 8 both); Grimaud (cosine 0.07, 5 both)
How later courts describe it (84 parentheticals; groups of similar wording, largest first; other courts' words)

12 (stating "the separation-of-powers doctrine requires that a branch not impair another in the performance of its constitutional duties" (citations omitted)) — *Trump, D. Haw., 2020*

9 (affirming that "... we have since upheld, without exception, delegations under standards phrased in sweeping terms") — *In re Border Infrastructure Envtl. Litig., S.D. Cal., 2018*

8 ("[T]he lawmaking function belongs to Congress ... and may not be conveyed to another branch or entity") — *Padilla v. Rumsfeld, 2d Cir., 2003*

7 ("subsequent legislation declaring the intent of an earlier statute is entitled to great weight in statutory construction") — *Trie, D.D.C., 1998*

5 ("This Court established long ago that Congress must be permitted to delegate to others at least some authority that it could exercise itself') — *Save Our Valley v. Sound Transit, 9th Cir., 2003*

3 ("To burden Congress with all federal rulemaking would divert that branch from more pressing issues, and defeat the Framers' design of a workable National Government.") — *Gonzalez Ex Rel. Gonzalez v. Reno, 11th Cir., 2000*

3 (Congress permitted to delegate to the executive branch the authority to define aggravating factors that justify a sentence of death under the Uniform Code of Military Justice) — *Cooper, D.D.C., 2000*

3 (noting that the Supreme Court gives Congress "the highest deference" in ordering military affairs) — *Cook, 1st Cir., 2008*

↑

12. United States v. Charles O. Kallestad

236 F.3d 225, 5th Cir., 2000
In 2020-24: cited by 11 decisions (appellate) · in all: 86 · 2021–2025: 23 · weight in the sub-cluster 19
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 95 of 95 citing opinions, filed 2000–2026: status now, not the year it changed)
Travels with: Dickson (cosine 0.73, 9 both); United States v. Virgil Bailey, Jr. (cosine 0.49, 8 both); Bond (cosine 0.05, 8 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[W]e have little hesitation in concluding that where the product is fungible, such that it is difficult if not impossible to trace, Congress can prohibit local possession in an effort to regulate product supply and demand and thereby halt interstate trade") — *Morales-De-Jesus, 1st Cir., 2004*

2 ("A true market is inevitably commercial, and is pushed by supply and demand, whether manifested in swaps or purchase and sale.") — *Morales-De-Jesus, 1st Cir., 2004*

2 (observing that a § 2255 movant who fails to raise a constitutional or jurisdictional issue on direct appeal waives the issue on collateral review unless he shows both cause for his procedural default and actual prejudice resulting from the error) — *Jimenez-Garcia, N.D. Tex., 2023*

1 (2-1 decision upholding possession statute after Lopez and Morrison) — *United States v. Butler, D. Me., 2001*

↑

13. United States v. Dickson

632 F.3d 186, 5th Cir., 2011
In 2020-24: cited by 14 decisions (appellate) · in all: 62 · 2021–2025: 18 · weight in the sub-cluster 19
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 65 of 65 citing opinions, filed 2011–2026: status now, not the year it changed)
Role changed 2015-19: likely successor Bond, 134 S. Ct. 2077 (2014) (50% of the 20 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: United States v. Charles O. Kallestad (cosine 0.73, 9 both); United States v. Virgil Bailey, Jr. (cosine 0.42, 7 both); Bond (cosine 0.04, 8 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("Next, if necessary, the court should group the various counts according to § 3D and adjust accordingly.") — *United States v. Christopher Douglas, 5th Cir., 2018*

↑

14. United States v. Grimaud

220 U.S. 506, SCOTUS, 1911
In 2020-24: cited by 9 decisions (appellate) · in all: 600 · 2021–2025: 12 · weight in the sub-cluster 18
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 668 citing opinions, filed 1988–2026: status now, not the year it changed)
Role changed 1935-39: likely successor Ryan, 293 U.S. 388 (1935) (36% of the 45 decisions citing this case in 1935-39 also cite it). (co-citation, not the text)
Travels with: J. W. Hampton, Jr., & Co. v. United States (cosine 0.14, 8 both); Touby (cosine 0.13, 5 both); Yakus (cosine 0.11, 5 both)
How later courts describe it (19 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (delegation of power to make regulations for use of national forests to "improve and protect" the forests) — *McGautha, SCOTUS, 1971*
- **2** ("The legislature cannot delegate its power to make a law, but it can make a law to delegate a power to determine some fact or state of things upon which the law makes or intends to make its own action depend.") — *Leavitt, D.D.C., 2009*
- **2** (rejecting the argument that the rules were invalid merely "because the violation thereof is punished as a public offense") — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*
- **2** (upholding delegation to Secretary of Agriculture to regulate use of forests with criminal sanctions) — *Jose Gubiensio-Ortiz v. Al Kanahele, Warden, Metropolitan Correctional Center, San Diego, California, United States of America v. Raul Chavez-Sanchez, 9th Cir., 1988*
- **2** (sustaining an Act authorizing the Secretary of Agriculture to make rules and regulations governing the use and occupancy of public forest reservations) — *Department of Transportation v. Association of American Railroads, SCOTUS, 2015*
- **2** (ruling that Congress acted within its constitutional power in delegating to the Secretary of Agriculture the power to make rules for the lawful use of forest reservations) — *Healthscript, Inc. v. State, Ind., 2002*
- **1** (regulations prohibiting motorized vehicles in certain areas of national forest) — *United States, and State of Idaho, Department of Lands, Intervenor v. E. B. Weiss, James Click, Sr., Orral W. Lake, H. G. King and Orson Baier, 9th Cir., 1981*
- **1** ("any violation of the provisions of this act or such rules and regulations of the Secretary shall be punished as prescribed in section 5388") — *United States v. AMERISOURCEBERGEN CORPORATION, E.D. Pa., 2023*

↑

15. Thomas Jefferson University v. Shalala

512 U.S. 504, SCOTUS, 1994
In 2020-24: cited by 23 decisions (appellate) · in all: 1,371 · 2021–2025: 64 · weight in the sub-cluster 18
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 1,478 citing opinions, filed 2019–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (65% of the 23 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Christopher (cosine 0.07, 7 both); Kisor (cosine 0.06, 15 both); Bowles (cosine 0.05, 9 both)
How later courts describe it (218 parentheticals; groups of similar wording, largest first; other courts' words)

- **158** (holding that agency's interpretation may not be entitled to deference if an alternative interpretation "is compelled by the regulation's plain language") — *Trinity Broadcasting of Florida, Inc. v. Federal Communications Commission, D.C. Cir., 2000*
- **5** (indicating that deference is "all the more warranted" with respect to highly technical and complex regulatory program that requires significant expertise and entails the exercise of judgment grounded in policy concerns) — *National Propane Gas Ass'n v. United States Department of Transportation, N.D. Tex., 1999*
- **4** (citing, inter alia, Udall v. Tallman, 380 U.S. 1, 16, 85 S.Ct. 792, 801, 13 L.Ed.2d 616 (1965)) — *NTSB, D.C. Cir., 2004*
- **4** (determining that reviewing courts must "hold unlawful and set aside" agency action that is "arbitrary, capricious, an abuse of discretion, or otherwise not in accordance with law") — *Citizens Coal Council and Kentucky Resources Council, Inc. v. United States Environmental Protection Agency, 6th Cir., 2006*
- **3** (Secretary not estopped from changing legal interpretation that she believes to be erroneous)
- **3** (reliance on Secretary's "significant expertise" particularly appropriate in the ¡context of "a complex and highly technical regulatory program" (internal quotation marks omitted)) — *Blumer, SCOTUS, 2002*
- **3** (rejecting university's argument that agency had adopted inconsistent interpretive positions because agency's initial "intermediary letter did not purport to be a comprehensive review of all conditions" that the ambiguous regulation might impose) — *United States v. Magnesium Corp. of America, 10th Cir., 2010*
- **3** (affirming that a medical college could not redistribute some costs of an approved educational program to an associated provider hospital where both were owned and operated by the same legal entity) — *Baptist Health v. Thompson, 8th Cir., 2006*

↑

16. Yeison Meza Morales v. William Barr

973 F.3d 656, 7th Cir., 2020
In 2020-24: cited by 18 decisions (appellate) · in all: 21 · 2021–2025: 19 · weight in the sub-cluster 18
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 21 of 21 citing opinions, filed 2020–2024: status now, not the year it changed)
Travels with: Jesus Zuniga Romero v. William Barr (cosine 0.30, 8 both); Roberto Hernandez-Serrano v. William Barr (cosine 0.17, 8 both); CASTRO-TUM (cosine 0.10, 11 both)

How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (Deference to agency guidance is appropriate where regulation is ambiguous) — *United States of America v. Wisconsin Bell Inc, E.D. Wis., 2022*
- **1** (stating that "Castro-Tum's interpretive arguments fail to convince us that administrative closure is not plainly within an immigration judge's authority to take 'any action' that is 'appropriate and necessary for the disposition of . . . cases'" (quoting 8 C.F.R. § 1003.10(b)) — *Abner Arcos Sanchez v. Attorney General United States, 3rd Cir., 2021*
- **1** (acknowledging that "no statute or regulation explicitly confers upon immigration judges a general power of administrative closure") — *Abner Arcos Sanchez v. Attorney General United States, 3rd Cir., 2021*

↑

17. Delaware Riverkeeper Network v. Federal Energy Regulatory Commission

753 F.3d 1304, D.C. Cir., 2014
In 2020-24: cited by 17 decisions (appellate) · in all: 80 · 2021–2025: 30 · weight in the sub-cluster 17
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 84 of 84 citing opinions, filed 2014–2025: status now, not the year it changed)
Travels with: Wildearth Guardians v. Sally Jewell (cosine 0.20, 5 both); FERC (cosine 0.09, 11 both); FERC (cosine 0.09, 8 both)
How later courts describe it (23 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (first quoting Vt. Yankee Nuclear Power Corp. v. NRDC, 435 U.S. 519, 558 (1978); then quoting Dep't of Transp. v. Pub. Citizen, 541 U.S. 752, 756–57 (1989)) — *Martin County, Florida v. Department of Transportation, D.D.C., 2018*
- **2** ("NEPA is 'essentially procedural' and designed to ensure 'fully informed and well-considered decision[s]' by federal agencies) — *Jewell, D.C. Cir., 2018*
- **2** ("While the statute does not demand forecasting that is not meaningfully possible, an agency must fulfill its duties to the fullest extent possible." (internal quotation marks omitted)) — *FERC, D.C. Cir., 2019*
- **1** (faulting agency for not citing applicable regulations) — *Dakota Resource Council v. U.S. Department of the Interior, D.D.C., 2024*
- **1** ("Reasonable forecasting . . . is implicit in NEPA.") — *Haaland, D.D.C., 2024*
- **1** ("The use of obscure acronyms, sometimes those made up for a particular case, is an aggravating development of the last twenty years. Even with a glossary, a judge finds himself or herself constantly looking back to recall what an acronym means.") — *Molokai New Energy Partners LLC v. Maui Electric Company, Limited, D. Haw., 2021*
- **1** ("NEPA itself does not mandate particular results." (internal quotation marks omitted)) — *Norton, D.D.C., 2017*
- **1** ("FERC's NEPA review ... did not consider any of the other upgrade projects, even though the first upgrade project was under construction during FERC's review ... and even though the applications for the second and fourth upgrade projects were pending before FERC[.]") — *FERC, D.C. Cir., 2014*

↑

18. United States v. Virgil Bailey, Jr.

924 F.3d 1289, 5th Cir., 2019
In 2020-24: cited by 20 decisions (appellate) · in all: 48 · 2021–2025: 46 · weight in the sub-cluster 17
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 48 of 48 citing opinions, filed 2020–2026: status now, not the year it changed)
Role changed 2025-29: likely successor Diaz, 116 F.4th 458 (2024) (50% of the 28 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: United States v. Charles O. Kallestad (cosine 0.49, 8 both); Dickson (cosine 0.42, 7 both); Bond (cosine 0.03, 7 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (denying motion for summary affirmance but nonetheless affirming the district court's judgment) — *Flores, 5th Cir., 2025*
- **1** (dispensing with full briefing and affirming) — *Andrade-Hernandez, 5th Cir., 2024*
- **1** (denying summary affirmance, dispensing with further briefing, and affirming) — *Cook, 5th Cir., 2022*
- **1** (holding that an alleged error in determining an offense level before subtracting three levels for acceptance of responsibility is not mathematical, but instead is a challenge to "the district court's application of the Guidelines") — *Farris, 5th Cir., 2024*

↑

19. United States v. Darius Thomas

969 F.3d 583, 6th Cir., 2020
In 2020-24: cited by 19 decisions (appellate) · in all: 22 · 2021–2025: 18 · weight in the sub-cluster 16
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 22 of 22 citing opinions, filed 2020–2024: status now, not the year it changed)
Travels with: United States v. Willie Garth (cosine 0.36, 10 both); United States v. John Booker, Jr. (cosine 0.17, 5 both); Havis (cosine 0.16, 7 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (holding the same for Michigan state offense) — *United States v. Keith A. Penn, 11th Cir., 2023*

↑

20. Currin v. Wallace

306 U.S. 1, SCOTUS, 1939
In 2020-24: cited by 9 decisions (appellate) · in all: 312 · 2021–2025: 10 · weight in the sub-cluster 15

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 368 citing opinions, filed 1977–2024: status now, not the year it changed)
Travels with: Adkins (cosine 0.37, 8 both); Carter (cosine 0.30, 7 both); Sierra Club v. Lynn (cosine 0.14, 6 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (" Congress has merely placed a restriction upon its own regulation by withholding its operation as to a given market 'unless two-thirds o f the growers voting favor it.*") — *The Constitutional Separation of Powers Between the President and Congress, OLC, 1996*
- **2** (upholding a provision making federal regulation of tobacco auctions applicable only in markets where two-thirds of growers favored regulation) — *Grendel's Den, Inc. v. Herbert N. Goodwin, Cambridge License Commission, Grendel's Den, Inc. v. Herbert N. Goodwin, 1st Cir., 1981*
- **1** (allowing Congress to condition agency action on private approval) — *State of TX v. USA, 5th Cir., 2021*
- **1** ("So far as growers of tobacco are concerned, the required referendum does not involve any delegation of legislative authority.") — *Consumers' Research v. FCC, 5th Cir., 2024*
- **1** (upholding law permitting tobacco regulations to take effect only if approved by two-thirds of growers in a pre- scribed referendum) — *Altering Puerto Rico's Relationship with the United States Through Referendum, OLC, 2012*
- **1** (upholding a statute that provided agency could not take particular action unless two-thirds of industry participants favored it) — *Association of American Railroads v. Department of Transportation, D.D.C., 2012*
- **1** (upholding statute requiring supermajority vote by partici pants in regulated activity before executive branch could take certain action) — *The Constitutional Separation of Powers Between the President and Congress, OLC, 1996*
- **1** (upholding statute authorizing Secretary of Agriculture to regulate marketing of tobacco if two-thirds of growers in a market requested, by referendum, such action) — *State v. A.L.I.V.E. Voluntary, Alaska, 1980*

↑

21. Estate of Kim Ex Rel. Alexander v. Coxe

2013 Alas. LEXIS 18, Alaska, 2013
In 2020-24: cited by 13 decisions (appellate) · in all: 40 · 2021–2025: 17 · weight in the sub-cluster 14
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 46 of 46 citing opinions, filed 2013–2025: status now, not the year it changed)
Travels with: Janet S. Delana, Individually, and as the Wife of Deceden... (cosine 0.54, 7 both); City of New York v. Beretta U.S.A. Corp. (cosine 0.23, 5 both); Ileto (cosine 0.20, 6 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (remanding for further proceedings when trial court's summary judgment ruling relied on argument first made at oral argument and other party had no opportunity to respond) — *Alexandra Werba v. Association of Village Council Presidents, Alaska, 2021*
- **3** ("reading a general negligence exception into the statute would make the negligence per se and negligent entrustment exceptions a surplusage") — *Janet S. Delana, Individually, and as the Wife of Decedent Tex C. Delana v. CED Sales, Inc. d/b/a Odessa Gun & Pawn, Charles Doleshal, and Derrick Dady, Mo., 2016*
- **1** (state law permits negligent entrustment claim against a firearms seller) — *Janet S. Delana, Individually, and as the Wife of Decedent Tex C. Delana v. CED Sales, Inc. d/b/a Odessa Gun & Pawn, Charles Doleshal, and Derrick Dady, Mo., 2016*
- **1** ("Congress found certain types of tort suits threatened constitutional rights, destabilized industry, and burdened interstate commerce") — *Gustafson, M. v. Springfield 282 A.3d 739, Pa. Super. Ct., 2022*
- **1** ("The PLCAA expressly preempts state common law by requiring that state courts immediately dismiss qualified civil liability actions.") — *Gustafson, M. v. Springfield, Inc., Aplt., Pa., 2025*
- **1** ("The PLCAA does not compel Alaska's legislature to enact any law, nor does it commandeer any branch of Alaska's government." (emphasis in original)) — *Gustafson, M. v. Springfield, Inc., Aplt., Pa., 2025*
- **1** (reliance on congressional statement of purpose would "elevate the PLCAA's preamble over the substantive portion's clear language.") — *Janet S. Delana, Individually, and as the Wife of Decedent Tex C. Delana v. CED Sales, Inc. d/b/a Odessa Gun & Pawn, Charles Doleshal, and Derrick Dady, Mo., 2016*
- **1** (following other courts in concluding that plaintiffs' due process rights were not violated) — *Gustafson, M. v. Springfield 282 A.3d 739, Pa. Super. Ct., 2022*

↑

22. Sierra Club v. Lynn

502 F.2d 43, 5th Cir., 1974
In 2020-24: cited by 8 decisions (appellate) · in all: 24 · 2021–2025: 9 · weight in the sub-cluster 14
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 24 of 24 citing opinions, filed 1974–2026: status now, not the year it changed)
Travels with: State of TX v. USA (cosine 0.30, 6 both); Association of American Railroads v. United States Depart... (cosine 0.19, 5 both); Adkins (cosine 0.15, 7 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (holding that total delegation or "rubber stamping" is impermissible) — *State of TX v. USA, 5th Cir., 2021*
- **1** (holding that an agency "fully complied with NEPA" despite finding that its "treatment of alternatives was less than exhaustive") — *Duffy, S.D. Miss., 2026*

↑ **23. New York Central Securities Corporation v. United States**
287 U.S. 12, SCOTUS, 1932
In 2020-24: cited by 8 decisions (appellate) · in all: 215 · 2021–2025: 11 · weight in the sub-cluster 14
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 268 citing opinions, filed 1968–2025: status now, not the year it changed)
Travels with: NBC v. USA (cosine 0.11, 7 both); American Power & Light Co. v. Securities & Exchange Commi... (cosine 0.08, 7 both); J. W. Hampton, Jr., & Co. v. United States (cosine 0.08, 7 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (upholding delegation to ICC to authorize the consolidation of carriers where it finds that such consolidation would be in "the public interest") — *Milk Industry Foundation v. Glickman, D.C. Cir., 1998*
- **7** (upholding delegation to Interstate Commerce Commission to authorize mergers of railroad companies if it finds them "in the public interest") — *United States v. Barry L. Brown, 11th Cir., 2004*
- **2** (the Commission is "not limited to conditions proposed or favored by the carriers")
- **1** (power given to the Interstate Commerce Commission to regulate the ownership and control of railroad systems under a "public interest" standard) — *Armacost, Md., 1987*
- **1** (requiring the Interstate Commerce Commission to consider criteria before permitting acquisition of a railroad in the "public interest," including the "adequacy of transportation service," "economy and efficiency," and the "best use of transportation facilities") — *Allstates Refractory Contractors v. Julie Su, 6th Cir., 2023*
- **1** (upholding the statutory delegation of authority to the ICC to approve railroad consolidations so long as the mergers are in the "public interest") — *Gary Beecher Delores Beecher v. Commissioner of Internal Revenue, 9th Cir., 2007*

↑ **24. Porto Rico Railway, Light & Power Co. v. Mor**
253 U.S. 345, SCOTUS, 1920
In 2020-24: cited by 24 decisions (appellate) · in all: 170 · 2021–2025: 34 · weight in the sub-cluster 14
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 190 citing opinions, filed 2011–2025: status now, not the year it changed)
Role changed 2010-14: likely successor McDaniel, 631 F.3d 1204 (2011) (53% of the 32 decisions citing this case in 2010-14 also cite it). (co-citation, not the text)
Travels with: Paroline (cosine 0.12, 15 both); Barnhart (cosine 0.05, 13 both); Lockhart (cosine 0.05, 8 both)
How later courts describe it (29 parentheticals; groups of similar wording, largest first; other courts' words)

- **21** ("When several words are followed by a clause which is applicable as much to the first and other words as to the last, the natural construction of the language demands that the clause be read as applicable to all") — *Ron Pair Enterprises, SCOTUS, 1989*
- **3** (finding "[n]o reason" why the clause at issue "should not be read as applying to" all preceding phrases) — *Vicky, 8th Cir., 2013*
- **2** (noting that a prepositive or postpostive modifier of a series may apply to all of the items in that series) — *Wong v. Minnesota Department of Human Services, 8th Cir., 2016*
- **1** (reading the term "proximate result" in conjunction with a preceding list) — *Dawn M. Jones v. Golden Rule Insurance Company, 11th Cir., 2018*
- **1** (finding that the clause "not domiciled in Port Rico" applied "to the entire phrase 'citizens or subjects of a foreign state or states, or citizens of a state, territory, or district of the United States not domiciled in Porto Rico.'") — *Garren, D. Or., 2019*
- **1** (finding that a clause following a series of words applies equally to all of the words in the series) — *Karen Rompalo v. Commonwealth of Virginia, Va. Ct. App., 2020*

↑ **25. Wages and White Lion Invst v. FDA**
41 F.4th 427, 5th Cir., 2022
In 2020-24: cited by 8 decisions (appellate) · in all: 12 · 2021–2025: 12 · weight in the sub-cluster 14
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 12 of 12 citing opinions, filed 2022–2025: status now, not the year it changed)
Travels with: FDA (cosine 0.28, 7 both); FDA (cosine 0.24, 5 both); FDA (cosine 0.21, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (noting the "FDA had already explained" that limiting products to "age-gated vape and specialty tobacco shops and through age-gated online sales" "do not work") — *FDA, 4th Cir., 2022*
- **2** (concluding that even if the FDA inadequately reviewed petitioners' marketing plans, the error was harmless because petitioners failed to "show that they would have received authorization had [the] FDA considered the[] plans") — *FDA, 3rd Cir., 2022*
- **1** (merits panel denying the petition for review) — *FDA, 4th Cir., 2022*

↑ **26. Liquid Labs LLC v. FDA**
52 F.4th 533, 3rd Cir., 2022
In 2020-24: cited by 8 decisions (appellate) · in all: 11 · 2021–2025: 11 · weight in the sub-cluster 13
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 11 of 11 citing opinions, filed 2022–2026: status now, not the year it changed)

Travels with: FDA (cosine 0.60, 8 both); FDA (cosine 0.19, 6 both); FDA (cosine 0.15, 6 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (declining to review an applicant's marketing plan "does not change the result because there is no indication that the plan would have made up for the deficiencies the FDA identified in [petitioner's] applications") — *FDA, 4th Cir., 2022*
- **1** ("[T]he FDA did not "reverse course" and newly require randomized controlled trials and/or longitudinal cohort studies, and therefore did not upset Liquid Labs' reliance interests, provide inadequate notice, or act arbitrarily and capriciously.") — *FDA, 5th Cir., 2024*
- **1** ("We decline to 'reach arguments raised for the first time in a reply brief.'") — *VINTZILEOS, D.N.J., 2025*
- **1** (upholding the FDA's denial of approval to market an open- system e-liquid because flavors appealed to children regardless of the device type) — *FDA, 10th Cir., 2024*
- **1** (finding that "the statute and June 2019 Guidance are clear about comparative analysis") — *Fda, 9th Cir., 2023*

↑

27. South Carolina Public Service Authority v. Federal Energy Regulatory Commission

762 F.3d 41, D.C. Cir., 2014
In 2020-24: cited by 27 decisions (appellate) · in all: 67 · 2021–2025: 41 · weight in the sub-cluster 13
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 70 of 70 citing opinions, filed 2014–2026: status now, not the year it changed)
Role changed 2020-24: likely successor FERC, 898 F.3d 1254 (2018) (52% of the 27 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: FERC (cosine 0.16, 14 both); FERC (cosine 0.07, 6 both); Midwest Iso Transmission Owners v. Federal Energy Regulat... (cosine 0.07, 7 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (noting that Order 1000 was based on market competition the- ory and re?ected a reasoned decision that rights of ?rst re- fusal would lead to "unjust" or "unreasonable" practices) — *LSP Transmission Holdings II, LLC v. Northern Indiana Public Service Company, 7th Cir., 2025*
- **2** ("[N]othing requires the Commission to ensure full or perfect cost causation") — *FERC, 5th Cir., 2016*
- **2** (describing North American Electric Reliability Corporation as "the [electric] industry's self-regulatory organization" pursuant to the Federal Power Act) — *Elec. Reliability Council of Tex., Inc. v. Panda Power Generation Infrastructure Fund, LLC, Tex. App., 2018*
- **2** (explaining that the reciprocity condition requires "both transmission planning and cost allocation" from "utilities that choose to seek Commission-jurisdictional transmission service") — *FERC, 5th Cir., 2016*
- **2** (stating that FERC has "considerable latitude in developing a methodology responsive to its regulatory challenge" (citations and internal quotation marks omitted)) — *FERC, D.C. Cir., 2017*
- **1** (providing overview of electric industry) — *FERC, D.C. Cir., 2018*
- **1** ("States retain control over the siting and approval of transmission facilities.") — *Transource Pennsylvania LLC v. Gladys Brown Dutrieuille, 3rd Cir., 2022*
- **1** ("It is established that a litigant has no right to a petit jury which contains members of his race or which fairly represents a cross-section of the community.") — *Watwood, E.D. Va., 2024*

↑

28. Big Time Vapes, Incorporated v. FDA

963 F.3d 436, 5th Cir., 2020
In 2020-24: cited by 15 decisions (appellate) · in all: 28 · 2021–2025: 25 · weight in the sub-cluster 13
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 28 of 28 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: FDA (cosine 0.24, 5 both); FDA (cosine 0.15, 5 both); FDA (cosine 0.08, 6 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (finding, contrary to the argument raised by the ENDS plaintiffs and now Swisher, that the TCA's various purposes are not "in [] tension with each other" and instead boil down to "(1) protecting public health and (2) preventing young people from accessing (and becoming addicted to) — *Swisher International, Inc. v. United States Food and Drug Administration, D.D.C., 2024*
- **2** ("In the TCA, Congress delegated to the Secretary the power to 'deem' which tobacco products should be subject to the Act's mandates.") — *FDA, 5th Cir., 2021*
- **1** (upholding final rule against nondelegation-doctrine challenge) — *Vapor Unlimited LLC v. U.S. Food and Drug Administration, 11th Cir., 2022*
- **1** ("Recall that it is 'constitutionally sufficient if Congress [(1)] clearly delineates [its] general policy, [(2)] the public agency which is to apply it, and [(3)] the boundaries of th[at] delegated authority.'" (alterations in original) — *Traffic Jam Events v. FTC, 5th Cir., 2025*
- **1** (statutory limitation on class of things to be regulated "ha[s] the effect of constricting the [agency's] discretion to a narrow and defined category." (quoting United States v. Ambert, 561 F.3d 1202, 1214 (11th Cir. 2009))) — *Leevin Taitano Camacho, Attorney General of Guam v. Dafne M. Shimizu, Director, Guam Department of Revenue and Taxation, Lourdes A. Leon Guerrero, Governor of Guam, Atlas Amusement Enterprises, Inc., Darryl R. Styles d/b/a D&D Games, Guam Music, Inc., and DOES 1-10, Guam, 2021*
- **1** ("The PMTA process is onerous, requiring manufacturers to gather significant amounts of information.") — *FDA, 5th Cir., 2021*
- **1** ("[B]e- cause the plaintiffs haven't stated a claim, they cannot show that the district court abused its discretion in denying

them a preliminary injunction.") — *Sambrano, 5th Cir., 2022*

1 (holding that the FDA's deeming authority did not violate the nondelegation doctrine) — *Kealani Distribution LLC v. Food and Drug Administration, E.D. Tex., 2025*

↑

29. Douglas Carlson v. PRC

938 F.3d 337, D.C. Cir., 2019
In 2020-24: cited by 22 decisions (appellate) · in all: 44 · 2021–2025: 32 · weight in the sub-cluster 12
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 44 of 44 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.09, 5 both); Encino Motorcars (cosine 0.04, 9 both); State Farm (cosine 0.03, 14 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("[W]hen the statutory text is clear, legislative history should not be used to muddy its meaning.") — *Gannett Satellite Information Network, LLC v. U.S. Department of Justice, D.D.C., 2023*

1 ("[I]n expounding a statute, we must not be guided by a single sentence . . . but look to the provisions of the whole law." (quoting Del. Dep't of Nat. Res. & Envtl. Control v. EPA, 895 F.3d 90, 97 (D.C. Cir. 2018))) — *DOI, D.C. Cir., 2021*

1 ("Even an agency's consistent and longstanding interpretation, if contrary to statute, can be overruled.") — *Mnuchin, D.D.C., 2020*

1 ("[N]o amount of historical consistency can transmute an unreasoned statutory interpretation into a reasoned one." (internal quotations omitted)) — *FDA, D.C. Cir., 2021*

1 ("These public comments called into question the justifications offered by the Postal Service, and therefore the Commission should have evaluated [their merits].") — *NA of Mftr v. SEC, 5th Cir., 2024*

1 (agency violates the arbitrary-and-capricious standard "if it fails to respond to 'significant points' and consider 'all relevant factors' raised by the public comments" (citation omitted)) — *Huawei Tech USA v. FCC, 5th Cir., 2021*

1 (vacating the Commission's order in part and noting that the court could leave in place the portions of the order that "[were] not interconnected" to the offending parts of the rule and "analyzed [] independently") — *FERC, 6th Cir., 2023*

1 (invalidating an increase in the price of stamps, in part, on the basis of comments from Douglas Carlson, "a postal customer and watchdog") — *Oakbrook Land Holdings, LLC, William Duane Horton, Tax Matters Partner v. Commissioner, Tax Ct., 2020*

↑

30. Home Box Office, Inc. v. Federal Communications Commission and United States of America, Professional Baseball, Intervenors

567 F.2d 9, D.C. Cir., 1977
In 2020-24: cited by 13 decisions (appellate) · in all: 376 · 2021–2025: 36 · weight in the sub-cluster 12
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 402 citing opinions, filed 2007–2026: status now, not the year it changed)
Role changed 1985-89: likely successor State Farm, 463 U.S. 29 (1983) (35% of the 48 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Public Citizen, Inc., Aviation Consumer Action Project, a... (cosine 0.28, 5 both); Vermont Yankee Nuclear Power Corp. v. Natural Resources D... (cosine 0.11, 9 both); Bowman Transp (cosine 0.03, 6 both)
How later courts describe it (25 parentheticals; groups of similar wording, largest first; other courts' words)

4 ("[A] 'regulation perfectly reasonable and appropriate in the face of a given problem may be highly capricious if that problem does not exist' ") — *Turner Broadcasting System, Inc. v. Federal Communications Commission, SCOTUS, 1994*

3 (holding that "the opportunity to comment is meaningless unless the agency responds to significant points raised by the public.) — *Goldentyer, D. Maryland, 2023*

2 ("[W]e recognize that informal contacts between agencies and the public are the 'bread and butter' of the process of administration and are completely appropriate so long as they do not frustrate judicial review or raise serious questions of fairness.") — *Iowa Farm Bureau Federation, Iowa Renewable Fuels Association, and Iowa Water Environment Association, Iowa, 2014*

2 ("[A]n essential precondition of [broadcast] theory–physical interference and scarcity requiring an umpiring role for government–is absent.") — *Preferred Communications, Inc. v. City Of Los Angeles, 9th Cir., 1985*

1 (purpose of FCC regulation was content-neutral) — *Carlson, W.D. Mich., 1985*

1 (per 36 ALTERA CORP. V. CIR curiam) — *Cir, 9th Cir., 2019*

1 ("[W]here, as here, an agency justifies its actions by reference only to information in the public file while failing to disclose the substance of other relevant information that has been presented to it, a reviewing court cannot presume that the agency has acted properly[.]") — *'O Haleakalâ v. Board of Land & Natural Resources, Haw., 2016*

1 (criticizing agency's conclusory statements and superficial inquiry) — *Sierra Club v. Douglas M. Costle, Administrator of the Environmental Protection Agency, National Coal Association, Alabama Power Company, Intervenors, D.C. Cir., 1981*

↑

31. State of TX v. USA

987 F.3d 518, 5th Cir., 2021
In 2020-24: cited by 11 decisions (appellate) · in all: 22 · 2021–2025: 22 · weight in the sub-cluster 12
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 22 of 22 citing opinions, filed 2021–2026: status now, not the year it changed)

Travels with: Sierra Club v. Lynn (cosine 0.30, 6 both); Adkins (cosine 0.12, 6 both); National Horsemen's Benevolent v. Black (cosine 0.10, 5 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (applying Larson in the federal context) — *Leal, 5th Cir., 2022*
- **1** ("A general delegation of decision-making authority to a federal administrative agency does not, in the ordinary course of things, include the power to subdelegate that authority beyond federal subordinates.") — *State of TX v. USA, 5th Cir., 2021*
- **1** (noting that agencies are permitted to "reasonably condition" their actions "on an outside party's determination of some issue") — *Consumers' Research v. FCC, 5th Cir., 2023*

↑

32. Midwest Iso Transmission Owners v. Federal Energy Regulatory Commission, Public Service Commission of the Commonwealth of Kentucky, Intervenors

373 F.3d 1361, D.C. Cir., 2004
In 2020-24: cited by 17 decisions (appellate) · in all: 78 · 2021–2025: 21 · weight in the sub-cluster 12
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 88 of 88 citing opinions, filed 2004–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.13, 7 both); Morgan Stanley (cosine 0.09, 8 both); New York (cosine 0.08, 5 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (explaining that placing control of transmission lines in RTOs was expected to promote competition and overcome inefficiencies) — *FERC, D.C. Cir., 2016*

↑

33. Old Dominion Elec. Coop. v. Fed. Energy Regulatory Comm'n

898 F.3d 1254, D.C. Cir., 2018
In 2020-24: cited by 18 decisions (appellate) · in all: 20 · 2021–2025: 19 · weight in the sub-cluster 12
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 20 of 20 citing opinions, filed 2018–2025: status now, not the year it changed)
Travels with: FERC (cosine 0.16, 14 both); Midwest Iso Transmission Owners v. Federal Energy Regulat... (cosine 0.13, 7 both); FERC (cosine 0.10, 7 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (discussing FERC order that allocated costs for new transmission lines built in Virginia to numerous utilities located throughout the states in the interstate grid) — *NextEra, 5th Cir., 2022*
- **1** ("[T]he cost- causation principle focuses on project benefits, not on how particular planning criteria were developed.") — *FERC, D.C. Cir., 2022*
- **1** ("For decades, the Commission and the courts have understood [the FPA's just-and-reasonable] requirement to incorporate a cost- causation principle." (internal quotation marks omitted)) — *FERC, D.C. Cir., 2022*

↑

34. Roberto Hernandez-Serrano v. William Barr

981 F.3d 459, 6th Cir., 2020
In 2020-24: cited by 11 decisions (appellate) · in all: 14 · 2021–2025: 14 · weight in the sub-cluster 11
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 14 of 14 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Yeison Meza Morales v. William Barr (cosine 0.17, 8 both); Jesus Zuniga Romero v. William Barr (cosine 0.15, 6 both); W-Y-U (cosine 0.09, 7 both)
No parentheticals.

↑

35. Downhole Pipe & Equipment, L.P. v. United States

776 F.3d 1369, Fed. Cir., 2015
In 2020-24: cited by 13 decisions (appellate) · in all: 82 · 2021–2025: 28 · weight in the sub-cluster 11
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 84 of 84 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Solarworld Americas, Inc. v. United States, Yingli Green ... (cosine 0.52, 11 both); Nan Ya Plastics Corporation v. United States (cosine 0.09, 7 both); Zhejiang Dunan Hetian Metal Co., Ltd. v. United States (cosine 0.09, 5 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** (explaining that the court's task is not to reweigh the evidence) — *Jacobi Carbons AB v. United States, Ct. Intl. Trade, 2019*
- **2** (Commerce "appropriately evaluated each of the alternatives on the record and provided an ample explanation as to why it should be rejected") — *ACProducts, Inc. v. United States, Ct. Intl. Trade, 2026*
- **2** (explaining that "[i]t is not for this court on appeal to reweigh the evidence or to reconsider questions of fact anew" (internal quotation marks and citation omitted)) — *Matra Americas, LLC v. United States, Ct. Intl. Trade, 2024*
- **1** (endorsing the use of a "primary input" to calculate surrogate value) — *Jiaxing Brother Fastener Co. v. United States, Fed. Cir., 2016*
- **1** (rejecting that an "aberrantly high" value is "outside the bounds of commercial reality," and holding that the value was "the best evidence available on the record") — *Jiaxing Brother Fastener Co. v. United States, Fed. Cir., 2016*

↑

36. Skinner v. Mid-America Pipeline Co.

490 U.S. 212, SCOTUS, 1989
In 2020-24: cited by 8 decisions (appellate) · in all: 83 · 2021–2025: 13 · weight in the sub-cluster 11
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 96 of 96 citing opinions, filed 1989–2025: status now, not the year it changed)
Travels with: J. W. Hampton, Jr., & Co. v. United States (cosine 0.11, 5 both); NBC v. USA (cosine 0.08, 5 both); Yakus (cosine 0.08, 5 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (declining to apply "a different and stricter nondelegation doctrine in cases where Congress delegates discretionary authority to the Executive under its taxing power") — *Mayo Foundation, SCOTUS, 2011*
- **3** (Congress may delegate authority under the taxing power) — *Loving, SCOTUS, 1996*
- **2** (upholding delegation of authority to establish and collect pipeline safety fees) — *Byrd, D.D.C., 1997*
- **2** (characterizing Section 7005 of Consolidated Omnibus Budget Act of 1985, codified at 42 U.S.C.App. Sec. 1682a, which directs Secretary of Transportation to collect "pipeline safety user fees" to fund administrative costs, as one example of several self-financing measures) — *United States v. L. Robert Frame, Sr. And Vintage Sales Stables, Inc., 3rd Cir., 1989*
- **2** (requiring that "Congress provide[ ] an administrative agency with standards guiding its actions such that a court could ' "ascertain whether the will of Congress has been obeyed" ' ") — *Wileman Bros. & Elliott, Inc. v. Leroy Giannini, 9th Cir., 1990*
- **1** (statute directing Secretary of Transportation to establish pipeline safety user fees " 'sufficient to meet the costs of [specified] activities' " but not " 'exceed[ing] 105 percent of the aggregate of appropriations made for such fiscal year for activities to be funded by such fees' ") — *Gundy, SCOTUS, 2019*
- **1** (rules and regulations concerning the Internal Revenue Code are "without doubt the result of entirely appropriate delegations of discretionary authority by Congress") — *Michael Balice v. Commissioner of Internal Reven, 3rd Cir., 2016*
- **1** ("From its earliest days to the pre- sent, Congress, when enacting tax legislation," has at times delegated "discretionary authority" to the Executive) — *FCC v. Consumers' Research, SCOTUS, 2025*

↑

37. Holly v. Auld

450 So. 2d 217, Fla., 1984
In 2020-24: cited by 43 decisions (appellate) · in all: 690 · 2021–2025: 43 · weight in the sub-cluster 11
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 735 citing opinions, filed 2018–2025: status now, not the year it changed)
Travels with: A. R. Douglass, Inc. v. McRainey, as Admrx. (cosine 0.27, 10 both); Daniels (cosine 0.03, 5 both); Robinson (cosine 0.02, 6 both)
How later courts describe it (47 parentheticals; groups of similar wording, largest first; other courts' words)

- **11** (when the language of a statute is clear and unambiguous no statutory interpretation and construction is necessary; the statute is given its plain and obvious meaning) — *Ago, Fla. Att'y Gen., 1988*
- **5** (well settled that mootness does not destroy appellate court's jurisdiction when questions raised are of great public importance or likely to recur) — *Kenny, Fla., 1998*
- **5** (court has no power to limit express terms of statute or its reasonable and obvious implications) — *Delgado, Fla. Dist. Ct. App., 1997*
- **4** ("The preamble and language of [an] enactment readily reveal[s] the legislature's intent and its policy reasons.") — *Hopkins, Fla., 2012*
- **4** (holding that "a literal interpretation of the language of a statute need not be given when to do so would lead to an unreasonable or ridiculous conclusion") — *Garmany, Fla. Dist. Ct. App., 2025*
- **3** (stating that the legislature "deemed it wise to encourage a degree of self-regulation by the medical profession through peer review and evaluation") — *JOSEPH CASTELLANO, M. D. v. DAVID HALPERN, M. D. AND WEST FLORIDA-MHT, LLC D/ B/ A HCA FLORIDA SOUTH TAMPA HOSPITAL, Fla. Dist. Ct. App., 2023*
- **2** ("Neither the language of the statute, nor the legislative intent discernable therefrom, admits of an interpretation which would limit the discovery privilege.") — *Antoine E. McCloud v. State of Florida, Fla., 2018*
- **2** (not court's duty or prerogative to modify or shade clearly expressed legislative intent in order to uphold policy favored by the court) — *Limbaugh, Fla. Dist. Ct. App., 2004*

↑

38. Guam v. United States

593 U.S. 310, SCOTUS, 2021
In 2020-24: cited by 11 decisions (appellate) · in all: 27 · 2021–2025: 27 · weight in the sub-cluster 10
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 27 of 27 citing opinions)
Travels with: UAL (cosine 0.31, 5 both); Rimini Street, Inc. v. Oracle USA, Inc. (cosine 0.22, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (rejecting effort to try to "avoid surplus- age at all costs" (citation omitted)) — *United States v. Clarence Bonds, 7th Cir., 2024*
- **2** (interpreting statutory provision "within the specific context of" the entire subsection (internal citation omitted and formatting modified)) — *Christopher Beaty, Jr. v. Fair Acres Geriatric Center, D.C. Cir., 2022*

2 (noting that "a federal contribution action is virtually always a creature of a specific statutory regime") — *Schmitendorf, D. Kan., 2024*

1 ("A contribution suit does not exist in a vacuum, but rather is a tool for apportioning the burdens of a predicate 'common liability' among the responsible parties.") — *Cyprus Amax Minerals Company v. TCI Pacific Communications, 10th Cir., 2022*

1 (rejecting e?ort to try to "avoid surplusage at all costs" (citation omit- ted)) — *Donna Schutte v. Ciox Health, LLC, 7th Cir., 2022*

1 (noting, in a CERCLA case, that seeking "contribution" means seeking "money from another responsible individual") — *Schmitendorf, D. Kan., 2024*

1 (noting that "[a] person who has resolved its liability to the United States or a State in an administrative or judicially approved settlement shall not be liable for claims for contribution regarding matters addressed in the settlement" (alteration in original) — *The Brooklyn Union Gas Company v. Exxon Mobil Corporation, E.D.N.Y, 2021*

↑

39. National Horsemen's Benevolent v. Black

53 F.4th 869, 5th Cir., 2022
In 2020-24: cited by 9 decisions (appellate) · in all: 21 · 2021–2025: 21 · weight in the sub-cluster 10
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 21 of 21 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: Adkins (cosine 0.14, 7 both); Department of Transportation v. Association of American R... (cosine 0.13, 5 both); State of TX v. USA (cosine 0.10, 5 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("If the private entity does not function subordinately to the supervising agency, the delegation of power is unconstitutional.") — *Navarro, W.D. Va., 2025*

2 (criticizing a scheme that gave "rulemaking power" to a private entity) — *Consumers' Research v. Federal Communications Commission, 11th Cir., 2023*

2 (recognizing that the SEC-FINRA model has been uniformly upheld against private non-delegation challenges) — *John A. Mansour v. Morgan Stanley, E.D. Tex., 2025*

1 (discussing the evolution of the private nondelegation doctrine) — *Consumers' Research v. FCC, 5th Cir., 2023*

1 ("[I]f people outside government could wield the government's power[ ]then the government's promised accountability to the people would be an illusion.") — *Consumers' Research v. FCC, 5th Cir., 2024*

1 (reaching a similar conclusion concerning rulemaking power under an old version of the statute)

1 (noting that the Horseracing Integrity and Safety Authority's enforcement powers included the power to issue subpoenas) — *Navarro, W.D. Va., 2025*

↑

40. Federal Trade Commission v. Mandel Bros.

359 U.S. 385, SCOTUS, 1959
In 2020-24: cited by 14 decisions (appellate) · in all: 269 · 2021–2025: 31 · weight in the sub-cluster 10
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 317 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: Gustafson (cosine 0.13, 5 both); Brown & Williamson (cosine 0.10, 8 both)
How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

10 (holding that statutes should be interpreted so as to "fit, if possible, all parts into an harmonious whole") — *Raul Morales-Izquierdo v. Alberto R. Gonzales, Attorney General, 9th Cir., 2007*

3 (applying the rule of the last antecedent without suggesting that its application was urged by any party) — *Rowan Companies, Inc. v. Wilmington Trust, Tex. App.-Houston [14th Dist.], 2010*

2 (holding that the title of a statutory provision "though not limiting the plain meaning of the text, is nonetheless a useful aid in resolving an ambiguity") — *Barry, C.A.A.F., 2018*

1 (under federal law, titles of statutes indicate congressional intent) — *Garcia, Kan., 2017*

1 ("[The] limiting clause is to be applied only to the last antecedent.") — *Holt, A.F.C.C.A., 2023*

1 ("It is axiomatic that organizational associations, including corporations, act only through human agency." (citing Reich v. Sea Sprite Boat Co., 50 F.3d 413, 417 (7th Cir. 1995))) — *TransUnion, N.D. Ill., 2022*

1 ("The Title of the act . . . is . . . a useful aid.") — *ROSEDALE AND ROSEHILL CEMETERY ASSOCIATION v. TOWNSHIP OF READINGTON, D.N.J., 2020*

1 (explaining that the phrase "who is engaged in dealing commercially in fur products or furs" in 15 U.S.C. § 69(f) modifies only "any other person" and not "purchaser, consignee, factor, bailee, correspondent, or agent") — *Pichler, E.D. Pa., 2005*

↑

41. Aposhian v. Wilkinson

989 F.3d 890, 10th Cir., 2021
In 2020-24: cited by 10 decisions (appellate) · in all: 14 · 2021–2025: 14 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 14 of 14 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Aposhian (cosine 0.28, 5 both); ATF (cosine 0.18, 6 both); Bass (cosine 0.03, 5 both)

How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("[W]hen a party chooses not to pursue a legal theory potentially available to it, we generally take the 27 Case: 20-51016 Document: 00516601811 Page: 28 Date Filed: 01/06/2023 No. 20-51016 view that it is 'inappropriate' to pursue that theory in our opinions.") — *Cargill, 5th Cir., 2023*
- **1** ("If the agency disavows any reliance on Chevron, who are we to second-guess it?") — *Cargill, 5th Cir., 2023*
- **1** ("When an agency plays pinball with a statute's interpretation, as the ATF has here, fair notice cannot be said to exist.") — *Cargill, 5th Cir., 2023*

↑

42. Harrison v. PPG Industries, Inc.

446 U.S. 578, SCOTUS, 1980
In 2020-24: cited by 15 decisions (appellate) · in all: 333 · 2021–2025: 27 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 381 citing opinions, filed 2011–2026: status now, not the year it changed)
Role changed 1985-89: likely successor Chevron, 467 U.S. 837 (1984) (30% of the 37 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Ali (cosine 0.14, 9 both); United States v. Gonzales (cosine 0.10, 5 both)
How later courts describe it (93 parentheticals; groups of similar wording, largest first; other courts' words)

- **11** ("[I]t would be a strange canon of statutory construction that would require Congress to state in committee reports or elsewhere in its deliberations that which is obvious on the face of a statute") — *Whitfield, SCOTUS, 2005*
- **10** (stating that courts generally "cannot, in the manner of Sherlock Holmes, pursue the theory of the dog that did not bark.") — *In Re Vanguard Airlines, Inc., Bankr. W.D. Mo., 2003*
- **8** ("The most obvious advantage of direct review by a court of appeals is the time saved compared to review by a district court, followed by a second review on appeal") — *Lorion, SCOTUS, 1985*
- **8** (holding that the principle of statutory construction of ejusdem generis is only an instrumentality for ascertaining the correct meaning of words when there is uncertainty) — *Smith & Wesson Corp. v. City of Gary, Ind. Ct. App., 2007*
- **7** (interpreting what is a "final action" by the Environmental Protection Agency under the Clean Air Act) — *Omnipoint Holdings, Inc. v. City of Cranston, 1st Cir., 2009*
- **5** (refusing to apply ejusdem generis to narrow the phrase "any other final action" because expansive language was clear and a narrow reading unsupported by legislative history) — *Ohio Association Of Community Action Agencies v. Federal Energy Regulatory Commission, D.C. Cir., 1981*
- **4** (reviewing court may remand if unable to exercise informed judicial review because of inadequate administrative record) — *Brady, E.D. Tex., 1999*
- **3** (noting that the purpose of a similar review provision, section 307(b)(1) of the Clean Air Act, 42 U.S.C. Sec. 7607(b)(1), is "to provide prompt pre-enforcement review of EPA action")

↑

43. EarthReports, Inc. v. Federal Energy Regulatory Commission

828 F.3d 949, D.C. Cir., 2016
In 2020-24: cited by 13 decisions (appellate) · in all: 40 · 2021–2025: 23 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 42 of 42 citing opinions, filed 2016–2025: status now, not the year it changed)
Role changed 2020-24: likely successor FERC, 925 F.3d 510 (2019) (38% of the 13 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: FERC (cosine 0.12, 9 both); FERC (cosine 0.10, 5 both); Nevada v. Department of Energy (cosine 0.09, 7 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (deferring to the agency's decision to not utilize the social cost of carbon given, among other reasons, the methodology's "significant variation in output") — *Zinke, D.C. Cir., 2019*
- **2** (holding FERC reasonably concluded the social cost of carbon was "inadequately accurate to warrant inclusion under NEPA") — *FERC, D.C. Cir., 2025*
- **1** (recognizing that, once an agency has evaluated the environmental impacts of a proposed use, it may properly conclude that it has "'no grounds' for requiring more stringent conditions than those required by the" agency with regulatory jurisdiction over the use.) — *Atchafalaya Basinkeeper v. U.S. Army Corps of Engineers, M.D. La., 2020*
- **1** (holding agency fulfilled its NEPA obligations to evaluate baliast-water impacts by, inter alia, noting requirements of applicable regulatory agencies) — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2017*
- **1** (concluding that FERC reasonably relied upon the regulated parties' "future coordination with" other regulators in its NEPA assessment) — *FERC, 3rd Cir., 2018*

↑

44. United States v. Wong Kim Bo, A/K/A Yee Kuk Ho, Etc.

472 F.2d 720, 5th Cir., 1972
In 2020-24: cited by 18 decisions (appellate) · in all: 367 · 2021–2025: 38 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 404 citing opinions, filed 2013–2026: status now, not the year it changed)

Role changed 1985-89: likely successor Russello, 464 U.S. 16 (1983) (72% of the 25 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Russello (cosine 0.14, 17 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("[W]ords in statutes should not be discarded as 'meaningless' and 'sur- plusage' when Congress specifically and expressly included them.... ") — *OSHC, 5th Cir., 2016*
- **2** (suggesting in dictum that the Ninth Circuit's statutory construction is correct) — *United States v. Rolf Wilhelm Otto Anton, 7th Cir., 1982*
- **1** ("[W]here Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely in the disparate inclusion or exclusion.") — *GIRALDI, D.N.J., 2021*
- **1** (statutory terms are to be given ordinary meaning, unless it is clear that another meaning was intended) — *Swanson, 5th Cir., 2000*
- **1** ("[W]here Congress has carefully employed a term in one place and excluded it in another, it should not be implied where excluded.") — *Uniroyal Chemical Co. v. Deltech Corp., 5th Cir., 1998*
- **1** (noting that the Russello rule has force where, as here, "the two provisions in question are included within the same legislative enactment") — *FERC, D.C. Cir., 1998*

↑

45. Birckhead v. Fed. Energy Regulatory Comm'n

925 F.3d 510, D.C. Cir., 2019
In 2020-24: cited by 8 decisions (appellate) · in all: 16 · 2021–2025: 15 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 16 of 16 citing opinions)
Travels with: Nevada v. Department of Energy (cosine 0.13, 8 both); FERC (cosine 0.11, 5 both); FERC (cosine 0.10, 5 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("[Plaintiffs] go too far to the extent they claim emissions from 25 downstream gas combustion are, as a categorical matter, always a reasonably foreseeable indirect effect of a pipeline project.") — *Red Lake Band of Chippewa Indians v. United States Army Corps of Engineers, D.D.C., 2022*
- **1** ("It should go without saying that NEPA [ ] requires the [agency] to at least attempt to obtain the information necessary to fulfill its statutory responsibilities.") — *Haaland, D.D.C., 2025*
- **1** (noting that CP2's "pipeline alignment, platform location, and well location are in the siting stage of project development") — *FERC, D.C. Cir., 2024*

↑

46. West Deptford Energy, LLC v. Federal Energy Regulatory Commission

766 F.3d 10, D.C. Cir., 2014
In 2020-24: cited by 17 decisions (appellate) · in all: 45 · 2021–2025: 23 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 47 of 47 citing opinions, filed 2014–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.21, 5 both); FERC (cosine 0.13, 5 both); FERC (cosine 0.06, 5 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (determination of which rate applied when more than one had been filed) — *State ex rel. Utils. Comm'n v. Virginia Elec., N.C., 2022*
- **2** ("It is textbook administrative law that an agency must provide a reasoned explanation for departing from precedent or treating similar situations differently.") — *FERC, D.C. Cir., 2020*
- **2** (vacating agency action because, inter alia, the agency "provided no reasoned explanation for how its decision comports with *** prior agency practice") — *American Wild Horse Preservation Campaign v. Sonny Perdue, D.C. Cir., 2017*
- **1** (ratepayers have notice that rates determined by filed formulas will be determined according to the formula) — *FERC, D.C. Cir., 2018*
- **1** (noting that because West Deptford repeatedly objected to any such imposition of cost responsibility, "one-way assertions" in a facilities study agreement cannot put a party on notice, and Commission precedent treats such studies as "non-binding estimate of costs") — *FERC, D.C. Cir., 2018*
- **1** (explaining that federal courts borrow state law equitable tolling 19 provisions, unless they are inconsistent with federal law, and setting forth California's doctrine of 20 equitable tolling) — *Munoz, E.D. Cal., 2023*
- **1** (recognizing that FERC need not confine rates to specific numbers when ratepayers have notice of the formula or rule that will be applied) — *FERC, D.C. Cir., 2015*
- **1** (holding that Section 1983 claims use California's statute of 15 limitations for personal injury claims, which is two years) — *Puckett, E.D. Cal., 2023*

↑

47. Food & Water Watch v. FERC

28 F.4th 277, D.C. Cir., 2022
In 2020-24: cited by 13 decisions (appellate) · in all: 19 · 2021–2025: 19 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 19 of 19 citing opinions, filed 2022–2025: status now, not the year it changed)
Travels with: FERC (cosine 0.15, 8 both); Nevada v. Department of Energy (cosine 0.09, 7 both); FERC (cosine 0.07, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("[W]hen multiple petitioners bring claims jointly, only one petitioner needs standing to raise each claim.") — *FMCSA, D.C. Cir., 2022*
- **1** ("An association . . . has [representational] standing only if . . . at least one of its members would have standing to sue in [his or her] own right . . . ." (emphasis added) (citation omitted)) — *Bunch, D.D.C., 2022*
- **1** ("The Commission found that each project would have gone forward absent the other.") — *FERC, D.C. Cir., 2024*
- **1** (holding the NGA's issue exhaustion requirement is jurisdictional) — *FERC, D.C. Cir., 2023*

↑

48. A. R. Douglass, Inc. v. McRainey, as Admrx.

102 Fla. 1141, Fla., 1931
In 2020-24: cited by 19 decisions (appellate) · in all: 233 · 2021–2025: 30 · weight in the sub-cluster 9
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 248 citing opinions, filed 2013–2025: status now, not the year it changed)
Travels with: Holly (cosine 0.27, 10 both); Robinson (cosine 0.02, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("When the language of the statute is clear and unambiguous and conveys a clear and definite meaning, there is no occasion for resorting to the rules of statutory interpretation and construction; the statute must be given its plain and obvious meaning.") — *Abril, Fla., 2007*
- **1** ("Because statutes providing for attorney's fees are in abrogation of the common law, such statutes are to be strictly construed.") — *C.B., S.D. Fla., 2018*

↑

49. California Communities Against Toxics v. United States Environmental Protection Agency

688 F.3d 989, 9th Cir., 2012
In 2020-24: cited by 22 decisions (appellate) · in all: 115 · 2021–2025: 60 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 117 citing opinions, filed 2017–2026: status now, not the year it changed)
Travels with: Pollinator Stewardship Council v. U.S. Environmental Prot... (cosine 0.09, 9 both); Cir (cosine 0.08, 5 both); Usfs (cosine 0.07, 6 both)
How later courts describe it (36 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** (finding that "[shopping construction would also be economically disastrous" because it was a "billion-dollar venture employing 350 workers") — *Zinke, D. Or., 2017*
- **3** (declining to vacate an EPA emissions rule where vacatur would be "economically disastrous") — *Black Warrior Riverkeeper, Inc. v. U.S. Army Corps of Engineers, 11th Cir., 2015*
- **3** (weighing the seriousness of the agency's error against "the disruptive consequences of an interim change that may itself be changed") — *Alliance for the Wild Rockies v. United States Forest Service, D. Mont., 2023*
- **3** (considering delay to "much needed power plant," possibly resulting in blackouts, to be a "severe" consequence of vacatur that may be considered in balance) — *Aqualliance, E.D. Cal., 2018*
- **3** (remanding without vacating because vacating could lead to air pollution, undermining the goals of the Clean Air Act) — *Pollinator Stewardship Council v. U.S. Environmental Protection Agency, 9th Cir., 2015*
- **2** ("A flawed rule need not be vacated.") — *United Farm Workers v. The United States Department of Labor, E.D. Cal., 2022*
- **2** (remanding without vacatur where "[t]he delay and trouble vacatur would cause are severe") — *Savage, D. Mont., 2019*
- **2** (remanding without vacatur to avoid "economically disastrous" results and protect a "venture employing 350 workers") — *Wild Fish Conservancy v. State of Alaska, 9th Cir., 2024*

↑

50. Janet S. Delana, Individually, and as the Wife of Decedent Tex C. Delana v. CED Sales, Inc. d/b/a Odessa Gun & Pawn, Charles Doleshal, and Derrick Dady

2016 Mo. LEXIS 76, Mo., 2016
In 2020-24: cited by 10 decisions (appellate) · in all: 21 · 2021–2025: 11 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 21 of 21 citing opinions, filed 2016–2025: status now, not the year it changed)
Travels with: Coxe (cosine 0.54, 7 both); Ileto (cosine 0.20, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("The PLCAA does not commandeer the executive or legislative branch of Missouri government .... The PLCAA does not violate the Tenth Amendment.") — *Gustafson, M. v. Springfield, Inc., Aplt., Pa., 2025*
- **1** (the PLCAA preempts state tort law "pursuant to Congress's constitutional power to regulate interstate commerce.") — *Gustafson, M. v. Springfield, Inc., Aplt., Pa., 2025*
- **1** ("PLCAA preemption is based on 'criminal or unlawful misuse' and not the existence of a criminal conviction.") — *Gustafson, M. v. Springfield, Inc., Aplt., Pa., 2025*

1 (declining to apply presumption against preemption to PLCAA's express preemption clause) — *Johnson v. Bass Pro Outdoor World, Kan., 2025*

1 (allowing plaintiff's negligent- entrustment count to proceed under Exception (ii) but not her negligence count) — *Gustafson, M. v. Springfield, Inc., Pa. Super. Ct., 2020*

1 (considering the PLCAA's purpose, but refusing to follow it because the statute was unambiguous as to the scope of "qualified civil liability action") — *Brady, D. Maryland, 2022*

↑

51. Rubin v. United States

449 U.S. 424, SCOTUS, 1981
In 2020-24: cited by 26 decisions (appellate) · in all: 794 · 2021–2025: 43 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 875 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Germain (cosine 0.12, 16 both)
How later courts describe it (81 parentheticals; groups of similar wording, largest first; other courts' words)

54 (explaining that judicial construction of statutes is ordinarily complete when statutory terms are unambiguous) — *United States v. Gary L. Kirvan, 2d Cir., 1996*

9 (holding that pledging securities as collateral for a loan constitutes an "offer or sale" under § 17(a) of the Securities Act) — *Financial SEC. Assur., Inc. v. Stephens, Inc., 11th Cir., 2007*

5 ("It is not essential under the terms of the Act that full title pass to a transferee for the transaction to be an 'offer' or a 'sale' ") — *Pinter, SCOTUS, 1988*

3 (Holding that a pledge of stock is an offer or sale) — *United States v. Cleburne Jr Brigham, 9th Cir., 2006*

2 ("Statutory construction begins with the plain text and, if that text is unambiguous, it usually ends there as well.") — *Zapatero, 2d Cir., 2020*

1 ("For federal rules of procedure have the force of statutes.") — *Roman, N.D. Ill., 2023*

1 ("And as a settled principle, 'unless there is some ambiguity in the language of a statute, a court's analysis must end with the statute's plain language....' Hillman v. I.R.S., 263 F.3d 338, 342 (4th Cir.2001) — *Shionta Shanell Somerville, Bankr. D. Md., 2019*

1 (alleged misrepresentation affecting value of securities pledged meets "in connection with" requirement) — *Ferreri, E.D. Pa., 1987*

↑

52. Catawba County v. Environmental Protection Agency

571 F.3d 20, D.C. Cir., 2009
In 2020-24: cited by 21 decisions (appellate) · in all: 143 · 2021–2025: 38 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 159 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Mississippi Commission on Environmental Quality v. Enviro... (cosine 0.16, 6 both); Chevron (cosine 0.02, 12 both); Whitman (cosine 0.01, 5 both)
How later courts describe it (30 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("To be sure, a statute may foreclose an agency's preferred interpretation despite such textual ambiguities if its structure, legislative history, or purpose makes clear what its text leaves opaque.") — *Comm'r, Tax Ct., 2010*

3 (rejecting an " ad infinitum " designation process as "inconsistent with the CAA," and finding that "Congress imposed deadlines on EPA and thus clearly envisioned an end to [that] process") — *In re Ozone Designation Litig., N.D. Cal., 2018*

3 (explaining that ambiguity in the statutory text "suggest[s] a congressional intent to leave unanswered questions to an agency's discretion and expertise") — *Bostick, 10th Cir., 2015*

2 (challenge to 1997 fine particulate matter NAAQS designations) — *Mississippi Commission on Environmental Quality v. Environmental Protection Agency, D.C. Cir., 2015*

2 ("[A] congressional mandate in one section and silence in an- other often suggests not a prohibition but simply a decision not to mandate any solution in the second context, i.e., to leave the question to agency discretion.") — *Veteran Warriors, Inc. v. Secretary of Veterans Affairs, Fed. Cir., 2022*

2 ("[E]ven were we to think that 'contribute' unambiguously means 'significantly contribute,' we still disagree that 'significantly contribute' unambiguously means 'strictly cause.'") — *Mississippi Commission on Environmental Quality v. Environmental Protection Agency, D.C. Cir., 2015*

2 (finding the phrase "based on air quality monitoring data" to be ambiguous) — *Mississippi Commission on Environmental Quality v. Environmental Protection Agency, D.C. Cir., 2015*

2 (finding in the context of Chevron deference that the expressio unius canon counsels against the court disturbing an agency's interpretation) — *Dowling v. Pension Plan for Salaried Employees of Union Pacific Corp. & Affiliates, 3rd Cir., 2017*

↑

53. Ameren Services Co. v. Federal Energy Regulatory Commission

880 F.3d 571, D.C. Cir., 2018
In 2020-24: cited by 10 decisions (appellate) · in all: 13 · 2021–2025: 11 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 13 of 13 citing opinions, filed 2019–2025: status now, not the year it changed)

Role changed 2020-24: likely successor FERC, 964 F.3d 1 (2020) (50% of the 10 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Ferc (cosine 0.09, 5 both); FERC (cosine 0.08, 6 both); New York (cosine 0.07, 6 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (vacating because "we are troubled by the prospect of allowing the orders to continue") — *FERC, 3rd Cir., 2024*
- **1** (expressing concern that eliminating the unilateral funding option would force transmission owners to "act, at least in part, as a nonprofit business") — *FERC, D.C. Cir., 2022*

↑

54. Reiter v. Sonotone Corp.

442 U.S. 330, SCOTUS, 1979
In 2020-24: cited by 8 decisions (appellate) · in all: 921 · 2021–2025: 8 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 990 citing opinions, filed 2014–2026: status now, not the year it changed)
Role changed 1985-89: likely successor Chevron, 467 U.S. 837 (1984) (37% of the 99 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Reiter (cosine 0.29, 8 both)
How later courts describe it (198 parentheticals; groups of similar wording, largest first; other courts' words)

- **51** (holding that courts must give effect to every word when interpreting a statute) — *Giattina, E.D. Va., 1996*
- **48** (reiterating that "[c]anons of construction ordinarily suggest that terms connected by a disjunctive be given separate meanings, unless the context dictates otherwise") — *United States v. E-Gold, Ltd., D.D.C., 2008*
- **9** (noting that Congress designed the Sherman Act as a "consumer welfare prescription") — *Vandebrake, N.D. Iowa, 2011*
- **9** (noting that private antitrust suits "provide a significant supplement to the limited resources available at the Department of Justice") — *Williams v. Mohawk Industries, Inc., 11th Cir., 2006*
- **6** (recognizing that district courts "have broad power and discretion vested in them by Fed. Rule Civ. Proc. 23") — *Shields, C.D. Cal., 2011*
- **5** ("As is true in every case involving the construction of a statute, our starting point must be the language employed by Congress.") — *In Re Lewis, Bankr. C.D. Cal., 2009*
- **5** (explaining that the phrase "business or property" in the Clayton Act, 15 U.S.C. § 15, "retains restrictive significance" and "would ... exclude personal injuries suffered") — *Abdiel Echeverria v. BAC Home Loans Servicing, LP, 11th Cir., 2013*
- **4** (words in Clayton Act identical to civil RICO preclude recovery for personal injuries) — *Sandra S. Grogan v. Brenda F. Platt, Jane Doe, as Personal Representative of the Estate of William Russell Matix, Deceased, 11th Cir., 1988*

↑

55. Maria Medina Tovar v. Laura Zuchowski

982 F.3d 631, 9th Cir., 2020
In 2020-24: cited by 14 decisions (appellate) · in all: 15 · 2021–2025: 15 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 15 of 15 citing opinions, filed 2021–2024: status now, not the year it changed)
Travels with: Kisor (cosine 0.07, 6 both); Encino Motorcars (cosine 0.03, 5 both); Chevron (cosine 0.02, 8 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (At Chevron step one, "we must 'exhaust all the traditional tools of construction' before we 'wave the ambiguity flag.'" (quoting Kisor, 139 S. Ct. at 2415)) — *State of Ohio v. Xavier Becerra, 6th Cir., 2023*

↑

56. San Luis & Delta-Mendota Water v. Pacific Coast Federation Etc.

776 F.3d 971, 9th Cir., 2014
In 2020-24: cited by 17 decisions (appellate) · in all: 108 · 2021–2025: 53 · weight in the sub-cluster 8
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 109 citing opinions, filed 2016–2026: status now, not the year it changed)
Travels with: San Luis & Delta-Mendota Water v. Natural Resources Defen... (cosine 0.10, 5 both); National Wildlife Federation v. National Marine Fisheries... (cosine 0.06, 5 both); National Ass'n of Home Builders v. Defenders of Wildlife (cosine 0.04, 7 both)
How later courts describe it (30 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (holding that "[FWS] complies with the best available science standard so long as it does not ignore available studies, even if it disagrees with or discredits them") — *Usfs, 9th Cir., 2022*
- **3** (stating that the best science requirement does not "require an agency to conduct new tests or make decisions on data that does not yet exist") — *Center for Biological Diversity v. U.S. Fish & Wildlife Service, 9th Cir., 2015*
- **2** ("[T]raditional deference to the agency is at its highest where a court is reviewing an agency action that required a high level of technical expertise.") — *Center for Biological Diversity v. Bureau of Land Management, D. Alaska, 2021*
- **2** ("The ESA does not provide its own standard of judicial review, so we evaluate the BiOp under the APA's arbitrary or capricious standard.") — *Willamette Riverkeeper v. National Marine Fisheries Service, D. Or., 2023*
- **2** ("[T]he agency has substantial discretion to choose between available scientific models, provided that it explains its choice.") — *Turtle Island Restoration Network v. United States Department of Commerce, 9th Cir., 2017*

2 ("[R]eviewing courts may not look to [extra-record] evidence as a basis for questioning the agency's scientific analyses or conclusions.") — *Center for Biological Diversity v. U.S. Office of Surface Mining Reclamation and Enforcement, D.D.C., 2025*

2 (finding the court abused its discretion by admitting declarations of experts and relying upon them to question the wisdom of the agency's judgments) — *Bolling, D. Idaho, 2020*

1 (agency's scientific judgments owed great deference) — *Usfws, 9th Cir., 2022*

↑

57. Minisink Residents for Environmental Preservation & Safety v. Federal Energy Regulatory Commission

762 F.3d 97, D.C. Cir., 2014

In 2020-24: cited by 13 decisions (appellate) · in all: 41 · 2021–2025: 19 · weight in the sub-cluster 8

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 43 of 43 citing opinions, filed 2015–2026: status now, not the year it changed)

Travels with: FERC (cosine 0.21, 5 both); Atlantic Rfg. Co (cosine 0.10, 5 both); FERC (cosine 0.05, 6 both)

How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[W]e consistently decline to flyspeck an agency's * * * analysis.") — *FMCSA, D.C. Cir., 2022*

1 (upholding cumulative impact analysis finding "no significant cumulative impacts were expected" where the project under consideration " itself was expected to have minimal impacts" and-as is the case here-the two projects had distinct construction timelines) — *FERC, 3rd Cir., 2018*

1 (discussing the Commission's "broad authority to regulate the transportation and sale of natural gas in interstate commerce") — *FERC, D.C. Cir., 2022*

1 (finding EA adequately examined compressor-station project's impact on property values where it recognized some adverse impacts might accrue but could be mitigated) — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2017*

1 (upholding cumulative-impact analysis finding "no significant cumulative impacts were expected" where the "[p]roject itself was expected to have minimal impacts") — *FERC, D.C. Cir., 2016*

1 (holding that NEPA does not require agencies to weigh the "monetary costs and benefits of the respective proposals . . . , particularly where only an environmental assessment, rather than an environment impact statement, is involved") — *Haaland, D.D.C., 2024*

1 (concluding that no cumulative impact analysis was needed where "the [Environmental Assessment] concluded that because the ... Project itself was expected to have minimal impacts, no significant cumulative impacts were expected to flow") — *Shudde Fath v. Texas Dept. of Transportatio, 5th Cir., 2018*

↑

58. Federal Power Commission v. Texaco Inc.

417 U.S. 380, SCOTUS, 1974

In 2020-24: cited by 11 decisions (appellate) · in all: 401 · 2021–2025: 75 · weight in the sub-cluster 7

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 435 citing opinions, filed 2019–2026: status now, not the year it changed)

Role changed 1980-84: likely successor Vermont Yankee Nuclear Power Corp. v. Natural Resources D..., 435 U.S. 519 (1978) (26% of the 47 decisions citing this case in 1980-84 also cite it). (co-citation, not the text)

Travels with: Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.06, 5 both); Morgan Stanley (cosine 0.05, 5 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.05, 6 both)

How later courts describe it (136 parentheticals; groups of similar wording, largest first; other courts' words)

68 ("The ALJ's decision must stand or fall with the reasons set forth in the ALJ's decision, as adopted by the Appeals Council.") — *Mosley, S.D. Ala., 2020*

14 (noting that a court can only uphold an agency decision " 'on the same basis articulated in the order by the agency itself ") — *Almaz Sayoum Abebe Sisay Mengistu v. Alberto R. Gonzales, Attorney General, 9th Cir., 2005*

9 ("All that is protected against, in a constitutional sense, is that the rates fixed by the Commission be higher than a confiscatory level") — *Barasch, SCOTUS, 1989*

8 ("It is, of course, well settled that courts cannot accept counsel's post hoc rationalization for agency action.") — *Tracie L. Flug v. Labor and Industry Review Commission, Wis., 2017*

5 (noting that agency ratemaking does not "require that the cost of each company be ascertained and its rates fixed with respect to its own costs") — *Southwestern Bell Telephone Co. v. Federal Communications Commission, D.C. Cir., 1999*

5 (recognizing that federal regulation of the natural gas market was in response to the threat of monopoly pricing) — *Pennell, SCOTUS, 1988*

3 (explaining that a reviewing court will not "affirm simply because some rationale might have supported the ALJ's conclusion") — *Patterson, M.D. Ala., 2020*

2 (accepted jurisdiction to review an FPC rule)

↑

59. Bradley v. School Bd. of Richmond

416 U.S. 696, SCOTUS, 1974

In 2020-24: cited by 22 decisions (appellate) · in all: 1,787 · 2021–2025: 44 · weight in the sub-cluster 7

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 1,967 citing opinions, filed 2013–2026: status now, not the year it changed)
Role changed 1995-99: likely successor Landgraf, 511 U.S. 244 (1994) (69% of the 81 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: United States v. Schooner Peggy (cosine 0.09, 6 both); Thorpe (cosine 0.06, 7 both); Landgraf (cosine 0.05, 7 both)
How later courts describe it (222 parentheticals; groups of similar wording, largest first; other courts' words)

110 (holding that the law in effect at the time of decision must be applied unless doing so would result in manifest injustice or there is a statutory directive to the contrary) — *Harlan Bell Coal Co. And Old Republic Insurance Company v. Dewey Lemar, 6th Cir., 1990*

5 (applying liability for attorney fees in desegregation case retroactively against municipal school board) — *Rosa Carter, Administratrix of the Estate of Adrian Miles Carter, Deceased, Cross-Appellee v. City of Chattanooga, Tennessee, Cross-Appellant, 6th Cir., 1988*

4 ("we are reluctant to read into the statute the very . . . limitation that Congress eliminated") — *Security Industrial Bank, SCOTUS, 1982*

4 (allowing the retroactive application of a fee-shifting statute absent clear congressional intent to the contrary, but limiting the award to after the date plaintiffs first re quested attorney's fees) — *Avitts, S.D. Tex., 1994*

4 (granting attorney's fees for services performed before enactment of provision allowing attorney's fees where appeal of fee award pending on enactment date) — *United States v. 6.93 Acres of Land, Etc., United States of America v. 67.73 Acres of Land, Etc., 1st Cir., 1988*

4 (determining whether retrospective application of a newly enacted procedural statute in that case would breed manifest injustice)

3 (noting "additional or unforeseeable obligations") — *Campbell v. United States, 9th Cir., 1987*

3 ("[A]n appellate court must apply the law in effect at the time it renders its decision." (quoting Thorpe v. Housing Authority of City of Durham, 393 U.S. 268, 281 (1969))) — *State of Mississippi v. EPA, D.C. Cir., 2013*

↑

60. National Ass'n of Home Builders v. Environmental Protection Agency

682 F.3d 1032, D.C. Cir., 2012
In 2020-24: cited by 15 decisions (appellate) · in all: 67 · 2021–2025: 22 · weight in the sub-cluster 7
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 69 of 69 citing opinions, filed 2012–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 12 both); Burlington Truck Lines, Inc. v. United States (cosine 0.03, 5 both); FCC v. Fox (cosine 0.03, 7 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[W]e do not review [the agency's] cost figuring de novo, but accord [the agency] discretion to arrive at a cost figure within a broad zone of reasonable estimate." (internal quotation marks omitted)) — *American Hospital Association v. Alex Azar, II, D.C. Cir., 2020*

1 ("[W]hen an agency decides to rely on a cost-benefit analysis as part of its rulemaking, a serious flaw undermining that analysis can render the rule unreasonable.") — *Biden, 5th Cir., 2023*

1 (finding the repeal of a regulation was not arbitrary and capricious where the agency explained that the prior rule "did not sufficiently account for" countervailing factors and that the amended rule "promotes, to a greater extent, [its] statutory directive" (cleaned up)) — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*

1 (explaining courts cannot force agencies to comply "with a procedural requirement … clearly exclude[d] from [judicial] purview" pursuant to Vermont Yankee) — *AGRI, D.C. Cir., 2022*

1 (reviewing a cost-benefit analysis conducted pursuant to Executive Order 12866 under the arbitrary and capricious standard) — *Azar, N.D. Cal., 2019*

1 (explaining that although an agency Page 38 of 43 agency's cost/benefit analysis," Am. Trucking Ass'ns, Inc. v. Fed. Motor Carrier Safety Admin., 724 F.3d 243, 254 (D.C. Cir. 2013) — *Devos, D.D.C., 2019*

1 (recognizing that "Fox makes clear that this kind of reevaluation is well within an agency's discretion") — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*

↑

61. Chase Bank USA, N. A. v. McCoy

131 S. Ct. 871, SCOTUS, 2011
In 2020-24: cited by 14 decisions (appellate) · in all: 219 · 2021–2025: 21 · weight in the sub-cluster 7
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 241 citing opinions, filed 2016–2026: status now, not the year it changed)
Role changed 2015-19: likely successor Christopher, 132 S. Ct. 2156 (2012) (30% of the 47 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: Auer (cosine 0.08, 8 both); Christopher (cosine 0.06, 7 both); Kisor (cosine 0.01, 5 both)
How later courts describe it (48 parentheticals; groups of similar wording, largest first; other courts' words)

17 (stating that the courts must defer to an agency's interpretation of its own regulation even when "advanced in a legal brief") — *Sebelius, D. Colo., 2013*

5 (explaining that Congress passed TILA "to promote consumers' 'informed use of credit' by requiring 'meaningful disclosure of credit terms.' " (quoting 15 U.S.C. § 1601(a))) — *Grant, D. Maryland, 2012*

4 ("Because the interpretation the [Federal Reserve] Board presents in its brief is consistent with the regulatory text, we need look no further in deciding this case.") — *Price v. Stevedoring Services of America, Inc., 9th Cir., 2012*

3 (further quoting Auer v. Robbins , 519 U.S. 452 , 461, 117 S.Ct. 905 , 137 L.Ed.2d 79 (1997)) — *Prunckun v. Delaware Dept. of Health & Social Services Oldham v. Delaware Dept. of Health & Social Services, Del., 2019*

3 (applying Auer deference to the Federal Reserve Board's interpretation of its regulation) — *Raupp, 7th Cir., 2012*

2 (With the exception of "post hoc rationalization[s]" taken by an agency "as a litigation position," or interpretations that are "plainly erroneous or inconsistent with the regulation," courts generally "defer to an agency's interpretation of its own regulation.") — *U.S. Securities & Exchange Commission v. Jensen, 9th Cir., 2016*

2 ("[T]here is no reason to suspect that the position ... reflects anything other than the agency's fair and considered judgment as to what the regulation required at the time this dispute arose." (emphasis added)) — *Independent Training & Apprenticeship Program v. California Department of Industrial Relations, 9th Cir., 2013*

2 (finding regulation ambiguous where each party's interpretation was "plausible, and the text alone [did] not permit a more definitive reading") — *Burwell, D.C. Cir., 2016*

↑

62. Public Citizen, Inc., Aviation Consumer Action Project, and Families of Pan-Am 103/lockerbie v. Federal Aviation Administration

988 F.2d 186, D.C. Cir., 1993

In 2020-24: cited by 11 decisions (appellate) · in all: 266 · 2021–2025: 36 · weight in the sub-cluster 7

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 274 citing opinions, filed 2016–2026: status now, not the year it changed)

Travels with: Home Box Office, Inc. v. Federal Communications Commissio... (cosine 0.28, 5 both); State Farm (cosine 0.04, 10 both); Vermont Yankee Nuclear Power Corp. v. Natural Resources D... (cosine 0.03, 5 both)

How later courts describe it (47 parentheticals; groups of similar wording, largest first; other courts' words)

29 (noting that "[t]he requirement that agency action not be arbitrary and capricious includes a requirement that the agency adequately explain its result") — *Doe, D.D.C., 2021*

6 (an agency "need not respond at all to comments that are 'purely speculative and do not disclose the factual or policy basis on which they rest'" (citation omitted)) — *Huawei Tech USA v. FCC, 5th Cir., 2021*

2 (stating that agencies must adequately explain the results of rulemaking) — *Air Transp. Ass'n of Am., Inc. v. U.S. Dep't of Agric., D.C. Cir., 2018*

1 ("An inadequately supported rule ... need not necessarily be vacated.") — *Lew, D.D.C., 2016*

1 (comments must do more than state disagreement with an agency's premise or conclusions) — *Rosado, E.D.N.Y, 2020*

1 (second quotation from Bowman Transp., Inc. v. Arkansas-Best Freight Sys., Inc., 419 U.S. 281, 286 (1974)) — *Public Employees for Environmental Responsibility v. National Park Service, D.D.C., 2022*

1 (statutory mandate to set "minimum staffing levels" did not require specification of precise numbers of personnel) — *Animal Leg Def Fund v. Glickman, Daniel, D.C. Cir., 2000*

1 ("The requirement that agency action not be arbitrary or capricious includes a requirement that the agency ... respond to 'relevant' and 'significant' public comments." (citation omitted)) — *Cement Kiln Recycling Coalition v. Environmental Protection Agency, D.C. Cir., 2007*

↑

63. United States v. Riverside Bayview Homes, Inc.

474 U.S. 121, SCOTUS, 1985

In 2020-24: cited by 14 decisions (appellate) · in all: 664 · 2021–2025: 44 · weight in the sub-cluster 7

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 729 citing opinions, filed 2013–2026: status now, not the year it changed)

Role changed 2005-09: likely successor Rapanos, 547 U.S. 715 (2006) (35% of the 43 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)

Travels with: Rapanos (cosine 0.16, 5 both); Solid Waste Agency of Northern Cook County v. United Stat... (cosine 0.15, 6 both)

How later courts describe it (136 parentheticals; groups of similar wording, largest first; other courts' words)

16 (holding that the Corps § 404 jurisdiction extends to wetlands adjacent to waters of the United States) — *Orange Environment, Inc. v. County of Orange, S.D.N.Y., 1993*

15 (requiring deference to "[a]n agency's construction of a statute it is charged with enforcing") — *Harbor Bancorp & Subsidiaries Edward J. Keith Elena Keith v. Commissioner of Internal Revenue, 9th Cir., 1997*

6 (holding that "Congress chose to define the waters covered by the Act broadly.") — *United States v. James Lucero, 9th Cir., 2021*

5 (Chevron step two entails evaluation of agency action "in light of the language, policies and legislative history of the Act.") — *Texas v. United States, 5th Cir., 2007*

5 (finding legislative acquiescence and explaining that "a refusal by Congress to overrule an agency's construction of legislation" is particularly relevant "where the administrative construction has been brought to Congress' attention through legislation specifically designed to supplant it")

4 (explaining that "[o]nly when a permit is denied and the effect of the denial is to prevent 'economically viable' use of the land in question can it be said that a taking has occurred") — *D. Scott & L.M. Scott v. DEP & Rice Drilling B LLC (EHB), Pa. Commw. Ct., 2026*

4 (noting that the Corps' view was valid ' even for wetlands that are not the result of flooding or permeation' (emphasis added))

— *Rapanos, SCOTUS, 2006*

3 ("We are not called upon to address the question of the authority of the Corps to regulate discharges of fill material into wetlands that are not adjacent to bodies of open water...") — *Solid Waste Agency of Northern Cook County v. United States Army Corps of Engineers, SCOTUS, 2001*

↑

64. Organized Village of Kake v. United States Department of Agriculture

795 F.3d 956, 9th Cir., 2015
In 2020-24: cited by 15 decisions (appellate) · in all: 89 · 2021–2025: 33 · weight in the sub-cluster 7
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 89 of 89 citing opinions, filed 2016–2026: status now, not the year it changed)
Travels with: FCC v. Fox (cosine 0.06, 9 both); State Farm (cosine 0.04, 10 both)
How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

2 (stating that the burden is on "the opponent of the action to demonstrate [that] an error is prejudicial") — *Ctr. for Biological Diversity v. Ryan Zinke, 9th Cir., 2018*

1 (discussing Alaska's economic interests in timber harvest) — *Robert Cassell v. State of Alaska, Department of Fish & Game, Board of Game, Alaska, 2025*

1 (" 'Unexplained inconsistency' between agency actions is 'a reason for holding an interpretation to be an arbitrary and capricious change.' " (quoting Nat'l Cable & Telecomms. Ass'n v. Brand X Internet Servs. , 545 U.S. 967 , 981, 125 S.Ct. 2688 , 162 L.Ed.2d 820 (2005))) — *Bernhardt, D. Or., 2019*

1 ("The 2003 [Rule] does not explain why an action that it found posed a prohibitive risk to the Tongass environment only two years before now poses merely a 'minor' one. The absence of a reasoned explanation for disregarding previous factual findings violates the APA.") — *California by and through Becerrav. U.S. Dep't of the Interior, N.D. Cal., 2019*

1 ("We find that beyond 2060 the conclusions concerning the impacts of the effects of climate change on the Pacific walrus population are based on speculation, rather than reliable prediction.") — *Haaland, D. Alaska, 2019*

1 (Department of Agriculture's determination that an environmental plan regulating an Alaskan forest "pose[d] only minor risks to roadless values" (a benchmark for ecological and other benefits) — *NA of Mftr v. SEC, 5th Cir., 2024*

1 (change 15 in agency position on the same record must be supported by good reasons) — *Asher, W.D. Wash., 2019*

1 (lawsuit by several of the Proposed Intervenors challenging a decision to exempt the Tongass from the Roadless Rule) — *Alaska Forest Association v. U.S. Department of Agriculture, D. Alaska, 2025*

↑

65. Vecinos para el Bienestar de la Comunidad Costera v. FERC

6 F.4th 1321, D.C. Cir., 2021
In 2020-24: cited by 11 decisions (appellate) · in all: 15 · 2021–2025: 15 · weight in the sub-cluster 7
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 15 of 15 citing opinions, filed 2022–2025: status now, not the year it changed)
Travels with: Nevada v. Department of Energy (cosine 0.14, 6 both); FERC (cosine 0.11, 5 both); FERC (cosine 0.07, 7 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

1 (Certificate Orders issued November 2019, opinion issued August 2021) — *FERC, D.C. Cir., 2024*

1 ("Where the Commission rests a decision, at least in part, on an infirm ground, we will find that decision arbitrary and capricious.") — *FERC, D.C. Cir., 2024*

1 (reiterating that Executive Order 12,898 on environmental justice "does not create a private right to judicial review" but "a petitioner may challenge an agency's environmental justice analysis as arbitrary and capricious under NEPA and the APA") — *State of California v. EPA, D.C. Cir., 2023*

↑

66. Donald Larry Martin v. Social Security Administration, Commissioner

903 F.3d 1154, 11th Cir., 2018
In 2020-24: cited by 10 decisions (appellate) · in all: 20 · 2021–2025: 11 · weight in the sub-cluster 7
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 20 of 20 citing opinions, filed 2019–2024: status now, not the year it changed)
Travels with: Kientz (cosine 0.36, 5 both); Mead (cosine 0.05, 5 both); Chevron (cosine 0.02, 8 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[E]ven if dual status technician employment is essentially military, it is not subject to the uniformed services exception if it is not wholly military in nature.") — *Ferris, W.D. Ky., 2020*

1 (similarly considering the title of the role) — *Kientz, 10th Cir., 2020*

1 ("Even the use of the title 'dual status' suggests that dual status technicians are employed not just in their capacity as members of the National Guard.") — *Kientz, 10th Cir., 2020*

1 (collecting cases from the circuit split as to whether Chevron deference is waivable) — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*

1 (agreeing that "as," in context, "appears to limit the uniformed services exception only to payments for work performed in one's capacity or role as a member of the uniformed services") — *Kientz, 10th Cir., 2020*

1 (concluding that a dual status technician's Social Security retirement benefits were subject to the WEP because his civil service

pension was not “based wholly on service as a member of the uniformed services”) — *Kientz, 10th Cir., 2020*

↑

67. New England Power Generators Ass’n v. Federal Energy Regulatory Commission

881 F.3d 202, D.C. Cir., 2018
In 2020-24: cited by 9 decisions (appellate) · in all: 15 · 2021–2025: 10 · weight in the sub-cluster 7
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster’s members; this is its best-fitting sub-cluster
Good law: green? (read the newest 15 of 15 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.21, 5 both); FERC (cosine 0.14, 6 both); State Farm (cosine 0.04, 7 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts’ words)

- **2** (appellate review of a complaint alleging that an independent transmission system operator’s tariff was unreasonably discriminatory) — *State ex rel. Utils. Comm’n v. Virginia Elec., N.C., 2022*
- **2** (emphasizing that " post hoc rationalizations" for agency action that was not contemporaneously explained will not be accepted (internal quotation marks and citations omitted)) — *Policy & Research, LLC v. U.S. Dep’t of Health & Human Servs., D.C. Cir., 2018*
- **1** (“Due to practical challenges and myriad divergent interests, FERC must be given the latitude to balance the competing considerations and decide on the best resolution in its regulation of electricity markets.”) — *FERC, D.C. Cir., 2022*
- **1** (Commission cannot satisfy its mandate to engage with parties’ comments by relying on “conclusory statements that dismissed [a party’s] concerns without providing reasoned analysis”) — *FERC, D.C. Cir., 2021*

↑

68. Morton v. Ruiz

415 U.S. 199, SCOTUS, 1974
In 2020-24: cited by 23 decisions (appellate) · in all: 1,106 · 2021–2025: 69 · weight in the sub-cluster 7
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster’s members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 1,225 citing opinions, filed 2019–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (42% of the 24 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Mead (cosine 0.02, 5 both); Kisor (cosine 0.02, 9 both); Auer (cosine 0.02, 5 both)
How later courts describe it (187 parentheticals; groups of similar wording, largest first; other courts’ words)

- **61** (holding that "[w]here the rights of individuals are affected, it is incumbent upon agencies to follow their own procedures. This is so even where the internal procedures are possibly more rigorous than otherwise would be required.") — *Jefferson, D.C. Cir., 2018*
- **28** ("[t]he power of an administrative agency to administer a congressionally created ... program necessarily requires the formulation of policy and the making of rules to fill any gap left, implicitly or explicitly, by Congress")
- **14** ("In order for an agency interpretation to be granted deference, it must be consistent with the congressional purpose.") — *West v. Bowen, 3rd Cir., 1989*
- **8** (APA provides that “administrative policies affecting individual rights and obligations be promulgated pursuant to certain stated procedures so as to avoid the inherently arbitrary nature of unpublished ad hoc determinations”) — *Castellano, Vet. App., 2011*
- **6** (overturning agency decision to provide certain benefits only to Indians “on reservation” where traditional interpretation had been “on or near reservation”) — *Albuquerque Indian Rights v. Manuel Lujan, Jr., in His Trust Capacity as Secretary of the Interior, D.C. Cir., 1991*
- **3** (payment of general assistance benefits authorized under 25 U.S.C. § 13) — *Texas v. United States, 5th Cir., 2007*
- **3** (unpublished guidelines could not be given substantive effect because Bureau of Indian Affairs manual required that eligibility guidelines be published) — *In Re: United States of America Janet Reno, Attorney General and Eric H. Holder, Jr., Deputy Attorney General, 8th Cir., 2000*
- **2** (appropriations subcommittee legislative history studied) — *Mcnabb v. Bowen, 9th Cir., 1987*

↑

69. Kleppe v. Sierra Club

427 U.S. 390, SCOTUS, 1976
In 2020-24: cited by 22 decisions (appellate) · in all: 1,085 · 2021–2025: 75 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster’s members; this is its best-fitting sub-cluster
Good law: green (read 514 of 1,140 citing opinions)
Travels with: Robertson (cosine 0.07, 8 both); NRDC (cosine 0.04, 5 both); Department of Transportation v. Public Citizen (cosine 0.03, 5 both)
How later courts describe it (108 parentheticals; groups of similar wording, largest first; other courts’ words)

- **18** (recognizing that segmentation of an environmental investigation may slight "cumulative or synergistic environmental impact") — *Friends Of The River v. Federal Energy Regulatory Commission, D.C. Cir., 1983*
- **15** (holding that role of court in reviewing agency action under NEPA is to ensure agency has taken a “hard look” at environmental consequences; the court cannot “interject itself within the area of discretion of the executive as to the choice of the action to be taken.”) — *Lichterman, 5th Cir., 2009*
- **11** (finding that the resolution of issues requiring a high level of technical expertise is properly left to the informed discretion of the responsible federal agencies.) — *Waterworth, S.D. Tex., 2004*

6 ("Neither [NEPA] nor its legislative history contemplates that a court should substitute its judgment for that of the agency as to the environmental consequences of its actions.") — *Citizens Against Burlington, Inc. v. Busey, D.C. Cir., 1991*

3 (EIS on use of federal coal reserves in Northern Great Plains Region not required where there is no proposal for a regional development plan) — *City Of Rochester v. United States Postal Service, 2d Cir., 1976*

3 (holding that an EIS was not required where there was no evidence in the record that the agencies were contemplating a proposal for a major federal action with respect to the region at issue) — *Salazar, D.D.C., 2010*

2 (land use plans for the Tongass National Forest) — *FHA, 1st Cir., 1994*

2 (requiring deference to agency's selection of scope of analysis) — *Minnesota Center for Environmental Advocacy v. City of St. Paul Park, Minn. Ct. App., 2006*

↑

70. Commonwealth Edison Co. v. Will County Collector

196 Ill. 2d 27, Ill., 2001

In 2020-24: cited by 15 decisions (appellate) · in all: 165 · 2021–2025: 18 · weight in the sub-cluster 6

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 184 citing opinions, filed 2010–2026: status now, not the year it changed)

Role changed 2015-19: likely successor Howard, 2016 IL 120729 (2017) (29% of the 51 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)

Travels with: Caveney (cosine 0.09, 5 both); Perry (cosine 0.07, 6 both); Landgraf (cosine 0.07, 9 both)

How later courts describe it (30 parentheticals; groups of similar wording, largest first; other courts' words)

12 (stating the basic principle that, "if the legislature has clearly indicated what the temporal reach of a[ ] *** statute should be, then, absent a constitutional prohibition, that expression of legislative intent must be given effect") — *Forest Preserve District v. First National Bank, Ill. App. Ct., 2010*

9 (approving a legislative motive to correct previously existing law) — *Galloway, Ill. App. Ct., 2006*

3 (describing First of America Trust Co. v. Armstead , 171 Ill. 2d 282 , 287-88, 215 Ill.Dec. 639 , 664 N.E.2d 36 (1996) — *Perry, Ill., 2018*

2 ("our case law *** is in conflict" and the governing principles are "in the state of some muddle" (internal quotation marks omitted)) — *In re Shelby R., Ill., 2013*

2 (upholding legislative act validating taxes predating effective date of legislation, noting the general assembly was not targeting any particular group of taxpayers "for retribution or other illegitimate purpose") — *J. Thomas Zaber, On Behalf Of Himself And All Others Similarly Situated Vs. City Of Dubuque, Iowa, Iowa, 2010*

1 ("[W]e hereby adopt the approach to retroactivity set forth in Landgraf.") — *Perry, Ill., 2018*

1 (General Assembly unequivocally expressed its legislative intent in amendment to validate levies that were enacted prior to the amendment's effective date) — *People v. Single Story House, Ill. App. Ct., 2012*

↑

71. Atlantic City Electric Co. v. Federal Energy Regulatory Commission

295 F.3d 1, D.C. Cir., 2002

In 2020-24: cited by 12 decisions (appellate) · in all: 105 · 2021–2025: 25 · weight in the sub-cluster 6

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 108 citing opinions, filed 2003–2026: status now, not the year it changed)

Travels with: New York (cosine 0.06, 6 both); FERC (cosine 0.06, 5 both); Morgan Stanley (cosine 0.05, 6 both)

How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

2 (stating FERC is a creature of statute and only has authority specifically conferred by Congress with no constitutional or common law existence or authority) — *PG&E Corp. v. Fed. Energy Regulatory Comm'n (In re PG&E Corp.), Bankr. N.D. Cal., 2019*

2 (noting that aliens have no protected 7 liberty or property interest in a waiver of deportation under 8 former INA § 212(c) because such relief is discretionary, "a 9 circumstance fatal to [a] due process claim") — *Jin, 2d Cir., 2008*

2 (holding that Mobile-Sierra applies "assuming that there was no reason to question what transpired at the contract formation stage")

1 ("The expression 'otherwise dispose' requires a similar interpretation under the principle noscitur a sociis.") — *Seventh Dimension, LLC v. United States, Fed. Cl., 2022*

1 ("That events elsewhere also bear upon the claim . . . does not negate the existence of minimum . . . contacts related to the claim.") — *25 CP LLC v. Firstenberg Mach., D.N.H., 2009*

1 (observing that a regulation cannot "be the basis for denying the petitioners their rights pro- vided by a statute enacted by both houses of Congress and signed into law by the president") — *Babajide Sobitan v. Lori Glud, 7th Cir., 2009*

1 (explaining that, "[d]ue to the statutes' similar wording and common lineage," §§ 1981 and 1982 should be "construed in pari materia") — *Cheng, D.N.H., 2013*

1 (observing that "utilities may choose to voluntarily give up, by contract, some of their rate-filing freedom under § 205") — *FERC, D.C. Cir., 2018*

↑

72. United States v. Luis Mercado

81 F.4th 352, 3rd Cir., 2023

In 2020-24: cited by 8 decisions (appellate) · in all: 14 · 2021–2025: 14 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 14 of 14 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: United States v. Malik Nasir (cosine 0.14, 5 both); United States v. Antoinette Adair (cosine 0.08, 5 both); Kisor (cosine 0.03, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (affirming denial of reduction based on "disturbing pattern of post-plea misconduct") — *United States v. Ruben Guerrero Grimaldos, 3rd Cir., 2025*
- **1** (affirming denial of an acceptance of responsibility reduction for a defendant who pleaded guilty, but then violated the conditions of his pre-sentencing bail, failed drug tests, failed to attend substance abuse treatments, and refused random drug testing) — *United States v. John Derr, 3rd Cir., 2024*
- **1** (affirming denial of § 3E1.1 reduction based on violations of conditions of release) — *United States v. Robert Thompson, 3rd Cir., 2026*
- **1** (finding the Sentencing Commission "optimally positioned to opine" on criminal sentencing due to its "expertise") — *United States v. James Chandler, 3rd Cir., 2024*
- **1** (stating that the Commission has expertise concerning "substantive sentencing concerns" and "how successive crimes relate to one another") — *United States v. Nahsiem McIntosh, 3rd Cir., 2024*

↑

73. San Luis & Delta-Mendota Water v. Natural Resources Defense Coun

747 F.3d 581, 9th Cir., 2014
In 2020-24: cited by 21 decisions (appellate) · in all: 204 · 2021–2025: 84 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 207 of 207 citing opinions)
Travels with: San Luis & Delta-Mendota Water v. Pacific Coast Federatio… (cosine 0.10, 5 both); Turtle Island Restoration Network v. United States Depart… (cosine 0.08, 7 both); State Farm (cosine 0.02, 8 both)
How later courts describe it (47 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** ("[W]here the information is not readily available, we cannot insist on perfection: [T]he best scientific … data available, does not mean the best scientific data possible.") — *Yurok Tribe v. United States Bureau of Reclamation, N.D. Cal., 2017*
- **4** (San Luis v. 19 Jewell) — *Raimondo, E.D. Cal., 2020*
- **3** (explaining that, when examining "scientific determination[s] . . . a reviewing court must generally be at its most deferential") — *Alliance for the Wild Rockies v. United States Forest Service, D. Idaho, 2025*
- **2** (distinguishing Ramsey on that basis) — *Sierra Club v. United States Army Corps of Engineers, D.C. Cir., 2015*
- **2** (applying the APA to claims under NEPA) — *Frewing, D. Or., 2021*
- **2** ("[W]hen specialists express conflicting views, an agency must have discretion to rely on the reasonable opinions of its own qualified experts even if, as an original matter, a court might find contrary views more persuasive.") — *Aqualliance, E.D. Cal., 2018*
- **2** (holding that an agency need not adhere to NEPA "where doing so 'would create an irreconcilable and fundamental conflict' with the substantive statute at issue") — *Jamul Action Committee v. Jonodev Chaudhuri, 9th Cir., 2016*
- **1** (agency cannot ignore available scientific information) — *Save Our Cabinets v. United States Department of Agriculture, D. Mont., 2017*

↑

74. Decker v. Northwest Environmental Defense Center

133 S. Ct. 1326, SCOTUS, 2013
In 2020-24: cited by 31 decisions (appellate) · in all: 283 · 2021–2025: 69 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 308 of 308 citing opinions)
Travels with: Auer (cosine 0.03, 8 both); Christensen (cosine 0.03, 6 both); Kisor (cosine 0.01, 6 both)
How later courts describe it (50 parentheticals; groups of similar wording, largest first; other courts' words)

- **10** (explaining that a court should defer to an agency's interpretation of its own regulation "unless that interpretation is plainly erroneous or inconsistent with the regulation" (internal quotation marks omitted)) — *Brinklys, M.D. Fla., 2016*
- **7** ("[A]n agency's interpretation need not be the only possible reading of a regulation — or even the best one — to prevail.") — *Jiron, 10th Cir., 2014*
- **6** ("It is a basic tenet that 'regulations, in order to be valid, must be consistent with the statute under which they are promulgated.'") — *Silvano Lopez-Angel v. William Barr, 9th Cir., 2019*
- **3** (providing "Auer deference" to the agency's interpretation where there was "no indication that its current view [was] a change from prior practice or a post hoc justification adopted in response to litigation") — *Cardiosom, L.L.C. v. United States, Fed. Cl., 2014*
- **2** (EPA defending state decision-maker's determination) — *Columbia Gas Transmission, LLC v. 1.01 Acres, More or Less, 3rd Cir., 2014*
- **2** ("For jurisdictional purposes, it is unnecessary to determine whether [the respondent] is correct in arguing that only its readings of the [relevant] Rule is permitted under the [Clean Water] Act.") — *Metropolitan Edison Co. v. Pennsylvania Public Utility Commission, 3rd Cir., 2014*
- **2** (giving Auer deference to the EPA's interpretation offered in an amicus brief) — *Exelon Wind 1, L.L.C. v. Donna Nelson, et a, 5th Cir., 2014*
- **2** (noting that whereas a challenge to the validity of regulations would be subject to the exclusive jurisdictional bar of § 1369(b)(2), an enforcement action would not be) — *Waterkeeper Alliance v. EPA, 6th Cir., 2016*

↑ **75. Reiter v. Cooper**
507 U.S. 258, SCOTUS, 1993
In 2020-24: cited by 27 decisions (appellate) · in all: 621 · 2021–2025: 77 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 660 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: United States v. Western Pacific Railroad (cosine 0.18, 7 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.01, 5 both)
How later courts describe it (112 parentheticals; groups of similar wording, largest first; other courts' words)

- **10** (explaining that court has discretion to retain jurisdiction pending administrative referral or to dismiss the case without prejudice) — *Commonwealth of Massachusetts v. Blackstone Valley Electric Company, 1st Cir., 1995*
- **9** (recognizing that primary jurisdiction applies to claims "contain[ing] some issue within the special competence of an administrative agency") — *Seibert, S.D. Iowa, 2005*
- **7** ("Where relief is available from an administrative agency, the plaintiff is ordinarily required to pursue that avenue of redress before proceeding to the courts; and until that recourse is exhausted, suit is premature and must be dismissed.") — *Teleconnect, Iowa, 1993*
- **6** (applying Chevron to ICC's determination that statute did not grant it "initial jurisdiction ... with respect to the award of reparations") — *Railway Labor Executives' Association v. National Mediation Board, D.C. Cir., 1994*
- **5** (noting that when primary jurisdiction applies, a court "stay[s] further proceedings so as to give the parties reasonable opportunity to seek an administrative ruling") — *Michigan Electric Transmission Co. v. Midland Cogeneration Venture, Ltd. Partnership, E.D. Mich., 2010*
- **5** (acknowledging that "even a 'threat of insolvency' of the party seeking separate judgment is a factor weighing against it") — *Amerisourcebergen Corporation v. Dialysist West, Inc., 9th Cir., 2006*
- **4** (declining to countenance the "odd result" that a federal cause of action and statute of limitations arise at different times "absen[t] . . . any such indication in the statute") — *Graham County Soil & Water Conservation District v. United States Ex Rel. Wilson, SCOTUS, 2005*
- **4** (noting that a shipper cannot avoid the filed rate by invoking a "prior agreement to a different rate," but that "claims and defenses that are specifically accorded by the ICA itself" may be asserted) — *Gross Common Carrier, Inc. v. Baxter Healthcare Corporation, 7th Cir., 1995*

↑ **76. Mozilla Corporation v. FCC**
940 F.3d 1, D.C. Cir., 2019
In 2020-24: cited by 18 decisions (appellate) · in all: 40 · 2021–2025: 29 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 40 of 40 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Brand X Internet (cosine 0.04, 5 both); State Farm (cosine 0.03, 5 both); Chevron (cosine 0.01, 6 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("The gap in [this] theory is shown most clearly in the obvious inability of a would-be caller from a NANP number who seeks to reach a person with mobile broadband but no form of VoIP (or mobile voice service).") — *Wireless Internet Serv. Providers Ass'n v. FCC, 6th Cir., 2025*
- **1** ("even the allowance of wide latitude in the exercise of delegated powers is not the equivalent of untrammeled freedom to regulate activities over which the statute fails to confer, or explicitly denies, Commission authority" (cleaned up)) — *Loper Bright Enterprises, Inc v. Gina Raimondo, D.C. Cir., 2022*
- **1** ("'[I]nformation services' are exempted from common carriage status and, hence, Title II regulation.") — *James, E.D.N.Y, 2021*
- **1** (an agency charged with regulating in an area that Congress has "deemed important to protecting public safety * * * must take into account its duty to protect the public") — *FRA, D.C. Cir., 2022*
- **1** ("[W]e do not apply Chevron reflexively, and we find ambiguity only after exhausting ordinary tools of judicial craft.") — *Azar, D.D.C., 2020*
- **1** (regulation permissible interpretation under Chevron yet arbitrary and capricious under the APA because the agency did not consider an important factor) — *Azar, D. Maryland, 2020*
- **1** ("No matter how desirous of protecting their policy judgments, agency officials cannot invest themselves with power that Congress has not conferred." (citations omitted)) — *Loper Bright Enterprises, Inc v. Gina Raimondo, D.C. Cir., 2022*
- **1** ("[s]ection 153 . . . [contains] definitional provision[s] . . . and so is not an independent source of regulatory authority") — *Collector of Winchester, Missouri, and City of Winchester, Missouri v. Charter Communications, Inc., and Charter Communications, LLC, and Charter Fiberlink-Missouri, LLC, and Charter Advanced Services (MO), LLC, Mo. Ct. App., 2022*

↑ **77. United States v. Phillip Zabawa**
719 F.3d 555, 6th Cir., 2013
In 2020-24: cited by 15 decisions (appellate) · in all: 34 · 2021–2025: 19 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 36 of 36 citing opinions, filed 2013–2025: status now, not the year it changed)
Travels with: United States v. Jennifer Riccardi (cosine 0.10, 5 both); United States v. Jeffery Havis (cosine 0.03, 6 both); Kisor

(cosine 0.01, 5 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("When a statute contains an undefined term, we give the term its ordinary meaning. In determining that meaning, dictionaries are a good place to start." (citation omitted)) — *United States of America v. Walgreen Company (JRG1), E.D. Tenn., 2022*
- **1** ("The presumption of prejudice only applies, however, when the delay is attributable to the government's negligence.") — *United States v. Jorge Santos Caballero-Melgar, 6th Cir., 2023*
- **1** (reviewing de novo a district court's conclusion that a delay in transportation did not count toward the defendant's Speedy Trial clock) — *United States v. Carlos Dashawn Brown, 6th Cir., 2024*
- **1** (finding that delays caused by a defendant's injuries from fighting, a hunger strike, and disciplinary violations were the defendant's fault, thus rebutting the presumption of unreasonableness) — *United States v. Carlos Dashawn Brown, 6th Cir., 2024*
- **1** (holding that the injury was not inflicted by the defendant when it may have "resulted from the actions (i.e., the headbutt) of [the victim] himself") — *State of Minnesota v. Alie Christine Theodore Dorn, Minn., 2016*
- **1** (holding that a defendant is a cause for delay when he agrees to postpone trial) — *United States v. Jorge Santos Caballero-Melgar, 6th Cir., 2023*

↑

78. RAJAH

25 I. & N. Dec. 127, BIA, 2009
In 2020-24: cited by 8 decisions (appellate) · in all: 57 · 2021–2025: 6 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 59 of 59 citing opinions, filed 2010–2022: status now, not the year it changed)
Travels with: HASHMI (cosine 0.23, 6 both); L-A-B-R (cosine 0.09, 6 both)
How later courts describe it (24 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** (holding that an immigrant who has a prima facie approvable visa petition and application for adjustment of status may not be able to show good cause for a continuance if visa availability is too remote) — *Juan Miranda-Sanchez v. Eric Holder, Jr., 9th Cir., 2012*
- **3** (encouraging administrative closure in "appropriate circumstances, such as where there is a pending prima facie approvable visa petition") — *Jesus Zuniga Romero v. William Barr, 4th Cir., 2019*
- **2** ("As a general rule, there is a rebuttable presumption that an alien who has filed a prima facie approvable application with the USCIS will warrant a favorable exercise of discretion for a continuance for a reasonable period of time.") — *Daniela Guerra-Rocha v. William P. Barr, 7th Cir., 2020*
- **2** (stating that an alien's unopposed motion to continue ongoing removal proceedings to await the adjudication of a pending employment-based visa petition should generally be granted if approval of the visa petition would render him prima facie eligible for adjustment of status) — *MARCAL NETO, BIA, 2010*
- **2** (stating that the requirements for a motion to remand are essentially the same as those for a motion to reopen) — *GOMEZ-BELTRAN, BIA, 2016*
- **1** (discussing the mechanics of section 245(i) of the Act) — *LEGASPI, BIA, 2010*
- **1** (An individual "may not be able to show good cause for a continuance because visa availability is too remote," but "the Immigration Judge must evaluate the individual facts and circumstances relevant to each case.") — *Simon, 3rd Cir., 2011*
- **1** (an inquiry for a continuance should focus on the likelihood of success of the application for relief) — *Melvin Paiz-Cabrera v. Atty Gen USA, 3rd Cir., 2012*

↑

79. Ileto v. Glock, Inc.

565 F.3d 1126, 9th Cir., 2009
In 2020-24: cited by 8 decisions (appellate) · in all: 97 · 2021–2025: 30 · weight in the sub-cluster 6
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 101 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: Janet S. Delana, Individually, and as the Wife of Deceden... (cosine 0.20, 5 both); City of New York v. Beretta U.S.A. Corp. (cosine 0.20, 5 both); Coxe (cosine 0.20, 6 both)
How later courts describe it (22 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("We have no trouble concluding that Congress rationally could find that, by insulating the firearms industry from a specified set of lawsuits, interstate and foreign commerce of firearms would be affected.") — *Janet S. Delana, Individually, and as the Wife of Decedent Tex C. Delana v. CED Sales, Inc. d/b/a Odessa Gun & Pawn, Charles Doleshal, and Derrick Dady, Mo., 2016*
- **2** (point of constitutional-avoidance doctrine is to adopt interpretation that "avoids any constitutional problem," not to leave alternative that "still raises the identical issue in a slightly different form") — *J.P., D.C., 2018*
- **2** (rejecting Equal Protection and Due Process challenges and noting "Congress carefully constrained the Act's reach to the confines of the Commerce Clause") — *Gustafson, M. v. Springfield 282 A.3d 739, Pa. Super. Ct., 2022*
- **2** (holding that the PLCAA did not constitute an unconstitutional taking because the plaintiffs' "property right in any cause of action does not vest until a final unreviewable judgment is obtained" (citation omitted)) — *Haller, E.D.N.Y, 2022*
- **1** ("Causes of action are a species of property protected by the [f]our- teenth [a]mendment's [d]ue [p]rocess [c]lause. However, a party's property right in any cause of action does not vest until a final unreviewable judgment is obtained." (Internal quotation marks omitted.)) — *Farias, Conn. App. Ct., 2026*
- **1** ("There is 22 nothing irrational or arbitrary about Congress' choice here[.]") — *Travieso, D. Ariz., 2021*

1 (noting "Congress' intention to create national uniformity" in enacting PLCAA) — *Soto, Conn., 2019*
1 ("PLCAA preempt[s] . . . theories of liability even in jurisdictions . . . that have codified such causes of action") — *Gustafson, M. v. Springfield 282 A.3d 739, Pa. Super. Ct., 2022*

↑ **80. Blue Mountains Biodiversity Project v. Blackwood**
161 F.3d 1208, 9th Cir., 1998
In 2020-24: cited by 14 decisions (appellate) · in all: 274 · 2021–2025: 32 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 291 citing opinions, filed 2011–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Department of Transportation v. Public Citizen, 541 U.S. 752 (2004) (29% of the 45 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Travels with: In Defense of Animals v. U.S. Department of the Interior (cosine 0.10, 5 both); Robertson (cosine 0.08, 7 both); Wildearth Guardians v. Heather Provencio (cosine 0.08, 5 both)
How later courts describe it (46 parentheticals; groups of similar wording, largest first; other courts' words)

8 (ordering the Forest Service to prepare an EIS where the EA's treatment of one important environmental factor was "cursory and inconsistent") — *Anderson v. Evans, 9th Cir., 2004*
5 ("'controversial' is 'a substantial dispute [about] the size, nature, or effect of the major Federal action rather than the existence of opposition to a use.'" (alteration in original)) — *Center for Biological Diversity v. National Highway Traffic Safety Administration, 9th Cir., 2008*
3 (stating that "general statements about 'possible' effects ... do not constitute a 'hard look' absent a justification regarding why more definitive information could not be provided.") — *Sierra Club, Inc. v. Austin, 9th Cir., 2003*
2 (an EIS is required of an agency in order that it explore, more thoroughly than an EA, the environmental consequences of a proposed action whenever "substantial questions are raised as to whether a project may cause significant [environmental] degradation") — *National Parks & Conservation Association v. Babbitt, 9th Cir., 2001*
2 ("significant environmental impact" mandating preparation of an EIS where "effects are 'highly uncertain or involve unique or unknown risks' ") — *National Parks & Conservation Association v. Babbitt, 9th Cir., 2001*
2 (explaining that a Forest Service EA failed to consider a report on post-fire logging despite the specific directions of the regional forest supervisor to do so) — *Native Ecosystems Council v. United States Forest Service, 9th Cir., 2005*
2 (holding that conflicting evidence on the effects of ecological intervention in post-fire landscapes made a proposed project highly uncertain, thus requiring an EIS) — *Bark, 9th Cir., 2020*
1 (award of contracts for timber salvage sales) — *Citizens for Better Forestry v. U.S. Dept. of Agriculture, N.D. Cal., 2007*

↑ **81. Hallowell v. Commons**
239 U.S. 506, SCOTUS, 1916
In 2020-24: cited by 8 decisions (appellate) · in all: 222 · 2021–2025: 9 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 235 citing opinions, filed 1993–2024: status now, not the year it changed)
Role changed 1995-99: likely successor Landgraf, 511 U.S. 244 (1994) (100% of the 23 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: Landgraf (cosine 0.12, 7 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

3 (statute which simply changes tribunal that is to hear case applied to pending action) — *Steinle, D. Kan., 1992*
2 (change of forum can be applied retroactively) — *Bell, SCOTUS, 1983*
2 ("Application of a new jurisdictional rule usually 'takes away no substantive right but simply changes the tribunal that is to hear the case.' ") — *State ex rel. Prinkey v. Emerine's Towing, Inc., Ohio Ct. App., 2024*
2 (upholding the dismissal of an equitable title suit over tribal lands where an intervening statute provided that the Secretary of Interior would have sole jurisdiction over the claims) — *Hizam, 2d Cir., 2014*
1 (Congress removed jurisdiction from judiciary to executive branch) — *Brown, N.D. Ind., 1992*
1 (statute immediately divested district court of jurisdiction) — *Jerald A. Turboff v. Merrill Lynch, Pierce, Fenner & Smith, Inc., 5th Cir., 1989*
1 (jurisdictional shift from federal court to an administrative tribunal applied retroactively.) — *Strickland, M.D. Fla., 1989*
1 (retroactive application of federal agency's declaratory ruling did not violate plaintiffs' due-process rights) — *Ex parte L.J., Ala., 2014*

↑ **82. Altera Corp. v. Cir**
926 F.3d 1061, 9th Cir., 2019
In 2020-24: cited by 8 decisions (appellate) · in all: 26 · 2021–2025: 18 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 26 of 26 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: California Communities Against Toxics v. United States En... (cosine 0.08, 5 both); State Farm (cosine 0.07, 6 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

1 (adopting Second Circuit analysis of Catskill Mountain) — *Oakbrook Land Holdings, LLC, William Duane Horton, Tax Matters Partner v. Commissioner, Tax Ct., 2020*

1 ("[A]n agency need only respond to . . . comments . . . which raise relevant points and which, if adopted, would require a change in the agency's proposed rule." (quotations omitted)) — *Migrant Clinicians Network v. Usepa, 9th Cir., 2023*

1 (noting that Chevron and 26 27 9 To the extent these arguments are more properly considered in Step 2 of the Chevron 1 State Farm "provide for related but distinct standards for reviewing rules promulgated by 2 administrative agencies") — *People of the State of California v. Federal Deposit Insurance Corporation, N.D. Cal., 2022*

↑

83. Chamber of Commerce of United States v. Securities & Exchange Commission

412 F.3d 133, D.C. Cir., 2005
In 2020-24: cited by 14 decisions (appellate) · in all: 85 · 2021–2025: 22 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 88 of 88 citing opinions, filed 2005–2026: status now, not the year it changed)
Travels with: Business Roundtable v. Securities & Exchange Commission (cosine 0.28, 7 both); State Farm (cosine 0.03, 7 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

2 (holding that "the inability of consumers to buy a desired product ... constitute[s] injury-in-fact even if they could ameliorate the injury by purchasing some alternative product") — *Alemu, D.C. Cir., 2018*

1 ("Where a party raises facially reasonable alternatives, the agency must either consider those alternatives or give some reason for declining to do so" (cleaned up and quoting Laclede Gas Co. v. FERC, 873 F.2d 1494, 1498 (D.C. Cir. 1989)) — *DOT, D.C. Cir., 2021*

1 (lost opportunity to purchase shares in mutual funds with fewer than 75% independent directors) — *FERC, D.C. Cir., 2017*

1 ("the Commission [has a] statutory obligation to determine as best as it can the economic implications of the rule it has proposed") — *Bloomberg L.P. v. SEC, D.C. Cir., 2022*

1 ("Where a party raises facially reasonable alternatives, the agency must either consider those alternatives or give some reason for declining to do so.") — *Center for Biological Diversity v. EPA, D.C. Cir., 2025*

1 (invalidating a SEC regulation where the agency claimed that it lacked a "reliable basis" for estimating the costs of its proposed rule, finding that the agency could have at least provided "the range within which [the] cost of compliance will fall") — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*

1 (finding that challenger to investment fund regulations had standing even 6 Case: 22-60146 Document: 00517025750 Page: 7 Date Filed: 01/08/2024 No. 22-60146 when "there is no evidence a fund of the type in which the Chamber wants to invest would perform better" than those the SEC permitted) — *DOE, 5th Cir., 2024*

1 (applying "arbitrary and capricious" standard in reviewing petitioner's claim that the SEC "did not comply with its obligation under ICA to consider whether those conditions 'will promote efficiency, competition, and capital formation' ") — *Investment Company Institute v. United States Commodity Futures Trading Commission, D.D.C., 2012*

↑

84. United States v. Shimer

367 U.S. 374, SCOTUS, 1961
In 2020-24: cited by 12 decisions (appellate) · in all: 486 · 2021–2025: 12 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 530 citing opinions, filed 2004–2024: status now, not the year it changed)
Role changed 1995-99: likely successor Cipollone, 505 U.S. 504 (1992) (26% of the 39 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: Chevron (cosine 0.05, 6 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

5 (stating that the court "should not disturb" an agency's policy choice "unless it appears from the statute or its legislative history that the accommodation is not one that [the legislature] would have sanctioned") — *Wilson v. District of Columbia Rental Housing Commission, D.C., 2017*

2 ("Relief from liability in these circumstances would convert a guaranty into a grant of aid.")

2 (noting preemptive regulations "must not be 'unreasonable, unauthorized, or inconsistent with' the underlying statute") — *Deanda, 5th Cir., 2024*

2 (stating that if Congressional intent is ambiguous with respect to specific issue, court may not substitute its own construction of statutory provision in place of reasonable administrative interpretation) — *Hicks v. Cantrell, 4th Cir., 1986*

1 (involving recovery on a Veterans' Administration mortgage guarantee) — *Goldings, Fed. Cl., 2011*

1 (review of discretionary agency action in implementing statute limited to determining whether administrator exceeded authority or the action was "clearly wrong") — *Webb, Ct. Cl., 1988*

1 (courts must defer to "a reasonable accommodation of conflicting policies that were committed to the agency's care by the statute") — *Air Line Pilots Association, International v. Department of Transportation, Trans International Airlines, Inc., Intervenor, D.C. Cir., 1986*

1 (deference to agency has been "consistently followed by this Court whenever decision as to the meaning or reach of a statute has involved reconciling conflicting policies") — *State of Kansas, Ex Rel. Ron Todd, Commissioner of Insurance of the State of Kansas v. United States of America, 10th Cir., 1993*

↑ **85. Sw. Airlines Co. v. Fed. Energy Regulatory Comm'n**
926 F.3d 851, D.C. Cir., 2019
In 2020-24: cited by 10 decisions (appellate) · in all: 13 · 2021–2025: 10 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 13 of 13 citing opinions, filed 2020–2024: status now, not the year it changed)
Travels with: FCC v. Fox (cosine 0.06, 8 both); Encino Motorcars (cosine 0.03, 5 both); State Farm (cosine 0.03, 9 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (holding that "the Commission's consistent practice, whether adopted expressly in a holding or established impliedly through repetition, sets the baseline from which future departures must be explained" (emphasis added)) — *FDA, 5th Cir., 2024*
- **1** ("But however the agency justifies its new position, what it may not do is gloss over or swerve from prior precedents without discussion.") — *FERC, D.C. Cir., 2022*
- **1** ("A full and rational explanation becomes especially important when, as here, an agency elects to shift its policy or depart from its typical manner of administering a program." (quotation omitted)) — *FDA, 5th Cir., 2021*

↑ **86. Long Island Power Authority v. FERC**
27 F.4th 705, D.C. Cir., 2022
In 2020-24: cited by 12 decisions (appellate) · in all: 19 · 2021–2025: 19 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 19 of 19 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.10, 7 both); FERC (cosine 0.07, 6 both); Electric Power Supply (cosine 0.04, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("Vacatur is the normal remedy under the APA . . . .") — *Hill, D.D.C., 2023*
- **1** ("[The agency] cannot rehabilitate its preferred interpretation on remand.") — *Iap Worldwide Services, Inc. v. United States, Fed. Cl., 2022*
- **1** (hybrid cost-allocation formula split 50:50 between two methods, one for local benefits and the other for regional benefits, would not violate the cost-causation principle just because a 60:40 split "one way or the other" might better reflect reality) — *FERC, D.C. Cir., 2025*
- **1** ("The 'seriousness' of agency error turns in large part on 'how likely it is the agency will be able to justify its decision on remand.'" (quoting Heartland, 566 F.3d at 197)) — *Iap Worldwide Services, Inc. v. United States, Fed. Cl., 2022*

↑ **87. Iselin v. United States**
270 U.S. 245, SCOTUS, 1926
In 2020-24: cited by 25 decisions (appellate) · in all: 286 · 2021–2025: 42 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 327 citing opinions, filed 2014–2026: status now, not the year it changed)
Role changed 1990-94: likely successor Casey, 499 U.S. 83 (1991) (67% of the 18 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Travels with: Lamie (cosine 0.10, 5 both)
How later courts describe it (26 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** ("enlargement of [a statute] by [a] court, so that what was omitted, presumably by inadvertence, may be included within its scope . . . transcends the judicial function") — *Logan, SCOTUS, 2007*
- **6** (holding that the courts will not read language into a statute where it would result in "an enlargement of [the statute] by the court, so that what was omitted ... may be included within its scope") — *Usda, 9th Cir., 2014*
- **5** (holding that, when statute is drawn with care and its text is plain and unambiguous, courts are precluded from supplying presumably inadvertent statutory omissions because doing so "transcends the judicial function") — *Langley, Or., 2018*
- **1** (courts must give effect to clear language of particularized statutes) — *Antosh, D.D.C., 1987*
- **1** ("[W]hen a statute is silent as to a term, courts lack the authority to add to what the text states or reasonably implies.") — *Rodriguez, Idaho Ct. App., 2021*
- **1** ("With a plain, nonabsurd meaning in view, we need not proceed in this way [by reading an absent word into the statute].") — *In Re National Forge Co., W.D. Pa., 2006*
- **1** (" '[w]hat the Government asks is not a construction of a statute, but, in effect, an enlargement of it by the court' ") — *Byrd, D.C., 1991*
- **1** (supplying - 33 - "omissions [to a statutory scheme] transcends the judicial function") — *Steven Wayne Shifflett v. Commonwealth of Virginia, Va. Ct. App., 2024*

↑ **88. Transcanada Power Marketing Ltd. v. Federal Energy Regulatory Commission**
811 F.3d 1, D.C. Cir., 2015
In 2020-24: cited by 15 decisions (appellate) · in all: 26 · 2021–2025: 19 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 26 of 26 citing opinions, filed 2017–2025: status now, not the year it changed)

Travels with: FERC (cosine 0.10, 5 both); FERC (cosine 0.06, 5 both); Electric Power Supply (cosine 0.03, 5 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("It is well established that the Commission must 'respond meaningfully to the arguments raised before it.'") — *FERC, D.C. Cir., 2021*
- **1** (faulting Commission because it "simply never addressed" petitioner's argument) — *FERC, D.C. Cir., 2021*
- **1** ("[I]n all cases, the Commission must explain its reasoning.") — *FERC, D.C. Cir., 2022*
- **1** (The duty to reasonably explain extends to "all cases," including cases in which FERC sets new just and reasonable rates.) — *FERC, D.C. Cir., 2022*
- **1** ("[T]he Board did not err in deciding [that the noncitizen's] solicitation conviction constituted a crime involving moral turpitude") — *Dolores Ortega-Cordova v. Merrick Garland, 4th Cir., 2024*
- **1** (dismissing Commission argument as "specious because it does not address the valid concern raised by" party) — *FERC, D.C. Cir., 2021*

↑

89. United States v. Arnold Maurice Mathis

767 F.3d 1264, 11th Cir., 2014
In 2020-24: cited by 12 decisions (appellate) · in all: 46 · 2021–2025: 13 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 53 of 53 citing opinions, filed 2014–2026: status now, not the year it changed)
Travels with: Lockhart (cosine 0.15, 9 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (rejecting a sufficiency-of-the-evidence challenge to a § 2251(a) conviction of a defendant who sent a text message to a minor "offer[ing] to pay [the minor] for a picture of [her] genitalia" and "direct[ing the minor] to take sexually explicit pictures") — *United States v. Matthew Bryan Caniff, 11th Cir., 2019*
- **2** ("We have explained that an affidavit should establish a connection between the defendant and the property to be searched and a link between the property and any criminal activity." (citation modified), , 577 U.S. 347 (2016)) — *Summers, N.D. Ga., 2025*
- **2** (probable cause existed because affiants showed evidence of communications between suspect and alleged victim on the suspect's phone) — *Stevenson, Md., 2017*
- **1** ("[The defendant] does not argue on appeal that [the out-of-court statements] were testimonial and he has 'therefore abandoned an issue on which he had to prevail in order to obtain reversal.'" (quoting King, 751 F.3d at 1277)) — *United States v. Matthew Andrew Carter, 11th Cir., 2015*
- **1** (appellant cannot resurrect an abandoned issue by raising it at oral argument) — *Federal Trade Commission v. Steven J. Dorfman, 11th Cir., 2023*
- **1** (probable cause to search defendant's cell phone about calls years earlier because, "based on [the officer's] knowledge, experience, and training," individuals who sexually abuse children sometimes keep copies of communications with their victims "for many years") — *Wilson, Ga., 2023*
- **1** (holding "that a defendant's use of a cell phone to call and send text messages constitutes the use of a computer, as that term is defined in 18 U.S.C. § 1030(e)(1), and warrants imposition of an enhancement under [United States Sentencing Guideline] § 2G2.1(b)(6)") — *United States v. George Adrien Brooks, 11th Cir., 2018*
- **1** (holding that "use of a cell phone to call and send text messages constitutes the use of a computer" to solicit a minor to engage in sexually explicit conduct under a definition of computer similar to AS 11.46.990(3)) — *Dusty J. Cowan v. State of Alaska, Alaska Ct. App., 2024*

↑

90. Alliance for the Wild Rockies v. Usfs

907 F.3d 1105, 9th Cir., 2018
In 2020-24: cited by 12 decisions (appellate) · in all: 72 · 2021–2025: 49 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 72 of 72 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Pollinator Stewardship Council v. U.S. Environmental Prot... (cosine 0.14, 6 both); California Communities Against Toxics v. United States En... (cosine 0.07, 6 both); State Farm (cosine 0.02, 5 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (finding "no reason not to vacate the lower court's decision" where "mootness was not caused by the [appellant] in an attempt to evade an adverse decision") — *Pg&e, 9th Cir., 2020*
- **1** ("A project is consistent [with NFMA] if it conforms to the applicable 'components' of the forest plan, including the standards, guidelines, and desired conditions that are set forth in the forest plan and that collectively establish the details of forest management.")
- **1** ("Our original 17 opinion cited to 36 C.F.R. § 219.15. However, because the Payette National Forest Plan was adopted 18 pursuant to the 1982 regulations, the newer regulations, promulgated in 2012, are inapplicable. 36 19 C.F.R. § 219.17(c) — *Central Sierra Environmental Resource Center v. Stanislaus National Forest, E.D. Cal., 2019*
- **1** ("Although not without exception, vacatur of an unlawful agency action normally accompanies a remand." (citing Alsea Valley All. v. Dep't of Com., 358 F.3d 1181, 1185 (9th Cir. 2004))) — *Iap Worldwide Services, Inc. v. United States, Fed. Cl., 2022*

1 (under 13 NFMA "[s]ite specific projects and activities must be consistent with an approved 14 forest plan.") — *Alliance For The Wild Rockies v. US Forest Service, E.D. Wash., 2025*

1 ("Ultimately, when reviewing for NEPA compliance, we look to whether the agency performed the NEPA analysis on the subject action.") — *MONROE COUNTY BOARD OF COMMISSIONERS v. UNITED STATES FOREST SERVICE, S.D. Ind., 2025*

1 (" '[O]rdinarily when a regulation is not promulgated in compliance with the APA, the regulation is invalid.' ") — *Devos, N.D. Cal., 2019*

1 (explaining presumption of 8 vacatur under the APA must be overcome by the party seeking remand without vacatur) — *Center for Biological Diversity v. United States Environmental Protection Agency, D. Ariz., 2024*

↑

91. State ex rel. Plain Dealer Publishing Co. v. City of Cleveland

106 Ohio St. 3d 70, Ohio, 2005
In 2020-24: cited by 8 decisions (appellate) · in all: 34 · 2021–2025: 8 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 37 of 37 citing opinions, filed 2006–2024: status now, not the year it changed)
Travels with: BedRoc (cosine 0.22, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

2 (stating that " 'our inquiry begins with the statutory text, and ends there as well if the text is unambiguous' ") — *State ex rel. Allen Industries, Inc. v. Indus. Comm., Ohio Ct. App., 2024*

↑

92. Entergy Corp. v. Riverkeeper, Inc.

556 U.S. 208, SCOTUS, 2009
In 2020-24: cited by 19 decisions (appellate) · in all: 157 · 2021–2025: 31 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 182 citing opinions, filed 2016–2024: status now, not the year it changed)
Role changed 2015-19: likely successor Utility Air, 134 S. Ct. 2427 (2014) (28% of the 51 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: Chevron (cosine 0.04, 12 both)
How later courts describe it (37 parentheticals; groups of similar wording, largest first; other courts' words)

11 (holding that an agency's "view governs if it is a reasonable interpretation of the statute — not necessarily the only possible interpretation, nor even the interpretation deemed most reasonable by the courts") — *Sebelius, D.C. Cir., 2009*

4 (embracing single-step analysis because "if Congress has directly spoken to an issue then any agency interpretation contradicting what Congress has said would be unreasonable") — *Tibble, 9th Cir., 2013*

4 (holding that "[i]t is eminently reasonable" to conclude that statute's silence "is meant to convey nothing more than a refusal to tie the agency's hands") — *Wilmer Garcia Carias v. Eric Holder, Jr., 5th Cir., 2012*

3 ("[U]nder Chevron, that an agency is not required to do so does not mean that an agency is not permitted to do so.") — *Wilmer Garcia Carias v. Eric Holder, Jr., 5th Cir., 2012*

3 (declining to resolve whether "cost-benefit analysis is precluded under the [BAT] ... test[ ]") — *Southwestern Elec. Power Co. v. U.S. E.P.A., 5th Cir., 2019*

2 (cone. & dis. opn. of Breyer, J.) — *Voices of the Wetlands v. State Water Resources Control Board, Cal., 2011*

2 ("[W]hether it is 'reasonable' to bear a particular cost may well depend on the resulting benefits; if the only relevant factor was the feasibility of the costs, their reasonableness would be irrelevant.") — *Texas v. United States Environmental Protection Agency, 5th Cir., 2016*

2 ("The inference that respondents and the dissent would draw from the silence is, in any event, implausible, as § 1326(b) — *Wilmer Garcia Carias v. Eric Holder, Jr., 5th Cir., 2012*

↑

93. Hydro Resources, Inc. v. United States Environmental Protection Agency

608 F.3d 1131, 10th Cir., 2010
In 2020-24: cited by 10 decisions (appellate) · in all: 41 · 2021–2025: 12 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 46 of 46 citing opinions, filed 2010–2025: status now, not the year it changed)
Travels with: ATF (cosine 0.13, 5 both); Mead (cosine 0.03, 5 both); Chevron (cosine 0.01, 6 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

1 (noting the EPA's "considerable discretion under the SDWA") — *Garling, 10th Cir., 2017*

1 (business costs of undertaking permitting process are injury in fact) — *Kasich, Ohio Ct. App., 2016*

1 ("[W]e need not decide whether EPA's interpretation of the statute is entitled to deference because, throughout the -15- proceedings before the panel and now the en banc court, EPA itself hasn't claimed any entitlement to deference.") — *Aposhian, 10th Cir., 2021*

1 ("Courts do not . . . afford the same deference to an agency's interpretation of a statute lying outside the compass of its particular expertise and special charge to administer.") — *Blanca Telephone Company v. FCC, 10th Cir., 2021*

1 (noting a court relies on the adversarial process "to test the issues for [its] decision and from concern for the affected parties to whom [it] traditionally extend[s] notice and an opportunity to be heard on issues that affect them") — *Ace-Federal Reporters,*

Inc v. United States, Fed. Cl., 2020

1 (explaining that allotments outside reservations are stray parcels of land that are set aside and subject to superintendence for individual Indians in Indian country even though adjacent parcels are not) — *Vandever, N.M. Ct. App., 2012*

1 (stating that "Church Rock Chapter was first established ... by the United States as a subdivision oftheNavajo Nation government" (internal quotation marks and citation omitted)) — *Vandever, N.M. Ct. App., 2012*

↑

94. American Fuel & Petrochemical v. EPA

937 F.3d 559, D.C. Cir., 2019

In 2020-24: cited by 10 decisions (appellate) · in all: 24 · 2021–2025: 20 · weight in the sub-cluster 5

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 24 of 24 citing opinions, filed 2019–2025: status now, not the year it changed)

Travels with: Americans for Clean Energy v. Environmental Protection Ag... (cosine 0.11, 5 both); State Farm (cosine 0.03, 5 both); FCC v. Fox (cosine 0.02, 5 both)

How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

3 (aesthetic and recreational interest in observing whooping cranes) — *Haaland, D.D.C., 2024*

1 (applying arbitrary and capricious review to EPA's general waiver determination) — *Growth Energy v. EPA, D.C. Cir., 2021*

1 ("As to causation, the [agency's] alleged failure to comply with its [statutory] obligations is plainly connected to the setting of standards in the [challenged] Rule[.]") — *Haaland, D.D.C., 2025*

1 ("Certainly [the] EPA must provide a reasoned explanation for its actions, but rationality does not always imply a high degree of quantitative specificity.") — *Growth Energy v. EPA, D.C. Cir., 2021*

1 (finding plaintiffs to have standing where EPA failed to follow its own Endangered Species Act procedures where organizational members had "aesthetic and recreational interests" in observing the species at issue) — *Devos, D.D.C., 2019*

1 (standing established where "the members of the [organizational plaintiff] share a geographic nexus with areas likely affected by the [challenged action]") — *Haaland, D.D.C., 2025*

1 (finding that EPA's failure to determine whether a rule may affect endangered species or critical habitat as required under the Endangered Species Act was a procedural injury) — *Natural Resources Defense Council, Inc. v. U.S. Fish and Wildlife Service, D.D.C., 2023*

1 (reasoning that the redressability requirement was met because "[t]here remains at least the possibility that the [agency] could set different standards" (internal quotation marks and citation omitted)) — *Haaland, D.D.C., 2025*

↑

95. United States v. Western Pacific Railroad

352 U.S. 59, SCOTUS, 1956

In 2020-24: cited by 25 decisions (appellate) · in all: 1,446 · 2021–2025: 108 · weight in the sub-cluster 5

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 1,532 citing opinions, filed 2021–2026: status now, not the year it changed)

Role changed 1990-94: likely successor Maislin Industries, 497 U.S. 116 (1990) (36% of the 83 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)

Travels with: Reiter (cosine 0.18, 7 both)

How later courts describe it (86 parentheticals; groups of similar wording, largest first; other courts' words)

12 ("To use the statute of limitations to cut off the consideration of a particular defense in the case is quite foreign to the policy of preventing the commencement of stale litigation.") — *City Of Saint Paul, Alaska v. Donald Evans, 9th Cir., 2003*

11 (noting that in cases referring issues on the basis of primary jurisdiction, "the judicial process is suspended pending referral of such issues to the administrative body for its views.") — *Erie Insurance Exchange v. Richard Stover, 3rd Cir., 2015*

6 (stating "[n]o fixed formula exists for applying the doctrine of primary jurisdiction. In every case the question is whether the reasons for the existence of the doctrine are present and whether the purposes it serves will be aided by its application in the particular litigation.")

6 (noting that "the application of the doctrine of primary jurisdiction is a matter of deference, policy[,] and comity, not subject matter jurisdiction.") — *Matthews, S.D. Ala., 2018*

3 (statutes of limitations do not apply to defenses) — *Algrant v. Evergreen Valley Nurseries Limited Partnership, 3rd Cir., 1997*

3 ("Where the question is simply one of construction, the courts may pass on it as an issue 'solely of law'") — *In Re United Shipping Co., Bankr. D. Minn., 1991*

3 (explaining that, like an exhaustion of remedies requirement, the primary jurisdiction doctrine "is concerned with promoting proper relationships between the courts and administrative agencies charged with particular regulatory duties") — *Smith v. Gte Corporation, Gte, 11th Cir., 2001*

2 ("[T]he mere fact that the issue is phrased ... as a matter of reasonableness should not be determinative on the jurisdictional issue. To hold otherwise would make the doctrine of primary jurisdiction an abstraction to be called into operation at the whim of the pleader") — *Trans-Allied Audit Co. v. Ram Trans, Inc., D. Colo., 1989*

↑

96. State ex rel. LetOhioVote.org v. Brunner

123 Ohio St. 3d 322, Ohio, 2009

In 2020-24: cited by 17 decisions (appellate) · in all: 44 · 2021–2025: 16 · weight in the sub-cluster 5

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 55 of 55 citing opinions, filed 2009–2025: status now, not the year it changed)
Travels with: DEA (cosine 0.11, 7 both)
No parentheticals.

↑

97. Environmental Defense Fund v. FERC

2 F.4th 953, D.C. Cir., 2021
In 2020-24: cited by 10 decisions (appellate) · in all: 23 · 2021–2025: 23 · weight in the sub-cluster 5
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 23 of 23 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.08, 6 both); FERC (cosine 0.06, 6 both); NRDC (cosine 0.05, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (Certificate Order issued August 2019, opinion issued June 2021) — *FERC, D.C. Cir., 2024*
- **1** (vacatur appropriate where agency action was informed by deficient proceedings) — *Center for Biological Diversity v. Lee Zeldin, D.C. Cir., 2026*
- **1** (finding vacatur appropriate in light of a serious administrative error even though the pipeline at issue was already operational) — *Haaland, D.D.C., 2022*
- **1** (noting that "the second Allied-Signal factor is weighty only insofar as the agency may be able to rehabilitate its rationale" (quotation omitted)) — *FERC, D.C. Cir., 2024*
- **1** (noting that the applicant never "submitted a market study to the Commission to show the need for, and benefits of, the proposed project") — *FERC, D.C. Cir., 2025*

↑

98. United States v. Home Concrete & Supply, LLC

132 S. Ct. 1836, SCOTUS, 2012
In 2020-24: cited by 9 decisions (appellate) · in all: 93 · 2021–2025: 28 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 105 citing opinions, filed 2012–2025: status now, not the year it changed)
Travels with: Brand X Internet (cosine 0.06, 5 both); Kisor (cosine 0.02, 6 both); Chevron (cosine 0.02, 7 both)
How later courts describe it (18 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("[A] statute's silence or ambiguity as to a particular issue means that Congress has . . . likely delegat[ed] gap-filling power to the agency[.]") — *Oregon Restaurant and Lodging v. Thomas Perez, 9th Cir., 2016*
- **2** ("Chevron and later cases find in unambiguous language a clear sign that Congress did not delegate gap-filling authority to an agency[.]") — *Nacs, D.D.C., 2013*
- **2** (holding that an overstatement of basis in sold property does not constitute an omission from income, for statute of limitations purposes) — *Basr Partnership, by and Through, William F. Pettinati, Sr., Tax Matters Partner v. United States, Fed. Cl., 2013*
- **2** (holding that judicial identification of clear congressional intent in statutory text precludes agency from adopting different interpretation) — *FERC, 2d Cir., 2015*
- **1** ("linguistic" ambiguity insufficient to invoke Chevron) — *Aereokiller, C.D. Cal., 2015*
- **1** (making similar assumption in applying section 6501(e)) — *Athanasios Pragias & Cynthia Pragias, Tax Ct., 2021*
- **1** ("The fact that a statute is unambiguous means that there is no gap for the agency to fill of analysis that it applies will thereafter be followed by the lower courts within that system, and even by that supreme court itself.") — *United States v. Lois Jochinto Orta, 6th Cir., 2025*
- **1** ("[Overstatements of basis, and the resulting understatement of gross income, do not trigger the extended limitations period.... ") — *Commissioner, 2d Cir., 2012*

↑

99. Kientz v. Commissioner, SSA

954 F.3d 1277, 10th Cir., 2020
In 2020-24: cited by 9 decisions (appellate) · in all: 13 · 2021–2025: 7 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 13 of 13 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Donald Larry Martin v. Social Security Administration, Co... (cosine 0.36, 5 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (waiver of argument asserted for the first time in a reply brief) — *Hoffmeister, 10th Cir., 2020*
- **1** (relying on the limiting function of the preposition on to interpret a statute) — *HHS, 10th Cir., 2024*
- **1** (defining wholly to mean "'entirely' or 'exclusively'" (quoting Wholly, AMERICAN HERITAGE DICTIONARY OF THE ENGLISH LANGUAGE 1463 (1981))) — *David Babcock v. Comm'r of Soc. Sec., 6th Cir., 2020*
- **1** (explaining that 15 1 "any pension payment that [p]laintiff receives based on work outside of his 2 exclusive capacity as a National Guard member does not qualify for the uniformed 3 services exception") — *Linza, 2d Cir., 2021*

↑ **100. Lightfoot v. Cendant Mortg. Corp.**
580 U.S. 82, SCOTUS, 2017
In 2020-24: cited by 21 decisions (appellate) · in all: 199 · 2021–2025: 107 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 200 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Bragdon (cosine 0.12, 5 both)
How later courts describe it (54 parentheticals; groups of similar wording, largest first; other courts' words)

- **28** ("A court of competent jurisdiction is a court with the power to adjudicate the case before it.") — *Jonson, 1st Cir., 2017*
- **17** (distinguishing between "the Court of Federal Claims" and "the federal district courts") — *Redmond, Fed. Cl., 2022*
- **2** ("the plain text of § 1631 indicates that it may apply when a district court finds that it lacks subject-matter jurisdiction, personal jurisdiction, or both") — *H C & D L L C v. Cashman Equipment Corp, W.D. La., 2023*
- **1** ("[T]he unnamed putative class members are not yet before the court.") — *Michael Molock v. Whole Foods Market, Inc., D.C. Cir., 2020*
- **1** ("[W]e hold that Fannie Mae is not a state actor. Accordingly, the foreclosure did not violate the Fifth Amendment.") — *Leo Blas v. Bank of America N.A.; BAC Home Loans Servicing, LP; Clear Recon Corp.; Aldridge Pite, LLP; and Bank of America Corp., Alaska, 2019*
- **1** ("[T]he phrase 'court of competent jurisdiction' [refers] to a court with an existing source of subject-matter jurisdiction.") — *Lexington Insurance Company v. Cindy Smith, 9th Cir., 2024*
- **1** (providing history of Fannie Mae's evolution from public agency to private government-sponsored entity) — *fhlmc/freddie Mac v. Sfr Investments Pool 1, LLC, 9th Cir., 2018*
- **1** (noting that the court held the sue-and-be-sued clause of the federal charter at issue in Bankers Trust did not grant subject matter jurisdiction) — *Philadelphia Indemnity Insurance Company v. United States Olympic Committee, D. Colo., 2020*

↑ **101. United States v. Lightbourn**
115 F.3d 291, 5th Cir., 1997
In 2020-24: cited by 18 decisions (appellate) · in all: 34 · 2021–2025: 14 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 35 of 35 citing opinions, filed 1999–2024: status now, not the year it changed)
Travels with: United States v. Troy Kendrick, Jr. (cosine 0.21, 7 both); Kisor (cosine 0.01, 6 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (holding that, because the conspiracy continued into the time period governed by the new Guidelines, their application did not violate the Ex Post Facto Clause) — *United States v. Vaughn, Gene B., 7th Cir., 2006*

↑ **102. National Family Farm Coalition v. Usepa**
966 F.3d 893, 9th Cir., 2020
In 2020-24: cited by 16 decisions (appellate) · in all: 42 · 2021–2025: 39 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 42 of 42 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Pollinator Stewardship Council v. U.S. Environmental Prot... (cosine 0.06, 5 both); California Communities Against Toxics v. United States En... (cosine 0.05, 5 both); State Farm (cosine 0.03, 7 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("We accord deference to EPA in the way it chose to define the action area.")
- **1** (agency decision is arbitrary or capricious "only if the agency relied on factors Congress did not intend it to consider, . . . or is so implausible that it could not be ascribed to a difference in view or the product of agency expertise" (citation omitted)) — *Usfs, 9th Cir., 2022*
- **1** ("Although the Interim Report is not in the administrative 8 record, we can consider it 'for the limited purpose[] of reviewing [Petitioners'] ESA claim.'" 9 (quoting Kraayenbrink, 632 F.3d at 497)) — *Don't Cage Our Oceans v. United States Army Corps of Engineers, W.D. Wash., 2023*
- **1** ("[T]he standing inquiry focuses on whether the [plaintiff]'s injury is 'fairly traceable to the challenged conduct.'" (quoting WildEarth Guardians y. U.S. Dep't of Agric., 795 F.3d 1148, 1154 (9th Cir. 2015))) — *Moran, E.D. Va., 2024*
- **1** (observing "there is evidence of 5 potentially serious disruption if a pesticide that has been registered for over five years can no 6 longer be used") — *Vilsack, N.D. Cal., 2024*
- **1** (considering information outside the administrative record for the limited purpose of reviewing an ESA claim but not when reviewing a FIFRA claim) — *Bolling, D. Idaho, 2021*
- **1** (rejecting the defendants' argument that the plaintiffs' claims were not redressable because vacatur of the pesticide registration would not alter existing uses of the pesticide) — *Shea, D. Or., 2024*
- **1** (explaining that agencies need not adopt new modeling approaches requiring extensive changes to existing models and their inputs) — *Usfs, 9th Cir., 2022*

↑ **103. Nyunt v. Chairman, Broadcasting Board of Governors**
589 F.3d 445, D.C. Cir., 2009
In 2020-24: cited by 12 decisions (appellate) · in all: 89 · 2021–2025: 47 · weight in the sub-cluster 4

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 89 of 89 citing opinions, filed 2010–2026: status now, not the year it changed)
Travels with: Leedom (cosine 0.16, 5 both); DCH Regional Medical Center v. Alex M. Azar II (cosine 0.12, 7 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("When Congress wants to preserve remedies outside the CSRA, it does so expressly . . . .") — *Nia Lucas v. American Federation of Government Employees, D.C. Cir., 2025*
- **2** (holding that a statutory provision requiring an agency to hire "suitably qualified" U.S. citizens was not subject to ultra vires review) — *USPS, D.C. Cir., 2022*
- **1** ("This Court has repeatedly held that federal employees may not bring employment and personnel suits of this kind under the APA, but instead must pursue such claims under the elaborate administrative and judicial review system set up by the Civil Service Reform Act of 1978.") — *Grant, D.D.C., 2017*
- **1** (Leedom exception permits "judicial review of agepcy action for alleged statutory violations even when a statute precludes review.... where (i) the statutory preclusion of review is implied rather than express; (ii) there is no alternative procedure for review of the statutory claim; and (iii) — *American Federation of Government Employees v. Secretary of the Air Force, D.C. Cir., 2013*
- **1** ("[F]ederal employees," such as plaintiff "an international radio broadcaster [at] [VOA]," "may not bring employment and personnel suits . . . under the APA.") — *Turner, D.D.C., 2020*
- **1** (describing an ultra vires claim as "a Hail Mary pass – and in court as in football, the attempt rarely succeeds.") — *Carter, D.D.C., 2025*
- **1** (determining the Leedom exception to final agency action should only apply when "there is no alternative procedure for review of the [] claim") — *Board of Dental Examiners of Alabama v. Federal Trade Commission, N.D. Ala., 2021*
- **1** (noting that the Leedom doctrine "permits, in certain limited circumstances, judicial review of agency action for alleged statutory violations even when a statute precludes review" (citing Leedom v. Kyne, 358 U.S. 184 (1958))) — *Elwell, D.D.C., 2020*

↑

104. Business Roundtable v. Securities & Exchange Commission

647 F.3d 1144, D.C. Cir., 2011
In 2020-24: cited by 8 decisions (appellate) · in all: 30 · 2021–2025: 14 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 32 of 32 citing opinions, filed 2011–2025: status now, not the year it changed)
Travels with: Chamber of Commerce of United States v. Securities & Exch... (cosine 0.28, 7 both); State Farm (cosine 0.02, 6 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (agency "failed adequately to quantify the certain costs or to explain why those costs could not be quantified") — *DOT, D.C. Cir., 2023*
- **1** (finding Exchange Act analysis insufficient where agency "did nothing to estimate and quantify the costs it expected companies to incur; nor did it claim estimating those costs was not possible, for empirical evidence . . . was readily available") — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*
- **1** (reviewing proxy rule adopted by the SEC based on its belief that "the current process impede[d] the expression of shareholders' right under state corporation laws to nominate and elect directors") — *National Association of Manufacturers v. Securities and Exchange Commission, D.D.C., 2013*
- **1** (stating that the Exchange Act requires that the SEC "apprise itself — and hence the public and the Congress — of the economic consequences of a proposed regulation" (quoting Chamber of Com. v. SEC, 412 F.3d 133, 144 (D.C. Cir. 2005))) — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*
- **1** (employing "arbitrary and capricious" standard and emphasizing the SEC's "statutory obligation to determine as best it can the economic implications of the rule") — *Investment Company Institute v. United States Commodity Futures Trading Commission, D.D.C., 2012*
- **1** (holding that "[b]ecause the [SEC] failed to 'make tough choices about which of the competing estimates is most plausible, [or] to hazard a guess as to which is correct,' . . . it neglected its statutory obligation to assess the economic consequences of its rule" (third alteration in original) — *New York Stock Exchange LLC v. SEC, D.C. Cir., 2020*
- **1** (holding that the SEC's "discussion of the estimated frequency of [shareholder director] nominations under [its rule wa]s internally inconsistent and therefore arbitrary") — *Loan Syndications and Trading Association v. Securities and Exchange Commission, D.D.C., 2016*

↑

105. Quinchia v. U.S. Attorney General

552 F.3d 1255, 11th Cir., 2008
In 2020-24: cited by 8 decisions (appellate) · in all: 71 · 2021–2025: 7 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 76 of 76 citing opinions, filed 2008–2025: status now, not the year it changed)
Travels with: Skidmore (cosine 0.06, 5 both); Chevron (cosine 0.02, 8 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("The Supreme Court has [ ] instructed that the 'principles of Chevron deference are applicable' to the BIA 'as it gives ambiguous statutory terms concrete meaning through a process of case-by-case adjudication.' ") — *Jorge O. Arevalo v. U.S. Attorney General, 11th Cir., 2017*

2 (holding that while Chevron deference applies to precedential, three-member Board decisions, it does not apply to single-judge Board decisions that do not rely on precedent) — *Pankajkumar S. Patel v. U.S. Attorney General, 11th Cir., 2019*

1 ("[W]e find that the 'lawfully resided continuously' requirement in 212(h) is ambiguous") — *Rotimi, 2d Cir., 2009*

1 (determining Chevron deference applied to 1 Chevron U.S.A. Inc. v. Nat. Res. Def. Council, Inc., 467 U.S. 837, 104 S. Ct. 2778 (1984) — *Gladys Teye v. U.S. Attorney General, 11th Cir., 2018*

↑

106. United States Sugar Corp. v. Environmental Protection Agency

830 F.3d 579, D.C. Cir., 2016
In 2020-24: cited by 12 decisions (appellate) · in all: 61 · 2021–2025: 20 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 64 of 64 citing opinions, filed 2016–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 5 both); Chevron (cosine 0.02, 7 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

2 (describing factor as simply likelihood of "cure on remand") — *Vanda Pharmaceuticals, Inc. v. Food and Drug Administration, D.D.C., 2019*

2 (regulation must reflect a "permissible reading" of the statute) — *Humane Society of the United States v. Ryan Zinke (Lead), D.C. Cir., 2017*

2 ("Title V does no more than consolidate existing . . . requirements into a single document . . . without imposing any new substantive requirements." (quoting Sierra Club v. Leavitt, 368 F.3d 1300, 1302 (11th Cir. 2004)) (cleaned up)) — *Environmental Integrity Proj v. EPA, 5th Cir., 2020*

2 (explaining that an agency's determination is arbitrary and capricious if its decision runs counter to the evidence before the agency) — *Forest Cnty. Potawatomi Cmty. v. United States, D.C. Cir., 2018*

1 (Congress wanted sources to pollute no worse than "their best performing peers") — *United States Sugar Corporation v. EPA, D.C. Cir., 2024*

1 ("[W]e will uphold a decision of less than ideal clarity if the agency's path may reasonably be discerned.") — *Tiare Enterprises, Inc. v. United States Department of Transportation, D.D.C., 2017*

1 (The reasonableness inquiry "requires the surrogate's emissions to share a close relationship with the emissions of the [target hazardous air pollutant].") — *Sierra Club v. Environmental Protection Agency, D.C. Cir., 2017*

1 (promulgating emission standards that satisfy "the statutory criteria is no easy task") — *United States Sugar Corporation v. EPA, D.C. Cir., 2024*

↑

107. Leedom v. Kyne

358 U.S. 184, SCOTUS, 1958
In 2020-24: cited by 11 decisions (appellate) · in all: 910 · 2021–2025: 47 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 998 citing opinions, filed 2013–2026: status now, not the year it changed)
Role changed 1970-74: likely successor McKart, 395 U.S. 185 (1969) (27% of the 55 decisions citing this case in 1970-74 also cite it). (co-citation, not the text)
Travels with: Nyunt v. Chairman, Broadcasting Board of Governors (cosine 0.16, 5 both); DCH Regional Medical Center v. Alex M. Azar II (cosine 0.11, 6 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (74 parentheticals; groups of similar wording, largest first; other courts' words)

11 (holding that the National Labor Relations Board had acted "in excess of its delegated powers and contrary to a specific prohibition of the [National Labor Relations] Act") — *Bell Atlantic Cash Balance Plan v. U.S. Equal Employment Opportunity Commission, E.D. Va., 1997*

10 (concluding that Congress favors "judicial protection of rights it confers against agency action taken in excess of its powers") — *William Carlton Dart v. United States of America, D.C. Cir., 1988*

5 (upholding injunction of agency action where petitioners had "no other means, within their control . . . to protect and enforce that right") — *Reich, SCOTUS, 1994*

3 (providing a narrow exception to the exhaustion requirement) — *School District v. Secretary of the United States Department of Education, 6th Cir., 2008*

3 (allowing district court jurisdiction to enjoin the NLRB from acting in a manner clearly contrary to statutory direction) — *AMERCO, 9th Cir., 2006*

3 (characterizing as a "right" the voting privilege granted to a private sector professional employee under similar provisions of the NLRA) — *National Association of Agriculture Employees v. Federal Labor Relations Authority, and Customs and Border Protection, Intervenor, 9th Cir., 2007*

2 (finding no clear statutory command) — *Cleopatra McDougal v. Alexis M. Herman, Secretary, U.S. Department of Labor, 3rd Cir., 1999*

2 (district court has jurisdiction to set aside unit determination made in excess of Board's powers) — *Wells Fargo Alarm Services v. National Labor Relations Board, 3rd Cir., 1976*

↑ **108. Good Fortune Shipping SA v. Comm'r of Internal Revenue**
897 F.3d 256, D.C. Cir., 2018
In 2020-24: cited by 11 decisions (appellate) · in all: 19 · 2021–2025: 13 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 19 of 19 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Encino Motorcars (cosine 0.03, 5 both); State Farm (cosine 0.02, 7 both); Chevron (cosine 0.02, 8 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (holding that an agency must engage in a "sufficiently reasoned analysis" that shows awareness and good reasons for changing a position) — *Juan Amaya v. Jeffrey Rosen, 4th Cir., 2021*
- **1** ("[W]e may * * * assume arguendo that the 9 Chevron, U.S.A., Inc. v. Nat. Res. Def. Council, Inc., 467 U.S. 837 (1984), provides the framework for analysis here unless and until that case is overruled. See Baldwin v. United States, 589 U.S. ___, 140 S. Ct. 690 (2020) — *Oakbrook Land Holdings, LLC, William Duane Horton, Tax Matters Partner v. Commissioner, Tax Ct., 2020*
- **1** (faulting the IRS for providing "only a single, undeveloped statement" of explanation for a rule that "appear[ed] to rewrite" statutory rules surrounding stock ownership) — *SIH Partners LLLP Explorer Par v. Commissioner of Internal Reven, 3rd Cir., 2019*

↑ **109. City of Oberlin, Ohio v. FERC**
937 F.3d 599, D.C. Cir., 2019
In 2020-24: cited by 8 decisions (appellate) · in all: 12 · 2021–2025: 10 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 12 of 12 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.16, 6 both); FERC (cosine 0.12, 6 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (remanding without vacatur because a pipeline was "currently operational" and vacatur "would be quite disruptive") — *Center for Biological Diversity v. Lee Zeldin, D.C. Cir., 2026*
- **1** (rejecting the City's argument that that a 59% subscription rate was too low to justify the Certificate) — *FERC, D.C. Cir., 2022*
- **1** (rejecting challenge to NEPA analysis that explained how applicant's "compliance with [another agency's] standards 34 would address the specific safety concerns that commenters raised") — *Food & Water Watch v. United States Department of Agriculture, D.D.C., 2020*

↑ **110. Nan Ya Plastics Corporation v. United States**
810 F.3d 1333, Fed. Cir., 2016
In 2020-24: cited by 19 decisions (appellate) · in all: 93 · 2021–2025: 28 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 93 of 93 citing opinions, filed 2016–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Solarworld Americas, Inc. v. United States, Yingli Green ..., 910 F.3d 1216 (2018) (37% of the 19 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Downhole Pipe & Equipment, L.P. v. United States (cosine 0.09, 7 both); Solarworld Americas, Inc. v. United States, Yingli Green ... (cosine 0.09, 7 both); Zhejiang Dunan Hetian Metal Co., Ltd. v. United States (cosine 0.07, 5 both)
How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("[A] court errs in adopting an interpretation of a statute that would create a tremendous burden on Commerce that is not required or suggested by the statute." (internal citation and quotation marks omitted)) — *BMW of N. Am. LLC v. United States, Fed. Cir., 2019*
- **2** ("Secondary information does not include information obtained from the subject [review], which is known as 'primary information.'") — *Deacero S.A.P.I. De C v. v. US, Fed. Cir., 2021*
- **2** (quot- ing Ningbo Dafa Chem. Fiber Co. v. United States, 580 F.3d 1247, 1253 (Fed. Cir. 2009)) — *Canadian Solar, Inc. v. United States, Fed. Cir., 2022*
- **2** (observing that Plaintiff failed to make its statutory interpretation "arguments within the operative Chevron framework. That misstep typically warrants a finding of waiver." (citing United States v. Great Am. Ins. Co., 738 F.3d 1320, 1328 (Fed. Cir. 2013) — *CSC Sugar LLC v. United States, Ct. Intl. Trade, 2020*
- **2** (holding that failure to present arguments under the operative legal framework "typically warrants a finding of waiver") — *Elbit Systems of America, LLC v. Thales Visionix, Inc., Fed. Cir., 2018*
- **1** (quot- ing SAA, 1994 U.S.C.C.A.N. 4040, 4199) — *Habas Sinai Ve Tibbi Gazlar v. United States, Fed. Cir., 2021*
- **1** (discussing burdens of proof in administrative proceedings before Commerce) — *Maverick Tube Corporation v. United States, Fed. Cir., 2017*
- **1** ("[C]ase law and the statute thus teach that a Commerce determination . . . is 'accurate' if it is correct as a mathematical and factual matter, thus supported by substantial evidence[.]") — *Bio-Lab, Inc. v. United States, Ct. Intl. Trade, 2026*

↑ **111. Dickinson v. Zurko**
527 U.S. 150, SCOTUS, 1999
In 2020-24: cited by 17 decisions (appellate) · in all: 944 · 2021–2025: 589 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 997 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: Securities & Exchange Commission v. Chenery Corp. (cosine 0.02, 5 both); State Farm (cosine 0.02, 7 both); Chevron (cosine 0.01, 7 both)
How later courts describe it (421 parentheticals; groups of similar wording, largest first; other courts' words)

- **362** (holding that a court reviewing agency action "must apply the APA's ... review standards in the absence of an exception," in recognition of "the importance of maintaining a uniform approach to judicial review of administrative action") — *Cftc, 9th Cir., 2016*
- **11** (holding that the Federal Circuit should not accord less deference to factual findings of the Patent and Trademark Office than courts accord to the findings of other agencies under the Administrative Procedure Act) — *Bright, Fed. Cir., 2010*
- **4** (describing that the "clearly erroneous" standard is "somewhat stricter" and allows "somewhat closer judicial review" than the substantial evidence standard) — *Gordon, D. Kan., 2025*
- **4** (stating that "manifest error," "clear case of error" and "clearly wrong" are phrases that "might be thought to mean the same thing") — *Dan Marius Andreiu v. John Ashcroft, Attorney General, 9th Cir., 2001*
- **3** (the substantial evidence standard requires a reviewing court "to ask whether a reasonable mind might accept a particular evidentiary record as adequate to support a conclusion") — *Abdul Al Qader Hussain v. Barack Obama, D.C. Cir., 2013*
- **3** ("The APA requires meaningful review; and its enactment meant stricter judicial review of agency factfinding than Congress believed some courts had previously conducted.") — *Saidou Dia v. John Ashcroft, Attorney General of the United States, 3rd Cir., 2003*
- **3** (rejecting the argument that the "two paths" for review would create "an anomaly" in the standard of review) — *CAE, Incorporated v. Clean Air Eng Inc, 7th Cir., 2001*
- **3** (stating that the PTO is an agency subject to the APA) — *In Re Stepan Co., Fed. Cir., 2011*

↑

112. Fishgold v. Sullivan Drydock & Repair Corp.

328 U.S. 275, SCOTUS, 1946
In 2020-24: cited by 14 decisions (appellate) · in all: 535 · 2021–2025: 29 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 508 of 602 citing opinions)
Role changed 1980-84: likely successor Coffy, 447 U.S. 191 (1980) (44% of the 23 decisions citing this case in 1980-84 also cite it). (co-citation, not the text)
Travels with: King (cosine 0.15, 7 both)
How later courts describe it (45 parentheticals; groups of similar wording, largest first; other courts' words)

- **12** (holding that the Selective Training and Service Act of 1940 "is to be liberally construed for the benefit of those who left private life to serve their country in its hour of great need") — *Rivera-Melendez, 1st Cir., 2013*
- **4** ("no practice of employers or agreements between employers and unions can cut down the service adjustment benefits which Congress has secured the veteran under the Act") — *United States v. New England Teamsters and Trucking Industry Pension Fund, 1st Cir., 1984*
- **4** (construing US-ERRA's predecessor statute, the Selective Service and Training Act of 1940 17) — *Serricchio, D. Conn., 2008*
- **2** ("Our problem is to construe the separate provisions of the [Se- lective Service] Act as parts of an organic whole and give each as liberal a construction for the benefit of the veteran as a harmonious interplay of the separate provisions per- mits.") — *Kisor, Fed. Cir., 2021*
- **2** (a returning service member shall be considered as having been on furlough or leave of absence during his period of service, with all of the insurance and other benefits accruing to employees on furlough or leave of absence) — *David O. Rassenfoss v. Department of the Treasury, MSPB, 2014*
- **2** (veterans rights statutes are 'to be liberally construed for the benefit of those who *** serve their country') — *Snide, Ohio, 1993*
- **2** ("A fair application of res judicata bars a party in a second litigation only if that proceeding involves the same issues as the first litigation between the same adverse parties or privies.") — *Culver, N.J., 1989*
- **2** ("He who was called to the colors was not to be penalized on his return by reason of his absence from his civilian job.") — *Pittman, Fed. Cir., 2007*

↑

113. The Wilderness Society Alaska Center for the Environment v. United States Fish & Wildlife Service

353 F.3d 1051, 9th Cir., 2003
In 2020-24: cited by 10 decisions (appellate) · in all: 155 · 2021–2025: 18 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 168 citing opinions, filed 2007–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.04, 7 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("[A] fundamental canon of construction provides that unless otherwise defined, words will be interpreted as taking their ordinary, contemporary, common meaning." (internal quotation marks omitted)) — *Tibble, 9th Cir., 2013*
- **2** (noting that the court, in discerning congressional intent, may also look to the overall purpose and structure of the statutory scheme) — *Alaska Department Of Health And Social Services v. Centers For Medicare And Medicaid Services, 9th Cir., 2005*
- **1** (discussing factors governing deference under Chevron, Mead, and Skid-more) — *High Sierra Hikers Ass'n v. United States Forest*

Service, E.D. Cal., 2006

1 (discussing supporting authority for examination of "purpose and effect") — *High Sierra Hikers Ass'n v. United States Forest Service, E.D. Cal., 2006*

1 (using dictionaries to determine the common sense meaning of words not defined in a statute) — *In re: DOUGLAS JEROME HARMON; CHRISTINE RENNA HARMON, 9th Cir. BAP, 2021*

1 (holding that if using traditional means of determining Congress's intent reveals that Congress spoke clearly, our inquiry is at an end) — *Lucine Trim v. Reward Zone USA LLC, 9th Cir., 2023*

↑

114. United States v. Sathon Evans

699 F.3d 858, 6th Cir., 2012
In 2020-24: cited by 8 decisions (appellate) · in all: 60 · 2021–2025: 11 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: yellow? (read the newest 61 of 61 citing opinions, filed 2012–2025: status now, not the year it changed)
2019 (6th Cir.): other grounds "abrogated", could overrule — *United States v. Lawrence Johnson*: t. 1265. We have used this same definition of physical force in interpreting the identical term in the Guidelines' elements clause. See United States v. Evans, [699 F.3d 858], 863 (6th Cir. 2012), abrogated on other grounds by United States v. Havis, 927 F.3d 382 (6th Cir. 2019) (en banc) (per
Role changed 2015-19: likely successor Mathis, 579 U.S. 500 (2016) (39% of the 28 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: United States v. Jeffery Havis (cosine 0.11, 7 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("One can knowingly cause or attempt to cause physical harm-i.e., physical injury-to another only by knowingly using or attempting to use physical force-i.e., force capable of causing physical injury.") — *United States v. Lawrence Johnson, 6th Cir., 2019*

1 (Ohio statute criminalizing an offer to sell-requiring an intent to sell-meets the Guidelines definition as an attempt based on the Ohio Supreme Court's interpretation of the criminal statute) — *United States v. Ledridge Thomas, 8th Cir., 2018*

1 (discussing placing an unconscious person in the middle of the road) — *Jose Hernandez-Maldonado v. William P. Barr, 6th Cir., 2019*

1 (relying on precedent interpreting the analogous ACCA language in construing the "use of physical force" clause of § 4B1.2) — *United States v. Melvin Morris, 6th Cir., 2018*

1 (holding that a "controlled substance offense" includes attempt crimes) — *United States v. Rodney Hymes, 6th Cir., 2021*

1 (holding that the district court did not abuse its discretion when it concluded that a defendant's "difficult upbringing" was "outweighed by his lengthy and serious criminal history") — *United States v. Joseph Banks, 6th Cir., 2018*

1 (recognizing that whether an offense qualifies as a "crime of violence" is a legal determination) — *United States v. Jamar Harris, 6th Cir., 2017*

1 (concluding that a state offense that requires "the intent to sell a controlled substance" suffices) — *Ochoa-Salgado, 5th Cir., 2021*

↑

115. United States v. La Franca

282 U.S. 568, SCOTUS, 1931
In 2020-24: cited by 9 decisions (appellate) · in all: 243 · 2021–2025: 12 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 275 citing opinions, filed 1996–2026: status now, not the year it changed)
Travels with: Reorganized CF&I (cosine 0.27, 5 both); NFIB (cosine 0.03, 6 both)
How later courts describe it (33 parentheticals; groups of similar wording, largest first; other courts' words)

14 ("[A] penalty, as the word is here used, is an exaction imposed by statute as punishment for an unlawful act") — *NFIB, SCOTUS, 2012*

4 (explaining that taxes ai'e "enforced contribution ^] to provide for the support of government") — *Dekalb County, Georgia v. United States, Fed. Cl., 2013*

3 ("The two words are not interchangeable one for the other") — *Florida Ex Rel. Attorney General v. United States Department of Health & Human Services, 11th Cir., 2011*

2 (differentiating a "tax" from a "penalty") — *Snyder Brothers, Inc. v. PA PUC PA Independent Oil & Gas Association v. PA PUC, Pa. Commw. Ct., 2017*

2 ("A statute must be construed, if fairly possible, so as to avoid not only the conclusion that it is unconstitutional, but also grave doubts upon that score." (quotation marks omitted)) — *Begay, 9th Cir., 2010*

2 ("if the concept of penalty means anything, it means punishment for an unlawful act or omission") — *In Re Hovan, Inc., 9th Cir., 1996*

2 (asking, but not answering, the question whether a penalty assessed in a civil proceeding may nonetheless constitute punishment for the purposes of double jeopardy analysis) — *Halper, SCOTUS, 1989*

2 (holding that a liquor tax assessed only against those prosecuted for illegal manufacture or sale of liquor was barred on statutory grounds, thus avoiding the "grave constitutional question" whether double jeopardy principles precluded such an assessment) — *Kurth Ranch, SCOTUS, 1994*

116. Hudgens v. McDonald

823 F.3d 630, Fed. Cir., 2016
In 2020-24: cited by 9 decisions (appellate) · in all: 28 · 2021–2025: 9 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 30 of 30 citing opinions, filed 2016–2023: status now, not the year it changed)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (67% of the 9 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Brown (cosine 0.11, 5 both); Kisor (cosine 0.02, 6 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("We review statutory and regulatory interpretations of the Veterans Court de novo." (quoting Johnson v. McDonald, 762 F.3d 1362, 1364 (Fed. Cir. 2014))) — *Parrott, Fed. Cir., 2017*
- **2** (applying Gardner and adopting the veteran's interpretation of a regulation as "consistent with the beneficence inherent in the veterans' benefits scheme") — *Cook, Vet. App., 2017*
- **1** ("[A]n agency's interpretation of its own regulation controls, unless the interpretation is 'plainly erroneous or inconsistent with the regulation.'" (quoting Auer v. Robbins, 519 U.S. 452, 461 (1997))) — *The Stanley Works (Langfang) Fastening Systems Co., Ltd. v. United States, Ct. Intl. Trade, 2017*
- **1** (examining Board decisions and the Secretary's litigating position in nonpreeedential decisions of the Court to determine whether the Secretary's proffered interpretation of a regulation was entitled to Auer deference) — *Southall-Normanv. McDonald, Vet. App., 2016*
- **1** (holding that DC 5055 applies to partial knee replacements) — *10-12 087, Board of Vet. App., 2016*

117. Northwestern Youth Services, Inc. v. Commonwealth

620 Pa. 140, Pa., 2013
In 2020-24: cited by 19 decisions (appellate) · in all: 46 · 2021–2025: 17 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 50 of 50 citing opinions, filed 2013–2026: status now, not the year it changed)
Travels with: UCBR (cosine 0.04, 5 both); Snyder Bros., Inc. v. Pa. Pub. Util. Comm'n (cosine 0.04, 5 both); Chevron (cosine 0.01, 9 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("Pennsylvania courts' treatment of deference to administrative agency rules has followed the United States Supreme Court's lead ....") — *UCBR, Pa., 2019*
- **1** (discussing law relating to federal and Pennsylvania administrative guidance materials) — *Kovacevich v. Regional Produce Cooperative Corp., Pa. Super. Ct., 2017*
- **1** (Commonwealth agency interpretation of a law it is not charged with administering or enforcing is not entitled to deference) — *Towamencin Twp. v. PA LRB, Pa. Commw. Ct., 2022*
- **1** (noting courts should defer to guidance documents that "explain preexisting legal obligations") — *Keystone Sanitary Landfill, Inc. v. Monroe County Municipal Waste Mgmt. Auth., Pa. Commw. Ct., 2024*
- **1** (setting forth standards for challenges to deference and procedural validity of non-legislative rules) — *Commonwealth, Pa. Commw. Ct., 2014*
- **1** (citing, inter alia , Chevron, U.S.A., Inc. v. Natural Res. Def. Council, Inc. , 467 U.S. 837 , 844-45, 104 S.Ct. 2778 , 2782-83, 81 L.Ed.2d 694 (1984)) — *Bucks Cnty. Servs., Inc. v. Phila. Parking Auth., Pa., 2018*
- **1** (surveying the different types of agency rules and the deference judicially accorded to each) — *Marcellus Shale Coal. v. Dep't of Envtl. Prot. of Pa., Pa., 2018*
- **1** (distinguishing legislative and interpretive rules by virtue of the processes by which they are promulgated) — *Crown Castle NG East LLC v. PUC, Aplt., Pa., 2020*

118. Republic National Bank of Miami v. United States

506 U.S. 80, SCOTUS, 1992
In 2020-24: cited by 14 decisions (appellate) · in all: 312 · 2021–2025: 30 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 341 citing opinions, filed 2012–2026: status now, not the year it changed)
Role changed 2010-14: likely successor Texans United for a Safe Economy Education Fund v. Crown ..., 207 F.3d 789 (2000) (47% of the 34 decisions citing this case in 2010-14 also cite it). (co-citation, not the text)
Travels with: Landgraf (cosine 0.06, 6 both)
How later courts describe it (35 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (holding that failure to file a supersedeas bond does not divest an appellate court of jurisdiction, as control over the res is only required at the initiation of civil forfeiture proceedings) — *United States v. 1988 Chevrolet Silverado, VIN: 1GCDC14H5JZ157972, 5th Cir., 1994*
- **5** ("No settled rule requires continuous control of the res for appellate jurisdiction in an in rem forfeiture proceeding.") — *99 Cal. Daily Op. Serv. 2707, 1999 Daily Journal D.A.R. 3527, 9th Cir., 1999*
- **5** (discussing the prerequisites for initiation of an in rem civil forfeiture proceeding) — *Francisco Jaime Madrid, 6th Cir., 1999*

4 ("We hold that, in an in rem forfeiture action, the Court of Appeals is not divested of jurisdiction by the prevailing party's transfer of the res from the district.") — *Krimstock, 2d Cir., 2002*

1 (rejecting any requirement of continuous control of the res) — *Zheng, Ill. App. Ct., 2026*

1 ("[t]he Brig Ann stands for nothing more than this") — *State v. Day, No. Cv5-6977 (Apr. 14, 1999), Conn. Super. Ct., 1999*

1 (pre-complaint seizure requirement "comports with the fact that in admiralty the seizure is the equivalent to service of process", but the Court took no issue with fact that res was seized and arrested after filing of the complaint) — *United States v. Funds Representing Proceeds of Drug Trafficking in the Amount of $75,868.62, C.D. Cal., 1999*

1 ("Stasis is not a general prerequisite to the maintenance of jurisdiction. ") — *In Re Peachtree Lane Associates, Ltd., N.D. Ill., 1997*

↑

119. Barnes v. United States Department of Transportation

655 F.3d 1124, 9th Cir., 2011

In 2020-24: cited by 14 decisions (appellate) · in all: 87 · 2021–2025: 25 · weight in the sub-cluster 4

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 93 of 93 citing opinions, filed 2011–2026: status now, not the year it changed)

Travels with: Bark (cosine 0.07, 5 both); Department of Transportation v. Public Citizen (cosine 0.05, 7 both); State Farm (cosine 0.02, 6 both)

How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

3 (holding that agencies' failure to discuss environmental impact of proposed action "is a flaw 'so obvious' that there was no need for petitioners to point it out specifically in order to preserve their ability to challenge the EA on this ground") — *Haaland, D. Alaska, 2020*

2 ("Review under the arbitrary and capricious standard is narrow, and we do not substitute our judgment for that of the agency. An agency decision will be upheld as long as there is a rational connection between the facts found and the conclusions made." (citations omitted)) — *Edward Colley v. Barbara Barrett, 9th Cir., 2020*

2 ("the effect of greenhouse gases on climate is a global problem") — *350 Montana v. Debra Haaland, 9th Cir., 2022*

2 ("the effect of [GHGs] on climate is a global problem[,] a discussion in terms of percentages is therefore adequate for [GHG] effects") — *Zinke, D.C. Cir., 2019*

2 (noting that while the agencies might prefer the petitioner to be more detailed in comments, "petitioners need not 'incant [certain] magic words ... in order to leave the courtroom door open to a challenge.' ") — *Native Ecosystems Council & Alliance for the Wild Rockies v. United States Forest Service ex rel. Davey, D. Idaho, 2012*

2 (noting that Home Builders "did not hold, however, that such preliminary determinations are irrelevant in any context") — *Wildearth Guardians v. Heather Provencio, 9th Cir., 2019*

2 (holding that issue was exhausted when agency had independent knowledge of EA flaw) — *Pacific Coast Federation of Fishermen's Ass'n v. United States Department of the Interior, 9th Cir., 2016*

1 (describing the holdings of Morongo Band and Seattle Cmty.) — *Faa, 9th Cir., 2016*

↑

120. United States v. Calimlim

538 F.3d 706, 7th Cir., 2008

In 2020-24: cited by 12 decisions (appellate) · in all: 58 · 2021–2025: 22 · weight in the sub-cluster 4

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 58 of 58 citing opinions, filed 2009–2026: status now, not the year it changed)

Travels with: Kozminski (cosine 0.21, 6 both)

How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("Section 1589 is not written in terms limited to overt physical coercion, and we know that when Congress amended the statute it expanded the definition of involuntary servitude to include nonphysical forms of coercion.") — *Winfred Muchira v. Halah Al-Rawaf, 4th Cir., 2017*

2 ("[The victim] was,a member of a group typically targeted by those desiring forced labor but her group (illegal aliens) is only part of the broader set of possible victims. She was therefore a vulnerable victim for the purposes of [the Guideline].") — *United States v. Olga Murra, 5th Cir., 2018*

2 (despite a household staffer being in the United States illegally, immigration laws are not meant to help employers retain secret employees by threats of deportation, and were an abuse of the legal process) — *Copeland, N.D. Okla., 2019*

1 (on appeal from jury conviction) — *Carter, W.D. Ky., 2018*

1 ("[T]heir 'warnings' about the consequences were directed to an end different from those envisioned by the law and were thus an abuse of the legal process . . . . fit[ting] within the scope of § 1589(a)(3).") — *Baldia, S.D.N.Y., 2022*

1 ("The bar on double counting comes into play only if the offense itself necessarily includes the same conduct as the enhancement." (quotation omitted)) — *United States v. Vincent Tenuto, 7th Cir., 2010*

1 (affirming forced labor conviction of defendants who kept Filipino woman for nineteen years, requiring her to work sixteen-hour days, seven days a week, rarely permitting her to walk outside, and allowing her to speak with her family on only a few occasions) — *Martinez-Rodriguez, D. Idaho, 2019*

1 (discussing § 1589's express scienter requirement, as well as the "second" scienter requirement of § 1589(a)(4)) — *Paguirigan, E.D.N.Y, 2017*

↑ **121. Manuel Campos-Hernandez v. Jefferson Sessions**
889 F.3d 564, 9th Cir., 2018
In 2020-24: cited by 8 decisions (appellate) · in all: 15 · 2021–2025: 5 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 15 of 15 citing opinions, filed 2018–2023: status now, not the year it changed)
Travels with: Chevron (cosine 0.05, 6 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (discussing both Chevron and Auer deference) — *Pedro Perez Perez v. Chad Wolf, 9th Cir., 2019*
- **1** ("IIRIRA . . . changed the terms previously used in immigration statutes, replacing 'deportation' with 'removal' . . . .") — *Winston Gutierrez-Alm v. Merrick Garland, 9th Cir., 2023*
- **1** (deferring to Matter of Castro-Lopez, 26 I. & N. Dec. 693 (BIA 2015) to determine the ten-year continuous physical presence period runs from the most recent commission of an act constituting a ground for removal) — *Jose Pena v. William Barr, 9th Cir., 2019*
- **1** (deferring to an agency's later interpretation of a statute when the earlier judicial decision did not hold that the agency's interpretation was unambiguously foreclosed) — *Karen Lambert v. Andrew Saul, 9th Cir., 2020*

↑ **122. Neal v. United States**
516 U.S. 284, SCOTUS, 1996
In 2020-24: cited by 16 decisions (appellate) · in all: 237 · 2021–2025: 27 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 279 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: LaBonte (cosine 0.13, 5 both); Stinson (cosine 0.02, 5 both)
How later courts describe it (50 parentheticals; groups of similar wording, largest first; other courts' words)

- **13** (finding that once a court has determined a statute's meaning, the court should adhere to that ruling absent "intervening development of the law" or "compelling evidence bearing on [the legislature's] original intent") — *Downie, Ariz., 2008*
- **8** (explaining that Congress, not the courts, "has the responsibility for revising . . . statutes") — *United States v. Martel Easton, 4th Cir., 2020*
- **4** (noting that 21 U.S.C. § 841(b)(1)'s mandatory sentences "are both structurally and functionally at odds with sentencing guidelines" and holding the Sentencing Commission "has no authority to override the statute") — *Sawyer, M.D. Ala., 2016*
- **3** ("[W]e conclude that the Commission's choice of an alternative methodology for weighing LSD does not alter our interpretation of the statute in Chapman. In any event, principles of stare decisis require that we adhere to our earlier decision.") — *United States v. David Henry Treft, 5th Cir., 2006*
- **3** (noting that the Commission later amended the lsd guideline) — *United States v. Michael J. Tomasino, 7th Cir., 2000*
- **2** ("Congress, not this Court has the responsibility for revising its statutes. Were we to alter our statutory interpretations from cases to case, Congress would have less reason to exercise its responsibility to correct statutes that are thought to be unwise or unfair.") — *Moore, Ark., 2016*
- **2** (adhering to Chapman, and holding that § 841(b)(1) directs sentencing court to count actual weight of blotter paper with its absorbed LSD even though Guidelines require different method of calculating weight of LSD mixture or substance) — *Frank Lawrence Basco v. United States, 8th Cir., 1996*
- **2** (upholding mandatory minimum with respect to LSD sentence despite its potential conflict with a provision of the Guidelines) — *Hester, 11th Cir., 2000*

↑ **123. Serrano v. U.S. Attorney General**
655 F.3d 1260, 11th Cir., 2011
In 2020-24: cited by 12 decisions (appellate) · in all: 56 · 2021–2025: 25 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 57 of 57 citing opinions, filed 2011–2026: status now, not the year it changed)
Travels with: Jesus Ramirez v. Linda Dougherty (cosine 0.27, 5 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("Courts may, under the Administrative Procedure Act, review an agency's interpretation of a statute.") — *Yadina Rubi v. Secretary, U.S. Department of Homeland Security (DHS), 11th Cir., 2020*
- **2** (holding APA provides an adequate alternative remedy to mandamus relief) — *Otto, M.D. Fla., 2023*
- **1** ("That an alien with [TPS] has 'lawful status as a nonimmigrant' for purposes of adjusting his status does not change [section 245(a)]'s threshold requirement that he is eligible for adjustment of status only if he was initially inspected and admitted or paroled.") — *H-G-G, BIA, 2019*
- **1** (stating that the petitioner did "not- assert that he' disclosed his illegal entry into the United States on his application for Temporary Protected Status") — *Bonilla, D. Minnesota, 2016*

↑ **124. Sorenson Communications Inc. v. Federal Communications Commission**
755 F.3d 702, D.C. Cir., 2014

In 2020-24: cited by 11 decisions (appellate) · in all: 55 · 2021–2025: 19 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 56 of 56 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Encino Motorcars (cosine 0.03, 5 both); State Farm (cosine 0.02, 8 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("[A]gency action based on speculation rather than evidence is arbitrary and capricious.") — *Devos, D.D.C., 2019*
- **2** ("In the past we have approved an agency's decision to by- pass notice and comment where delay would imminently threaten life or physical property") — *State of Florida v. Department of Health and Human Services, 11th Cir., 2021*
- **2** ("To accord deference [to an agency's invocation of good cause] would be to run afoul of congressional intent.") — *Scalia, D.D.C., 2020*
- **2** (finding no good cause even though agency's fund, paid out to telecommunication providers, might suffer shortfall absent immediate rule) — *Duke, D.C. Cir., 2017*
- **1** (no retroactive application of Alleyne) — *Com., Pa. Super. Ct., 2016*
- **1** ("[O]ur review of the agency's legal conclusion of good cause is de novo.") — *Trump, N.D. Cal., 2018*
- **1** (FCC did not have good cause to issue interim and final rules for reimbursement for telecommunication services due to potential depletion of the fund used to pay for reimbursement) — *Becerra, W.D. La., 2021*
- **1** ("[T]he wisdom of agency action is rarely so self-evident that no other explanation is required.") — *State of California v. Alex Azar, II, 9th Cir., 2020*

↑

125. State of Okla. v. United States

62 F. 4th 221, 6th Cir., 2023
In 2020-24: cited by 8 decisions (appellate) · in all: 19 · 2021–2025: 19 · weight in the sub-cluster 4
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 19 of 19 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: Department of Transportation v. Association of American R... (cosine 0.13, 5 both); Gundy (cosine 0.03, 5 both)
No parentheticals.

↑

126. Good Samaritan Hospital v. Shalala

508 U.S. 402, SCOTUS, 1993
In 2020-24: cited by 16 decisions (appellate) · in all: 471 · 2021–2025: 38 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 531 citing opinions, filed 2016–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Brand X Internet, 545 U.S. 967 (2005) (28% of the 46 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Travels with: Smiley (cosine 0.05, 5 both); Brand X Internet (cosine 0.02, 5 both); Chevron (cosine 0.01, 7 both)
How later courts describe it (125 parentheticals; groups of similar wording, largest first; other courts' words)

- **34** (stating that "the consistency of any agency's position is a factor in assessing the weight that position is due") — *Zhen Nan Lin v. United States Department of Justice, 2d Cir., 2006*
- **25** (stating that "[t]he starting point in interpreting a statute [or regulation] is its language") — *Hatfieldv. McDonald, Vet. App., 2021*
- **11** ("The starting point in interpreting a statute is its language, for if the intent of Congress is clear, that is the end of the matter.") — *Simmons, 4th Cir., 2011*
- **6** ("[W]e generally defer to a permissible interpretation espoused by the agency entrusted with its implementation.") — *Herman, 7th Cir., 2010*
- **5** (stating that "where the agency's interpretation of a statute is at least as plausible as competing ones, there is little, if any, reason not to defer to its construction") — *Natural Resources Defense Council v. United States Environmental Protection Agency, 9th Cir., 2008*
- **4** (" '[a]n agency interpretation of a relevant provision which conflicts with the agency's earlier interpretation is "entitled to considerably less deference" than a consistently held agency view.' ") — *Valley Camp Of Utah, Inc. v. Babbitt, 10th Cir., 1994*
- **4** ("The Secretary is not estopped from changing a view she believes to have been grounded upon a mistaken legal interpretation.") — *Thompson, N.D. Iowa, 2001*
- **3** ("The canons of construction of course apply equally to any legal text and not merely to statutes.") — *McCarrollv. McDonald, Vet. App., 2016*

↑

127. Rural Cellular Ass'n v. Federal Communications Commission

588 F.3d 1095, D.C. Cir., 2009
In 2020-24: cited by 16 decisions (appellate) · in all: 97 · 2021–2025: 33 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 99 of 99 citing opinions, filed 2010–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 8 both); Chevron (cosine 0.02, 5 both)
How later courts describe it (24 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("The 'arbitrary and capricious' standard is particularly deferential in matters implicating predictive judgments .... ") — *DOI, D.C. Cir., 2018*

4 ("The opportunity for comment must be a meaningful opportunity, and we have held that in order to satisfy this requirement, an agency must also remain sufficiently open-minded.") — *State v. Bureau of Land Mgmt., N.D. Cal., 2018*

3 ("When an agency's decision is primarily predictive ... [courts] require only that the agency acknowledge factual uncertainties and identify the considerations it found persuasive.") — *Forest Cnty. Potawatomi Cmty. v. United States, D.C. Cir., 2018*

3 (holding that "the FCC should be given 'substantial deference' when acting to impose interim regulations") — *Direct Communications Cedar Valley, LLC v. Federal Communications Commission, 10th Cir., 2014*

1 ("The opportunity for comment must be a meaningful opportunity.") — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*

1 ("[T]o the extent a [carrier affected by the cap] believes it should be entitled to greater per-line high-cost support than the amount disbursed under the cap, the Order permits [it] to obtain an exception upon 'fil[ing] cost data.' ") — *At&T, Inc. v. Fed. Commc'ns Comm'n, D.C. Cir., 2018*

1 (the FCC "has broad discretion" to balance the objectives in funding universal service) — *IN RE: FCC 11-161, 10th Cir., 2014*

1 ("[T]he public interest would be better served ... reclaiming] such support rather than redistributing it, particularly as we proceed with broader reforms to transition to a universal service system that promotes broadband more directly") — *Rural Cellular Ass'n v. Federal Communications Commission, D.C. Cir., 2012*

↑

128. Genuine Parts Co. v. Envtl. Prot. Agency

890 F.3d 304, D.C. Cir., 2018

In 2020-24: cited by 11 decisions (appellate) · in all: 42 · 2021–2025: 22 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 42 of 42 citing opinions, filed 2018–2026: status now, not the year it changed)

Travels with: State Farm (cosine 0.05, 5 both)

How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

5 ("[A]n agency cannot ignore evidence that undercuts its judgment," nor "minimize such evidence without adequate explanation.") — *E.G.W., D.D.C., 2025*

3 ("Conclusory explanations for matters involving a central factual dispute where there is considerable evidence in conflict do not suffice to meet the deferential standards of our review." (quotation omitted)) — *Grand Portage Band of Lake Superior Chippewa v. United States Environmental Protection Agency, D. Minnesota, 2024*

2 (finding it arbitrary and capricious where agency "simply ignore[d]" cross sections of a study that did not support its position in the record) — *Grand Portage Band of Lake Superior Chippewa v. United States Environmental Protection Agency, D. Minnesota, 2024*

1 ("[A]n agency cannot ignore evidence contradicting its position." (quoting Butte Cty. v. Hogen, 613 F.3d 190, 194 (D.C. Cir. 2010)) — *Stellar It Solutions, Inc. v. United States Citizenship and Immigration Services, D.D.C., 2018*

1 ("Evidence that is substantial viewed in isolation may become insubstantial when contradictory evidence is taken into account.") — *White, D.D.C., 2019*

1 (noting irrelevance of groundwater flow to HRS analysis when assessing targets) — *Daikin Applied Americas Inc. v. EPA, D.C. Cir., 2022*

1 (reviewing listing decision under the APA standard because "CERCLA does not specify a standard of review applicable to EPA's NPL listing decisions") — *Meritor, Inc. v. EPA, D.C. Cir., 2020*

↑

129. Biodiversity Conservation Alliance v. Jiron

762 F.3d 1036, 10th Cir., 2014

In 2020-24: cited by 10 decisions (appellate) · in all: 50 · 2021–2025: 24 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 52 of 52 citing opinions, filed 2014–2026: status now, not the year it changed)

Travels with: Wyoming v. United States Department of Agriculture (cosine 0.10, 5 both); BLM (cosine 0.09, 6 both); State Farm (cosine 0.02, 6 both)

How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

2 (a court may uphold agency action only "on the basis articulated by the agency itself") — *Perez, 10th Cir., 2016*

1 ("Courts apply the delay and prejudice elements with flexibility.") — *Ariix LLC v. USANA Health Sciences, D. Utah, 2023*

1 ("Our deferential review [of agency action] 'is especially strong where the challenged decisions involve technical or scientific matters within the agency's area of expertise.'" (quoting Utah Env't Cong. v. Russell, 518 F.3d 817, 824 (10th Cir. 2008)) — *Gunnison County Stockgrowers' Association, Inc. v. US Fish and Wildlife Service, D. Colo., 2023*

1 ("Two sources of statutory and regulatory law govern this case: (1) the National Forest Management Act of 1976 ('NFMA'); (2) the National Environmental Protection Act of 1969 ('NEPA'); and both acts' implementing regulations.") — *JME Investments, LLC v. Westfield Insurance Company, D. Colo., 2025*

1 ("We will not, for example, accept appellate counsel's post-hoc rationalizations for agency action-we must uphold the agency's action if at all, on the basis articulated by the agency itself.") — *N.M. Health Connections v. U.S. Dep't of Health & Human Servs., D.N.M., 2018*

1 ("When courts consider ... challenges [under the APA], an agency's decision is entitled to a presumption of regularity, and the challenger bears the burden of persuasion.") — *Zinke, D. Utah, 2017*

1 (finding that Forest Service took requisite "hard look" where final EIS relief on studies in areas with more erodible soil types and steeper topography than project area, and where agency relied on a 2001 sedimentation study involving BMPs in the

project area) — *MONROE COUNTY BOARD OF COMMISSIONERS v. UNITED STATES FOREST SERVICE, S.D. Ind., 2025*

1 (stating that "[1 jaches bars a claim when there is: (1) lack of diligence by the party against whom the defense is. asserted, and (2) — *Kirk, 10th Cir., 2015*

↑ **130. Nicopure Labs, LLC v. FDA**

944 F.3d 267, D.C. Cir., 2019
In 2020-24: cited by 10 decisions (appellate) · in all: 19 · 2021–2025: 15 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 19 of 19 citing opinions, filed 2020–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Department of Homeland Security v. Regents of Univ. of Cal., 140 S. Ct. 1891 (2020) (60% of the 10 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: FDA (cosine 0.08, 5 both); Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.03, 6 both); State Farm (cosine 0.02, 6 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("The FDA has expressed willingness to accept scientific literature reviews instead of commissioned studies in support of e-cigarette applications in appropriate circumstances.") — *FDA, 5th Cir., 2021*

1 ("We use the term 'e-cigarettes' to refer to the full range of products that the Industry calls 'vapor products' and the FDA calls Electronic Nicotine Delivery Systems, or ENDS. They go by many other names as well . . . .") — *FDA, 5th Cir., 2022*

1 ("the FDA's reliance on a seller's claims about a product as evidence of that product's intended use, in order that the FDA may correctly classify the product 20 and restrict it if misclassified, does not burden the seller's speech") — *Inslee, W.D. Wash., 2024*

1 ("use of a product's marketing and labeling to discern to which regulatory regime a product is subject [is not a First Amendment violation]") — *Mock, N.D. Tex., 2023*

1 (uphold- ing final rule against challenges under the Administrative Procedure Act and the First Amendment) — *Vapor Unlimited LLC v. U.S. Food and Drug Administration, 11th Cir., 2022*

1 (rejecting several industry arguments that it claimed FDA did not adequately considered because "[e]ach of those suggestions seeks to place the onus on the government, rather than the manufacturers") — *Gottlieb, D.D.C., 2020*

↑ **131. Daniela Guerra-Rocha v. William P. Barr**

951 F.3d 848, 7th Cir., 2020
In 2020-24: cited by 10 decisions (appellate) · in all: 11 · 2021–2025: 8 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 11 of 11 citing opinions, filed 2020–2025: status now, not the year it changed)
Travels with: SANCHEZ SOSA (cosine 0.13, 8 both); L-N-Y (cosine 0.07, 5 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 (criticizing the BIA for failing to "even mention the likelihood that [the petitioner's] application would be granted") — *Claudia Quecheluno v. Merrick B. Garland, 8th Cir., 2021*

↑ **132. Nat'l Assoc. of Regulatory v. FERC**

964 F.3d 1177, D.C. Cir., 2020
In 2020-24: cited by 9 decisions (appellate) · in all: 10 · 2021–2025: 10 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 10 of 10 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: Electric Power Supply (cosine 0.06, 7 both); New York (cosine 0.06, 5 both); Morgan Stanley (cosine 0.05, 5 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

2 (noting that the Federal Power Act provides FERC with "exclusive authority over" the wholesale transmission market) — *NextEra, 5th Cir., 2022*

1 ("A State's regulations aimed directly at matters in FERC's jurisdiction cannot be sustained when they threaten the achievement of the comprehensive scheme of federal regulation.") — *State of NC Ex. Rel. Utils. Comm'n v. Friesian Holdings, N.C. Ct. App., 2022*

↑ **133. TOMAC v. Norton, Gale A.**

433 F.3d 852, D.C. Cir., 2006
In 2020-24: cited by 8 decisions (appellate) · in all: 112 · 2021–2025: 25 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 116 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: Nevada v. Department of Energy (cosine 0.28, 5 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("[R]eassessments must end at some point, or NEPA simply becomes a tool to stall new projects indefinitely . . . ." (quotations omitted)) — *Jewell, D.D.C., 2022*

2 ("all that can reasonably be expected" of agency conducting NEPA analysis is to analyze "impacts likely to occur") — *Locke, D.D.C., 2010*

1 (describing EIS as "detailed" and "comprehensive") — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2020*
1 ("BIA [i]s under no obligation to hypothesize about future regulations.") — *Norton, D.D.C., 2007*
1 (preparation of EA took over four years and generated almost 900 pages of data and analysis examining potential environmental impacts) — *FERC, D.C. Cir., 2025*
1 ("Before proceeding with the project, the Bureau [of Indian Affairs] was required under NEPA to assess the potential environmental impacts of the gaming resort.") — *Kempthorne, D.D.C., 2013*
1 (stating that a tribe may be administratively terminated) — *County of Amador v. United States Department of the Interior, E.D. Cal., 2015*
1 (noting agency's "significant discretion in determining" how it complies with NEPA's public participation regulations in preparing EA) — *Brodsky, 2d Cir., 2013*

↑

134. Daniels v. Florida Dept. of Health

30 Fla. L. Weekly Supp. 143, Fla., 2005
In 2020-24: cited by 25 decisions (appellate) · in all: 153 · 2021–2025: 28 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 173 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: City of Parker v. State (cosine 0.08, 6 both); Forsythe (cosine 0.03, 5 both); Holly (cosine 0.03, 5 both)
How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

10 (recognizing that when a statute is clear and unambiguous, a court may not resort to rules of statutory construction, and the "statute must be given its plain and obvious meaning") — *Ajm, Fla. Dist. Ct. App., 2009*
2 (explaining that statutes "in abrogation of the common law . . . are to be strictly construed") — *Sports Enterprises Inc v. Marvin Goldklang, 3rd Cir., 2026*
1 ("When the statutory language is clear, 'courts have no occasion to resort to rules of construction—they must read the statute as written, for to do -8- otherwise would constitute an abrogation of legislative power.' " (quoting Nicoll v. Baker, 668 So. 2d 989, 990-91 (Fla. 1996))) — *WILLIE JEFFERSON v. STATE OF FLORIDA, Fla. Dist. Ct. App., 2018*
1 (a "statute's plain and ordinary meaning must control, unless this leads to an unreasonable result or a result clearly contrary to legislative intent") — *DHBH ATLANTIC L.L.C. and 60 1/2, LLC v. CITY OF DELRAY BEACH, FLORIDA, Fla. Dist. Ct. App., 2022*
1 (holding when the statutory language is clear, courts have no occasion to resort to rules of construction; they must read the statute as written, for to do otherwise would constitute an abrogation of legislative power) — *Rife, Fla. Dist. Ct. App., 2007*
1 (holding that if the language is plain and unambiguous it is unnecessary to resort to statutory construction) — *Connolly, Jr. v. State, Fla. Dist. Ct. App., 2015*

↑

135. Turtle Island Restoration Network v. United States Department of Commerce

878 F.3d 725, 9th Cir., 2017
In 2020-24: cited by 14 decisions (appellate) · in all: 47 · 2021–2025: 20 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 48 of 48 citing opinions, filed 2018–2025: status now, not the year it changed)
Travels with: San Luis & Delta-Mendota Water v. Natural Resources Defen... (cosine 0.08, 7 both); Chevron (cosine 0.02, 5 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

3 (Callahan, Circuit Judge, dissent- ing in part) — *Prokop, Neb., 2019*
1 (Chevron step two equivalent to the State Farm arbitrary-and- capricious review) — *Oakbrook Land Holdings, LLC, William Duane Horton, Tax Matters Partner v. Commissioner, Tax Ct., 2020*
1 (agency action may be arbitrary and capricious if the agency "entirely fail[s] to consider an important aspect of the problem") — *Mattis, N.D. Cal., 2018*
1 (explaining that, under Auer v. Robbins, 519 U.S. 452, 461–62 (1997) — *Casey Taylor v. Burlington No. R.R. Holdings, 9th Cir., 2018*
1 (holding that agency action is arbitrary and capricious when the agency's "explanation for its decision . . . runs counter to the evidence before the agency" (citation omitted)) — *Usfws, 9th Cir., 2023*

↑

136. American Wild Horse Preservation Campaign v. Sonny Perdue

873 F.3d 914, D.C. Cir., 2017
In 2020-24: cited by 10 decisions (appellate) · in all: 77 · 2021–2025: 27 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 77 of 77 citing opinions, filed 2006–2026: status now, not the year it changed)
Travels with: Encino Motorcars (cosine 0.06, 5 both); State Farm (cosine 0.02, 7 both)
How later courts describe it (32 parentheticals; groups of similar wording, largest first; other courts' words)

5 (explaining that agency must "examine all relevant factors and record evidence") — *Stewart, D.C. Cir., 2019*
4 ("A central principle of administrative law is that, when an agency decides to depart from decades-long past practices and official policies, the agency must at a minimum acknowledge the change and offer a reasoned explanation for it.") — *Jewell, D.C. Cir., 2018*
4 ("we cannot condone the correction of one error by the commitment of another") — *Jewell, D.C. Cir., 2018*
4 (finding that agency rescission of wild horse territory designation after twenty years without explanation was arbitrary and

capricious) — *Jewell, D.C. Cir., 2018*

3 (critiquing an agency for "brush[ing] aside critical facts" and not "adequately analyz[ing]" the consequences of a decision) — *Charles Gresham v. Alex Azar, II, D.C. Cir., 2020*

2 ("[A]fter-the-fact claims about agency intentions do not work when agency actions evince the opposite.") — *United Food and Commercial Workers Union, Local No. 663 v. United States Department of Agriculture, D. Minnesota, 2021*

2 (holding that an agency cannot depart from its "established pattern of agency conduct and formalized positions" without a reasoned explanation) — *HMO Louisiana, Inc. v. Department of Health and Human Services, D.C. Cir., 2026*

1 (ECF 27-1 at 21–22 filed May 20, 2024) — *Vanda Pharmaceuticals, Inc. v. United States, Fed. Cl., 2025*

↑

137. Joseph Egan v. Delaware River Port Authority

851 F.3d 263, 3rd Cir., 2017

In 2020-24: cited by 13 decisions (appellate) · in all: 68 · 2021–2025: 37 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 73 of 73 citing opinions, filed 2017–2026: status now, not the year it changed)

Travels with: Chevron (cosine 0.03, 7 both)

How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("The right could be interfered with by, for example, prohibiting the individual who has such a condition from being permitted to take such leave or by requiring the person to engage in significant work while on FMLA leave.") — *MAY, E.D. Pa., 2020*

2 ("[T]he erroneous exclusion or admission of evidence will not require reversal if it is highly probable that the error did not contribute to the judgment." (citation and internal quotation marks omitted)) — *Elsa Hall v. Samuel Hall, 3rd Cir., 2018*

1 ("[W]e hold that the DOL's use of a mixed-motive framework . . . is a permissible construction of the statute. Therefore, [the DOL's statute allowing a mixed-motive approach] is entitled to deference under Chevron, and a mixed-motive jury instruction is available for FMLA retaliation claims.") — *Sullivan, D. Del., 2020*

1 ("Were we free to actually interpret the law rather than merely defer to an executive agency, we might well conclude that the FMLA does not allow for a mixed-motive instruction for [this] retaliation claim." (Jordan, J., concurring)) — *Sullivan, D. Del., 2020*

1 ("The FMLA interference provision on which the regulation is based does not provide a causation standard and thus does not unambiguously require the use of 'but-for' causation.") — *Crankshaw, W.D. Tex., 2020*

1 ("[W]e strongly prefer that the District Court explain how it balanced the Rule 403 considerations.") — *United States v. Michael Heinrich, 3rd Cir., 2020*

1 ("[W]e join our sister circuits in applying Desert Palace and holding that direct evidence is not required to obtain a mixed-motive instruction under the FMLA.") — *MAY, E.D. Pa., 2020*

1 (deferring to Department of Labor regulations that permit FMLA mixed- motive retaliation claims) — *Fonte, M.D. Fla., 2020*

↑

138. Bark v. Usfs

958 F.3d 865, 9th Cir., 2020

In 2020-24: cited by 13 decisions (appellate) · in all: 35 · 2021–2025: 32 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green (read 35 of 35 citing opinions)

Travels with: Barnes (cosine 0.07, 5 both); Robertson (cosine 0.04, 5 both); State Farm (cosine 0.01, 5 both)

How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

2 (criticizing table that "gave no information about any of the projects listed" but "merely named them") — *Faa, 9th Cir., 2021*

1 ("General statements about possible effects and some risk do not constitute a hard look absent a justification regarding why more definitive information could not be provided." (simplified)) — *Faa, 9th Cir., 2023*

1 (faulting an agency for failing to address "substantial body of research" cited in public comments and merely reiterating its "general conclusions" in response) — *Wildearth Guardians v. United States Department of Agriculture Animal and Plant Health Inspe, 9th Cir., 2025*

1 (finding cumulative impacts analysis insufficient where there was no attempt to quantify cumulative impacts, but only "conclusory statements, based on 'vague and uncertain analysis") — *Bernhardt, D. Mont., 2022*

1 (concluding that the agency violated NEPA by relying on a vague and uncertain analysis instead of meaningfully considering the effects of the proposed project) — *Usfs, 9th Cir., 2023*

↑

139. Wyoming v. United States Department of Agriculture

661 F.3d 1209, 10th Cir., 2011

In 2020-24: cited by 11 decisions (appellate) · in all: 83 · 2021–2025: 20 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green (read 88 of 88 citing opinions)

Travels with: Jiron (cosine 0.10, 5 both); Don Olenhouse v. Commodity Credit Corporation (cosine 0.09, 5 both); Robertson (cosine 0.04, 5 both)

How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (rejecting the argument that an EIS failed to adequately consider cumulative impacts because "cumulative impacts that are too speculative or hypothetical to meaningfully contribute to NEPA's goals of public disclosure and informed decisionmaking need not be considered") — *Bernhardt, 10th Cir., 2019*
- **2** (explaining that the scope of an EIS includes cumulative impacts, and thus the considerations of direct and indirect effects apply similarly to cumulative effects) — *Citizens for a Healthy Cmty. v. U.S. Bureau of Land Mgmt., D. Colo., 2019*
- **1** ("[A]n appellee is generally permitted to 'defend the judgment won below on any ground supported by the record without filing a cross appeal.' ") — *Peerless Indemnity Ins. v. Cloud Peak Hospitality, 10th Cir., 2016*
- **1** ("In general, we have not required agencies to consider 'speculative' impacts or actions in an EIS.... ") — *USDA, 4th Cir., 2012*
- **1** (noting the longstanding rule that as long as agencies "compl[y] with the statutory and regulatory minima, absent 'extremely compelling circumstances,' a reviewing court generally may not overturn an agency decision for failure to provide additional procedure") — *Hurlocker, 10th Cir., 2020*
- **1** (finding agency's rejection of an alternative to be reasonable and supported by record evidence) — *Aqualliance, E.D. Cal., 2018*
- **1** (noting agency action benefits from the presumption of validity and the -22- challenger bears the burden of showing it is arbitrary or capricious) — *Hurlocker, 10th Cir., 2020*
- **1** (explaining relevant CEQ guidance is "persuasive authority offering interpretive guidance regarding the meaning of NEPA and the implementing regulations.") — *City of Crossgate v. United States Department of Veterans Affairs, W.D. Ky., 2021*

↑

140. United States v. Jackson

60 F.3d 128, 2d Cir., 1995
In 2020-24: cited by 11 decisions (appellate) · in all: 26 · 2021–2025: 9 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 26 of 26 citing opinions, filed 1995–2025: status now, not the year it changed)
Travels with: United States v. Zimmian Tabb (cosine 0.10, 5 both); Stinson (cosine 0.03, 6 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (holding that "Application Note 1 is authoritative because it interprets and explains § 4B1.2") — *Chalas, 2d Cir., 2024*
- **1** (discussing trial judge's discretion in this sphere) — *United States v. Hassan Ali, 4th Cir., 2021*
- **1** (failure to exclude witness under Federal Rule 615 requires reversal "unless it is manifestly clear from the record that the error was harmless or unless the prosecution proves harmless error") — *Grier, Ariz. Ct. App., 2020*
- **1** ("Testimony regarding 'simple objective facts' is 'ordinarily not subject to tailoring, and, if it were, it could have been exposed easily.' ") — *In Re Omeprazole Patent Litigation, S.D.N.Y., 2002*
- **1** (following the commentary because guidance one way or another on inchoate crimes "does not appear in an actual guideline") — *Vargas, 5th Cir., 2023*
- **1** (deeming Application Note 1 controlling without first determining whether the Career Offender Guideline is genuinely ambiguous) — *Montes, S.D.N.Y., 2023*

↑

141. SoundExchange, Inc. v. Copyright Royalty Bd.

904 F.3d 41, D.C. Cir., 2018
In 2020-24: cited by 11 decisions (appellate) · in all: 21 · 2021–2025: 13 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 21 of 21 citing opinions, filed 2007–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.03, 7 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (upholding Copyright Royalty Board's decision to modify a party's proposed rates in light of its interpretation of Section 114 of the Copyright Act) — *George Johnson v. CRB (PUBLIC), D.C. Cir., 2020*
- **2** (holding that an agency cannot forfeit Chevron deference) — *Juan Amaya v. Jeffrey Rosen, 4th Cir., 2021*
- **1** (describing evidence appropriately distinguishing between ad-based and subscription-based services) — *CRB, D.C. Cir., 2023*

↑

142. United States v. Troy Kendrick, Jr.

980 F.3d 432, 5th Cir., 2020
In 2020-24: cited by 11 decisions (appellate) · in all: 12 · 2021–2025: 12 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 12 of 12 citing opinions, filed 2021–2025: status now, not the year it changed)
Travels with: Lightbourn (cosine 0.21, 7 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (rejecting an argument that "conspiracy convictions should not qualify as 'controlled substance offense[s]' under § 4B1.1(a)" because Lightbourn "remains binding") — *Mack, 5th Cir., 2021*

↑

143. Sierra Club v. EPA

939 F.3d 649, 5th Cir., 2019
In 2020-24: cited by 10 decisions (appellate) · in all: 25 · 2021–2025: 23 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 25 of 25 citing opinions, filed 2020–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.05, 7 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (member of association met case-or-controversy requirement under the Federal Clean Air Act) — *Texas Commission on Environmental Quality and Max Midstream, LLC v. San Antonio Bay Estuarine Waterkeeper, Texas Campaign for the Environment, and S. Diane Wilson, Tex. App.-Houston [15th Dist.], 2025*
- **1** (reviewing EPA's approval of a SIP for arbitrariness) — *State of Texas v. EPA, 5th Cir., 2025*
- **1** ("A reviewing court must be most deferential to an agency where . . . its decision is based upon its evaluation of complex scientific data within its technical expertise." (cleaned up)) — *Ulloa Lujan v. U.S. Department of Education, W.D. Tex., 2023*
- **1** ("The EPA's selection of modeling methods . . . is exactly the type of decision for which 'significant deference' is appropriate.") — *LDEQ, 5th Cir., 2024*
- **1** ("[W]hen an agency takes inconsistent posi- tions . . . it must explain its reasoning.") — *State of Texas v. EPA, 5th Cir., 2024*

↑

144. Renewable Fuels Association v. EPA

948 F.3d 1206, 10th Cir., 2020
In 2020-24: cited by 11 decisions (appellate) · in all: 18 · 2021–2025: 15 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 18 of 18 citing opinions, filed 2020–2025: status now, not the year it changed)
Travels with: HollyFrontier Cheyenne Refining, LLC v. Renewable Fuels A... (cosine 0.15, 6 both)
No parentheticals.

↑

145. Mississippi Power & Light Co. v. Mississippi Ex Rel. Moore

487 U.S. 354, SCOTUS, 1988
In 2020-24: cited by 10 decisions (appellate) · in all: 224 · 2021–2025: 21 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 246 of 246 citing opinions)
Travels with: Hughes (cosine 0.09, 7 both); Electric Power Supply (cosine 0.06, 7 both)
How later courts describe it (36 parentheticals; groups of similar wording, largest first; other courts' words)

- **16** (holding that an order regulating wholesale purchases fell within FERC's jurisdiction, and preempted contrary state action, even though it clearly affected retail prices) — *Electric Power Supply, SCOTUS, 2016*
- **3** (Scalia, J„ concurring in the judgment) — *McCarty, S.D. Ind., 2000*
- **3** (finding that the "only appropriate forum" for determining the reasonableness of filed rates and agreements "is before the Commission or a court reviewing the Commission's order.") — *AEP Texas North Co. v. Texas Indus. Energy Consumers, 5th Cir., 2006*
- **2** (Scalia, J., concurring in the judgment, and asserting that deference applies to an agency interpretation of limits on its statutory jurisdiction)
- **2** (exclusive federal jurisdiction over wholesale electric rates under Sec. 201 of the Federal Power Act, 16 U.S.C. Sec. 824)
- **2** (holding state retail ratemaking preempted pro tanto by Commission order approving allocation of costs of a new facility among subsidiaries of a holding company) — *FERC, D.C. Cir., 2007*
- **1** (rates mandated by FERC held preemptive) — *State ex rel. Utilities Commission v. North Carolina Power, N.C., 1994*
- **1** (Brennan, joined by Marshall and Blackmun, dissenting) — *Air Courier Conference of America/International Committee v. U.S. Postal Service, 3rd Cir., 1992*

↑

146. National Labor Relations Board v. Brown

380 U.S. 278, SCOTUS, 1965
In 2020-24: cited by 8 decisions (appellate) · in all: 614 · 2021–2025: 14 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 707 citing opinions, filed 2002–2026: status now, not the year it changed)
Role changed 1990-94: likely successor Chevron, 467 U.S. 837 (1984) (37% of the 35 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Travels with: State Farm (cosine 0.05, 6 both)
How later courts describe it (49 parentheticals; groups of similar wording, largest first; other courts' words)

- **22** (reviewing courts are not "to stand aside and rubber stamp" Board determinations that are contrary to the tenor of the Act) — *Coronet Foods, Incorporated v. National Labor Relations Board, National Labor Relations Board v. Coronet Foods, Incorporated, 4th Cir., 1998*
- **4** ("Courts must, of course, set aside [agency] deci- sions which rest on an 'erroneous legal foundation.'" (quoting NLRB v. Babcock & Wilcox Co., 351 U.S. 105, 112–13 (1956))) — *STB, 7th Cir., 2025*
- **3** (holding that the "Court will not defer to the agency's conclusory or unsupported assertions") — *Salazar, D.D.C., 2010*
- **2** (statements by Sen. Hollings and Sen. Burns) — *Iowa Utilities Board v. Federal Communications Commission and United States of America, 8th Cir., 2000*
- **2** (New election ordered where postal service delayed parties' receipt and posting of Board's notice of election.) — *National Labor*

Relations Board v. A. G. Parrott Company, 4th Cir., 1980

2 (when judicial review is not of factual issue but is one of legal interpretation there is less justification for deference to agency determination) — *Federal Election Commission v. Florida for Kennedy Committee, 11th Cir., 1982*

2 (approving finding of Sec. 8(a)(1) violation when "employers' conduct is demonstrably so destructive of employee rights and so devoid of significant service to any legitimate business end that it cannot be tolerated consistently with the Act")

1 (decided simultaneously with American Ship) — *Robertshaw Controls Company, Acro Division v. National Labor Relations Board, 4th Cir., 1967*

↑ **147. State of Maryland v. EPA**

958 F.3d 1185, D.C. Cir., 2020

In 2020-24: cited by 9 decisions (appellate) · in all: 10 · 2021–2025: 8 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green (read 10 of 10 citing opinions)

Travels with: Whitman (cosine 0.04, 5 both); State Farm (cosine 0.02, 5 both)

How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[A reviewing court] must give an extreme degree of deference to . . . EPA's evaluation of scientific data within its technical expertise, especially where . . . EPA's administration of the complicated provisions of the [CAA is under review.]") — *Midwest Ozone Group v. EPA, D.C. Cir., 2023*

1 (emphasizing that courts "give an extreme degree of deference to [an agency's] evaluation of scientific data within its technical expertise") — *LDEQ, 5th Cir., 2024*

↑ **148. Minnick v. Commissioner**

796 F.3d 1156, 9th Cir., 2015

In 2020-24: cited by 8 decisions (appellate) · in all: 19 · 2021–2025: 13 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 20 of 20 citing opinions, filed 2016–2024: status now, not the year it changed)

Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (62% of the 8 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Kisor (cosine 0.03, 5 both); Auer (cosine 0.03, 5 both)

How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 (nearly five-year gap between easement's conveyance and subordination) — *CIR, 8th Cir., 2017*

↑ **149. In Defense of Animals v. U.S. Department of the Interior**

751 F.3d 1054, 9th Cir., 2014

In 2020-24: cited by 7 decisions (appellate) · in all: 50 · 2021–2025: 23 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 51 of 51 citing opinions, filed 2014–2026: status now, not the year it changed)

Travels with: Wildearth Guardians v. Heather Provencio (cosine 0.21, 5 both); Blackwood (cosine 0.10, 5 both)

How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

3 (noting that we do not require an agency to "recite its reasons for relying on the studies cited in [an environmental assessment] as opposed to the studies cited by [a] comment" to show that the agency "performed the 'hard look' required by NEPA") — *American Wild Horse Campaign v. David Bernhardt, 9th Cir., 2020*

3 (holding "remove" in statute means to transfer wild horses and burros from public lands on which they once lived to private lands, or the destruction of the animals) — *In the Interest of C.F.-h., Minor Child, C.H., Father, Iowa, 2016*

2 (nothing in the Act requires the BLM to determine new AMLs based on current conditions every time the BLM decides to take action to restore the already-established AMLs) — *Sparks, D. Mont., 2016*

2 (holding that agencies are not required to "address in detail" every comment made on an environmental assessment "to prove that the agency 'considered' the relevant factors") — *Friends of Animals v. Jill Silvey, 9th Cir., 2020*

1 (rejecting a similar NEPA challenge to PZP) — *Friends of Animals v. U.S. Bureau of Land Management, D.D.C., 2024*

1 ("Preservation efforts can hardly require prior destruction of what is to be preserved. . . . BLM may determine removal is 35 necessary to ensure that the current thriving natural ecological balance does not deteriorate in the future.") — *Zinke, D.D.C., 2020*

1 ("When substantial questions are raised as to whether a proposed project 'may cause significant degradation of some human environmental factor,' an EIS is required.") — *Stand Up for Cal. v. U.S. Dep't of the Interior, E.D. Cal., 2018*

1 (agency need not prepare EIS unless effects of project are "highly uncertain" (internal quotation and citation omitted)) — *Cain, D. Or., 2018*

↑ **150. New Mexico Ex Rel. Richardson v. Bureau of Land Management**

565 F.3d 683, 10th Cir., 2009

In 2020-24: cited by 17 decisions (appellate) · in all: 189 · 2021–2025: 58 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 205 of 205 citing opinions)
Travels with: Jiron (cosine 0.09, 6 both); State Farm (cosine 0.02, 7 both)
How later courts describe it (59 parentheticals; groups of similar wording, largest first; other courts' words)

- **12** (ruling that judicial notice was proper for information referenced on two federal agency's websites) — *In re Santa Fe Natural Tobacco Co. Mktg. & Sales Practices & Prods. Liab. Litig., D.N.M., 2017*
- **4** (stating that courts may take judicial notice of government websites) — *Jung, D. Colo., 2025*
- **3** (holding that New Mexico was entitled to "special solicitude" where one of its claims was based on the APA) — *State of Texas v. USA, 5th Cir., 2015*
- **2** (state press release in an environmental action subject to judicial notice) — *Defend Arlington v. United States Department Of Defense, E.D. Va., 2023*
- **2** ("In considering whether the agency took a 'hard look,' we consider only the agency's reasoning at the time of decisionmaking, excluding post-hoc rationalization concocted by counsel in briefs or argument.") — *High Country Conservation Advocates v. United States Forest Service, D. Colo., 2014*
- **2** ("[A]gencies are excused from analyzing alternatives that are not 'significantly distinguishable' from those already analyzed.") — *Southern Utah Wilderness Alliance v. United States Department of Interior, D. Utah, 2017*
- **2** ("By focusing both agency and public attention on the environmental effects of proposed actions, NEPA facilitates informed decisionmaking by agencies and allows the political process to check those decisions.") — *Forest Guardians v. United States Fish & Wildlife Service, 10th Cir., 2010*
- **2** (taking judicial notice of facts on government websites and observing, "It is not uncommon for courts to take judicial notice of factual information found on the world wide web" (quotations omitted)) — *Garling, 10th Cir., 2017*

↑

151. United States v. Vicente Cuevas-Lopez

934 F.3d 1056, 9th Cir., 2019
In 2020-24: cited by 14 decisions (appellate) · in all: 18 · 2021–2025: 17 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 18 of 18 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Stinson (cosine 0.03, 7 both); Kisor (cosine 0.02, 6 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("[A]bsent a strong reason to do so, we will not create a direct conflict with other circuits." (alteration in original) (quoting United States v. Chavez-Vernaza, 844 F.2d 1368, 1374 (9th Cir. 1987))) — *Detwiler, 9th Cir., 2025*
- **1** ("We interpret the Sentencing Guidelines using the ordinary tools of statutory interpretation." (quoting United States v. Martinez, 870 F.3d 1163, 1166 (9th Cir. 2017))) — *Torres-Gonzalez, 9th Cir., 2026*

↑

152. Consumer Product Safety Commission v. GTE Sylvania, Inc.

447 U.S. 102, SCOTUS, 1980
In 2020-24: cited by 30 decisions (appellate) · in all: 2,295 · 2021–2025: 71 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 2,564 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Reiter (cosine 0.05, 5 both)
How later courts describe it (274 parentheticals; groups of similar wording, largest first; other courts' words)

- **176** (noting that "[a]bsent a clearly expressed legislative intention to the contrary, [statutory] language must ordinarily be regarded as conclusive") — *Air Line Pilots Association, International, Cross v. United Air Lines, Inc., Cross-Appellee, 7th Cir., 1986*
- **21** (cautioning that "the views of a subsequent Congress form a hazardous basis for inferring the intent of an earlier one" (internal quotation marks omitted)) — *In Re Roser, 10th Cir., 2010*
- **14** ("[O]rdinarily even the contemporaneous remarks of a single legislator who sponsors a bill are not controlling in analyzing legislative history") — *Cline, SCOTUS, 2004*
- **7** (noting also that a "mere statement in a conference report ... as to what the Committee believes an earlier statute meant is obviously less weighty") — *United States v. Tom Vig, United States of America v. Donovan Vig, 8th Cir., 1999*
- **6** ("[E]ven when it would otherwise be useful, subsequent legislative history will rarely override a reasonable interpretation of a statute that can be gleaned from its language and legislative history prior to its enactment") — *Solid Waste Agency of Northern Cook County v. United States Army Corps of Engineers, SCOTUS, 2001*
- **3** ("Such history does not bear strong indicia of reliability ... because as time passes memories fade and a person's perception of his earlier intention may change.")
- **2** (reliance on post-enactment statements is "hazardous") — *Dr. Bhartur N. Premachandra v. Dr. Murray G. Mitts, 8th Cir., 1985*
- **2** ("plain meaning of legislation should be conclusive") — *In Re Flagstaff Realty Associates, 3rd Cir., 1995*

↑

153. Goodman v. Shulkin

870 F.3d 1383, Fed. Cir., 2017
In 2020-24: cited by 22 decisions (appellate) · in all: 57 · 2021–2025: 37 · weight in the sub-cluster 3

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 57 of 57 citing opinions, filed 2017–2026: status now, not the year it changed)
Travels with: Kisor (cosine 0.03, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (stating that the rules of statutory construction apply to interpretation of regulations) — *Johnsonv. McDonald, Vet. App., 2018*
- **2** ("[T]he rules of statutory construction apply when interpreting an agency regulation." (quoting Roberto v. Dep't of Navy, 440 F.3d 1341, 1350 (Fed. Cir. 2006))) — *Lake Jordan Holdings, LLC, Lake Jordan Partners, LLC, Tax Matters Partner, Tax Ct., 2025*

↑

154. George v. McDonough

596 U.S. 740, SCOTUS, 2022
In 2020-24: cited by 21 decisions (appellate) · in all: 54 · 2021–2025: 54 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 54 of 54 citing opinions)
Travels with: Shinseki (cosine 0.06, 5 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** (Where a legal text employs a term "obviously transplanted from another legal source, it brings the old soil with it" (internal quotation marks omitted)) — *Kennedy v. Braidwood Management, Inc., SCOTUS, 2025*
- **2** ("[W]hen Congress employs a term of art, that usage itself suffices to adopt the cluster of ideas that were attached to each borrowed word in the absence of indication to the contrary.") — *Valores Mundiales, S.L. v. Bolivarian Republic of Venezuela, D.C. Cir., 2023*
- **1** (discussing "clear and unmistakable error" provisions) — *Morris, Fed. Cir., 2022*
- **1** ("[A] subse- quent legal change could not [constitute CUE], because only the law that existed at the time of the prior adjudication can be considered in this posture." (cleaned up) (em- phasis added)) — *Siples, Fed. Cir., 2025*
- **1** ("The real question is not what [a statutory term might mean] in 27 Relevant here, a claim treats a defendant as a publisher of information at common law where the claim (a) — *Commonwealth v. Meta Platforms, Inc., Mass., 2026*
- **1** ("At any time, a veteran may ask the Board or re- gional office to revise a final benefits decision on grounds of 'clear and unmistakable error.'") — *Covington, Fed. Cir., 2026*
- **1** ("If the Board . . . denies relief, the veteran may seek further review outside the agency" by appealing to this Court. (emphasis added)) — *Prewittv. McDonald, Vet. App., 2022*
- **1** ("As a general rule, the veteran may appeal within one year to the VA's Board of Veterans' Appeals . . . . ") — *William E. Terry v. Denis McDonough, Vet. App., 2023*

↑

155. United States v. Morgan

313 U.S. 409, SCOTUS, 1941
In 2020-24: cited by 16 decisions (appellate) · in all: 906 · 2021–2025: 78 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 993 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Volpe (cosine 0.07, 5 both)
How later courts describe it (63 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (mental processes of administrator, like those of judge, may not be examined) — *Sidney M. Wolfe v. Department of Health and Human Services, D.C. Cir., 1988*
- **4** ("Just as a judge cannot be subjected to such a scrutiny, . . . so the integrity of the administrative process must be equally respected.") — *BUCHANAN, D.N.J., 2025*
- **4** (The fact that the Secretary of Agriculture "expressed strong views on matters believed by him to have been in issue, did not unfit him for exercising his duty.") — *Municipal Services Corp. v. State Ex Rel. North Dakota Department of Health & Consolidated Laboratories, N.D., 1992*
- **4** (a judge's thought process relevant to judicial decisions is not within the purview of an examination) — *Wood, Idaho, 1998*
- **4** (explaining that district court should not have subjected agency officer to deposition and examination at trial) — *In Re Texas State Bd. of Public Accountancy, Tex. App.-Austin, 2010*
- **4** (suggesting that a judge cannot be compelled to testify about his mental impressions of a case) — *Alexander, Tex., 2004*
- **3** (adjudicators "assumed to be men of conscience and intellectual discipline, capable of judging a particular controversy fairly on the basis of its own circumstances") — *Hauxwell, Neb., 2025*
- **2** (mental processes of administrative decision-makers) — *Morton Halperin v. Henry Kissinger Morton Halperin v. Henry Kissinger, Richard M. Nixon, John N. Mitchell, and H. R. Haldeman, D.C. Cir., 1979*

↑

156. Catskill Mountains Chapter of Trout Unlimited, Inc. v. United States Environmental Protection Agency

846 F.3d 492, 2d Cir., 2017
In 2020-24: cited by 15 decisions (appellate) · in all: 63 · 2021–2025: 30 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 64 of 64 citing opinions, filed 2010–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 8 both); State Farm (cosine 0.01, 5 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (noting that a court may "defer to the agency's interpretation under the Skidmore standard only when the statutory language at issue is ambiguous") — *Rodriguez, S.D. Ill., 2019*
- **1** ("The phrase 'terms, conditions, or privileges of employment' evinces a congressional intent 'to strike at the entire spectrum of disparate treatment of men and women' in employment, which includes requiring people to work in a discriminatorily hostile or abusive environment.") — *Minge, N.D. Ill., 2022*
- **1** (whether an interpretation has the "'power to persuade,' .. . depends on, inter alia, 'the thoroughness evident in its consideration, the validity of its reasoning, [and] its consistency with earlier and later pronouncements'") — *Shapnik, S.D.N.Y., 2021*
- **1** ("A statutory provision's plain meaning may be understood by looking to the statutory scheme as a whole and placing the particular provision within the context of that statute." (internal quotation marks omitted)) — *MSP, 2d Cir., 2023*
- **1** ("[I]f one of two competing statutory interpretations 'would raise a multitude of constitutional problems, the other should prevail'") — *Helios and Matheson Analytics Inc., Bankr. S.D.N.Y., 2021*
- **1** ("Generally, an agency interpretation is not arbitrary, capricious, or manifestly contrary to the statute if it is reasonable." (internal quotation marks omitted)) — *Price, S.D.N.Y., 2021*
- **1** ("State Farm review may be appropriate in a case involving . . . a rule setting forth a changed interpretation of a statute.") — *Price, S.D.N.Y., 2021*
- **1** ("[I]f an interpretive rule was promulgated in a procedurally defective manner, it will be set aside regardless of whether its interpretation of the statute is reasonable.") — *Cir, 9th Cir., 2019*

↑

157. United States v. John Booker, Jr.

994 F.3d 591, 6th Cir., 2021
In 2020-24: cited by 13 decisions (appellate) · in all: 17 · 2021–2025: 17 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 17 of 17 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: United States v. Darius Thomas (cosine 0.17, 5 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (analyzing Michigan's identically-worded delivery statute) — *United States v. Daniel Miller, 6th Cir., 2022*
- **1** ("[W]e have held that, under Michigan law, an attempted transfer constitutes a completed delivery rather than an attempt crime. . . . The same applies to the analogous provisions of the [Controlled Substances Act]." (internal quotations, emphasis, and citations omitted)) — *United States v. Daniel Miller, 6th Cir., 2022*
- **1** ("It would be remarkable if [appellant] were right that § 841(a)(1) did not describe a 'controlled substance offense' under U.S.S.G. § 4B1.2(b)) — *United States v. Dorian Dawson, 3rd Cir., 2022*

↑

158. Hughes Aircraft Co. v. United States Ex Rel. Schumer

520 U.S. 939, SCOTUS, 1997
In 2020-24: cited by 12 decisions (appellate) · in all: 551 · 2021–2025: 79 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 600 citing opinions, filed 2018–2026: status now, not the year it changed)
Role changed 2000-04: likely successor Martin, 527 U.S. 343 (1999) (42% of the 76 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Travels with: Landgraf (cosine 0.05, 9 both)
How later courts describe it (117 parentheticals; groups of similar wording, largest first; other courts' words)

- **13** (holding that the amended False Claims Act operated retroactively without discussing whether any party detrimentally relied on previous law) — *Velasquez-Gabriel v. Crocetti, 4th Cir., 2001*
- **7** (noting that "extending a statute of limitations after the pre-existing period of limitations has expired impermissibly revives a moribund cause of action") — *Walter Morgan v. Ann Fennimore, 7th Cir., 2011*
- **6** (observing that the knowing submission of "unallowable costs can trigger the False Claims Act" (emphasis added)) — *William Fanslow v. Chicago Manufacturing Center, Inc., 7th Cir., 2004*
- **5** (noting presumption against retroactive legislation (citing Landgraf v. USI Film Prods., 511 U.S. 244, 265, 114 S.Ct. 1483, 1497, 128 L.Ed.2d 229 (1994))) — *Stanley D. Rabushka, Ex Rel. United States of America Stanley D. Rabushka v. Crane Company, 8th Cir., 1997*
- **5** (concluding that an amendment to a statute "permitting actions by an expanded universe of plaintiffs with different incentives" was subject to the presumption against retro-activity) — *Doe, D.D.C., 2011*
- **5** (ruling that the presumption against retroactivity applies "unless Congress has clearly manifested its intent to the contrary") — *Ricardo Lara-Ruiz v. Immigration and Naturalization Service, 7th Cir., 2001*
- **4** ("The fact that courts often apply newly enacted jurisdiction-allocating statutes to pending cases merely evidences certain limited circumstances failing to meet the conditions for our generally applicable presumption against retroactivity ... ") — *Hamdan, SCOTUS, 2006*
- **4** (stating that the above list is illustrative but not exhaustive)

↑

159. Cheney Railroad Company, Inc. v. Interstate Commerce Commission

902 F.2d 66, D.C. Cir., 1990
In 2020-24: cited by 10 decisions (appellate) · in all: 76 · 2021–2025: 15 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 82 of 82 citing opinions, filed 1991–2026: status now, not the year it changed)
Travels with: Securities & Exchange Commission v. Chenery Corp. (cosine 0.02, 5 both); Chevron (cosine 0.02, 8 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (noting that expressio unius is "an especially feeble helper in an administrative setting, where Congress is presumed to have left to reasonable agency discretion questions that it has not directly resolved") — *Martini, Elizabeth v. Fed Natl Mtge Assn, D.C. Cir., 1999*
- **1** (reviewing misapplications of the maxim) — *Shook, D.C. Cir., 1998*
- **1** ("[I]n an administrative setting . . . Congress is presumed to have left to reasonable agency discretion questions that it has not directly resolved.") — *Gerald Farrell v. Antony Blinken, D.C. Cir., 2021*
- **1** (concluding that the omission of a legislative provision that "dropped out, without explanation, in the final version" of a bill had no interpretive value) — *English, D.D.C., 2018*

↑

160. Lindsay Rafferty v. Denny's, Inc.

13 F.4th 1166, 11th Cir., 2021
In 2020-24: cited by 9 decisions (appellate) · in all: 25 · 2021–2025: 25 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 25 of 25 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Kisor (cosine 0.04, 5 both)
How later courts describe it (10 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (contrasting related duties that "have to do with single-step, easily executed food and drink preparations or readying serving items, such as silverware, plates, and dishes for customers' immediate use" with unrelated duties like maintenance, cooking, and dishwashing) — *Claridge, N.D. Ohio, 2026*
- **2** (noting that the notice of proposed rulemaking "did not specifically mention the dual jobs regulation") — *Claridge, N.D. Ohio, 2026*
- **1** (summarizing the history of the 80/20 Rule) — *Popp, S.D. Ohio, 2025*
- **1** ("Rafferty testified and met her burden [under] [A4t, Clemens] in the very portion of her deposition" showing there were weeks her untipped work exceeded twenty percent of her hours as a tipped employee, resulting in her performing work for which she was not paid) — *Scott, M.D. La., 2023*
- **1** ("[T]ypical maintenance duties are not related to a server's duties.") — *Claridge, N.D. Ohio, 2026*
- **1** (rejecting the argument that "when Kisor said a regulation must have 'multiple reasonable meanings,' it required, for the first time, that a regulation not be just 'vague' or lack precision . . . but that it satisfy essentially a term-of-art definition of 'ambiguous'") — *Trumbull, 9th Cir., 2024*
- **1** (emphasizing the employer's duty to create time records where a plaintiff claimed to perform non-tipped duties for more than 20 percent of her time) — *LABR, 5th Cir., 2023*
- **1** (declining to give Auer deference to agency Opin- ion Letter issued prior to filing of complaint at issue) — *Nova, Fed. Cir., 2022*

↑

161. Jesus Ramirez v. Linda Dougherty

852 F.3d 954, 9th Cir., 2017
In 2020-24: cited by 8 decisions (appellate) · in all: 27 · 2021–2025: 5 · weight in the sub-cluster 3
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 27 of 27 citing opinions, filed 2017–2021: status now, not the year it changed)
Travels with: Serrano (cosine 0.27, 5 both)
How later courts describe it (18 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("[B]y the very nature of obtaining lawful nonimmigrant status, the alien goes through inspection and is deemed 'admitted.'") — *H-G-G, BIA, 2019*
- **2** (analyzing the use of the term "nonimmigrant" under the immigration laws) — *Whitaker, D. Me., 2018*
- **2** (noting the "rigorous process" for securing TPS is "comparable to any other admission process" and that this "further confirms that an alien approved for TPS has been 'admitted'") — *Hernandez de Gutierrez v. Barr, D. Minnesota, 2020*
- **1** (rejecting statutory definition because "the statutory context so dictates") — *Eduardo Enriquez v. William Barr, 9th Cir., 2020*
- **1** (Court of 15 Appeals affirmed district court order granting summary judgment on behalf of TPS holder who 16 was denied opportunity to apply for adjustment of status based on agency's failure to 17 acknowledge his inspection and admission as TPS holder) — *Rosario, W.D. Wash., 2020*
- **1** ("It bears noting, however, that even if we were to proceed to step two because the statute is unclear on the 'admitted' issue, the government has not identified any controlling agency interpretation to which we owe deference.") — *H-G-G, BIA, 2019*
- **1** (noting the government's argument that the SIJ statute provides an even more "precise exception" to the bars on adjusting status than does the TPS statute, but then explaining that the two statutes are functionally equivalent in eliminating those barriers) — *United States v. Erik Jurado Garcia, 5th Cir., 2017*

1 (explaining "there is no requirement that Congress draft an elegant statute") — *Leymis Velasquez v. William P. Barr, 8th Cir., 2020*

↑

162. Kaiser Aluminum & Chemical Corp. v. Bonjorno

494 U.S. 827, SCOTUS, 1990
In 2020-24: cited by 22 decisions (appellate) · in all: 967 · 2021–2025: 92 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 1,041 citing opinions, filed 2020–2026: status now, not the year it changed)
Role changed 1995-99: likely successor Landgraf, 511 U.S. 244 (1994) (31% of the 108 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: Landgraf (cosine 0.03, 8 both)
How later courts describe it (160 parentheticals; groups of similar wording, largest first; other courts' words)

27 (holding that the plain language of 28 U.S.C. Sec. 1961 (1988) dictates that interest will be accrued from date of judgment rather than from verdict) — *Dunn v. HOVIC, 3rd Cir., 1993*

20 (explaining that, in the context of retroactivity, "where [legislative] intent is clear, it governs") — *Roberts, Utah, 2015*

17 (noting that the purpose of postjudgment interest is to compensate the successful plaintiff for the loss of time between the ascertainment of damage and payment) — *McCloud, N.D. Fla., 2007*

9 (recognizing only that Bradley and Bowen are in "apparent tension") — *Alan F. Gersman v. Group Health Association, Inc., D.C. Cir., 1992*

9 (recognizing that Bradley v. Richmond School Board, 416 U.S. 696, 711, 94 S.Ct. 2006, 2016 (1974) and Bowen v. Georgetown University Hospital, 488 U.S. 204, 208, 109 S.Ct. 468, 471, 102 L.Ed.2d 493 (1988) are in "apparent tension")

8 (starting point for interpretation of statute is 'language of the statute itself. Absent a clearly expressed legislative intention to the contrary, that language must ordinarily be regarded as conclusive.') — *White, D. Vt., 1996*

6 ("It is a principle of the English common law, as ancient as the law itself, that a statute, even of its omnipotent parliament, is not to have a retrospective effect") — *Landgraf, SCOTUS, 1994*

4 ("Congress delayed the effective date oh the amended version [of the statute] by six months to permit courts and attorneys to prepare for the change in the law. Thus, at the very least, the amended version cannot be applied before the effective date.... ") — *Beaver, S.D. Cal., 2014*

↑

163. Standing Rock Sioux Tribe v. United States Army Corps

985 F.3d 1032, D.C. Cir., 2021
In 2020-24: cited by 17 decisions (appellate) · in all: 55 · 2021–2025: 55 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 55 of 55 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Marsh (cosine 0.03, 5 both); State Farm (cosine 0.02, 7 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

1 (agency decision was controversial where the agency failed entirely to address in its EA criticisms about the use of a particular leak detection technology that was untested for pipelines like the one at issue) — *Sierra Club v. US Dept of the Army Corps of Engineers, 1st Cir., 2021*

1 (under the APA, "unsupported agency action normally warrants vacatur, [but] a court is not without discretion to leave agency action in place while the decision is remanded for further explanation" (cleaned up)) — *National Wildlife Refuge Association v. United States Army Corps of Engineers, D.D.C., 2023*

1 ("Congress created the EIS process to provide robust information in situations . . . where, following an environmental assessment, the scope of a project's impacts remains both uncertain 43 and controversial.") — *Dakota Resource Council v. U.S. Department of the Interior, D.D.C., 2024*

1 (The inquiry is "whether the agency could, with further explanation, justify" its procedural failures.) — *Center for Biological Diversity v. Lee Zeldin, D.C. Cir., 2026*

1 ("[W]e nonetheless conclude that [the district court] could not order the pipeline to be shut down without, as required by Monsanto, making the findings necessary for injunctive relief.") — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2021*

1 ("[T]he vacatur inquiry asks not whether the ultimate action could be justified, but whether the agency could, with further explanation, justify its decision to skip that procedural step.") — *Semonite, D. Colo., 2025*

1 ("while economic disruption is a proper consideration for the second Allied-Signal prong, it may not necessarily be 'determinative.'") — *Center for Biological Diversity v. United States Bureau of Land Management, D. Idaho, 2023*

1 (vacatur appropriate where procedural violations "lead us to doubt that the ultimate action will be approved") — *Center for Biological Diversity v. Lee Zeldin, D.C. Cir., 2026*

↑

164. United States v. Jeffrey H. Feingold

454 F.3d 1001, 9th Cir., 2006
In 2020-24: cited by 13 decisions (appellate) · in all: 64 · 2021–2025: 14 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 69 of 69 citing opinions, filed 2006–2026: status now, not the year it changed)

Travels with: Moore (cosine 0.14, 8 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("[0]nly after assessing the standards to which medical professionals generally hold themselves is it possible to evaluate whether a practitioner's conduct has deviated so far from the 'usual course of professional practice' that his actions become criminal.") — *United States v. Naeem Kohli, 7th Cir., 2017*
- **1** ("The term 'professional practice' implies at least that there exists a reputable group of people in the medical profession who agree that a given approach to prescribing controlled substances is consistent with legitimate medical treatment.") — *United States v. Christopher Smith, 8th Cir., 2009*
- **1** (evidence was sufficient where doctor prescribed large quantities of controlled substances without conducting physical examinations or recording bases for the prescriptions in medical charts "overwhelmingly demonstrated his disregard for proper prescribing practices") — *MacKay, 10th Cir., 2013*
- **1** ("[T]he jury must look into a practitioner's mind to determine whether he prescribed the pills for what he thought was a medical purpose." (alterations omitted)) — *Khan, 10th Cir., 2021*
- **1** (defendant "distributed the drugs in question under the aegis of being a licensed naturopathic physician") — *United States v. Vincent Hsia, 3rd Cir., 2013*
- **1** ("Knowing how doctors generally ought to act is essential for a jury to determine whether a practitioner has acted not as a doctor, or even as a bad doctor, but as a 'pusher' whose conduct is without a legitimate medical justification.") — *Zolot, D. Mass., 2013*
- **1** (instructing which elements the government must prove, and suggesting that a similarly combined instruction would be sufficient) — *Siao, 9th Cir., 2025*
- **1** (finding that it is within the district court's discretion to define a benchmark in terms of the "standard[s] of medical practice generally recognized and accepted in the country" when the instructions as a whole "articulated the standard for criminal liability") — *Nguyen, 9th Cir., 2024*

↑

165. At&T Corp. v. Iowa Utilities Board

525 U.S. 366, SCOTUS, 1999
In 2020-24: cited by 12 decisions (appellate) · in all: 487 · 2021–2025: 18 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 547 citing opinions, filed 2012–2026: status now, not the year it changed)
Role changed 2010-14: likely successor Talk America, 131 S. Ct. 2254 (2011) (29% of the 34 decisions citing this case in 2010-14 also cite it). (co-citation, not the text)
Travels with: Chevron (cosine 0.01, 7 both); State Farm (cosine 0.01, 5 both)
How later courts describe it (111 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** (stating that if "there is no immediate effect on the plaintiff's primary conduct, federal courts normally do not entertain pre-enforcement challenges to agency rules and policy statements") — *Sylvia Scott v. Pasadena Unified School District, 9th Cir., 2002*
- **8** (holding that FCC has jurisdiction to design a pricing methodology) — *Mci Telecommunication Corporation v. Bell Atlantic-Pennsylvania, 3rd Cir., 2001*
- **7** ("With regard to the matters addressed by the 1996 Act, [Congress has] unquestionably [taken the regulation of local telecommunications competition away from the States]") — *Mci Telecommunication Corporation v. Bell Atlantic-Pennsylvania, 3rd Cir., 2001*
- **6** (indicating that 1996 Act preempts state regulation of local telecommunications competition) — *Bellsouth Telecom. v. McImetro Access Trans., N.D. Ga., 2000*
- **5** ("It would be a gross understatement to say that the Telecommunications Act of 1996 is not a model of clarity. It is in many important respects a model of ambiguity or indeed even self-contradiction.") — *Omnipoint Communications Enterprises, L.P. v. Zoning Hearing Board of Easttown Township, 3rd Cir., 2003*
- **4** (defining bottleneck facilities as something akin to the essential facilities of antitrust law)
- **4** (describing the Commission's power and responsibility to dictate the manner in which state commissions exercise such authority) — *Verizon, D.C. Cir., 2014*
- **3** (Pursuant to Telecommunications Act, "States may-no longer enforce laws that impede competition.") — *In Re Union Telephone Co., N.H., 2010*

↑

166. City of Bos. Delegation v. Fed. Energy Regulatory Comm'n

897 F.3d 241, D.C. Cir., 2018
In 2020-24: cited by 11 decisions (appellate) · in all: 20 · 2021–2025: 14 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 21 of 21 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.07, 7 both); FERC (cosine 0.07, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("Agencies can be expected to 'respect [the] views of such other agencies as to those problems' for which those 'other agencies are more directly responsible and more competent.'") — *Bellion Spirits, LLC v. United States of America, D.D.C., 2019*
- **1** ("[T]he projects do not depend on the other[s] for access to the natural gas market." (second alteration in original)) — *FERC,*

D.C. Cir., 2024

1 (holding that a mayor lacked standing to litigate based on injury to his city because he lacked legal authority to do so) — *FOMB, 1st Cir., 2024*

↑

167. Amer Bioscience Inc v. Thompson, Tommy G.

269 F.3d 1077, D.C. Cir., 2001
In 2020-24: cited by 9 decisions (appellate) · in all: 610 · 2021–2025: 244 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 613 citing opinions, filed 2024–2026: status now, not the year it changed)
Travels with: Securities & Exchange Commission v. Chenery Corp. (cosine 0.02, 5 both); State Farm (cosine 0.02, 7 both)
How later courts describe it (31 parentheticals; groups of similar wording, largest first; other courts' words)

8 ("[W]hen a party seeks review of agency action under the APA, the district judge sits as an appellate tribunal.") — *Sebelius, D.D.C., 2010*

8 (holding that relief on an APA claim "normally will be a vacatur of the agency's order") — *Pritzker, D.D.C., 2019*

4 (warning against the use of preliminary injunction motions in APA cases) — *Kaspersky Lab, Inc. v. U.S. Dep't of Homeland Sec., D.C. Cir., 2018*

1 (FDA administers Orange Book listings in ministerial fashion) — *CHATOM PRIMARY CARE, P.C. v. MERCK & CO., INC., E.D. Pa., 2023*

1 ("The FDA, pursuant to longstanding practice and its own regulations, and based on its acknowledged lack of expertise and resources . . . accept[s] at face value the accuracy of [brand- name patent] holders' . . . declarations" in the Orange Book) — *Mylan Inc v. Commissioner of Internal Reven, 3rd Cir., 2023*

1 ("Mabel [Dixie] is family. . . . Mabel's mother is my grandfather's sister.") — *Haaland, D.D.C., 2024*

1 ("Appellant argues that the [FDA'] decision to 91 Case: 23-10362 Document: 00516860229 Page: 92 Date Filed: 08/16/2023 No. 23-10362 approve . . . [an] Abbreviated New Drug Application (ANDA) — *FDA, 5th Cir., 2023*

1 (when assessing motion for summary judgment in APA case "the district judge sits as an appellate tribunal") — *Pollack, D.D.C., 2024*

↑

168. Communications Workers of America v. Public Service Commission

424 Md. 418, Md., 2012
In 2020-24: cited by 9 decisions (appellate) · in all: 21 · 2021–2025: 8 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 21 of 21 citing opinions, filed 2012–2024: status now, not the year it changed)
Travels with: PSC (cosine 0.16, 7 both); Md. Office of People's Counsel v. Md. Pub. Serv. Comm'n (cosine 0.11, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("Appellant did not brief this issue, and we do not consider it") — *Tupa, Md., 2012*

1 ("Because the Commission is well informed by its own expertise and specialized staff, a court reviewing a factual matter will not substitute its own judgment on review of a fairly debatable matter.") — *Md. Office of People's Counsel v. Md. Pub. Serv. Comm'n, Md., 2018*

↑

169. Town of Easton v. Public Service Commission

379 Md. 21, Md., 2003
In 2020-24: cited by 9 decisions (appellate) · in all: 33 · 2021–2025: 19 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 33 of 33 citing opinions, filed 2007–2025: status now, not the year it changed)
Travels with: CWA. (cosine 0.16, 7 both); Md. Office of People's Counsel v. Md. Pub. Serv. Comm'n (cosine 0.11, 5 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 (PSC's authority to designate where a company may exercise its franchise "enables it to assure the efficient and non-duplicative provision of service") — *Maryland Attorney General Opinion 96 OAG 110, Md. Att'y Gen., 2011*

↑

170. Adirondack Medical Center v. Kathleen Sebelius

740 F.3d 692, D.C. Cir., 2014
In 2020-24: cited by 9 decisions (appellate) · in all: 62 · 2021–2025: 25 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 66 of 66 citing opinions, filed 2014–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.02, 7 both); State Farm (cosine 0.02, 5 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

2 (explaining that the Secretary had authority under 42 U.S.C. § 1395ww(d)(5)(I) to adjust the hospital-specific rate for payments) — *Azar, D.C. Cir., 2019*

1 (interpreting "adjustment" in § 1395ww(d)(5)(I)(i)) — *Bridgeport Hospital v. Xavier Becerra, D.C. Cir., 2024*

1 (describing the Secretary's "broad-spectrum grant of authority") — *Adirondack Medical Center v. Sylvia Mathews Burwell, D.C. Cir., 2015*

1 ("The expressio unius canon is a 'feeble helper in an administrative setting, where Congress is presumed to have left to

reasonable agency discretion questions that it has not directly resolved.'" (quoting Cheney R.R. Co., 902 F.2d at 68-69)) — *Brackeen, 5th Cir., 2021*

1 ("[I]t is our duty to harmonize the provisions and render each effective.") — *Garcia Ramirez v. U.S. Immigration and Custom Enforcement, D.D.C., 2025*

1 ("[W]hen countervailed by a broad grant of authority contained within the same statutory scheme, the canon is a poor indicator of Congress's intent.") — *Farrell, D.D.C., 2019*

1 ("The canon is particularly unhelpful when both interpretive outcomes lead to some sort of surplusage.") — *Authority of the Special Inspector General for Pandemic Recovery to Oversee Programs Established Under the CARES Act, OLC, 2021*

1 ("Absent congressional intent to the contrary, it is the court's duty to harmonize statutory provisions to render each effective.") — *Spring, Bankr. N.D. Fla., 2025*

↑

171. Lichter v. United States

334 U.S. 742, SCOTUS, 1948
In 2020-24: cited by 8 decisions (appellate) · in all: 404 · 2021–2025: 15 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 477 citing opinions, filed 1990–2026: status now, not the year it changed)
Travels with: Gundy (cosine 0.04, 6 both); Mistretta (cosine 0.03, 6 both)
How later courts describe it (66 parentheticals; groups of similar wording, largest first; other courts' words)

32 (upholding delegation of authority to War Department to recover "excessive profits" earned on military contracts) — *Skinner, SCOTUS, 1989*

6 (upholding statute permitting government to require private parties to pay excessive profits realized during war time to the government) — *Commonwealth Edison Company v. United States, Fed. Cir., 2001*

4 (general rule is that "[a] constitutional power implies a power of delegation of authority under it sufficient to effect its purposes") — *Loving, SCOTUS, 1996*

4 (upholding delegation under Renegotiation Act to determine whether private parties earned "excessive profits" during wartime) — *United States v. Barry L. Brown, 11th Cir., 2004*

3 ("[T]he power has been expressly given to Congress to prosecute war, and to pass all laws which shall be necessary and proper for carrying that power into execution.") — *Ramirez, N.M. Ct. App., 2014*

2 (statutory reference to "excessive profits" provides a sufficient congressional limitation on administrative power)

2 (Congress need not supply specific formula in a field where adaptation and flexibility are essential) — *United States v. Daniel Touby, United States of America v. Lyrissa Touby, 3rd Cir., 1990*

2 ("Standards prescribed by Congress are to be read in the light of the conditions to which they are to be applied.") — *Synar, D.D.C., 1986*

↑

172. UAW-Labor Employment & Training Corp. v. Chao

325 F.3d 360, D.C. Cir., 2003
In 2020-24: cited by 8 decisions (appellate) · in all: 35 · 2021–2025: 20 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 40 of 40 citing opinions, filed 2004–2025: status now, not the year it changed)
Travels with: Brown (cosine 0.05, 5 both); Brown & Williamson (cosine 0.03, 7 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("Fitting a Garmon claim under the language of § 8(c) is awkward . . . . [T]he activities described in § 8(c) . . . are not 'protected by' the NLRA, except from the NLRA itself.") — *Chamber of Commerce of the United States v. Lockyer, 9th Cir., 2005*

1 (promoting rights of union 4 members) — *Mayes, D. Ariz., 2022*

1 ("[UAW] clearly has standing, and we need not consider whether the other plaintiffs do.") — *Vought, D.D.C., 2025*

1 (Executive Order 13201: "When workers are better informed of their [federal labor] rights, their productivity is enhanced.") — *Biden, W.D. La., 2021*

1 (recognizing "the necessary flexibility and 'broad-ranging authority'" the FPASA provides the President) — *Trump, 5th Cir., 2025*

1 (observing that "an employer's right to silence is sharply constrained in the labor context, and leaves it subject to a variety of burdens to post notices of rights and risks") — *CompassCare, 2d Cir., 2025*

1 (stating that the executive order need only "have a 'sufficiently close nexus' to the values of providing the government an 'economical and efficient system for ... procurement and supply' ") — *Perez, D.D.C., 2015*

↑

173. Becerra v. Empire Health Foundation, For Valley Hospital Medical Center

597 U.S. 424, SCOTUS, 2022
In 2020-24: cited by 14 decisions (appellate) · in all: 29 · 2021–2025: 29 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 29 of 29 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: Sebelius (cosine 0.08, 5 both); Chevron (cosine 0.01, 6 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

1 (construing whether provision was jurisdictional and thus applying "the clear-statement rule," imposing extra burden on party seeking definitional reading of parenthe- tical to show its position is "not only better, but also clear") — *Hanser, Fed. Cir., 2022*

1 (resolving intricate Medicare dispute by reference solely to "text," "context," and "structure") — *Raimondo, SCOTUS, 2024*

1 (construing parenthetical contained in Medi- care payment provision by considering "[t]he text and con- text") — *Hanser, Fed. Cir., 2022*

1 (noting in a recent challenge to HHS reimbursements that "[t]ext, context, and structure all support calculating the Medicare fraction HHS's way.") — *Silverado Hospice, Inc. v. Xavier Becerra, 9th Cir., 2022*

1 (concluding that where statute employed "consistent meaning" for term "entitled to bene- fits," Congress would have not changed that meaning "simply by adding '(for such days)'") — *Hanser, Fed. Cir., 2022*

↑

174. United States Steel Corp. v. United States

621 F.3d 1351, Fed. Cir., 2010
In 2020-24: cited by 12 decisions (appellate) · in all: 66 · 2021–2025: 15 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 69 of 69 citing opinions, filed 2011–2026: status now, not the year it changed)
Travels with: Solarworld Americas, Inc. v. United States, Yingli Green ... (cosine 0.08, 5 both); Chevron (cosine 0.01, 6 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

2 (defining "export price" as "the price of the product in the United States") — *Borusan Mannesmann Boru Sanayi Ve Ticaret A.S. v. United States, Fed. Cir., 2023*

1 (The antidumping duty statute "does not unambiguously preclude—or require—Commerce to use zeroing methodology.") — *Tianjin Mach. Imp. & Exp. Corp. v. United States, Ct. Intl. Trade, 2012*

1 ("[Section] 1677(35)(A) does not unambiguously preclude — or require — Commerce to use zeroing methodology.") — *Grobest & I-Mei Indus. (Vietnam) Co., Ltd. v. United States, Ct. Intl. Trade, 2012*

1 (applying the rule that earlier decisions prevail unless overturned en banc) — *Union Steel v. United States, Ct. Intl. Trade, 2012*

1 (upholding Commerce's methodological change with respect to investigations because it supplied a reasonable explanation for its new interpretation) — *Chang Chun Petrochemical Co., Ltd. v. United States, Ct. Intl. Trade, 2013*

1 (recognizing use of zeroing for "alleviating concerns of targeted or masked dumping") — *Apex Frozen Foods Private Ltd. v. United States, Ct. Intl. Trade, 2014*

1 (finding that Commerce was not required to use zeroing in investigations but affirming it as a permissible interpretation of the statute) — *Tianjin Magnesium Int'l Co. v. United States, Ct. Intl. Trade, 2014*

↑

175. Karuk Tribe v. United States Forest Service

681 F.3d 1006, 9th Cir., 2012
In 2020-24: cited by 12 decisions (appellate) · in all: 146 · 2021–2025: 57 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 152 citing opinions, filed 2017–2026: status now, not the year it changed)
Travels with: National Wildlife Federation v. National Marine Fisheries... (cosine 0.09, 6 both); State Farm (cosine 0.01, 5 both)
How later courts describe it (18 parentheticals; groups of similar wording, largest first; other courts' words)

5 (recognizing that Home Builders "harmonizes the ESA consultation requirement with other statutory mandates that leave an agency no discretion to consider the protection of listed species" (citation omitted)) — *Center for Food Safety v. Thomas Vilsack, 9th Cir., 2013*

3 (noting that actions lasting only one or two. years evade review) — *Krueger, D. Mont., 2014*

2 (" 'inaction' is not 'action' for [16 U.S.C.] Section [1536](a)(2) purposes.") — *Center for Biological Diversity v. U.S. Environmental Protection Agency, 9th Cir., 2017*

2 ("[T]o avoid the consultation obligation, an agency's competing statutory mandate must require that it perform specific nondiscretionary acts rather than achieve broad goals.") — *Alaska Wilderness League v. Sally Jewell, 9th Cir., 2015*

1 ("An agency must consult under Section 7 only when it makes an 'affirmative' act or authorization." (citing Cal. Sportfishing Prot. All. v. FERC, 472 F.3d 593, 595 (9th Cir. 2006))) — *Center for Biological Diversity v. United States Maritime Administration, E.D. Va., 2023*

1 ("An agency must consult under Section 7 only when it makes an 'affirmative' act or authorization.") — *Center for Biological Diversity v. Environmental Protection Agency, N.D. Cal., 2014*

1 (finding the Forest Service's approval, denial, and continued compliance inspections of "Notices of Intentions to Mine" demonstrated the Forest Service's actions were not merely advisory but provided the agency with discretionary control) — *Weber, D. Mont., 2014*

1 (finding the imposition of mitigation measures in an attempt to reduce impacts weighs against a finding of "no effect") — *Weber, D. Mont., 2014*

↑

176. Karpova v. Snow

497 F.3d 262, 2d Cir., 2007
In 2020-24: cited by 12 decisions (appellate) · in all: 88 · 2021–2025: 33 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 89 of 89 citing opinions, filed 2008–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 7 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("swiftly rejecting]" argument that the Iraq Sanctions regulations exceed the authority Congress gave to the President) — *Clancy, 7th Cir., 2009*
- **2** (travel restriction imposed by the Iraq Sanctions regulations does not violate liberty interest under the Fifth Amendment) — *Clancy, 7th Cir., 2009*
- **1** ("The DHS contends that his recent 2017 conviction for driving while impaired with drugs is a serious criminal offense – particularly considering that [Ali] admits he has used marijuana daily in the past, and has used cocaine and unprescribed Xanax.") — *Ali, S.D.N.Y., 2021*
- **1** ("[S]o long as the agency examines the relevant data and has set out a satisfactory explanation!,] including a rational connection between the facts found and the choice made, a reviewing court will uphold the agency action * * *.") — *National Audubon Society, Inc. v. United States Fish & Wildlife Service, E.D.N.Y, 2014*
- **1** ("[T]he DHS argues that [Ali] has nine arrests and two convictions in the span of 7 years for crimes ranging from assault and robbery to criminal sale of marijuana.") — *Ali, S.D.N.Y., 2021*
- **1** (concluding the Iraq Sanction regulations did not violate due process rights where the plaintiff presented no disputed facts and where different directors signed the pre-penalty notice and the final penalty notice) — *Ryan Clancy v. Timothy F. Geithner, 7th Cir., 2009*
- **1** (explaining that due process only requires a fair and meaningful opportunity to be heard) — *Nexus, Minn. Ct. App., 2010*
- **1** (noting that section 706(2)(A) 11 Defendants moved to dismiss Plaintiffs' complaint pursuant to Rule 12(b)(6) — *Teleanu, S.D.N.Y., 2020*

↑

177. Yangzhou Bestpak Gifts & Crafts Co. v. United States

716 F.3d 1370, Fed. Cir., 2013
In 2020-24: cited by 11 decisions (appellate) · in all: 136 · 2021–2025: 53 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 139 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Ad Hoc Shrimp Trade Action Committee v. United States (cosine 0.09, 5 both); Chevron (cosine 0.01, 6 both)
How later courts describe it (39 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (stating that "[a]n overriding purpose of Commerce's administration of antidumping laws is to calculate dumping margins as accurately as possible") — *Shenzhen Xinboda Industrial Co., Ltd. v. United States, Ct. Intl. Trade, 2017*
- **2** ("Certain exceptions to the exhaustion requirement apply, such as where exhaustion would be a useless formality, or where the party had no opportunity to raise the issue before the agency." (internal quotation marks omitted)) — *Nucor Corporation v. United States, Fed. Cir., 2019*
- **2** ("[Substantial evidence review] requires [the agency] to examine the record and articulate a satisfactory explanation for its action." (citation omitted)) — *Ericsson Inc. v. Intellectual Ventures I LLC, Fed. Cir., 2018*
- **2** ("[R]ate determinations for nonmandatory, cooperating separate rate respondents must also bear some relationship to their actual dumping margins.") — *Baroque Timber Industries (Zhongshan) Co. v. United States, Ct. Intl. Trade, 2014*
- **2** (noting that Commerce determinations cannot be based on "mere conjecture or supposition") — *Shenzhen Xinboda Industrial Co., Ltd. v. United States, Ct. Intl. Trade, 2017*
- **1** ("Although Commerce may be permitted to use a simple average methodology to calculate the separate rate, the circumstances of this case renders a simple average of a de minimis and AFA China-wide rate unreasonable as applied.") — *Baroque Timber Industries (Zhongshan) Co. v. United States, Ct. Intl. Trade, 2014*
- **1** ("In sum, Commerce's investigation was left with one participant after Jiantian's withdrawal." (emphasis added)) — *Solianus, Inc. v. United States, Ct. Intl. Trade, 2019*
- **1** (calculat- ing the all-others rate by taking the simple average of a de minimis rate and a total AFA rate assigned to two mandatory respondents is a "reasonable method") — *MacLean-fogg Company v. United States, Fed. Cir., 2014*

↑

178. BCCA Appeal Group v. United States Environmental Protection Agency

355 F.3d 817, 5th Cir., 2003
In 2020-24: cited by 9 decisions (appellate) · in all: 32 · 2021–2025: 13 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 34 of 34 citing opinions, filed 2004–2026: status now, not the year it changed)
Travels with: Whitman (cosine 0.02, 5 both); State Farm (cosine 0.02, 6 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("Generally, in considering a petition for review from a final agency order, this court will not consider questions of law which were neither presented to nor passed on by the agency.") — *Airlines for Amer v. Dept of Trans, 5th Cir., 2025*
- **1** (EPA entitled to special deference where its decision turns on "its evaluation of complex scientific data within its technical expertise") — *Southwestern Elec. Power Co. v. U.S. E.P.A., 5th Cir., 2019*
- **1** (discussing Chevron in context of challenge to Clean Air Act regulations) — *Southwestern Elec. Power Co. v. U.S. E.P.A., 5th Cir., 2019*

↑

179. Caveney v. Bower

207 Ill. 2d 82, Ill., 2003

In 2020-24: cited by 9 decisions (appellate) · in all: 129 · 2021–2025: 14 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 137 citing opinions, filed 2006–2026: status now, not the year it changed)

Role changed 2015-19: likely successor Hayashi, 2014 IL 116023 (2015) (32% of the 40 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)

Travels with: Commonwealth Edison Co. v. Will County Collector (cosine 0.09, 5 both); Landgraf (cosine 0.02, 6 both)

How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("The best indication of legislative intent is the statutory language, given its plain and ordinary meaning") — *People Ex Rel. Madigan v. Petco Petroleum Corp., Ill. App. Ct., 2006*
- **2** (amendment is a substantive change in the law if it establishes a liability that previously did not exist) — *People ex rel. Madigan v. J.T. Einoder, Inc., Ill., 2015*
- **2** ("In Commonwealth Edison, this court for the first time adopted the United States Supreme Court's retroactivity analysis, as set forth in Landgraf [citation].") — *People ex rel. Madigan v. J.T. Einoder, Inc., Ill., 2015*
- **1** (amendment is substantive when it establishes a new tax credit) — *Jones, N.D. Ill., 2025*
- **1** ("Thus, for purposes of Landgraf's first step, the legislature always will have clearly indicated the temporal reach of an - 10 - amended statute, either expressly in the new legislative enactment or by default in section 4 of the Statute on Statutes." (Emphasis in original.)) — *Perry, Ill., 2018*
- **1** ("In light of section 4, the Landgraf analysis in Illinois becomes quite simple.") — *Schwartz, N.D. Ill., 2024*
- **1** (finding no viable uniformity clause challenge where statute was "perfectly uniform" and offered same tax credit to all taxpayers) — *Carroll, Ill. App. Ct., 2020*

↑

180. City of Shoreacres v. Waterworth

420 F.3d 440, 5th Cir., 2005

In 2020-24: cited by 8 decisions (appellate) · in all: 41 · 2021–2025: 16 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 41 of 41 citing opinions, filed 2005–2026: status now, not the year it changed)

Travels with: Department of Transportation v. Public Citizen (cosine 0.05, 5 both); State Farm (cosine 0.02, 6 both)

How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (first quoting Sierra Club v. March, 976 F.2d 763, 767 (1st Cir. 1992); then Robertson, 490 U.S. at 354) — *350 Montana v. Debra Haaland, 9th Cir., 2022*
- **1** ("The Corps generally has broad discretion to decide whether a sufficient hydrological nexus exists to bring wetlands under regulatory control.") — *Bayou City Waterkeeper v. U.S. Army Corps of Engineers, S.D. Tex., 2022*
- **1** (discussing the appellant's lack of "concrete analysis with respect to the likelihood" of future projects) — *Rowan, 5th Cir., 2006*
- **1** (finding that alternative of building terminal outside of specific geographic location would not comport with applicant's overall project purpose, which was to promote growth in that location) — *City Club of New York v. United States Army Corps of Engineers, S.D.N.Y., 2017*

↑

181. Atlantic Refining Co. v. Public Service Commission

360 U.S. 378, SCOTUS, 1959

In 2020-24: cited by 8 decisions (appellate) · in all: 313 · 2021–2025: 8 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 355 citing opinions, filed 1982–2025: status now, not the year it changed)

Role changed 1985-89: likely successor State Farm, 463 U.S. 29 (1983) (33% of the 33 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)

Travels with: FERC (cosine 0.10, 5 both); FERC (cosine 0.09, 6 both)

How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("In view of [the delay inherent in subsequent Commission proceedings], the initial certificating of a proposal under Sec. 7[ ] of the Act as being required by the public convenience and necessity becomes crucial.") — *Maryland People's Counsel v. Federal Energy Regulatory Commission, D.C. Cir., 1985*
- **3** (process for certification of natural gas transportation is "heart of the [Natural Gas] Act") — *Public Service Commission of Kentucky v. Federal Energy Regulatory Commission, 6th Cir., 1979*
- **3** (Natural Gas Act § 5, 15 U.S.C. § 717(1 (1970)); FPC v. Hope Natural Gas Co., 320 U.S. 591, 618, 64 S.Ct. 281, 88 L.Ed. 333 (1944) (Natural Gas Act § 5) — *Indiana & Michigan Electric Company v. Federal Power Commission, Richmond Power and Light of the City of Richmond, Indiana,intervenors, D.C. Cir., 1974*
- **3** ("The Act was so framed as to afford consumers a complete, permanent and effective bond of protection from excessive rates and charges.") — *United Gas Pipe Line Company v. Federal Energy Regulatory Commission, 5th Cir., 1981*
- **3** ("The purpose of the [NGA] was to underwrite just and reasonable rates to the consumers of natural gas.")
- **1** (approval of certificate of public convenience and necessity "requires the Commission to evaluate all factors bearing on the public interest") — *FERC, D.C. Cir., 2000*

1 (discussing FERC's authority under 15 U.S.C. § 717f(e) to grant a certificate of public convenience and necessity "authorizing the whole or any part of the operation, sale, service, construction, extension, or acquisition" of natural gas facilities) — *Northern Natural Gas Co. v. ONEOK Field Services Co., Kan., 2013*

↑

182. United States v. O'Hagan

521 U.S. 642, SCOTUS, 1997
In 2020-24: cited by 23 decisions (appellate) · in all: 448 · 2021–2025: 54 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 477 citing opinions, filed 2017–2026: status now, not the year it changed)
Role changed 2015-19: likely successor United States v. Newman and Chiasson, 773 F.3d 438 (2014) (31% of the 35 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (115 parentheticals; groups of similar wording, largest first; other courts' words)

17 ("Deception through nondisclosure is central to the [misappropriation] theory of liability . . . .") — *Merson, S.D.N.Y., 2024*
16 ("A company's confidential information . . . qualifies as property to which the company has a right of exclusive use.") — *Ulanch, S.D.N.Y., 2024*
8 (Trading on material, nonpublic information qualifies as a "deceptive device" under § 10(b) — *In Re Securities Litigation BMC Software, Inc., S.D. Tex., 2001*
6 (holding that " § 10(b) and Rule 10b-5 are violated when a corporate insider trades in the securities of his corporation on the basis of material, nonpublic information.") — *In Re Lernout & Hauspie Securities Litigation, D. Mass., 2002*
4 (noting that Central Bank "concerned only private civil litigation under § 10(b) — *Tambone, 1st Cir., 2010*
4 (holding that secretly using misappropriated confidential information for trading purposes to be § 10(b) violation) — *In Re Lernout & Hauspie Securities Litigation, D. Mass., 2002*
3 (defendant knew that price of stock would increase after hostile tender offer announced) — *United States v. Michael Alan Mooney, 8th Cir., 2005*
3 ("Liability under Rule 10b-5, our precedent indicates, does not extend beyond conduct encompassed by § 10(b)'s prohibition.") — *Wolfson, 10th Cir., 2008*

↑

183. Arkansas Louisiana Gas Co. v. Hall

453 U.S. 571, SCOTUS, 1981
In 2020-24: cited by 22 decisions (appellate) · in all: 466 · 2021–2025: 24 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 491 citing opinions, filed 2013–2026: status now, not the year it changed)
Role changed 1990-94: likely successor Maislin Industries, 497 U.S. 116 (1990) (29% of the 45 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Travels with: Montana-Dakota Utilities Co. v. Northwestern Public Servi... (cosine 0.06, 5 both); Morgan Stanley (cosine 0.03, 5 both)
How later courts describe it (89 parentheticals; groups of similar wording, largest first; other courts' words)

15 (holding that a natural gas producer could not sue a buyer of natural gas for breach of contract damages because to do so would cause the court to impose a rate other than that established by the federal agency) — *JAMES SERVAIS v. Kraft Foods, Inc., Wis. Ct. App., 2001*
8 (stating that where two statutes "are in all material respects substantially identical," the court interchangeably cites decisions interpreting the pertinent sections) — *Cincinnati Bell Telephone Company v. Allnet Communication Services, Inc., Cross-Appellee, 6th Cir., 1994*
7 (explaining the development of the filed-rate doctrine in the context of the Natural Gas Act) — *FERC, D.C. Cir., 2018*
7 (holding that "the filed rate doctrine prohibits a federally regulated seller of natural gas from charging rates higher than those filed with the Federal Energy Regulatory Commission") — *Malloy, D. Conn., 2018*
5 (recognizing that "[a] finding that federal law provides a shield for the challenged conduct will almost always leave the state-law violation unredressed") — *J.P. Morgan Trust Co. v. Williams Companies, Inc., D. Nev., 2006*
4 (allowing a state court to award breach of contract damages for rates never filed would undermine the congressional scheme of uniform rate regulation) — *Sun City Taxpayers' Ass'n v. Citizens Utilities Co., D. Conn., 1994*
3 (speculation on what Commission "might have done" is prohibited) — *Wah Chang v. Duke Energy Trading & Marketing, LLC, 9th Cir., 2007*
3 (plaintiffs request for damages "amounts to nothing less than the award of a retroactive rate increase based on speculation about what the Commission might have done had it been faced with the facts of this case")

↑

184. Environmental Protection Agency v. California Ex Rel. State Water Resources Control Board

426 U.S. 200, SCOTUS, 1976
In 2020-24: cited by 18 decisions (appellate) · in all: 405 · 2021–2025: 31 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: yellow? (read the newest 100 of 449 citing opinions, filed 2009–2026: status now, not the year it changed)

2013 (D. Mass.): strong "superseded" — *Conservation Law Foundation, Inc. v. United States Environme*: [CWA] Amendments provide for direct administrative and judicial enforcement of permits." Envtl. Protection Agency v. Cal. ex rel. State Water Res. Control Bd., [426 U.S. 200, 205205], 96 S.Ct. 2022, 48 L.Ed.2d 578 (1976), superseded by statute, Clean Water Act of 1977, Pub. L. No. 95-217, 91 Stat.. . .

Role changed 1985-89: likely successor Chevron, 467 U.S. 837 (1984) (34% of the 35 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)

Travels with: South Florida Water Management District v. Miccosukee Tri... (cosine 0.07, 5 both); Chevron (cosine 0.01, 5 both)

How later courts describe it (46 parentheticals; groups of similar wording, largest first; other courts' words)

- **10** ("Federal installations are subject to state regulation only when and to the extent that congressional authorization is clear and unambiguous") — *Trump, SCOTUS, 2020*
- **8** ("An NPDES permit serves to transform generally applicable effluent limitations and other standards including those based on water quality into the obligations ... of the individual discharger.") — *Waterkeeper Alliance, Inc. v. United States Environmental Protection Agency, 2d Cir., 2005*
- **4** ("it is unlawful for any person to discharge a pollutant without obtaining a permit and complying with its terms") — *Nick Carr, and William H. George, Jr. v. Alta Verde Industries, Inc., 5th Cir., 1991*
- **3** ("Such direct restrictions on discharges facilitate enforcement by making it unnecessary to work backward from an overpolluted body of water to determine which point sources are responsible and which must be abated.") — *Peter Maier, P.E. v. United States Environmental Protection Agency, 10th Cir., 1997*
- **3** (noting that "certain parts of the legislative history would seem to indicate that the 'requirements' language of Section 313 refers simply and solely to substantive standards, to effluent limitations and standards and schedules of compliance" (some internal quotation marks omitted)) — *State of Alabama v. U.S. Army Corps of Engineers, D.D.C., 2023*
- **2** (discussing the adoption of the Clean Water Act) — *Citizens Coal Council and Kentucky Resources Council, Inc. v. United States Environmental Protection Agency, 6th Cir., 2006*
- **2** ("The term 'point source' means any discernible, confined and discrete conveyance, including but not limited to any . . . concentrated animal feeding operation . . . from which pollutants are or may be discharged.") — *Food & Water Watch, Inc. v. Usepa, 9th Cir., 2021*
- **2** ("Thus, the principal means of enforcing the pollution control and abatement provisions of the Amendments is to enforce compliance with a permit.") — *Federal Insurance Company v. Union Pacific Railroad Company, 9th Cir., 2011*

↑

185. American Wildlands v. Kempthorne

530 F.3d 991, D.C. Cir., 2008

In 2020-24: cited by 18 decisions (appellate) · in all: 355 · 2021–2025: 109 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 366 citing opinions, filed 2021–2026: status now, not the year it changed)

Travels with: State Farm (cosine 0.02, 6 both)

How later courts describe it (60 parentheticals; groups of similar wording, largest first; other courts' words)

- **23** (declining to consider argument raised for the first time in a reply brief on grounds of forfeiture) — *Brett, D.C. Cir., 2018*
- **4** ("in the absence of available evidence, Congress does not require the agency to conduct its own studies") — *Friends of Blackwater v. Kenneth Salazar, D.C. Cir., 2012*
- **3** (the "best available data" standard "requires not only that the data be attainable, but that researchers in fact have conducted the tests") — *Salazar, E.D. Cal., 2010*
- **3** ("A fleeting statement in the parenthetical of a citation is no more sufficient to raise a claim than a cursory remark in a footnote[.]") — *Quinton Brown v. Nucor Corporation, 4th Cir., 2015*
- **3** (stating that issues not argued in the opening brief are forfeited on appeal) — *Donald Trump v. Bennie Thompson, D.C. Cir., 2021*
- **2** (interpreting analogous language in 16 U.S.C. § 1533 (b)(1)(A)) — *Ross, D.C. Cir., 2018*
- **2** (court is permitted to consider evidence outside of the administrative record in "unusual circumstances" (quoting Tex. Rural Legal Aid, Inc. v. Legal Servs. Corp., 940 F.2d 685, 698 (D.C. Cir. 1991)) — *Association for Community Affiliated Plans v. United States Department of Treasury, D.D.C., 2019*
- **2** (exception only applies when an agency's failure to adequately explain its actions "frustrates judicial review") — *Azar, D.C. Cir., 2018*

↑

186. Marjorie Lynch v. Gabriel Jackson

853 F.3d 116, 4th Cir., 2017

In 2020-24: cited by 13 decisions (appellate) · in all: 27 · 2021–2025: 19 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 27 of 27 citing opinions, filed 2017–2025: status now, not the year it changed)

Travels with: Davis (cosine 0.03, 5 both); Wisconsin Central Ltd. v. United States (cosine 0.03, 5 both)

How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("[T]he words of a statute must be read in their context and with a view to their place in the overall statutory scheme." (quoting Davis v. Mich. Dep't of Treasury, 489 U.S. 803, 809 (1989)) — *Wilderness Society v. Bureau of Land Management, 4th Cir., 2023*
- **3** (Section 158(d)(2)(A)(ii) was satisfied when "there is a split between bankruptcy courts within the Eastern District of North Carolina over the proper interpretation of" a statute) — *Douglas, D. Maryland, 2021*

3 (plain language of the statute entitles debtor to deduct the full Local Standard amounts even if their actual expenses are less) — *Ckurtis Ah-maad Anderson and Naomi Renee Anderson, Bankr. N.D. Tex., 2019*

2 (the Official Form and the statute are harmonized) — *Ckurtis Ah-maad Anderson and Naomi Renee Anderson, Bankr. N.D. Tex., 2019*

1 ("{[L]anguage is not read in isolation, rather '[i]t is a fundamental canon of 10 statutory construction that the words of a statute must be read in their context and with a view to their place in the overall statutory scheme.'") — *Akers, W.D. Va., 2019*

1 ("[W]hen the statute's language is plain, the 27 sole function of the courts – at least where the disposition required by the text is not absurd – is to enforce it according to its terms.") — *SourceAmerica, 4th Cir., 2020*

1 (reading bankruptcy statute in a manner that would avoid the "absurd result" of "punishing frugal debtors") — *Altria Group, Inc. v. United States, E.D. Va., 2025*

↑

187. Jorge Baez-Sanchez v. William Barr

947 F.3d 1033, 7th Cir., 2020
In 2020-24: cited by 13 decisions (appellate) · in all: 15 · 2021–2025: 2 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 15 of 15 citing opinions, filed 2020–2022: status now, not the year it changed)
Travels with: Baez-Sanchez (cosine 0.07, 5 both); SANCHEZ SOSA (cosine 0.05, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("Once [a United States Court of Appeals] reach[es] a conclusion, both the Constitution and the statute require[ ] the [BIA] to implement it.") — *Junior Ricketts v. Atty Gen USA, 3rd Cir., 2020*

1 (scolding the Board for thinking the Seventh Circuit "had issued an advisory opinion") — *L.E.A.R, N.D. Ill., 2022*

↑

188. Cape Cod Hospital v. Sebelius

630 F.3d 203, D.C. Cir., 2011
In 2020-24: cited by 12 decisions (appellate) · in all: 53 · 2021–2025: 19 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 53 of 53 citing opinions, filed 2011–2025: status now, not the year it changed)
Travels with: Becerra (cosine 0.08, 5 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (10 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[C]ourts ordinarily refuse to consider objections not submitted in accordance with agency procedures during the rulemaking process.") — *Sebelius, D.D.C., 2011*

2 (noting that budget neutrality required the Secretary to implement a rate adjustment "in a manner that would have no effect on the annual total of Medicare payments made to all hospitals throughout the country for inpatient services") — *American Hospital Association, D.D.C., 2019*

1 (explaining prospective payment rate calculation) — *New Lifecare Hospitals of Chester County LLC v. Azar, II, D.D.C., 2019*

1 ("CMS does not calculate the standardized amount from scratch each year. Instead, following Congress's directive, it calculated the standardized amount for a base year and has since carried that figure forward, updating it annually for inflation.") — *St. Marys Regional Medical Center v. Xavier Becerra, D.D.C., 2024*

1 ("[S]ince the 2008 rule in no way compensated for any underpayments that might have been made in 2007, a live controversy remains regarding the hospitals' objection to the 2007 rule.") — *American Great Lakes Ports Association v. Karl Schultz, D.C. Cir., 2020*

1 (noting in 2011 that CMS has carried forward its original standardized amount calculations ever since their original computation) — *St. Marys Regional Medical Center v. Xavier Becerra, D.D.C., 2024*

1 (explaining that an agency cannot continue to make erroneous computations once the agency is made aware of the miscalculation) — *SEBELIUS'], D.D.C., 2014*

1 (holding that an agency may appeal to the PRRB from issuance of the Final Inpatient Prospective Payment System Rule) — *Battle Creek Health System v. Mercy Hospital Cadillac, D.D.C., 2023*

↑

189. Don Olenhouse v. Commodity Credit Corporation

42 F.3d 1560, 10th Cir., 1994
In 2020-24: cited by 11 decisions (appellate) · in all: 346 · 2021–2025: 42 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 361 citing opinions, filed 2014–2026: status now, not the year it changed)
Travels with: Wyoming v. United States Department of Agriculture (cosine 0.09, 5 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (36 parentheticals; groups of similar wording, largest first; other courts' words)

6 (stating, "Reviews of agency action in the district courts must be processed as appeals." (emphasis in original)) — *Sherer, D. Colo., 2010*

3 ("[M]otions for summary judgment are conceptually incompatible with the very nature and purpose of an appeal.") — *N.M. Health Connections v. U.S. Dep't of Health & Human Servs., D.N.M., 2018*

3 (stating that when reviewing agency action under an arbitrary and capricious standard, "the district court should govern itself by referring to the Federal Rules of Appellate Procedure") — *Southern Utah Wilderness Alliance v. United States Bureau of Land Mangement, D. Utah, 2021*

3 (noting that, if the agency's decision is defective, "the reviewing court may supplement the record or remand the case to the agency for further proceedings") — *Channing, N.D. Okla., 2024*

3 (explaining that "[t]his process, at its core, is inconsistent with the standards for judicial review of agency action under the APA") — *Jarita Mesa Livestock Grazing Ass'n v. United States Forest Service, D.N.M., 2014*

2 ("The agency must make plain its course of inquiry, its analysis and its reasoning. After-the-fact rationalization by counsel in briefs or argument will not cure noncompliance by the agency with these principles." (citation omitted)) — *DEQ, Utah, 2016*

2 (explaining the reviewing court should set aside agency action if the agency "entirely failed to consider any important aspect of the problem") — *Perdue, D. Kan., 2019*

1 (discussing arbitrary and capricious standard) — *STATE OF KANSAS v. United States, 10th Cir., 2001*

↑

190. Defenders of Wildlife v. Ryan Zinke

856 F.3d 1248, 9th Cir., 2017
In 2020-24: cited by 11 decisions (appellate) · in all: 36 · 2021–2025: 17 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 36 of 36 citing opinions, filed 2017–2024: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 6 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

1 (so 4 construing 50 C.F.R. § 402.16(b) (renumbered § 402.16(a)(2)) (emphasis added)) — *Center for Biological Diversity v. United States Forest Service, D. Ariz., 2020*

1 (because resource agency's biological opinion was valid, action agency permissibly relied on it) — *Nrdc, 9th Cir., 2024*

1 (rejecting the claim that an agency's "failure to quantify" some of the effects of its decision made that decision "arbitrary and capricious") — *XY Planning Network, LLC v. SEC, 2d Cir., 2020*

↑

191. United States v. David Rothenberg

923 F.3d 1309, 11th Cir., 2019
In 2020-24: cited by 11 decisions (appellate) · in all: 25 · 2021–2025: 16 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 25 of 25 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Paroline (cosine 0.05, 6 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

1 (treating expert reports as permissible costs) — *United States v. Eduardo Alberto Niezen, 11th Cir., 2020*

1 (" Dunn must be read in the factual context of a reversal of a district court's ruling that a defendant was jointly and severally liable with all other defendants, including the abuser, for the entirety of the victim's * * * total losses[.]") — *United States v. Michael Monzel, D.C. Cir., 2019*

1 (rejecting an argument that the Government failed to satisfy its burden under § 2259 where the vic- tims did not submit "psychological or economic reports detailing their losses" but relied solely on a declaration written by their coun- sel describing their losses) — *United States v. Gavin Harold, 11th Cir., 2025*

1 (agreeing with Dillard that, once the government proves possession and outstanding losses, restitution must issue) — *United States v. Michael Monzel, D.C. Cir., 2019*

1 (declining to vacate awards of more than $10,000 per victim while also vacating $42,600 award) — *United States v. Felix Restitullo, 3rd Cir., 2019*

1 (holding, in a child-pornography-possession case, that a declaration written by the victim's attorney describing her losses was sufficient to meet the government's burden) — *Matherne, 5th Cir., 2026*

1 (concluding that the district court reasonably considered an attorney's cost estimates as a reliable basis for setting restitution when the attorney co-represented other victims in the case and thus had demonstrated experience) — *United States v. John Urfer, 8th Cir., 2020*

1 (holding that omnibus pretrial hearings where a defendant contested his bail amount qualified as a "critical stage" for the Sixth Amendment right to counsel) — *Torres, E.D. Tenn., 2023*

↑

192. United States v. Steven Wang

944 F.3d 1081, 9th Cir., 2019
In 2020-24: cited by 11 decisions (appellate) · in all: 17 · 2021–2025: 14 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 17 of 17 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: United States v. David Prien-Pinto (cosine 0.08, 5 both); Stinson (cosine 0.02, 5 both)
No parentheticals.

↑

193. John Boerschig v. Trans-Pecos Pipeline, L.L.C.

872 F.3d 701, 5th Cir., 2017
In 2020-24: cited by 10 decisions (appellate) · in all: 24 · 2021–2025: 21 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 24 of 24 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Association of American Railroads v. United States Depart... (cosine 0.10, 5 both); Carter (cosine 0.07, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (declining to abstain from review of eminent domain proceedings) — *Surender Malhan v. Secretary United States Depart, 3rd Cir., 2019*
- **1** (affirming denial of Boerschig's preliminary injunction against condemnation for a pipeline) — *John P. Boerschig v. Rio Grande Electric Cooperative, Inc., Tex., 2026*
- **1** (affirming dismissal of federal suit without deciding whether Anti-Injunction Act, 28 U.S.C. § 2283, bars federal court from enjoining administrative phase of condemnation proceeding) — *Lonestar Airport Holdings, LLC v. City of Austin, Texas, W.D. Tex., 2022*
- **1** (discussing how a request for injunctive relief generally becomes moot when the event sought to be enjoined takes place) — *Wilson, E.D. Tex., 2023*

↑

194. Louisiana Public Service Commission v. Federal Energy Regulatory Commission

522 F.3d 378, D.C. Cir., 2008
In 2020-24: cited by 9 decisions (appellate) · in all: 49 · 2021–2025: 10 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 50 of 50 citing opinions, filed 2008–2024: status now, not the year it changed)
Travels with: Morgan Stanley (cosine 0.05, 5 both); State Farm (cosine 0.02, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (ripeness inquiry requires evaluation of "hardship to the parties of withholding court consideration" and "fitness of the issues for judicial decision," including "whether the agency's action is sufficiently final" (internal quotation marks omitted)) — *Louisiana Public Service Commission v. Federal Energy Regulator Commission, D.C. Cir., 2009*
- **1** (case ripe because agency decision was not "conditional") — *Haaland, D.D.C., 2024*
- **1** ("We owe FERC great deference in reviewing its selection of a remedy....") — *Ferc, D.C. Cir., 2008*
- **1** (noting that ripeness has both constitutional and prudential roots, and then addressing the fitness and hardship factors without labeling those factors strictly "prudential") — *Friends of Animals v. U.S. Bureau of Land Management, D.D.C., 2021*

↑

195. Dennis A. Dickson v. Secretary of Defense

68 F.3d 1396, D.C. Cir., 1995
In 2020-24: cited by 9 decisions (appellate) · in all: 263 · 2021–2025: 65 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 266 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 6 both)
How later courts describe it (54 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** (stating agency did not adequately explain its decision when it merely listed facts and conclusions without connecting them in a rationale way) — *Iaccarino, D.C. Cir., 2018*
- **5** (holding that "in the interest of justice" is a judicially manageable standard) — *Inova Alexandria Hospital v. Donna E. Shalala, Secretary,department of Health and Human Services, 4th Cir., 2001*
- **4** ("failure] to provide anything approaching a reasoned explanation" rendered military correction board's decision "arbitrary and capricious") — *Pettiford, D.D.C., 2011*
- **4** ("agency's explanation must minimally contain 'a rational connection between the facts found and the choice made' " (internal quotations omitted)) — *Pettiford, D.D.C., 2011*
- **4** (reviewing decision of military review board where board "may excuse failure to file" if in the "interest of justice") — *Menkes v. Department of Homeland Security, D.C. Cir., 2007*
- **3** (remanding to Army Board for Correction of Military Records because "boilerplate language used by the Board ma[de] it impossible to discern the Board's path") — *Pettiford, D.D.C., 2011*
- **3** (noting that an agency's decision need not be "a model of analytic precision to survive a challenge") — *TSA, D.C. Cir., 2021*
- **3** (concluding that "[b]ecause the [agency] only listed the facts and stated its conclusions, but did not connect them in any rational way, the [agency's] decisions are arbitrary and capricious.") — *McMahon, D.D.C., 2022*

↑

196. Webster v. United States Department of Agriculture

685 F.3d 411, 4th Cir., 2012
In 2020-24: cited by 9 decisions (appellate) · in all: 77 · 2021–2025: 22 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 78 of 78 citing opinions)
Travels with: Ohio Valley Environmental Coalition v. Aracoma Coal Co. (cosine 0.08, 5 both); Department of Transportation v. Public Citizen (cosine 0.05, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (under NEPA an agency is not required to analyze environmental consequences or alternatives it has rejected in good faith as too remote, speculative, impractical or ineffective) — *Tidwell, D.S.C., 2013*

1 ("[A]n EIS should provide enough detail concerning the drawbacks and merits of the proposed action to allow for reasoned evaluation and decisionmaking.") — *National Audubon Society v. United States Army Corps of Engineers, E.D.N.C., 2019*

1 ("[T]he purpose of the proposed action sets the contours for its exploration of available alternatives.") — *South Carolina Coastal Conservation League v. United States Army Corps of Engineers, Charleston District, D.S.C., 2025*

1 ("[Although agencies must take into account effects that are reasonably foreseeable, they generally need not do so with effects that are merely speculative.") — *American Whitewater v. Thomas Tidwell, 4th Cir., 2014*

1 (finding that it was proper for the agency to eliminate alternatives from detailed study for reasons such as technical feasibility, costs and effectiveness in achieving the purposes of the action complied with NEPA) — *Defenders of Wildlife v. North Carolina Department of Transportation, E.D.N.C., 2013*

↑

197. American Whitewater v. Thomas Tidwell

770 F.3d 1108, 4th Cir., 2014
In 2020-24: cited by 8 decisions (appellate) · in all: 23 · 2021–2025: 16 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 24 of 24 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Ohio Valley Environmental Coalition v. Aracoma Coal Co. (cosine 0.17, 6 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

2 (affirming district court's refusal to consolidate because there was "no basis for disturbing its judgment about how best to manage its docket") — *Holler, S.D.W. Va, 2025*

↑

198. Paulsen v. Daniels

413 F.3d 999, 9th Cir., 2005
In 2020-24: cited by 8 decisions (appellate) · in all: 85 · 2021–2025: 16 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 94 of 94 citing opinions, filed 2005–2025: status now, not the year it changed)
Travels with: Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.03, 5 both); State Farm (cosine 0.02, 5 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

5 ("the effect of invalidating an agency rule is to reinstate the rule previously in force" (emphasis added)) — *Citizens for Clean Energy v. U.S. Department of the Interior, D. Mont., 2020*

2 ("[A]n agency could always claim that it would have adopted the same rule even if it had complied with the APA's procedures.") — *Texas Medical Association v. United States Department of Health and Human Services, E.D. Tex., 2022*

2 ("It is antithetical to the structure and purpose of the APA for an agency to implement a rule first, and then seek comment later.") — *Comm'r, Tax Ct., 2010*

1 ("The effect of the regulation was to deny [the petitioners] sentence reduction.") — *Habeas Corpus Resource Center v. United States Department of Justice, 9th Cir., 2016*

1 (the 1997 interim rule "is invalid" for failure to follow the notice-and-comment requirements of the ARA "as to those persons disqualified by it prior to the issuance of the final rule.") — *Muolo, W.D. Pa., 2009*

1 ("Jurisdiction attaches on the initial filing for habeas corpus relief, and it is not destroyed by a transfer of the petitioner and the accompanying custodial change.") — *Alatary, N.D.N.Y., 2023*

1 (when agency action is invalid, the remedy is not reinstatement of an earlier invalid agency action) — *Probert, D. Idaho, 2022*

1 (concluding that the harmless error rule "is more readily abused [in the administrative context] than in the civil or trial context," and harmless error analysis "must therefore focus on the process as well as the result") — *Aaron Lee v. Hector Rios, Jr., 6th Cir., 2010*

↑

199. State of Texas v. United States

40 F.4th 205, 5th Cir., 2022
In 2020-24: cited by 8 decisions (appellate) · in all: 38 · 2021–2025: 38 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 38 of 38 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 6 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("Apart from the constitutional or statutory basis on which [a] court invalidate[s] an agency action, vacatur neither compels nor restrains further agency decision-making.") — *Ulloa Lujan v. U.S. Department of Education, W.D. Tex., 2023*

2 (injunction "would naturally redress Texas's harm to a meaningful degree.") — *The Daily Wire, LLC v. United States Department of State, E.D. Tex., 2024*

2 (holding that Section 1252(f)(1) does not bar vacatur because "a vacatur does nothing but re-establish the status quo absent the unlawful agency action[,]" and "vacatur neither compels nor restrains further agency decision-making") — *Make The Road New York v. Kristi Noem, D.C. Cir., 2025*

1 ("[The] court 'must set aside any action premised on reasoning that fails to account for relevant factors or evinces a clear error of judgment.'" (quotation omitted)) — *Federation of Americans for Consumer Choice, Inc. v. United States Department of Labor, E.D. Tex., 2024*

- **1** ("There are meaningful differences between an injunction, which is a drastic and extraordinary remedy, and vacatur, which is a less drastic remedy.") — *Noem, 9th Cir., 2025*
- **1** (stating that the arbitrary-and-capricious standard "has serious bite") — *Federation of Americans for Consumer Choice, Inc. v. United States Department of Labor, E.D. Tex., 2024*
- **1** (challenging Department of Homeland Security memoranda that established specific agency-wide procedures and created immediate measurable effects on immigration enforcement) — *Biden, 5th Cir., 2023*
- **1** (drawing a connection between "an increase in the number of aliens" and increased "education costs") — *United States v. State of Texas, 5th Cir., 2025*

↑

200. Adames v. Sheahan

233 Ill. 2d 276, Ill., 2009
In 2020-24: cited by 27 decisions (appellate) · in all: 130 · 2021–2025: 35 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 131 citing opinions, filed 2013–2026: status now, not the year it changed)
Travels with: Coxe (cosine 0.10, 5 both)
How later courts describe it (22 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** (particular language included in one part of a congressional enactment and omitted in another raises the presumption that Congress intended the inclusion or exclusion) — *Morrissey, Ill. App. Ct., 2010*
- **3** ("Pursuant to the theory of respondeat superior, an employer can be liable for the torts of his employee when those torts are committed within the scope of the employment.") — *Cunningham, N.D. Ill., 2020*
- **2** ("This court reviews an order granting summary judgment de novo.") — *CMK DEVELOPMENT v. West Bend Mut. Ins. Co., Ill. App. Ct., 2009*
- **1** (agreeing with City of New York) — *Gustafson, M. v. Springfield, Inc., Aplt., Pa., 2025*
- **1** (same, and inserting a period after the third requirement) — *Covarrubias, N.D. Ill., 2022*
- **1** (discussing a defendant's vicarious liability for its employee's tortious actions) — *Vonzell Scott, Sr. v. Wendy's Properties, LLC, 7th Cir., 2025*
- **1** (respondeat superior claim rises or falls with the underlying tort claim against the employee and the same accrual date applies) — *Soto, N.D. Ill., 2026*
- **1** (juvenile's acts were "volitional" for purposes of PLCAA because he chose and determined to do them) — *Johnson v. Bass Pro Outdoor World, Kan., 2025*

↑

201. County of Maui v. Hawaii Wildlife Fund

590 U.S. 165, SCOTUS, 2020
In 2020-24: cited by 25 decisions (appellate) · in all: 81 · 2021–2025: 69 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 81 of 81 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("Rainwater, for example, can carry pollutants (say, as might otherwise collect on a roadway); it can pollute groundwater, and pollution collected by unchanneled rainwater runoff is not ordinarily considered point source pollution.") — *Courtland Company, Inc. v. Union Carbide Corporation (Courtland IV), S.D.W. Va, 2022*
- **2** (holding that the Clean Water Act's permit requirement extends to "the functional equivalent of a direct discharge") — *Courtland Company, Inc. v. Union Carbide Corporation (Courtland IV), S.D.W. Va, 2022*
- **1** (comparing such decisions to the development of common law) — *Edwards, D. Mont., 2021*
- **1** ("Whether pollutants that arrive at navigable waters after traveling through groundwater are 'from' a point source depends upon how similar to (or different from) the particular discharge is to a direct discharge.") — *Edwards, D. Mont., 2022*
- **1** ("No one disputes that pollutants originated at Maui's wastewater facility (a point source), and no one disputes that the pollutants ended up in the Pacific Ocean (a navigable water).") — *Hawaii Wildlife Fund v. County of Maui, D. Haw., 2021*
- **1** ("Where a pipe ends a few feet from navigable 9 waters and the pipe emits pollutants that travel those few feet through groundwater (or over the 10 beach) — *Bio Energy (Washington) LLC v. King County, W.D. Wash., 2024*
- **1** ("Decisions should not create serious risks either of undermining state regulation of groundwater or of creating loopholes that undermine the statute's basic federal regulatory objectives.") — *Stone v. High Mountain Mining Company, LLC, D. Colo., 2022*
- **1** (in interpreting a statute that an agency administers, courts consider the agency's views and prior application, even when Chevron is inapplicable) — *THOMPSON, D.N.J., 2020*

↑

202. Crawford Fitting Co. v. J. T. Gibbons, Inc.

482 U.S. 437, SCOTUS, 1987
In 2020-24: cited by 22 decisions (appellate) · in all: 1,432 · 2021–2025: 400 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 1,472 citing opinions, filed 2024–2026: status now, not the year it changed)

Travels with: Taniguchi (cosine 0.04, 5 both)
How later courts describe it (207 parentheticals; groups of similar wording, largest first; other courts' words)

- **108** (concluding that § 1920 defines the term "costs" as it is used in Rule 54(d)) — *Craftsmen Limousine, Inc. v. Ford Motor Co., 8th Cir., 2009*
- **11** (stating that absent clear intention otherwise, "a specific statute will not be controlled or nullified by a general one") — *Fox Insurance Company, Inc. v. Centers for Medicare and Medic, 9th Cir., 2013*
- **8** (noting that expert fees are only recoverable where there is "explicit statutory or contractual authorization") — *Heredia, D.N.H., 2024*
- **3** (repeals by implication are not favored) — *Resolution Trust Corporation v. Leroy Lightfoot, 7th Cir., 1991*
- **3** (district court erred in awarding expert witness fees in excess of those allowed by § 1821) — *Treaster, D. Kan., 2007*
- **3** ("a federal court may tax expert witness fees in excess of the [ ] limit set out in § 1821(b) only when the witness is court appointed.") — *Association of Flight Attendants, Afl-Cio v. Horizon Air Industries, Inc., 9th Cir., 1992*
- **3** (Section 1920 "embodies Congress' considered choice as to the kinds of expenses that a federal court may tax as costs against the losing party.") — *Grove, 9th Cir., 2010*
- **3** (rejecting claim that "a federal court is empowered to exceed the limitations explicitly set out in [28 U.S.C.] §§ 1920 and 1821 without plain evidence of congressional intent to supersede those sections") — *U.S. EEOC v. W & O, Inc., 11th Cir., 2000*

↑

203. Director, Office of Workers' Compensation Programs v. Newport News Shipbuilding & Dry Dock Co.

514 U.S. 122, SCOTUS, 1995
In 2020-24: cited by 15 decisions (appellate) · in all: 165 · 2021–2025: 28 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 191 citing opinions, filed 2002–2026: status now, not the year it changed)
Travels with: Rodriguez (cosine 0.05, 5 both)
How later courts describe it (43 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** ("Every statute proposes, not only to achieve certain ends, but also to achieve them by particular means–and there is often a considerable legislative battle over what those means ought to be.") — *CITICASTERS v. McCASKILL, 8th Cir., 1996*
- **4** ("[T]he United States Code displays throughout that when an agency in its governmental capacity is meant to have standing, Congress says so.")
- **3** ("[T]he qualification 'within the meaning of a relevant statute' is not an addition to what 'adversely affected or aggrieved' alone conveys; but is rather an acknowledgment of the fact that what constitutes adverse effect or aggrievement varies from statute to statute.") — *Stockman v. Federal Election Commission, 5th Cir., 1998*
- **3** (holding that "adversely affected or aggrieved" is a term of art used "to designate those who have standing" to challenge an agency decision) — *Ermine Hayes v. Director, OWCP, United States Department of Labor, 11th Cir., 2024*
- **2** (no Article III impediment to the Director's participation) — *Ingalls Ship, SCOTUS, 1997*
- **2** (noting Director's "duty of uniform administration and enforcement ") — *Ingalls Ship, SCOTUS, 1997*
- **2** (director of agency was not herself aggrieved, and therefore had no standing to pursue appeal in federal courts on behalf of claimant who had never evidenced desire to join in the appeal) — *Housing Auth. v. PA CIVIL SERVICE COM'N, Pa., 1999*
- **2** ("[T]he [LHWCA] does not by its terms ... grant [the Director] authority to prosecute appeals to the Board") — *Ingalls Ship, SCOTUS, 1997*

↑

204. Pablo Mejia-Castanon v. Attorney General United States

931 F.3d 224, 3rd Cir., 2019
In 2020-24: cited by 13 decisions (appellate) · in all: 16 · 2021–2025: 10 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 16 of 16 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.02, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (deferring to a nonprecedential BIA decision that relied on a precedential BIA decision) — *Baljinder Singh v. Attorney General United States, 3rd Cir., 2021*
- **1** (holding that the "stop-time rule," under which the physical presence period ends when the DHS serves a notice to appear, does not apply to the period during which an applicant must exhibit good moral character) — *Hugo Aguilar v. Attorney General United States, 3rd Cir., 2024*

↑

205. Neustar, Inc. v. Federal Communications Commission

857 F.3d 886, D.C. Cir., 2017
In 2020-24: cited by 12 decisions (appellate) · in all: 27 · 2021–2025: 15 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 27 of 27 citing opinions, filed 2017–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.02, 5 both)

How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("Rulemaking scenarios generally involve broad applications of more general princi-pies rather than ease-specific individual determinations.") — *Safari Club International v. Ryan Zinke, D.C. Cir., 2017*
- **2** ("The [government's] brief nominally references Chevron's deferential standard in its standard of review but did not invoke this standard with respect to rulemaking. Consequently, it has forfeited any claims to Chevron deference.") — *O.A., D.D.C., 2019*
- **1** (holding Chevron deference "forfeited" where not claimed on appeal) — *New York v. United States Dep't of Justice, 2d Cir., 2020*
- **1** (holding agency forfeited Chevron deference where it only "nominally reference[d]" the standard but did not invoke it) — *Duron, S.D. Tex., 2020*
- **1** (stating that while "it may be proper to enter an adjudicatory order without retroactive effect," "adjudication is by its nature retroactive") — *Safari Club International v. Ryan Zinke, D.C. Cir., 2017*

↑

206. Old Dominion Elec. Coop. v. Fed. Energy Regulatory Comm'n

892 F.3d 1223, D.C. Cir., 2018
In 2020-24: cited by 12 decisions (appellate) · in all: 24 · 2021–2025: 17 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 24 of 24 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.13, 5 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ((citing Dellums, 863 F.2d at 978 n.11)) — *Ali Hamza Ahmad al Bahlul v. United States, D.C. Cir., 2023*
- **1** (finding a website statement regarding possible retroactive charges insufficient because it was not filed with FERC) — *FERC, D.C. Cir., 2021*
- **1** (noting that Town of Chester alone did not require overruling circuit precedent as to other types of intervenor) — *Institutional Shareholder Services, Inc. v. SEC, D.C. Cir., 2025*
- **1** (concluding that a tariff provision did not provide sufficient notice because it failed to forewarn that "some specific issue may cause a later adjustment to the rate being collected at the time of service") — *FERC, D.C. Cir., 2021*
- **1** (holding that "Town of Chester . . . does not cast doubt upon . . . our settled precedent that all intervenors must demonstrate Article III standing") — *Wheeler, D.D.C., 2019*
- **1** (holding that "the prospective intervenor must establish injury-in-fact to a legally protected interest," and denying motion to intervene because movant "ha[d] no legally cognizable interest") — *Denney, W.D. Mo., 2018*

↑

207. Crystallex Int'l Corp. v. Bolivarian Republic De Venezuela (In Re De Venezuela)

932 F.3d 126, 3rd Cir., 2019
In 2020-24: cited by 12 decisions (appellate) · in all: 31 · 2021–2025: 21 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 31 of 31 citing opinions, filed 2019–2025: status now, not the year it changed)
Travels with: First National City Bank v. Banco Para El Comercio Exteri... (cosine 0.11, 5 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("[I]f the relationship between Venezuela and PDVSA cannot satisfy the Supreme Court's extensive-control requirement, we know nothing that can.") — *Helmerich & Payne International Drilling Co. v. Petroleos De Venezuela, S.A., D.C. Cir., 2025*
- **2** (affirming the district court's grant of a writ of attachment of shares owned by PDVSA) — *Red Tree Investments, LLC v. Petroleos De Venezuela, S.A., S.D.N.Y., 2020*
- **1** ("Crystallex must also show that the particular property at issue in the attachment action—the PDVH stock—is not immune from attachment under the Sovereign Immunities Act.") — *Ricardo Devengoechea v. Bolivarian Republic of Venezuela, 3rd Cir., 2024*
- **1** ("[I]f the instrumentality were directly liable for the award, there would be no need to invoke Bancec at all.") — *Conocophillips Petrozuata BV v. Bolivarian Republic of Venezuela, 3rd Cir., 2024*
- **1** (articulating preponderance-of-the-evidence standard for jurisdictional inquiries involving the presumption of separateness) — *Uab Skyroad Leasing v. Ojsc Tajik Air, D.D.C., 2021*
- **1** (affirming denial of PDVSA's motion to dismiss for lack of subject matter jurisdiction) — *Petroleos de Venezuela, S.A. v. PDV Holding, Inc., Del. Ch., 2023*

↑

208. Ford Motor Credit Co. v. Milhollin

444 U.S. 555, SCOTUS, 1980
In 2020-24: cited by 11 decisions (appellate) · in all: 826 · 2021–2025: 38 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 520 of 895 citing opinions)
Role changed 2000-04: likely successor John A. Begala v. Pnc Bank, Ohio, National Association, 163 F.3d 948 (1999) (28% of the 43 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Travels with: Kisor (cosine 0.03, 5 both)
How later courts describe it (130 parentheticals; groups of similar wording, largest first; other courts' words)

- **62** (holding that an agency's construction of its own regulations should be dispositive "[u]nless demonstrably irrational") — *Bassiri*

v. Xerox Corp., 9th Cir., 2006

9 (stating that TILA's purpose is to assure "meaningful disclosure of credit terms to consumers") — *McAnaney, E.D.N.Y, 2005*

7 (explaining that the concept describes a balance between complete disclosure and informational overload) — *London, S.D. Fla., 2001*

4 (noting that "the interpretation given [a] statute by the officers or agency charged with its administration is due considerable respect by the courts") — *Lozada, W.D. Mich., 2000*

3 ("Congress has specifically designated the Federal Reserve Board and staff as the primary source for interpretation and application of truth in lending law") — *In Re Escher, Bankr. E.D. Pa., 2007*

3 (distinguishing the deference owed to Board and official staff interpretations from that owed to unofficial interpretations) — *McCoy, 9th Cir., 2009*

3 (noting that because TILA is a complicated act, such deference is necessary) — *Roberts v. Fleet Bank, 3rd Cir., 2003*

3 (stating that when the question presented "is not governed by clear expression in the... regulation... it is appropriate to defer to the Federal Reserve Board and staff in determining what resolution of that issue" is appropriate) — *McCoy, SCOTUS, 2011*

↑

209. Corrosion Proof Fittings v. The Environmental Protection Agency and William K. Reilly, Administrator

947 F.2d 1201, 5th Cir., 1991
In 2020-24: cited by 11 decisions (appellate) · in all: 37 · 2021–2025: 12 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 39 of 39 citing opinions, filed 1992–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 9 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("Congress put the substantial evidence test in the statute because it wanted the courts to scrutinize the Commission's actions more closely than an 'arbitrary and capricious' standard would allow." (internal quotation marks omitted)) — *2 for the Second Circuit, 2d Cir., 2021*

1 ("The EPA's failure to consider the regulatory alternatives, however, cannot be substantiated by conclusory statements.") — *Biden, 5th Cir., 2021*

↑

210. Barbara Combs v. Commissioner of Social Security

459 F.3d 640, 6th Cir., 2006
In 2020-24: cited by 10 decisions (appellate) · in all: 544 · 2021–2025: 422 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 545 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: Landgraf (cosine 0.04, 5 both)
How later courts describe it (10 parentheticals; groups of similar wording, largest first; other courts' words)

3 (stating that "this court has consistently stated that the Secretary is not bound by the treating physician's opinions, and that such opinions receive great weight only if they are supported by sufficient clinical findings and are consistent with the evidence") — *Brown, S.D. Ohio, 2021*

2 ("The [Social Security] Act does not generally give the SSA the power to promulgate retroactive regulations.") — *Hoit, N.D. Ill., 2022*

1 ("The SSA may freely change rules that purely govern the conduct of adjudication, without fear of retroactive effect, if those changes apply only to pending cases. Naturally, ifthe SSA had attempted to retry cases that had been adjudicated previously, that might be a different story.") — *Garcia, S.D.N.Y., 2022*

1 ("There is substantial evidence in the record as a whole to support the ALJ's determination that Combs is not disabled") — *Flowers, S.D. Ohio, 2025*

1 ("The substantive requirements for disability eligibility have not changed, only the way in which the agency goes about determining whether they are present.") — *superstition/benchmark, Ariz., 2025*

1 ("In the fourth step, the SSA examines claimants' 'residual functional capacity,' defined as 'the most [the claimant] can still do despite [her] limitations.'") — *Donald Thomas, Jr. v. Comm'r of Soc. Sec., 6th Cir., 2022*

1 (explaining how these factors "weigh against finding a retroactive effect" for Listings applied to pending claims) — *Angela Cox v. Kilolo Kijakazi, D.C. Cir., 2023*

↑

211. Erie Brush & Manufacturing Corp. v. National Labor Relations Board

700 F.3d 17, D.C. Cir., 2012
In 2020-24: cited by 10 decisions (appellate) · in all: 46 · 2021–2025: 24 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 47 of 47 citing opinions, filed 2013–2026: status now, not the year it changed)
Travels with: Securities & Exchange Commission v. Chenery Corp. (cosine 0.04, 5 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

1 (applying the same burden at the initial disability determination) — *(SS) Thomas v. Commissioner of Social Security, E.D. Cal., 2024*

1 ("Although a public entity must make 'reasonable 24 accommodations,' it does not have to provide a disabled individual with every 25 accommodation [s]he requests or the accommodation of h[er] choice.") — *Tucker, W.D. Wash., 2020*

1 (detective was entitled to rely on doctor's medical opinion, even 24 if it later turned out to be wrong) — *Moriarty, S.D. Cal., 2020*

↑

212. Florida Health Sciences Center, Inc. v. Secretary of Health & Human Services

830 F.3d 515, D.C. Cir., 2016

In 2020-24: cited by 10 decisions (appellate) · in all: 42 · 2021–2025: 16 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 42 of 42 citing opinions, filed 2016–2026: status now, not the year it changed)

Role changed 2020-24: likely successor DCH Regional Medical Center v. Alex M. Azar II, 925 F.3d 503 (2019) (50% of the 10 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: DCH Regional Medical Center v. Alex M. Azar II (cosine 0.17, 5 both)

How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

2 (explaining the difference between a preclusion statute's effect on the challenge to general rules and the challenge to a specific determination) — *Azar, D.C. Cir., 2019*

2 (stating that "[a] violation is 'patent' if it is '[o]bvious' or 'apparent'") — *Azar, D.D.C., 2021*

2 (holding that plaintiff could not challenge agency action on the ground that it was ultra vires because disagreement over appropriateness of action was insufficient to demonstrate an "obvious" or "patent violation of agency authority") — *Eggleston, D.D.C., 2016*

1 ("methodology for calculating DSH payments") — *DCH Regional Medical Center v. Alex M. Azar II, D.C. Cir., 2019*

1 (not allowing judicial review where the hospital "is simply trying to undo the Secretary's estimate of the hospital's uncompensated care by recasting its challenge to the Secretary's choice of data as an attack on the general rules leading to her estimate") — *Becerra, N.D. Ind., 2023*

1 ("[U]nder the Secretaras flawed methodology, [the agency's] Factor 3 calculation for DCH disregarded seven (7) months of relevant data associated with Northport's [provider number], resulting in a substantial reduction in DCH's reimbursement.") — *Burwell, D.D.C., 2017*

1 ("Tampa General seeks to challenge the Secretary's refusal to use the most recent available data to estimate the hospital's 2014 DSH payment.") — *Burwell, D.D.C., 2017*

1 (prohibiting APA challenge to set aside calculation of "estimate" that is itself unreviewable on the ground that the calculation used obsolete data) — *Becerra, D.D.C., 2025*

↑

213. United States v. Jesus Villalobos

879 F.3d 169, 5th Cir., 2018

In 2020-24: cited by 10 decisions (appellate) · in all: 20 · 2021–2025: 18 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 20 of 20 citing opinions, filed 2019–2026: status now, not the year it changed)

Travels with: Paroline (cosine 0.05, 5 both)

How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

2 (vacating a restitution order when the PSR "recorded that the victims' losses totaled $0.00[,] but [the district court] imposed $10,000 in restitution") — *Matherne, 5th Cir., 2026*

1 (reiterating this holding in dicta) — *Hernandez, 5th Cir., 2022*

1 (listing another factor that applies in restitution cases) — *Lopez, 5th Cir., 2026*

1 (the district court's restitution order "need not be exact") — *Rubalcava, 5th Cir., 2025*

↑

214. District Hospital Partners v. Sylvia Mathews Burwell

786 F.3d 46, D.C. Cir., 2015

In 2020-24: cited by 9 decisions (appellate) · in all: 141 · 2021–2025: 51 · weight in the sub-cluster 2

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 142 citing opinions, filed 2018–2026: status now, not the year it changed)

Travels with: State Farm (cosine 0.03, 5 both)

How later courts describe it (44 parentheticals; groups of similar wording, largest first; other courts' words)

6 (collecting cases and noting the court "ha[s] often declined to affirm an agency decision if there are unexplained inconsistencies in the final rule") — *Firearms Regulatory Accountability Coalition, Inc. v. Merrick B. Garland, 8th Cir., 2024*

4 (holding that an agency's reliance on an imperfect dataset "alone does not amount to arbitrary decision-making") — *Wheeler, D.D.C., 2020*

3 ("These requirements underscore that an agency cannot ignore new and better data.") — *Sebelius, D.D.C., 2016*

2 ("To be clear, agencies do not have free rein to use inaccurate data.") — *Sebelius, D.D.C., 2016*

2 ("To ensure that we review only those documents that were before the agency, we do not allow parties to supplement the record unless they can demonstrate unusu-al circumstances justifying a departure from this general rule") — *American Wild Horse Preservation Campaign v. Sonny Perdue, D.C. Cir., 2017*

2 (finding supplementation unnecessary because source data did not constitute critical background information) — *Level the Playing Field v. Federal Election Commission, D.C. Cir., 2019*

2 ("Meeting this exception requires a 'strong showing of [agency] bad faith'. . ." (citation omitted)) — *Ross, D.D.C., 2018*

2 (rejecting APA claims to the 2005 threshold and concluding that 2006 threshold was "plainly reasonable") — *Azar, D.D.C., 2020*

↑

215. Susquehanna International Group, LLP v. Securities & Exchange Commission

866 F.3d 442, D.C. Cir., 2017
In 2020-24: cited by 9 decisions (appellate) · in all: 17 · 2021–2025: 10 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 17 of 17 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[T]he SEC may be able to approve the Plan once again, after conducting a proper analysis on remand.") — *Mozilla Corporation v. FCC, D.C. Cir., 2019*

1 (considering agency reliance on a self-regulatory organization) — *In re: NTE Connecticut, LLC, D.C. Cir., 2022*

1 (faulting the SEC for taking a clearing agency's "word for it" in determining whether a dividend level was reasonable) — *Alliance for Fair Board Recruitment v. SEC, 5th Cir., 2023*

1 (holding assertions of "independent outside financial experts" insufficient to justify SEC approval of an exchange rule) — *Alliance for Fair Board Recruitment v. SEC, 5th Cir., 2024*

1 (observing that a "lack of reasoned decisionmaking" is enough to make an agency decision arbitrary and capricious) — *Info Labs Inc. v. United States Citizenship and Immigration Services, D.D.C., 2020*

↑

216. In Re Comiskey

554 F.3d 967, Fed. Cir., 2009
In 2020-24: cited by 8 decisions (appellate) · in all: 54 · 2021–2025: 10 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 62 of 62 citing opinions, filed 2009–2025: status now, not the year it changed)
Travels with: Securities & Exchange Commission v. Chenery Corp. (cosine 0.04, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

5 ("Only if the requirements of § 101 are satisfied is the inventor allowed to pass through to the other requirements for patentability, such as novelty under § 102. and ... non-obviousness under § 103." (citations and internal quotation marks omitted)) — *Intellectual Ventures I LLC v. Symantec Corp., Fed. Cir., 2016*

2 ("[M]ental processes—or pro- cesses of human thinking—standing alone are not patent- able even if they have practical application.") — *In Re KILLIAN, Fed. Cir., 2022*

2 (holding that lack of statutory subject matter, a legal question, is a permissible alternative ground for affirmance of the Board) — *In Re Aoyama, Fed. Cir., 2011*

1 ("It is well-established that" invalidity under Section 101 "is a question of law." (quoting AT & T Corp. v. Excel Commc'ns, Inc., 172 F.3d 1352, 1355 (Fed. Cir. 1999))) — *Return Mail, Inc. v. United States, Fed. Cl., 2022*

1 (recognizing that patentable subject matter under § 101 is "extremely broad") — *Cls Bank International v. Alice Corporation Pty. Ltd., D.D.C., 2011*

1 (holding that Chenery permits res- olution of legal issue which is not "'a determination of pol- icy or judgment which the agency alone is authorized to make'") — *Roku, Inc. v. Universal Electronics, Inc., Fed. Cir., 2024*

↑

217. Center for Biological Diversity v. United States Bureau of Land Management

698 F.3d 1101, 9th Cir., 2012
In 2020-24: cited by 8 decisions (appellate) · in all: 66 · 2021–2025: 28 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 66 of 66 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 5 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

2 (following and adopting this very principle) — *DOI, 5th Cir., 2021*

2 ("We cannot gloss over the absence of a cogent explanation by the agency by relying on the post hoc rationalizations offered by defendants in their appellate briefs.") — *Alliance for the Wild Rockies v. Christopher Savage, 9th Cir., 2018*

2 (observing 8 that, pursuant to 50 C.F.R. § 402.16(a) and (c) (renumbered § 402.16(a)(1) and (3)), "the 9 action agency must . . . reinitiate consultation") — *Center for Biological Diversity v. United States Forest Service, D. Ariz., 2020*

1 ("FWS requested that Ruby file the final Conservation Action Plan with FERC so it could 'be included as part of the final biological assessment.' This approach, it appears, would have rendered the Conservation Action Plan part of the proposed action, and so enforceable under the ESA.") — *Center for Biological Diversity v. U.S. Fish & Wildlife Service, 9th Cir., 2015*

1 ("Ruby Pipeline . . . filed a formal application with the Federal Energy Regulatory Commission (FERC) seeking a Certificate of Public Convenience and Necessity ("Certificate"), see 15 U.S.C. § 717f(c)(1)(A), authorizing the Project") — *Bolling, D. Idaho, 2021*

1 ("[I]f a non-federal party promises to take action mitigating the impact of a federal action on listed species but fails to do so, the contemplated protections of listed species may never materialize.") — *City Of Austin v. Kinder Morgan Texas Pipeline, LLC, W.D. Tex., 2020*

1 ("When reinitiation of consultation is required, the original biological opinion loses its validity, as does its accompanying incidental take statement, which then no longer shields the action agency from penalties for takings.") — *Friends of the Clearwater v. United States Forest Service, D. Idaho, 2021*

1 (generally noting that the use of surrogates is appropriate in considering fish populations) — *Save Our Cabinets v. United States Fish & Wildlife Service, D. Mont., 2017*

↑

218. District of Columbia v. Beretta U.S.A. Corp.

2008 D.C. App. LEXIS 4, D.C., 2008
In 2020-24: cited by 8 decisions (appellate) · in all: 51 · 2021–2025: 9 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 53 of 53 citing opinions, filed 2009–2025: status now, not the year it changed)
Travels with: Coxe (cosine 0.18, 5 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

4 ("Thus the PLCAA ... is reasonably viewed as an 'adjustment of] the burdens and benefits of economic life' by Congress, one it deemed necessary in exercising its power to regulate interstate commerce." (alteration in original) — *Ileto, 9th Cir., 2009*

3 (rejecting a Takings Clause challenge to the PLCAA) — *Ileto, 9th Cir., 2009*

1 (Congress did not deprive injured persons of all potential remedies) — *Gustafson, M. v. Springfield 282 A.3d 739, Pa. Super. Ct., 2022*

1 ("'When a new law makes clear that it is retroactive, an appellate court must apply that law in reviewing judgments still on appeal that were rendered before the law was enacted and must alter the outcome accordingly.'") — *Foulger-Pratt Residential Contracting, LLC v. Madrigal Condominiums, LLC, D.D.C., 2011*

1 ("[O]ther courts construing [the section's] language, have referred to subsection (5)(A)(iii) as the 'predicate exception' to the PLCAA because, to take effect, it requires that the manufacturer or seller have committed an underlying (or predicate) statutory violation.") — *Estados Unidos Mexicanos v. Smith & Wesson Brands, Inc., D. Mass., 2022*

1 ("[C]ourts should avoid constructions at variance with the policy of the legislation as a whole.") — *Kellum, D.C., 2011*

1 ("The 'Takings Clause prevents the Legislature from depriving private persons of vested property rights' without just compensation." (emphasis in original) — *Haller, E.D.N.Y, 2022*

1 ("[I]ndividual words of a statute are to be read in the light of the statute taken as a wholef.J") — *Kellum, D.C., 2011*

↑

219. Ctr. for Biological Diversity v. Ryan Zinke

900 F.3d 1053, 9th Cir., 2018
In 2020-24: cited by 8 decisions (appellate) · in all: 33 · 2021–2025: 22 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 33 of 33 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.02, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("FWS cannot rely on its briefing in this case to explain why the 2014 Finding relied on the Leary study rather than the DeHaan study. The explanation must be evidenced from the listing decision itself.") — *Center for Bio. Diversity v. Deb Haaland, 9th Cir., 2021*

1 (plaintiff showed that agency failed to acknowledge scientific data that directly "contradicted" the agency's scientific conclusion) — *Nrdc, 9th Cir., 2024*

1 ("Agency decisions deserve the highest deference when the agency is making predictions, within its area of special expertise." (cleaned up)) — *Cpuc, 9th Cir., 2022*

1 (remanding "with directions to remand to" the relevant agency "to reassess" inadequately reasoned findings "in light of [the] opinion") — *Nmfs, 9th Cir., 2019*

1 (holding that reliance on recent population data and new scientific opinions about local water temperature "provide[d] a sufficient 'reasoned explanation' for FWS's change in position" regarding available Arctic Grayling habitat in the Centennial Valley) — *Haaland, D. Alaska, 2019*

↑

220. Lands Council v. McNair

629 F.3d 1070, 9th Cir., 2010
In 2020-24: cited by 14 decisions (appellate) · in all: 94 · 2021–2025: 22 · weight in the sub-cluster 2
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 99 of 99 citing opinions, filed 2011–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 8 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("[A] claimant need not raise an issue using precise legal formulations, as long as enough clarity is provided that the decision maker understands the issue raised.") — *Nrdc, 9th Cir., 2013*

3 ("We are not to 'act as a panel of scientists, instructing the agency, choosing among scientific studies, and ordering the agency to explain every possible scientific uncertainty.' ") — *US Citrus Sci. Council v. U.S. Dep't of Agric., E.D. Cal., 2018*

2 ("Review under the arbitrary and capricious standard is narrow and we do not substitute our judgment for that of the agency.") — *Turtle Island Restoration Network v. United States Department of Commerce, 9th Cir., 2017*

2 (holding that issue is exhausted if agency is provided sufficient information to give it a chance to bring its expertise to bear to resolve the claim) — *Pacific Coast Federation of Fishermen's Ass'n v. United States Department of the Interior, 9th Cir., 2016*

1 (upholding a forest plan under the National Forest Management Act) — *Sierra Club v. Tahoe Regional Planning Agency, 9th Cir., 2016*

1 ("A party forfeits arguments that are not raised during the administrative process.") — *Becerra, N.D. Cal., 2017*

1 ("Viability analysis that uses all currently available scientific data is considered sound.") — *Krueger, D. Mont., 2013*

1 ("[A]n agency must have discretion to rely on the reasonable opinions of its own qualified experts.") — *ForestKeeper, E.D. Cal., 2017*

↑

221. CTS Corp. v. Environmental Protection Agency

759 F.3d 52, D.C. Cir., 2014
In 2020-24: cited by 19 decisions (appellate) · in all: 156 · 2021–2025: 60 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 162 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 7 both)
How later courts describe it (48 parentheticals; groups of similar wording, largest first; other courts' words)

16 ("hiding an argument" in a footnote "and then articulating it in only a conclusory fashion" is "forfeiture") — *DOS, D.C. Cir., 2023*

10 (observing that in administrative law cases "a reviewing court should have before it neither more nor less information than did the agency when it made its decision") — *Sebelius, D.D.C., 2021*

4 (finding an argument made in a conclusory fashion forfeited) — *Mwani, D.D.C., 2021*

2 ("as a matter of constitutional duty," court "must assure itself of its jurisdiction to act in every case") — *PETA, D.C. Cir., 2015*

2 ("[R]esort to extra-record evidence may, for example, help the court to determine whether the administrative record is deficient in the first place.") — *Center for Biological Diversity v. U.S. Office of Surface Mining Reclamation and Enforcement, D.D.C., 2025*

2 (refusing to consider extra-record evidence absent a showing of "gross procedural deficiencies") — *TREA, D.C. Cir., 2017*

2 (explaining that we need not address cursory arguments) — *FERC, D.C. Cir., 2017*

2 (recognizing that the "court, as a matter of constitutional duty, must assure itself of its jurisdiction to act in every case," including where a corporation challenged an EPA listing action that harmed the firm's reputation and increased its risk of liability) — *National Ass'n of Home Builders v. Environmental Protection Agency, D.C. Cir., 2015*

↑

222. Stephen West v. Charter Communications, Inc.

920 F.3d 499, 7th Cir., 2019
In 2020-24: cited by 15 decisions (appellate) · in all: 23 · 2021–2025: 7 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 23 of 23 citing opinions, filed 2019–2025: status now, not the year it changed)
Travels with: Whitman (cosine 0.02, 7 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("permitting multiple, piecemeal appeals from a single action in the district court will have a debilitating effect on the efficient administration of justice.") — *United States v. Kent Morgan, 7th Cir., 2019*

1 (where the plaintiff preserved the right to reinstate claims after dismissal, there was no final judgment, but the plaintiff could have gotten a final judgment on certain claims if he had "asked the court to enter a final judgment . . . pursuant to Rule 54(b)") — *Lusher Site Remediation Group v. Sturgis Iron & Metal Co Inc, N.D. Ind., 2023*

1 (a voluntary dismissal of all claims against one -6- defendant conditioned upon the plaintiff's success on appeal of his claims against another defendant did not create a final judgment) — *City of Burnsville v. Koppers, Inc., 8th Cir., 2023*

1 ("A final judgment is one that ends the litigation on the merits and leaves nothing for the district court to do but execute the judgment.") — *Kolcraft Enterprises, Inc. v. Artsana USA, Inc., N.D. Ill., 2020*

↑

223. United States v. Charles Sands

948 F.3d 709, 6th Cir., 2020
In 2020-24: cited by 15 decisions (appellate) · in all: 21 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 21 of 21 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: United States v. Jeffery Havis (cosine 0.03, 7 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("If a weapon has multiple serial numbers, only one of them needs to be altered or obliterated for the enhancement to apply.") — *United States v. St. Hilaire, 2d Cir., 2020*

1 (explaining that we apply the Guidelines' plain meaning unless the language is ambiguous) — *United States v. David Jason Parkey, 6th Cir., 2025*

1 (noting that the firearm serial number enhancement is strict liability and does not require showing that defendant knew or had reason to know that the serial number was altered or obliterated) — *United States v. Kane Malone, 6th Cir., 2020*

1 (recognizing that not all defacements constitute alterations or obliterations) — *United States v. Charles Sands, 6th Cir., 2021*

1 (explaining that the naked eye test "is consistent with nearly every other federal appellate decision on the issue") — *United States v. St. Hilaire, 2d Cir., 2020*

↑

224. Oglala Sioux Tribe v. U.S. Nuclear Regulatory Comm'n

896 F.3d 520, D.C. Cir., 2018
In 2020-24: cited by 11 decisions (appellate) · in all: 32 · 2021–2025: 18 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 32 of 32 citing opinions, filed 2007–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 7 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("Because the [agency] order appealed here does not rely upon this reasoning, ... neither can we.") — *Braeburn Inc. v. U.S. Food & Drug Admin., D.C. Cir., 2019*

1 ('[W]e note that counsel delayed filing a motion to set aside the default until almost four months after a notice of appearance was filed. We are convinced that the district court did not abuse its discretion [in denying the Rule 60(b) motion].") — *Ryan, S.D. Fla., 2020*

1 ("The seriousness of the NEPA deficiency is particularly clear here because the point of NEPA is to require an adequate EIS before a project goes forward . . . .") — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2020*

1 ("We have never turned merely to a remand remedy when an agency refused to adhere to a statutory command in such an across-the-board fashion.") — *CENTER FOR FOOD SAFETY V. MICHAEL REGAN, 9th Cir., 2022*

1 (remanding without vacatur despite a "significant deficiency" in the agency's NEPA compliance) — *Seia, 9th Cir., 2023*

1 (declining to remand without vacatur be- cause of the "seriousness" of the action's "deficiency") — *FDA, 5th Cir., 2023*

1 (declining to vacate operating license when licensee had reasonably relied on agency ruling and faced grave economic harm if license were vacated) — *FERC, D.C. Cir., 2021*

↑

225. Butte County, Cal. v. Hogen

613 F.3d 190, D.C. Cir., 2010
In 2020-24: cited by 9 decisions (appellate) · in all: 114 · 2021–2025: 37 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 118 citing opinions, filed 2014–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 7 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

6 (noting that an agency cannot "reufus[e] to consider evidence bearing on the issue before it") — *Cheng Shin Rubber Ind. Co. v. United States, Ct. Intl. Trade, 2023*

3 ("[T]he agency must explain why it decided to act as it did.") — *White, D.D.C., 2019*

2 (describing "brief statement" requirement of § 555(e) as "minimal") — *Rakhimov, D.D.C., 2020*

2 ("Yet the entirety of Interior's response to Butte County was this: 'We are not inclined to revisit this decision now because the Office of the Solicitor reviewed this matter in 2003, and concurred in the NIGC's determination of March 14, 2003.' ") — *Remmie, D.D.C., 2012*

2 (rejecting agency finding under APA substantial evidence standard where agency failed to "articulate a satisfactory explanation" and agency "ignore[d] evidence contradicting its position") — *Foster, D.D.C., 2015*

↑

226. Advanced Energy Management Alliance v. Federal Energy Regulatory Commission

860 F.3d 656, D.C. Cir., 2017
In 2020-24: cited by 9 decisions (appellate) · in all: 17 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 17 of 17 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 7 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 (Nos. 16- 1234, 16-1235, 16-1236, and 16-1239) — *FERC, D.C. Cir., 2023*

1 ("Resource owners offer to sell a set amount of capacity at a specific rate.") — *FERC, D.C. Cir., 2023*

↑

227. Hamdan v. Rumsfeld

548 U.S. 557, SCOTUS, 2006
In 2020-24: cited by 30 decisions (appellate) · in all: 326 · 2021–2025: 56 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: red? (read the newest 100 of 395 citing opinions, filed 2018–2026: status now, not the year it changed)
2023 (D.C. Cir.): strong "overruled" — *Ali Hamza Ahmad al Bahlul v. United States*: 2006. See Al Bahlul v. United States (Bahlul I), No. 11-1324,

2013 WL 297726 , at (D.C. Cir. Jan. 25, 2013) (per curiam). Sitting en banc, this court overruled Hamdan, and thus Bahlul I, but reinstated only Bahlul's conspiracy conviction. Bahlul II, 767 F.3d at 5, 11 . We determined that the…

2023 (D.C. Cir.): strong "overruled" — *Ali Hamza Ahmad al Bahlul v. United States*: 2006. See Al Bahlul v. United States (Bahlul I), No. 11-1324, 2013 WL 297726 , at (D.C. Cir. Jan. 25, 2013) (per curiam). Sitting en banc, this court overruled Hamdan, and thus Bahlul I, but reinstated only Bahlul's conspiracy conviction. Bahlul II, 767 F.3d at 5, 11 . We determined that the…

2019 (D.C. Cir.): weak "declined to extend" — *Al-Baluchi*: abstention also applies to military commissions. The court distinguished Mr. Al-Nashiri's petition from the petition in Hamdan v. Rumsfeld, 548 U.S. 557, 587, [126 S.Ct. 2749], 165 L.Ed.2d 723 (2006), in which the Supreme Court declined to extend Councilman abstention to a Guantanamo detainee.

Travels with: Landgraf (cosine 0.01, 6 both)

How later courts describe it (102 parentheticals; groups of similar wording, largest first; other courts' words)

- **21** (holding that "a negative inference may be drawn from the exclusion of language from one statutory provision that is included in other provisions of the same statute") — *United States v. Jesse Babauta, 9th Cir., 2023*
- **7** (holding that Geneva Convention Common Article 3 applies to the current U.S. conflict with al Qaeda) — *Al-Aulaqi, D.D.C., 2010*
- **5** (holding that the DTA's withdrawal of federal habeas jurisdiction did not apply to petitions pending at the time of the DTA's enactment) — *Al-Bihani, D.C. Cir., 2010*
- **4** ("Congress' rejection of the very language that would have achieved the result the Government urges weighs heavily against the Government's interpretation.") — *United States v. Raymond P. Novak, 9th Cir., 2007*
- **4** (noting that courts have never, "in evaluating the legality of executive action, deferred to comments made by such officials to the media") — *Casa De Md. v. U.S. Dep't of Homeland Sec., D. Maryland, 2018*
- **3** (A The Convention consists of 79 articles regulating various aspects of consular activities. @) — *Medellin, Ex Parte Jose Ernesto, Tex. Crim. App., 2006*
- **3** (applying "ordinary principles of statutory construction" to determine whether the Detainee Treatment Act should operate retroactively) — *In Re Islamic Republic of Iran Terrorism Lit., D.D.C., 2009*
- **2** (noting the "weighty and sensitive interests") — *United States v. Al Bahlul, M.C., 2011*

↑

228. S. D. Warren Co. v. Maine Board of Environmental Protection

547 U.S. 370, SCOTUS, 2006

In 2020-24: cited by 21 decisions (appellate) · in all: 126 · 2021–2025: 29 · weight in the sub-cluster 1

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 143 citing opinions, filed 2011–2026: status now, not the year it changed)

Travels with: Ali (cosine 0.03, 6 both)

How later courts describe it (31 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (explaining that, in statutory interpretation, "a word is known by the company it keeps" (internal quotation marks omitted)) — *Casa De Maryland, Incorporated v. Donald Trump, 4th Cir., 2020*
- **3** ("Changes in the river like these fall within a State's legitimate legislative business, and the Clean Water Act provides for a system that respects the States' concerns") — *Great Basin Mine Watch v. Hankins, 9th Cir., 2006*
- **3** (rejecting the argument that, without more, "pairing a broad statutory term with a narrow one shrinks the broad one") — *United States v. Russell Alford, D.C. Cir., 2024*
- **2** ("The common definition of the word includes does not suggest it is a word of limitation.") — *Maine Ass'n of Health Plans v. Superintendent of Insurance, Me., 2007*
- **2** (resorting to a term's "ordinary or natural meaning" because "it is neither defined in the statute nor a term of art") — *Planned Parenthood Minnesota v. Rounds, 8th Cir., 2006*
- **2** (looking to how the court previously tended to use the term "discharge" in dicta under the Clean Water Act) — *Gordon, 1st Cir., 2015*
- **2** (explaining that the contextual canon of "noscitur a sociis is no help absent some sort of gathering [of words] with a common feature to extrapolate") — *DOJ, 9th Cir., 2021*
- **2** (stating that an undefined statutory term is to be read "in accordance with its ordinary or natural meaning" (quotation omitted)) — *Friends of the Everglades v. South Florida Water Management District, 11th Cir., 2009*

↑

229. Perry v. Department of Financial & Professional Regulation

2018 IL 122349, Ill., 2018

In 2020-24: cited by 18 decisions (appellate) · in all: 36 · 2021–2025: 16 · weight in the sub-cluster 1

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 36 of 36 citing opinions, filed 2019–2026: status now, not the year it changed)

Travels with: Commonwealth Edison Co. v. Will County Collector (cosine 0.07, 6 both)

No parentheticals.

↑

230. Lafferty v. Wells Fargo Bank, N.A.

235 Cal. Rptr. 3d 842, Cal. Ct. App. 5th, 2018

In 2020-24: cited by 14 decisions (appellate) · in all: 20 · 2021–2025: 13 · weight in the sub-cluster 1

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 20 of 20 citing opinions, filed 2019–2022: status now, not the year it changed)

Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (43% of the 14 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Kisor (cosine 0.02, 6 both)
No parentheticals.

↑

231. Montgomery Ward & Co., Incorporated v. Federal Trade Commission

691 F.2d 1322, 9th Cir., 1982
In 2020-24: cited by 13 decisions (appellate) · in all: 81 · 2021–2025: 15 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 93 of 93 citing opinions, filed 1983–2026: status now, not the year it changed)
Travels with: Francisco Garfias-Rodriguez v. Eric Holder, Jr. (cosine 0.07, 6 both)
How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (considering the first three factors together as a single criterion) — *Francisco Garfias-Rodriguez v. Eric Holder, Jr., 9th Cir., 2012*
- **3** (relying on Retail, Wholesale and Department Store Union v. NLRB, 466 F.2d 380, 390-93 (D.C. Cir. 1972)) — *Beneli v. National Labor Relations Board, 9th Cir., 2017*
- **3** (stating that the third factor considers "the extent to which the party against whom the new rule is applied relied on the former rule" while the fourth factor considers "the degree of the burden which a retroactive order imposes on a party") — *Francisco Garfias-Rodriguez v. Eric Holder, Jr., 9th Cir., 2012*
- **3** (concluding that the new rule's retroactive impact would place an "unfair burden" on the litigant department store as compared to its similarly situ- ated competitors) — *Francisco Garfias-Rodriguez v. Eric Holder, Jr., 9th Cir., 2012*
- **2** (balancing test applies when necessary to pro- tect "a regulated party's interest in being able to rely on the terms of a rule as it is written" (emphasis added)) — *Francisco Garfias-Rodriguez v. Eric Holder, Jr., 9th Cir., 2012*
- **1** ("[W]hen a new problem is presented to an administrative agency, the agency may act through adjudi- cation to clarify an uncertain area of the law, so long as the retroactive impact of the clarification is not excessive or unwarranted.") — *Raul Morales-Izquierdo v. Department of Homeland Security, 9th Cir., 2010*
- **1** ("It is well settled that the decision whether to proceed by adjudication or rule-making 'lies in the first instance within the agency's discretion.'" (alteration omitted) — *Biden, D. Alaska, 2023*

↑

232. United States v. Douglas Lee Dunford, Sr.

148 F.3d 385, 4th Cir., 1998
In 2020-24: cited by 12 decisions (appellate) · in all: 123 · 2021–2025: 11 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 131 citing opinions, filed 2002–2024: status now, not the year it changed)
Travels with: Bell v. United States (cosine 0.06, 6 both)
How later courts describe it (26 parentheticals; groups of similar wording, largest first; other courts' words)

- **10** (holding that a defendant could only be convicted of a single act of possession for multiple firearms that were seized from one location at the same time) — *Battle, 4th Cir., 2010*
- **2** (noting that the word "any" may mean a single item if "used in [the] context of [a] singular noun") — *Sheldon, D. Maryland, 2020*
- **2** (holding that a defendant may not be convicted of multiple offenses under § 922(g) on the basis that he belonged to more than one prohibited class or that he simultaneously possessed more than one firearm) — *United States v. Earl Shorter, 4th Cir., 2003*
- **2** (concluding that the interest of justice was served by allowing "the jury to weigh the credibility of all of the evidence and to resolve the serious charges") — *DeLEON, 4th Cir., 2012*
- **2** (holding that possession of a firearm or ammunition is a single offense regardless of the number of disqualifying classes to which a defendant belongs) — *Howard Allen Groffel v. Commonwealth of Virginia, Va. Ct. App., 2019*
- **1** (addressing multiple firearm posses- sion convictions) — *Goodine, 4th Cir., 2005*
- **1** ("To construe it broadly would easily cause the exception to swallow the rule.") — *United States v. Roberto DeLeon, 4th Cir., 2012*
- **1** (finding sufficient evidence of possession of weapons based on their presence in places where the defendant would have been aware of them, the recovery of ammunition for the weapons in the defendant's bedroom, and a pro-gun sign found in the defendant's living room) — *United States v. John W. Parrott, 4th Cir., 2000*

↑

233. Commissioner v. Glenshaw Glass Co.

348 U.S. 426, SCOTUS, 1955
In 2020-24: cited by 11 decisions (appellate) · in all: 1,168 · 2021–2025: 100 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 1,324 citing opinions, filed 2021–2026: status now, not the year it changed)
Role changed 1995-99: likely successor Commissioner, 515 U.S. 323 (1995) (42% of the 24 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: NFIB (cosine 0.03, 6 both)
How later courts describe it (69 parentheticals; groups of similar wording, largest first; other courts' words)

- **16** (holding that all "accessions to wealth" must be included in gross income unless a specific exclusion applies) — *Barbato, Tax Ct., 2016*

7 ("The mere fact that payments were extracted from the wrongdoers as punishment for unlawful conduct can not detract from their character as taxable income to the recipients.") — *Polone, 9th Cir., 2007*

7 ("Re-enactment [of a statute] — particularly without the slightest affirmative indication that Congress ever had [a particular] decision before it — is an unreliable indicium at best.") — *Clapper, 2d Cir., 2015*

6 (it is the intention of Congress to tax all gains except those specifically provided for) — *Elizabeth A. Reese v. United States, Fed. Cir., 1994*

5 (all realized accessions to wealth are presumed taxable income, unless the taxpayer can demonstrate that an acquisition is specifically exempted from taxation) — *REMOS, Tax Ct., 2005*

2 (distinguishing Stratton's Indep., Ltd. and Doyle) — *Commissioner, Tax Ct., 2019*

2 (wages received for services are taxable as income) — *Leonard Perkins v. Commissioner of Internal Revenue, 6th Cir., 1984*

2 (punitive damages for fraud and antitrust violations are taxable income) — *Paul F. Roemer, Jr. And Marcia E. Roemer v. Commissioner of Internal Revenue, 9th Cir., 1983*

↑

234. Sherley v. Sebelius

610 F.3d 69, D.C. Cir., 2010
In 2020-24: cited by 11 decisions (appellate) · in all: 94 · 2021–2025: 24 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 101 citing opinions, filed 2010–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

3 (injury in fact exists where "a seller facing increased competition may lose sales to rivals, or be forced to lower its price or to expend more resources to achieve the same sales, all to the detriment of its bottom line") — *Ass'n for Cmty. Affiliated Plans v. U.S. Dep't of Treasury, D.C. Cir., 2019*

3 ("The doctrine of competitor standing addresses the first requirement [of Article III standing] by recognizing that economic actors suffer an injury in fact when agencies lift regulatory restrictions on their competitors or otherwise allow increased competition against them.") — *Grocery Manufacturers Ass'n v. Environmental Protection Agency, D.C. Cir., 2012*

2 ("Because the Guidelines have intensified the competition for a share in a fixed amount of money, the plaintiffs will have to invest more time and resources to craft a successful grant application. That is an actual, here-and-now injury.") — *Azar, D. Or., 2018*

2 ("[T]he basic requirement common to all our cases is that the complainant show an actual or imminent increase in competition[.]") — *Vilsack, D.D.C., 2015*

2 ("[A]n actual or imminent increase in competition . . . will almost certainly cause an injury in fact.") — *State of Ohio v. Xavier Becerra, 6th Cir., 2023*

2 (similarly finding doctors have competitor standing after agency loosened restrictions and thereby allowed increased competition in upstream market for grants that fund research) — *Grocery Manufacturers Ass'n v. Environmental Protection Agency, D.C. Cir., 2012*

1 ("We see no reason any one competing for a governmental benefit should not be able to assert competitor standing when the Government takes a step that benefits his rival and therefore injures him economically.") — *Aero Spray, Inc. v. United States, Fed. Cl., 2021*

1 (competitive injury caused when "agencies lift 41 regulatory restriction on [the plaintiff's] competitors or otherwise allow increased competition against them" (internal citation and quotation marks omitted)) — *Trump, 2d Cir., 2019*

↑

235. Pesquera Mares Australes Ltda. v. United States v. Coalition for Fair Atlantic Salmon Trade

266 F.3d 1372, Fed. Cir., 2001
In 2020-24: cited by 10 decisions (appellate) · in all: 150 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 153 citing opinions, filed 2005–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

8 (affording Chevron deference to agency methodology in furtherance of its statutory interpretations) — *Venus Wire Indus. Pvt. Ltd. v. United States, Ct. Intl. Trade, 2019*

3 (acknowledging the Court's "obligation to afford Chevron deference to Commerce's interpretations of ambiguous statutory terms in the course of Commerce's antidumping determinations.") — *Dofasco Inc. v. United States, Ct. Intl. Trade, 2004*

2 ("[T]he Precedential Opinion Panel may request additional briefing on identified issues, and, in appropriate circumstances, may further authorize the filing of amicus briefs." (emphases added)) — *Facebook, Inc. v. Windy City Innovations, LLC, Fed. Cir., 2020*

1 (interpreting United States v. Mead, 533 U.S. 218 (2001)) — *Hyundai Elecs. Indus. Co. v. United States, Ct. Intl. Trade, 2004*

1 (Chevron deference to interpretation made during antidump- ing investigation) — *Springfield Inc v. Buckles, Bradley A., D.C. Cir., 2002*

1 ("Indeed, if Commerce were to limit itself to consideration of the small volume of 'premium' sales of the particular exporter, it would risk market manipulation for antidumping purposes.") — *La Molisana S.p.A. v. United States, Ct. Intl. Trade, 2023*

1 (in determining the common or "established" meaning of a term, "it is appropriate to consult dictionaries.") — *Cormorant Shipholding Corp. v. United States, Ct. Intl. Trade, 2009*

1 (stating, after affirming the Department's construction of the statute, that "[w]e must also determine whether Commerce's

commercial practice determination here is supported by substantial evidence and whether Commerce has provided an adequate explanation for its determination.") — *Union Steel v. United States, Ct. Intl. Trade, 2011*

↑

236. City of Parker v. State

992 So. 2d 171, Fla., 2008
In 2020-24: cited by 10 decisions (appellate) · in all: 16 · 2021–2025: 8 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 16 of 16 citing opinions, filed 2008–2022: status now, not the year it changed)
Travels with: Daniels (cosine 0.08, 6 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (holding that if the language we are interpreting is clear, it must be given its plain meaning) — *ROBERT J. HANOPOLE, D.C., P.A. a/a/o NATALIA BUSTAMANTE v. STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, Fla. Dist. Ct. App., 2022*

↑

237. Chamber of Commerce of the U.S. v. U.S. Dep't of Labor

885 F.3d 360, 5th Cir., 2018
In 2020-24: cited by 10 decisions (appellate) · in all: 38 · 2021–2025: 19 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 38 of 38 citing opinions, filed 2000–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("Illogic and internal inconsistency are characteristic of arbitrary and unreasonable agency action.") — *Southwestern Elec. Power Co. v. U.S. E.P.A., 5th Cir., 2019*
- **2** ("Congress's use and withholding of terms within a statute is taken to be intentional.") — *O.W., 5th Cir., 2020*
- **1** (applying de novo standard of review) — *Michael Adkins v. US Dept of Agriculture, e, 5th Cir., 2018*
- **1** (treating this "novel interpretation" argument under Chevron step two) — *Brackeen, 5th Cir., 2021*
- **1** ("[S]tatutory language cannot be construed in a vacuum. It is a fundamental canon of statutory construction that the words of a statute must be read in their context and with a view to their place in the overall statutory scheme." (alteration in original) — *Wilson, 5th Cir., 2023*
- **1** (when statute "unambiguously forecloses" agency interpretation, "that is the end of the matter") — *Brackeen, 5th Cir., 2021*
- **1** ("A regulator's authority is constrained by the authority that Congress delegated it by statute.") — *Federation of Americans for Consumer Choice, Inc. v. United States Department of Labor, E.D. Tex., 2024*
- **1** ("Transforming sales pitches into the recommendations of a trusted adviser mixes apples and oranges.") — *Federation of Americans for Consumer Choice, Inc. v. United States Department of Labor, E.D. Tex., 2024*

↑

238. R.J. Reynolds Vapor v. FDA

65 F.4th 182, 5th Cir., 2023
In 2020-24: cited by 10 decisions (appellate) · in all: 17 · 2021–2025: 17 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 17 of 17 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("At a bare minimum, '[w]hen an agency changes its existing position, it . . . must at least display awareness that it is changing position and show that there are good reasons for the new policy.'" (quoting Encino Motorcars LLC v. Navarro, 579 U.S. 211, 221 (2016))) — *Chamber of Com of the USA v. SEC, 5th Cir., 2023*
- **1** (FDA's "'unexplained' and 'inconsistent' positions are likely arbitrary and capricious.") — *FDA, 5th Cir., 2023*
- **1** ("Dealing with administrative agencies is all too often a complicated and expensive game, and players . . . 'are entitled to know the rules.'" (citation omitted)) — *Wynnewood Refining Company, L.L.C. v. EPA, 5th Cir., 2023*
- **1** (noting that the FDA accepted thirteen amendments to R.J. Reynolds' non-menthol and non-tobacco PMTAs) — *FDA, 3rd Cir., 2023*
- **1** (concluding that the FDA acted arbitrarily and capriciously when it previously "represented that long-term studies were likely unnecessary" and never told applicants that switching evidence would be required for menthol-flavored products) — *Fda, 9th Cir., 2023*

↑

239. Edward W. Dalheim v. Kdfw-Tv

918 F.2d 1220, 5th Cir., 1990
In 2020-24: cited by 9 decisions (appellate) · in all: 182 · 2021–2025: 20 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 184 citing opinions, filed 2006–2025: status now, not the year it changed)
Travels with: Navarro (cosine 0.04, 6 both)
How later courts describe it (24 parentheticals; groups of similar wording, largest first; other courts' words)

3 (concluding that television news producers are non-exempt production employees) — *Yuen, E.D. Va., 1997*

2 ("At least under the short tests, the employee's primary duty will usually be what she does that is of principal value to the employer, not the collateral tasks that she may also perform, even if they consume more than half her time.") — *Michael A. Baldwin v. Trailer Inns, Inc., 9th Cir., 2001*

2 ("whether a district court finds [the interpretive regulations] persuasive is not controlling: if the court's application of the statute and substantive regulations are legally correct and its factfinding is without clear error, there is no basis for reversal on appeal")

2 (television newscast producers, station directors and assignment reporters are non-exempt employees because their primary work duties are related to production aspect of television station's business)

2 ("that a worker's poor performance may have a significant profit-and-loss impact is not enough to make that worker an exempt administrator")

2 (applying analysis to TV producers: "Section 541.205(a) is not concerned with distinguishing between white collar and blue collar employees, or between service industries and manufacturing industries.")

1 (applying the test to television producers) — *Reich, D. Conn., 1994*

1 (television producers' "'responsibilities begin and end with the ten-to-twelve minute portion of the newscast they are working on' . . . [but] Mr. Shea's responsibilities affect policy and procedures, and thus future missions, in both the short and long term.") — *Shea, Fed. Cl., 2018*

↑

240. Eagle Pharmaceuticals, Inc. v. Alex Azar, II

952 F.3d 323, D.C. Cir., 2020
In 2020-24: cited by 9 decisions (appellate) · in all: 35 · 2021–2025: 31 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 35 of 35 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

2 (courts "do not resort to legislative history to cloud a statutory text that is clear.") — *Wharf, Inc. v. District of Columbia, D.D.C., 2021*

1 ("the text leaves no room for the FDA to place additional requirements on a drug that has been designated and approved before granting its manufacturer the right to exclusivity.") — *Azar, S.D. Fla., 2020*

1 ("[W]e examine the [statute's] text, structure, purpose, and legislative history to determine if the Congress has expressed its intent unambiguously.") — *Postal Police Officers Association v. United States Postal Service, D.D.C., 2020*

1 ("Indeed, inherent in any sort of exclusivity period is a tradeoff between incentivizing research and development and promoting competition.") — *Califf, D.D.C., 2025*

1 (explaining that the FDA "considers the [subsequent] drug to be different—and thus entitled to its own seven-year exclusivity period upon designation and approval—if it does not have the same active moiety or 5 is clinically superior") — *Becerra, D.D.C., 2024*

↑

241. United States v. Tre Tate

999 F.3d 374, 6th Cir., 2021
In 2020-24: cited by 9 decisions (appellate) · in all: 14 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 14 of 14 citing opinions)
Travels with: Kisor (cosine 0.02, 6 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[W]e do not woodenly interpret a legal text in a vacuum . . . but instead discern the meaning of a statement in a law from the context in which it is made . . . ." (citations and quotations omitted)) — *Fitzgerald Truck Parts & Sales LLC v. United States, 6th Cir., 2025*

1 ("Through [defendant's] menacing words coupled with using his hand and his shoulder bag, a 'reasonable individual' would believe that [the defendant] had a weapon . . . .") — *Montano, 10th Cir., 2024*

1 (holding that "the phrase 'dangerous weapon' . . . encompasses not only objects that are per se dangerous, but also those that, by their objective appearance, create the possibility of danger") — *United States v. Zachariah Jay Histed, 6th Cir., 2024*

↑

242. Loper Bright Enterprises, Inc v. Gina Raimondo

45 F.4th 359, D.C. Cir., 2022
In 2020-24: cited by 9 decisions (appellate) · in all: 13 · 2021–2025: 13 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 13 of 13 citing opinions, filed 2023–2024: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("some question" about the meaning of a statute is enough to trigger Chevron deference) — *FERC, D.C. Cir., 2023*

1 (reasoning that "the penalties in a broadly applicable section of the [MSA] appear to recognize the possibility of industry-contracted and funded observers beyond [a single] context") — *Relentless Inc. v. US Dep't of Commerce, 1st Cir., 2023*

↑

243. Medina County Environmental Action Ass'n v. Surface Transportation Board

602 F.3d 687, 5th Cir., 2010
In 2020-24: cited by 8 decisions (appellate) · in all: 110 · 2021–2025: 59 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 112 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
How later courts describe it (30 parentheticals; groups of similar wording, largest first; other courts' words)

- **15** ("[The petitioner's] contentions as to esthetic and pecuniary harm are in fact sufficient to support standing." (citing Defenders of Wildlife, 504 U.S. at 563; Tex. Democratic Party v. Benkiser, 459 F.3d 582, 586-87 (5th Cir. 2006))) — *Ctr for Biological Diversity v. Ken Salazar, 5th Cir., 2012*
- **6** ("Where an agency's particular technical expertise is involved, we are at our most deferential in reviewing the agency's findings.") — *Markle Interests, L.L.C. v. United States Fish & Wildlife Service, 5th Cir., 2016*
- **3** ("Viber is an Internet messaging application that allows the user to send and receive audio calls, video calls, written messages, photos, and videos after downloading the software from the Internet.") — *Wahab, D. Or., 2024*
- **1** (discussing the informal consultation process) — *Save Our Springs Alliance, Inc. v. Texas Department of Transportation, W.D. Tex., 2022*
- **1** ("'Absent evidence to the contrary, we presume that an agency has acted in accordance with its regulations.'" (quoting Sierra Club v. U.S. Army Corps of Eng'rs, 295 F.3d 1209, 1223 (11th Cir. 2002)). 17 431 F.3d 431 (5th Cir. 2005) — *Sealed 1 v. Sealed 1, 5th Cir., 2014*
- **1** ("The record consists of the order involved, any findings or reports on which that order is based, and the pleadings, evidence, and other parts of the proceedings before the agency." (quotation omitted)) — *Duffy, S.D. Miss., 2026*
- **1** (same regarding birding enthusiasts of golden-cheeked warblers who alleged that birds would be harmed and driven from the area because of defendant's actions) — *Animal Legal Defense Fund v. National Foundation for Rescued Animals d/b/a Tiger Creek Sanctuary, E.D. Tex., 2022*
- **1** (applying arbitrary-and-capricious standard of review to federal agency's concurrence with Texas agency's determination that proposed action was unlikely to affect endangered species) — *Save Our Springs Alliance, Inc. v. Texas Department of Transportation, W.D. Tex., 2022*

↑

244. Nantahala Power & Light Co. v. Thornburg

476 U.S. 953, SCOTUS, 1986
In 2020-24: cited by 8 decisions (appellate) · in all: 233 · 2021–2025: 20 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 252 citing opinions, filed 2004–2026: status now, not the year it changed)
Travels with: Electric Power Supply (cosine 0.06, 6 both)
How later courts describe it (38 parentheticals; groups of similar wording, largest first; other courts' words)

- **17** (recognizing that Congress "vested" in FERC "exclusive jurisdiction" and "plenary authority over interstate wholesale rates") — *Hughes, SCOTUS, 2016*
- **4** ("a State may not conclude in setting retail rates that the FERC-approved wholesale rates are unreasonable") — *County Of Stanislaus v. Pacific Gas And Electric Company, 9th Cir., 1997*
- **2** (overturning action of a state regulatory body that, by its orders establishing retail rates, required the regulated entity to "pretend that it is paying less for the power it receives ..., under agreements not subject to [the state's] jurisdiction, than is in fact the case.") — *Ohio Power Company v. Federal Energy Regulatory Commission, D.C. Cir., 1992*
- **2** (holding such "trapping" prohibited by Supremacy Clause) — *FERC, D.C. Cir., 1999*
- **2** (stating that the application of the filed rate doctrine to state tribunals is "a matter of enforcing the Supremacy Clause") — *Metropolitan Edison Co. v. Pennsylvania Public Utility Commission, 3rd Cir., 2014*
- **1** ("[T]he filed rate doctrine is not limited to 'rates' per se.") — *In Re Calpine Corp., S.D.N.Y., 2006*
- **1** (N.C.G.S. § 62-79 requires Commission to "consider and determine [only] controverted questions" (emphasis added)) — *State v. Public Staff, N.C. Ct. App., 1996*
- **1** (filed rate doctrine bars State from preventing seller of power "from recovering the costs of paying [a] FERC-ap-proved rate") — *Tejas Power Corporation v. Federal Energy Regulatory Commission. Nos. 89-1267, D.C. Cir., 1990*

↑

245. American Radio Relay League, Inc. v. Federal Communications Commission

524 F.3d 227, D.C. Cir., 2008
In 2020-24: cited by 8 decisions (appellate) · in all: 99 · 2021–2025: 23 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 108 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
How later courts describe it (18 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("It would appear to be a fairly obvious proposition that studies upon which an agency relies in promulgating a rule must be made available during the rulemaking in order to afford interested persons meaningful notice and an opportunity for comment.") — *Pritzker, D.D.C., 2017*
- **3** ("Where a 'highly technical question' is involved, 'courts necessarily must show considerable deference to an agency's expertise.'"

(quoting MCI Cellular Tel. Co. v. FCC, 738 F.2d 1322, 1333 (D.C. Cir. 1984))) — *Lg Electronics U.S.A., Inc. v. U.S. Department of Energy, D.D.C., 2010*

2 (separate opinion of Kavanaugh, J.) — *White Stallion Energy Center, LLC v. Environmental Protection Agency, D.C. Cir., 2014*

2 ("Allowing such omissions in data and methodology may ma[ke] it impossible to reproduce an agency's results or assess its reliance upon them.") — *FAA, D.C. Cir., 2017*

1 ("[T]he Commission can point to no authority allowing it to rely on the studies in a rulemaking but hide from the public parts of the studies that may contain contrary evidence, inconvenient qualifications, or relevant explanations of the methodology employed.") — *Sebelius, D.D.C., 2016*

1 ("The narrowness of our holding under section 553 of the APA is manifest.") — *Sebelius, D.D.C., 2014*

1 ("[A]mong the information that must be revealed for public evaluation are the technical studies and data upon which the agency relies in its rulemaking." (citation and quotations omitted) (alterations adopted)) — *Philip Morris USA Inc. v. United States Food and Drug Administration, S.D. Ga., 2025*

1 (remanding for the agency to "afford a reasonable opportunity for public comment on the unredacted studies on which it relied in promulgating the rule, make the studies part of the rulemaking record, and provide a reasoned explanation of its choice") — *Sebelius, D.D.C., 2015*

↑

246. Esi Energy, LLC v. Fed. Energy Regulatory Comm'n

892 F.3d 321, D.C. Cir., 2018
In 2020-24: cited by 8 decisions (appellate) · in all: 9 · 2021–2025: 9 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 9 of 9 citing opinions, filed 2022–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
No parentheticals.

↑

247. Baldwin v. United States

140 S. Ct. 690, SCOTUS, 2020 • Relating-to
In 2020-24: cited by 8 decisions (appellate) · in all: 13 · 2021–2025: 7 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 13 of 13 citing opinions, filed 2020–2023: status now, not the year it changed)
Travels with: Chevron (cosine 0.02, 6 both)
No parentheticals.

↑

248. Baltimore Gas and Electric Company v. FERC

954 F.3d 279, D.C. Cir., 2020
In 2020-24: cited by 8 decisions (appellate) · in all: 13 · 2021–2025: 12 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 13 of 13 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

2 (holding that FERC cannot treat similarly situated utilities differently without a reasonable justification, even in uncontested or unreasoned orders) — *FERC, D.C. Cir., 2024*

1 ("the duty to explain Page 9 of 16 inconsistent treatment is incumbent on the agency") — *Sokol World Entertainment, Inc. v. Small Business Administration, D.D.C., 2025*

1 (concluding that an agency reasonably found that a company did not submit filing in a "reasonable period of time" when it "failed to offer an adequate reason for the delay") — *Criswell, 5th Cir., 2024*

↑

249. Forsythe v. Longboat Key Beach Erosion

604 So. 2d 452, Fla., 1992
In 2020-24: cited by 35 decisions (appellate) · in all: 282 · 2021–2025: 43 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 294 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Daniels (cosine 0.03, 5 both)
How later courts describe it (32 parentheticals; groups of similar wording, largest first; other courts' words)

17 (related provisions of a statute should be read in pari materia in order to achieve a consistent whole) — *Hayes, Fla., 1999*

4 ("Ambiguity suggests that reasonable persons can find different meanings in the same language.")

4 (noting that it is a cardinal rule of statutory construction that courts should avoid readings that render parts of the statute meaningless) — *Turner, Fla. Dist. Ct. App., 2000*

3 (stating that "[i]t is a fundamental principle of statutory construction that where the language of a statute is plain and unambiguous there is no occasion for judicial interpretation.") — *Hawkins, Fla., 1999*

1 (beach erosion control district contained within a single municipality, but which crossed county lines, was independent special

district that could only be created by legislative authorization and not by municipal ordinance) — *Ago, Fla. Att'y Gen., 1994*

1 ("Every statute must be read as a whole with meaning ascribed to every portion and due regard given to the semantic and contextual interrelationship between its parts.") — *Davis, Fla. Dist. Ct. App., 2025*

1 ("A statute is ambiguous if reasonable people could find different meanings from the same language.") — *McNeil, Fla. Dist. Ct. App., 2015*

1 (holding that the pre-amendment version's plain text provided that a special district with territory in multiple counties was an independent special district requiring legislative authorization) — *Pipeline Contractors, Inc., and The Hanover Insurance Company v. Keystone Airpark Authority, a political subdivision of the city of Keystone Heights, and Passero Associates, L.L.C., etc., Fla. Dist. Ct. App., 2019*

↑

250. Republic of Sudan v. Harrison

587 U.S. 1, SCOTUS, 2019

In 2020-24: cited by 30 decisions (appellate) · in all: 116 · 2021–2025: 91 · weight in the sub-cluster 1

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 116 citing opinions, filed 2020–2026: status now, not the year it changed)

Travels with: Chevron (cosine 0.01, 5 both)

How later courts describe it (35 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("Congress generally acts intentionally when it 6 uses particular language in one section of a statute but omits it in another.") — *Secretary of Labor, United States Department of Labor v. Mesa Air Group Incorporated, D. Ariz., 2022*

3 (explaining that courts should be "hesitant to adopt an interpretation" of a legal text that "renders superfluous another portion of the same" text (citation omitted)) — *Tice-Harouff, E.D. Tex., 2022*

2 (first quoting Dep't of Homeland Sec. v. MacLean, 574 U.S. 383, 391 (2015); and then quoting Mackey v. Lanier Collection Agency & Serv., Inc., 486 U.S. 825, 837 (1988)) — *OWCP, 10th Cir., 2024*

2 ("In interpreting [a] statute . . . we look first to its language, giving the words their ordinary meaning.") — *Nonte, Bankr. E.D. Va., 2023*

2 (explaining that "service is deemed to have occurred on the date shown on a document signed by the person who received it from the carrier") — *AdvanFort Company v. Zamil Offshore Services Company, 4th Cir., 2025*

2 (holding that to serve a foreign sovereign through the mail, the plaintiff must send the service packet "directly to the foreign minister's office in the minister's home country") — *Watch Tower Bible and Tract Society of Pennsylvania v. Russian Federation, D.D.C., 2025*

1 (discussing §1608's specialized service-of-process rules) — *CC/Devas (Mauritius) Ltd. v. Antrix Corp., SCOTUS, 2025*

1 (requiring mailing to home country) — *Schertzman Cohen v. Islamic Republic of Iran, D.D.C., 2019*

↑

251. Pavelic & LeFlore v. Marvel Entertainment Group, Div. of Cadence Industries Corp.

493 U.S. 120, SCOTUS, 1990

In 2020-24: cited by 29 decisions (appellate) · in all: 572 · 2021–2025: 77 · weight in the sub-cluster 1

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 616 citing opinions, filed 2019–2026: status now, not the year it changed)

Travels with: Perrin (cosine 0.02, 5 both)

How later courts describe it (101 parentheticals; groups of similar wording, largest first; other courts' words)

30 (stating that a court's "task is to apply the text, not to improve upon it") — *Danielczyk, E.D. Va., 2011*

15 (holding that Rule 11 sanctions may only be imposed upon the attorney who actually signs the documents in question) — *Fellheimer, Eichen & Braverman, P.C. v. Charter Technologies, Incorporated, 3rd Cir., 1995*

13 (applying principles of statutory interpretation to the Federal Rules of Civil Procedure) — *Pete's Fresh Market 4700 Corporation v. Pete Patel, S.D. Ill., 2023*

5 (same, for Federal Rules of Criminal Procedure) — *United States v. Keith Melvin, 7th Cir., 2020*

3 ("Just as the requirement of signature is imposed upon the individual, we think the recited import and consequences of signature run as to him.") — *Brignoli, S.D.N.Y., 1990*

2 ("The signing attorney cannot leave it to some trusted subordinate... to satisfy himself that the filed paper is factually and legally responsible; by signing he represents not merely the fact that it is so, but also the fact that he personally has applied his own judgment.") — *Hoover, W. Va., 2004*

2 (The Federal Rules of Civil Procedure are to be accorded "their plain meaning... and generally with them, as with the statute, '[w]hen we find the terms... unambiguous, judicial inquiry is complete....' ") — *Clevenger, N.D. Ill., 2005*

2 ("the purpose of Rule 11 as a whole is to bring home to the individual signer his personal, nondelegable responsibility") — *Hansboro, N.D. Ind., 1993*

↑

252. Beecham v. United States

511 U.S. 368, SCOTUS, 1994

In 2020-24: cited by 29 decisions (appellate) · in all: 246 · 2021–2025: 45 · weight in the sub-cluster 1

Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 100 of 267 citing opinions, filed 2013–2026: status now, not the year it changed)

Travels with: Whitman (cosine 0.01, 5 both)
How later courts describe it (76 parentheticals; groups of similar wording, largest first; other courts' words)

- **27** ("That several items in a list share an attribute counsels in favor of interpreting the other items as possessing that attribute as well") — *S. D. Warren Co. v. Maine Board of Environmental Protection, SCOTUS, 2006*
- **13** ("The plain meaning that we seek to discern is the plain meaning of the whole statute, not of isolated sentences.") — *Yajure Hurtado, BIA, 2025*
- **8** (holding that persons convicted of federal felonies may have their firearm rights restored "only if they have had their civil rights restored under federal law") — *Susan Marie Focke, f/k/a Susan Marie Spearman v. Commonwealth of Virginia, Va. Ct. App., 2023*
- **3** (referring to this clause as "the choice-of-law clause") — *Caron, D. Mass., 1996*
- **3** (holding that the restoration of civil rights for purpose of Section 921(a)(20) must be by the convicting jurisdiction; a State cannot restore rights removed as a result of a federal conviction) — *Grogan, Pa. Commw. Ct., 2002*
- **2** (construing together three provisions of federal firearms statutes) — *Norfolk Dredging Co. v. United States, Fed. Cl., 2003*
- **2** ("The question presented to the District Courts was whether these restorations of civil rights by States could remove the disabilities imposed as a result of Beecham's and Jones' federal convictions." (Emphases in original.)) — *Newman, Or. Ct. App., 2023*
- **2** (construing provisions of the federal firearms statutes and concluding that the restoration of civil rights by states could not remove the disabilities imposed as a result of federal convictions; rather, civil rights must have been restored under federal law) — *Bailey, Fla. Dist. Ct. App., 2025*

↑

253. Washington State Department of Social & Health Services v. Guardianship Estate of Keffeler

537 U.S. 371, SCOTUS, 2003
In 2020-24: cited by 28 decisions (appellate) · in all: 387 · 2021–2025: 105 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 422 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Robinson (cosine 0.01, 5 both)
How later courts describe it (110 parentheticals; groups of similar wording, largest first; other courts' words)

- **35** ("Title XVI of the Act, § 1381 et seq., is the Supplemental Security Income (SSI) scheme of benefits for aged, blind, or disabled individuals, including 28 children, whose income and assets fall below specified levels . . .") — *(SS) Neilsen v. Commissioner of Social Security, E.D. Cal., 2019*
- **13** (noting that "[w]here general words follow specific words in a statutory enumeration, the general words are construed to embrace only objects similar in nature to those objects enumerated by the preceding specific words") — *United States v. Mi Kyung Byun, 9th Cir., 2008*
- **8** (holding that cogent "administrative interpretations ... not [the] products of formal rulemaking ... warrant respect") — *Coalition for Government Procurement v. Federal Prison Industries, Inc., 6th Cir., 2004*
- **5** ('While the POMS does not have the force of law, it can be persuasive.') — *Bitowf, S.D. Ala., 2021*
- **4** (applying the canons in interpreting the last listed term of "execution, levy, attachment, garnishment, or other legal process") — *United States v. Philip Morris USA Inc., D.C. Cir., 2005*
- **3** (POMS may be treated with deference even though it was not the product of formal rulemaking) — *Hall, D.D.C., 2009*
- **3** (describing "execution, levy, attachment, or garnishment" as "legal terms of art [that] refer to formal procedures by which one person gains a degree of control over property otherwise subject to the control of another, and generally involve some form of judicial authorization") — *Barron, N.D. Tex., 2026*
- **2** (using legal dictionary definitions for "garnishment" and "attachment") — *In Re JG, N.C. Ct. App., 2007*

↑

254. Immigration & Naturalization Service v. National Center for Immigrants' Rights, Inc.

502 U.S. 183, SCOTUS, 1991
In 2020-24: cited by 26 decisions (appellate) · in all: 235 · 2021–2025: 41 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 269 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (93 parentheticals; groups of similar wording, largest first; other courts' words)

- **58** (stating that "the title of a statute or section can aid in resolving an ambiguity in the legislation's text") — *Lynette Chapman v. The Higbee Company, D/B/A Dillard Department Stores, Inc., 6th Cir., 2003*
- **7** (observing that just because a "regulation may be invalid as applied in [some] cases ... does not mean that the regulation is facially invalid because it is without statutory authority") — *American Petroleum Institute v. Johnson, D.D.C., 2008*
- **4** (holding, "the text's generic reference to 'employment' should be read as a reference to the 'unauthorized employment' identified in the paragraph's title") — *King, W.D. Va., 2009*
- **3** ("We have often recognized that a primary purpose in restricting immigration is to preserve jobs for American workers." (quotation omitted)) — *United States v. State of Texas, 5th Cir., 2025*
- **2** (summarizing Court's analysis in Carlson) — *Flores, SCOTUS, 1993*
- **2** (addressing a facial challenge under the Immigration and Nationality Act) — *Bondi, SCOTUS, 2025*
- **2** (upholding INS regulation imposing conditions upon release) — *Flores, SCOTUS, 1993*

2 ("[Undocumented aliens taken into custody are not entitled to work") — *Hoffman Plastic Compounds, Inc. v. National Labor Relations Board, SCOTUS, 2002*

↑

255. Arkansas v. Oklahoma

503 U.S. 91, SCOTUS, 1992
In 2020-24: cited by 25 decisions (appellate) · in all: 411 · 2021–2025: 95 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 446 of 446 citing opinions)
Travels with: City of Milwaukee v. Illinois (cosine 0.04, 5 both)
How later courts describe it (72 parentheticals; groups of similar wording, largest first; other courts' words)

20 (holding that when using the substantial evidence standard, courts of appeals "should not supplant [an] agency's findings merely by identifying alternative findings that could be supported by substantial evidence") — *Montoya-Lopez, 1st Cir., 2023*
14 (stating that the CWA "anticipates a partnership between the States and the Federal Government, animated by a shared objective") — *Islander East Pipeline Company, LLC v. State of Connecticut Department of Environmental Protection, 2d Cir., 2006*
3 (criticizing this Court for failing to afford the EPA's interpretation of the Clean Water Act "an appropriate level of deference") — *City Of Albuquerque v. Carol Browner, 10th Cir., 1996*
2 (outlining federal and state permitting scheme) — *Atlantic States Legal Foundation, Inc. v. Stroh Die Casting Co., 7th Cir., 1997*
2 ("Congress has vested in the - 22 - [EPA] Administrator broad discretion to establish conditions for NPDES permits.") — *Conservation Law Foundation v. ExxonMobil Corporation, 1st Cir., 2021*
2 ("Congress preserved for the Administrator broad authority to oversee state permit programs") — *National Ass'n of Home Builders v. Defenders of Wildlife, SCOTUS, 2007*
2 (agency action is arbitrary and capricious if agency has entirely failed to consider an important aspect of the problem) — *Brown, S.D. Tex., 1996*
2 (harm to Oklahoma residents from wastewater treatment plant 39 miles from border) — *Lujan, SCOTUS, 1992*

↑

256. Federal Land Bank of St. Paul v. Bismarck Lumber Co.

314 U.S. 95, SCOTUS, 1941
In 2020-24: cited by 23 decisions (appellate) · in all: 333 · 2021–2025: 46 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 373 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Ali (cosine 0.02, 5 both)
How later courts describe it (96 parentheticals; groups of similar wording, largest first; other courts' words)

71 (holding that "the term 'including' is not one of all-embracing definition, but connotes simply an illustrative application of the general principle") — *In the Interest of E.C.R., Child, Tex., 2013*
3 ("The word 'includes' is not exhaustive or exclusive") — *Op. Atty. Gen 169j, Minn. Att'y Gen., 2019*
3 (the term "including" used in a section of the Federal Farm Loan Act of July 17, 1916, ch. 245, 39 Stat. 380, is not one of all-embracing definition but connotes simply an illustrative application of a general principle) — *Dunaway, Tax Ct., 2005*
3 (explaining that word "including" usually is interpreted as a term of enlargement or illustration, but may also be interpreted as a term of limitation) — *Dianna Helmers v. City of Des Moines, Iowa Ct. App., 2018*
2 ("the term 'including' 8 Watson et al. v. City of Seattle, 93723-1 (Gordon McCloud, J., dissenting) — *Watson, Wash., 2017*
1 (construing word as illustrative of preceding section) — *New York v. United States Dep't of Justice, 2d Cir., 2020*
1 (legal incidence of sales tax on purchaser) — *United States v. STATE TAX COM'N OF STATE OF MISSISSIPPI, S.D. Miss., 1974*
1 (defining material as "important" or "having influence or effect.") — *Izuchukwu Ozurumba v. Pamela Bondi, 4th Cir., 2025*

↑

257. State Farm Fire & Cas. Co. v. United States Ex Rel. Rigsby

580 U.S. 26, SCOTUS, 2016
In 2020-24: cited by 22 decisions (appellate) · in all: 107 · 2021–2025: 59 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 109 citing opinions, filed 2017–2026: status now, not the year it changed)
Travels with: Marx (cosine 0.02, 5 both)
How later courts describe it (25 parentheticals; groups of similar wording, largest first; other courts' words)

5 (describing the public disclosure bar as a threshold relators must pass for their qui tam suits to proceed) — *United States of America ex v. Keypoint Government Solutions, 10th Cir., 2019*
4 (stating that "[i]n general, the question whether dismissal is appropriate should be left to the sound discretion of the district court. . .") — *State of Delaware v. Card Compliant, LLC, Del. Super. Ct., 2018*
2 (observing that "[t]his system is designed to benefit both the relator and the Government.") — *United States of America v. Arriva Medical, LLC, M.D. Tenn., 2020*
1 (complaint under the False Claims Act need not be dismissed even if relator failed to abide by requirements that "[t]he complaint shall be filed in camera, shall remain under seal for at least 60 days, and shall not be served on the defendant until the court so orders." (emphasis added)) — *Willie Ousley v. Comm'r of Soc. Sec., 6th Cir., 2018*

1 (describing qui tam actions as "[a]lmost unique to the FCA") — *Schroeder, D. Kan., 2021*

1 ("This Court adheres to the general principle that Congress' use of 'explicit language' in one provision 'cautions against inferring' the same limitation in another provision." (quoting Marx v. Gen. Revenue Corp., 568 U.S. 371, 384 (2013))) — *Borzilleri, 1st Cir., 2022*

1 ("Almost unique to the FCA are its qui tam enforcement provisions, which allow a private party known as a 'relator' to bring an FCA action on behalf of the Government." (citations omitted)) — *United States of America v. Reditus Laboratories, C.D. Ill., 2024*

1 ("District courts have inherent power, moreover, to impose sanctions ... for violations of court orders.") — *Nau, D. Conn., 2022*

↑

258. United States v. Ruslan Kirilyuk

29 F.4th 1128, 9th Cir., 2022
In 2020-24: cited by 22 decisions (appellate) · in all: 34 · 2021–2025: 34 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 34 of 34 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: Stinson (cosine 0.02, 5 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

4 (explaining that "cases are not precedential for propositions not considered," so "if a prior case does not raise or consider the implications of a legal argument, it does not constrain our analysis" (cleaned up)) — *United States v. Jeffrey Page, 9th Cir., 2024*

2 (holding that we apply "the ordinary tools of statutory interpretation" when interpreting the Sentencing Guidelines) — *Rodriguez, 9th Cir., 2025*

1 ("[Q]uestions which merely lurk in the record, neither brought to the attention of the court not ruled upon, are not to be considered as having been so decided as to constitute precedents." (quoting United States v. Ped, 943 F.3d 427, 434 (9th Cir. 2019))) — *Magana-Magana, 9th Cir., 2024*

1 ("We review the district court's interpretation of the Sentencing Guidelines de novo.") — *Kheyre, 9th Cir., 2026*

1 ("[A]n appellant generally waives any argument not raised in the opening brief.") — *Roy Dandridge v. Select Portfolio Servicing, Inc., 9th Cir., 2024*

1 ("Prior precedent that does not 'squarely address' a particular issue does not bind later panels on the question." (quoting Brecht v. Abrahamson, 507 U.S. 619, 631 (1993))) — *Andrew Salas v. United States, 9th Cir., 2024*

1 ("[C]ases are not precedential for propositions not considered, or for matters that are simply assumed." (cleaned up)) — *United States v. Christian Estrella, 9th Cir., 2023*

1 (applying Stinson and holding that $500 minimum 9 USCA4 Appeal: 21-4449 Doc: 39 Filed: 01/06/2023 Pg: 10 of 12 is inconsistent with word "loss" in text) — *United States v. Starsha Limbaugh, 4th Cir., 2023*

↑

259. United States Ex Rel. Attorney General of the United States v. Delaware & Hudson Co.

213 U.S. 366, SCOTUS, 1909
In 2020-24: cited by 20 decisions (appellate) · in all: 476 · 2021–2025: 19 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 586 citing opinions, filed 2008–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Blakely, 542 U.S. 296 (2004) (39% of the 28 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Travels with: Whitman (cosine 0.01, 5 both)
How later courts describe it (32 parentheticals; groups of similar wording, largest first; other courts' words)

17 (holding that when "a statute is susceptible of two constructions, by one of which grave and doubtful constitutional questions arise and by the other of which such questions are avoided, our duty is to adopt the latter") — *Richmond Medical Center For Women v. Hicks, 4th Cir., 2005*

9 (explaining that constitutional avoidance canon applies only if "grave and doubtful constitutional questions arise" from a particular statutory construction) — *Aguilar, 1st Cir., 2007*

2 (California Commercial Code Section 9-503, 9-504 invalidated) — *Thompson v. Washington, D.C. Cir., 1973*

2 (govern- ment sought to enjoin vertical integration of coal producers and railroads) — *Jerry Markadonatos v. Village of Woodridge, 7th Cir., 2014*

1 (duty of court to adopt construction of statute that will save statute from constitutional infirmity) — *Federal Home Loan Mortgage Corp. v. New York State Division of Housing & Community Renewal, E.D.N.Y, 1994*

1 (prohibiting the application of the canon of constitutional avoidance when a statute is unambiguous and the unambiguous interpretation results in the unconstitutionality of the statute) — *Crawley, Minn., 2012*

↑

260. United States v. James Herrera

974 F.3d 1040, 9th Cir., 2020
In 2020-24: cited by 18 decisions (appellate) · in all: 25 · 2021–2025: 23 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 25 of 25 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Stinson (cosine 0.02, 5 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("Canons of statutory construction can also guide the interpretation [of the Sentencing Guidelines].") — *Rainford, 2d Cir., 2024*
- **1** ("Whether the definition of 'victim' under § 2B1.1 includes a state government agency is a question of first impression in this circuit that we review de novo.") — *United States v. Derrick Patterson, 9th Cir., 2024*
- **1** (stating standard of review and explaining that "[o]nly guideline applications that are illogical, implausible, or without support in inferences that may be drawn from facts in the record are an abuse of discretion" (internal quotations omitted)) — *United States v. Alan Rohrback, Jr., 9th Cir., 2021*
- **1** (affirming a three-level role enhancement for a defendant who "acknowledged 'he could be said to have directed or supervised [his co- defendant]'") — *United States v. Lalonnie Egans, 9th Cir., 2024*
- **1** (explaining that "[p]lain error review applies to sentencing objections first raised on appeal") — *United States v. Gibran Figueroa-Beltran, 9th Cir., 2021*
- **1** (holding that government entities can be victims under the Guidelines) — *United States v. Oriyomi Aloba, 9th Cir., 2025*
- **1** (noting that we interpret the Sentencing Guidelines "using the ordinary tools of statutory interpretation" (citation modified)) — *Chavez-Echeverria, 9th Cir., 2026*

↑

261. Tri-Valley Cares v. U.S. Department of Energy

671 F.3d 1113, 9th Cir., 2012
In 2020-24: cited by 17 decisions (appellate) · in all: 139 · 2021–2025: 82 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 141 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Department of Transportation v. Public Citizen (cosine 0.04, 5 both)
How later courts describe it (53 parentheticals; groups of similar wording, largest first; other courts' words)

- **41** (noting that the decision to deny a motion for failure to comply 28 | with local rules is within the district court's discretion) — *De Leon v. J.M. Equipment Company, Inc., E.D. Cal., 2023*
- **3** ("At a minimum, an agency must support its conclusions with studies that the agency deems reliable.") — *Blm, 9th Cir., 2016*
- **2** ("Claims not made in an opening brief in a sufficient manner to put the opposing party on notice are deemed waived.") — *Paravue Corp. v. Heller Ehrman LLP, 9th Cir., 2018*
- **1** (applying Marsh's EIS supplementation standard to an EA) — *Usfs, 9th Cir., 2023*
- **1** ("[P]ost-decision 19 information may not be advanced as a new rationalization either for sustaining or attacking 20 an agency's decision because it inevitably leads the reviewing court to substitute its 21 judgment for that of the agency." (cleaned up)) — *Mohave, County of v. United States Bureau of Reclamation, D. Ariz., 2024*
- **1** ("However, exceptions to the normal rule regarding 22 consideration of extra-record materials 'only appl[y] to 23 information available at the time, not post-decisional 24 information.' ") — *Conservation Congress v. United States Forest Service, E.D. Cal., 2019*
- **1** ("If the proposed action does not significantly alter the status quo, it does not have a significant impact[.]") — *Wild Fish Conservancy v. National Park Service, 9th Cir., 2017*
- **1** (EA must provide sufficient information to ensure an agency's hard 4 look and the public's ability to comment) — *Alliance For The Wild Rockies v. US Forest Service, E.D. Wash., 2025*

↑

262. Manuel Olivas-Motta v. Matthew Whitaker

910 F.3d 1271, 9th Cir., 2018
In 2020-24: cited by 17 decisions (appellate) · in all: 27 · 2021–2025: 16 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 27 of 27 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (concluding that Matter of Leal did not represent a change in the law and therefore applies retroactively) — *Luis Gonzalez-Flores v. William Barr, 9th Cir., 2020*
- **1** (rejecting vagueness challenge to crime involving moral turpitude 2020) — *Jose Diaz-Flores v. Merrick Garland, 9th Cir., 2021*
- **1** ("Under the rule of mandate, an administrative agency may not 10 deviate from a supervising court's remand order, and the reviewing court may review the 11 agency's decision on remand to assure that its prior mandate is effectuated.") — *Cathey, S.D. Cal., 2021*
- **1** ("an administrative agency may not deviate from a supervising court's remand order") — *Ismael Solis-Villeda v. Merrick Garland, 9th Cir., 2021*
- **1** (holding that a three-judge panel "has no power to overrule circuit precedent") — *Jose Alanniz v. William Barr, 9th Cir., 2019*

↑

263. Save Our Sound OBX, Inc. v. NC Dept of Transportation

914 F.3d 213, 4th Cir., 2019
In 2020-24: cited by 16 decisions (appellate) · in all: 193 · 2021–2025: 163 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 193 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: Ohio Valley Environmental Coalition v. Aracoma Coal Co. (cosine 0.06, 5 both)

How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **14** (observing that "[c]ourts may deny leave to amend a pleading if the amendment would have been futile" because proposed amendment "would not survive a motion to dismiss") — *Mengyang Li v. Shepherd University, 4th Cir., 2022*
- **1** ("We may supplement the record as presented by the agency if the 'bare record' does not reveal the agency's reasoning or if it appears that the agency acted in bad faith.") — *Tabak, D. Maryland, 2025*
- **1** (upholding a settlement that required an agency to identify a course of action as the "preferred alternative" but did not require selecting that action as the "final approved alternative") — *Housatonic River Initiative v. U.S. Environmental Protection Agency, 1st Cir., 2023*
- **1** (stating standard of review for denial of motion to amend and discussing futility of proposed amendment) — *Timothy Davis v. Chia Wang, 4th Cir., 2022*

↑

264. Gozlon-Peretz v. United States

498 U.S. 395, SCOTUS, 1991
In 2020-24: cited by 15 decisions (appellate) · in all: 497 · 2021–2025: 30 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 550 citing opinions, filed 2013–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (124 parentheticals; groups of similar wording, largest first; other courts' words)

- **37** ("'[W]here Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely in the disparate inclusion or exclusion' ") — *Field, SCOTUS, 1995*
- **26** (holding that a more general statute "does not apply" because "[a] specific provision controls over one of more general application") — *DC, D.C. Cir., 2015*
- **10** (holding a law takes effect on the date of its enactment absent clear direction from Congress to the contrary) — *United States v. Olin B. Kicklighter, 9th Cir., 1996*
- **10** (noting that "[i]t is not uncommon to refer to other, related legislative enactments when interpreting specialized statutory terms," since Congress is presumed to have "legislated with reference to" those terms) — *Lopez, 2d Cir., 2011*
- **5** (describing "[supervised release [a]s a unique method of postconfinement supervision invented by the Congress for a series of sentencing reforms") — *United States v. Johnson, SCOTUS, 2000*
- **4** ("In determining the meaning of the statute, we look not only to the particular statutory language, but to the design of the statute as a whole and to its object and policy.") — *Mamani, S.D. Fla., 2014*
- **3** ("The statute makes it a crime for a person to possess with intent to distribute a controlled substance . . . . [T]he crime can be proved without any consideration of the amount involved . . . .") — *United States v. Ignasio Maldenaldo Sanchez, United States of America v. Santiago Gilberto Sanchez, 11th Cir., 2001*
- **2** (statutory history of federal drug enforcement penalty scheme traced) — *del Valle-Mulero v. United States, D.P.R., 1991*

↑

265. United States v. Carlton

512 U.S. 26, SCOTUS, 1994
In 2020-24: cited by 15 decisions (appellate) · in all: 256 · 2021–2025: 33 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 292 citing opinions, filed 2013–2026: status now, not the year it changed)
Travels with: Landgraf (cosine 0.02, 5 both)
How later courts describe it (78 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (stating that "[t]ax legislation is not a promise, and a taxpayer has no vested right in the Internal Revenue Code") — *Oberhand, N.J. Tax Ct., 2005*
- **6** (recognizing that three tax cases from the Lochner era "were decided during an era characterized by exacting review of economic legislation under an approach that 'has long since been discarded' " (citation omitted)) — *Honeywell, Inc. v. Minnesota Life And Health Insurance Guaranty Association, 1st Cir., 1997*
- **5** (upholding Congress's attempt to cure a defect in the tax code) — *Honeywell, Inc. v. Minnesota Life And Health Insurance Guaranty Association, 1st Cir., 1997*
- **5** (upholding a curative measure that took away an expected and relied upon deduction for estate tax) — *Honeywell, Inc. v. Minnesota Life And Health Insurance Guaranty Association, 1st Cir., 1997*
- **4** (upholding a retroactive amendment to the federal estate tax, even though the taxpayer received no advance notice of the amendment and relied to his detriment on pre-amendment law) — *Commonwealth Edison Company v. United States, Fed. Cir., 2001*
- **3** ("[R]eliance alone is insufficient to establish a constitutional violation. Tax legislation is not a promise, and a taxpayer has no vested right in the Internal Revenue Code.") — *MF Global Holdings Ltd., Bankr. S.D.N.Y., 2020*
- **3** (approving a slightly greater than one year retroactive application of a tax statute) — *Grace, Wash., 1999*
- **2** (explaining due process standard applicable to retroactive taxation) — *Chapman, Minn., 2002*

↑ **266. United States v. Evers**
669 F.3d 645, 6th Cir., 2012
In 2020-24: cited by 14 decisions (appellate) · in all: 87 · 2021–2025: 24 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 102 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: Paroline (cosine 0.02, 5 both)
How later courts describe it (19 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** (finding a proximate cause requirement but declining to choose whether to adopt the McDaniels or Monzel rationale as they are "complementary") — *United States v. Doyle Paroline, 5th Cir., 2012*
- **6** (adopting a proximate cause requirement but declining to decide between the two approaches of our sister circuits) — *United States v. Doyle Paroline, 5th Cir., 2012*
- **2** (concluding that proximate cause was not established) — *United States v. Doyle Paroline, 5th Cir., 2012*
- **2** (finding that the "loss of a sex offender, as a babysitter" was not a foreseeable result of a child pornography offense) — *United States v. Christopher Hargrove, 6th Cir., 2013*
- **1** ("Section 2259 is phrased in generous terms, in order to compensate the victims of sexual abuse for the care required to address the long term effects of their abuse.") — *Tallent, E.D. Tenn., 2012*
- **1** (declining to award restitution for child care expenses because the loss of a sex offender as a babysitter is not the sort of harm contemplated by the statute) — *United States v. John Mobasseri, 6th Cir., 2020*
- **1** (holding that a minor victim's legal guardian qualified as a "victim" under "the plain language" of § 2259(c)) — *Bartels, 9th Cir., 2024*

↑ **267. Defenders of Wildlife v. North Carolina Department of Transportation**
762 F.3d 374, 4th Cir., 2014
In 2020-24: cited by 14 decisions (appellate) · in all: 116 · 2021–2025: 64 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 118 citing opinions, filed 2017–2026: status now, not the year it changed)
Travels with: Ohio Valley Environmental Coalition v. Aracoma Coal Co. (cosine 0.06, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (holding that an appellate court may affirm the lower court's decision on "any basis supported by the record") — *Dides, D. Maryland, 2023*
- **1** (quotingBaconv.City of Richmond, 475 F.3d 633, 638 (4th Cir. 2007)) — *Johns, W.D. Va., 2020*
- **1** ("[Agencies] are not required to approve the entire Project in a single Record of Decision so long as their NEPA documents adequately analyze and disclose the impacts of the entire Project ....") — *USDA, 10th Cir., 2016*
- **1** (explaining that agency action is arbitrary if it is "so implausible that it could not be ascribed to a difference in view or the product of agency expertise") — *Defenders of Wildlife v. U.S. Dept. of the Interior, 4th Cir., 2019*
- **1** (stating that agency action is arbitrary and capricious if the agency "offered an explanation for its decision that runs counter to the evidence before the agency") — *Defenders of Wildlife v. U.S. Dept. of the Interior, 4th Cir., 2019*

↑ **268. United States v. James Johnman, Jr.**
948 F.3d 612, 3rd Cir., 2020
In 2020-24: cited by 14 decisions (appellate) · in all: 17 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 17 of 17 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Kisor (cosine 0.01, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (explaining that "convicted" is the past participle of "convict," which means "to find or declare guilty of an offense or crime" or "to find (a person) guilty of a criminal offense" under dictionary definitions) — *United States v. Dustin Randall, 9th Cir., 2022*
- **1** ("[W]ords are to be given the meaning that proper grammar and usage would assign them.") — *SBA, 3rd Cir., 2026*
- **1** (pointing to statute's use of "the definite article 'the'" in holding that "read naturally, 'the assessment' or 'the special assessment' in subsection (b) means the total amount of 'an assessment under subsection (a)'") — *Platero, 10th Cir., 2021*
- **1** (holding that the rule of lenity "may be applied only where we are left with 'grievous ambiguity' after applying all other traditional tools of statutory interpretation") — *United States v. Mohammed Jabateh, 3rd Cir., 2020*

↑ **269. Commonwealth of Ky. v. Janet Yellen**
54 F.4th 325, 6th Cir., 2022
In 2020-24: cited by 14 decisions (appellate) · in all: 24 · 2021–2025: 24 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 24 of 24 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: Dole (cosine 0.04, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("Ambiguity refers to situations in which language has at least two definite meanings and a court must select between or among them.") — *Alticor Global Holdings Inc v. American Intl Specialty Lines, 6th Cir., 2024*

1 (affirming injunction as to the state of Tennessee) — *Yellen, 5th Cir., 2024*

1 ("Whether a party has standing to redress an injury is measured as of the time the injury is first asserted.") — *Boone Cnty. Republican Party v. H. David Wallace, 6th Cir., 2025*

1 ("Whether an 'intervening circumstance' arising after a suit has been filed causes a plaintiff's asserted injury to dissipate is really a question of mootness.") — *Bull, M.D. Tenn., 2025*

1 (concluding that states had standing from threats to their "enacted or planned . . . tax cuts" because of their "powerful sovereign prerogative under federalism principles to control their own internal taxation policies") — *State of Tenn. v. Dep't of Educ., 6th Cir., 2024*

↑

270. Sierra Club v. Van Antwerp

526 F.3d 1353, 11th Cir., 2008
In 2020-24: cited by 13 decisions (appellate) · in all: 89 · 2021–2025: 26 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 90 of 90 citing opinions, filed 2008–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.01, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("The court's role is to ensure that the agency came to a rational conclusion." (citation omitted)) — *Brooks-LaSure, S.D. Ga., 2024*

2 (noting the arbitrary and capricious standard is "exceedingly deferential") — *Ga. Dep't of Educ. v. U.S. Dep't of Educ., 11th Cir., 2018*

1 (discussing the Court's jurisdiction over the original appeal) — *Sierra Club v. Robert B. Flowers, 11th Cir., 2010*

1 ("In some cases, after an agency publishes a FONSI or an EIS, but before any action is taken, the proposed action changes . . . [so] the agency must make an additional NEPA determination" and may have to prepare a supplemental environmental analysis) — *John S. Lowman, IV v. Federal Aviation Administration, 11th Cir., 2023*

1 (noting agreement among other circuits that have considered the question) — *The State of Georgia v. Chiquita Brooks-LaSure, S.D. Ga., 2022*

1 (agency not required to redo environmental analysis for minimization measure that are within the scope of studied impacts) — *Natural Resources Defense Council v. National Park Service, M.D. Fla., 2017*

1 ("[A]n agency's NEPA decisions are only reviewed under the [Administrative Procedure Act's] highly deferential standard.") — *John S. Lowman, IV v. Federal Aviation Administration, 11th Cir., 2023*

1 (utilizing a functional analysis to determine that the district court order was an injunction in spite of the district court's specific denial in this regard) — *In Re: MDL-1824 Tri-State Water Rights Litigation, 11th Cir., 2011*

↑

271. Flores v. Holder

779 F.3d 159, 2d Cir., 2015
In 2020-24: cited by 13 decisions (appellate) · in all: 39 · 2021–2025: 13 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 39 of 39 citing opinions, filed 2015–2026: status now, not the year it changed)
Role changed 2020-24: likely successor L-A-B-R, 27 I. & N. Dec. 405 (2018) (38% of the 13 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: L-A-B-R (cosine 0.03, 5 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

5 (concluding that New York's first-degree sexual abuse statute, with four elements separated by "or," is divisible) — *Ross, 2d Cir., 2026*

4 (We have accorded Chevron deference . . . to the BIA's interpretation that no separate danger to the community analysis is required when determining whether a crime is particularly serious.) — *Doe, 2d Cir., 2015*

1 ("[o]nce the correct alternative is identified, the focus must return to the elements, rather than the facts, of [the] crime" [internal quotation marks omitted]) — *St. Juste v. Comm'r of Corr., Conn., 2018*

1 (rejecting government's assertion of 6 lack of jurisdiction pursuant to Section 1252(a)(2)(C) because (1) petitioner "was 7 not, however, found removable for having committed an aggravated felony," 8 and (2) — *Manning, 2d Cir., 2020*

↑

272. Unemployment Compensation Comm'n of Alaska v. Aragon

329 U.S. 143, SCOTUS, 1946
In 2020-24: cited by 11 decisions (appellate) · in all: 660 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 727 citing opinions, filed 2007–2025: status now, not the year it changed)
Role changed 2010-14: likely successor Medina County Environmental Action Ass'n v. Surface Trans..., 602 F.3d 687 (2010) (76% of the 21 decisions citing this case in 2010-14 also cite it). (co-citation, not the text)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (58 parentheticals; groups of similar wording, largest first; other courts' words)

52 (holding that a reviewing court usurps the agency's function when it deprives the agency of "an opportunity to consider the

matter, make its ruling, and state the reasons for its action") — *Ad Hoc Shrimp Trade Action Committee v. United States, Ct. Intl. Trade, 2012*

2 ("To sustain the Commissioner's application of this statutory term, we need not find that its construction is the only reasonable one or even that it is the result we would have reached.") — *Board Of Education Of The City Of Chicago v. Lamar Alexander, 7th Cir., 1992*

2 ("if an agency's interpretation of a statute or regulation is not clearly outside its authority, then the courts should defer to the agency's expertise")

1 (agency determination of what constitutes labor dispute "in active progress") — *The Dow Chemical Company v. United States Environmental Protection Agency and Douglas Costle, Administrator, 3rd Cir., 1979*

1 (noting that the Circuit has "refuse[d] to consider arguments-sometimes very good arguments-that were not presented to the agency before being presented to [the court]") — *Schreiber, D. Kan., 2018*

↑

273. Montana-Dakota Utilities Co. v. Northwestern Public Service Co.

341 U.S. 246, SCOTUS, 1951
In 2020-24: cited by 11 decisions (appellate) · in all: 562 · 2021–2025: 19 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 607 citing opinions, filed 2006–2026: status now, not the year it changed)
Role changed 2000-04: likely successor Central Office, 524 U.S. 214 (1998) (38% of the 32 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Travels with: Hall (cosine 0.06, 5 both)
How later courts describe it (77 parentheticals; groups of similar wording, largest first; other courts' words)

19 (holding that the petitioner "can claim no rate as a legal right ... other than the filed rate, whether fixed or merely accepted by the [Agency] Commission") — *McCray v. Fidelity National Title Insurance, 3rd Cir., 2012*

13 (noting, "[a]s frequently happens where jurisdiction depends on subject matter, the question whether jurisdiction exists has been confused with the question whether the complaint states a cause of action") — *Stan Laber v. Francis J. Harvey, Secretary of the Army, 4th Cir., 2006*

9 (the "Judicial Code, in vesting jurisdiction in the District Courts, does not create causes of action, but only confers jurisdiction to adjudicate those arising from other sources which satisfy its limiting provisions") — *In Re Estate Of Ferdinand Marcos, 9th Cir., 1994*

5 ("If the complaint raises a federal question, the mere claim confers power to decide that it has no merit, as well as to decide that it has.") — *Wamai, D.D.C., 2016*

3 (similar duty for gas pipeline companies) — *American Trucking Associations, Inc. v. Delaware River Joint Toll Bridge Commission, 3rd Cir., 2006*

3 ("Even a patently frivolous complaint might be sufficient to confer power to make a final decision that is [on the merits], binding as res judicata on the parties.") — *James L. Lewis v. United States, Fed. Cir., 1995*

2 (federal regulation of prices for electrical power) — *Maislin Industries, SCOTUS, 1990*

2 ("Statutory reasonableness is an abstract quality represented by an area rather than a pinpoint. It allows a substantial spread between what is unreasonable because too low and what is unreasonable because too high.") — *Maine Public Utilities Commission v. Federal Energy Regulatory Commission, D.C. Cir., 2008*

↑

274. United States v. Oregon State Medical Society

343 U.S. 326, SCOTUS, 1952
In 2020-24: cited by 11 decisions (appellate) · in all: 507 · 2021–2025: 26 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 578 citing opinions, filed 2007–2025: status now, not the year it changed)
Role changed 1955-59: likely successor McAllister, 348 U.S. 19 (1954) (29% of the 35 decisions citing this case in 1955-59 also cite it). (co-citation, not the text)
Travels with: Whitman (cosine 0.02, 5 both)
How later courts describe it (42 parentheticals; groups of similar wording, largest first; other courts' words)

17 (discounting "protestations of repentance and reform, especially when abandonment seems timed to anticipate suit") — *Jacqueline P. Taylor v. Resolution Trust Corporation, D.C. Cir., 1995*

14 (emphasizing that in antitrust actions the purpose of injunctive relief is to "forestall future violations") — *United States v. Philip Morris USA Inc., D.C. Cir., 2005*

3 ("When defendants are shown to have ... entered into a conspiracy violative of the antitrust laws, courts will not assume that it has been abandoned without clear proof.") — *Fraser, D. Mass., 1998*

2 ("All it takes to make the cause of action for relief by injunction is a real threat of future violation or a contemporary violation of a nature likely to continue or to recur.") — *Belk, 4th Cir., 2001*

2 (engaging in clear error review of factual findings in a Sherman Act ease where there was no intermediate appellate review) — *Cromartie, SCOTUS, 2001*

1 (restitution typically offers retrospective relief to redress past harm) — *AMG Capital Management, LLC v. FTC, SCOTUS, 2021*

1 (services offered by medical society not commerce since "wholly intrastate") — *United States v. Kenneth E. Hollis, 6th Cir., 1984*

1 (policy discontinued in 1941 does not warrant injunction in 1949) — *McDonough, D. Colo., 1995*

↑

275. Beth Israel Hospital v. National Labor Relations Board

437 U.S. 483, SCOTUS, 1978
In 2020-24: cited by 11 decisions (appellate) · in all: 291 · 2021–2025: 16 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 345 citing opinions, filed 2001–2026: status now, not the year it changed)
Travels with: National Labor Relations Board v. United Food & Commercia... (cosine 0.06, 5 both)
How later courts describe it (44 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** ("[T]he right of employees to self-organize and bargain collectively established by § 7 ... necessarily encompasses the right effectively to communicate with one another regarding self-organization at the jobsite.") — *Northeastern Land Services, Ltd. v. National Labor Relations Board, 1st Cir., 2009*
- **4** (stating that the Board is entitled to deference because it is "expert in federal national labor relations policy")
- **2** (same standard used to review the application of law to facts)
- **2** (the Board's remedial orders are reviewable "for consistency with the Act, and for rationality, ... [and] if supported by substantial evidence on the record as a whole must be enforced")
- **2** ("The effect of [the Board's] rules is to make particular restrictions on employee solicitation and distribution presumptively -lawful or unlaw-ful_") — *Mercedes-Benz U.S. International, Inc. v. National Labor Relations Board, 11th Cir., 2016*
- **2** ("It is the Board on which Congress conferred the authority to develop and apply fundamental national labor policy") — *Starbucks Corp. v. McKinney, SCOTUS, 2024*
- **2** ("The authority of the Board to modify its construction of the Act in light of its cumulative experience is, of course, clear." (citations omitted)) — *International Brotherhood Of Electrical Workers, Local Union No. 474, Afl-Cio, Petitioner v. National Labor Relations Board, D.C. Cir., 1987*
- **2** (noting, when construing a different statute, that "[e]ven if the legislative history arguably pointed toward a contrary view, the [NLRB]'s construction of the statute's policies would be entitled to considerable deference" (citing Weingarten, 420 U.S. at 251, 95 S.Ct. 959)) — *the City of Round Rock, Texas and Round Rock Fire Chief Larry Hodge v. Jaime Rodriguez and Round Rock Fire Fighters Association, Tex., 2013*

↑

276. Bureau of Alcohol, Tobacco & Firearms v. Federal Labor Relations Authority

464 U.S. 89, SCOTUS, 1983
In 2020-24: cited by 11 decisions (appellate) · in all: 470 · 2021–2025: 38 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 516 citing opinions, filed 2001–2026: status now, not the year it changed)
Role changed 1990-94: likely successor Chevron, 467 U.S. 837 (1984) (48% of the 65 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (63 parentheticals; groups of similar wording, largest first; other courts' words)

- **11** (explaining that reviewing court "must not rubber-stamp . . . administrative decisions") — *Beverly, 1st Cir., 1999*
- **4** (courts should give deference to, but should not rubberstamp, an agency's interpretation of its governing statute)
- **3** ("When an agency's decision is premised on its understanding of a specific congressional intent ... it engages in the quintessential judicial function of deciding what a statute means. In that case, the agency's interpretation ... may be influential, but it cannot bind a court") — *Gloria Wilcox v. H. Rollin Ives, Appeal of Secretary of Health and Human Services, 1st Cir., 1988*
- **3** (defining "official time" as the right of employees to receive their "usual pay" during union-related matters) — *Trump, D.D.C., 2018*
- **3** (noting that the FSLMRS "significantly strengthened the position of public employee unions while carefully preserving the ability of federal managers to maintain 'an effective and efficient Government'" (quoting 5 U.S.C. § 7101(b)) — *Nia Lucas v. American Federation of Government Employees, D.C. Cir., 2025*
- **3** (observing that "deciding what a statute means" is "the quintessential judicial function") — *United States v. 29 Cartons of an Article of Food, 1st Cir., 1993*
- **3** (noting that several provisions of the act "aim[] at equalizing the positions of management and labor") — *Trump, D.D.C., 2018*
- **2** ("In addition to its adjudicatory functions, the Authority may engage in formal rulemaking, Sec. 7134, and is specifically required to 'provide leadership in establishing policies and guidance relating to matters' arising under the Act, Sec. 7105(a)(1).")

↑

277. City of Tacoma v. Federal Energy Regulatory Commission

460 F.3d 53, D.C. Cir., 2006
In 2020-24: cited by 11 decisions (appellate) · in all: 48 · 2021–2025: 13 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 50 of 50 citing opinions, filed 2008–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.01, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (the Commission acts arbitrarily by relying on a "facially flawed" Biological Opinion) — *FERC, D.C. Cir., 2021*
- **1** ("[T]he action agency must not blindly adopt the conclusions of the consultant agency, citing that agency's expertise. Rather, the ultimate responsibility for compliance with the [Endangered Species Act] falls on the action agency.") — *Environmental*

Health Trust v. FCC, D.C. Cir., 2021

1 ("In most cases, if a party seeks to challenge a state certification issued pursuant to section 401, it must do so through the state courts.") — *FERC, 4th Cir., 2021*

1 (noting that "[i]f the question regarding the state's [§] 401 certification is not the application of state water quality standards but compliance with the terms of [§] 401, then FERC must address it") — *Morrisville Hydroelectric Proj Water Quality - Decision on Motion, Vt. Super. Ct. , 2020*

1 (stating that when certification turns on questions of state law, FERC defers to the final decision of the state) — *Morrisville Hydroelectric Proj Water Quality - Decision on Motion, Vt. Super. Ct. , 2020*

1 (holding that a challenge to a FERC order gave us jurisdiction to review a predicate biological opinion prepared by another agency) — *In re: Public Employees for Environmental Responsibility, D.C. Cir., 2020*

↑

278. Lewis Hodge, Claimant-Appellant v. Togo D. West, Jr., Secretary of Veterans Affairs

155 F.3d 1356, Fed. Cir., 1998
In 2020-24: cited by 11 decisions (appellate) · in all: 227 · 2021–2025: 29 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 275 of 275 citing opinions)
Travels with: Kisor (cosine 0.01, 5 both)
How later courts describe it (33 parentheticals; groups of similar wording, largest first; other courts' words)

11 (noting that the veterans benefits system is "so uniquely proclaimant [that] the importance of systemic fairness and the appearance of fairness carries great weight") — *Ronald L. Evans v. Robert A. McDonald, Vet. App., 2014*

6 (stating that "[t]his court and the Supreme Court both have long recognized that the character of the veterans' benefits statutes is strongly and uniquely pro-claimant" and describing "the historically non-adversarial system of awarding benefits to veterans") — *Jernigan, Vet. App., 2012*

5 (noting that new evidence could be sufficient to reopen a claim if it could contribute to a more complete picture of the circumstances surrounding the origin of a claimant's injury or disability, even where it would not be enough to convince the Board to grant the claim) — *10-04 213, Board of Vet. App., 2017*

2 (the Board must review all evidence submitted by or on behalf of a claimant since the last disallowance on any basis to determine whether a claim must be reopened) — *13-00 223, Board of Vet. App., 2017*

1 (defining proper regulatory standard of new and material evidence) — *Ruffin, Vet. App., 2002*

1 ("the Court of Appeals for Veterans Claims has consistently applied this test — the Colvin test — in reviewing decision by the Board involving evaluations of new evidence to determine materiality") — *Vargas-Gonzalez, Vet. App., 1999*

1 ("We therefore disapprove of the Colvin test ... and remand the case for reconsideration by the court in light of the proper regulatory definition of 'material evidence.' ") — *Vargas-Gonzalez, Vet. App., 1999*

1 (the Secretary has the duty to "fully and sympathetically develop the [veteran's] claim to its optimum before deciding it on the merits.") — *Akers, Vet. App., 2004*

↑

279. United States v. Larry Jo Leeson

453 F.3d 631, 4th Cir., 2006
In 2020-24: cited by 11 decisions (appellate) · in all: 53 · 2021–2025: 10 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 56 of 56 citing opinions, filed 2006–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

2 (finding argument waived when it was available to the defendant at the time of his opening brief yet was raised for the first time in a notice of supplemental authority and was "wholly different" than the argument advanced in the opening brief) — *United States v. Christopher Hasson, 4th Cir., 2022*

2 (noting that late arguments are "unfair to the appellee") — *Quinton Brown v. Nucor Corporation, 4th Cir., 2015*

2 (holding that appellant had waived argument based on a case raised for the first time in a Rule 28(j) letter when that case was readily available at the time appellant filed its brief) — *John Doe v. Attorney General United States, 3rd Cir., 2020*

1 (applying this rule to supplemental filings) — *United States v. Terrance Brown, Jr., 4th Cir., 2020*

1 (holding that a district court did not abuse its discretion by admitting expert testimony based on hearsay when it had been "sufficiently established" that such hearsay statements were the type of information "reasonably relied upon by experts in [the] field") — *Marco Agundiz Cabrera v. State, Tex. App.-Waco, 2014*

↑

280. State v. Gelman

195 N.J. 475, N.J., 2008
In 2020-24: cited by 11 decisions (appellate) · in all: 60 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 65 of 65 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: Bass (cosine 0.03, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[U]nless a contrary intention otherwise appears, a quali- fying phrase within a statute refers to the last antecedent phrase." (emphasis added)) — *ECB USA, Inc. v. Chubb Insurance Company of New Jersey, 11th Cir., 2024*

1 (explaining that we give statutes "their ordinary and commonsense meaning.") — *State of New Jersey v. Gary Twiggs, N.J. Super. Ct. App. Div., 2016*

1 (recognizing the Legislature's ability to "draft language to accomplish [its] objective") — *Hupka, N.J. Super. Ct. App. Div., 2009*

1 (stating that doctrine of lenity is based on principle that a person is entitled to fair warning of a criminal law's reach) — *Riley, N.J. Super. Ct. App. Div., 2009*

↑

281. National Mining Association v. Ryan Zinke

877 F.3d 845, 9th Cir., 2017
In 2020-24: cited by 11 decisions (appellate) · in all: 22 · 2021–2025: 13 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 22 of 22 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

1 (upholding EIS despite missing data because it was not essential) — *Romero, 2d Cir., 2020*

1 (the standard of review under the APA is "highly deferential, presuming the agency action to be valid and affirming the agency action if a reasonable basis exists for its decision" (citation and internal quotation marks omitted)) — *Aziz Aityahia v. Mesa Airlines, Inc., 9th Cir., 2021*

1 (finding the Department of Interior coordinated with local entities under the Federal Land Policy Management Act and 3 NEPA because it "fully acknowledged and considered the Counties' concerns . . . , even though it chose in the end to proceed") — *Usda, 9th Cir., 2018*

1 (affirming a district court ruling that a legislative provision was unconstitutional but severable) — *Chong Yim v. City of Seattle, 9th Cir., 2023*

1 (upholding the Department of the Interior's withdrawal of one million acres for uranium mining) — *Usfws, 9th Cir., 2022*

1 (stating that courts have "severed" unconstitutional provisions "within single sentences") — *United States v. Robert Rundo, 9th Cir., 2021*

↑

282. New England Power Generators Ass'n v. Federal Energy Regulatiory Commission

879 F.3d 1192, D.C. Cir., 2018
In 2020-24: cited by 11 decisions (appellate) · in all: 20 · 2021–2025: 11 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 20 of 20 citing opinions, filed 2018–2024: status now, not the year it changed)
Travels with: Electric Power Supply (cosine 0.04, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[T]he party seeking judicial review must have raised in its rehearing request before the Commission each objection it puts before the reviewing court.") — *FERC, D.C. Cir., 2022*

1 (concluding that, because the agency's decision was supported by the record evidence and reasonably explained, the agency did not act arbitrarily or capriciously) — *Limnia, Inc. v. U.S. Dep't of Energy, D.C. Cir., 2018*

↑

283. Am. Rivers v. Fed. Energy Regulatory Comm'n

895 F.3d 32, D.C. Cir., 2018
In 2020-24: cited by 11 decisions (appellate) · in all: 34 · 2021–2025: 21 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 34 of 34 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.01, 5 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

3 (stressing the need for a trigger to reinitiate formal consultation) — *Center for Biological Diversity v. Andrew Wheeler, D.D.C., 2024*

1 (agency "fell far short of the NEPA mark" in failing to consider past actions that damaged the area's ecosystem) — *FERC, D.C. Cir., 2022*

1 ("NEPA's primary function is 'information-forcing,' compelling federal agencies to take a hard and honest look at the environmental consequences of their decisions." (citations omitted)) — *El Puente v. U.S. Army Corps of Engineers, D.D.C., 2023*

1 (ordering an EIS based on concerns that the agency "just shrugged off" potentially significant impacts based on "estimates entirely unmoored from any empirical, scientific, or otherwise verifiable study or source") — *Nat'l Parks Conservation Ass'n v. Semonite, D.C. Cir., 2019*

1 (finding environmental baseline arbitrary and capricious because it failed to consider historic and continuing impacts of a federal project on the action area)

1 (finding a biological opinion arbitrarily "failed to incorporate the environmental baseline into its jeopardy analysis") — *Appalachian Voices v. US Department of the Interior, 4th Cir., 2022*

1 (explaining that federal courts have an "independent obligation" to be sure of their Article III jurisdiction) — *Richman, D.D.C., 2025*

1 (holding that petitioners satisfied the relaxed redressability requirement because vacating the challenged licensing order and requiring the Commission to 9 follow the correct procedure "could [lead it to] change its mind") — *FERC, D.C. Cir., 2020*

↑

284. Physicians for Social Responsibility v. Andrew Wheeler

956 F.3d 634, D.C. Cir., 2020
In 2020-24: cited by 11 decisions (appellate) · in all: 39 · 2021–2025: 33 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 39 of 39 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.01, 5 both)
How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("[J]udicially manageable standards may be found in formal and informal pol- icy statements and regulations.") — *Shields of Strength v. United States Department of Defense, E.D. Tex., 2023*

2 ("[G]enerally, arguments raised for the first time at oral argument are forfeited.") — *Silver, D.D.C., 2021*

2 (emphasizing that "the rule that an agency must display awareness that it is changing position is simply a species of the more general requirement—present in all APA cases—that an agency provide a reasoned explanation for its action" (cleaned up)) — *Cboe Global Markets, Inc. v. SEC, D.C. Cir., 2025*

2 (stating that "judicially manageable standards may be found in formal and informal policy statements and regulations as well as in statutes") — *Mnuchin, D.D.C., 2020*

1 (applying such regulations to resolve claim under inappropriate influence provision) — *Young, D.D.C., 2022*

1 ("Any subsequent reporting (such as in connection with a transfer of a section 965(h) net tax liability or a section 965(i) net tax liability) would be negligible burdens that implement elections made and payments calculated in the inclusion year.") — *Silver, D.D.C., 2021*

1 ("Because the Directive contains no discussion of [the agency's] prior conclusion at all, the Directive crossed the line from the tolerably terse to the intolerably mute.") — *Haaland, D.D.C., 2022*

1 ("It is axiomatic that the APA requires an agency to explain its basis for a decision.") — *Zinke, D.D.C., 2020*

↑

285. United States v. Demetrius Jefferson

975 F.3d 700, 8th Cir., 2020
In 2020-24: cited by 11 decisions (appellate) · in all: 12 · 2021–2025: 12 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 12 of 12 citing opinions, filed 2021–2025: status now, not the year it changed)
Travels with: United States v. Jose Maria Mendoza-Figueroa (cosine 0.05, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

1 (acknowledging Winstead and Havis but adhering to circuit precedent holding Application Note 1 valid) — *United States v. Keith White, 7th Cir., 2024*

1 (rejecting challenge that inchoate offenses were not controlled substance offenses on the ground that Court was bound by Mendoza-Figueroa) — *United States v. Remberto Rivera, 8th Cir., 2023*

1 (acknowledging that § 481.112 was distinguishable from a Wisconsin statute criminalizing the "deliver[y]" of a controlled substance because the former "could be violated 'by proving only an offer to sell'" (citing Hinkle, 832 F.3d at 576–77)) — *United States v. Jaime Campos, 8th Cir., 2023*

1 (holding a Wisconsin statute including "deliver" in its offense conduct qualified as a controlled substance offense) — *United States v. Jaime Campos, 8th Cir., 2023*

↑

286. National Cable Television Assn., Inc. v. United States

415 U.S. 336, SCOTUS, 1974
In 2020-24: cited by 10 decisions (appellate) · in all: 327 · 2021–2025: 17 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 367 citing opinions, filed 2004–2026: status now, not the year it changed)
Travels with: Gundy (cosine 0.03, 5 both)
How later courts describe it (47 parentheticals; groups of similar wording, largest first; other courts' words)

9 (holding that a fce payer enjoys benefits "not shared by other members of society") — *Anderson, Ind. T.C., 2001*

5 ("A fee, however, is incident to a voluntary act . . . .") — *Jerry Markadonatos v. Village of Woodridge, 7th Cir., 2014*

4 (discussing the significant differences between a tax and a fee) — *Donna M. Murillo v. W. Lewis Bambrick, Clerk of the Superior Court of New Jersey, 3rd Cir., 1982*

3 (statute should not be construed to delegate taxing power without appropriate standards) — *Geraghty v. United States Parole Commission, 3rd Cir., 1978*

3 ("Taxation is a legislative function, and Congress ... is the sole organ for levying taxes") — *Canadian Lumber Trade Alliance v. United States, Ct. Intl. Trade, 2006*

2 (construing statute narrowly to avoid delegation doctrine problems) — *Consumer Energy Council of America v. Federal Energy Regulatory Commission, D.C. Cir., 1982*

2 ("It would be such a sharp break with our traditions to conclude that Congress had bestowed on a federal agency the taxing power.") — *Trump, Fed. Cir., 2025*

2 (sense of Congress statement that services provided by federal agencies should be self-sustaining expressed policy underlying subsequent provision that authorized such agencies to prescribe fees for services) — *Chong Yia Yang v. State Of California Department Of Social Services, 9th Cir., 1999*

↑

287. Verizon Communications Inc. v. Federal Communications Commission

535 U.S. 467, SCOTUS, 2002
In 2020-24: cited by 10 decisions (appellate) · in all: 218 · 2021–2025: 11 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 246 citing opinions, filed 2008–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (60 parentheticals; groups of similar wording, largest first; other courts' words)

4 (describing the naturally monopolistic physical structure of a local telephone exchange) — *Brand X Internet, SCOTUS, 2005*

3 ("The fact is that without any better indication of meaning than the unadorned term, the word 'cost' ... is 'a chameleon,' ... a 'virtually meaningless' term....") — *Secretary of Labor v. Beverly Healthcare-Hillview, 3rd Cir., 2008*

3 (upholding FCC regulation linking "just and reasonable" rates only to forward-looking costs) — *Tcg New York, Inc. v. City Of White Plains, 2d Cir., 2002*

3 (rejecting a "plain-meaning argument [that] ignores the statutory setting in which [the provision at issue] occurs") — *Edward Campbell v. Allied Van Lines Inc., 9th Cir., 2005*

2 (upholding the FCC's TEL- RIC rate regulations) — *Qwest Corporation v. Arizona, 9th Cir., 2009*

2 ("Moreover, waiver is a flexible doctrine, too, so that when all the claimant asks for is a remand to permit the agency to consider an intervening decision — a decision the agency couldn't have considered earlier — the doctrine does not stand in the way." (quotation omitted)) — *Indiana Bell Telephone Company, Incorporated v. William D. Mccarty, 7th Cir., 2004*

2 (upholding the forward-looking cost methodology against the incumbents' challenge) — *New Engl Pub Comm v. FCC, D.C. Cir., 2003*

2 (emphasizing "the deregulatory and competitive purposes of the [1996] Act") — *Amer Cncl Educ v. FCC, D.C. Cir., 2006*

↑

288. South Florida Water Management District v. Miccosukee Tribe of Indians

541 U.S. 95, SCOTUS, 2004
In 2020-24: cited by 10 decisions (appellate) · in all: 121 · 2021–2025: 29 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 135 citing opinions, filed 2009–2025: status now, not the year it changed)
Travels with: Water Resources (cosine 0.07, 5 both)
How later courts describe it (36 parentheticals; groups of similar wording, largest first; other courts' words)

10 (observing that "a point source . . . need only convey the pollutant to 'navigable waters'") — *Upstate Forever v. Kinder Morgan Energy Partners, L.P., 4th Cir., 2018*

9 (explaining that "NPDES requires dischargers to obtain permits that place limits on the type and quantity of pollutants that can be released into the Nation's waters") — *Conservation Law Foundation, Inc. v. Town of Barnstable, D. Mass., 2022*

3 (interpreting the federal Clean Water Act without Florida's participation) — *School District of City of Pontiac v. Secretary of US Department of Education, 6th Cir., 2009*

2 ("[I]f one takes a ladle of soup from a pot... and pours it back into the pot, one has not 'added' soup or anything else to the pot" (internal quotation marks and brackets omitted)) — *S. D. Warren Co. v. Maine Board of Environmental Protection, SCOTUS, 2006*

2 ("No party disputes that ... pump station and, in particular, the pipes from which water is released constitute a point source....") — *Pg&e, 9th Cir., 2013*

2 (a storm drain that carried flushed chemicals from a toilet to the Colorado River was a "point source") — *Rapanos, SCOTUS, 2006*

2 (holding ditch or depression in the swale of a field "collected and channelized" pollutants and thus was a point source) — *Flint Riverkeeper, Inc. v. Southern Mills, Inc., M.D. Ga., 2017*

2 (observing that such "permits greatly reduce . . . administrative burden by authorizing discharges from a category of point sources within a specified geographic area") — *City and County of San Francisco v. EPA, SCOTUS, 2025*

↑

289. Pit River Tribe v. United States Forest Service

615 F.3d 1069, 9th Cir., 2010
In 2020-24: cited by 10 decisions (appellate) · in all: 43 · 2021–2025: 19 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 45 of 45 citing opinions, filed 2010–2026: status now, not the year it changed)
Travels with: Pollinator Stewardship Council v. U.S. Environmental Prot... (cosine 0.07, 5 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("Bureaucratic rationalization and bureaucratic momentum are real dangers, to be anticipated and avoided by the Secretary . . . We assume the Secretary will comply with the law.") — *Haaland, D. Alaska, 2021*

2 ("We review for an abuse of discretion the district court's equitable orders.") — *New Investments Inc. v. Altanatural Corporation, 9th*

Cir., 2019

1 ("[W]e presume that agencies will follow the law.") — *Conner, 10th Cir., 2019*

1 (defining injunction on basis of Black's Law Dictionary) — *Lydon, Mass. App. Ct., 2014*

1 ("To be appealable under section 1292(a)(1), as having the 'practical effect' of an injunction, the district court's order 'must (1) have the practical effect of entering an injunction, (2) have serious, perhaps irreparable, consequences, and (3) — *Tyrell Glass v. Fmm Enterprises, Inc., 9th Cir., 2019*

1 (tribe that challenged lease extensions could obtain 14 STATE OF ALASKA V. NAT'L MARINE FISHERIES SERV. decision "declin[ing] to extend [the] leases" on remand) — *State of Alaska v. National Marine Fisheries Service, 9th Cir., 2026*

1 (stating 21 that a "writ of mandamus has traditionally been used . . . to confine an inferior court to a lawful 22 exercise of its prescribed jurisdiction or to compel it to exercise its authority when it is its duty to 23 do so") — *Powelson, N.D. Cal., 2022*

1 (applying the three-prong inquiry to an appeal brought by non-agency litigants) — *Blm, 9th Cir., 2023*

↑

290. United States v. Juan Rivera-Constantino

798 F.3d 900, 9th Cir., 2015
In 2020-24: cited by 10 decisions (appellate) · in all: 23 · 2021–2025: 6 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 26 of 26 citing opinions, filed 2015–2024: status now, not the year it changed)
Travels with: Stinson (cosine 0.02, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[W]hen the plain meaning of a term is readily apparent from the text, context, and structure of the relevant Guidelines provision and commentary, that meaning is dispositive....") — *United States v. Taison McCollum, 4th Cir., 2018*

1 (same in the context of U.S.S.G. § 2L1.2(b)) — *Rodriguez-Rivera, 1st Cir., 2021*

1 ("We apply the traditional rules of statutory construction when interpreting the Sentencing Guidelines." (cleaned up) (quoting United States v. Flores, 729 F.3d 910, 914 n.2 (9th Cir. 2013)) — *United States v. Wesley Long, 9th Cir., 2024*

1 (concluding there is no need to ascertain whether § 846 conspiracy is a categorical match for generic conspiracy to determine that § 846 conspiracy qualifies as a "drug trafficking offense" within the meaning of USSG § 2L1.2) — *United States v. Edward Merritt, 8th Cir., 2019*

↑

291. Advanced Life Sys. Inc. v. Nat'l Labor Relations Bd.

898 F.3d 38, D.C. Cir., 2018
In 2020-24: cited by 10 decisions (appellate) · in all: 10 · 2021–2025: 7 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 10 of 10 citing opinions, filed 2020–2022: status now, not the year it changed)
Travels with: FCC v. Fox (cosine 0.02, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("A Section 8(a)(1) violation occurs when, considering all of the surrounding circumstances, the employer's conduct reasonably tended to interfere with an employee's exercise of her Section 7 collective action rights.") — *Napleton 1050, Inc. v. NLRB, D.C. Cir., 2020*

1 (vacating a Board order that left the employer "in a Catch-22") — *Everport Terminal Services Inc v. NLRB, D.C. Cir., 2022*

↑

292. Tenn. Hosp. Ass'n v. Alex M. Azar, II

908 F.3d 1029, 6th Cir., 2018
In 2020-24: cited by 10 decisions (appellate) · in all: 28 · 2021–2025: 16 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 28 of 28 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Perez (cosine 0.03, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[T]he fact that certain payments must be deducted from costs does not mean that other payments cannot be.") — *Children's Hospital Ass'n v. Alex Azar, D.C. Cir., 2019*

2 (holding that, because the challenged regulation did not comply with the notice and comment rule, a permanent injunction was warranted until the agency put forth a procedurally valid rule) — *ELI LILLY AND COMPANY v. HEALTH RESOURCES AND SERVICES ADMINISTRATION, S.D. Ind., 2021*

1 (courts interpret regulations according to their plain meaning) — *Nicholas Pasiak v. Comm'r of Soc. Sec., 6th Cir., 2019*

1 ("There is no tension, however, in Congress requiring third-party payment deductions in subsection (g)(2)(A) and allowing third-party payment deductions in subsection (g)(1)(A). The DSH payments provided for in (g)(2)(A) are above and beyond those mandated by (g)(1)(A) — *Children's Hospital Ass'n v. Alex Azar, D.C. Cir., 2019*

1 ("[A] rule that 'intends to create new law, rights or duties' is legislative.") — *Mann Construction, Inc. v. United States of America, E.D. Mich., 2020*

1 ("essence" of Congressional concern in enacting statute was "that hospitals were double dipping by collecting DSH payments to cover costs that had already been reimbursed") — *Children's Hospital Ass'n v. Alex Azar, D.C. Cir., 2019*

1 (reviewing a § 706(2)(C) challenge by applying the deferential standard for statutory interpretation described in Chevron, U.S.A. v. Natural Resources Defense Council, Inc., 467 U.S. 837, 842-43 (1984)) — *CHANDRASEKARAN, E.D. Mich., 2021*

1 (declaring the online interpretation procedurally invalid but upholding the Secretary's -5- substantive authority to adopt this interpretation) — *Missouri Hospital Association v. Alex Azar, II, 8th Cir., 2019*

↑

293. Uniontown Area School District v. Pennsylvania Human Relations Commission

455 Pa. 52, Pa., 1973
In 2020-24: cited by 10 decisions (appellate) · in all: 138 · 2021–2025: 7 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 165 citing opinions, filed 1988–2023: status now, not the year it changed)
Travels with: UCBR (cosine 0.06, 5 both)
How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

4 (as well as the United States Supreme Court in Chevron v. Natural Resources Defense Council, 467 U.S. 837, 104 S.Ct. 2778, 81 L.Ed.2d 694 (1984)) — *Bethenergy Mines Inc. v. Commonwealth, Department of Environmental Protection, Pa. Commw. Ct., 1996*

3 (an interpretive rule, as opposed to a legislative rule depends for its validity on the willingness of a reviewing court to say that it in fact tracks the meaning of the statute it interprets) — *Cunningham, Pa., 1986*

2 (Mr. Justice Pomeroy filed an opinion announcing the judgment of the court in which Mr. Justice Eagen (now Mr. Chief Justice) — *PA. HUM. REL. COM. v. Norristown Sch. Dist., Pa., 1977*

2 (upholding Commission order directing five school districts to remedy de facto segregation) — *Pa. HR Comm. v. Chester Hous. Auth., Pa., 1974*

2 (concurring opinion of Roberts, J., joined by Jones, C. J., and Nix, J.) — *Masland, Pa., 1977*

2 (reviewing court is not free to substitute its discretion for that of an administrative agency acting within its statutory powers) — *Blue Comet Diner v. Pennsylvania Human Relations Commission, Pa. Commw. Ct., 2006*

1 ("statutory provisions . . . evidence to us a legislative intent to empower the Commission to do a good deal more than merely interpret the Act") — *Commonwealth, Pa. Commw. Ct., 1977*

1 (the school districts of Philadelphia and Pittsburgh did not join in the petition for allocatur) — *Rankin, Pa. Commw. Ct., 1977*

↑

294. Vien-Phuong Thi Ho v. ReconTrust Co.

858 F.3d 568, 9th Cir., 2016
In 2020-24: cited by 10 decisions (appellate) · in all: 103 · 2021–2025: 34 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 106 citing opinions, filed 2017–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Obduskey, 586 U.S. 466 (2019) (50% of the 10 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Obduskey (cosine 0.05, 5 both)
How later courts describe it (53 parentheticals; groups of similar wording, largest first; other courts' words)

28 (finding that "actions taken to facilitate a non-judicial 5 foreclosure, such as sending the notice of default and notice of sale, are not attempts to collect 6 'debt' as that term is defined by the FDCPA") — *Faria, E.D. Cal., 2024*

6 (holding that an entity whose only role is the enforcement of security interests is not a debt collector under the Act) — *Obduskey, SCOTUS, 2019*

4 (stating that the language in the real property subdivision of § 1692i(a) demonstrates that Congress meant for a mortgage foreclosure to constitute a debt collection within the meaning of the FDCPA) — *Reichenbach, M.D. Penn., 2019*

2 ("When one interpretation of an ambiguous federal statute would create a conflict with state foreclosure law and another interpretation would not, respect for our federal system counsels in favor of the latter.") — *Ellison, N.D. Ill., 2018*

2 ("section 1692f(6) would protect a 15 consumer against the abusive practices of a security enforcer who does not fit the broader 16 definition of a debt collector") — *(PS) Ponthieux v. Nationstar Mortgage LLC, E.D. Cal., 2021*

2 (noting that foreclosure sale notices are designed to protect the debtor and holding that communicating with a homeowner about the foreclosure process is not debt collection activity subject to the FDCPA) — *Ruffner, D. Or., 2021*

1 (finding Glazef s reasoning unpersuasivé) — *Thompke, E.D. Mich., 2017*

1 ("Foreclosure is a traditional area of state concern.") — *Peters, D. Alaska, 2018*

↑

295. Nelson v. Reynolds

875 F.3d 11, D.D.C., 2017
In 2020-24: cited by 10 decisions (appellate) · in all: 40 · 2021–2025: 18 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 40 of 40 citing opinions, filed 2017–2026: status now, not the year it changed)
Travels with: NRDC (cosine 0.05, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[A]n agency is not required to make a new assessment under NEPA every time it takes a step that implements a previously studied action.") — *Friends of Animals v. U.S. Bureau of Land Management, D.D.C., 2021*

1 (explaining that an agency is not required to supplement an EIS whenever the agency later makes discretionary choices in implementing the project) — *Harrison County, Mississippi v. U.S. Army Corps of Engineers, S.D. Miss., 2021*

↑

296. Ladner v. United States

358 U.S. 169, SCOTUS, 1958
In 2020-24: cited by 9 decisions (appellate) · in all: 496 · 2021–2025: 11 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 630 citing opinions, filed 2008–2025: status now, not the year it changed)
Role changed 1980-84: likely successor Whalen, 445 U.S. 684 (1980) (40% of the 47 decisions citing this case in 1980-84 also cite it). (co-citation, not the text)
Travels with: Wiltberger (cosine 0.04, 5 both)
How later courts describe it (72 parentheticals; groups of similar wording, largest first; other courts' words)

26 (holding that the single discharge of a shotgun wounding two federal officers constituted only a single act of assault) — *United States v. Morris O'Neal Davis, 5th Cir., 1981*

6 ("[T]he Court will not interpret a federal criminal statute so as to increase the penalty that it places on an individual when such an interpretation can be based on no more than a guess as to what Congress intended") — *Said, E.D. Va., 2010*

4 ("When Congress leaves to the Judiciary the task of imputing to Congress an undeclared will, the ambiguity should be resolved in favor of lenity.") — *Ex Parte Forward, Tex. Crim. App., 2008*

4 (stating that the rule of lenity applies only when neither the wording of the statute or the legislative history points clearly to a single meaning of a statute) — *State v. J. Bradshaw, Idaho Ct. App., 2013*

3 ("Neither the wording of the statute nor its legislative history points clearly to either [of two permissible] meaning[s]. In that circumstance, this Court applies a policy of lenity and adopts the less harsh meaning.") — *United States v. Jose Blas Vasquez-Olvera, 5th Cir., 1993*

3 (single discharge of gun which harmed two victims held to be a single offense under federal assault statute) — *Daniel J. Neville v. Robert H. Butler, Sr., Warden, Louisiana State Penitentiary, 5th Cir., 1989*

3 (single discharge from shotgun that injured two federal officers supports only one count of assault with a deadly weapon) — *Richardson v. State, Ind., 1999*

2 (now 18 U.S.C. sec. 111 (1976)) — *Paino, Ill. App. Ct., 1985*

↑

297. Massachusetts Trustees of Eastern Gas & Fuel Associates v. United States

377 U.S. 235, SCOTUS, 1964
In 2020-24: cited by 9 decisions (appellate) · in all: 113 · 2021–2025: 21 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 128 citing opinions, filed 1975–2026: status now, not the year it changed)
Travels with: Securities & Exchange Commission v. Chenery Corp. (cosine 0.02, 5 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

3 (congressional reenactment has no interpretive effect where regulations clearly contradict requirements of statute) — *Brown, SCOTUS, 1994*

2 (remand more appropriate when improper procedure employed or relevant criteria misemployed than when other type of administrative mistake made) — *Jane Doe v. Robert E. Hampton, Individually and as Chairman, U. S. Civil Service Commission, D.C. Cir., 1977*

2 (finding reversal unwarranted "when a mistake of the administrative body is one that clearly had no bearing on ... the substance of decision reached") — *DEA, D.C. Cir., 2006*

2 (holding that Chen- ery does not require a remand where it is clear that any arguable error would not have made a difference in the agency determination) — *Cao He Lin, A/K/A Je Ling Chao v. United States Department of Justice and Attorney General Gonzales, 2d Cir., 2005*

1 ("Some weight is due to the consistent interpretation of the Maritime Commission: the agency entrusted with administration of the statute.") — *Joseph F. Dugan v. Arch Ramsay, Director of the Office of Personnel Management, 1st Cir., 1984*

1 ("the Commission's failure to indicate ... the source of its power is without legal significance") — *BAYLOR UNIVERSITY MEDICAL CENTER, Plaintiff-Appellee, v. Margaret M. HECKLER, Secretary of Health and Human Services, Defendant-Appellant, 5th Cir., 1985*

1 (noting that "the word ['shall'] does not of linguistic necessity denote a maximum") — *Flock, 1st Cir., 2016*

1 (holding that even though an administrative body's stated basis of authority was in error, it maintained the requisite authority such that the error would have no bearing on the substance of the decision and remand was not appropri ate) — *Jewell, E.D. Cal., 2014*

↑

298. New Process Steel, L. P. v. National Labor Relations Board

560 U.S. 674, SCOTUS, 2010
In 2020-24: cited by 9 decisions (appellate) · in all: 177 · 2021–2025: 19 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 204 citing opinions, filed 2013–2026: status now, not the year it changed)
Role changed 2015-19: likely successor Nat'l Labor Relations Bd. v. Canning, 134 S. Ct. 2550 (2014) (52% of the 33 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)

Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (38 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** (holding that, following a delegation of the NLRB's powers to a three-member group, two members cannot continue to exercise that delegated authority once the group's (and the Board's) membership falls to two) — *National Labor Relations Board v. Enterprise Leasing Co. Southeast, LLC, 4th Cir., 2013*
- **4** (explaining that, faced with an impending loss of a quorum, the Board "decided to take action in an effort to preserve the Board's authority to function," delegating (1) — *Osthus, 8th Cir., 2011*
- **3** ("[W]e are not persuaded . . . that we should read the statute to authorize the Board to act with only two members . . . .") — *Valley Hospital Medical Center, Inc. v. National Labor Relations Board, 9th Cir., 2024*
- **3** (holding that the Board cannot exercise its powers absent a lawfully appointed quorum) — *New York Party Shuttle v. NLRB, 5th Cir., 2021*
- **2** (summarizing 29 U.S.C. § 153(b)) — *SSC Mystic Operating Co., LLC v. National Labor Relations Board, D.C. Cir., 2015*
- **2** (without a quorum of three, the Board cannot act) — *Paulsen, 2d Cir., 2014*
- **2** (second petition for review filed in and adjudicated by the Second Circuit) — *Heartland Plymouth Court MI, LLC v. National Labor Relations Board, D.C. Cir., 2016*
- **2** ("[T]he Senate did not recess intra- session for more than three days at a time for over a year beginning in late 2007.") — *Recess Appointments Amid Pro Forma Senate Sessions, OLC, 2012*

↑

299. Wabash Valley Power Ass'n v. Federal Energy Regulatory Commission

268 F.3d 1105, D.C. Cir., 2001
In 2020-24: cited by 9 decisions (appellate) · in all: 34 · 2021–2025: 12 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 36 of 36 citing opinions, filed 2001–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (final agency action is fit for judicial decision) — *Haaland, D.D.C., 2024*
- **1** (describing the Federal Power Act's exhaustion requirement as an "unusually strict requirement") — *FERC, D.C. Cir., 2023*
- **1** (allowing power association to sue because of allegedly illegal under-regulation of merging utility companies: "In this case, as a competitor crying foul, Wabash satisfies prudential standing requirements.") — *White Stallion Energy Center, LLC v. Environmental Protection Agency, D.C. Cir., 2014*
- **1** (considering a claim that was not raised below because it was based on a report issued several months after the rehearing request) — *FERC, D.C. Cir., 2023*

↑

300. American Hospital Association v. Otis R. Bowen, Secretary, H.H.S.

834 F.2d 1037, D.C. Cir., 1987
In 2020-24: cited by 9 decisions (appellate) · in all: 203 · 2021–2025: 19 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green (read 219 of 219 citing opinions)
Travels with: Perez (cosine 0.03, 5 both)
How later courts describe it (46 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** ("Substantive rules are ones which grant rights, impose obligations, or produce other significant effects on private interests") — *OSHA, D.C. Cir., 1999*
- **4** (interpretive rules, which do not require notice and comment, "are those which merely clarify or explain existing law or regulations")
- **2** ("We believe the plain meaning of the exemption codified in 42 U.S.C. § 1320c-2(e) — *Authority to Employ White House Office Personnel Exempt From the Annual and Sick Leave Act Under 5 U.S.C. § 6301(2)(x) and (xi) During an Appropriations Lapse, OLC, 2011*
- **2** ("Section 553 of the Administrative Procedure Act requires agencies to afford notice of a proposed rulemaking and an opportunity for public comment prior to a rule's promulgation, amendment, modification, or repeal.") — *California by and through Becerrav. U.S. Dep't of the Interior, N.D. Cal., 2019*
- **2** (" ' "regulations," "substantive rules," or "legislative rules" are those which create law' ") — *Azar, SCOTUS, 2019*
- **2** ("[T]he mere fact that a rule may have a substantial impact does not transform it into a legislative rule.") — *Tafas, Fed. Cir., 2009*
- **2** ("procedural" rules, those that are "legitimate means of structuring [the agency's] enforcement authority," are exempt from the APA notice and comment requirement)
- **2** (rules promulgated in compliance with rulemaking procedures of federal APA, 5 U.S.C. § 553, have the "force of law," while agency policies do not) — *JE Dunn Northwest, Inc. v. DEPT. OF LABOR & INDUSTRIES, Wash. Ct. App., 2007*

↑

301. North Carolina Department of Revenue v. Hudson

196 N.C. App. 765, N.C. Ct. App., 2009
In 2020-24: cited by 9 decisions (appellate) · in all: 25 · 2021–2025: 9 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster

Good law: green? (read the newest 26 of 26 citing opinions, filed 2009–2025: status now, not the year it changed)
Travels with: Rodriguez (cosine 0.04, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("When a legislative body includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that the legislative body acts intentionally and purposely in the disparate inclusion or exclusion.") — *Cooper, 4th Cir., 2016*
- **1** ("Where the language of a statute is clear and unambiguous, there is no room for judicial construction and the courts must construe the statute using its plain meaning.") — *Rone, N.C. Ct. App., 2010*

↑

302. United States v. Rogelio Ruiz

777 F.3d 315, 6th Cir., 2015 • Unpublished
In 2020-24: cited by 9 decisions (appellate) · in all: 22 · 2021–2025: 13 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 22 of 22 citing opinions, filed 2015–2026: status now, not the year it changed)
Role changed 2020-24: likely successor United States v. Jeffery Havis, 927 F.3d 382 (2019) (56% of the 9 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: United States v. Jeffery Havis (cosine 0.03, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("[A] straightforward reading of Ruiz's sentencing hearing indicates that the district court did recognize its authority to depart and/or vary and that it simply declined to do so.") — *United States v. Ronald DiPietro, 6th Cir., 2025*
- **1** ("We do not require that a district court explicitly state that it is aware of its discretion . . . .") — *United States v. Ronald DiPietro, 6th Cir., 2025*
- **1** (rejecting argument that "the district court gave the guidelines unreasonable weight" when "the district court considered the guidelines range in conjunction with the other § 3553(a) sentencing factors") — *United States v. Amaris Wyman, 6th Cir., 2020*
- **1** (finding waiver where defendant "agreed" to the calculation and "even explained the basis for his agreement") — *United States v. Jeremy Beck, 6th Cir., 2021*

↑

303. United States v. Baha Jaffal

79 F.4th 582, 6th Cir., 2023
In 2020-24: cited by 9 decisions (appellate) · in all: 18 · 2021–2025: 18 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 18 of 18 citing opinions, filed 2024–2026: status now, not the year it changed)
Travels with: United States v. Xiaorong You (cosine 0.07, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (explaining that "[l]aw-enforcement officers are 'routinely allowed to testify that circumstances are consistent with [the] distribution of drugs rather than personal use.'" (alteration in original) (emphasis added) — *United States v. Yanjun Xu, 6th Cir., 2024*
- **1** (instruction required; 36 grams of heroin) — *United States v. Terrence Jordan, 6th Cir., 2024*
- **1** ("acknowledging an . . . intra-circuit split regarding the standard of review for Rule 404(b) — *United States v. Jesse Fairley, 6th Cir., 2025*

↑

304. Swayne & Hoyt, Ltd. v. United States

300 U.S. 297, SCOTUS, 1937
In 2020-24: cited by 8 decisions (appellate) · in all: 183 · 2021–2025: 13 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 210 citing opinions, filed 1956–2024: status now, not the year it changed)
Travels with: Brown & Williamson (cosine 0.02, 5 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("It is well settled that Congress may, by enactment not otherwise inappropriate, ratify ... acts which it might have authorized, and give the force of law to official action unauthorized when taken.") — *District of Columbia Fire & Emergency Medical Services Department v. District of Columbia Public Employee Relations Board, D.C., 2014*
- **1** (no unfair retroactivity where statute affects remedies rather than substantive rights) — *United States v. Ataka America, Inc., Ct. Intl. Trade, 1993*
- **1** (Congress may by enactment ratify acts which it might have authorized) — *Equal Employment Opportunity Commission, Cross-Appellee v. First Citizens Bank of Billings, Cross-Appellant, 1st Cir., 1985*
- **1** (Congress may use its plenary power to "ratify [agency] acts which it might have authorized, and give the force of law to official action unauthorized when taken" (citations omitted)) — *Patchak, D.D.C., 2015*
- **1** (validating statute was constitutional where consequences of retroactive application were free of elements of novelty and surprise) — *Canisius College v. United States, 2d Cir., 1986*

↑

305. Grand Canyon Air Tour Coalition v. Federal Aviation Administration

154 F.3d 455, D.C. Cir., 1998
In 2020-24: cited by 8 decisions (appellate) · in all: 69 · 2021–2025: 15 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 77 of 77 citing opinions, filed 1998–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 5 both)
How later courts describe it (19 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("we may consider only the regulatory rationale actually offered by the agency during the development of the regulation") — *FDA, D.C. Cir., 2021*
- **2** ("An agency must … demonstrate the rationality of its decision-making process by responding to those comments that are relevant and significant.") — *Coinbase Inc v. SEC, 3rd Cir., 2025*
- **2** (finding a rule was not arbitrary and capricious because it would achieve the statutory mandate in conjunction with other proposed rules within a reasonable timeframe) — *FRA, D.C. Cir., 2021*
- **2** (denying mandamus partly because "this is not a case where an agency has been contumacious in ignoring court directions to expedite decision-making") — *In Re: Aiken County, D.C. Cir., 2013*
- **1** ("An agency is required to provide a meaningful opportunity for comments, which means that the agency's mind must be open to considering them." (citing McLouth Steel Prods. Corp. v. Thomas, 838 F.2d 1317, 1323 (D.C. Cir. 1988))) — *3M Company and Subsidiaries, Tax Ct., 2023*
- **1** ("[f]ortunately for the government," National Park Service offered "adequate and reasonable justification" for its action in separate report and final rule "elaborated on that explanation") — *FDA, D.C. Cir., 2021*
- **1** (declining to find unreasonable delay and order the "immediate 21 imposition" of a drastic remedy that may have unintended consequences where Congress 22 contemplated the development rather than implementation of a plan within the statutory 23 timeframe) — *Center for Biological Diversity v. United States Fish and Wildlife Service, D. Ariz., 2025*
- **1** (determining whether agency's reliance on the one-step-at-a- time doctrine was arbitrary and capricious) — *Center for Biological Diversity v. Environmental Protection Agency, D.C. Cir., 2013*

↑

306. Heartland Regional Medical Center v. Sebelius

566 F.3d 193, D.C. Cir., 2009
In 2020-24: cited by 8 decisions (appellate) · in all: 88 · 2021–2025: 28 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 90 of 90 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 5 both)
How later courts describe it (23 parentheticals; groups of similar wording, largest first; other courts' words)

- **11** ("When an 16 agency may be able readily to cure a defect . . . the first factor in Allied–Signal counsels remand without vacatur.") — *Organic Trade Association v. United States Department of Agriculture, D.D.C., 2022*
- **4** ("Failure to provide the required notice and to invite public comment ... is a fundamental flaw that 'normally' requires vacatur of the rule.") — *Air Transp. Ass'n of Am., Inc. v. U.S. Dep't of Agric., D.C. Cir., 2018*
- **2** ("[W]e think it sufficient for the purpose of the second Allied-Signal factor that vacatur of the rural location requirement would have raised substantial doubt about HHS's ability to recoup payments it made for years prior to reinstatement of that requirement.") — *Azar, D.C. Cir., 2019*
- **2** ("[V]acatur need not be the remedy for an invalidly adopted rule.") — *Air Transp. Ass'n of Am., Inc. v. U.S. Dep't of Agric., D.C. Cir., 2018*
- **1** ("[T]he terms 'invalid' and 'vacated' are not synonyms.") — *Wheeler, D.D.C., 2020*
- **1** (determining that remand without vacatur was justified because "vacatur of the . . . requirement would have raised substantial doubt about HHS's ability to recoup payments it made for years prior to reinstatement of that requirement") — *CENTER FOR FOOD SAFETY V. MICHAEL REGAN, 9th Cir., 2022*
- **1** (observing that there was no dispute that "a principle announced in adjudication is necessarily retroactive" (citing Rivers v. Roadway Express, Inc., 511 U.S. 298, 311–12 (1994))) — *Robert W Mauthe MD PC v. Millennium Health LLC, 3rd Cir., 2023*
- **1** (holding that second Allied–Signal factor weighed against vacatur because vacating the rule "would have required HHS to make payments to those 1 The Coast Guard's statutory rate-making authority is governed by 46 U.S.C. § 9303(f) — *Zukunft, D.D.C., 2018*

↑

307. Theodore Roosevelt Conservation Partnership v. Salazar

661 F.3d 66, D.C. Cir., 2011
In 2020-24: cited by 8 decisions (appellate) · in all: 100 · 2021–2025: 30 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 100 of 102 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 5 both)
How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (finding as moot superseded agency Record of Decision that had "no current force or effect") — *Carmichael, D.D.C., 2022*
- **2** ("Our general presumption that a federal agency will follow its own regulations therefore stands.") — *Organic Trade Ass'n v. U.S.*

Dep't of Agric., D.C. Cir., 2019

2 ("If it becomes impossible for the court to grant any effectual relief whatever to a prevailing party on particular claim, that claim must be dismissed." (internal marks omitted)) — *Organic Trade Ass'n v. U.S. Dep't of Agric., D.C. Cir., 2019*

2 (finding reasonable a stated purpose and need "to act upon the Proponents' proposal to revise ... [a] [record of decision] to expand the level of development by drilling 4,399 new producing wells and to relax seasonal restrictions in certain areas" (internal quotation marks omitted)) — *Beaudreau, D.D.C., 2014*

1 ("TRCP seeks relief . . . based on the Bureau [of Land Management's] failure to enforce the 2000 Record of Decision. But that Record of Decision no longer exists; the Bureau's 2008 Record of Decision superseded the 2000 Record of Decision 'in its entirety.'") — *Black Warrior River-Keeper Inc v. US Environmental Protection Agency, N.D. Ala., 2021*

1 ("Put simply, NEPA ensures 'a fully informed and well-considered decision, not necessarily the best decision." ' (quoting Theodore Roosevelt Conservation P'ship, 6 16 F.3d at 503)) — *Alaska v. United States Department of Agriculture, D.D.C., 2017*

1 ("The EIS is a detailed analysis, prepared with expert assistance, of the projected environmental impact of a proposed major federal action.") — *Haaland, D.D.C., 2025*

1 ("If the agency's objectives are reasonable, we will uphold the agency's selection of alternatives that are reasonable in light of those objectives.") — *FERC, D.C. Cir., 2025*

↑

308. United States v. Lambert

498 F.3d 963, 9th Cir., 2007
In 2020-24: cited by 8 decisions (appellate) · in all: 33 · 2021–2025: 8 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 35 of 35 citing opinions, filed 2008–2024: status now, not the year it changed)
Travels with: Stinson (cosine 0.03, 5 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

3 (abuse of discretion standard of review) — *Lomeli-Mences, 9th Cir., 2009*

2 (agent of indian tribe's education department) — *Treadwell, 9th Cir., 2010*

2 ("[A] defendant's exploitation of his victim's charitable impulses is not required.") — *Treadwell, 9th Cir., 2010*

2 ("The Guidelines, including enhancements, are ordinarily applied in light of available commentary, including application notes.") — *United States v. Lonnie Parlor, 9th Cir., 2021*

2 (surveying the circuits and rejecting defendant's argument that the guideline requires "exploitation of a charitable impulse" even though all examples in the commentary involve such an exploitation) — *Treadwell, 9th Cir., 2010*

1 ("[The Guide- UNITED STATES v. CALVERT 393 lines'] commentary is generally authoritative unless it violates the Constitution or a federal statute, or is inconsistent with, or a plainly erroneous reading of, that guideline" (internal quota- tion marks omitted)) — *Calvert, 9th Cir., 2008*

1 (disregarding the commentary to the degree it is inconsistent with the plain language of the guidelines) — *United States v. June Wolverine, 9th Cir., 2014*

↑

309. American Farm Bureau Federation v. United States Environmental Protection Agency

792 F.3d 281, 3rd Cir., 2015
In 2020-24: cited by 8 decisions (appellate) · in all: 44 · 2021–2025: 19 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 47 of 47 citing opinions, filed 2015–2025: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 5 both)
How later courts describe it (24 parentheticals; groups of similar wording, largest first; other courts' words)

3 (standing to challenge TMDL where "even if the TMDL does not cause injury by itself, it will give way to requirements," which will "cause compliance costs for [the plaintiff], a classic injury-in-fact") — *City of Kennett v. Envtl. Prot. Agency, 8th Cir., 2018*

2 (explaining the role of reasonable assurances in TMDLs) — *Maryland Attorney General Opinion 104OAG003, Md. Att'y Gen., 2019*

2 (illustrating EPA's use of "reasonable assurance[s]" in adopting a TMDL) — *Maryland Attorney General Opinion 104OAG003, Md. Att'y Gen., 2019*

2 ("TMDLs set the maximum amount of pollution a water body can absorb before violating applicable water quality standards." (emphases added)) — *Natural Res. Def. Council, Inc. v. Envtl. Prot. Agency, D.C. Cir., 2018*

2 (noting "courts" consistent determinations that 'total maximum daily load' is ambiguous") — *Natural Res. Def. Council, Inc. v. Envtl. Prot. Agency, D.C. Cir., 2018*

2 (rejecting a similar "textual argument at Step One" of Chevron and approving a TMDL that, among other things, "allocat[ed] ... pollution levels among different kinds of sources" and prescribed "a timeframe for complying with [its] requirements") — *Natural Res. Def. Council, Inc. v. Envtl. Prot. Agency, D.C. Cir., 2018*

2 (explaining that TMDLs arise after a state enacts water quality standards pursuant to its laws as required by the Clean Water Act) — *Dept. of Env. v. Assateague Coastal Trust, Md., 2023*

1 (listing drainpipes at wastewater treatment plants as an example) — *Sierra Club v. United States Environmental Protection Agency, S.D.W. Va, 2024*

↑ **310. United States v. Martinez-Cruz**
836 F.3d 1305, 10th Cir., 2016
In 2020-24: cited by 8 decisions (appellate) · in all: 14 · 2021–2025: 7 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 16 of 16 citing opinions, filed 2018–2024: status now, not the year it changed)
Travels with: Stinson (cosine 0.03, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (applying categorical approach analysis to determine whether a conviction for possession with intent to distribute marijuana in violation of 21 U.S.C. § 846 was an aggravated felony conviction under the illegal reentry Guideline) — *United States v. Taison McCollum, 4th Cir., 2018*
- **1** ("There are two major strands of precedent in the Tenth Circuit involving the Guidelines and categorical approach. The first emphasizes the Taylor categorical approach, the second emphasizes the Sentencing Commission's intent.") — *Jones, 10th Cir., 2022*
- **1** (explaining that § 846 was "a categorical mismatch for the generic definition of 'conspiracy'" in the commentary to U.S.S.G. § 2L1.2 because the general requirements of conspiracy include an overt act, while § 846 does not) — *Lewis, 1st Cir., 2020*
- **1** (holding in the context of U.S.S.G. § 2L1.2(b) that section 846 is a categorical mismatch with generic conspiracy and that therefore the enhancement did not apply) — *Rodriguez-Rivera, 1st Cir., 2021*
- **1** (holding § 846 conspiracy is not a categorical match for generic conspiracy and therefore not a "drug trafficking offense" within the meaning of USSG § 2L1.2) — *United States v. Edward Merritt, 8th Cir., 2019*

↑ **311. Ludimilla Ramos Da Silva v. Attorney General United States**
948 F.3d 629, 3rd Cir., 2020
In 2020-24: cited by 8 decisions (appellate) · in all: 19 · 2021–2025: 13 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 19 of 19 citing opinions, filed 2020–2025: status now, not the year it changed)
Travels with: Kisor (cosine 0.02, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("In determining whether language is unambiguous, we read the statute in its ordinary and natural sense.") — *Fudge, M.D. Penn., 2025*
- **1** (quoting, among others, Black's Law Dictionary) — *M.N., D.N.J., 2022*
- **1** ("To ascertain the ordinary meaning of words, we refer to standard reference works such as legal and general dictionaries.") — *Fudge, M.D. Penn., 2025*
- **1** (hold- ing that, in immigration law, "connected to" unambiguously means "having a causal or logical relationship") — *United States v. Lesandro Perez, 3rd Cir., 2021*
- **1** ("VAWA cancellation of removal is 'intended to ameliorate the impact of harsh provisions of immigration law on abused women.'" (citation omitted)) — *L-L-P, BIA, 2021*

↑ **312. Willie Goffney, Jr. v. Xavier Becerra**
995 F.3d 737, 9th Cir., 2021
In 2020-24: cited by 8 decisions (appellate) · in all: 32 · 2021–2025: 32 · weight in the sub-cluster 1
Fit: 100% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster
Good law: green? (read the newest 32 of 32 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: National Ass'n of Home Builders v. Defenders of Wildlife (cosine 0.04, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (describing the regulation as including "any proffered evidence excluded by the adjudicator") — *Becerra, S.D.N.Y., 2025*
- **1** ("The parties direct us to various other provisions of the regulations. One supports Goffney's reading and others support the government's, and they do not clearly resolve the ambiguity.") — *M & T Farms v. Federal Crop Insurance Corporation, 9th Cir., 2024*
- **1** ("[T]he agency [need not] engage in an exhaustive interpretive discussion—even an interpretation implicit in an agency's order can reflect the agency's 'fair and considered judgment.'") — *M & T Farms v. Federal Crop Insurance Corporation, 9th Cir., 2024*
- **1** (recognizing HHS's "core expertise . . . [in] the administration of the Medicare program") — *Raizel Blumberger v. Ian Tilley, 9th Cir., 2024*

↑ **313. Sierra Club v. Federal Energy Regulatory Commission**
867 F.3d 1357, D.C. Cir., 2017
In 2020-24: cited by 37 decisions (appellate) · in all: 108 · 2021–2025: 60 · weight in the sub-cluster 45
Fit: 97% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 3%)
Good law: green? (read the newest 100 of 110 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.15, 8 both); FERC (cosine 0.12, 9 both); FERC (cosine 0.12, 6 both)
How later courts describe it (33 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("NEPA directs agencies only to look hard at the environmental effects of their decisions, and not to take one type of action or another.") — *Jewell, D.C. Cir., 2018*

3 (concluding that "at a minimum, FERC should have estimated the amount of power-plant carbon emissions that the pipelines will make possible") — *In re Applications of Enbridge Energy, Ltd., Minn. Ct. App., 2019*

2 (rejecting use of the adder) — *PSC, Mont., 2020*

2 ("[T]he agency's choice among reasonable analytical methodologies is entitled to deference." (citation omitted)) — *Indian River Cnty. v. Dep't of Transp., D.C. Cir., 2018*

2 ("[B]ecause NEPA does not create a private right of action, we can entertain NEPA-based challenges only under the [APA] and its deferential standard of review.") — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2020*

2 (holding that the "goal of an environmental-justice analysis is satisfied if an agency recognizes and discusses a project's impacts on predominantly-minority communities") — *Standing Rock Sioux Tribe v. U.S. Army Corps of Eng'rs, D.C. Cir., 2017*

1 (vacating agency approval of interstate natural-gas pipelines) — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2020*

1 ("The question whether an agency order is severable turns on agency intent.") — *Truck Trailer Manufacturers Association v. EPA, D.C. Cir., 2021*

↑

314. HASHMI

24 I. & N. Dec. 785, BIA, 2009

In 2020-24: cited by 30 decisions (appellate) · in all: 193 · 2021–2025: 26 · weight in the sub-cluster 36

Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 4%)

Good law: green? (read the newest 100 of 196 citing opinions, filed 2015–2026: status now, not the year it changed)

Role changed 2020-24: likely successor L-A-B-R, 27 I. & N. Dec. 405 (2018) (43% of the 30 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: RAJAH (cosine 0.23, 6 both); Jesus Zuniga Romero v. William Barr (cosine 0.11, 5 both); SANCHEZ SOSA (cosine 0.10, 8 both)

How later courts describe it (55 parentheticals; groups of similar wording, largest first; other courts' words)

6 (stating that the "number and length of prior continuances are not alone determinative") — *M-J-K, BIA, 2016*

5 (encouraging administrative closure in appropriate cir- cumstances) — *Yeison Meza Morales v. William Barr, 7th Cir., 2020*

4 ("[D]iscretion should be favorably exercised where a prima facie approvable visa petition and adjustment application have been submitted_") — *Erika Rodriguez v. Eric Holder, Jr., 5th Cir., 2013*

3 (discussing approval of I-130 as predicate to consideration for adjustment of status in removal proceedings) — *Ginters, 8th Cir., 2010*

3 (noting that prior visa petitions "or other evidence of potential fraud or dilatory tactics may impact the viability of the visa petition underlying the motion.") — *Owusu, 3rd Cir., 2012*

2 ("[A] history of continuances ..., coupled with other relevant factors, may support a decision to move forward with the case.") — *Peato Tominiko v. Eric Holder, Jr., 9th Cir., 2013*

2 (stating that "[o]nce the I-130 is approved and an immigrant visa is immediately available," the respondent must "establish eligibility for adjustment of status" and "demonstrate that he has been inspected and admitted or paroled into the United States") — *Ulises Tadeo-Vasquez v. Merrick Garland, 9th Cir., 2023*

2 (stating that "an Immigration Judge's discretionary decision denying a continuance will not be reversed on appeal unless the respondent establishes that the denial caused him actual prejudice and harm, and it materially affected the outcome of his case.") — *Owusu, 3rd Cir., 2012*

↑

315. United States v. Trey Campbell

22 F.4th 438, 4th Cir., 2022

In 2020-24: cited by 40 decisions (appellate) · in all: 71 · 2021–2025: 71 · weight in the sub-cluster 49

Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:9.4 Texas Anders procedure in the 2020s, incl. parental-termination appeals, 4%)

Good law: green (read 71 of 71 citing opinions)

Role changed 2025-29: likely successor United States v. Jarvis Jackson, 127 F.4th 448 (2025) (30% of the 20 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)

Travels with: United States v. Lenair Moses (cosine 0.21, 13 both); United States v. Aumbrey Winstead (cosine 0.12, 5 both); United States v. Montes Miller (cosine 0.10, 6 both)

How later courts describe it (26 parentheticals; groups of similar wording, largest first; other courts' words)

4 (holding that West Virginia offense of delivery of crack cocaine, which could include attempted delivery, was not a "controlled substance offense" under the Guidelines) — *United States v. Johnl White, 4th Cir., 2025*

2 (observing that the crime of violence definition "explicitly includes attempt offenses") — *United States v. Lokheim Jeralle Campbell, 4th Cir., 2024*

2 (holding defendant's conviction under West Virginia drug distribution statute criminalizing attempt offenses swept more broadly than Guidelines' definition of "controlled substance offense") — *United States v. Jordan Boone, 4th Cir., 2023*

2 (warning that deference to Application Note 1 permits "circumvention of the checks Congress put on the Sentencing Commission") — *Vargas, 5th Cir., 2023*

2 (holding that attempt offenses are not controlled substance offenses for purposes of USSG § 4B1.2(b)) — *United States v. Patrick Shine, 4th Cir., 2023*

1 (noting circuit split on issue) — *United States v. Johnson, D.D.C., 2022*

1 (applying Kisor to guidelines commen- tary) — *United States v. Christopher Johnson, 7th Cir., 2024*

1 (adopting the Kisor framework for Guidelines challenges) — *United States v. Willie Lilly, 4th Cir., 2026*

↑

316. National Broadcasting Co. v. United States

319 U.S. 190, SCOTUS, 1943

In 2020-24: cited by 20 decisions (appellate) · in all: 661 · 2021–2025: 46 · weight in the sub-cluster 34

Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 4%)

Good law: green? (read the newest 100 of 781 citing opinions, filed 2006–2026: status now, not the year it changed)

Role changed 1980-84: likely successor NCCB, 436 U.S. 775 (1978) (56% of the 52 decisions citing this case in 1980-84 also cite it). (co-citation, not the text)

Travels with: Yakus (cosine 0.14, 9 both); New York Central Securities Corporation v. United States (cosine 0.11, 7 both); Adkins (cosine 0.09, 6 both)

How later courts describe it (112 parentheticals; groups of similar wording, largest first; other courts' words)

52 (upholding delegation to Federal Communications Commission to regulate broadcast licensing "as public interest, convenience, or necessity" require) — *Mistretta, SCOTUS, 1989*

7 (holding that because radio is a medium with inherent limitations and everyone who might seek to broadcast cannot, the "right of free speech does not include ... the right to use the facilities of radio without a license") — *United States v. Any & All Radio Station Equipment, S.D.N.Y., 2000*

6 (government may not "choose among applicants upon the basis of their political, economic or social views, or upon any other capricious basis") — *News America Publishing, Inc. v. Federal Communications Commission, the Committee for Media Diversity, Wilbert A. Tatum, Intervenors, D.C. Cir., 1988*

3 ("If time and changing circumstances reveal that the 'public interest' is not served by application of the Regulations, it must be assumed that the Commission will act in accordance with its statutory obligations.") — *Prometheus Radio Project v. Federal Communications Commission, 3rd Cir., 2004*

3 ("Local program service is a vital part of community life. A station should be ready, able, and willing to serve the needs of the local community....") — *Prometheus Radio Project v. Federal Communications Commission, 3rd Cir., 2004*

2 (government may regulate conflicting parades) — *Home Box Office, Inc. v. Federal Communications Commission and United States of America, Professional Baseball, Intervenors, D.C. Cir., 1977*

2 ("comprehensive powers to promote and realize the vast potentialities of radio") — *Head, SCOTUS, 1963*

2 ("Since the very inception of federal regulation (of broadcasting), comparative considerations as to the services to be rendered have governed the application of the standard of 'public interest, convenience, or necessity.' ")

↑

317. Vahora v. Holder

626 F.3d 907, 7th Cir., 2010

In 2020-24: cited by 11 decisions (appellate) · in all: 58 · 2021–2025: 11 · weight in the sub-cluster 29

Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 4%)

Good law: green? (read the newest 61 of 61 citing opinions, filed 2011–2026: status now, not the year it changed)

Role changed 2020-24: likely successor CASTRO-TUM, 27 I. & N. Dec. 271 (2018) (100% of the 11 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: W-Y-U (cosine 0.28, 10 both); GUTIERREZ (cosine 0.18, 9 both); AVETISYAN (cosine 0.12, 11 both)

How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

3 (court of appeals has jurisdiction to review denial of administrative closure for abuse of discretion) — *Ivan Cadavedo v. Loretta Lynch, 7th Cir., 2016*

2 ("In sum, the decision to deny administrative closure … is within our cognizance.") — *Hector Zelaya Diaz v. Jeffrey A. Rosen, 7th Cir., 2021*

2 (when reviewing a decision to deny administrative clo- sure, "[w]e apply ordinary judicial standards to determine whether the [immigration judge] abused his discretion. . . .") — *Hector Zelaya Diaz v. Jeffrey A. Rosen, 7th Cir., 2021*

2 ("[A]dministrative closure is not a practice specified in the statute, nor is it mentioned in the current regulations.") — *CASTRO-TUM, BIA, 2018*

2 (noting that the general power to administratively close a case is employed by quasi-judicial bodies for "orderly management of the docket" and is reviewable by courts) — *Abner Arcos Sanchez v. Attorney General United States, 3rd Cir., 2021*

1 ("This is not a question of whether this court has the authority to review, but rather whether the lack of any judicially manageable standard makes any review within our power, as a practical matter, impossible.") — *Bhaidas, N.D. Ind., 2025*

1 ("Simply put, the decision to grant or deny administrative closure is cut of the same cloth as various other decisions that we

review with regularity in both administrative and non-administrative arenas.") — *Ashraf Abdulkarim-Ali Alkotof v. U.S. Attorney General, 11th Cir., 2024*

1 ("Under the substantial evidence standard, the agency's de- termination will stand if it is supported by reasonable, sub- stantial, and probative evidence on the record considered as a whole.") — *Johana Cece v. Eric Holder, Jr., 7th Cir., 2013*

↑

318. GUTIERREZ

21 I. & N. Dec. 479, BIA, 1996
In 2020-24: cited by 9 decisions (appellate) · in all: 57 · 2021–2025: 5 · weight in the sub-cluster 25
Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 4%)
Good law: green? (read the newest 59 of 59 citing opinions, filed 1998–2025: status now, not the year it changed)
Travels with: Vahora (cosine 0.18, 9 both); AVETISYAN (cosine 0.12, 9 both); W-Y-U (cosine 0.11, 8 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

12 (stating that administrative closure is used to temporarily remove the case from the court's docket and that a case may not be administratively closed if opposed by either party) — *HASHMI, BIA, 2009*

1 (explaining how administrative closures may be used) — *Ashraf Abdulkarim-Ali Alkotof v. U.S. Attorney General, 11th Cir., 2024*

↑

319. L-N-Y

27 I. & N. Dec. 755, BIA, 2020
In 2020-24: cited by 18 decisions (appellate) · in all: 21 · 2021–2025: 13 · weight in the sub-cluster 25
Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 4%)
Good law: green? (read the newest 21 of 21 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: SANCHEZ SOSA (cosine 0.15, 14 both); GUTIERREZ (cosine 0.09, 6 both); Vahora (cosine 0.09, 6 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("There is no dispute that the respondent is prima facie eligible for a U visa and that a grant of his visa petition by the USCIS would materially affect the outcome of his removal proceedings.") — *Juan Duran Facundo v. Merrick Garland, 9th Cir., 2021*

1 (describing Matter of L-A-B-R- as having "refined" the analytical framework established in Matter of Sanchez Sosa) — *Piyushkumar Patel v. U.S. Attorney General, 11th Cir., 2021*

1 (stating that "respondent may continue to pursue his U[-V]isa, even after he is removed") — *Ashraf Abdulkarim-Ali Alkotof v. U.S. Attorney General, 11th Cir., 2024*

1 (holding that prima facie eligibility for a U visa is not dispositive of good cause, particularly where there are "relevant secondary factors that weigh against 2 continuing the proceedings") — *Esthela Castillo Garcia v. Merrick Garland, 9th Cir., 2023*

↑

320. Touby v. United States

500 U.S. 160, SCOTUS, 1991
In 2020-24: cited by 23 decisions (appellate) · in all: 175 · 2021–2025: 30 · weight in the sub-cluster 33
Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 4%)
Good law: green? (read the newest 100 of 192 citing opinions, filed 2010–2025: status now, not the year it changed)
Travels with: Loving (cosine 0.13, 6 both); Grimaud (cosine 0.13, 5 both); J. W. Hampton, Jr., & Co. v. United States (cosine 0.09, 9 both)
How later courts describe it (32 parentheticals; groups of similar wording, largest first; other courts' words)

4 ("Congress does not violate the Constitution merely because it legislates in broad terms, leaving a certain degree of discretion to executive or judicial actors.") — *Lawson, Tex. App., 2009*

4 (upholding a statute authorizing action when "necessary to avoid an imminent hazard to public safety") — *Florida Wildlife Federation, Inc. v. Jackson, N.D. Fla., 2012*

3 (holding specification of three factors that the executive is "required to consider" constrains executive's legislative power and renders delegation constitutional) — *Henry, 1st Cir., 1998*

2 (discussing time-consuming procedural requirements involved in drug scheduling) — *O Centro Espirita Beneficiente Uniao Do Vegetal v. John Ashcroft, 10th Cir., 2004*

2 (suggesting a heightened standard might apply in the criminal setting) — *Gutierrez-Brizuela, 10th Cir., 2016*

2 (rejecting claim that temporary regulation violated nondelegation doctrine on basis that permanent regulation was subject to judicial review and temporary regulation could be challenged in criminal proceedings) — *United States v. Hammoud, 4th Cir., 2004*

2 (acknowledging that "[o]ur cases are not entirely clear as to whether more specific guidance is in fact required" when Congress is delegating authority "to promulgate regulations that contemplate criminal sanctions") — *United States v. Rebecca Moriello, 4th Cir., 2020*

2 (holding that delegation from Congress to the Attorney General, and from the Attorney General to the DEA, neither violated the Constitution nor the Controlled Substances Act) — *Shariff David Bula Lopez v. U.S. Attorney General, 11th Cir., 2019*

↑ **321. Finest Meridor v. U.S. Attorney General**
891 F.3d 1302, 11th Cir., 2018
In 2020-24: cited by 12 decisions (appellate) · in all: 18 · 2021–2025: 8 · weight in the sub-cluster 22
Fit: 96% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 4%)
Good law: green? (read the newest 18 of 18 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: L. D. G. v. Eric Holder, Jr. (cosine 0.23, 8 both); KHAN (cosine 0.13, 7 both); Baez-Sanchez (cosine 0.10, 7 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (detailing the relevant statutory history) — *Chairez, 9th Cir., 2026*
- **1** ("We would issue an impermissible advisory opinion if we opined on [one ground] when the BIA provided another ground that would resolve this case." (citing Malu, 764 F.3d at 1290-91)) — *Jorge Rodrigo Fajardo Zumba v. U.S. Attorney General, 11th Cir., 2025*
- **1** ("A U visa applicant cannot appeal from a decision to deny a waiver requested under § 1182(d)(14)."") — *Rodriguez, E.D.N.Y, 2023*
- **1** (finding reversa- ble error where the BIA, without a finding of clear error, made an USCA11 Case: 21-11584 Date Filed: 03/30/2022 Page: 8 of 10 8 Opinion of the Court 21-11584 alternative holding that "simply disagreed" with an IJ's risk-of-harm determination) — *Eulalio Castanon Perez v. U.S. Attorney General, 11th Cir., 2022*

↑ **322. Maine v. Federal Energy Regulatory Commission**
854 F.3d 9, D.C. Cir., 2017
In 2020-24: cited by 22 decisions (appellate) · in all: 41 · 2021–2025: 30 · weight in the sub-cluster 23
Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 5%)
Good law: green? (read the newest 41 of 41 citing opinions, filed 2018–2026: status now, not the year it changed)
Role changed 2020-24: likely successor FERC, 964 F.3d 1 (2020) (36% of the 22 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: FERC (cosine 0.14, 6 both); FERC (cosine 0.10, 5 both); FERC (cosine 0.09, 7 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (noting that a Section 206 proceeding requires FERC to bear the burden of making an explicit finding that the existing rate was unlawful before it was authorized to set a new lawful rate) — *FERC, 6th Cir., 2023*
- **2** (finding that the agency administering the Federal Power Act (16 U.S.C. §§ 824d(a), 824e(a) (2012)) failed to explain why the rate chosen was just and reasonable where the agency, among other things, (1) — *Citizens Utility Board v. Illinois Commerce Comm'n, Ill. App. Ct., 2019*
- **1** ("Zafiro does not apply to § 2254 cases.") — *Madden, S.D. Cal., 2023*
- **1** ("Spokeo allows for a bare procedural violation to create a concrete 24 harm . . . [based on] the failure to comply with a statutory procedure that was designed to 25 protect against the harm the statute was enacted to prevent.") — *Escamilla Avina v. Patenaude & Felix, APC, S.D. Cal., 2021*
- **1** ("Counsel cannot justify a failure 4 to investigate simply by invoking strategy. The Supreme Court has squarely rejected the 5 attempt to justify a limited investigation as reflecting a tactical judgment.") — *Jones, S.D. Cal., 2020*
- **1** ("Whether a rate * * * is unlawful depends on the particular circumstances of the case.") — *FERC, D.C. Cir., 2022*
- **1** ("FERC must adequately explain how the evidence it relied on 'support[ed] the conclusion it reached.'") — *FERC, D.C. Cir., 2021*
- **1** (in section 206 proceeding, "burden of demonstrating that the existing [rate] is unlawful is on ... the complainant") — *FERC, D.C. Cir., 2018*

↑ **323. L. D. G. v. Eric Holder, Jr.**
744 F.3d 1022, 7th Cir., 2014
In 2020-24: cited by 9 decisions (appellate) · in all: 36 · 2021–2025: 7 · weight in the sub-cluster 21
Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 5%)
Good law: green? (read the newest 37 of 37 citing opinions, filed 2014–2026: status now, not the year it changed)
Travels with: Finest Meridor v. U.S. Attorney General (cosine 0.23, 8 both); KHAN (cosine 0.16, 7 both); Baez-Sanchez (cosine 0.12, 7 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("[t]he decision whether to grant a U Visa is statutorily committed to the discretion of the Secretary of Homeland Security") — *Noem, N.D. Ill., 2025*
- **2** (explaining the different agencies' jurisdiction) — *Aguilar, E.D. Ill., 2018*
- **2** ("Statutory references to the 'Attorney General' include the EOIR [Executive Office for Immigration Review] ..., which is a component of the Department of Justice.") — *Barrick, 2019*

↑ **324. KHAN**
26 I. & N. Dec. 797, BIA, 2016
In 2020-24: cited by 9 decisions (appellate) · in all: 16 · 2021–2025: 2 · weight in the sub-cluster 21
Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1

Article III standing, 5%)
Good law: green? (read the newest 16 of 16 citing opinions, filed 2017–2021: status now, not the year it changed)
Role changed 2020-24: likely successor Baez-Sanchez, 872 F.3d 854 (2017) (89% of the 9 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: L. D. G. v. Eric Holder, Jr. (cosine 0.16, 7 both); Baez-Sanchez (cosine 0.14, 8 both); Finest Meridor v. U.S. Attorney General (cosine 0.13, 7 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (holding that "the regulations do not give Immigration Judges authority to grant a waiver of inadmissibility under section 212(d)(3)(A)(ii) of the Act to a petitioner for U nonimmigrant status who is in the United States") — *Philip Man v. William Barr, 9th Cir., 2019*

↑

325. Jesus Zuniga Romero v. William Barr

937 F.3d 282, 4th Cir., 2019
In 2020-24: cited by 31 decisions (appellate) · in all: 46 · 2021–2025: 31 · weight in the sub-cluster 33
Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.1 Ninth Circuit asylum: particular social group and nexus, 5%)
Good law: green? (read the newest 46 of 46 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Yeison Meza Morales v. William Barr (cosine 0.30, 8 both); Roberto Hernandez-Serrano v. William Barr (cosine 0.15, 6 both); HASHMI (cosine 0.11, 5 both)
How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (characterizing the facts underlying Avetisyan as presenting such a situation) — *Yeison Meza Morales v. William Barr, 7th Cir., 2020*
- **2** ("Romero advised that if his case were administratively closed, then once the waiver had been approved, he intended to move to re-calendar and terminate removal proceedings so that he could then go through the consular process in Honduras.") — *Carlos Garcia-DeLeon v. Merrick Garland, 6th Cir., 2021*
- **2** (identifying the various regulations at issue and concluding that they "unambiguously confer upon [Immigration Judges] and the [Board] the general authority to administratively close cases") — *Douglas Marroquin v. William Barr, 4th Cir., 2019*
- **2** (acknowledging that "as of October 2018, over 330,000 cases remained administratively closed") — *Abner Arcos Sanchez v. Attorney General United States, 3rd Cir., 2021*
- **1** ("administrative closure is a procedural mechanism primarily employed for the convenience" of IJs and the Board) — *Roberto Hernandez-Serrano v. William Barr, 6th Cir., 2020*
- **1** ("[T]he word 'any' has an expansive meaning, that is, one or some indiscriminately of whatever kind." (citation modified)) — *Gary Tederick v. Loancare, LLC, 4th Cir., 2026*
- **1** (collecting cases construing the term "any" to have a broad meaning) — *GMS Industrial Supply, Inc. v. Westly Greer, 4th Cir., 2024*
- **1** (rejecting Castro-Tum and reasoning that regulations "unambiguously confer upon IJs and the BIA the general authority to administratively close cases") — *Bairon Ramos-Padilla v. Attorney General United States, 3rd Cir., 2021*

↑

326. Nevada v. Department of Energy

457 F.3d 78, D.C. Cir., 2006
In 2020-24: cited by 19 decisions (appellate) · in all: 141 · 2021–2025: 44 · weight in the sub-cluster 23
Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 5%)
Good law: green (read 148 of 148 citing opinions)
Travels with: TOMAC (cosine 0.28, 5 both); FERC (cosine 0.14, 6 both); FERC (cosine 0.13, 8 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (quot- ing 42 U.S.C. § 4332(2)(C)) — *Raimondo, D.D.C., 2023*
- **2** ("The DOE accepts [the CEQ regulations] as binding, as do we for purposes of this appeal.") — *FAA, D.C. Cir., 2024*
- **2** (finding lack of prejudice from alleged NEPA violation when "[t]he many comments submitted in response to the []EIS manifest that the public had sufficient information to comment") — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2018*
- **2** (applying APA's arbitrary and capricious standard "to review both the agency's procedural compliance with NEPA and the adequacy of an EIS") — *Gutierrez, D.D.C., 2010*
- **1** (hardship does not "flow from the uncertainty of the [agency's] implementation of the plan" where the plan "does not command anyone to do anything," "refrain from doing anything," or have any "adverse effects of a strictly legal kind" (cleaned up)) — *National Hydropower Association v. U.S. Fish and Wildlife Service, D.D.C., 2025*
- **1** ("[Courts] apply the APA's arbitrary and capricious standard to a NEPA challenge.") — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2017*
- **1** ("Because the [Council] has no express regulatory authority under NEPA—it was empowered to issue regulations only by executive order—the binding effect of [Council] regulations is far from clear.") — *FERC, D.C. Cir., 2023*
- **1** ("[W]e do not think that the inadequacies to which Nevada points make the FEIS inadequate.") — *State of Alabama v. U.S. Army Corps of Engineers, D.D.C., 2023*

↑

327. Zulfigar Qureshi v. Alberto R. Gonzales

442 F.3d 985, 7th Cir., 2006

In 2020-24: cited by 13 decisions (appellate) · in all: 53 · 2021–2025: 6 · weight in the sub-cluster 19

Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 5%)

Good law: green? (read the newest 55 of 55 citing opinions, filed 2006–2024: status now, not the year it changed)

Travels with: GUTIERREZ (cosine 0.09, 5 both); KHAN (cosine 0.09, 5 both); L. D. G. v. Eric Holder, Jr. (cosine 0.09, 5 both)

How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** (deeming a case to be mooted in the converse scenario, when the collateral petition was adjudicated unfavorably and no basis for a continuance remained) — *Yeison Meza Morales v. William Barr, 7th Cir., 2020*
- **3** ("When a petitioner expressly concedes removability as charged in the [notice to appear], he waives any objection to the [immigration judge's] finding of removability, including the argument that the [immigration judge] lacked jurisdiction to find him removable.") — *Jordany Pierre-Paul v. William Barr, U. S. Atty Ge, 5th Cir., 2019*
- **2** (noting that alien waived challenge to NTA that lacked sufficient certificate of service because alien conceded removability as charged in the NTA) — *Martha Benitez-Vasquez v. William Barr, 4th Cir., 2019*
- **1** (claim for continuance mooted by denial of I-130) — *Amadou Dia v. Merrick Garland, 6th Cir., 2021*
- **1** (claim for continuance mooted by dismissal of I-130 petition) — *Hugo Aguilar v. Attorney General United States, 3rd Cir., 2024*
- **1** ("Though some issues become moot on appeal because of an intervening event, we may review remaining issues that present a viable controversy.") — *Andrew Joseph v. Lisa Carnes, 7th Cir., 2014*
- **1** (holding motion for continuance moot after USCIS dismissed petition) — *Bairon Ramos-Padilla v. Attorney General United States, 3rd Cir., 2021*
- **1** (finding moot claims of error in denying continuance motion pending adjudication of I-130 petition after USCIS dismissed the petition) — *Adeyanju, 1st Cir., 2022*

↑

328. Peter Pan Bus Lines, Inc. v. Federal Motor Carrier Safety Administration

471 F.3d 1350, D.C. Cir., 2006

In 2020-24: cited by 9 decisions (appellate) · in all: 62 · 2021–2025: 7 · weight in the sub-cluster 19

Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 5%)

Good law: green? (read the newest 75 of 75 citing opinions, filed 2007–2023: status now, not the year it changed)

Travels with: GUTIERREZ (cosine 0.11, 5 both); KHAN (cosine 0.11, 5 both); L. D. G. v. Eric Holder, Jr. (cosine 0.11, 5 both)

How later courts describe it (23 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** ("[D]eference to an agency's interpretation of a statute is not appropriate when the agency wrongly believes that interpretation is compelled by Congress.") — *Delgado, 9th Cir., 2008*
- **5** (finding a rule ambiguous but rejecting the agency's request for Chevron deference since the rule had assumed that the statute was unambiguous) — *Yeison Meza Morales v. William Barr, 7th Cir., 2020*
- **4** ("Chevron step 2 deference is reserved for those instances when an agency recognizes that [ ] Congress's intent is not plain from the statute's face.") — *Farrell, D.D.C., 2019*
- **3** (noting that, at Chevron Step Two, the court must defer to the agency's interpretation of a statute if it is "based on a permissible construction of the statute") — *Otay Mesa Prop., L.P. v. U.S. Dep't of the Interior, D.C. Cir., 2018*
- **2** ("[The statute] contains surplusage under either reading and, as a result, we cannot say that either proffered construction reflects the Congress's unambiguously expressed intent.") — *Amer Fed Govt Empl v. Rumsfeld, Donald, D.C. Cir., 2007*
- **1** (statute governing the Federal Motor Carrier Safety Administration) — *Ileto, 9th Cir., 2009*
- **1** (remand appropriate so that agency may "interpret the statutory language anew.") — *Fletcher Allen Health Care v. Dep't of Vermont Health Access, Vt. Super. Ct. , 2014*
- **1** (relying on agency statement that "[t]his interpretation is not consistent with the plain language of the statute ") — *National Association of Manufacturers v. Securities and Exchange Commission, D.D.C., 2013*

↑

329. Carter v. Carter Coal Co.

298 U.S. 238, SCOTUS, 1936

In 2020-24: cited by 18 decisions (appellate) · in all: 556 · 2021–2025: 30 · weight in the sub-cluster 31

Fit: 95% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 5%)

Good law: yellow? (read the newest 100 of 679 citing opinions, filed 2011–2026: status now, not the year it changed)

2012 (Minn.): strong "abrogated" — *Ritchie*: . See Carter v. Carter Coal Co., [298 U.S. 238], 56 S.Ct. 855, 80 L.Ed. 1160 (1936), abrogated by U.S. v. Darby, 312 U.S. 100, 115-16, 61 S.Ct. 451, 85 L.Ed. 609 (1941

Role changed 2015-19: likely successor Department of Transportation v. Association of American R..., 575 U.S. 43 (2015) (44% of the 25 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)

Travels with: Adkins (cosine 0.31, 9 both); Currin (cosine 0.30, 7 both); Schechter Poultry (cosine 0.17, 8 both)

How later courts describe it (58 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** (finding that a delegation of regulatory power to "private persons whose interests may be and often are adverse to the interests

of others in the same business" violates due process) — *Andrew Rice v. Village of Johnstown, Ohio, 6th Cir., 2022*

5 (invalidating the Bituminous Coal Conservation Act of 1935 on federalism grounds) — *Gila River Indian Community v. United States, 9th Cir., 2012*

5 ("Mining brings the subject matter of commerce into existence. Commerce disposes of it") — *Lopez, SCOTUS, 1995*

4 (Act regulating price of coal and wages and hours for miners held to have only "secondary and indirect" effect on interstate commerce) — *Lopez, SCOTUS, 1995*

4 (holding that regulation of unfair labor practices in mining regulated "production," not "commerce") — *Morrison, SCOTUS, 2000*

2 (where inevitability of the operation of a statute against certain individuals is patent, it is irrelevant to the existence of a justiciable controversy that there will be a time delay before the disputed provisions will come into effect) — *Boundary Backpackers v. Boundary County, Idaho, 1996*

2 (deem- ing delegation of governmental power to a private entity "obnox- ious" even where Congress had explicitly authorized it) — *Consumers' Research v. Federal Communications Commission, 11th Cir., 2023*

2 (wage and hour regulations for coal industry may not be determined by vote of producers and miners) — *Opinion No., Tex. Att'y Gen., 1986*

↑

330. W-Y-U

27 I. & N. Dec. 17, BIA, 2017

In 2020-24: cited by 23 decisions (appellate) · in all: 52 · 2021–2025: 39 · weight in the sub-cluster 48

Fit: 94% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.1 Ninth Circuit asylum: particular social group and nexus, 3%)

Good law: green? (read the newest 52 of 52 citing opinions, filed 2017–2026: status now, not the year it changed)

Travels with: AVETISYAN (cosine 0.39, 21 both); Vahora (cosine 0.28, 10 both); CASTRO-TUM (cosine 0.16, 20 both)

How later courts describe it (10 parentheticals; groups of similar wording, largest first; other courts' words)

3 (explaining that nei- ther a continuance nor administrative closure constitutes a final order) — *Yeison Meza Morales v. William Barr, 7th Cir., 2020*

2 (explaining that neither a continuance nor administrative closure constitutes a final order) — *Yeison Meza Morales v. William Barr, 7th Cir., 2020*

1 ("Since prosecutorial discretion is a matter within the exclusive jurisdiction of the DHS, it follows that in considering administrative closure, an Immigration Judge cannot review whether an alien falls within the DHS's enforcement priorities . . . .") — *Orozco-Navarro, 9th Cir., 2025*

1 ("Neither the TVPRA nor any other authority of which [the BIA 18 is] aware states that a DHS or HHS determination of UAC status is binding on an 19 Immigration Judge in removal proceedings.") — *Imon, D. Ariz., 2020*

1 ("[T]he primary consideration is . . . whether the party opposing administrative closure has provided a persuasive reason for the case to proceed.") — *Rafael Martinez Rodriguez v. James McHenry III, Ac, 5th Cir., 2025*

1 (considering an interlocutory appeal of a denial of a motion to recalendar because it "raises an important question regarding the administration of proceedings under our immigration laws" (citation omitted)) — *Cahuec Tzalam, BIA, 2025*

1 (stating that we "lack the authority to review the DHS's decision to institute proceedings, which involves the exercise of prosecutorial discretion") — *A-S-M, BIA, 2021*

↑

331. CASTRO-TUM

27 I. & N. Dec. 271, BIA, 2018

In 2020-24: cited by 51 decisions (appellate) · in all: 84 · 2021–2025: 46 · weight in the sub-cluster 47

Fit: 93% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.1 Ninth Circuit asylum: particular social group and nexus, 4%)

Good law: green? (read the newest 84 of 84 citing opinions, filed 2018–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Jesus Zuniga Romero v. William Barr, 937 F.3d 282 (2019) (28% of the 51 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: W-Y-U (cosine 0.16, 20 both); AVETISYAN (cosine 0.16, 34 both); Yeison Meza Morales v. William Barr (cosine 0.10, 11 both)

How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[T]here is no general authority for administrative closure.") — *Flora Holmes v. Merrick B. Garland, 8th Cir., 2022*

1 ("An alien who does not meet the statutory definition of an unaccompanied alien child is not entitled to that status.") — *M-A-C-O, BIA, 2018*

1 (relying on the definition set forth in 6 U.S.C. § 279(g)(2) to hold that "[a]t a minimum, . . . the respondent ceased to qualify as an unaccompanied alien child on January 10, 2015, his eighteenth birthday") — *Decker, S.D.N.Y., 2020*

1 (noting that no regulations issued regarding administrative closure "delegated general authority to authorize administrative closure" by IJs or the BIA) — *Sotamba, 2d Cir., 2019*

1 (holding that immigration judges and the BIA lack the general authority to administratively close cases) — *Bairon Ramos-Padilla v. Attorney General United States, 3rd Cir., 2021*

↑

332. HollyFrontier Cheyenne Refining, LLC v. Renewable Fuels Assn.

594 U.S. 382, SCOTUS, 2021
In 2020-24: cited by 31 decisions (appellate) · in all: 54 · 2021–2025: 54 · weight in the sub-cluster 17
Fit: 93% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 7%)
Good law: green? (read the newest 54 of 54 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Renewable Fuels Association v. EPA (cosine 0.15, 6 both); Chevron (cosine 0.03, 12 both); Encino Motorcars (cosine 0.02, 5 both)
How later courts describe it (19 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (declining to consider whether Chevron deference was due where government did not invoke it) — *ATF, D.C. Cir., 2022*
- **1** ("Information on a government website is subject to notice if, among other things, it is not subject to reasonable factual dispute and part of a source whose accuracy cannot reasonably be questioned." (internal quotation marks omitted)) — *Valdez, 10th Cir., 2022*
- **1** (where government did not seek Chevron deference, the Supreme Court declined to consider it) — *Turner, Justin v. Keyes, R.D., W.D. Wis., 2022*
- **1** ("Whenever you encounter a word with a long history, it's safe to assume that the meaning has changed . . . or that it has stayed the same.") — *United States v. Clevon Webster, 11th Cir., 2025*
- **1** ("Where Congress does not furnish a definition of its own, we generally seek to afford a statutory term its ordinary or natural meaning." (internal quotation marks omitted)) — *United States v. Helaman Hansen, 9th Cir., 2022*
- **1** ("[W]e routinely consult dictionaries as a principal source of ordinary meaning . . . .") — *Barr v. SEC, 5th Cir., 2024*
- **1** ("[P]leas of 4 administrative inconvenience and self-serving regulations never justify departing from the statute's clear text.") — *Alon Refining Krotz Springs, Inc. v. EPA, D.C. Cir., 2026*
- **1** (the presumption of consistent usage is strongest for terms in the same section or enacted at the same time) — *Usdva, 9th Cir., 2024*

↑

333. Sunshine Anthracite Coal Co. v. Adkins

310 U.S. 381, SCOTUS, 1940
In 2020-24: cited by 26 decisions (appellate) · in all: 694 · 2021–2025: 85 · weight in the sub-cluster 43
Fit: 92% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 4%)
Good law: green? (read the newest 100 of 801 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Currin (cosine 0.37, 8 both); Carter (cosine 0.31, 9 both); Association of American Railroads v. United States Depart... (cosine 0.24, 8 both)
How later courts describe it (89 parentheticals; groups of similar wording, largest first; other courts' words)

- **25** ("A judgment in a suit between a party and a representative of the United States is res judicata in relitigation of the same issue between that party and another officer of the government") — *Michael F. Walsh, Etc. v. International Longshoremen's Association, Afl-Cio, Local 799, International Longshoremen's Association, Afl-Cio, 1st Cir., 1980*
- **8** ("Congress may impose penalties in aid of the exercise of any of its enumerated powers.") — *Florida Ex Rel. Attorney General v. United States Department of Health & Human Services, 11th Cir., 2011*
- **6** (holding that officers of the same government entity are in privity for claim preclusion purposes) — *Grimes, D. Colo., 2020*
- **4** ("Nor has Congress delegated its legislative authority to the industry. . . . Since law-making is not entrusted to the industry, this statutory scheme is unques- tionably valid." (emphasis added)) — *Consumers' Research v. Federal Communications Commission, 11th Cir., 2023*
- **3** (sales tax imposed under Bituminous Coal Conservation Act) — *Geraghty v. United States Parole Commission, 3rd Cir., 1983*
- **3** ("The crucial point is whether or not in the earlier litigation the representative of the United States had authority to represent its interests in a final adjudication of the issue in controversy.") — *State in Interest of TJ, Utah Ct. App., 1997*
- **3** (holding that Congress could not only regulate price, but could also attach "other conditions to the flow of a commodity in interstate [commerce]") — *Florida Ex Rel. Attorney General v. United States Department of Health & Human Services, 11th Cir., 2011*
- **2** (fixing of minimum prices for bituminous coal upheld) — *United States v. L. Robert Frame, Sr. And Vintage Sales Stables, Inc., 3rd Cir., 1989*

↑

334. Bowles v. Seminole Rock & Sand Co.

325 U.S. 410, SCOTUS, 1945
In 2020-24: cited by 48 decisions (appellate) · in all: 1,408 · 2021–2025: 73 · weight in the sub-cluster 96
Fit: 91% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.8 around Alleyne, 4%)
Good law: green (read 528 of 1,539 citing opinions)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (90% of the 48 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Auer (cosine 0.21, 35 both); Stinson (cosine 0.18, 28 both); Kisor (cosine 0.12, 43 both)
How later courts describe it (90 parentheticals; groups of similar wording, largest first; other courts' words)

60 (holding that, when interpreting a regulation, "the ultimate criterion is the administrative interpretation, which becomes of controlling weight unless it is plainly erroneous or inconsistent with the regulation") — *Li Yong Zheng v. United States Department of Justice, Attorney General Gonzales, 2d Cir., 2005*

7 (focusing on the "plain words of the regulation" to ascertain the meaning of the regulation) — *Tesoro Hawaii Corporation, Tesoro Alaska Company and Hermes Consolidated, Inc., D/B/A Wyoming Refining Company v. United States, Fed. Cir., 2005*

3 (holding that an agency's interpretation of its own regulation must comport with "the plain words of the regulation") — *Shalala, SCOTUS, 1994*

2 (providing framework for deference to agency regulatory interpretations) — *Thomas E. Perez v. Loren Cook Company, 8th Cir., 2015*

2 ("intention of Congress ... may be relevant" for interpreting regulation) — *Michael Revak v. National Mines Corporation and Old Republic Companies, and Director, Office of Workers' Compensation Programs, Party-In-Interest, 3rd Cir., 1987*

2 (same with respect to agency's interpretation of its own regulations) — *Securities and Exchange Commission v. Robert J. McNulty George G. Handgis, Franklin D. Roberts, John M. Shanklin and W.N. Thompson, John M. Shanklin, 2d Cir., 1998*

2 ("[t]he guidelines are the equivalent of legislative rules adopted by federal agencies.") — *United States v. Anthony Gaines, 6th Cir., 1997*

2 (Office of Price Regulation's interpretation of ambiguous regulatory provision supported by the "countless explanations and interpretations given to inquirers affected by this type of maximum price regulation") — *Secretary of Labor, Mine Safety and Health Administration v. Western Fuels-Utah, Inc., and Federal Mine Safety and Health Review Commission, D.C. Cir., 1990*

↑

335. Greater Boston Television Corp. v. Federal Communications Commission

444 F.2d 841, D.C. Cir., 1970

In 2020-24: cited by 13 decisions (appellate) · in all: 464 · 2021–2025: 22 · weight in the sub-cluster 13

Fit: 91% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 9%)

Good law: green? (read the newest 100 of 508 citing opinions, filed 2000–2026: status now, not the year it changed)

Role changed 1980-84: likely successor Bowman Transp, 419 U.S. 281 (1975) (26% of the 50 decisions citing this case in 1980-84 also cite it). (co-citation, not the text)

Travels with: FCC v. Fox (cosine 0.06, 10 both); Encino Motorcars (cosine 0.05, 6 both); Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.04, 9 both)

How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

7 (stating that agencies may depart from their own precedent but in doing so must "supply a reasoned analysis" justifying the change) — *Reichley, D.C., 1987*

3 (holding that under the arbitrary and capricious standard, a court cannot "upset a decision because of errors that are not material") — *Alam Ganem v. Otis R. Bowen, Secretary of Health and Human Services, D.C. Cir., 1987*

2 ("[I]f an agency glosses over or swerves from prior precedents without discussion it may cross the line from the tolerably terse to the intolerably mute.") — *Jicarilla Apache Nation v. United States Department of the Interior, D.C. Cir., 2010*

1 ("[T]he Commission [must] ma[ke] clear not only its awareness of what the [Hearing] Examiner had concluded, but also its reasons for taking a different course.") — *George Hyman Construction Co. v. Washington Metropolitan Area Transit Authority, D.C. Cir., 1987*

1 ("hard look" necessary satisfy reviewing court that agency action not based on "impermissible whim, improp influence or misplaced zeal") — *Knoll, 3rd Cir., 1995*

1 (a court will uphold findings of "less than ideal clarity," but "must not be left to guess as to the agency's findings or reasons") — *City of Vernon, California v. Federal Energy Regulatory Commission, Southern California Edison Company, Cities of Anaheim, Riverside, Intervenors, D.C. Cir., 1988*

1 (holding that the agency impermissibly "glossed over" prior policy where it failed to "even to acknowledge its past practice and formal policies . . . let alone to explain its reversal of course") — *Biden, E.D. La., 2025*

↑

336. SANCHEZ SOSA

25 I. & N. Dec. 807, BIA, 2012

In 2020-24: cited by 34 decisions (appellate) · in all: 59 · 2021–2025: 25 · weight in the sub-cluster 32

Fit: 91% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.8 around MacArio Bonilla v. Loretta E. Lynch, 6%)

Good law: green? (read the newest 59 of 59 citing opinions, filed 2012–2026: status now, not the year it changed)

Role changed 2020-24: likely successor L-N-Y, 27 I. & N. Dec. 755 (2020) (41% of the 34 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: L-N-Y (cosine 0.15, 14 both); Daniela Guerra-Rocha v. William P. Barr (cosine 0.13, 8 both); HASHMI (cosine 0.10, 8 both)

How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

4 (discussing how a petitioner may establish prima facie eligibility for a U visa such that a continuance or remand might be warranted) — *Mario Antunez-Salgado v. Jefferson Sessions, 9th Cir., 2018*

1 (where U visa applicant is inadmissible, IJ "should assess the likelihood that USCIS will exercise its discretion favorably under the regulatory standard as part of the determination of prima facie eligibility") — *Mateo Jacinto-Gonzalez v. William Barr, 9th Cir., 2020*

1 ("Aliens subject to an order of removal may seek a stay from the USCIS to await the adjudication of a U visa. Section 237(d) — *Lorena Gonzalez-Matus v. Merrick Garland, 9th Cir., 2021*

1 (articulating factors the agency should consider in determining whether to continue removal proceedings pending the adjudication of a U-Visa: (1) whether the underlying U-visa petition is prima facie approvable; (2) the government's response to the motion to reopen; and (3) — *Maulikhbai Chaudhari v. Todd Blanche, 8th Cir., 2026*

1 (describing when a continuance may be warranted pending adjudication of a noncitizen's U-visa petition) — *United States v. Rosendo Valdivias-Soto, 9th Cir., 2024*

1 (discussing factors in determining 3 15-73247 whether to grant a continuance that relate particularly to a U visa, including likelihood of success) — *Oscar Sanchez-Reyes v. Jefferson Sessions, 9th Cir., 2018*

1 (emphasizing that the IJ should consider "whether the underlying petition is prima facie approvable") — *Olajide Eyitayo v. Attorney General United States, 3rd Cir., 2022*

1 (holding that, as a general rule, an alien who is unlikely to be granted relief should not be permitted to engage in dilatory tactics to forestall the conclusion of removal proceedings) — *Jose Arduengo-Rivera v. Loretta Lynch, 5th Cir., 2015*

↑

337. Public Citizen, Inc. v. Federal Energy Regulatory Commission

839 F.3d 1165, D.C. Cir., 2016

In 2020-24: cited by 12 decisions (appellate) · in all: 24 · 2021–2025: 16 · weight in the sub-cluster 12

Fit: 90% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)

Good law: green? (read the newest 24 of 24 citing opinions, filed 2018–2024: status now, not the year it changed)

Role changed 2020-24: likely successor FERC, 964 F.3d 1 (2020) (50% of the 12 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: FERC (cosine 0.09, 7 both); FERC (cosine 0.08, 6 both); Ferc (cosine 0.08, 5 both)

How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("Section 205(a)'s statement concerning the unlawfulness of unjust and unreasonable rates does not rise to an inexorable command like that found in IGRA") — *FERC, 3rd Cir., 2023*

3 (noting the FPA does "not compel FERC to either set the disputed rates for hearing or affirmatively disapprove any unjust or unreasonable rates through the Section 205 process.") — *FERC, 3rd Cir., 2024*

2 (explaining that, unlike in the context of FERC deadlocks, FECA "compels [the] FEC to dismiss complaints in deadlock situations") — *FEC, D.C. Cir., 2024*

1 ("[W]e have previously defined 'order' expansively to include any agency action capable of review on the basis of the administrative record.") — *FERC, D.C. Cir., 2020*

1 (distinguishing deadlocks before the Federal Energy Regulatory Commission from FEC deadlocks) — *Heritage Action for America v. Federal Election Commission, D.D.C., 2023*

1 ("[R]ecognizing [Commission] deadlocks as agency action does not require this Court to broaden its statutorily- defined jurisdiction; the treatment of probable cause deadlocks as agency action is baked into the very text of the statute.") — *Heritage Action for America v. Federal Election Commission, D.D.C., 2023*

1 (applying the "almost universally accepted common-law rule" that "only a majority of a collective body is empowered to act for the body") — *Pacific Maritime Association v. NLRB, D.C. Cir., 2020*

1 ("[R]ecognizing [Campaign Act] deadlocks as agency action . . . is baked into the very text of the statute.") — *Heritage Action for America v. Federal Election Commission, D.D.C., 2023*

↑

338. Shalala v. Guernsey Memorial Hospital

514 U.S. 87, SCOTUS, 1995

In 2020-24: cited by 19 decisions (appellate) · in all: 396 · 2021–2025: 37 · weight in the sub-cluster 15

Fit: 90% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)

Good law: green? (read the newest 100 of 431 citing opinions, filed 2016–2026: status now, not the year it changed)

Role changed 2015-19: likely successor Perez, 575 U.S. 92 (2015) (57% of the 30 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)

Travels with: Perez (cosine 0.18, 13 both); Cal. Cmty. Against Toxics v. Envtl. Prot. Agency (cosine 0.06, 5 both); Brown (cosine 0.06, 6 both)

How later courts describe it (97 parentheticals; groups of similar wording, largest first; other courts' words)

31 (concluding that notice and comment rulemaking would be required if an agency were to effect "a substantive change" in its regulations by adopting a new position inconsis- tent with its existing regulations) — *NRC, D.C. Cir., 1999*

7 ("The APA does not require that all the specific applications of a rule evolve by further, more precise rules rather than by adjudication.") — *Kevin UPTON, Petitioner, v. SECURITIES AND EXCHANGE COMMISSION, Respondent, 2d Cir., 1996*

7 (holding that interpretive rules, which are not subject to the notice and comment procedure, are not accorded the weight that regulations are given) — *Kelvin Washington v. Hca Health Services of Texas, Inc., Doing Business as Hca Spring Branch Medical Center, 5th Cir., 1998*

5 (noting that the PRM is a compilation of interpretive rules) — *Thompson, D.D.C., 2002*

5 (concluding that the PRM does not have the force and effect of law) — *Burwell, 1st Cir., 2016*

4 (explaining that, under the old "reasonable cost" Medicare system, the Secretary had no "duty to promulgate regulations that ... address[ed] every conceivable question" about reimbursement) — *Sebelius, D.R.I., 2009*

4 (noting that an interpretive rule may be "issued by an agency to advise the public of the agency's construction of the statutes and rules which it administers") — *Nat'l Org. Of Veterans Advocates v. Secr'y Of Veterans Affairs, Fed. Cir., 2001*

3 (finding that the Medicare Provider Re- imbursement Manual was a valid interpretive rule and that "it was reasonable for the Secretary to follow that pol- icy here to deny respondent's claim for full reimbursement of its defeasance loss") — *Nova, Fed. Cir., 2020*

↑

339. United States v. Kevin Hightower

25 F.3d 182, 3rd Cir., 1994

In 2020-24: cited by 12 decisions (appellate) · in all: 44 · 2021–2025: 14 · weight in the sub-cluster 11

Fit: 90% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 10%)

Good law: green? (read the newest 46 of 46 citing opinions, filed 1994–2025: status now, not the year it changed)

Travels with: United States v. Aumbrey Winstead (cosine 0.08, 8 both); United States v. Malik Nasir (cosine 0.06, 5 both); United States v. Malik Nasir (cosine 0.06, 7 both)

How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

2 (Section 994(h) "does not define the only crimes for which the commission may specify a sentence at or near the maximum; it merely declares that the enumerated crimes must be so treated." (quotation omitted)) — *United States v. Jackson, 2d Cir., 1995*

1 (holding this commentary to be binding) — *United States v. Craig Foote, 3rd Cir., 2024*

↑

340. Fed. Energy Regulatory Comm'n v. Elec. Power Supply Ass'n

577 U.S. 260, SCOTUS, 2016

In 2020-24: cited by 57 decisions (appellate) · in all: 173 · 2021–2025: 76 · weight in the sub-cluster 57

Fit: 90% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)

Good law: green? (read the newest 100 of 186 citing opinions, filed 2020–2026: status now, not the year it changed)

Travels with: New York (cosine 0.20, 15 both); Hughes (cosine 0.12, 10 both); Morgan Stanley (cosine 0.07, 14 both)

How later courts describe it (30 parentheticals; groups of similar wording, largest first; other courts' words)

3 (agency must "selec[t] a compensation formula with adequate support in the record, and intelligibly explai[n] the reasons for making that choice")

3 (explaining that while the Federal Power Act authorizes FERC to regulate the 5 competitive interstate market for wholesale electricity, it "leaves to the States alone, the 6 regulation of 'any other sale'—most notably, any retail sale—of electricity" (quoting 16 U.S.C. 7 § 824(b))) — *PacifiCorp, W.D. Wash., 2024*

3 (noting that the FPA "authorizes [FERC] to regulate 'the sale of electric energy at wholesale in interstate commerce,'" but "leaves to the States alone, the regulation of 'any other sale' ... of electricity") — *FERC, 3rd Cir., 2024*

2 ("The operative provision is what counts.") — *Planned Parenthood of AR, etc. v. Cindy Gillespie, 8th Cir., 2017*

2 (discussing the near century long application of the Clause to the power industry) — *NextEra, 5th Cir., 2022*

2 (observing that the Act "makes federal and state powers 'complementary' and 'comprehensive'") — *NextEra, 5th Cir., 2022*

2 (explaining that ISOs "administer[] a portion of the grid, providing generators with access to transmission lines and ensuring that the network conducts electricity reliably") — *Electric Reliability Council of Texas, Inc. v. Panda Power Generation Infrastructure Fund, LLC, D/B/A Panda Power Funds Panda Sherman Power Holdings, LLC Panda Sherman Power Intermediate Holdings I, LLC Panda Sherman Power Intermediate Holdings II, LLC Panda Sherman Power, LLC Panda Temple Power Holdings, LLC Panda Temple Power Intermediate Holdings I, LLC Panda Temple Power Intermediate Holdings II, LLC Panda Temple Power, LLC Panda Temple Power II Holdings, LLC Panda Temple Power II Intermediate Holdings I, LLC, Tex., 2023*

1 (describing demand response programs like the DALRP) — *Silkman, D. Mass., 2016*

↑

341. Martin v. Occupational Safety & Health Review Commission

499 U.S. 144, SCOTUS, 1991

In 2020-24: cited by 30 decisions (appellate) · in all: 770 · 2021–2025: 32 · weight in the sub-cluster 22

Fit: 90% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 6%)

Good law: green (read 521 of 867 citing opinions)

Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (47% of the 30 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Barnhart (cosine 0.04, 5 both); Wayman (cosine 0.03, 5 both); Auer (cosine 0.03, 11 both)

How later courts describe it (221 parentheticals; groups of similar wording, largest first; other courts' words)

106 (holding that Secretary of Labor, not the independent adjudicative agency OSHRC, receives deference in interpretations of the Occupational Health and Safety Act) — *Melquiades T. Lagandaon v. John Ashcroft, Attorney General, 9th Cir., 2004*

19 (explaining that an "agency's construction of its own regulations is entitled to substantial deference" unless an inconsistent

statutory meaning is “free from doubt”) — *FAA, 1st Cir., 1999*

11 ("Because applying an agency’s regulation to complex or changing circumstances calls upon the agency’s unique expertise and policymaking prerogatives, we presume that the power authoritatively to interpret its own regulations is a component of the agency’s delegated lawmaking powers") — *Shalala, SCOTUS, 1995*

10 (noting that such a decision may raise a question about “the adequacy of notice to regulated parties”) — *General Electric Company v. United States Environmental Protection Agency, D.C. Cir., 1995*

9 (“[W]e emphasize that the reviewing court should defer to the Secretary only if the Secretary’s interpretation is reasonable.”) — *Robert B. Reich, Secretary of Labor v. Simpson, Gumpertz & Heger, Inc., and Occupational Safety and Health Review Commission, 1st Cir., 1993*

6 (holding that courts should “presume that the power authoritatively to interpret its own regulations is a component of the agency’s delegated lawmaking powers”) — *LaFleur, 2d Cir., 2002*

4 (explaining that the OSH Act “assigns distinct regulatory tasks to two different administrative actors”) — *Sturm Ruger Co Inc v. Chao, Elaine, D.C. Cir., 2002*

4 (holding that an agency interpretation is reasonable "so long as the interpretation ’sensibly conforms to the purpose and the wording of the regulations'" (quoting Ehlert v. United States, 402 U.S. 99, 105 (1971))) — *Urbanv. McDonald, Vet. App., 2017*

↑

342. Panama Refining Co. v. Ryan

293 U.S. 388, SCOTUS, 1935

In 2020-24: cited by 24 decisions (appellate) · in all: 931 · 2021–2025: 51 · weight in the sub-cluster 37

Fit: 90% of its co-citations in 2020-24 are with this sub-cluster’s members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 7%)

Good law: green? (read the newest 100 of 1,088 citing opinions, filed 2015–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Gundy, 588 U.S. 128 (2019) (54% of the 24 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Schechter Poultry (cosine 0.32, 17 both); J. W. Hampton, Jr., & Co. v. United States (cosine 0.12, 13 both); Grimaud (cosine 0.08, 6 both)

How later courts describe it (50 parentheticals; groups of similar wording, largest first; other courts’ words)

4 (“The Congress manifestly is not permitted to abdicate or to transfer to others the essential legislative functions with which it is thus vested.”) — *King, 8th Cir., 2013*

4 (striking down delegation to President to criminalize the interstate transport of petroleum without limiting his power at all)

3 (despite need for wide range of administrative flexibility, constitutional system requires limitation) — *Milardo, R.I., 1981*

3 (addressing the provision granting the President discretion to prohibit interstate and foreign commerce of petroleum products) — *Bear Claw Tribe, Inc. v. United States, Fed. Cl., 1996*

3 (examining whether other provisions of section "afford ... ground for implying a limitation of the broad grant of authority") — *Intl. Refugee Assistance v. Donald J. Trump, 4th Cir., 2018*

2 (similarly noting that legislative power is vested in Congress) — *McNeill, Nev., 2016*

2 (“Congress may .., establish primary standards, devolving upon others the duty to carry out the declared legislative policy[.]”) — *West Philadelphia Achievement Charter Elementary School v. School District of Philadelphia, Pa., 2016*

2 (hold- ing unconstitutional a delegation to executive officials to prohibit the transportation of petroleum products in interstate and foreign commerce) — *Trump, SCOTUS, 2026*

↑

343. Taniguchi v. Kan Pacific Saipan, Ltd.

132 S. Ct. 1997, SCOTUS, 2012

In 2020-24: cited by 77 decisions (appellate) · in all: 548 · 2021–2025: 266 · weight in the sub-cluster 20

Fit: 90% of its co-citations in 2020-24 are with this sub-cluster’s members; this is its best-fitting sub-cluster (next: 2020-24:2.4 Substantive due process: family, privacy and reproduction, 6%)

Good law: green? (read the newest 100 of 575 citing opinions, filed 2024–2026: status now, not the year it changed)

Travels with: Crawford Fitting (cosine 0.04, 5 both); Wisconsin Central Ltd. v. United States (cosine 0.02, 12 both); Marx (cosine 0.02, 7 both)

How later courts describe it (135 parentheticals; groups of similar wording, largest first; other courts’ words)

45 (holding that “[w]hen a term goes undefined in a statute, we give the term its ordinary meaning,” and consulting dictionaries to determine ordinary meaning) — *Minda, 2d Cir., 2017*

11 (deciding that the provision for compensating interpreters in 28 U.S.C. § 1920(6) does not include costs for document translation) — *Hively v. Ivy Tech Community College of Indiana, 7th Cir., 2017*

10 (describing the assessment of costs by the clerk as “merely a clerical matter”) — *CARE ONE MANAGEMENT, LLC v. UNITED HEALTHCARE WORKERS EAST, SEIU 1199, D.N.J., 2020*

9 (describing taxable costs as “limited by statute” and “modest in scope” and noting that any changes to the limited categories authorized in § 1920 must come from Congress) — *Keith, W.D. Va., 2024*

8 (explaining “it is a normal rule of statutory construction that identical words used in different parts of the same act are intended to have the same meaning.”) — *Wyandot Nation of Kansas v. United States, Fed. Cl., 2016*

5 (noting that courts applying Rule 54(d) should respect “the ordinary meaning of the various items enumerated in the costs statute”) — *McKelvey v. Secretary of United States Army, 6th Cir., 2014*

4 (holding that an award of costs under FRCP 54(d) is discretionary) — *Franchise Tax Bd. Vs. Hyatt, Nev., 2021*

3 (explaining that the "sense divider esp (for especially) indicates . . . the most common meaning") — *Institutional Shareholder Services Inc. v. Securities and Exchange Commission, D.D.C., 2024*

↑

344. Christopher v. Smithkline Beecham Corp.

132 S. Ct. 2156, SCOTUS, 2012

In 2020-24: cited by 87 decisions (appellate) · in all: 574 · 2021–2025: 183 · weight in the sub-cluster 95

Fit: 89% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:21.1 Federal Arbitration Act (sub-cluster), 3%)

Good law: green? (read the newest 100 of 628 citing opinions, filed 2023–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (41% of the 87 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Long Island Care (cosine 0.12, 7 both); Auer (cosine 0.09, 29 both); Kisor (cosine 0.08, 36 both)

How later courts describe it (151 parentheticals; groups of similar wording, largest first; other courts' words)

10 (stating that an agency's interpretation may not reflect its fair and considered judgment "when the agency's interpretation conflicts with a prior interpretation") — *Cardiosom, L.L.C. v. United States, Fed. Cl., 2014*

10 (noting that the term including indicates that the examples enumerated in the text are illustrative and not exhaustive) — *Nay, Or. Ct. App., 2014*

9 (noting that "an interpretation is not owed deference when it is nothing more than a convenient litigating position or a post hoc rationalizatio[n] advanced by an agency seeking to defend past agency action against attack.") — *Redding Rancheria v. Kenneth Salazar, 9th Cir., 2015*

8 (holding that 5 agencies must provide "fair warning of the conduct a regulation prohibits or requires") — *Comcast Cable Communications, LLC v. Federal Communications Commission, D.C. Cir., 2013*

5 (first quoting Auer v. Robbins, 519 U.S. 452, 462 (1997); then quoting Bowen v. Georgetown Univ. Hosp., 488 U.S. 204, 213 (1988)) — *Willie Ousley v. Comm'r of Soc. Sec., 6th Cir., 2018*

5 (noting that "Auer ordinarily calls for deference to an agency's interpretation of its own ambiguous regulation, even when that interpretation is advanced in a legal brief.... ") — *Columbia Gas Transmission, LLC v. 1.01 Acres, More or Less, 3rd Cir., 2014*

4 ("It is one thing to expect regulated parties to conform their conduct to an agency's interpretations once the agency announces them; it is quite another to require regulated parties to divine the agency's interpretations in advance____") — *Kolbe, 1st Cir., 2013*

4 (explaining why a new interpretation of an agency's regulations advanced during litigation does not receive deference) — *Policy & Research, LLC v. U.S. Dep't of Health & Human Servs., D.C. Cir., 2018*

↑

345. Pollinator Stewardship Council v. U.S. Environmental Protection Agency

806 F.3d 520, 9th Cir., 2015

In 2020-24: cited by 18 decisions (appellate) · in all: 79 · 2021–2025: 52 · weight in the sub-cluster 9

Fit: 89% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 11%)

Good law: green? (read the newest 79 of 79 citing opinions, filed 2016–2025: status now, not the year it changed)

Role changed 2020-24: likely successor Department of Homeland Security v. Regents of Univ. of Cal., 140 S. Ct. 1891 (2020) (28% of the 18 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Usfs (cosine 0.14, 6 both); California Communities Against Toxics v. United States En... (cosine 0.09, 9 both); Pit River Tribe v. United States Forest Service (cosine 0.07, 5 both)

How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("We order remand without vacatur only in 'limited circumstances.'" (citations omitted)) — *Flint Wood v. Sylvia Burwell, 9th Cir., 2016*

2 (Courts "leave an invalid rule in place only when equity demands that we do so.") — *Survivors, N.D. Cal., 2018*

2 (finding vacatur appropriate when leaving in place an agency action risks more environmental harm than vacating it) — *Usfs, 9th Cir., 2018*

2 (holding "[u]conditional registration necessarily requires sufficient data to evaluate the environmental risks") — *Ellis, N.D. Cal., 2017*

1 (first quoting Cal. Cmtys. Against Toxics v. U.S. Envtl. Prot. Agency, 688 F.3d 989, 994 (9th Cir. 2012) then quoting Idaho Farm Bureau Fed'n v. Babbitt, 58 F.3d 1392, 1405 (9th Cir. 1995)) — *Southeast Alaska Conservation Council v. United States Forest Service, D. Alaska, 2020*

1 (reviewing "the EPA's decision to . . . register" a new insecticide) — *National Family Farm Coalition v. Usepa, 9th Cir., 2020*

1 (finding vacatur appropriate where "a different 10 result may be reached" on remand) — *State of Washington v. United States Department of the Navy, W.D. Wash., 2023*

1 (collecting cases where courts chose to remand without vacatur because vacatur would, for example, risk potential extinction of snails or lead to air pollution) — *Newland, D. Alaska, 2024*

↑

346. Ohio Valley Environmental Coalition v. Aracoma Coal Co.

556 F.3d 177, 4th Cir., 2009
In 2020-24: cited by 17 decisions (appellate) · in all: 381 · 2021–2025: 218 · weight in the sub-cluster 9
Fit: 89% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 11%)
Good law: green? (read the newest 100 of 389 citing opinions, filed 2024–2026: status now, not the year it changed)
Travels with: American Whitewater v. Thomas Tidwell (cosine 0.17, 6 both); Sierra Club, Inc. v. U.S. Forest Service (cosine 0.10, 6 both); USDA (cosine 0.08, 5 both)
How later courts describe it (34 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (declining to take judicial notice of one party's interpretation of a decisional document of the U.S. Army Corps of Engineers) — *Norfolk County Retirement System v. Smith, D. Maryland, 2019*
- **2** (applying the same test under federal law) — *Lewis-Davis, D. Maryland, 2021*
- **2** ("[A]n agency may avoid issuing an EIS where it finds that mitigating measures can be taken to reduce the environmental impact of the project below the level of significance.") — *Hurst, S.D.W. Va, 2009*
- **2** ("Settlement agreements operate on contract principles, and thus the preclusive effect of a settlement agreement 'should be measured by the intent of the parties.'") — *Wormuth, D. Maryland, 2021*
- **2** ("When an agency is called upon to make complex predictions within its area of special expertise, a reviewing court must be at its most deferential") — *Kentuckians for the Commonwealth v. U.S. Army Corps of Engineers, W.D. Ky., 2013*
- **1** (setting out the elements of issue preclusion) — *Christopher Chin-Young v. United States, 4th Cir., 2019*
- **1** (reviewing cumulative analysis under both the CWA and NEPA) — *O'Reilly, 5th Cir., 2023*
- **1** ("As long as the second suit 'arises out of the same transaction or series of transactions as the claim resolved by the prior judgment,' the first suit will have preclusive effect." (quoting Aliff v. Joy Mfg. Co., 914 F.2d 39, 43 (4th Cir.1990)) — *Davis, D. Maryland, 2026*

↑

347. New York v. Federal Energy Regulatory Commission

535 U.S. 1, SCOTUS, 2002
In 2020-24: cited by 31 decisions (appellate) · in all: 214 · 2021–2025: 52 · weight in the sub-cluster 32
Fit: 88% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 8%)
Good law: green? (read the newest 100 of 236 citing opinions, filed 2015–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Midwest Iso Transmission Owners v. Federal Energy Regulat..., 373 F.3d 1361 (2004) (29% of the 38 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Travels with: Electric Power Supply (cosine 0.20, 15 both); Ferc (cosine 0.08, 8 both); Midwest Iso Transmission Owners v. Federal Energy Regulat... (cosine 0.08, 5 both)
How later courts describe it (54 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** ("In 1935, when the FPA became law, most electricity was sold by vertically integrated utilities that … operated as separate, local monopolies subject to state or local regulation.") — *LSP Transmission Holdings II, LLC v. Commonwealth Edison Company of Indiana, Inc., 7th Cir., 2025*
- **7** ("[T]he FPA contains … 'a clear and speci?c grant of jurisdiction' to FERC over interstate transmissions ….") — *LSP Transmission Holdings II, LLC v. Commonwealth Edison Company of Indiana, Inc., 7th Cir., 2025*
- **7** ("[A]n agency literally has no power to act ... unless and until Congress confers power upon it.") — *Mnuchin, D.C. Cir., 2017*
- **3** ("[TJransmissions on the interconnected national grids constitute transmissions in interstate commerce.") — *Federal Energy Regulatory Commission v. City Power Marketing, LLC, D.D.C., 2016*
- **3** (discussing: the Public Utility Regulatory Policies Act of 1978, Pub.L. No. 95-617, 92 Stat. 3117 (codified at 16 U.S.C. §§ 2601, et seq. (2000))) — *North Star Steel Co. v. United States, Fed. Cl., 2005*
- **2** ("Competition among utilities was not prevalent.") — *Central Iowa Power Cooperative v. Midwest Independent Transmission System Operator, Inc., 8th Cir., 2009*
- **2** ("Market power through control of transmission is the single greatest impediment to competition.") — *Northwest Requirements Utilities v. Federal Energy Regulatory Commission, 9th Cir., 2015*
- **2** ("electricity that enters the grid immediately becomes a part of a vast pool of energy that is constantly moving in interstate com merce," linking producers and users across the country) — *Electric Power Supply, SCOTUS, 2016*

↑

348. Black Oak Energy, LLC v. Federal Energy Regulatory Commission

725 F.3d 230, D.C. Cir., 2013
In 2020-24: cited by 18 decisions (appellate) · in all: 42 · 2021–2025: 23 · weight in the sub-cluster 16
Fit: 88% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 12%)
Good law: green? (read the newest 43 of 43 citing opinions, filed 2013–2026: status now, not the year it changed)
Travels with: Ferc (cosine 0.09, 7 both); FERC (cosine 0.08, 5 both); FERC (cosine 0.08, 6 both)
How later courts describe it (13 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (declining to vacate agency action when "plausible that [agency] can redress its failure of explanation on remand while

reaching the same result") — *Standing Rock Sioux Tribe v. U.S. Army Corps of Eng'rs, D.C. Cir., 2017*

3 ("Although we remand, we do so without vacating . . . [after performing the disruption analysis] we deem it better to preserve the status quo as FERC reconsiders") — *FERC, 3rd Cir., 2024*

1 (remand for FERC to adequately explain its orders) — *Securities Industry & Financial Markets Ass'n v. United States Commodity Futures Trading Commission, D.D.C., 2014*

1 (remand without vacatur "is not an invitation to do nothing") — *American Hospital Association, D.D.C., 2023*

1 ("The Commission may well arrive at the same result it reached originally, but it must do so with more clarity than it showed in the first instance.") — *Ashe, D.D.C., 2013*

1 ("[V]acatur in this case would 60 certainly be disruptive because it would prompt yet another refund, which would require yet another charge on uninvolved market participants.") — *Haaland, D.D.C., 2022*

1 (remanding without vacatur to avoid "significant transaction costs" from "the whole cycle . . . repeat[ing] itself") — *Center for Biological Diversity v. Lee Zeldin, D.C. Cir., 2026*

1 (holding that the Federal Energy Regulatory Commission's orders requiring the regional transmission organization to recoup funds were arbitrary and capricious because the Commission failed to explain why recouping funds was warranted) — *Loan Syndications and Trading Association v. Securities and Exchange Commission, D.D.C., 2016*

↑

349. United States v. Piper

35 F.3d 611, 1st Cir., 1994

In 2020-24: cited by 17 decisions (appellate) · in all: 118 · 2021–2025: 12 · weight in the sub-cluster 9

Fit: 88% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.4 Eleventh Circuit sentencing reasonableness, 12%)

Good law: green? (read the newest 100 of 125 citing opinions, filed 1995–2026: status now, not the year it changed)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (23%)

Travels with: United States v. Jose Maria Mendoza-Figueroa (cosine 0.07, 5 both); Lewis (cosine 0.07, 6 both); United States v. Aumbrey Winstead (cosine 0.06, 7 both)

How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

5 (explaining that a conspirator must have intended both to agree and to effectuate the commission of the substantive offense) — *Patti, 1st Cir., 1997*

3 (holding that "there is no inconsistency" where an application note "neither excludes any [item] expressly enumerated in the [regulation], nor calls for the inclusion of any [item] that the [regulation] expressly excludes") — *Lee v. Conagra Brands, Inc., 1st Cir., 2020*

1 (commentary not inconsistent with § 4B1.2 because it "neither excludes any offenses expressly enumerated in the guideline, nor calls for the inclusion of any 22 One case Smith relied on, Raupp, involved a "crime of violence" under § 4B1.2(a) — *Vargas, 5th Cir., 2023*

1 ("The career offender regime, as crafted by Congress and the Sentencing Commission, is harsh, but the courts are obliged to enforce it according to its tenor. The district court did so here.") — *Shea, 1st Cir., 2020*

1 (including inchoate offenses comports with the "spirit" and "aim" of the guideline) — *Vargas, 5th Cir., 2023*

1 (relying on the commentary to § 4B1.2 in concluding that an Article 406 conviction for conspiracy to possess with intent to distribute over 100 kilograms of marijuana constitutes a controlled substance offense) — *Nieves-Borrero, 1st Cir., 2017*

1 (including inchoate offenses accords with the Commission's "oft-demonstrated preoccupation with punishing drug traffickers sternly") — *Vargas, 5th Cir., 2023*

1 (noting that a defendant who "intentionally agrees to undertake activities that facilitate commission of a substantive offense, but who does not intend to commit the offense himself" may be convicted of conspiracy) — *Wright, 1st Cir., 2019*

↑

350. Solarworld Americas, Inc. v. United States, Yingli Green Energy Holding Co.

910 F.3d 1216, Fed. Cir., 2018

In 2020-24: cited by 14 decisions (appellate) · in all: 30 · 2021–2025: 17 · weight in the sub-cluster 15

Fit: 88% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:26.1 Patent obviousness and PTAB review, 12%)

Good law: green? (read the newest 30 of 30 citing opinions, filed 2019–2026: status now, not the year it changed)

Travels with: Downhole Pipe & Equipment, L.P. v. United States (cosine 0.52, 11 both); Zhejiang Dunan Hetian Metal Co., Ltd. v. United States (cosine 0.37, 6 both); Nan Ya Plastics Corporation v. United States (cosine 0.09, 7 both)

How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("Commerce's finding may still be supported by substantial evidence even if two inconsistent conclusions can be drawn from the evidence." (citation omitted)) — *Al Ghurair Iron & Steel LLC v. United States, Fed. Cir., 2023*

2 (sustaining Commerce's surrogate value selection as best available information, in part because it was only surrogate value information on record) — *ACProducts, Inc. v. United States, Ct. Intl. Trade, 2026*

1 (explaining that, in selecting surrogate values, "Commerce is not required to engage in a classification analysis but instead is required to deter- mine which of the competing subheadings constituted the best available information" (internal quotation marks and citation omitted)) — *Changzhou Trina Solar Energy v. United States, Fed. Cir., 2020*

1 (holding Commerce is not required to deviate from its normal methodology in selecting surrogate values, absent a legitimate

reason) — *Weishan Hongda Aquatic Food Co. v. United States, Fed. Cir., 2019*

↑

351. FCC v. Prometheus Radio Project

592 U.S. 414, SCOTUS, 2021
In 2020-24: cited by 23 decisions (appellate) · in all: 158 · 2021–2025: 158 · weight in the sub-cluster 9
Fit: 88% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 12%)
Good law: green? (read the newest 100 of 158 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.05, 14 both); Encino Motorcars (cosine 0.03, 8 both); FCC v. Fox (cosine 0.02, 7 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (requiring that an agency action "be reasonable and reasonably explained" under the APA's arbitrary-and- capricious standard) — *League of California Cities v. FCC, 9th Cir., 2024*
- **2** ("It is well established that petitioners challenging agency action may supplement the administrative record for the purpose of establishing Article III standing, even though judicial review of agency action is usually limited to the administrative record.") — *Gallinas Canal Acequia Association v. Federal Emergency Management Agency, D.N.M., 2025*
- **2** (first quoting Motor Vehicle Mfrs. Ass'n of the U.S. v. State Farm Mut. Auto. Ins. Co., 463 U.S. 29, 57 (1983) — *State of Texas v. EPA, 5th Cir., 2025*
- **1** ("[The] court 'must set aside any action premised on reasoning that fails to account for relevant factors or evinces a clear error of judgment.'" (quotation omitted)) — *Federation of Americans for Consumer Choice, Inc. v. United States Department of Labor, E.D. Tex., 2024*
- **1** ("The APA imposes no general obligation on agencies to con- duct or commission their own empirical or statistical studies.") — *Citadel Securities LLC v. U.S. Securities and Exchange Commission, 11th Cir., 2026*
- **1** (endorsing an agency's reliance, in part, on the "the absence of any countervailing evidence") — *Citadel Securities LLC v. U.S. Securities and Exchange Commission, 11th Cir., 2026*
- **1** (noting that "a court may not substitute its own policy judgment for that of the agency" on arbitrary and capricious review) — *Verizon Commc'ns Inc. v. Fed. Commc'ns Comm'n, 2d Cir., 2025*

↑

352. Auer v. Robbins

519 U.S. 452, SCOTUS, 1997 • note built
In 2020-24: cited by 162 decisions (appellate) · in all: 2,423 · 2021–2025: 290 · weight in the sub-cluster 231
Fit: 87% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 3%)
Good law: red 2024 (read 553 of 2,660 citing opinions)
2024 (SCOTUS): strong "overrule", could overrule — *Raimondo*: r health-care decisions, their educational decisions—around agency actions that are suddenly now subject to challenge. In Kisor, this Court refused to overrule Auer because doing so would "cast doubt on" many longstanding constructions of rules, and thereby upset settled expectations. 588 U. S., at…
2024 (SCOTUS): strong "overrule", could overrule — *Raimondo*: r health-care decisions, their educational decisions—around agency actions that are suddenly now subject to challenge. In Kisor, this Court refused to overrule Auer because doing so would "cast doubt on" many longstanding constructions of rules, and thereby upset settled expectations. 588 U. S., at…
2020 (D.N.M.): strong "overrule" — *Walker*: rict court has broad discretion to reconsider its 1 Auer v. Robbins, 519 U.S. 452 (1997). 2 In Kisor the Court granted certiorari to decide whether to overrule Auer. See 139 S. Ct. at 2409 . The Court did not overrule Auer but did "reinforce its limits," id. at 2408 , none of which, as the Court…
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (66% of the 162 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Bowles (cosine 0.21, 35 both); Kisor (cosine 0.16, 107 both); Christopher (cosine 0.09, 29 both)
How later courts describe it (412 parentheticals; groups of similar wording, largest first; other courts' words)

- **257** (holding that an agency's interpretation of its own regulations is "controlling unless plainly erroneous or inconsistent with the regulation" (citation and quotation marks excluded)) — *Huang, 3rd Cir., 2010*
- **8** (concluding that Board of Police Commissioners was not an arm of the state because the state was not responsible for the Board's financial liabilities and the only form of state control was the governor's power to appoint four of five Board members) — *United States Ex Rel. Oberg v. Pennsylvania Higher Education Assistance Agency, 4th Cir., 2014*
- **8** (holding that agency interpretations of their own regulations are "controlling unless 'plainly erroneous or inconsistent with the regulation'" (quoting Robertson v. Methow Valley Citizens Council, 490 U.S. 332, 359 (1989))) — *OWCP, 6th Cir., 2020*
- **7** (finding that an agency's subsequent interpretation of it's own regulation in an amici brief was "in no sense a 'post hoc rationalization' advanced by an agency seeking to defend past agency action against attack") — *Collins, D.D.C., 2006*
- **6** (noting that an agency has "power to resolve ambiguities in [its] own regulations") — *Wilderness Workshop v. United States Bureau of Land Management, 10th Cir., 2008*
- **5** (holding the salary basis test turns on whether the employer's actual practice involves deducting pay or whether the employer has a policy creating a likelihood pay would be deducted for partial-day absences) — *Marcie Guerrero v. J.W. Hutton, Inc., 8th Cir., 2006*
- **5** (finding that Secretary's interpretation was not a "post hoc rationalization" and that it represented the agency's "fair and considered judgment") — *Robert Wood Johnson University Hospital, a Non-Profit Corporation v. Tommy G. Thompson, United States Department of Health and Human Services, 3rd Cir., 2002*

5 (holding that the FLSA grants the Secretary broad authority to define and delimit scope of FLSA exemptions) — *Higgins, M.D. Penn., 2021*

↑

353. Marsh v. Oregon Natural Resources Council

490 U.S. 360, SCOTUS, 1989
In 2020-24: cited by 56 decisions (appellate) · in all: 1,943 · 2021–2025: 197 · weight in the sub-cluster 37
Fit: 87% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green (read 507 of 2,028 citing opinions)
Travels with: Robertson (cosine 0.06, 15 both); State Farm (cosine 0.05, 35 both); NRDC (cosine 0.05, 11 both)
How later courts describe it (278 parentheticals; groups of similar wording, largest first; other courts' words)

79 (holding that the standard for supplementing an EA is the same as for an EIS) — *Idaho Sporting Congress Inc. v. David Alexander, 9th Cir., 2000*

67 (holding that "an agency must have discretion to rely on the reasonable opinions of its own qualified experts even if, as an original matter, a court might find contrary views more persuasive.") — *Coalition for Government Procurement v. Federal Prison Industries, Inc., 6th Cir., 2004*

8 (explaining that requiring a supplemental EIS every time new information is available "would render agency decisionmaking intractable") — *Bpa, 9th Cir., 2016*

7 (holding that agency action will not be reversed under the "arbitrary and capricious" standard of review absent a clear error of judgment) — *Sara Lee Corp. v. American Bakers Ass'n Retirement Plan, D.D.C., 2009*

6 (NEPA embodies "sweeping commitment" to environmental safety and principle that "the agency will not act on incomplete information, only to regret its decision after it is too late to correct") — *Monsanto Co. v. Geertson Seed Farms, SCOTUS, 2010*

5 (arbitrary and capricious standard applies to agency findings which involve agency expertise) — *Kandra, D. Or., 2001*

5 (explaining that the difference between "arbitrary and capricious" and "reasonableness" review "is not of great pragmatic consequence") — *Ohio Valley Environmental Coalition, Inc. v. United States Army Corps of Engineers, S.D.W. Va, 2012*

3 ("Connelly and his co-authors recognized that 'populations of sage-grouse have been extirpated at places throughout their former range concomitant with habitat loss and degradation, so that the species' current distribution is less closely aligned with that of sagebrush.'") — *Tidwell, 9th Cir., 2010*

↑

354. Erick Carter v. Welles-Bowen Realty, Inc.

736 F.3d 722, 6th Cir., 2013
In 2020-24: cited by 15 decisions (appellate) · in all: 34 · 2021–2025: 17 · weight in the sub-cluster 8
Fit: 87% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.5 Ballot access and election regulation: Anderson-Burdick, 13%)
Good law: green (read 42 of 42 citing opinions)
Travels with: Guedes (cosine 0.06, 5 both); Mead (cosine 0.05, 7 both); ATF (cosine 0.04, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

2 (Section 8(c)(2) is a "safe harbor[]" from Section 8(a)'s "ban on referral fees") — *CFPB, D.C. Cir., 2016*

1 ("All manner of presumptions, substantive canons and dear-statement rules take precedence over conflicting agency views ... Why treat the rule of lenity, the most venerable and venerated of interpretive principles, differently?") — *Scully, E.D.N.Y, 2015*

1 (suggesting Yakus held that heightened congressional specificity may be required in criminal cases) — *Scully, E.D.N.Y, 2015*

1 (describing O'Hagan as "hon- or[ing] the principle that "greater congressional specificity [may be] required in the criminal context." " (Sutton, J., concurring opinion)(emphasis added) (citation omitted)) — *Scully, E.D.N.Y, 2015*

1 (emphasizing that Congress enacted a safe harbor to eliminate legal uncertainty and used "precision in de?ning the boundaries," and rejecting an interpretation that "would reintroduce much of the uncertainty the safe harbor meant to eliminate") — *Schneider National Leasing Inc v. United States, 7th Cir., 2021*

↑

355. Christensen v. Harris County

529 U.S. 576, SCOTUS, 2000
In 2020-24: cited by 67 decisions (appellate) · in all: 1,831 · 2021–2025: 181 · weight in the sub-cluster 69
Fit: 87% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 5%)
Good law: green (read 556 of 2,023 citing opinions)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (30% of the 67 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Skidmore (cosine 0.14, 28 both); Mead (cosine 0.08, 12 both); GUTIERREZ (cosine 0.04, 5 both)
How later courts describe it (500 parentheticals; groups of similar wording, largest first; other courts' words)

411 (holding that agency interpretations in opinion letters "lack the force of law" and are entitled only to Skidmore deference) — *Catskill Development, L.L.C. v. Park Place Entertainment Corp., 2d Cir., 2008*

10 (holding that agency opinion letters and policy statements, unlike regulations, are not entitled to deference under Chevron U.S.A. Inc. v. Natural Res. Def. Council, Inc., 467 U.S. 837 (1984)) — *Hcmf Corporation v. Claude A. Allen, 4th Cir., 2001*

7 (discussing the canon of statutory interpretation providing that, "[w]hen a statute limits a thing to be done in a particular mode, it includes a negative of any other mode" (quoting Raleigh & Gaston R.R. Co. v. Reid, 80 U.S. 269, 270 (1871))) — *Samuel Babalola v. Arun Sharma, 5th Cir., 2014*

5 ("Unless the FLSA prohibits respondents from adopting its policy, petitioners cannot show that Harris County has violated the FLSA.") — *Oregon Restaurant and Lodging v. Thomas Perez, 9th Cir., 2016*

4 (explaining that if Chevron deference is not appropriate, courts may still accord an informal agency determination some deference under Skidmore v. Swift & Co., 323 U.S. 134 (1944) — *Ashe, D.D.C., 2020*

3 (less formal agency determinations deserve less deference from courts) — *Sheilar Smith v. OSF Healthcare System, 7th Cir., 2019*

3 (declining to defer to an agency interpretation reached without formal adjudication or notice-and-comment rulemaking) — *Bellsouth Telecommunications, Inc. v. Mcimetro Access Transmission Services, Inc., 11th Cir., 2003*

3 (explaining that if Chevron deference is not appropriate, courts may still accord an informal agency determination some deference under Skid-more; noting, however, that Skidmore deference is appropriate "only to the extent that those interpretations have the 'power to persuade' ") — *Northern Air Cargo v. United States Postal Service, D.D.C., 2010*

↑

356. Long Island Care at Home, Ltd. v. Coke

551 U.S. 158, SCOTUS, 2007

In 2020-24: cited by 25 decisions (appellate) · in all: 309 · 2021–2025: 65 · weight in the sub-cluster 23

Fit: 87% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 8%)

Good law: green? (read the newest 100 of 339 citing opinions, filed 2018–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (48% of the 25 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Christopher (cosine 0.12, 7 both); Kisor (cosine 0.04, 12 both); Encino Motorcars (cosine 0.04, 6 both)

How later courts describe it (78 parentheticals; groups of similar wording, largest first; other courts' words)

6 ("[A]s long as interpretive changes create no unfair surprise[,] ... the change in interpretation alone presents no separate ground for disregarding the Department's present interpretation.") — *McMunn v. Babcock & Wilcox Power Generation Group, Inc., 3rd Cir., 2017*

6 ("[A]n agency's interpretation of its own regulations is controlling unless plainly erroneous or inconsistent with the regulations being interpreted." (internal quotation marks omitted)) — *Mathews, Va., 2012*

6 (finding that an interpretation codified through notice-and-comment rulemaking was "unlikely" to create "unfair surprise") — *Knapp, 5th Cir., 2015*

6 (stating that the deferential standard applies when the agency's "action indicates that the interpretation of its own regulation reflects considered views") — *Aeolus Systems, LLC v. United States, Fed. Cl., 2007*

5 (noting that the FLSA "explicitly leaves gaps" that the Department of Labor has "the power to fill ... through rules and regulations") — *Ramos, 2d Cir., 2012*

4 ("The Courts of Appeals have generally in- terpreted this to mean that the final rule the agency adopts must be a logical outgrowth of the rule proposed" (internal quotation marks omitted)) — *FDA, SCOTUS, 2025*

4 (stating that "normally the specific governs the general") — *Becerra, D.D.C., 2023*

2 (applying this canon of construction to regulations) — *CIR, 9th Cir., 2009*

↑

357. United States v. Ron Pair Enterprises, Inc.

489 U.S. 235, SCOTUS, 1989

In 2020-24: cited by 62 decisions (appellate) · in all: 4,334 · 2021–2025: 277 · weight in the sub-cluster 21

Fit: 87% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.16 Copyright: originality, infringement and fair use, 7%)

Good law: green? (read the newest 100 of 4,655 citing opinions, filed 2023–2026: status now, not the year it changed)

Travels with: Hartford Underwriters (cosine 0.09, 9 both); Robinson (cosine 0.06, 13 both); Griffin (cosine 0.05, 6 both)

How later courts describe it (650 parentheticals; groups of similar wording, largest first; other courts' words)

490 (holding that the "grammatical structure of the statute," specifically the placement of commas, mandated a specific construction) — *Kahn Lucas Lancaster, Inc. v. Lark International Ltd., 2d Cir., 1999*

18 (holding that a creditor is unqualifiedly entitled to post-petition interest on its oversecured claim) — *Veterans Holdings, LLC, Bankr. E.D. La., 2025*

13 (stating that § 506(a) "provides that a claim is secured only to the extent of the value of the property on which the lien is fixed; the remainder of that claim is considered unsecured") — *In Re Concannon, 9th Cir. BAP, 2006*

6 (finding that under section 506(b) fees, costs and charges must all be reasonable, and must be allowed by agreement) — *In re 804 Congress, L.L.C., Bankr. W.D. Tex., 2015*

5 (Construing section 506(b) of the Bankruptcy Code, 11 U.S.C. § 506(b)) — *In Re Amsterdam Ave. Development Associates, Bankr. S.D.N.Y., 1989*

4 (where statutory language is open to interpretation, a "court must determine whether Congress has expressed an intent to change the interpretation of a judicially created concept in enacting the [Bankruptcy] Code") — *Garcia v. United States, 5th Cir., 1992*

4 (holding that where Congress expresses its intent "with sufficient precision," then "reference to legislative history and to pre-Code practice is hardly necessary") — *Pg&e Corporation v. Ad Hoc Committee of Holders, 9th Cir., 2022*

3 ("The first step in statutory construction is to consider the plain language of the statute.") — *NICHOLS, D.N.J., 2023*

↑

358. AVETISYAN

25 I. & N. Dec. 688, BIA, 2012

In 2020-24: cited by 54 decisions (appellate) · in all: 127 · 2021–2025: 69 · weight in the sub-cluster 56

Fit: 86% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.1 Ninth Circuit asylum: particular social group and nexus, 9%)

Good law: green? (read the newest 100 of 127 citing opinions, filed 2017–2026: status now, not the year it changed)

Role changed 2020-24: likely successor W-Y-U, 27 I. & N. Dec. 17 (2017) (39% of the 54 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Also ties to: 2020-24:16 Immigration and agency review (15%)

Travels with: W-Y-U (cosine 0.39, 21 both); CASTRO-TUM (cosine 0.16, 34 both); Vahora (cosine 0.12, 11 both)

How later courts describe it (21 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("In general, administrative closure may be appropriate to await an action or event that is relevant to immigration proceedings but is outside the control of the parties or the court and may not occur for a significant or undetermined period of time.") — *Orozco-Navarro, 9th Cir., 2025*

2 (administrative closure granted pending visa petition on adjustment of status) — *Abner Arcos Sanchez v. Attorney General United States, 3rd Cir., 2021*

2 (acknowledging "the undisputed fact that administrative closure does not result in a final order") — *Roberto Hernandez-Serrano v. William Barr, 6th Cir., 2020*

2 ("hold[ing] that the Immigration Judges and the Board may, in the exercise of independent judgment and discretion, administratively close proceedings under the appropriate circumstances, even if a party opposes") — *Jimenez, 9th Cir., 2024*

2 (cautioning that administrative closure is not appropriate "if the request is based on a purely speculative event or action") — *Isaac Garcia-Ruiz v. William Barr, 9th Cir., 2019*

1 ("In conducting proceedings, an Immigration Judge exercises the powers and duties delegated by law and by the Attorney General of the United States through regulation.") — *KHAN, BIA, 2016*

1 ("Administrative closure is a tool used to regulate proceedings, that is, to[jmanage an Immigration Judge's calendar (or the Board's docket).") — *Aguirre, 1st Cir., 2013*

1 (setting forth six factors for the IJ or BIA to consider) — *Raul Medina Herrera v. Merrick Garland, 9th Cir., 2022*

↑

359. Pauley v. BethEnergy Mines, Inc.

501 U.S. 680, SCOTUS, 1991

In 2020-24: cited by 21 decisions (appellate) · in all: 479 · 2021–2025: 36 · weight in the sub-cluster 14

Fit: 86% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 14%)

Good law: green? (read the newest 100 of 523 citing opinions, filed 2014–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (77% of the 22 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Kisor (cosine 0.07, 16 both); Auer (cosine 0.04, 9 both); Chevron (cosine 0.02, 12 both)

How later courts describe it (84 parentheticals; groups of similar wording, largest first; other courts' words)

15 (notingthat generally "the case for judicial deference is less compelling with respect to agency positions that are inconsistent with previously held views") — *Hylsa, S.A. de C.V. v. United States, Ct. Intl. Trade, 1998*

10 (the agency's interpretation "need not be the best or most natural one by grammatical or other standards") — *Kisor, SCOTUS, 2019*

9 ("When Congress, through express delegation ... has delegated policy-making authority to an administrative agency, the extent of judicial review of the agency's policy determinations is limited.") — *Sebelius, D.D.C., 2011*

4 ("Having determined that the Secretary's position is entitled to deference, we must decide whether this position is reasonable.")

3 (emphasizing necessity that deference be so informed) — *Beverly Enterprises, Virginia, Inc. v. National Labor Relations Board, 4th Cir., 1999*

3 ("When a provision sets forth a general rule followed by specific exceptions to that rule, one must assume-absent other evidence — that no further exceptions are intended.") — *L. Claire Lander, Charles M. Droz, Julian Block, and Zelda Block v. Hartford Life & Annuity Insurance Company and Hartford Life Insurance Company, 2d Cir., 2001*

3 (though an agency decision to reinterpret a statute is entitled to Chevron deference, such an interpretation is "less persuasive") — *Combs, Tex., 2008*

3 (affording deference to the Department of Labor's ("DOL") interpretation of regulations promulgated by the Department of Health, Education and Welfare ("HEW") — *Murphy v. United States, Fed. Cl., 2017*

360. Bowen v. Georgetown University Hospital

488 U.S. 204, SCOTUS, 1988
In 2020-24: cited by 69 decisions (appellate) · in all: 1,830 · 2021–2025: 168 · weight in the sub-cluster 34
Fit: 86% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 7%)
Good law: green (read 554 of 2,011 citing opinions)
Role changed 1995-99: likely successor Landgraf, 511 U.S. 244 (1994) (40% of the 145 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: Landgraf (cosine 0.07, 20 both); Auer (cosine 0.02, 7 both); Rivers (cosine 0.02, 5 both)
How later courts describe it (437 parentheticals; groups of similar wording, largest first; other courts' words)

- **134** (holding that courts will not defer to an agency's litigating position where it contradicts the agency's prior "regulations, rulings, or administrative practice") — *Mexichem Specialty Resins, Inc. v. Environmental Protection Agency, D.C. Cir., 2015*
- **108** (holding that "congressional enactments ... will not be construed to have retroactive effect unless their language requires this result") — *Federal Deposit Insurance Corporation v. D.L. Faulkner, 5th Cir., 1993*
- **27** (stating that "[i]t is axiomatic that an administrative agency's power to promulgate legislative regulations is limited to the authority delegated by Congress")
- **26** (holding that "a statutory grant of legislative rulemaking authority will not, as a general matter, be understood to encompass the power to promulgate retroactive rules unless that power is conveyed by Congress in express terms.") — *Butler v. Daimler Trucks North America LLC, D. Kan., 2020*
- **12** (declining to defer to agency interpretations forwarded for the first time in connection with litigation) — *Seeton, Pa., 2007*
- **9** (explaining that "retro-activity is not favored in the law.") — *PASCAVAGE, D. Del., 2011*
- **8** (holding that agency regulations cannot be applied retroactively unless Congress has so authorized the administrative agency and the language of the regulations require it) — *Jamison, N.D. Ill., 2013*
- **8** (holding that regulations cannot be applied retroactively unless the power to promulgate retroactive rules "is conveyed by Congress in express terms.") — *Dollar, N.D. Iowa, 2011*

361. Rapanos v. United States

547 U.S. 715, SCOTUS, 2006
In 2020-24: cited by 31 decisions (appellate) · in all: 373 · 2021–2025: 95 · weight in the sub-cluster 11
Fit: 85% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 15%)
Good law: green (read 415 of 415 citing opinions)
Travels with: Riverside Homes (cosine 0.16, 5 both); Solid Waste Agency of Northern Cook County v. United Stat... (cosine 0.13, 8 both); City of Milwaukee v. Illinois (cosine 0.04, 6 both)
How later courts describe it (70 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (plurality opinion of Scalia, J.) — *Salim Hamdan v. United States, D.C. Cir., 2012*
- **4** (emphasizing the Court's "oft-expressed skepticism towards reading the tea leaves of congressional inaction") — *J-S, BIA, 2008*
- **4** (stating that "the CWA authorizes federal jurisdiction only over 'waters'" and that "the agency must prove that the contaminant-laden waters ultimately reach covered waters") — *Ragsdale, W.D. Tex., 2024*
- **3** ("con- ditional language" like "potential ability" may "suggest an undue degree of speculation, and a reviewing court must identify substantial evidence") — *Orchard Hill Building Company v. United States Army Corps of En, 7th Cir., 2018*
- **3** (noting that the meaning of "navigable waters" in CWA was broader than "the traditional understanding of that term") — *Berthelot, 5th Cir., 2009*
- **2** (saved as ECF opinion attachment No. 1) — *Alan J. Schneider v. Donaldson Funeral Home, P.A., 4th Cir., 2018*
- **2** (federal regulation of navigable waters and wetlands) — *Gulf Restoration Network v. Gina McCarthy, 5th Cir., 2015*
- **2** ("In deciding whether to grant or deny a permit, the [Corps] exercises the discretion of an enlightened despot, relying on such factors as 'economics,' 'aesthetics,' 'recreation,' and 'in general, the needs and welfare of the people.'") — *Hearts Bluff Game Ranch, Inc. v. State, Tex., 2012*

362. Department of Transportation v. Public Citizen

541 U.S. 752, SCOTUS, 2004
In 2020-24: cited by 47 decisions (appellate) · in all: 557 · 2021–2025: 119 · weight in the sub-cluster 29
Fit: 85% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 8%)
Good law: green (read 501 of 598 citing opinions)
Travels with: Robertson (cosine 0.12, 17 both); Barnes (cosine 0.05, 7 both); Waterworth (cosine 0.05, 5 both)
How later courts describe it (79 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** ("An agency's decision not to prepare an EIS can be set aside only upon a showing that it was 'arbitrary, capricious, an abuse of discretion, or otherwise not in accordance with law.' ") — *Delaware Department of Natural Resources & Environmental Control v. United States Army Corps of Engineers, 3rd Cir., 2012*
- **5** (stating that "an [environmental assessment's] . . . flaws might be so obvious that there is no need for a commenter to point

them out") — *Bostick, 10th Cir., 2015*

5 (holding that objections to the failure to consider alternatives beyond those evaluated in the EA were forfeited by failure to identify additional alternatives during notice and comment period) — *NORTH IDAHO COMMUNITY v. US Dept. of Transp., 9th Cir., 2008*

4 (requiring no new EIS based on "new potential information" where it "would serve 'no purpose' in light of NEPA's regulatory scheme as a whole") — *Audubon Society of Portland v. Deb Haaland, 9th Cir., 2022*

2 ("Persons challenging an agency's compliance with NEPA must structure their participation so that it alerts the agency to the parties' position and contentions, in order to allow the agency to give the issue meaningful consideration.") — *Higgins, D. Idaho, 2021*

2 ("We hold that where an agency has no ability to prevent a certain effect due to its limited statutory authority over the relevant actions, the agency cannot be considered a legally relevant 'cause' of the effect.") — *City of Shoreacres v. Waterworth, 5th Cir., 2005*

2 ("NEPA imposes only procedural requirements on federal agencies with a particular focus on requiring agencies to undertake analyses of the environmental impact of their proposals and actions.") — *Defenders of Wildlife v. United States Department of the Navy, S.D. Ga., 2012*

2 (refusing to examine an argument that the agency failed to consider possible alternatives to its final regulations because such argument was not presented to the agency "in order to allow the agency to give the issue meaningful consideration") — *Burwell, D. Wyo., 2015*

↑

363. Ransom v. FIA Card Services, N. A.

131 S. Ct. 716, SCOTUS, 2011

In 2020-24: cited by 21 decisions (appellate) · in all: 397 · 2021–2025: 93 · weight in the sub-cluster 6

Fit: 85% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.14 Implied private rights of action (Cort v. Ash) and § 1983, 15%)

Good law: green? (read the newest 100 of 410 citing opinions, filed 2020–2026: status now, not the year it changed)

Travels with: Hartford Underwriters (cosine 0.04, 6 both); Dole (cosine 0.03, 5 both); New York v. United States (cosine 0.02, 5 both)

How later courts describe it (105 parentheticals; groups of similar wording, largest first; other courts' words)

7 (describing "BAPCPA's core purpose [as] ensuring that debtors devote their full disposable income to repaying creditors") — *Ana Flores v. Rod Danielson, 9th Cir., 2013*

6 (holding that a court's "interpretation of the Bankruptcy Code starts where all such inquiries must begin: with the language of the statute itself") — *Toyota Motor Credit Corp. v. Dunn (In re Dunn), E.D. Pa., 2018*

5 (addressing the "means test" adopted to "ensure that debtors who can pay creditors do pay them") — *Timothy Branigan v. Bryan Davis, 4th Cir., 2013*

4 ("For the Other Necessary Expense categories ... the debtor may deduct his actual expenses, no matter how high they are.") — *Baud, 5th Cir., 2011*

4 (stating that, when the Bankruptcy Code does not define a term used, we look to its ordinary meaning) — *In Re Scholz, 9th Cir. BAP, 2011*

3 (using dictionaries to define word "applicable" in Bankruptcy Code) — *John Matthew Ikalowych, Bankr.D. Colo., 2021*

3 ("'The heart of [BAPCPA's] consumer bankruptcy reforms ... is intended to ensure that debtors repay creditors the maximum they can afford.' ") — *In re Escarcega, 9th Cir. BAP, 2017*

3 (agreeing with the Seventh Circuit's holding in Ross-Tousey and noting that orders denying a § 707(b) — *Stearns, E.D. Ill., 2018*

↑

364. Facebook, Inc. v. Duguid

592 U.S. 395, SCOTUS, 2021

In 2020-24: cited by 72 decisions (appellate) · in all: 384 · 2021–2025: 384 · weight in the sub-cluster 30

Fit: 85% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.6 Federal Indian law and tribal sovereignty, 5%)

Good law: green? (read the newest 100 of 386 citing opinions, filed 2023–2026: status now, not the year it changed)

Travels with: Barnhart (cosine 0.07, 21 both); Lockhart (cosine 0.07, 19 both); Cyan, Inc. v. Beaver County Employees Retirement Fund (cosine 0.04, 10 both)

How later courts describe it (68 parentheticals; groups of similar wording, largest first; other courts' words)

6 (applying the rule of the last antecedent in the context of statutory interpretation) — *Crawford, N.D. Okla., 2024*

3 (The series-quali?er canon captures a sentence's "most natural reading.") — *Philadelphia Indemnity Insurance Company v. Kinsey & Kinsey, Inc., 7th Cir., 2025*

3 (noting that the Supreme Court has declined "to apply the [last antecedent] rule where . . . the modifying clause appears after an integrated list") — *Woolley, M.D. Penn., 2023*

2 (explaining the series qualifier cannon) — *In re: Three PA Skill Amusement; Apl. of: Comm, Pa., 2026*

2 ("To qualify as an [ATDS], a device must have the capacity to store a telephone number using a random or sequential generator or produce a telephone number using a random or sequential number generator.") — *Barnett, W.D. Ky., 2022*

2 ("[A] qualifying phrase separated from antecedents by a comma is evidence that the qualifier is supposed to apply to all the antecedents instead of only to the immediately preceding one.") — *Anhui Powerguard Tech Co, Ltd v. DRE Health Corporation, 8th Cir.,*

2024

2 ("Autodialers could reach cell phones, pagers, and unlisted numbers, inconveniencing consumers and imposing unwanted fees.") — *COLIN BRICKMAN V. META PLATFORMS, INC., 9th Cir., 2022*

2 ("[A] limiting clause or phrase . . . should ordinarily be read as modifying only the noun or phrase that it immediately follows." (citation omitted)) — *Michele Leuthauser v. USA, 9th Cir., 2023*

↑

365. Barnhart v. Walton

535 U.S. 212, SCOTUS, 2002
In 2020-24: cited by 22 decisions (appellate) · in all: 1,174 · 2021–2025: 498 · weight in the sub-cluster 21
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 7%)
Good law: green? (read the newest 100 of 1,237 citing opinions, filed 2024–2026: status now, not the year it changed)
Travels with: Martin (cosine 0.04, 5 both); Alaska Conservation (cosine 0.04, 5 both); Wayman (cosine 0.04, 5 both)
How later courts describe it (242 parentheticals; groups of similar wording, largest first; other courts' words)

65 (deferring to the 9 Commissioner's "considerable authority" to interpret the Act) — *Gomez, W.D.N.Y., 2021*

47 (holding that the Social Security Act requires both the impairment and the subsequent inability to engage in any substantial gainful activity to last twelve months to meet the durational requirement) — *Iannopollo, W.D.N.Y., 2003*

16 (declaring that the court "normally accord[s] particular deference to an agency interpretation of 'longstanding' duration") — *Association of Irritated Residents v. U.S. Environmental Protection Agency, 9th Cir., 2015*

10 (holding that silence usually creates ambiguity the agency must resolve) — *Visinscaia, D.D.C., 2013*

10 (holding that the "'12 month' duration requirements apply to both the 'impairment' and the 'inability' to work requirements.") — *Edwards, D.N.H., 2019*

8 (noting that even where an "[a]gency previously reached its interpretation through means less formal than 'notice and comment' rulemaking, see 5 U.S.C. Section 553," this "does not automatically deprive that interpretation of the judicial deference otherwise its due.") — *Peters, 3rd Cir., 2003*

8 (noting that opinions covering two-to-three-month periods "would not satisfy the 12-month durational requirement for disability") — *Kirkwood, W.D.N.Y., 2023*

6 ("Courts grant an agency's interpretation of its own regulations considerable legal leeway") — *Kelly, D. Mass., 2003*

↑

366. Griffin v. Oceanic Contractors, Inc.

458 U.S. 564, SCOTUS, 1982
In 2020-24: cited by 28 decisions (appellate) · in all: 1,430 · 2021–2025: 92 · weight in the sub-cluster 7
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 16%)
Good law: green? (read the newest 100 of 1,578 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Crooks (cosine 0.07, 5 both); Ron Pair Enterprises (cosine 0.05, 6 both); Lamie (cosine 0.02, 6 both)
How later courts describe it (230 parentheticals; groups of similar wording, largest first; other courts' words)

128 (explaining that "interpretations of a statute which would produce absurd results are to be avoided if alternative interpretations consistent with the legislative purpose are available") — *Casa De Maryland, Incorporated v. Donald Trump, 4th Cir., 2020*

24 (noting that, "in rare cases [where] the literal application of a statute will produce a result demonstrably at odds with the intentions of its drafters, [the drafters'] intentions must be controlling") — *Shafer, 6th Cir., 2009*

11 (words by which the legislature undertook to give expression to its wishes is most persuasive evidence of the purpose of a statute) — *Skinner, D. Del., 1991*

7 ("The remedy for any dissatisfaction with the results in particular cases lies with Congress and not with this Court. Congress may amend the statute; we may not.") — *Valle, 2d Cir., 2015*

6 ("where [Congress'] will has been expressed in reasonably plain terms, that language must ordinarily be regarded as conclusive") — *Epstein, E.D. Wash., 1998*

5 ("Our task is to give effect to the will of Congress") — *Dee Bonnie MARLOWE, Plaintiff-Appellant, v. Bruno BOTTARELLI, Et Al., Defendants-Appellees, 7th Cir., 1991*

3 ("Resort to the legislative history, therefore, merely confirms that Congress intended the statute to mean exactly what its plain language says.") — *United States v. Matthew R. Lange, 7th Cir., 2002*

3 (quoting, United States v. American Trucking Ass'n, Inc., 310 U.S. 534, 543, 60 S.Ct. 1059, 1063, 84 L.Ed. 1345 (1940)) — *Smith v. Fidelity Consumer Discount Co., 3rd Cir., 1990*

↑

367. United States v. Jose Maria Mendoza-Figueroa

65 F.3d 691, 8th Cir., 1995
In 2020-24: cited by 36 decisions (appellate) · in all: 77 · 2021–2025: 29 · weight in the sub-cluster 34
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.4 Eleventh Circuit sentencing reasonableness, 6%)
Good law: green? (read the newest 78 of 78 citing opinions, filed 1995–2025: status now, not the year it changed)
Role changed 2020-24: likely successor United States v. Edward Merritt, 934 F.3d 809 (2019) (53% of the 36 decisions citing this

case in 2020-24 also cite it). (co-citation, not the text)
Travels with: United States v. Edward Merritt (cosine 0.44, 19 both); United States v. Trudale Raymond Williams (cosine 0.08, 6 both); Piper (cosine 0.07, 5 both)
No parentheticals.

↑ **368. Luminant Generation Co. v. United States Environmental Protection Agency**
675 F.3d 917, 5th Cir., 2012
In 2020-24: cited by 18 decisions (appellate) · in all: 43 · 2021–2025: 16 · weight in the sub-cluster 9
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.14 Implied private rights of action (Cort v. Ash) and § 1983, 16%)
Good law: green? (read the newest 49 of 49 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: Texas v. United States Environmental Protection Agency (cosine 0.13, 5 both); Mead (cosine 0.04, 5 both); Skidmore (cosine 0.03, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (for minor sources, the CAA requires only that the SIP regulate the construction of a stationary source "as necessary to assure that [NAAQS] are achieved" and "includes no specifics regarding the structure or functioning of minor NSR programs" (first quoting § 7410(a)(2)(C) — *Center Biological v. Dept Public Health, Colo. Ct. App., 2025*
- **1** (EPA conceded it "acted arbitrarily and capriciously by failing to supply any reason for its disapproval.") — *Dos Republicas Coal Partnership v. David Saucedo, as Floodplain Administrator and County Judge of the Maverick County Commissioners Court, and the Maverick County Commissioners Court, Tex. App.-Edinburg-Corpus Christi, 2015*
- **1** (affording "minimal" Skid-more deference to the Environmental Protection Agency's interpretation of the Clean Air Act, but holding the interpretation arbitrary and capricious) — *Baylor County Hospital Dist v. Thomas Price, 5th Cir., 2017*
- **1** (holding EPA was "arbitrary and capricious" in imposing a "similar source" requirement on a minor new source review (NSR) in a state's SIP) — *State of Texas v. EPA, 5th Cir., 2026*

↑ **369. Lugo v. Holder**
783 F.3d 119, 2d Cir., 2015
In 2020-24: cited by 9 decisions (appellate) · in all: 22 · 2021–2025: 10 · weight in the sub-cluster 8
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.9 around Schriro, 16%)
Good law: green? (read the newest 23 of 23 citing opinions, filed 2015–2025: status now, not the year it changed)
Travels with: Obeya (cosine 0.34, 8 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.03, 6 both); Landgraf (cosine 0.02, 6 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (remanding to the BIA where the court "would 4 benefit from the [administrative body's] precedential opinion" and expertise) — *2476-Cv, 2d Cir., 2015*
- **1** (adopting the Retail, Wholesale test for rules announced in BIA removal-proceeding adjudications) — *LI, S.D.N.Y., 2022*
- **1** (explaining the factors that courts apply when considering if an agency decision "may permissibly be applied retroactively") — *Bondi, 2d Cir., 2025*

↑ **370. United States v. Richardson**
958 F.3d 151, 2d Cir., 2020
In 2020-24: cited by 25 decisions (appellate) · in all: 34 · 2021–2025: 30 · weight in the sub-cluster 28
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.12 Second Circuit sentencing review, 16%)
Good law: green? (read the newest 34 of 34 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: United States v. Zimmian Tabb (cosine 0.17, 10 both); Lewis (cosine 0.13, 6 both); United States v. Martez Smith (cosine 0.12, 5 both)
How later courts describe it (10 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** ("Application Note 1 is not inconsistent with, or a plainly erroneous reading of § 4B1.2") — *James, 2d Cir., 2020*
- **2** (rejecting the same because it "contradicts our holdings in Tabb and Jackson.") — *Wynn, 2d Cir., 2021*
- **1** ("[W]e review issues of law de novo.") — *Weinlein, 2d Cir., 2024*
- **1** (relying on Stinson and prior circuit precedent to conclude that Application Note 1 is binding, without engaging in an analysis of Kisor) — *United States v. Roberto Castillo, 9th Cir., 2023*
- **1** (holding that Application Note 1 remained authoritative post-Kisor) — *Montes, S.D.N.Y., 2023*

↑ **371. Robertson v. Methow Valley Citizens Council**
490 U.S. 332, SCOTUS, 1989
In 2020-24: cited by 53 decisions (appellate) · in all: 1,384 · 2021–2025: 175 · weight in the sub-cluster 31
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1

Article III standing, 13%)
Good law: green (read 519 of 1,463 citing opinions)
Travels with: Department of Transportation v. Public Citizen (cosine 0.12, 17 both); Blackwood (cosine 0.08, 7 both); Kleppe (cosine 0.07, 8 both)
How later courts describe it (186 parentheticals; groups of similar wording, largest first; other courts' words)

- **33** (stating that NEPA "simply prescribes the necessary process" but "itself does not mandate particular results" (citations omitted)) — *Highway J Citizens Group v. Mineta, 7th Cir., 2003*
- **27** (holding that "NEPA merely prohibits uninformed - rather than unwise - agency action") — *Standing Rock Sioux Tribe v. United States Army Corps of Engineers, D.D.C., 2017*
- **21** (holding that "[i]f the adverse environmental effects of the proposed action are adequately identified and evaluated, the agency is not constrained by NEPA from deciding that other values outweigh the environmental costs") — *Geer, D. Mass., 1997*
- **16** (holding that NEPA requires neither that actions be taken to mitigate adverse effects of federal actions, nor that an EIS include an explanation of what measures will be employed to mitigate adverse environmental impacts) — *Swanson v. United States Forest Service, 9th Cir., 1996*
- **6** ("NEPA ensures that important effects will not be overlooked or underestimated only to be discovered after resources have been committed or the die otherwise cast.") — *San Luis & Delta-Mendota Water v. Natural Resources Defense Coun, 9th Cir., 2014*
- **6** (explaining that NEPA analysis should "focus on reasonably foreseeable impacts" and that no "worst case analysis" is required) — *FAA, 1st Cir., 2011*
- **5** (in turn quoting Bowles v. Seminole Rock & Sand Co., 325 U.S. 410, 414, 65 S.Ct. 1215, 89 L.Ed. 1700 (1945)) — *Miles Construction, Llc v. United States, Fed. Cl., 2013*
- **4** ("it would be incongruous to conclude that the Forest Service has no power to act until the local agencies have reached a final conclusion on what mitigating measures they consider necessary.") — *Usace, 9th Cir., 2008*

↑

372. Allegheny Defense Project v. FERC

964 F.3d 1, D.C. Cir., 2020
In 2020-24: cited by 25 decisions (appellate) · in all: 37 · 2021–2025: 35 · weight in the sub-cluster 16
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 16%)
Good law: green? (read the newest 37 of 37 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.07, 6 both); FERC (cosine 0.07, 8 both); FERC (cosine 0.07, 7 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (courts must take statutory language at its word) — *Wharf, Inc. v. District of Columbia, D.D.C., 2021*
- **1** (same language in tolling order at issue) — *FERC, D.C. Cir., 2021*
- **1** ("Federal agencies do not administer and have no relevant expertise in enforcing the boundaries of the courts' jurisdiction.") — *Estate of Joseph Maglioli v. Alliance HC Holdings, LLC, 3rd Cir., 2021*

↑

373. Morgan Stanley Capital Group Inc. v. Public Util. Dist. No. 1 of Snohomish Cty.

554 U.S. 527, SCOTUS, 2008
In 2020-24: cited by 41 decisions (appellate) · in all: 162 · 2021–2025: 57 · weight in the sub-cluster 38
Fit: 84% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 12%)
Good law: green? (read the newest 100 of 176 citing opinions, filed 2016–2026: status now, not the year it changed)
Travels with: Midwest Iso Transmission Owners v. Federal Energy Regulat... (cosine 0.09, 8 both); Electric Power Supply (cosine 0.07, 14 both); Wyman-Gordon (cosine 0.07, 10 both)
How later courts describe it (33 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (describing fraud and duress as "traditional grounds for the abrogation of [a] contract" that speak to "unfair dealing at the contract formation stage") — *Concepcion, SCOTUS, 2011*
- **2** ("There is only one statutory standard for assessing wholesale-electricity rates, whether set by contract or tariff — the just-and-reasonable standard.") — *FERC, 5th Cir., 2016*
- **2** ("If Congress had intended to impose such detailed constraints on the Commission's authority ..., it would have done so itself....") — *Coalition for Common Sense in Government Procurement v. United States, D.D.C., 2011*
- **2** ("That [the agency] provided a different rationale for the necessary result is no cause for upsetting its ruling.") — *Harry Calcutt III v. FDIC, 6th Cir., 2022*
- **2** (Because rates set through good-faith arm's-length negotiation are presumed reasonable, "FERC may abrogate a valid contract only if it harms the public interest.") — *Hughes, SCOTUS, 2016*
- **2** (rejecting the "obviously indefensible proposition that a standard different from the statutory just-and-reasonable standard applies to contract rates") — *NRG Power Marketing, LLC v. Maine Public Utilities Commission, SCOTUS, 2010*
- **1** (codified at 18 C.F.R. § 35.34) — *FERC, 8th Cir., 2020*
- **1** (agency must operate "consistent with sound business principles") — *Azar, N.D. Cal., 2019*

↑

374. Mills v. Green

159 U.S. 651, SCOTUS, 1895
In 2020-24: cited by 44 decisions (appellate) · in all: 955 · 2021–2025: 72 · weight in the sub-cluster 18
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 17%)
Good law: green? (read the newest 100 of 1,017 citing opinions, filed 2019–2026: status now, not the year it changed)
Role changed 1995-99: likely successor Church of Scientology, 506 U.S. 9 (1992) (61% of the 44 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: GUTIERREZ (cosine 0.05, 5 both); KHAN (cosine 0.05, 5 both); L. D. G. v. Eric Holder, Jr. (cosine 0.05, 5 both)
How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

- **12** (holding that an appeal must be dismissed as moot when events occurring during the pendency of the appeal render it "impossible" for the court to grant "any effectual relief whatever" to a prevailing party) — *McDow, D. Maryland, 1999*
- **5** (reminding courts "to decide actual controversies by a judgment which can be carried into effect, and not to give opinions upon moot questions or abstract propositions, or to declare principles or rules of law which cannot affect the matter in issue in the case before it") — *Petitev. McDonald, Vet. App., 2021*
- **2** (mootness obtains when court cannot provide a remedy) — *Bankr. L. Rep. P 74,609 in Re Public Service Company of New Hampshire, Debtor. Martin Rochman v. Northeast Utilities Service Group, 1st Cir., 1992*
- **1** ("It necessarily follows that when, pending an appeal from the judgment of a lower court, ..., an event occurs which renders it impossible for this court, ..., to grant him any effectual relief whatsoever, the court will not proceed to a formal judgment, but will dismiss the appeal.") — *Alexander, D.S.C., 2013*
- **1** (discussing generally the dismissal of appeals for mootness) — *In Re Whatley, D. Colo., 1994*
- **1** (because of intervening state constitutional convention, suit to challenge election of delegates to convention was mooted by its occurrence) — *Saiki, D.D.C., 1992*
- **1** (quoted in N.J. Turnpike Authority v. Jersey Central Power and Light, 772 F.2d 25, 30 (3d Cir.1985)) — *In re Quality, D.N.J., 1989*
- **1** (a controversy is no longer "live" if the reviewing court is incapable of rendering effective relief or restoring the parties to their original position) — *In Re Davis, 10th Cir. BAP, 2000*

↑

375. Michigan v. Envtl. Prot. Agency

576 U.S. 743, SCOTUS, 2015
In 2020-24: cited by 33 decisions (appellate) · in all: 176 · 2021–2025: 19 · weight in the sub-cluster 52
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 9%)
Good law: green? (read the newest 100 of 200 citing opinions, filed 2018–2025: status now, not the year it changed)
Travels with: Michigan v. EPA (cosine 0.20, 10 both); Perez (cosine 0.06, 9 both); GUTIERREZ (cosine 0.06, 5 both)
How later courts describe it (49 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** ("Consideration of cost reflects the understanding that reasonable regulation ordinarily requires paying attention to the advantages and the disadvantages of agency decisions.") — *Cooling Water Intake Structure Coal. v. U.S. Envtl. Prot. Agency, 2d Cir., 2018*
- **6** (stating that it is a "foundational principle of administrative law that a court may uphold agency action only on the grounds that the agency involved when it took the action.") — *Nills, D.S.D., 2019*
- **3** ("Chevron directs courts to accept an agency's reasonable resolution of an ambiguity in a statute that the agency administers.") — *Bryana Bible v. United Student Aid Funds, Inc., 7th Cir., 2015*
- **3** (reversing EPA's interpretation of 42 U.S.C. § 7412[n][1][A] and requiring a consideration of cost when regulating power plants) — *Mosier, Kan., 2017*
- **2** (addressing sufficiency of agency rulemaking at Chevron Step Two) — *Matal, Fed. Cir., 2017*
- **2** ("No regulation is 'appropriate' if it does 'significantly more harm than good.' ") — *Catskill Mountains Chapter of Trout Unlimited, Inc. v. United States Environmental Protection Agency, 2d Cir., 2017*
- **2** ("It is axiomatic that we may uphold agency orders based only on reasoning that is fairly stated by the agency in the order under review....") — *National Labor Relations Board v. CNN America, Inc., D.C. Cir., 2017*
- **2** ("The requirement that agency action not be arbitrary or capricious includes a requirement that the agency adequately explain its result[.]") — *Stewart, D.C. Cir., 2018*

↑

376. BedRoc Limited, LLC v. United States

541 U.S. 176, SCOTUS, 2004
In 2020-24: cited by 65 decisions (appellate) · in all: 519 · 2021–2025: 180 · weight in the sub-cluster 16
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.4 Substantive due process: family, privacy and reproduction, 9%)
Good law: green (read 502 of 559 citing opinions)
Travels with: State ex rel. Plain Dealer Publishing Co. v. City of Clev... (cosine 0.22, 5 both); Germain (cosine 0.03, 15 both); Lamie (cosine 0.02, 6 both)
How later courts describe it (126 parentheticals; groups of similar wording, largest first; other courts' words)

- **75** (noting that the task of statutory interpretation "ends there [if] the text is unambiguous") — *Webber, 7th Cir., 2008*

14 ("The preeminent canon of statutory interpretation requires us to 'presume that [the] legislature says in a statute what it means and means in a statute what it says there.' Conn. Nat'l Bank v. Germain, 503 U.S. 249, 253-54 (1992) — *Buono, S.D.N.Y., 2022*

11 (noting that "longstanding precedents ... permit resort to legislative history only when necessary to interpret ambiguous statutory text.") — *David Yi v. Federal Bureau of Prisons Vanessa P. Adams, Warden of Fci-Petersburg, the Office of the Federal Public Defender, Amicus Supporting, 4th Cir., 2005*

4 (explaining that "there is no occasion to resort to legislative history" where the statutory text is clear) — *White, Fed. Cir., 2008*

3 (if the plain meaning of the statute is clear, resort to legislative history is improper; legislative history should only be considered to interpret an ambiguous statute) — *Wadsworth, 10th Cir., 2013*

2 (plurality opinion of Rehnquist, C.J.) — *Abdul Rahim Janko v. Robert M. Gates, D.C. Cir., 2014*

2 ("Where a law is plain and unambiguous, whether it be expressed in general or limited terms, the legislature should be intended to mean what they have plainly expressed, and consequently no room is left for construction." (emphasis added & citation omitted)) — *Simmons, 1st Cir., 2009*

2 (stating that a court must "begin with the text") — *Ramirez-Ramirez, N.D. Iowa, 2025*

↑

377. Allina Health Services v. Kathleen Sebelius

746 F.3d 1102, D.C. Cir., 2014
In 2020-24: cited by 22 decisions (appellate) · in all: 133 · 2021–2025: 56 · weight in the sub-cluster 5
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 17%)
Good law: green? (read the newest 100 of 134 citing opinions, filed 2018–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.06, 6 both); FERC (cosine 0.04, 5 both); FERC (cosine 0.04, 5 both)
How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

4 (noting "the possible tension between Vermont Yankee and our critical material doctrine") — *Sebelius, D.D.C., 2014*

3 (discussing differences between the APA and the Medicare Act not relevant here) — *Azar, D.C. Cir., 2018*

3 (stating that "vacatur is the normal remedy" for unlawful agency action) — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*

2 ("An agency may promulgate a rule that differs from a proposed rule only if the final rule is a 'logical outgrowth' of the proposed rule." (citing Ass'n of Private Sector Colleges & Univs. v. Duncan, 681 F.3d 427, 442 (D.C. Cir. 2012))) — *Price, D.D.C., 2018*

2 (describing vacatur as "the normal remedy" for an APA violation) — *Biden, M.D. Fla., 2022*

2 (stating that vacatur is improper when it "would lead to disruptive consequences") — *Azar, D.C. Cir., 2018*

2 (stating that "deficient notice is a fundamental flaw that almost always requires vacatur," especially where it is not "too late to reverse course") — *Perdue, D. Maryland, 2020*

1 (describing changes to data tracking and reporting) — *Sebelius, D.D.C., 2015*

↑

378. United States v. Mead Corp.

533 U.S. 218, SCOTUS, 2001 • note built
In 2020-24: cited by 134 decisions (appellate) · in all: 2,774 · 2021–2025: 253 · weight in the sub-cluster 182
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 3%)
Good law: green (read 590 of 3,084 citing opinions)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (27% of the 135 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Skidmore (cosine 0.15, 62 both); Chevron (cosine 0.08, 99 both); Christensen (cosine 0.08, 12 both)
How later courts describe it (448 parentheticals; groups of similar wording, largest first; other courts' words)

177 (holding that Chevron deference is due only when the agency acts pursuant to "delegated authority") — *Aid Association for Lutherans v. United States Postal Service, American Bar Endowment v. United States Postal Service, D.C. Cir., 2003*

18 (explaining that Chevron deference is due when an agency acts according to legally delegated authority inherent in formal adjudication) — *Omagah, 5th Cir., 2002*

17 (holding that tariff classification rulings in individual cases by United States Customs Service are not entitled to Chevron deference) — *Fanning, E.D. Pa., 2001*

15 (declaring that interpretations such as those "in policy statements, agency manuals, and enforcement guidelines" are "beyond the Chevron pale" (internal quotation marks omitted)) — *HHS, D.C. Cir., 2003*

13 (noting that "agencies charged with applying a statute necessarily make all sorts of interpretive choices") — *Equity in Athletics, Inc. v. Department of Education, 4th Cir., 2011*

12 (holding that, although notice and comment procedures are not required to trigger Chevron deference, such procedures are "significant ... in pointing to Chevron authority") — *Salazar, 9th Cir., 2009*

8 (discussing distinc tion and noting the APA's "relatively formal administrative procedure tending to foster the fairness and deliberation that should underlie a pronouncement [with the effect of law]") — *Thompson, N.D. Iowa, 2001*

8 (holding that Skidmore remained intact after Chevron and that Skidmore deference applies when Chevron deference does not) — *Barrios, 9th Cir., 2009*

↑ **379. Sacramento Municipal Utility District v. Federal Energy Regulatory Commission**
616 F.3d 520, D.C. Cir., 2010
In 2020-24: cited by 13 decisions (appellate) · in all: 37 · 2021–2025: 14 · weight in the sub-cluster 12
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 17%)
Good law: green? (read the newest 39 of 39 citing opinions, filed 2005–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.09, 7 both); FERC (cosine 0.09, 5 both); FERC (cosine 0.08, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (noting that "technical inquir[ies] [are] properly confided to FERC's judgment") — *FERC, D.C. Cir., 2024*
- **2** (describing the marginal loss methodology as a rate structure in which "prices are designed to reflect the least-cost of 14 meeting an incremental [energy] demand at each location on the grid, and thus prices vary based on location and time") — *Metropolitan Edison Co. v. Pennsylvania Public Utility Commission, 3rd Cir., 2014*
- **1** (explaining how CAISO sets wholesale electricity prices) — *FERC, D.C. Cir., 2017*
- **1** (the court "properly defers to policy determinations invoking the Commission's expertise in evaluating complex market conditions," where the Commission "reflected on the competing interests at stake to explain why it struck the balance it did") — *FERC, D.C. Cir., 2014*
- **1** ("Neither Electric [sic] Consumers nor any other case law prevents the Commission from making findings based on generic factual predictions derived from economic research and theory.") — *FERC, 2d Cir., 2015*
- **1** ("LMP consists of three components: [i] the cost of generation; [ii] the cost of congestion; and [iii] the cost of transmission losses") — *NextEra Energy Resources, LLC v. Department of Public Utilities, Mass., 2020*
- **1** (And, as we have explained, New York Petitioners failed to preserve their argument that FERC was required to quantify consumer benefits.) — *FERC, 2d Cir., 2015*
- **1** ("No customer is less deserving than another of being treated as the marginal customer.... ") — *FERC, D.C. Cir., 2013*

↑ **380. United States v. Aumbrey Winstead**
890 F.3d 1082, D.C. Cir., 2018
In 2020-24: cited by 31 decisions (appellate) · in all: 82 · 2021–2025: 44 · weight in the sub-cluster 59
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 8%)
Good law: green (read 82 of 82 citing opinions)
Role changed 2020-24: likely successor United States v. Jeffery Havis, 927 F.3d 382 (2019) (64% of the 31 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: United States v. Jeffery Havis (cosine 0.20, 20 both); United States v. Trey Campbell (cosine 0.12, 5 both); United States v. Marcus Crum (cosine 0.11, 8 both)
How later courts describe it (26 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (holding the controlled substance definition "clearly excludes" inchoate offenses) — *United States v. Rafael Cabrera, 3rd Cir., 2021*
- **2** ("If the Commission wishes to expand the definition of 'controlled substance offenses' to include attempts, it may seek to amend the language of the guidelines by submitting the change for congressional review.") — *United States v. Jeffery Havis, 6th Cir., 2019*
- **2** (holding that attempted drug distribution does not qualify as a predicate offense for career-offender status) — *United States v. Mitchell, D.D.C., 2019*
- **1** (collecting cases from other Circuits) — *Zanders, D.D.C., 2019*
- **1** (noting disagreement over this issue) — *Seefried, D.D.C., 2022*
- **1** ("[W]e would normally remand serious claims of ineffective assistance to the district judge to determine whether effective counsel could have changed the result . . . . But this is 8 an unusual case. The textual issue is a purely legal question.") — *United States v. Wayne Holroyd, D.C. Cir., 2024*
- **1** ("[S]urely Seminole Rock deference does not extend so far as to allow [the Commission] to invoke its general interpretive authority via commentary . . . to impose such a massive impact on a defendant with no grounding in the guidelines themselves.") — *Seefried, D.D.C., 2022*
- **1** ("If [the Guideline and commentary] are inconsistent, 'the Sentencing Reform Act itself commands compliance with the guideline.'") — *Summer, D.D.C., 2022*

↑ **381. Smiley v. Citibank (South Dakota), N. A.**
517 U.S. 735, SCOTUS, 1996
In 2020-24: cited by 29 decisions (appellate) · in all: 546 · 2021–2025: 58 · weight in the sub-cluster 32
Fit: 83% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 7%)
Good law: green? (read the newest 100 of 629 citing opinions, filed 2018–2025: status now, not the year it changed)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (40% of the 30 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Brand X Internet (cosine 0.10, 12 both); FCC v. Fox (cosine 0.06, 11 both); Shalala (cosine 0.05, 5 both)

How later courts describe it (159 parentheticals; groups of similar wording, largest first; other courts' words)

- **20** (explaining that agency "change is not invalidating, since the whole point of Chevron is to leave the discretion provided by the ambiguities of a statute with the implementing agency")
- **13** (noting the "presumption that Congress, when it left ambiguity in a statute meant for implementation by an agency, understood that the ambiguity would be resolved, first and foremost, by the agency") — *Dada, SCOTUS, 2008*
- **10** (holding, as a matter of federal law, that the courts should "defer to the reasonable judgments of agencies with regard to the meaning of ambiguous terms in statutes that they are charged with administering") — *Union Ink Co., Inc. v. AT&T CORP., N.J. Super. Ct. App. Div., 2002*
- **8** (explaining that a "change that does not take account of legitimate reliance on prior interpretation . . . may be arbitrary, capricious [or] an abuse of discretion" (citations omitted)) — *Strickland, N.D. Tex., 2024*
- **7** ("Nor does it matter that the regulation was prompted by litigation, including this very suit.") — *Appalachian States Low-Level Radioactive Waste Commission v. Hon. Hazel O'leary, in Her Official Capacity as Secretary of Energy, 3rd Cir., 1996*
- **7** (holding that interest provision of NBA includes late fees and expressing "no doubt that § 85 preempts state law") — *Ubaldi, N.D. Cal., 2012*
- **6** ("Of course we deny deference to 'agency litigating positions that are wholly unsupported by regulations, rulings, or administrative practice.' " (citing Bowen)) — *Jaime Perez-Enriquez v. Alberto R. Gonzales, Attorney General, 9th Cir., 2006*
- **5** (APA notice and comment "designed to assure due deliberation") — *Mead, SCOTUS, 2001*

↑

382. DCH Regional Medical Center v. Alex M. Azar II

925 F.3d 503, D.C. Cir., 2019
In 2020-24: cited by 11 decisions (appellate) · in all: 41 · 2021–2025: 31 · weight in the sub-cluster 5
Fit: 82% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 18%)
Good law: green? (read the newest 41 of 41 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Florida Health Sciences Center, Inc. v. Secretary of Heal... (cosine 0.17, 5 both); Nyunt v. Chairman, Broadcasting Board of Governors (cosine 0.12, 7 both); Leedom (cosine 0.11, 6 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("When Congress provides that 'there shall be no administrative or judicial review' of specified agency actions, its intent to bar review is clear . . . ." (quoting 42 U.S.C. § 1395nn(i)(3)(I))) — *Douglas Bourdon v. United States Department of Homeland Security, 11th Cir., 2020*
- **1** (claim is not collateral where "a challenge to the methodology [for calculating Medicare estimates of payments] … is unavoidably a challenge to the estimates themselves") — *Miriyeva, D.D.C., 2019*
- **1** (describing the requirements for ultra vires review of an agency action as originating in Leedom v. Kyne, 358 U.S. 184 (1958), and applying "only when three requirements are met: '(i) the statutory preclusion of review is implied rather than express; (ii) — *Judge Rotenberg Educational Center, Inc. v. U.S. Food and Drug Administration, D.D.C., 2025*
- **1** (describing the narrow circumstances allowing ultra vires review, which has three prerequisites, including that "the statutory preclusion of review is implied rather than express" (quoting Nyunt, 589 F.3d at 449)) — *Becerra, D.D.C., 2024*
- **1** (rejecting the argument that 42 U.S.C. § 1395ww(r)(3)(A), which bars judicial review of "any estimate of the Secretary," does not apply to the "methodology used to make the estimates") — *HHS, 5th Cir., 2025*
- **1** (forbidding review where the plaintiff sought vacatur of an unreviewable agency estimate by attacking the methodology underlying that estimate) — *St. Marys Regional Medical Center v. Xavier Becerra, D.D.C., 2024*
- **1** (requiring "obvious violation of a clear statutory command" and suggesting Leedom itself is likely no longer good law) — *Mapes, D.D.C., 2020*
- **1** ("Following MCorp, there is not much room to contend that courts may disregard statutory bars on judicial review just because the underlying merits seem obvious.") — *Novo Nordisk Inc v. Secretary US Dept & Health and Human Services, 3rd Cir., 2025*

↑

383. Harmon v. Unemployment Comp. Bd. of Review

207 A.3d 292, Pa., 2019
In 2020-24: cited by 27 decisions (appellate) · in all: 33 · 2021–2025: 19 · weight in the sub-cluster 5
Fit: 82% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:9.8 around Commonwealth, 18%)
Good law: green? (read the newest 33 of 33 citing opinions, filed 2019–2026: status now, not the year it changed)
Also ties to: 2020-24:9 Anders briefs and appeals without merit (18%)
Travels with: Uniontown Area School District v. Pennsylvania Human Rela... (cosine 0.06, 5 both); Commonwealth (cosine 0.04, 5 both); Snyder Bros., Inc. v. Pa. Pub. Util. Comm'n (cosine 0.04, 6 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("In my view, while an administrative agency's interpretation of a statute is one of many factors that a court may consider when interpreting an ambiguous statute, it is not entitled to any deference in the interpretative process.") — *Marcellus Shale Coalition v. DEP, Aplts., Pa., 2023*
- **1** ("As I have explained in the past, I do not agree that reviewing courts should afford what often amounts to unqualified deference—i.e., Chevron deference—to an executive- branch agency's interpretation of an ambiguous statute.") — *Marcellus*

Shale Coalition v. DEP, Aplts., Pa., 2023

1 (first determining that the statute "is thus obviously susceptible to two or more reasonable [J-12-2020] [MO: Dougherty, J.] - 6 interpretations and as such it is ambiguous" before discussing agency deference) — *Woodford, M., Aplts. v. PA Insurance Dept., Pa., 2020*

1 (explaining that there are "two types of agency interpretations which are accorded different levels of deference," i.e. published rules and regulations versus "guidance documents" like manuals, policy statements, and advisories) — *Woodford, M., Aplts. v. PA Insurance Dept., Pa., 2020*

1 (observing that precedent permits granting "some measure of value to [agency] interpretations under certain circumstances") — *Woodford, M., Aplts. v. PA Insurance Dept., Pa., 2020*

↑

384. Industrial Union Dept., AFL-CIO v. American Petroleum Institute

448 U.S. 607, SCOTUS, 1980

In 2020-24: cited by 21 decisions (appellate) · in all: 347 · 2021–2025: 29 · weight in the sub-cluster 35

Fit: 82% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 8%)

Good law: green? (read the newest 100 of 395 citing opinions, filed 2008–2026: status now, not the year it changed)

Role changed 1985-89: likely successor Chevron, 467 U.S. 837 (1984) (31% of the 61 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)

Travels with: Interstate Commerce Commission v. Cincinnati, New Orleans... (cosine 0.25, 5 both); King (cosine 0.09, 8 both); Gonzales v. Oregon (cosine 0.08, 7 both)

How later courts describe it (64 parentheticals; groups of similar wording, largest first; other courts' words)

6 (announcing the rule that "[a] construction of [a] statute that avoids [an] open-ended grant [of delegated power] should certainly be favored.") — *Riley, 5th Cir., 1999*

3 ("There are many activities that we engage in every day–such as driving a car or even breathing city air–that entail some risk of accident or material health impairment; nevertheless, few people would consider those activities 'unsafe.' ") — *Natural Resources Defense Council, Inc. v. U.S. Environmental Protection Agency, D.C. Cir., 1987*

2 (plurality opinion of Stevens, J.) — *FCC v. Consumers' Research, SCOTUS, 2025*

2 (reviewing OSHA's proposed benzene standard)

2 (benzene ETS failed for lack of substantial evidence)

2 (delegation of Congressional power narrowly construed to avoid constitutional issue) — *Smith v. Socialist People's Libyan Arab Jamahiriya, 2d Cir., 1997*

2 ("both the language and structure of the [OSHA] Act, as well as its legislative history, indicate that it was intended to require the elimination, as far as possible, of significant risks of harm") — *Pratt & Whitney Aircraft v. Raymond J. Donovan, 2d Cir., 1983*

2 ("[OSHA] was not designed to require employers to provide absolutely risk-free workplaces_") — *Charles A. Ries, III v. National Railroad Passenger Corporation, A/K/A Amtrak National Railroad Passenger Corporation, 3rd Cir., 1992*

↑

385. Wayman v. Southard

23 U.S. 1, SCOTUS, 1825

In 2020-24: cited by 31 decisions (appellate) · in all: 639 · 2021–2025: 122 · weight in the sub-cluster 48

Fit: 82% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 9%)

Good law: green? (read the newest 100 of 700 citing opinions, filed 2022–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Gundy, 588 U.S. 128 (2019) (44% of the 32 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Gundy (cosine 0.08, 13 both); Ryan (cosine 0.08, 7 both); Field (cosine 0.08, 6 both)

How later courts describe it (31 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("[C]ongress may certainly delegate to others, powers which the legislature may rightfully exercise itself.")

2 ("[T]he maker of the law may commit something to the discretion of the other departments") — *FCC v. Consumers' Research, SCOTUS, 2025*

2 (changes in state procedural law inapplicable in actions at law in a federal court) — *Davidson v. O'Lone, 3rd Cir., 1984*

2 (distinguishing between those functions Congress must perform itself and those it may leave to another branch) — *Department of Transportation v. Association of American Railroads, SCOTUS, 2015*

2 (noting that court determinations of "the precise boundary of this power is a subject of delicate and difficult inquiry") — *Allstates Refractory Contractors v. Julie Su, 6th Cir., 2023*

1 (state law applicable to federal executions) — *United States v. Palmer, E.D. Tenn., 1985*

1 (a claim arises under the Act, and is subject to §405(g)'s requirements, "where 24 an individual seeks a monetary benefit from the agency . . . the agency denies the benefit, and the 25 individual challenges the lawfulness of that denial.") — *(SS) (PS) Peden v. Commissioner of Social Security, E.D. Cal., 2023*

1 ("[I]f in the informed discretion of the 24 court, neither the statute nor the Rules are up to the task, the 25 court may safely rely on its inherent power [in imposing a 26 sanction for bad faith litigation conduct].") — *In re: Patricia G. Olson, 9th Cir. BAP, 2018*

↑ **386. United States Forest Service v. Cowpasture River Preservation Assn.**
140 S. Ct. 1837, SCOTUS, 2020
In 2020-24: cited by 18 decisions (appellate) · in all: 31 · 2021–2025: 29 · weight in the sub-cluster 9
Fit: 81% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 9%)
Good law: green? (read the newest 31 of 31 citing opinions, filed 2020–2025: status now, not the year it changed)
Travels with: Solid Waste Agency of Northern Cook County v. United Stat... (cosine 0.04, 6 both); Alabama Assn. of Realtors v. Department of Health and Hum... (cosine 0.03, 5 both); Whitman (cosine 0.03, 9 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (recognizing that "easements grant only nonpossessory rights of use" and that an easement "merely burdens land that continues to be owned by another") — *SEA ISLAND COMPANY, LLC v. JANE FRASER, Ga. Ct. App., 2025*
- **1** ("A right-of-way is a type of easement.") — *Jeffrey Gladchun and Alyssa Gladchun v. Michael Eramo, Diane Eramo and New Cingular Wireless, PCS, D/B/A AT&T, Vt., 2023*
- **1** ("[B]ecause an easement does not dispossess the original owner, Barnard v. Gaumer, 146 Colo 409, 412, 361 P2d 778, 780 (1961) — *Bo and Lia Holdings LLC v. 2021 Morrison LLC, Or. Ct. App., 2021*
- **1** (addressing a pipeline that received a Certificate of Public Convenience and Necessity from FERC) — *Bolling, D. Idaho, 2021*
- **1** (noting the "presumption that federal statutes do not supersede States' historic police powers, unless Congress clearly and manifestly intended to do so.") — *Becerra, N.D. Tex., 2021*
- **1** (permitting a case that asserted continuing violations of a Tribe's federal treaty rights to proceed under Ex parte Young) — *Hochul, 2d Cir., 2023*

↑ **387. Boone v. Lightner**
319 U.S. 561, SCOTUS, 1943
In 2020-24: cited by 9 decisions (appellate) · in all: 320 · 2021–2025: 29 · weight in the sub-cluster 6
Fit: 81% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 19%)
Good law: green (read 350 of 350 citing opinions)
Travels with: King (cosine 0.13, 9 both); Brown (cosine 0.10, 7 both); Kisor (cosine 0.02, 6 both)
How later courts describe it (24 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (noting that Soldiers' and Sailors' Civil Relief Act of 1940, 50 U.S.C. § 501 et seq., was "always to be liberally construed to protect those who have been obliged to drop their own affairs to take up the burdens of the nation") — *Taylorv. McDonald, Vet. App., 2019*
- **2** ("Absence when one's rights or liabilities are being adjudged is usually prima facie prejudicial.") — *in the Interest of H. S. J., Tex. App.-Austin, 2010*
- **2** ("[A]ll evidence is to be weighed according to the proof which it was in the power of one side to have produced and in the power of the other side to have contradicted.") — *Rivera, N.M. Ct. App., 2007*
- **2** (relying on Boone for proposition that SCRA must be liberally construed) — *Richard Sibert v. Wells Fargo Bank, N.A., 4th Cir., 2017*
- **2** (interpreting the Soldiers' and Sailors' Civil Relief Act (SSCRA), a predecessor statute to the SCRA) — *Morath, W.D. Tex., 2023*
- **2** (noting that the Soldiers' and Sailors' Civil Relief Act of 1940, 50 U.S.C. § 501, amended by Servicemembers Civil Relief Act, Pub. L. No. 108-189, 117 Stat. 2835 (2003) (current version at 50 U.S.C. §§ 3901-4043) — *George Roseberry v. Denis McDonough, Vet. App., 2023*
- **1** (greater ability to stay proceedings) — *Jerry Davidson v. United Auto Credit Corporation, 4th Cir., 2023*
- **1** (granting a stay in state trustee proceedings) — *Christopher Brewster v. Nationstar Mortgage, LLC, 9th Cir., 2014*

↑ **388. United States v. Vargas**
74 F.4th 673, 5th Cir., 2023
In 2020-24: cited by 28 decisions (appellate) · in all: 45 · 2021–2025: 45 · weight in the sub-cluster 8
Fit: 81% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 19%)
Good law: green (read 45 of 45 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (17%)
Travels with: United States v. Roberto Castillo (cosine 0.05, 6 both); Kisor (cosine 0.03, 13 both); Stinson (cosine 0.03, 11 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("[U]nlike an agency's gloss on its regulations, the Commission's role in promulgating and interpreting guidelines is sanctioned by statute.") — *Fucito, 5th Cir., 2025*

↑ **389. Huawei Tech USA v. FCC**
2 F.4th 421, 5th Cir., 2021
In 2020-24: cited by 18 decisions (appellate) · in all: 35 · 2021–2025: 35 · weight in the sub-cluster 6
Fit: 81% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10

Separation of powers: removal power and non-Article III adjudication (2020s), 19%)
Good law: green? (read the newest 35 of 35 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 8 both); Gundy (cosine 0.02, 5 both); Mead (cosine 0.02, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("We assess ripeness claim by claim.") — *Heller Bros. Packing Corp. v. Illinois Union Insurance Company, 11th Cir., 2024*
- **1** (rejecting argument that Federal Communications Commission judgment was arbitrary and capricious where appellant did "not point us to record evidence" on the "relevant data") — *Criswell, 5th Cir., 2024*
- **1** (holding that the agency "was not required to support its analysis with hard data where it reasonably relied on difficult-to-quantify, intangible benefits") — *Alliance for Fair Board Recruitment v. SEC, 5th Cir., 2023*

↑

390. United States v. Edward Merritt

934 F.3d 809, 8th Cir., 2019
In 2020-24: cited by 26 decisions (appellate) · in all: 29 · 2021–2025: 23 · weight in the sub-cluster 26
Fit: 81% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:9.4 Texas Anders procedure in the 2020s, incl. parental-termination appeals, 10%)
Good law: green? (read the newest 29 of 29 citing opinions, filed 2020–2025: status now, not the year it changed)
Travels with: United States v. Jose Maria Mendoza-Figueroa (cosine 0.44, 19 both); United States v. Trudale Raymond Williams (cosine 0.17, 5 both); United States v. Aumbrey Winstead (cosine 0.10, 6 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("To succeed on plain error review, [a defendant] must show (1) an error; (2) that is plain; (3) that affects his substantial rights; and (4) that seriously affects the fairness, integrity, or public reputation of judicial proceedings." (cleaned up)) — *United States v. Jaime Campos, 8th Cir., 2023*
- **1** (considering, after concluding that no binding precedent exists and before concluding that no plain error occurred, what other circuits have ruled) — *Tainewasher, 9th Cir., 2025*
- **1** (concluding -7- argument that drug conspiracy convictions do not fall within the definition of a controlled substance offense because the commentary cannot add conspiracy offenses to the Guidelines was foreclosed by Mendoza-Figueroa) — *United States v. Remberto Rivera, 8th Cir., 2023*
- **1** (concluding conspiracy to commit a controlled substance offense is a controlled substance offense and rejecting Petitioner's contention that § 4B1.2 omits inchoate offenses) — *United States v. Rafael Cabrera, 3rd Cir., 2021*
- **1** (stating that under the law of the circuit, "conspiracy to commit a controlled substance offense is itself a controlled substance offense as defined by the Guidelines") — *United States v. Christopher Perez, 8th Cir., 2022*
- **1** (holding that § 4B1.2 includes the inchoate crime of drug conspiracy) — *United States v. Morris Brown, 8th Cir., 2021*

↑

391. Aposhian v. Barr

958 F.3d 969, 10th Cir., 2020
In 2020-24: cited by 15 decisions (appellate) · in all: 57 · 2021–2025: 53 · weight in the sub-cluster 22
Fit: 81% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.11 Second Amendment, 9%)
Good law: green? (read the newest 57 of 57 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Aposhian (cosine 0.28, 5 both); Cargill (cosine 0.27, 7 both); ATF (cosine 0.18, 10 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (observing that "our cases finding that a violation of a constitutional right alone constitutes irreparable harm are limited to cases involving individual rights, not the allocation of powers among the branches of government") — *Polis, D. Colo., 2023*
- **1** (discussing the Acts in context with each other) — *Kansas, State of v. United States Attorney General, D. Kan., 2024*
- **1** (rule is interpretive if it "attempts to clarify an existing rule but does not change existing law, policy, or practice" and "simply advises the public of the agency's construction of the statute and rules which it administers" (cleaned up)) — *Northern New Mexico Stockman's v. United States Fish, 10th Cir., 2022*
- **1** ("The bump stock performs part of the work usually done by hand at a predetermined point in the operation, under conditions fixed for it by the shooter.") — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*
- **1** (arguing the statutory language "begs the question of whether 'function' requires our focus upon the movement of the trigger, or the movement of the trigger finger") — *Aposhian, 10th Cir., 2021*
- **1** (reviewing likelihood of success in light of the standard of review that would apply for the final decision) — *HHS, 10th Cir., 2024*
- **1** (finding strong public interest in "banning the possession and transfer of machine guns" based on safety, including safety of law enforcement and first responders) — *Gospel Light Mennonite Church Medical Aid Plan v. New Mexico Office of the Superintendent of Insurance, D.N.M., 2023*
- **1** (explaining that the government disagreed with the plaintiff "about what the irreparable harm is," and the government "conceded [before the district court] only that the irreparable harm was the loss of Mr. Aposhian's bump stock") — *Leachco, 10th Cir., 2024*

↑ **392. Sierra Club v. Federal Energy Regulatory Commission**
827 F.3d 36, D.C. Cir., 2016
In 2020-24: cited by 16 decisions (appellate) · in all: 48 · 2021–2025: 28 · weight in the sub-cluster 5
Fit: 81% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 19%)
Good law: green? (read the newest 50 of 50 citing opinions, filed 2016–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.07, 8 both); FERC (cosine 0.06, 5 both); FERC (cosine 0.06, 5 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("It is settled law that 'an agency's failure to prepare (or adequately prepare) — *Haaland, D.D.C., 2025*
- **1** (finding standing where the plaintiffs' concrete injury was "tethered to" the substantive gov- ernment decision) — *Chattooga Conservancy v. United States Department of Agriculture, D.D.C., 2026*
- **1** (describing the Commission's authority over natural gas facilities and the Department of Energy's authority over natural gas as a commodity) — *FERC, D.C. Cir., 2022*

↑ **393. Fred Meyer Stores, Inc. v. National Labor Relations Board**
865 F.3d 630, D.C. Cir., 2017
In 2020-24: cited by 17 decisions (appellate) · in all: 35 · 2021–2025: 17 · weight in the sub-cluster 8
Fit: 80% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 20%)
Good law: green? (read the newest 36 of 36 citing opinions, filed 2017–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Department of Commerce v. New York, 588 U.S. 752 (2019) (35% of the 17 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Allentown Mack (cosine 0.06, 5 both); Bowman Transp (cosine 0.04, 5 both); State Farm (cosine 0.04, 9 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (remanding because the agency failed to "reasonably reflect upon the information contained in the record and grapple with contrary evidence") — *Mountain Valley Pipeline, LLC v. Sierra Club, 4th Cir., 2021*
- **2** ("Judicial review of NLRB determinations in unfair labor practice cases is generally limited, but not so deferential that the court will merely act as a rubber stamp for the Board's conclusions." (citation omitted)) — *Southern Bakeries, LLC v. National Labor Relations Board, 8th Cir., 2017*
- **2** ("[W]ords of disparagement alone concerning a union or its officials are insufficient for finding a violation of Section 8(a)(1)." (citation omitted)) — *Southern Bakeries, LLC v. National Labor Relations Board, 8th Cir., 2017*
- **1** (remanding a decision for "a complete failure to . . . grapple with contrary evidence") — *Jones, D.D.C., 2023*

↑ **394. United States Telecom Association v. Federal Communications Commission and United States of America, Bell Atlantic Telephone Companies, Intervenors**
359 F.3d 554, D.C. Cir., 2004
In 2020-24: cited by 20 decisions (appellate) · in all: 158 · 2021–2025: 32 · weight in the sub-cluster 6
Fit: 80% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 20%)
Good law: green? (read the newest 100 of 170 citing opinions, filed 2010–2026: status now, not the year it changed)
Travels with: Sierra Club v. Lynn (cosine 0.14, 5 both); Carter (cosine 0.14, 5 both); Currin (cosine 0.07, 5 both)
How later courts describe it (38 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (explaining that intra-agency subdelegations are "presumptively permissible absent affirmative evidence of a contrary congressional intent") — *Newby, D.D.C., 2017*
- **3** ("[A] federal agency may turn to an outside entity for advice and policy recommendations provided that the agency makes the final decisions itself.") — *Solis, E.D. Pa., 2012*
- **3** ("If (as appears) [entrance facilities] exist exclusively for the convenience of the CLECs, it seems anomalous that CLECs do not themselves provide them.... ") — *Michigan Bell Telephone Co. v. Covad Communications Co., 6th Cir., 2010*
- **2** ("The [1996 Act] sought to foster a competitive market in telecommunications. To enable new firms to enter the field despite the advantages of the incumbent local exchange carriers ("ILECS") — *United States Telecom Ass'n v. Federal Communications Commission, D.C. Cir., 2016*
- **2** ("the failure of Congress to use 'Thou Shalt Not' language doesn't create a statutory ambiguity of the sort that triggers Chevron deference") — *Loper Bright Enterprises, Inc v. Gina Raimondo, D.C. Cir., 2022*
- **2** (concluding that § 10 forbearance analysis did not apply to FCC's discretionary decision not to require an ILEC to unbundle network elements under § 251 of the Communications Act) — *Time Warner v. FCC, 3rd Cir., 2007*
- **1** (finding subdelegations to outside parties to be presumptively "improper") — *3nod Digital (Hong Kong) Limited v. United States Department of State, D.D.C., 2026*
- **1** (noting Congress's intent "to foster a competitive market in telecommunications") — *All American Telephone Co. v. Federal Communications Commission, D.C. Cir., 2017*

↑

395. Adams Fruit Co. v. Barrett

494 U.S. 638, SCOTUS, 1990
In 2020-24: cited by 14 decisions (appellate) · in all: 273 · 2021–2025: 18 · weight in the sub-cluster 6
Fit: 80% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 20%)
Good law: green? (read the newest 100 of 320 citing opinions, filed 2007–2026: status now, not the year it changed)
Travels with: Mead (cosine 0.06, 5 both); Chevron (cosine 0.02, 10 both); State Farm (cosine 0.01, 5 both)
How later courts describe it (83 parentheticals; groups of similar wording, largest first; other courts' words)

- **24** ("A precondition to deference under Chevron is a congressional delegation of administrative authority") — *Pauley, SCOTUS, 1991*
- **8** (holding that a similar statutory regime "[did] not empower 8 the Secretary to regulate the scope of the judicial power vested by the statute.") — *LaMonica, D. Nev., 2022*
- **4** (declining to defer to an agency's statutory interpretation where Congress "expressly established the Judiciary and not the [agency] as the adjudicator of private rights of action arising under the statute") — *Commonwealth of Pennsylvania v. President United States, 3rd Cir., 2019*
- **3** (declining to award Chevron deference when an agency interprets a judicial-review provision) — *Kisor, SCOTUS, 2019*
- **3** (recognizing that "agency determinations within the scope of delegated authority are entitled to deference" even where the agency does not have interpretive authority and thus is not entitled to Chevron deference) — *Neighborhood Ass'n of the Back Bay, Inc. v. Federal Transit Administration, 1st Cir., 2006*
- **2** (construing ambiguous state statute to avoid preemption problem) — *Women's Medical Professional Corporation v. Voinovich, 6th Cir., 1997*
- **2** ("We likewise reject petitioner's contention that, where Congress authorizes a private right of action to vindicate a federal right, we should assume that Congress has conditioned that right on the unavailability of a state remedy.") — *Carter v. Derwinski, 9th Cir., 1993*
- **2** (a federal statute is not silent on its preemptive effect merely because it fails expressly to state the "truism that States may not pre-empt federal law") — *Railway Labor Executives' Association v. National Mediation Board, D.C. Cir., 1993*

↑

396. Barnhart v. Thomas

540 U.S. 20, SCOTUS, 2003
In 2020-24: cited by 96 decisions (appellate) · in all: 1,926 · 2021–2025: 1,055 · weight in the sub-cluster 62
Fit: 80% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 2%)
Good law: green? (read the newest 100 of 1,983 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: Lockhart (cosine 0.20, 30 both); Paroline (cosine 0.07, 16 both); Duguid (cosine 0.07, 21 both)
How later courts describe it (272 parentheticals; groups of similar wording, largest first; other courts' words)

- **102** (setting forth the "five-step sequential evaluation 26 process to determine disability" under Title II and Title XVI) — *(SS) Macias v. Commissioner of Social Security, E.D. Cal., 2025*
- **61** (explaining that the doctrine applies to "limiting clause[s] or phrase[s]" that are "read as modifying only the noun or phrase that [they] immediately follow[ ]") — *Carol Tims v. LGE Community Credit Union, 11th Cir., 2019*
- **14** (discussing 20 C.F.R. § 404.1520 (governing claims for disability insurance benefits) and § 416.920 (governing claims for supplemental security income)) — *Izzard, D. Kan., 2021*
- **13** ("Referential and qualifying words and phrases, where no contrary intention appears, refer solely to the last antecedent.") — *Dessart, Mich., 2004*
- **12** (vocational expert's testimony about claimant's work history as a hotel housecleaner/ waitress and a fast-food worker) — *Dignard, D.N.H., 2026*
- **8** (noting that the Title II and the Title XVI definition of "disability" is "verbatim the same" and explaining that "[f]or simplicity sake, we will refer only to the Title II provisions, but our analysis applies equally to Title XVI.") — *Trobaugh, M.D. Tenn., 2019*
- **6** ("To generalize is to be imprecise. Virtually every legal (or other) rule has imperfect applications in particular circumstances.") — *Club Gene & Georgetti, LP v. XL Insurance America, Inc., N.D. Ill., 2021*
- **4** ("At step two, the SSA will find nondisability unless the claimant shows that he has a 'severe impairment,' defined as 'any impairment or combination of impairments which significantly limits [the claimant's] physical or mental ability to do basic work activities.'") — *Coleman, S.D. Ala., 2019*

↑

397. National Wildlife Federation v. National Marine Fisheries Service

524 F.3d 917, 9th Cir., 2008
In 2020-24: cited by 14 decisions (appellate) · in all: 152 · 2021–2025: 37 · weight in the sub-cluster 5
Fit: 79% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 21%)
Good law: green? (read the newest 100 of 160 citing opinions, filed 2013–2026: status now, not the year it changed)
Travels with: Usfs (cosine 0.09, 6 both); San Luis & Delta-Mendota Water v. Pacific Coast Federatio... (cosine 0.06, 5 both); National Ass'n of Home Builders v. Defenders of Wildlife (cosine 0.04, 7 both)
How later courts describe it (40 parentheticals; groups of similar wording, largest first; other courts' words)

12 ("Agency action can only 'jeopardize' a species' existence if that agency action causes some deterioration in the species' pre-action condition.") — *Center for Biological Diversity v. U.S. Fish & Wildlife Service, 9th Cir., 2015*

3 (noting that listed species' "slow slide into oblivion is one of the very ills the ESA seeks to prevent") — *Turtle Island Restoration Network v. United States Department of Commerce, 9th Cir., 2017*

3 (holding that although a court's review is deferential, the court "must engage in a careful, searching review to ensure that the agency has made a rational analysis and decision on the record before it") — *Idaho Conservation League v. Forest Service, US, D. Idaho, 2023*

2 ("Although we acknowledge that the existence of the dams must be included in the environmental baseline, the operation of the dams is within the federal agencies' discretion....") — *Salazar, 9th Cir., 2010*

2 (holding that consultation is required so long as it is possible for the agency to comply with both the ESA and other statutory requirements) — *Natural Resources Defense Coun v. Kenneth Salazar, 9th Cir., 2014*

1 (finding analysis of six-year period insufficient) — *Klamath-Siskiyou Wildlands Center v. National Oceanic & Atmospheric Administration, N.D. Cal., 2015*

1 (jeopardy analysis cannot occur "in a vacuum.") — *NMFS, E.D. Cal., 2010*

1 (faulting the Fish and Wildlife Service for the same error) — *Appalachian Voices v. US Department of the Interior, 4th Cir., 2022*

↑

398. United States v. Steven Adams

934 F.3d 720, 7th Cir., 2019
In 2020-24: cited by 17 decisions (appellate) · in all: 21 · 2021–2025: 14 · weight in the sub-cluster 4
Fit: 78% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.4 Eleventh Circuit sentencing reasonableness, 22%)
Good law: green? (read the newest 21 of 21 citing opinions, filed 2020–2024: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (37%)
Travels with: United States v. Aumbrey Winstead (cosine 0.10, 7 both); United States v. Jeffery Havis (cosine 0.02, 6 both); Stinson (cosine 0.02, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

2 (concluding that Application Note 1's "inclusion of conspiracy d[oes] not conflict with the text of the Guideline itself") — *United States v. Richardson, 2d Cir., 2020*

1 (declining to follow Winstead because of binding circuit precedent) — *Jeffery Bridges v. United States, 7th Cir., 2021*

1 ("There cannot be a conflict because the text of § 4B1.2(a) does not tell us, one [way] or another, whether in- choate offense[s] are included or excluded." (citation omit- ted)) — *United States v. Anthony Lomax, 7th Cir., 2022*

↑

399. MCI Telecommunications Corp. v. American Telephone & Telegraph Co.

512 U.S. 218, SCOTUS, 1994
In 2020-24: cited by 60 decisions (appellate) · in all: 472 · 2021–2025: 83 · weight in the sub-cluster 54
Fit: 78% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 6%)
Good law: green? (read the newest 100 of 533 citing opinions, filed 2020–2026: status now, not the year it changed)
Role changed 2015-19: likely successor City of Arlington v. Fed. Commc'ns Comm'n, 133 S. Ct. 1863 (2013) (28% of the 65 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: Brown & Williamson (cosine 0.08, 19 both); Gonzales v. Oregon (cosine 0.07, 12 both); Industrial Union (cosine 0.05, 9 both)
How later courts describe it (144 parentheticals; groups of similar wording, largest first; other courts' words)

21 (holding that an agency's interpretation should be denied deference at step one, even in the face of some ambiguity, if the proffered interpretation "goes beyond the meaning that the statute can bear") — *Raul Morales-Izquierdo v. Alberto R. Gonzales, Attorney General, 9th Cir., 2007*

19 (explaining that "the most relevant time for determining a statutory term's meaning" is the time when the statute became law) — *Shell Petroleum, Inc., and Subsidiary Corporations v. United States, 3rd Cir., 1999*

11 (stating, based on "[v]irtually every dictionary," that "'to modify' means to change moderately or in minor fashion") — *Jeffrey Bonkowski v. Oberg Industries Inc, 3rd Cir., 2015*

7 (stating that agencies "are bound, not only by the ultimate purposes Congress has selected, but by the means it has deemed appropriate, and prescribed for the pursuit of those purposes") — *Teva Pharmaceutical Industries Ltd. v. Crawford, D.C. Cir., 2005*

6 (looking to dictionary definitions to interpret the meaning of a disputed statutory phrase) — *Rezi P. Forshey, Claimant-Appellant v. Anthony J. Principi, Secretary of Veterans Affairs, Fed. Cir., 2002*

5 (holding that FCC's ability to modify Communications Act's requirements does not permit FCC to make basic fundamental changes in regulatory scheme) — *MCI Telecommunications Corp. v. Dominican Communication Corp., S.D.N.Y., 1997*

4 (holding § 203(b)(2) gives the FCC authority to modify the 1934 Act's tariff filing requirement, but not to eliminate it entirely) — *In Re Universal Service Fund Telephone Billing, 10th Cir., 2010*

3 (examining "contextual indications" of the meaning of a term) — *Kasten, SCOTUS, 2011*

↑

400. Rimini Street, Inc. v. Oracle USA, Inc.

586 U.S. 334, SCOTUS, 2019
In 2020-24: cited by 45 decisions (appellate) · in all: 214 · 2021–2025: 172 · weight in the sub-cluster 18
Fit: 78% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 22%)
Good law: green? (read the newest 100 of 214 citing opinions, filed 2022–2026: status now, not the year it changed)
Role changed 2025-29: likely successor Niz-Chavez, 593 U.S. 155 (2021) (29% of the 24 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: Guam v. United States (cosine 0.22, 5 both); UAL (cosine 0.19, 8 both); Marx (cosine 0.03, 6 both)
How later courts describe it (62 parentheticals; groups of similar wording, largest first; other courts' words)

- **18** ("Redundancy is not a silver bullet . . . . Sometimes the better overall reading of the statute contains some redundancy.") — *In re: Off-Spec Solutions, LLC, 9th Cir. BAP, 2023*
- **9** (alleged statutory redundancy not a "silver bullet") — *Reid Hospital and Health Care v. Conifer Revenue Cycle Solution, 7th Cir., 2021*
- **5** (determining that jury consultant fees are not encompassed in Sections 1821 and 1920) — *Meier, E.D. Tex., 2023*
- **4** (noting 17 that Marx remains binding precedent on the Ninth Circuit) — *Parker, S.D. Cal., 2021*
- **3** (holding that "full costs" under the Copyright Act "covers only the six categories specified" in Section 1920) — *Joe Hand Promotions, Inc. v. Machinegun Michaels, L.L.C., W.D. Tex., 2023*
- **2** ("In defining what expenses qualify as 'costs,' §§ 1821 and 1920 [like Rule 54(d)] do not include expert witness fees.") — *Hulsh, N.D. Ill., 2021*
- **2** (explaining that absent federal statutes that go beyond, federal 3 courts are limited to awarding the costs specified in 28 U.S.C. §§ 1821 and 1920.) — *BillFloat Inc. v. Collins Cash Inc., N.D. Cal., 2023*
- **2** (reasoning that the term "costs" in the general federal costs statutes does not include attorney's fees) — *Peter, SCOTUS, 2019*

↑

401. Burlington Truck Lines, Inc. v. United States

371 U.S. 156, SCOTUS, 1962
In 2020-24: cited by 91 decisions (appellate) · in all: 2,394 · 2021–2025: 350 · weight in the sub-cluster 118
Fit: 78% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green? (read the newest 100 of 2,565 citing opinions, filed 2025–2026: status now, not the year it changed)
Role changed 1990-94: likely successor Chevron, 467 U.S. 837 (1984) (34% of the 82 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Travels with: State Farm (cosine 0.29, 75 both); Bowman Transp (cosine 0.04, 17 both); Encino Motorcars (cosine 0.04, 20 both)
How later courts describe it (183 parentheticals; groups of similar wording, largest first; other courts' words)

- **119** (holding that post hoc rationalizations offered by counsel may not be used to justify agency decisions) — *Nehmer, N.D. Cal., 1989*
- **22** (holding that the agency must articulate a "rational connection between the facts found and the choice made") — *Chiquita Brands International, Inc. v. United States Securities & Exchange Commission, D.C. Cir., 2013*
- **4** ("[A] reviewing court . . . must judge the propriety of [agency] action solely by the grounds invoked by the agency.") — *In Re Polar Bear Endangered Species Act Listing, D.D.C., 2011*
- **2** (applying Burlington Truck in a Social Security disability case) — *Esin Arakas v. Commissioner, Social Security, 4th Cir., 2020*
- **2** ("A simple but fundamental rule of administrative law is that a reviewing court, in dealing with a determination or judgment which an administrative agency alone is authorized to make, must judge the propriety of such action solely by the grounds invoked by the agency.") — *Allied Mineral Products, Inc. v. United States, Ct. Intl. Trade, 2004*
- **2** (courts may not accept appellate counsel's ex post facto arguments as a substitute for the exercise of discretion by the agency itself)
- **2** ("The presumption of agency expertise can be rebutted when its decisions, while relying on scientific expertise, are not reasoned.") — *Bernhardt, D. Or., 2019*
- **2** (noting that "[ejxpert discretion is the lifeblood of the administrative process") — *Hynix Semiconductor Inc. v. United States, Ct. Intl. Trade, 2006*

↑

402. Michigan v. EPA

576 U.S. 743, SCOTUS, 2015
In 2020-24: cited by 74 decisions (appellate) · in all: 170 · 2021–2025: 147 · weight in the sub-cluster 109
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green? (read the newest 100 of 171 citing opinions, filed 2022–2026: status now, not the year it changed)
Role changed 2025-29: likely successor FCC v. Prometheus Radio Project, 592 U.S. 414 (2021) (46% of the 11 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: Michigan v. Envtl. Prot. Agency (cosine 0.20, 10 both); Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.15, 32 both); Allentown Mack (cosine 0.13, 9 both)
How later courts describe it (26 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** (explaining that a court "may uphold agency action only on the grounds that the agency invoked when it took the action") —

State of Texas v. EPA, 5th Cir., 2024

5 ("[A]gency action is lawful only if it rests on a consideration of the relevant factors" and "important aspect[s] of the problem." (quotation omitted)) — *FDA, 5th Cir., 2021*

2 ("No regulation is 'appropriate' if it does significantly more harm than good.") — *DOT, D.C. Cir., 2023*

2 ("One does not need to open up a dictionary in order to realize the capaciousness of this phrase ['appropriate and necessary'].") — *Abner Arcos Sanchez v. Attorney General United States, 3rd Cir., 2021*

2 ("Consideration of cost reflects the understanding that reasonable regulation ordinarily requires paying attention to the advantages and the disadvantages of agency decisions.") — *Healthy Gulf v. Bureau of Ocean Energy Management, D.D.C., 2026*

1 (requiring agencies to engage in "reasoned decision making") — *Biden, E.D. Mo., 2021*

1 (considering parenthetically the boundaries of "the expansive word 'reasonable'") — *Wheeler, D.D.C., 2020*

1 ("Not only must an agency's decreed result be within the scope of its lawful authority, but the process by which it reaches that result must be logical and rational." (quoting Allentown Mack Sales & Serv., Inc. v. NLRB, 522 U.S. 359, 374 (1998))) — *Usfws, 9th Cir., 2023*

↑

403. Vermont Yankee Nuclear Power Corp. v. Natural Resources Defense Council, Inc.

435 U.S. 519, SCOTUS, 1978

In 2020-24: cited by 79 decisions (appellate) · in all: 2,135 · 2021–2025: 199 · weight in the sub-cluster 54

Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 13%)

Good law: green (read 563 of 2,328 citing opinions)

Travels with: Home Box Office, Inc. v. Federal Communications Commissio... (cosine 0.11, 9 both); Bowman Transp (cosine 0.04, 16 both); State Farm (cosine 0.04, 32 both)

How later courts describe it (266 parentheticals; groups of similar wording, largest first; other courts' words)

25 (administrative agencies should be free to pursue methods of inquiry permitting them to discharge their multitudinous duties) — *In Re Solid Waste Util. Cust. Lists, N.J., 1987*

25 (holding that "absent constitutional constraints or extremely compelling circumstances the administrative agencies should be free to fashion their own rules of procedure") — *Rivera, D.D.C., 2010*

18 (stating that the NEPA's mandate is "essentially procedural ... to insure a fully informed and well-considered decision") — *Sierra Club v. United States Army Corps of Engineers, D.N.J., 2006*

10 (recognizing the "very basic tenet of administrative law that agencies should be free to fashion their own rules of procedure") — *National Labor Relations Board v. Beverly Enterprises-Massachusetts, Inc., D/B/A Beverly Manor Nursing Home, 1st Cir., 1999*

9 (alternatives section "cannot be found wanting simply because the agency failed to include every alternative device and thought conceivable by the mind of man") — *Town of Norfolk v. United States Environmental Protection Agency, D. Mass., 1991*

9 (holding that administrative decisions may not be set aside "simply because the court is unhappy with the result reached.") — *Lockheed Missiles & Space Co., Inc. v. Lloyd Bentsen, Secretary of the Treasury, and at & T Federal Systems, Intervenor, Fed. Cir., 1993*

7 (holding that courts may not impose any procedures on an agency when a statute does not require them) — *Preservation of Los Olivos v. United States Department of the Interior, C.D. Cal., 2008*

6 (noting that judges are "not free to impose" additional procedural requirements on agencies) — *Ojo, 2d Cir., 2022*

↑

404. Bowman Transportation, Inc. v. Arkansas-Best Freight System, Inc.

419 U.S. 281, SCOTUS, 1975

In 2020-24: cited by 104 decisions (appellate) · in all: 2,745 · 2021–2025: 430 · weight in the sub-cluster 89

Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 7%)

Good law: green? (read the newest 100 of 2,871 citing opinions, filed 2025–2026: status now, not the year it changed)

Role changed 1990-94: likely successor Chevron, 467 U.S. 837 (1984) (27% of the 92 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)

Travels with: State Farm (cosine 0.10, 59 both); Alaska Conservation (cosine 0.08, 7 both); Encino Motorcars (cosine 0.07, 19 both)

How later courts describe it (237 parentheticals; groups of similar wording, largest first; other courts' words)

124 (holding that courts may "uphold a decision of less than ideal clarity if the agency's path may reasonably be discerned") — *China Steel Corp. v. United States, Ct. Intl. Trade, 2004*

16 ("The agency must articulate a 'rational connection between the facts found and the choice made' ") — *Knecht, C.D. Cal., 1978*

10 (noting that "though an agency's finding may be supported by substantial evidence ... it may nonetheless reflect arbitrary and capricious action") — *Walker Operating Corporation v. Federal Energy Regulatory Commission, 10th Cir., 1989*

7 ("the Due Process Clause forbids an agency to use evidence in a way that forecloses an opportunity to offer a contrary presentation") — *Debuff, Mont., 2021*

5 (applying arbitrary and capricious review to a formal adjudication) — *Consolidation Coal Company v. Terry Shipley, 4th Cir., 2022*

5 (noting that "[a]n agency's determination is arbitrary and capricious if the agency lacks a rational basis for making the determination or if the decision was not based on consideration of the relevant factors") — *Baran, D. Mass., 2019*

4 (explaining that "[t]he agency must articulate a 'rational connection between the facts found and the choice made ' " (emphasis

added) (quoting Burlington Truck Lines v. United States , 371 U.S. 156 , 168, 83 S.Ct. 239 , 9 L.Ed.2d 207 (1962))) — *Veterans Contracting Group, Inc. v. United States, Fed. Cir., 2019*

4 (holding that "[w]e can discern in the Commission's opinion a rational basis for its treatment of the evidence, and the 'arbitrary and capricious' test does not require more") — *Alam Ganem v. Otis R. Bowen, Secretary of Health and Human Services, D.C. Cir., 1987*

↑

405. Alaska Department of Environmental Conservation v. Environmental Protection Agency

540 U.S. 461, SCOTUS, 2004
In 2020-24: cited by 31 decisions (appellate) · in all: 503 · 2021–2025: 159 · weight in the sub-cluster 23
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green? (read the newest 100 of 537 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: Bowman Transp (cosine 0.08, 7 both); Barnhart (cosine 0.04, 5 both); State Farm (cosine 0.04, 13 both)
How later courts describe it (92 parentheticals; groups of similar wording, largest first; other courts' words)

16 (explaining that "[e]ven when an agency explains its decision with 'less than ideal clarity,' a reviewing court will not upset the decision on that account 'if the agency's path may reasonably be discerned.'") — *Simaga,et al. v. United States Citizenship & Immigration Services, S.D. Ohio, 2023*

10 (observing it is "a cardinal principle of statutory construction that a statute ought, upon the whole, to be so construed that, if it can be prevented, no clause, sentence, or word shall be superfluous, void, or insignificant") — *Fenyang Stewart v. Andrei Iancu, 4th Cir., 2019*

6 (finding that although internal guidance lacks dispositive force, "cogent administrative interpretations not the products of formal rulemaking nevertheless warrant respect" (citations and internal changes omitted)) — *Faa, 9th Cir., 2019*

5 (explaining that, for these reasons, courts "normally accord particular deference to an agency interpretation of 'longstanding' duration" (quoting Barnhart v. Walton, 535 U.S. 212, 220 (2002))) — *Vanda Pharmaceuticals, Inc. v. Food and Drug Administration, D.D.C., 2025*

4 (applying this 5 standard to social security) — *Eckdahl, D. Ariz., 2023*

4 ("Because the [relevant] Act itself does not specify a standard of judicial review in this instance, we apply the familiar default standard of the [APA].") — *Former Employees of Tesco Technologies, LLC v. United States Secretary of Labor, Ct. Intl. Trade, 2006*

2 ("Among other considerations, allocations of burdens of production and persuasion may depend on which party — plaintiff or defendant, petitioner or respondent — has made the 'affirmative allegation' or 'presumably has peculiar means of knowledge.' " (citation omitted)) — *Elliot Ray v. Marc Clements, 7th Cir., 2012*

2 ("No 'single principle or rule . .. solve[s] all cases and afford[s] a general test for ascertaining the incidence' of proof burdens." (quoting Wigmore, supra, § 2486, p. 288; emphasis deleted)) — *Schaffer, SCOTUS, 2005*

↑

406. United States v. Havis

929 F.3d 317, 6th Cir., 2019
In 2020-24: cited by 19 decisions (appellate) · in all: 30 · 2021–2025: 13 · weight in the sub-cluster 16
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 23%)
Good law: green (read 30 of 30 citing opinions)
Travels with: United States v. Willie Garth (cosine 0.17, 8 both); United States v. Jeffery Havis (cosine 0.16, 14 both); United States v. Darius Thomas (cosine 0.16, 7 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 (denial of motion for reconsideration) — *United States v. Jacob Hollin, 6th Cir., 2020*

↑

407. United States v. Trinity Phillips

54 F.4th 374, 6th Cir., 2022
In 2020-24: cited by 10 decisions (appellate) · in all: 14 · 2021–2025: 14 · weight in the sub-cluster 5
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.1 Reasonableness review of federal sentences, 23%)
Good law: green? (read the newest 14 of 14 citing opinions, filed 2023–2025: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (17%)
Travels with: United States v. Jennifer Riccardi (cosine 0.08, 7 both); Kisor (cosine 0.04, 10 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 (upholding Guidelines commentary interpreting a video as containing 75 "images") — *United States v. Nahsiem McIntosh, 3rd Cir., 2024*

↑

408. United States v. Fisher

6 U.S. 358, SCOTUS, 1805
In 2020-24: cited by 12 decisions (appellate) · in all: 476 · 2021–2025: 14 · weight in the sub-cluster 4
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:5.3

Miranda: custodial interrogation and waiver, 23%)
Good law: green? (read the newest 100 of 544 citing opinions, filed 1996–2026: status now, not the year it changed)
Also ties to: 2020-24:5 Fourth Amendment search and seizure (19%)
Travels with: Moskal (cosine 0.08, 5 both); Wiltberger (cosine 0.03, 5 both); Chevron (cosine 0.01, 7 both)
How later courts describe it (19 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** ("Where a law is plain and unambiguous, whether it be expressed in general or limited terms, the legislature should be intended to mean what they have plainly expressed, and consequently no room is left for construction.") — *Councilman, 1st Cir., 2005*
- **3** ("It is undoubtedly a well established principle in the exposition of statutes, that every part is to be considered, and the intention of the legislature to be extracted from the whole.") — *William Burrell, Jr. v. Tom Staff, 3rd Cir., 2023*
- **3** (quoted in Consumer Product Safety Commission v. GTE Sylvania, Inc., 447 U.S. 102, 100 S.Ct. 2051, 64 L.Ed.2d 766 (1980)) — *Chandler v. Miller, 11th Cir., 1996*
- **2** (defining "by" as "through the means of") — *ATF, D.C. Cir., 2019*
- **2** ("Where the mind labours to discover the design of the legislature, it seizes every thing from which aid can be derived.") — *United States v. Rhonda Anne McCoy, 9th Cir., 2003*
- **1** ("The constitution is the supreme law of the land....") — *Elgharib, 6th Cir., 2010*
- **1** (quoted in Consumer Product Safety Commission v. GTE Sylvania, 10 are not enough to trump the constitutional imperatives of the Fourth Amendment or the right to participate in government. Inc., 447 U.S. 102, 100 S.Ct. 2051 (1980)) — *Chandler v. Miller, 11th Cir., 1996*
- **1** ("Where a law is plain and unambiguous ... no room is left for construction.") — *AIG Baker Sterling Heights, LLC v. American Multi-Cinema, Inc., 11th Cir., 2007*

↑

409. De Niz Robles v. Lynch

803 F.3d 1165, 10th Cir., 2015
In 2020-24: cited by 10 decisions (appellate) · in all: 32 · 2021–2025: 13 · weight in the sub-cluster 3
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 23%)
Good law: green? (read the newest 33 of 33 citing opinions, filed 2015–2024: status now, not the year it changed)
Travels with: Gutierrez-Brizuela (cosine 0.06, 5 both); Landgraf (cosine 0.02, 6 both); Chevron (cosine 0.01, 6 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** ("[A] statutory grant of legislative rulemaking authority will not, as a general matter, be understood to encompass the power to promulgate retroactive rules unless that power is conveyed by Congress in express terms.") — *Moose Agricultural, LLC v. Layn USA, Inc., D. Colo., 2022*
- **1** ("[N]o one before us contends that Congress has clearly authorized the BIA to apply its decision in Briones retroactively.") — *Eco-Site LLC v. County of Pueblo, Colorado, D. Colo., 2019*
- **1** ("[T]o reach Chevron step two the agency must first establish that traditional tools of statutory interpretation fail to reveal "what the law has always meant.' ") — *DOI, 10th Cir., 2017*
- **1** (discussing the presumption against retroactive application of laws in the agency context) — *Kennett, 10th Cir., 2021*
- **1** (noting that a new 15 interpretation announced in an agency adjudication is subject to a "presumption of prospectivity") — *Garcia, 2d Cir., 2023*

↑

410. Allentown MacK Sales & Service, Inc. v. National Labor Relations Board

522 U.S. 359, SCOTUS, 1998
In 2020-24: cited by 47 decisions (appellate) · in all: 535 · 2021–2025: 84 · weight in the sub-cluster 44
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:26.7 around Universal Camera Corp. v. National Labor Relations Board, 18%)
Good law: green? (read the newest 100 of 594 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Michigan v. EPA (cosine 0.13, 9 both); State Farm (cosine 0.07, 20 both); Fred Meyer Stores, Inc. v. National Labor Relations Board (cosine 0.06, 5 both)
How later courts describe it (124 parentheticals; groups of similar wording, largest first; other courts' words)

- **28** (holding that under the substantial evidence standard the reviewing court "must decide whether on this record it would have been possible for a reasonable jury to reach the [agency's] conclusion")
- **12** (stating the process by which an agency reaches its decision must be logical and rational) — *California v. United States Department of Labor, E.D. Cal., 2014*
- **8** (requiring agency adjudications to be subject to requirement of reasoned decisionmaking) — *Beyond Nuclear v. U.S. Nuclear Regulatory Commission, 1st Cir., 2013*
- **6** (Rehnquist, CJ, concurring in part and dissenting in part) — *Kim Ho Ma v. John D. Ashcroft, 9th Cir., 2001*
- **6** (explaining that the Administrative Procedure Act directs courts to review agencies for "reasoned deci-sionmaking," which requires arbitrary and capricious review of the agency's interpretation of its own regulations and substantial evidence review of its fact finding) — *Teemac, 5th Cir., 2002*
- **6** (holding that the Board "is not free to prescribe what inferences from the evidence it will accept and reject, but must draw all

those inferences that the evidence fairly demands") — *Fred Meyer Stores, Inc. v. National Labor Relations Board, D.C. Cir., 2017*

4 (explaining that evidentiary presumptions are "substantive rules of law") — *Barbara Combs v. Commissioner of Social Security, 6th Cir., 2006*

4 (noting that withdrawal of recognition is an unfair labor practice "unless the employer can show that it had a 'good faith reasonable doubt' about the union's majority support")

↑

411. Lamie v. United States Trustee

540 U.S. 526, SCOTUS, 2004
In 2020-24: cited by 102 decisions (appellate) · in all: 1,817 · 2021–2025: 339 · weight in the sub-cluster 62
Fit: 77% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 6%)
Good law: green? (read the newest 100 of 1,954 citing opinions, filed 2024–2026: status now, not the year it changed)
Travels with: Iselin (cosine 0.10, 5 both); Hartford Underwriters (cosine 0.09, 14 both); Chickasaw Nation v. United States (cosine 0.07, 9 both)
How later courts describe it (420 parentheticals; groups of similar wording, largest first; other courts' words)

171 (concluding that when the language of a statute is plain and does not lead to an absurd result, the sole function of the court is to enforce the statute according to its terms) — *In Re Nahat, Bankr. N.D. Tex., 2004*

35 (stating that "[t]here is a basic difference between filling a gap left by Congress' silence and rewriting rules that Congress has affirmatively and specifically enacted") — *First Premier Bank v. United States Consumer Financial Protection Bureau, D.S.D., 2011*

33 (holding that "[t]he starting point in discerning congressional intent is the existing statutory text and not the predecessor statutes.") — *In Re Purdy, Bankr. N.D. Fla., 2007*

28 (holding that in a chapter 7 proceeding, a debtor's attorney not retained under § 327 is not eligible for compensation) — *In Re Anderson, Bankr. E.D.N.Y., 2007*

20 (noting that sur-plusage does "not always produce ambiguity" and that the "preference for avoiding surplusage is not absolute") — *In Re Daniel, Bankr. N.D. Ill., 2009*

14 (finding that a court may not "soften the import of Congress' chosen words even if it believes the words lead to a harsh outcome") — *In Re Boyd, Bankr. N.D. Ohio, 2009*

9 (instructing that courts should "avoid the pitfalls that plague too quick a turn to the more controversial realm of legislative history") — *Wilfredo Ramos, Bankr. E.D. Wis., 2022*

6 (condemning a court's insertion of an absent word into statute as an inappropriate "'enlargement of it by the court'" (quoting Iselin v. United States, 270 U.S. 245, 251, 46 S.Ct. 248, 70 L.Ed. 566 (1926) — *Torres, 4th Cir., 2010*

↑

412. Cargill v. Garland

20 F.4th 1004, 5th Cir., 2021
In 2020-24: cited by 8 decisions (appellate) · in all: 8 · 2021–2025: 8 · weight in the sub-cluster 14
Fit: 76% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.11 Second Amendment, 12%)
Good law: green? (read the newest 8 of 8 citing opinions, filed 2022–2024: status now, not the year it changed)
Travels with: Cargill (cosine 0.50, 6 both); Aposhian (cosine 0.27, 7 both); Camp (cosine 0.13, 6 both)
No parentheticals.

↑

413. Zhejiang Dunan Hetian Metal Co., Ltd. v. United States

652 F.3d 1333, Fed. Cir., 2011
In 2020-24: cited by 10 decisions (appellate) · in all: 105 · 2021–2025: 37 · weight in the sub-cluster 6
Fit: 76% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:26.1 Patent obviousness and PTAB review, 24%)
Good law: green? (read the newest 100 of 105 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: Solarworld Americas, Inc. v. United States, Yingli Green ... (cosine 0.37, 6 both); Downhole Pipe & Equipment, L.P. v. United States (cosine 0.09, 5 both); Nan Ya Plastics Corporation v. United States (cosine 0.07, 5 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

3 (the court is "not to evaluate whether the information Commerce used was the best available, but [ ] whether a reasonable mind could conclude that Commerce chose the best available information") — *Shenzhen Xinboda Industrial Co., Ltd. v. United States, Ct. Intl. Trade, 2018*

2 ("Commerce first must determine that it is proper to use facts otherwise available before it may apply an adverse inference." (emphasis added)) — *Itochu Bldg. Prods. Co. v. United States, Ct. Intl. Trade, 2017*

2 ("[I]t is clear that Commerce can only use facts otherwise available to fill a gap in the record.") — *Guizhou Tyre Co. v. United States, Ct. Intl. Trade, 2019*

1 (the court looks "to the record as a whole, including Consol. Court No. 17-00198 Page 15 Public Version evidence that supports as well as evidence that fairly detracts from the substantiality of the evidence") — *Changzhou Trina Solar Energy Co. v. United States, Ct. Intl. Trade, 2019*

1 (the court looks "to the record as a whole, including evidence that supports as well as evidence that fairly detracts from the

substantiality of the evidence") — *Changzhou Trina Solar Energy Co. v. United States, Ct. Intl. Trade, 2019*

1 ("We cannot say, therefore that no reasonable mind could conclude that Commerce calculated the surrogate value as accurately as possible.") — *Carbon Activated Tianjin Co., Ltd. v. United States, Fed. Cir., 2023*

1 ("Commerce is . . . required to verify all information relied upon in making its final determination.") — *Brooklyn Bedding, LLC v. United States, Ct. Intl. Trade, 2023*

1 (summarizing plaintiff's argument that Commerce used data that were not for brass bar when the relevant FOP was for brass bar, but ultimately concluding that the record did not establish that data were products made of other metals) — *United Steel & Fasteners, Inc. v. United States, Ct. Intl. Trade, 2020*

↑

414. Pension Benefit Guaranty Corporation v. RA Gray & Co.

467 U.S. 717, SCOTUS, 1984

In 2020-24: cited by 28 decisions (appellate) · in all: 843 · 2021–2025: 96 · weight in the sub-cluster 4

Fit: 76% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.4 Substantive due process: family, privacy and reproduction, 24%)

Good law: green? (read the newest 100 of 911 citing opinions, filed 2020–2026: status now, not the year it changed)

Role changed 2000-04: likely successor Apfel, 524 U.S. 498 (1998) (38% of the 39 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)

Travels with: Usery (cosine 0.07, 8 both); Landgraf (cosine 0.03, 11 both)

How later courts describe it (97 parentheticals; groups of similar wording, largest first; other courts' words)

22 (holding that due process is satisfied "simply by showing that the retroactive application of the legislation is itself justified by a rational legislative purpose") — *In Re Acushnet River & New Bedford Harbor Proc., D. Mass., 1989*

9 (explaining that "the strong deference accorded legislation in the field of national economic policy is no less applicable when that legislation is applied retroactively") — *Eastern Enterprises v. Shirley S. Chater, Commissioner of Social Security, 1st Cir., 1997*

5 (holding that as long as "a statute is supported by a legitimate legislative purpose furthered by rational means, judgments about the wisdom of such legislation remain within the exclusive province of" the promulgating entity) — *Earl C. McDaniels v. United States of America, Randolph F. Lovett v. United States of America, Alton E. Brown, Jr. v. United States, 4th Cir., 2002*

4 (upholding retroactive effect of federal legislation imposing liability for withdrawal from pension plans) — *In Re Chateaugay Corporation, 2d Cir., 1995*

4 (stating that Supreme Court has "never held . . . that the principles embodied in the Fifth Amendment's Due Process Clause are coextensive with prohibitions existing against state impairments of pre-existing contracts") — *Melendez, 2d Cir., 2021*

3 (economic legislation that Congress plainly intends to have retroactive effect must not only be rationally related to a legitimate state interest as a general matter, but there must also be a rational basis for its retroactive application) — *Ileto, 9th Cir., 2009*

2 ("[A]lthough we have noted that retrospective civil legislation may offend due process if it is 'particularly "harsh and oppressive,"' that standard does not differ from the prohibition against arbitrary and irrational legislation that we clearly enunciated in [Usery]" (citations omitted).) — *Lands' End, Inc. v. City of Dodgeville, Wis., 2016*

2 (harsh-and-oppressive standard applied to retrospective legislation does not differ from arbitrary-and-irrational standard) — *Seniors Civil Liberties Association, Inc. v. Jack Kemp, 11th Cir., 1992*

↑

415. American Power & Light Co. v. Securities & Exchange Commission

329 U.S. 90, SCOTUS, 1946

In 2020-24: cited by 35 decisions (appellate) · in all: 547 · 2021–2025: 52 · weight in the sub-cluster 46

Fit: 76% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 10%)

Good law: green? (read the newest 100 of 623 citing opinions, filed 2012–2026: status now, not the year it changed)

Travels with: J. W. Hampton, Jr., & Co. v. United States (cosine 0.10, 13 both); New York Central Securities Corporation v. United States (cosine 0.08, 7 both); Gundy (cosine 0.08, 18 both)

How later courts describe it (61 parentheticals; groups of similar wording, largest first; other courts' words)

33 (upholding delegation of authority to Securities and Exchange Commission to prevent unfair or inequitable distribution of voting power among security holders) — *Mistretta, SCOTUS, 1989*

4 (acknowledging that the "legislative process would frequently bog down if Congress were constitutionally required to appraise beforehand the myriad situations to which it wishes a particular policy to be applied and to formulate specific rules for each situation") — *South Carolina Medical Association v. Tommy G. Thompson, 4th Cir., 2003*

4 (instructing that the SEC's choice of remedy is "peculiarly a matter for administrative competence") — *USSEC, 10th Cir., 2015*

4 (stating that delegation is "constitutionally sufficient if Congress clearly delineates the general policy, the public agency which is to apply it, and the boundaries of this delegated authority") — *Whaley, 5th Cir., 2009*

4 (concluding that the relevant delegation "derive[d] much meaningful content from the purpose of the Act, its factual background and the statutory context") — *IGas Holdings, Inc. v. EPA, D.C. Cir., 2025*

3 ("Private rights are protected by access to the courts to test the application of the policy in the light of these legislative declarations.") — *Star Fruits v. United States, Fed. Cir., 2005*

2 (statute permitting Securities and Exchange Commission to order corporate dissolution) — *Burns, SCOTUS, 1991*

2 (contemplating that an agency's remedy may be set aside where it "is unwarranted in law") — *FLRA, SCOTUS, 2023*

416. Federal Trade Commission v. Bunte Bros.

312 U.S. 349, SCOTUS, 1941
In 2020-24: cited by 14 decisions (appellate) · in all: 211 · 2021–2025: 21 · weight in the sub-cluster 18
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green? (read the newest 100 of 256 citing opinions, filed 1980–2026: status now, not the year it changed)
Travels with: Interstate Commerce Commission v. Cincinnati, New Orleans... (cosine 0.14, 8 both); United States Telecom Assoc. v. FCC [Order In Slip Opinio... (cosine 0.10, 8 both); Brown & Williamson (cosine 0.07, 7 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** ("[w]hile one may not end with the words of a disputed statute, one certainly begins there") — *Alabama Power Company v. Douglas M. Costle, as Administrator, Environmental Protection Agency, Sierra Club, Intervenors., D.C. Cir., 1980*
- **3** (lack of authority not previously exercised "reinforced by [agency's] unsuccessful attempt . . . to secure from Congress an express grant of [the challenged] authority") — *West Virginia v. EPA, SCOTUS, 2022*
- **2** (interpreting Federal Trade Commission Act) — *Waithaka, 1st Cir., 2020*
- **2** (concluding that the Federal Trade Commission's 25-year-long failure to assert the power it was then claiming was a "powerful indication" of the scope of the act at issue) — *J.D. Donovan, Inc. v. Minnesota Department of Transportation, Minn., 2016*
- **1** (Secretary of Agriculture and the President) — *Carter, D. Ariz., 1972*
- **1** (upholding the distinct meaning given to each phrase) — *Myers, S.D. Fla., 2008*
- **1** ("An inroad upon local conditions and local standards of such far-reaching import as is involved here, ought to await a clearer mandate from Congress.") — *County of Suffolk v. Long Island Lighting Co., E.D.N.Y, 1989*
- **1** (rejecting contention that Federal Trade Commission Act's proscription against unfair trade practices "in commerce," 15 U.S.C. § 45(a), included practices of intrastate candy manufacturer and retailer that were potential "handicap to interstate competitors") — *Immediato, 1st Cir., 2022*

417. United States v. Schooner Peggy

5 U.S. 103, SCOTUS, 1801
In 2020-24: cited by 23 decisions (appellate) · in all: 705 · 2021–2025: 32 · weight in the sub-cluster 11
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 12%)
Good law: green? (read the newest 100 of 816 citing opinions, filed 2008–2026: status now, not the year it changed)
Role changed 1995-99: likely successor Landgraf, 511 U.S. 244 (1994) (39% of the 33 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: Thorpe (cosine 0.10, 8 both); Bradley (cosine 0.09, 6 both); Landgraf (cosine 0.07, 11 both)
How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

- **13** (distinguishing between a trial court's judgment and an appellate court's decision and holding that an intervening change in the governing legal "rule" must be applied in an ongoing appellate review of the judgment) — *Paylan, M.D. v. Department of Health, Fla. Dist. Ct. App., 2024*
- **2** ("It is well-established that a court generally applies the law in effect at the time of its decision, and that if the law changes while the case is on appeal the appellate court applies the new rule.") — *Mario Ortiz-Santiago v. William P. Barr, 7th Cir., 2019*
- **2** (reversing a decree in response to a treaty that issued while the appeal was pending and that provided for the retroactive reassignment of rights to a French vessel as between its French owners and the U.S. government) — *Greene, Fed. Cir., 2006*
- **2** (holding that a treaty calling for restoration of vessels "not yet definitively condemned," which became effective while the condemnation order was on appeal, applied to the proceeding and required reversal of the trial court's judgment) — *Petition of New Hampshire Secretary of State and New Hampshire Attorney General, N.H., 2019*
- **1** (where there has been a statutory change in the applicable law since the lower court's decision, the reviewing court must apply the law as revised, even though the lower court's decision was rightful when made) — *Tenants of 2301 E Street, N.W. v. District of Columbia Rental Housing Commission, D.C., 1990*
- **1** ("[t]he last decree of an inferior court is final, in relation to the power of that court, but not in relation to the property itself, unless it be acquiesced under") — *Itek Corporation v. The First National Bank of Boston, Bank Melli Iran, Itek Corporation v. The First National Bank of Boston, 1st Cir., 1983*
- **1** ("if it be necessary to set aside a judgment, rightful when rendered, but which cannot be affirmed but in violation of the law, the judgment must be set aside") — *Itek Corporation v. The First National Bank of Boston, Bank Melli Iran, Itek Corporation v. The First National Bank of Boston, 1st Cir., 1983*
- **1** (an appellate court must apply, in reviewing a judgment below, the terms of a treaty ratified after the judgment was entered) — *Ronald Lee Roy Branchcomb v. Lou Brewer, James Menke, and Charles Wilkens, 8th Cir., 1982*

418. Southwestern Elec. Power Co. v. U.S. E.P.A.

920 F.3d 999, 5th Cir., 2019
In 2020-24: cited by 21 decisions (appellate) · in all: 38 · 2021–2025: 31 · weight in the sub-cluster 11
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 25%)

Good law: green? (read the newest 38 of 38 citing opinions, filed 2019–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Department of Homeland Security v. Regents of Univ. of Cal., 140 S. Ct. 1891 (2020) (27% of the 22 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: State Farm (cosine 0.04, 14 both); Marsh (cosine 0.03, 5 both); Michigan v. EPA (cosine 0.03, 5 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (vacating and remanding part of final rule that was contrary to statute) — *Texas Medical Association v. United States Department of Health and Human Services, E.D. Tex., 2022*
- **2** (observing, in a Clean 16 See Kevin M. Stack & Michael P. Vandenbergh, The One Percent Problem, 111 COLUM. L. REV. 1385, 1388 (2011) — *350 Montana v. Debra Haaland, 9th Cir., 2022*
- **1** (judicial review of agency action "is not toothless") — *FDA, 5th Cir., 2023*
- **1** (Chevron step two and the APA share the arbitrary and capricious standard and the analysis under the two standards proceeds similarly) — *Oakbrook Land Holdings, LLC, William Duane Horton, Tax Matters Partner v. Commissioner, Tax Ct., 2020*
- **1** ("The [CWA]. . . mandates a system in which, as available pollution-control technology advances, pollution- discharge limits will tighten.") — *Waterkeeper Alliance v. United States Environmental Protection Agency, 9th Cir., 2025*
- **1** ("[A]n agency's action is arbitrary and capricious if illogical on its own terms." (cleaned up)) — *Chamber of Com of the USA v. SEC, 5th Cir., 2023*
- **1** (relying on, inter alia, "text, structure, and the overall statutory scheme" to interpret statutes (cleaned up)) — *Cisneros Guerrero v. Occidental Petro, et a, 5th Cir., 2022*
- **1** (explaining that, while courts may not second-guess an agency's "evaluation of complex scientific data," they must "ensure that the agency examined the relevant data and articulated a satisfactory explanation for its action" (quotations omitted)) — *FDA, 5th Cir., 2026*

↑

419. United States v. Marcus Crum

934 F.3d 963, 9th Cir., 2019
In 2020-24: cited by 16 decisions (appellate) · in all: 16 · 2021–2025: 12 · weight in the sub-cluster 7
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 14%)
Good law: green? (read the newest 16 of 16 citing opinions, filed 2020–2023: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (34%)
Travels with: United States v. Aumbrey Winstead (cosine 0.11, 8 both); Stinson (cosine 0.04, 10 both); United States v. Jeffery Havis (cosine 0.03, 8 both)
No parentheticals.

↑

420. Miccosukee Tribe of Indians of Florida v. United States

566 F.3d 1257, 11th Cir., 2009
In 2020-24: cited by 17 decisions (appellate) · in all: 109 · 2021–2025: 29 · weight in the sub-cluster 7
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 25%)
Good law: green? (read the newest 100 of 114 citing opinions, filed 2010–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.04, 9 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.02, 5 both); State Farm (cosine 0.02, 7 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("The first question is whether Congress has directly spoken to the precise question at issue.") — *Karastan L. Edwards v. U.S. Attorney General, 11th Cir., 2022*
- **2** (giving Chevron deference to Fish & Wildlife Service Handbook that was not published in the CFR) — *Matal, Fed. Cir., 2017*
- **1** ("An incidental take statement may lawfully authorize harm to an endangered species as long as the statement sets a 'trigger' for further consultation at the point where the allowed incidental take is exceeded, a point at which there is a risk of jeopardizing the species.") — *Defenders of Wildlife v. United States Department of the Navy, 11th Cir., 2013*
- **1** (state and private projects fell "within the jurisdiction of the Army Corps of Engineers" and were exempt from cumulative impacts analysis because they are subject to their own consultation process) — *Natural Resources Defense Council v. National Park Service, M.D. Fla., 2017*
- **1** ("We apply instead the rule that specific population data is required unless it is impractical.") — *Public Employees for Environmental Responsibility v. Secretary, U.S. Department of the Interior, 11th Cir., 2016*
- **1** ("Federal actions, and those involving federal agencies, are excluded from cumulative effects analysis because they are subject to their own consultation process.") — *DOI, 5th Cir., 2021*
- **1** ("Biological opinions are final agency actions subject to judicial review under the Administrative Procedure Act." (internal citation omitted)) — *Defenders of Wildlife v. United States Department of the Navy, S.D. Ga., 2012*
- **1** ("The general view is that the agency decides which data and studies are the 'best available' because that decision is itself a scientific determination.") — *SOSS2, Inc. v. United States Army Corps of Engineers, M.D. Fla., 2020*

↑

421. City of New York v. Beretta U.S.A. Corp.

524 F.3d 384, 2d Cir., 2008
In 2020-24: cited by 10 decisions (appellate) · in all: 125 · 2021–2025: 32 · weight in the sub-cluster 6
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.12 Federal preemption, 25%)
Good law: green? (read the newest 100 of 130 citing opinions, filed 2009–2026: status now, not the year it changed)
Travels with: Coxe (cosine 0.23, 5 both); Ileto (cosine 0.20, 5 both); New York v. United States (cosine 0.06, 5 both)
How later courts describe it (30 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (discussing the legislative history of the Act) — *Ileto, 9th Cir., 2009*
- **3** ("We find that Congress has not exceeded its authority in this [PLCAA] case, where there can be no question of the interstate character of the industry in question and where Congress rationally perceived a substantial effect on the industry of the litigation that the Act seeks to curtail.") — *Ileto, 9th Cir., 2009*
- **3** (holding that the PLCAA does not violate separation of powers doctrine) — *Ileto, 9th Cir., 2009*
- **2** ("When a district court certifies, pursuant to 28 U.S.C. § 1292(b), a question of 13 controlling law, the entire order is certified and we may assume jurisdiction over the entire order, 14 not merely over the question as framed by the district court.") — *Consub Delaware, LLC v. Schahin Engenharia Limitada, 2d Cir., 2008*
- **2** ("constitutional right of access to the courts is violated where government officials obstruct legitimate efforts to seek judicial redress") — *Jones, D. Conn., 2020*
- **2** (noting that the "legal standards of review for motions to dismiss and motions for judgment on the pleadings are indistinguishable") — *Flatiron Acquisition Vehicle, LLC v. CSE Mortgage LLC, S.D.N.Y., 2020*
- **1** (affirming the PLCAA's constitutionality on other grounds) — *Haller, E.D.N.Y, 2022*
- **1** ("[T]he term 'applicable' must be examined in context.") — *State of New York v. U.S. Dep't of Justice, 2d Cir., 2020*

↑

422. United States v. Antoinette Adair

38 F.4th 341, 3rd Cir., 2022
In 2020-24: cited by 20 decisions (appellate) · in all: 36 · 2021–2025: 36 · weight in the sub-cluster 6
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.1 Reasonableness review of federal sentences, 25%)
Good law: green (read 36 of 36 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (25%)
Travels with: United States v. Malik Nasir (cosine 0.08, 7 both); United States v. Luis Mercado (cosine 0.08, 5 both); Kisor (cosine 0.02, 6 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (defining the terms 'organizer' and 'leader') — *United States v. Glenn Long, 3rd Cir., 2025*
- **1** (explaining that to find clear error, an appellate court must have a "definite and firm conviction that a mistake has been committed" (quoting Anderson v. City of Bessemer City, 470 U.S. 564, 573–74 (1985))) — *United States v. Samuel Barnes, 3rd Cir., 2026*
- **1** (recognizing that criminal activity can involve multiple organizers and leaders) — *United States v. Horace Henry, 3rd Cir., 2023*
- **1** (holding that "if a preserved argument would be reviewed under a more deferential standard, such as clear error or abuse of discretion, then the more deferential standard would apply to the first prong of the plain-error standard for an unpreserved argument") — *United States v. Christopher Daniels, 3rd Cir., 2026*

↑

423. Wages and White Lion Invst v. FDA

16 F.4th 1130, 5th Cir., 2021
In 2020-24: cited by 20 decisions (appellate) · in all: 56 · 2021–2025: 56 · weight in the sub-cluster 20
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 15%)
Good law: green? (read the newest 56 of 56 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: FDA (cosine 0.21, 5 both); FDA (cosine 0.15, 5 both); FDA (cosine 0.13, 7 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (holding that regulatory compliance costs are unrecoverable and therefore amount to irreparable harm "because federal agencies generally enjoy sovereign immunity for any monetary damages") — *State of Louisiana v. Equal Employment Opportunity Commission, W.D. La., 2024*
- **2** ("Indeed, complying with [an agency order] later held invalid almost always produces the irreparable harm of nonrecoverable compliance costs." (alteration in original) — *United States v. State of Texas, 5th Cir., 2025*
- **1** (granting stay of marketing denial order) — *FDA, 4th Cir., 2022*
- **1** (motions panel granting stay on similar reasoning) — *FDA, D.C. Cir., 2022*
- **1** (analyzing the third factor as a balancing of harms) — *Purpose Built Families Foundation. v. Denis McDonough, Vet. App., 2023*
- **1** (rejecting agency's "statement [as] conclusory, unsupported, and thus wholly insufficient") — *Iap Worldwide Services, Inc. v. United States, Fed. Cl., 2022*
- **1** ("The very fact that the FDA perceived the need to rehabilitate its Order with new and different arguments before our court

underscores that the Order itself omitted a reasoned justification for the agency's action.") — *LABR, 5th Cir., 2022*

1 ("When an agency changes course, . . . it must be cognizant that longstanding policies may have engendered serious reliance interests that must be taken into account." (citation omitted)) — *Clarke, 5th Cir., 2023*

↑

424. Camp v. Pitts

411 U.S. 138, SCOTUS, 1973
In 2020-24: cited by 37 decisions (appellate) · in all: 2,265 · 2021–2025: 294 · weight in the sub-cluster 17
Fit: 75% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 12%)
Good law: green (read 508 of 2,333 citing opinions)
Travels with: Volpe (cosine 0.06, 9 both); Lorion (cosine 0.04, 6 both); Burlington Truck Lines, Inc. v. United States (cosine 0.03, 9 both)
How later courts describe it (275 parentheticals; groups of similar wording, largest first; other courts' words)

157 (holding that the "focal point for judicial review should be the administrative record already in existence, not some new record made initially in the reviewing court") — *Rendell, E.D. Pa., 1998*

21 (suggesting that additional explanation may prove necessary when the failure to explain administrative action has frustrated judicial review) — *Joseph K. Bagdonas v. Department of Treasury, United States of America, and Bureau of Alcohol, Tobacco and Firearms, 7th Cir., 1996*

18 (stating that if the contemporaneous explanation of the agency is based on a finding that is not sustainable on the administrative record, the matter must be remanded for further consideration) — *Asociacion Colombiana De Exportadores De Flores v. United States, Ct. Intl. Trade, 1998*

13 (holding that courts should review agency record to determine if agency's decision is supported by a rational basis) — *Acrow Corp. of America v. United States, Fed. Cl., 2011*

5 (noting that "de novo review is appropriate only where there are inadequate factfinding procedures in an adjudicatory proceeding, or where judicial proceedings are brought to enforce certain administrative actions.") — *Safety National Casualty Corp. v. United States Department of Homeland Security, S.D. Tex., 2008*

4 (noting that "substantial evidence" review "is appropriate when reviewing findings made on a hearing record") — *In Re Robert J. Gartside and Richard C. Norton, Fed. Cir., 2000*

4 (holding that a reviewing court may require supplementation of the administrative record if it is incomplete) — *The Lands Council v. Powell, 9th Cir., 2005*

3 ("[W]hile its explanations do not have to be perfect, the path of Commerce's decision must be reasonably discernable to a reviewing court.") — *Coal. of Am. Flange Producers v. United StatesPublic version posted 06/17/2020., Ct. Intl. Trade, 2020*

↑

425. Rodriguez v. United States

480 U.S. 522, SCOTUS, 1987
In 2020-24: cited by 80 decisions (appellate) · in all: 507 · 2021–2025: 106 · weight in the sub-cluster 30
Fit: 74% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.12 Federal preemption, 19%)
Good law: green (read 509 of 572 citing opinions)
Travels with: Henson (cosine 0.08, 12 both); Newport News (cosine 0.05, 5 both); Hudson (cosine 0.04, 5 both)
How later courts describe it (54 parentheticals; groups of similar wording, largest first; other courts' words)

14 ("[R]epeals by implication are not favored and will not be found unless an intent to repeal is clear and manifest.")

10 ("Where Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely in its conclusion.") — *In Re: John W. Byrd, Jr. Movant, 6th Cir., 2001*

5 (noting the presumption that Congress acts "with full awareness of * * * well-established judicial interpretation") — *Shehee, Ohio Ct. App., 2024*

4 (stating that there is a presumption against repeals by implication) — *Figueroa, 3rd Cir., 1999*

3 ("no legislation pursues its purposes at all costs") — *Wigod, 7th Cir., 2012*

3 (noting that "no legislation pursues its purposes at all costs" and therefore "it frustrates rather than effectuates legislative intent simplistically to assume that whatever furthers the statute's primary objective must be the law") — *Vencor, Inc. v. Physicians Mutual Insurance, D.C. Cir., 2000*

2 (While "repeal by implication" is a disfavored method of statutory construction and will not be found absent a clear intent to repeal, such an intent may be inferred from an "irreconcilable conflict" between two provisions.) — *Csx Transportation v. United States of America and Interstate Commerce Commission, Potomac Electric Power Company, Intervenor, D.C. Cir., 1989*

2 (describing as "most impermissible]" reliance on an "understanding of the broad purposes of the [statute]" in statutory interpretation) — *American Petroleum Institute v. Securities and Exchange Commission, D.D.C., 2013*

↑

426. Baez-Sanchez v. Sessions

872 F.3d 854, 7th Cir., 2017
In 2020-24: cited by 15 decisions (appellate) · in all: 21 · 2021–2025: 3 · weight in the sub-cluster 24

Fit: 74% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.3 Immigration: persecution and notice to appear (Tenth Circuit), 12%)
Good law: green? (read the newest 21 of 21 citing opinions, filed 2018–2022: status now, not the year it changed)
Travels with: KHAN (cosine 0.14, 8 both); L. D. G. v. Eric Holder, Jr. (cosine 0.12, 7 both); Finest Meridor v. U.S. Attorney General (cosine 0.10, 7 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (a case also dealing with the process for obtaining a U visa) — *Daniela Guerra-Rocha v. William P. Barr, 7th Cir., 2020*

↑

427. United States v. Reorganized CF&I Fabricators of Utah, Inc.

518 U.S. 213, SCOTUS, 1996
In 2020-24: cited by 10 decisions (appellate) · in all: 228 · 2021–2025: 24 · weight in the sub-cluster 5
Fit: 74% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:4.11 around Ziglar, 26%)
Good law: green? (read the newest 100 of 256 citing opinions, filed 2010–2026: status now, not the year it changed)
Also ties to: 2020-24:4 Federal civil-rights litigation: immunity, pleading, summary judgment (16%)
Travels with: United States v. La Franca (cosine 0.27, 5 both); NFIB (cosine 0.06, 9 both)
How later courts describe it (51 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** (holding that "categorical reordering of priorities that takes place at the legislative level of consideration is beyond the scope of judicial authority to order equitable subordination under § 510(c)") — *In Re Merrimac Paper Co., Inc., D. Mass., 2003*
- **4** (rejecting the government's interpretation of a tax statute) — *SKF USA, Inc. v. United States Customs & Border Protection, Fed. Cir., 2009*
- **4** (citing, inter alia, United States v. Sotelo, 436 U.S. 268, 275, 98 S.Ct. 1795, 1800, 56 L.Ed.2d 275 (1978); City of New York v. Feiring, 313 U.S. 283, 285, 61 S.Ct. 1028, 1029, 85 L.Ed. 1333 (1941) — *In Re Hovan, Inc., 9th Cir., 1996*
- **3** ("[A] tax is a pecuniary burden laid upon individuals or property for the purpose of supporting the Government." (internal quotation marks omitted)) — *Terrence Johnson v. Phil Bredesen, 6th Cir., 2010*
- **3** (the term "tax" may have different meanings in the Internal Revenue Code and the Bankruptcy Code) — *Pittston Company v. United States, 4th Cir., 1999*
- **3** (determining whether, under section 507(a)(7) of the Bankruptcy Code, a particular exaction was "a 'tax' [ ]as distinct from a ... penalty") — *Obama, 6th Cir., 2011*
- **3** (noting that the Court places "no weight on the 'tax' label in the" state law) — *In Re Grede Foundries, Inc., 7th Cir., 2011*
- **2** (dis- cussing equitable subordination in bankruptcy) — *AG Finan Service Inc v. Hughes, Barbara, 7th Cir., 2005*

↑

428. Interstate Commerce Commission v. Cincinnati, New Orleans & Texas Pacific Railway Co.

167 U.S. 479, SCOTUS, 1897
In 2020-24: cited by 9 decisions (appellate) · in all: 155 · 2021–2025: 13 · weight in the sub-cluster 19
Fit: 73% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green? (read the newest 100 of 166 citing opinions, filed 1913–2026: status now, not the year it changed)
Travels with: Industrial Union (cosine 0.25, 5 both); Federal Trade Commission v. Bunte Bros. (cosine 0.14, 8 both); United States Telecom Assoc. v. FCC [Order In Slip Opinio... (cosine 0.13, 8 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (interstate commerce agency regulating interstate railroad commerce) — *West Virginia v. EPA, SCOTUS, 2022*
- **2** (holding a delegation of legislative power of "supreme deli- cacy and importance" must be "clear and direct") — *Trump, SCOTUS, 2026*
- **2** (explaining that for agency assertions of "vast and comprehensive" power, "no just rule of construction would tolerate a grant of such power by mere implication") — *Biden, SCOTUS, 2023*
- **2** (concluding that Con- gress "did not intend" to give interstate commission power to set railroad rates) — *Trump, SCOTUS, 2026*
- **1** ("The Queen and Crescent Case") — *Alliance for Fair Board Recruitment v. SEC, 5th Cir., 2024*
- **1** (Congress can delegate legislative power to "subordinate tribunal") — *Maiz, D.P.R., 1998*

↑

429. Barnhart v. Peabody Coal Co.

537 U.S. 149, SCOTUS, 2003
In 2020-24: cited by 58 decisions (appellate) · in all: 372 · 2021–2025: 92 · weight in the sub-cluster 34
Fit: 73% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 8%)
Good law: green? (read the newest 100 of 415 citing opinions, filed 2020–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (16%)
Travels with: Brock (cosine 0.25, 9 both); Montalvo-Murillo (cosine 0.10, 6 both); Marx (cosine 0.09, 12 both)
How later courts describe it (97 parentheticals; groups of similar wording, largest first; other courts' words)

- **52** (holding that where "it is fair to suppose that [the drafters] considered the unnamed possibility and meant to say no to it," courts should "read the enumeration of one case to exclude another") — *Webb, 9th Cir., 2007*

7 (missed deadline for assigning industry retiree benefits does not prevent later award of benefits) — *Dolan, SCOTUS, 2010*
6 ("Nor, since Brock, have we ever construed a provision that the Government 'shall' act within a specified time, without more, as a jurisdictional limit precluding action later." (emphasis added)) — *Hitachi Home Electronics (America), Inc. v. United States, Fed. Cir., 2011*
3 (recognizing that "some time limits are jurisdictional even though expressed in a separate statutory section from jurisdictional grants," and citing 28 U.S.C. § 2107 as an example) — *United States v. Philip Martin Sadler, 9th Cir., 2007*
2 (" 'shall' . . . assign ") — *McIntosh, SCOTUS, 2024*
2 (majority opinion of SOUTER, J., joined by STEVENS, GINSBURG, and BREYER, JJ., inter alios) — *Bowles, SCOTUS, 2007*
2 (expressing a reluctance to void subsequent agency action for failure to comply with statutory timing where statute itself does not specify a consequence for noncompliance) — *Sebelius, D.D.C., 2010*
2 (noting that by 1992 "Congress was presumably aware that we do not readily infer congressional intent to limit an agency's power to get a mandatory job done merely from a specification to act by a certain time.") — *Superior Com. Sols. LLC v. United States, Ct. Intl. Trade, 2025*

↑

430. Perez v. Mortgage Bankers Assn.

575 U.S. 92, SCOTUS, 2015
In 2020-24: cited by 92 decisions (appellate) · in all: 420 · 2021–2025: 168 · weight in the sub-cluster 96
Fit: 73% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green (read 449 of 449 citing opinions)
Role changed 2025-29: likely successor FCC v. Prometheus Radio Project, 592 U.S. 414 (2021) (40% of the 20 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: Shalala (cosine 0.18, 13 both); Michigan v. EPA (cosine 0.08, 16 both); Brown (cosine 0.07, 17 both)
How later courts describe it (84 parentheticals; groups of similar wording, largest first; other courts' words)

15 (holding that the APA "mandate[s] that agencies use the same procedures when they amend or repeal a rule as they used to issue the rule in the first instance") — *Jubilant Draximage Inc. v. United States International Trade Commission, D.D.C., 2020*
6 ("[I]t is the court that ultimately decides whether a given regulation means what the agency says") — *Kisor, SCOTUS, 2019*
6 (noting that interpretive rules "advise the public of the agency's construction of the statutes and rules which it administers") — *Wright, W.D. Tenn., 2025*
5 ("Rules issued through the notice-and-comment process are often referred to as 'legislative rules' because they have the 'force and effect of law.'" (citation omitted)) — *Jocelyn Lee Geouge v. Jason Barry Traylor, Dustin Griffith and Tiffany Vadella-Griffith, Va. Ct. App., 2017*
4 (explaining that an agency can "interpret a regulation without effectively amending the underlying source of law," as it does in an interpretive rule) — *Le, D.D.C., 2025*
3 (explaining that an agency has an obligation to respond to significant comments received) — *City of Portland v. United States, 9th Cir., 2020*
2 (describing three- step notice and comment rulemaking process) — *Advanced Dermatology v. Fieldwork, Inc., N.D. Ill., 2021*
2 ("The act of 'amending,' ... in both ordinary parlance and legal usage, has its own meaning separate and apart from the act of 'interpreting.' " (citation omitted)) — *Burwell, D.C. Cir., 2016*

↑

431. United States v. Apel

134 S. Ct. 1144, SCOTUS, 2014
In 2020-24: cited by 16 decisions (appellate) · in all: 38 · 2021–2025: 14 · weight in the sub-cluster 10
Fit: 73% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:21.1 Federal Arbitration Act (sub-cluster), 11%)
Good law: green? (read the newest 40 of 40 citing opinions, filed 2014–2025: status now, not the year it changed)
Travels with: ATF (cosine 0.10, 9 both); Guedes (cosine 0.06, 5 both); Babbitt (cosine 0.05, 7 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

10 ("[W]e have never held that the Government's reading of a criminal statute is entitled to any deference") — *Abramski, SCOTUS, 2014*
2 (remarking that the Supreme Court has never accorded deference to an agency's internal reading of a criminal statute) — *Aposhian, D. Utah, 2019*
1 (proper measure of attorney performance is whether counsel's assistance "was reasonable 15 considering all the circumstances" (quoting Strickland, 466 U.S. at 688)) — *Kellywood, D. Ariz., 2022*
1 (describing the defendant's prior conviction under § 1382 as "trespass[ing] beyond the designated protest area" at Vandenberg) — *United States v. Michael Omondi, 9th Cir., 2020*

↑

432. National Labor Relations Board v. Wyman-Gordon Co.

394 U.S. 759, SCOTUS, 1969
In 2020-24: cited by 57 decisions (appellate) · in all: 721 · 2021–2025: 140 · weight in the sub-cluster 13
Fit: 72% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.1

Ninth Circuit asylum: particular social group and nexus, 13%)
Good law: green? (read the newest 100 of 788 citing opinions, filed 2022–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Felix Hilario Secaida-Rosales v. Immigration and Naturali..., 331 F.3d 297 (2003) (26% of the 47 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Also ties to: 2020-24:16 Immigration and agency review (18%)
Travels with: Morgan Stanley (cosine 0.07, 10 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.03, 9 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.03, 14 both)
How later courts describe it (120 parentheticals; groups of similar wording, largest first; other courts' words)

- **53** (emphasizing that SEC v. Chenery Corp., 318 U.S. 80, 63 S.Ct. 454, 87 L.Ed. 626 (1943) — *Xiao Ji Chen v. United States Department of Justice, Attorney General Alberto R. Gonzales, 2d Cir., 2006*
- **14** (explaining that remand is not required when it would be "an idle and useless formality") — *BATCHELDER, D.N.J., 2022*
- **8** (plurality opinion and concurring opinion by Black, J.) — *Weaver, D.D.C., 1978*
- **8** ("No principle of administrative law or common sense requires us to remand a case in quest of a perfect opinion unless there is reason to believe that remand might lead to a different result.") — *Balsley, S.D. Ohio, 2021*
- **6** (enforcing NLRB's ruling that disclosure of names and home addresses was relevant and necessary to candidate unions prior to an election)
- **3** ("Adjudicated cases may and do, of course, serve as vehicles for the formulation of agency policies, which are applied and announced therein.") — *Grace, D.C. Cir., 2018*
- **3** (holding invalid a legislative rule developed in agency adjudication) — *Beneli v. National Labor Relations Board, 9th Cir., 2017*
- **3** (noting that when "there is not the slightest uncertainty as to the outcome of a proceeding[,] ... it would be meaningless to remand.") — *Genego, 2d Cir., 2019*

↑

433. United States v. Moore

423 U.S. 122, SCOTUS, 1975
In 2020-24: cited by 23 decisions (appellate) · in all: 279 · 2021–2025: 25 · weight in the sub-cluster 4
Fit: 72% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 28%)
Good law: green? (read the newest 100 of 316 citing opinions, filed 2009–2026: status now, not the year it changed)
Role changed 2005-09: likely successor United States v. Ricardo U. Alerre, United States of Amer..., 430 F.3d 681 (2005) (34% of the 32 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (19%)
Travels with: United States v. Jeffrey H. Feingold (cosine 0.14, 8 both); Gonzales v. Oregon (cosine 0.04, 5 both)
How later courts describe it (52 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** ("[Registered physicians can be prosecuted under § 841 when their activities fall outside the usual course of professional practice.") — *United States v. Ricky Joe Nelson, 10th Cir., 2004*
- **4** (holding that physicians violate the Controlled Substances Act "when their activities fall outside the usual course of professional practice")
- **3** ("By its terms § 841 reaches 'any person' " and "does not exempt (as it could have) 'all registrants' or 'all persons registered under this Act' ") — *RLC, SCOTUS, 1992*
- **3** (noting that "[i]n enacting the CSA Congress attempted to devise a more flexible penalty structure than that used in the Harrison Act," with penalties "geared to the nature of the violation, including the character of the drug involved") — *Santiago-Mendez, 1st Cir., 2012*
- **2** (discussing the legislative history of the CSA) — *Gaetan H. Bourgoin v. Twin Rivers Paper Company, LLC, Me., 2018*
- **2** (physician violates related law when he sells illicit drugs to addicts) — *Larry Leon Chaney v. Margaret M. Heckler, as Secretary of Health and Human Services, D.C. Cir., 1984*
- **2** ("On its face §829 addresses only the form that a prescription must take.... [Section] 829 by its terms does not limit the authority of a practitioner") — *Gonzales v. Oregon, SCOTUS, 2006*
- **2** (noting that the defendant conceded that his conduct "was inconsistent with all accepted methods of treating addicts") — *Tobin, 11th Cir., 2012*

↑

434. Securities & Exchange Commission v. Chenery Corp.

332 U.S. 194, SCOTUS, 1947
In 2020-24: cited by 176 decisions (appellate) · in all: 3,615 · 2021–2025: 652 · weight in the sub-cluster 105
Fit: 72% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green? (read the newest 100 of 3,980 citing opinions, filed 2025–2026: status now, not the year it changed)
Role changed 1985-89: likely successor Chevron, 467 U.S. 837 (1984) (27% of the 259 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Also ties to: 2020-24:16 Immigration and agency review (16%)
Travels with: State Farm (cosine 0.09, 55 both); Texaco (cosine 0.05, 6 both); Erie Brush & Manufacturing Corp. v. National Labor Relati... (cosine 0.04, 5 both)

How later courts describe it (435 parentheticals; groups of similar wording, largest first; other courts' words)

218 (holding that a reviewing court "must judge the propriety of [an agency's judgment] solely by the grounds invoked by the agency") — *Ross, D.D.C., 2009*

24 (observing that "the choice made between proceeding by general rule or by individual, ad hoc litigation is one that lies primarily in the informed discretion of the administrative agency") — *FAA, 3rd Cir., 2025*

18 (stating that "[i]t will not do for a court to be compelled to guess at the theory underlying the agency's action") — *Taian Ziyang Food Co. v. United States, Ct. Intl. Trade, 2013*

17 (noting that a court cannot "be expected to chisel that which must be precise from what the agency has left vague and indecisive") — *Mufied, 2d Cir., 2007*

12 (holding that a reviewing court may not supply a reasoned basis for the agency's action that the agency itself has not given) — *In Re steelbuilding.com, Fed. Cir., 2005*

7 (holding that "in [some] situations, the agency must retain power to deal with ... problems on a case-by-case basis if the administrative process is to be effective") — *In Re Dept. of Community Affairs, N.J. Super. Ct. App. Div., 1989*

5 (describing the reasons for remand) — *Immigration & Naturalization Service v. Ventura, SCOTUS, 2002*

5 (stating that the retroactivity resulting from a new principle "announced by a court or by an administrative agency . . . must be balanced against the mischief of producing a result which is contrary to a statutory design or to legal and equitable principles") — *CROSS, BIA, 2015*

↑

435. City of Milwaukee v. Illinois

451 U.S. 304, SCOTUS, 1981

In 2020-24: cited by 27 decisions (appellate) · in all: 477 · 2021–2025: 49 · weight in the sub-cluster 6

Fit: 72% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:57.2 around Gunn, 15%)

Good law: green (read 507 of 542 citing opinions)

Role changed 1995-99: likely successor O'Melveny & Myers v. Federal Deposit Insurance, 512 U.S. 79 (1994) (44% of the 34 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)

Also ties to: 2020-24:57 around Watson (15%)

Travels with: Rapanos (cosine 0.04, 6 both); AR v. OK (cosine 0.04, 5 both); Solid Waste Agency of Northern Cook County v. United Stat... (cosine 0.04, 6 both)

How later courts describe it (96 parentheticals; groups of similar wording, largest first; other courts' words)

13 ("when Congress addresses a question previously governed by a decision rested on federal common law the need for such an unusual exercise of lawmaking by federal court disappears") — *DOJ, D.C. Cir., 2003*

11 ("[W]e start with the assumption that it is for Congress, not federal courts, to articulate the appropriate standards to be applied as a matter of federal law.") — *Randall Gendron v. United States of America, Randall Gendron v. United States of America, James P. Glass v. Rodney J. Ahitow, 7th Cir., 1998*

8 (stating that the Supreme Court has "always recognized that federal common law is subject to the paramount authority of Congress" and may be resorted to only "[in] absence of an applicable Act of Congress") — *Vine, D.D.C., 2006*

3 ("Our commitment to the separation of powers is too fundamental to continue to rely on federal common law by judicially decreeing what accords with common sense and the public weal when Congress has addressed the problem") — *Lexmark International, Inc. v. Impression Products, Inc., Fed. Cir., 2016*

3 ("Every point source discharge is prohibited unless covered by a per- mit" (footnote omitted)) — *County of Maui v. Hawaii Wildlife Fund, SCOTUS, 2020*

3 ("[T]he question [is] whether the legislative scheme spoke directly to a question ... not whether Congress had affirmatively proscribed the use of federal common law." (quotation omitted)) — *Arkan Ali v. Donald Rumsfeld, D.C. Cir., 2011*

3 (holding that legislation had preempted federal common law of water pollution) — *Powers, N.D. Ill., 1983*

3 (holding that amendments to the Clean Water Act displaced the nuisance claim recognized in Milwaukee I) — *American Elec. Power, SCOTUS, 2011*

↑

436. Brock v. Pierce County

476 U.S. 253, SCOTUS, 1986

In 2020-24: cited by 15 decisions (appellate) · in all: 347 · 2021–2025: 25 · weight in the sub-cluster 10

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:4.6 around Mathews, 29%)

Good law: green? (read the newest 100 of 393 citing opinions, filed 2011–2026: status now, not the year it changed)

Travels with: Barnhart (cosine 0.25, 9 both); Montalvo-Murillo (cosine 0.16, 6 both)

How later courts describe it (112 parentheticals; groups of similar wording, largest first; other courts' words)

13 (holding that floor statements are valid indicators of congressional intent to the extent that they "are consistent with the statutory language") — *O'Brien, 1st Cir., 1998*

10 (noting that state has an interest in protecting the public fisc and that its "protection ... is a matter that is of interest to every citizen") — *John Loscombe v. City of Scranton, 3rd Cir., 2015*

9 (holding that the Comprehensive Employment and Training Act's requirement that the Secretary of Labor "shall" take action

within 120 days was not jurisdictional) — *Nally, N.D. Cal., 1994*

8 (holding that when "there are less drastic remedies available for failure to meet a statutory deadline, courts should not assume that Congress intended the agency to lose its power to act.") — *Babbitt, E.D. Cal., 1999*

7 ("We would be most reluctant to conclude that every failure of an agency to observe a procedural requirement voids subsequent agency action.") — *Lifestyle Enterprise, Inc. v. United States, Ct. Intl. Trade, 2011*

5 (missed deadline for making final determination as to misuse of federal grant funds does not prevent later recovery of funds) — *Dolan, SCOTUS, 2010*

4 (timing of Secretary of Labor's investigation of misuse of Comprehensive Employment and Training Act funds) — *Stanley R. Hendrickson v. Federal Deposit Insurance Corporation, 7th Cir., 1997*

3 (holding, when addressing an agency's mandatory duty to act within a certain time period, that "courts should not assume that Congress intended the agency to lose its power to act" for failure to follow even mandatory statutory requirements when Congress has not so stated) — *Virgil B. Elings v. Commissioner of Internal Revenue, 9th Cir., 2003*

↑

437. Richard A. Batterton, Secretary of Employment & Social Services of the State of Maryland v. F. Ray Marshall, Secretary of Labor

648 F.2d 694, D.C. Cir., 1980

In 2020-24: cited by 11 decisions (appellate) · in all: 265 · 2021–2025: 24 · weight in the sub-cluster 5

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 29%)

Good law: green? (read the newest 100 of 287 citing opinions, filed 1997–2026: status now, not the year it changed)

Role changed 1990-94: likely successor American Hospital Association v. Otis R. Bowen, Secretary..., 834 F.2d 1037 (1987) (34% of the 29 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)

Travels with: Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.08, 5 both); Azar (cosine 0.04, 5 both); Encino Motorcars (cosine 0.03, 5 both)

How later courts describe it (31 parentheticals; groups of similar wording, largest first; other courts' words)

3 (nonlegislative rules carry no more weight than their inherent persuasiveness commands) — *Elizabeth Blackwell Health Center for Women v. Knoll, 3rd Cir., 1995*

3 (according notice and comment great importance because it "reintroduce[s] public participation and fairness to affected parties after governmental authority has been delegated to unrepresentative agencies") — *Biden, E.D. Mo., 2021*

2 (procedures affecting entitlement to federal grants not exempt) — *Air Transport Association Of America, Petitioner v. Department Of Transportation, D.C. Cir., 1990*

2 (regulation established critical statistical variable in formula for computing unemployment rate)

2 ("Our task is ... a familiar one ... characterizing the product of agency action to determine its legal status and effect.") — *Azar, D.C. Cir., 2018*

2 (agency's choice of a methodology for calculating unemployment rates affects federal funding levels and thus "trenches on substantial private rights")

2 (holding unlawful a new methodology for collecting and computing unemployment statistics never published or announced by the Department of Labor) — *FDA, 5th Cir., 2023*

2 (explaining that Congress exempted rules of agency procedure from notice and comment requirements "to ensure that agencies retain latitude in organizing their internal operations") — *Military Order of the Purple Heart v. Secretary of Veterans Affairs, Fed. Cir., 2009*

↑

438. Skidmore v. Swift & Co.

323 U.S. 134, SCOTUS, 1944 • note built

In 2020-24: cited by 220 decisions (appellate) · in all: 4,160 · 2021–2025: 567 · weight in the sub-cluster 163

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 5%)

Good law: green (read 666 of 4,566 citing opinions)

Role changed 2025-29: likely successor Raimondo, 603 U.S. 369 (2024) (25% of the 59 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)

Travels with: Mead (cosine 0.15, 62 both); Christensen (cosine 0.14, 28 both); Chevron (cosine 0.08, 100 both)

How later courts describe it (332 parentheticals; groups of similar wording, largest first; other courts' words)

177 (holding that an agency's informal interpretation of a statute it administers is entitled to deference to the extent it has the "power to persuade") — *Schouest, S.D. Tex., 2014*

6 ("Whether ... [waiting] time falls within or without the Act is a question of fact to be resolved by appropriate findings of the trial court.") — *Hertz, 8th Cir., 2009*

5 (concluding that the "Secretary [of Labor]'s reasoning in its rulings regarding 'plan assets' [is] thorough, valid and particularly consistent") — *In Re: William C. Halpin Jr., 2d Cir., 2009*

4 (bulletins and interpretive rules of agency administrator, while persuasive, are not controlling) — *Medellin v. Bustos, 5th Cir., 1988*

4 (distinguishing between employees who have been "engaged to wait" and those who are "wait[ing] to be engaged") — *Havrila, Fed. Cl., 2016*

4 (evaluating persuasiveness of interpretive rules according to (1) the thoroughness of the agency's investigation; (2) the validity the agency's reasoning; (3) the consistency of the agency's interpretation over time; and (4) — *Austin v. Town of Farmington, 2d Cir., 2016*

3 ("Unlike regulations, interpretations are not binding and do not have the force of law.") — *Elliott Gelber v. AKAL Security, Inc., 11th Cir., 2021*

3 ("Under Skidmore, we grant an agency's interpretation only so much deference as its persuasiveness warrants.") — *In Re: Polar Bear Endangered Species Act Listing and 4(d) Rule Litigation - Mdl 1993, D.D.C., 2011*

↑

439. Gonzales v. Oregon

546 U.S. 243, SCOTUS, 2006
In 2020-24: cited by 74 decisions (appellate) · in all: 567 · 2021–2025: 123 · weight in the sub-cluster 92
Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 7%)
Good law: green (read 509 of 631 citing opinions)
Travels with: City of Philadelphia v. Attorney General United States (cosine 0.17, 5 both); Brown & Williamson (cosine 0.08, 22 both); Industrial Union (cosine 0.08, 7 both)
How later courts describe it (170 parentheticals; groups of similar wording, largest first; other courts' words)

12 ("Chevron deference ... is not accorded merely because the statute is ambiguous and an administrative official is involved") — *S. D. Warren Co. v. Maine Board of Environmental Protection, SCOTUS, 2006*

12 (holding that Auer deference is not due to a regulation that "does little more than restate the terms of the statute itself') — *Joseph, 7th Cir., 2009*

9 (stating that "[a]n agency does not acquire special authority to interpret its own words when, instead of using its expertise and experience to formulate a regulation, it has elected merely to paraphrase the statutory language") — *Pine Creek Valley Watershed Assoc. v. United States Environmental Protection Agency, E.D. Pa., 2015*

7 ("[T]he existence of a parroting regulation does not change the fact that the question here is not the meaning of the regulation but the meaning of the statute.") — *Sursely, Fed. Cir., 2009*

7 (clarifying that "the background principles of our federal system also belie the notion that Congress would use such an obscure grant of authority to regulate areas traditionally supervised by the States' police power") — *Jordan, E.D. Wash., 2017*

5 (applying Chevron deference only to those interpretations "promulgated pursuant to authority Congress has delegated" to the agency) — *DOT, D.C. Cir., 2007*

4 ("[S]tat utes should not be read as a series of unrelated and isolated provisions." (quotation omitted)) — *Strom, 9th Cir., 2011*

4 (describing the deference afforded to "[e]xecutive actors [that] often must interpret the enactments Congress has charged them with enforcing and implementing") — *Napolitano, D.D.C., 2009*

↑

440. Gutierrez-Brizuela v. Lynch

834 F.3d 1142, 10th Cir., 2016
In 2020-24: cited by 29 decisions (appellate) · in all: 86 · 2021–2025: 29 · weight in the sub-cluster 25
Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 11%)
Good law: green? (read the newest 100 of 101 citing opinions, filed 2016–2026: status now, not the year it changed)
Role changed 2020-24: likely successor ATF, 920 F.3d 1 (2019) (28% of the 29 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Guedes (cosine 0.16, 6 both); ATF (cosine 0.07, 8 both); De Niz Robles v. Lynch (cosine 0.06, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("Normally, people are entitled to rely 19 on judicial precedents as definitive interpretations of what the law is so long as those precedents 20 remain on the books.") — *Norsoph, D. Nev., 2020*

1 ("The Supreme Court has expressly instructed us not to apply Chevron deference when an agency seeks to interpret a criminal statute.") — *Cargill, 5th Cir., 2023*

1 (concurring 2 See also A. Scalia, Judicial Deference to Administrative Interpretations of Law, 1989 Duke L. J. 511, 516–517 (1989) (describing Chevron's theory that Congress "delegat[ed]" interpretive authority to agencies as "fc- tional") — *Raimondo, SCOTUS, 2024*

↑

441. Obeya v. Sessions

884 F.3d 442, 2d Cir., 2018
In 2020-24: cited by 15 decisions (appellate) · in all: 31 · 2021–2025: 15 · weight in the sub-cluster 11
Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.1 Ninth Circuit asylum: particular social group and nexus, 18%)
Good law: green? (read the newest 33 of 33 citing opinions, filed 2018–2025: status now, not the year it changed)
Role changed 2020-24: likely successor Gustavo Monteon-Camargo v. William Barr, U. S. Att, 918 F.3d 423 (2019) (33% of the 15 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Lugo (cosine 0.34, 8 both); Gustavo Monteon-Camargo v. William Barr, U. S. Att (cosine 0.15, 5 both); Securities &

Exchange Commission v. Chenery Corp. (cosine 0.03, 7 both)
How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("[W]hen conducting retroactivity analysis in the immigration context, we look to whether it would have been reasonable for a criminal defendant to rely on the immigration rules in effect at the time that he or she entered a guilty plea.") — *Amilcar Francisco-Lopez v. Attorney General USA, 3rd Cir., 2020*
- **2** (holding it was presented with a case of second impression) — *Amilcar Francisco-Lopez v. Attorney General USA, 3rd Cir., 2020*
- **2** (holding that uniformity "has hardly been a consistent feature of immigration law" and that "the government has no compelling interest in removing individuals for crimes that were not considered to reflect so negatively on their character at the time the offenses were committed") — *Amilcar Francisco-Lopez v. Attorney General USA, 3rd Cir., 2020*
- **1** ("[T]he critical question [for the third factor] is not whether a party actually relied on the old law, but whether such reliance would have been reasonable." (internal quotation marks and citation omitted)) — *LI, S.D.N.Y., 2022*
- **1** (Petitioner's "reliance on that precedent—the third Lugo factor—follows naturally from our determination that the BIA abandoned a decades-old rule . . . .") — *LI, S.D.N.Y., 2022*
- **1** (granting petition for review of BIA order affirming an IJ's removal order on one ground; acknowledging without deciding "alternative arguments" for granting petition) — *Bondi, 2d Cir., 2025*
- **1** (finding a petitioner's reliance on an old rule reasonable where the old rule was established by "seven decades of BIA precedent, reinforced by this Court") — *Arthur, 2d Cir., 2021*
- **1** (analyzing whether rule is "abrupt departure from well-established practice" to determine whether rule is retroactive) — *Reimer, E.D. Wis., 2023*

↑

442. Lorillard v. Pons

434 U.S. 575, SCOTUS, 1978
In 2020-24: cited by 48 decisions (appellate) · in all: 1,330 · 2021–2025: 87 · weight in the sub-cluster 10
Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.14 Implied private rights of action (Cort v. Ash) and § 1983, 16%)
Good law: green (read 601 of 1,535 citing opinions)
Role changed 1985-89: likely successor Thurston, 469 U.S. 111 (1985) (27% of the 104 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Bragdon (cosine 0.12, 9 both); Robinson (cosine 0.01, 6 both); Brown & Williamson (cosine 0.01, 5 both)
How later courts describe it (306 parentheticals; groups of similar wording, largest first; other courts' words)

- **107** (noting that "Congress is presumed to be aware of [a] ... judicial interpretation of a statute and to adopt that interpretation when it re-enacts a statute without change") — *Melvin Morriss, III v. BNSF Railway Company, 8th Cir., 2016*
- **67** (holding that, "where ... Congress adopts a new law incorporating sections of a prior law, Congress normally can be presumed to have had knowledge of the interpretation given to the incorporated law, at least insofar as it affects the new statute") — *Gutierrez, 9th Cir., 2002*
- **23** (recognizing that "the substantive prohibitions of the ADEA were derived in haec verba from Title VII") — *Epter, E.D.N.Y, 2002*
- **15** (presumption that Congress intends statutory phrases adopted from common law to have the same well-known meaning of common law) — *Gabriel Espinoza-Gutierrez v. Richard C. Smith, District Director, Immigration and Naturalization Service, 9th Cir., 1996*
- **7** (holding jury trial appropriate under Age Discrimination in Employment Act where Act provided separately for legal or equitable relief) — *Creech, W.D. Va., 2014*
- **5** (interlocutory appeal on right to jury trial in prisoner litigation) — *In re: Lion Air Flight JT 610 Crash, N.D. Ill., 2023*
- **4** (notice must be given of the intention to sue so that the EEOC or Secretary of Labor can attempt to eliminate the alleged unlawful practice through informal methods) — *Fink, N.D. Iowa, 1995*
- **3** ("[I]n enacting the ADEA, Congress exhibited ... a willingness to depart from those provisions regarded as undesirable or inappropriate for incorporation.") — *Equal Employment Opportunity Commission v. Consolidated Edison Co., S.D.N.Y., 1983*

↑

443. Lockhart v. United States

577 U.S. 347, SCOTUS, 2016
In 2020-24: cited by 95 decisions (appellate) · in all: 262 · 2021–2025: 138 · weight in the sub-cluster 64
Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 11%)
Good law: green (read 270 of 270 citing opinions)
Travels with: Barnhart (cosine 0.20, 30 both); United States v. Arnold Maurice Mathis (cosine 0.15, 9 both); Duguid (cosine 0.07, 19 both)
How later courts describe it (76 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (explaining that the rule of the last antecedent may "be overcome by other indicia of meaning") — *Haik, Utah, 2020*
- **5** ("[A] limiting clause or phase . . . should ordinarily be read as modifying only the noun or phrase that it immediately follows." (emphasis added)) — *Usda, 9th Cir., 2020*
- **5** (observing that canons of statutory interpretation are "not an absolute and can assuredly be overcome by other indicia of meaning" (quotation omitted)) — *State of New Hampshire v. Shane M. Beattie & a., N.H., 2020*
- **5** (noting that the "Court has long acknowledged that structural or contextual evidence may rebut the last antecedent inference"

(internal quotation marks omitted)) — *Pesiri, 2d Cir., 2017*

4 (applying rule of last antecedent to statute that had 35 commas separating each antecedent) — *New Hampshire Lottery Commission, et al. Consolidated Case No. v. William Barr, in his official capacity as Attorney General of the United States of America, et al., D.N.H., 2019*

4 (concluding that "of the United States" modified several preceding nouns in list, because "listed items are simple and parallel without unexpected internal modifiers or structure") — *RAMON R. CHERRY v. UNITED STATES, D.C., 2017*

3 (applying limiting phrase in a statute to only "the antecedent immediately preceding it") — *United States v. David Shulick, 3rd Cir., 2021*

3 (observing that the Supreme Court "has applied the rule from our earliest decisions to our more recent") — *United States Ex Rel. Doghramji v. Community Health Systems, Inc., 6th Cir., 2016*

↑

444. Council For Urological Interes v. Sylvia Mathews Burwell

790 F.3d 212, D.C. Cir., 2015

In 2020-24: cited by 10 decisions (appellate) · in all: 39 · 2021–2025: 8 · weight in the sub-cluster 8

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 20%)

Good law: green? (read the newest 41 of 41 citing opinions, filed 2015–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Department of Commerce v. New York, 588 U.S. 752 (2019) (60% of the 10 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Pension Benefit Guaranty (cosine 0.05, 5 both); Encino Motorcars (cosine 0.04, 6 both); Azar (cosine 0.04, 5 both)

How later courts describe it (14 parentheticals; groups of similar wording, largest first; other courts' words)

2 (discussing 42 U.S.C. §§ 1395 et seq.) — *American Hospital Association v. Thomas Price, D.C. Cir., 2017*

2 (Court "must judge the propriety of agency action solely by the grounds invoked by the agency.") — *George Johnson v. CRB (PUBLIC), D.C. Cir., 2020*

2 (remanding to agency in light of conclusion that interpretation failed at Chevron Step Two) — *Burwell, D.D.C., 2016*

1 (upholding as reasonable statutory interpretation that prevented evasion) — *BBX Capital v. Federal Deposit Insurance Corp., 11th Cir., 2020*

1 ("So long as the procedural requirements of the certification are met, however, this court's review is highly deferential as to the substance of the analysis, particularly where an agency is predicting the likely economic effects of a rule." (quotation marks omitted)) — *FDA, 5th Cir., 2026*

1 ("Congress knew how to permit per-click payments explicitly, suggesting that the omission in this particular context was deliberate.") — *Burwell, D.D.C., 2016*

1 (inclusion of language in one statutory exception and omission of the same language in another "suggest[s] that the omission in this particular context was deliberate") — *Samma, D.D.C., 2020*

1 ("we look to what the agency said at the time of the rulemaking— not to its lawyers' post-hoc rationalizations") — *FDA, D.C. Cir., 2021*

↑

445. United States v. Gonzales

520 U.S. 1, SCOTUS, 1997

In 2020-24: cited by 83 decisions (appellate) · in all: 812 · 2021–2025: 264 · weight in the sub-cluster 26

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:12.1 Employment discrimination: McDonnell Douglas pretext, 11%)

Good law: green? (read the newest 100 of 878 citing opinions, filed 2024–2026: status now, not the year it changed)

Travels with: Ali (cosine 0.14, 22 both); Harrison (cosine 0.10, 5 both); Jesus Zuniga Romero v. William Barr (cosine 0.02, 5 both)

How later courts describe it (230 parentheticals; groups of similar wording, largest first; other courts' words)

71 (declaring that where statutory language is plain, "there is no reason to resort to legislative history") — *Chisholm, 1st Cir., 2019*

53 (noting that, absent an instruction to the contrary, " 'any' has an expansive meaning, that is, 'one or some indiscriminately of whatever kind' ") — *Strach, M.D.N.C., 2016*

20 (holding that "any other term of imprisonment" includes terms imposed by state courts (internal quotation marks omitted)) — *Abbott, SCOTUS, 2010*

9 ("Read naturally, the word 'any' has an expansive meaning . . . .") — *Cir, 9th Cir., 2019*

6 ("'Where Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely in the disparate inclusion or exclusion'") — *Jama, SCOTUS, 2005*

6 (noting judicial analysis of a statute always begins with "the statutory text") — *State v. Philip Morris USA Inc., N.C., 2005*

4 (finding significant that the word "any" was modified in one portion of the statute, but not in another) — *CBS Inc., Fox Broadcasting Co. v. Primetime 24 Joint Venture, 11th Cir., 2001*

4 (explaining that "any" has "expansive meaning" and holding that because "Congress did not add any language limiting the breadth of that word" the court could not impose a limit) — *Ford, D.C. Cir., 2010*

446. United States v. LaBonte

520 U.S. 751, SCOTUS, 1997

In 2020-24: cited by 24 decisions (appellate) · in all: 378 · 2021–2025: 34 · weight in the sub-cluster 8

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.8 around Alleyne, 29%)

Good law: green? (read the newest 100 of 422 citing opinions, filed 2013–2026: status now, not the year it changed)

Role changed 2005-09: likely successor Booker, 543 U.S. 220 (2004) (44% of the 73 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)

Travels with: Neal (cosine 0.13, 5 both); Stinson (cosine 0.05, 5 both); Mistretta (cosine 0.04, 7 both)

How later courts describe it (102 parentheticals; groups of similar wording, largest first; other courts' words)

- **16** (holding that, although Congress has delegated " 'significant discretion in formulating guidelines' " to the Commission, the Commission still "must bow to the specific directives of Congress") — *United States v. Mary E. Warnick, 4th Cir., 2002*
- **12** (noting that pros-ecutorial discretion is an "appropriate" and "integral feature of the criminal justice system") — *United States v. Smith, 7th Cir., 2007*
- **11** (stating that courts assume that in drafting legislation Congress said what it meant) — *Thompson, M.D. Ala., 2019*
- **8** (holding "the phrase 'at or near the maximum term authorized' ... requires a court to sentence a career offender 'at or near' the 'maximum' prison term available once all relevant statutory sentencing enhancements are taken into account") — *United States v. Williams, 11th Cir., 2006*
- **7** (holding that if a Guidelines provision "is at odds with [a statutory directive's] plain language, it must give way") — *United States v. Christopher Hasson, 4th Cir., 2022*
- **4** ("If the Government does not file such notice,.. . the lower sentencing range will be applied even though the defendant may otherwise be eligible for the increased penalty") — *Price, SCOTUS, 2003*
- **3** ("Pursuant to that Guideline, each defendant who qualifies for career offender status is automatically placed in criminal history 'Category VI,' the highest available under the Guidelines.") — *In re: Charles Therion Clayton, 11th Cir., 2016*
- **3** ("Congress has delegated to the Commission significant discretion in formulating guidelines for sentencing convicted federal offenders____ Broad as that discretion may be, however, it must bow to the specific directives of Congress.") — *United States v. Henderson, 9th Cir., 2011*

447. Chevron U. S. A. Inc. v. Echazabal

536 U.S. 73, SCOTUS, 2002

In 2020-24: cited by 33 decisions (appellate) · in all: 289 · 2021–2025: 85 · weight in the sub-cluster 11

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 29%)

Good law: green (read 322 of 322 citing opinions)

Role changed 2015-19: likely successor Nat'l Labor Relations Bd. v. SW Gen., Inc., 580 U.S. 288 (2017) (26% of the 38 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (32%)

Travels with: Nat'l Labor Relations Bd. v. SW Gen., Inc. (cosine 0.08, 10 both); Barnhart (cosine 0.07, 8 both); Marx (cosine 0.06, 6 both)

How later courts describe it (70 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** (holding "a series of two or more . . . things that should be understood to go hand in hand . . . support[s] a sensible inference that the term left out must have been meant to be excluded") — *Weisleder, A.F.C.C.A., 2015*
- **6** ("[E]xpressing one item of [an] associated group or series excludes another left unmentioned" (quoting United States v. Vonn , 535 U.S. 55 , 65, 122 S.Ct. 1043 , 152 L.Ed.2d 90 (2002)) — *Manafort, E.D. Va., 2018*
- **4** (applying an analytical approach by which the validity of an action taken in reliance a regulation depends, in the first instance, on whether the regulation itself exceeds the issuing agency's statutory authority)
- **3** (explaining that sections 12112(b)(6) and 12113 create an affirmative defense for standards shown to be job-related for the position in question and consistent with business necessity) — *David Atkins v. Ken Salazar, Secretary, 5th Cir., 2011*
- **3** (holding that statutory language "may include" indicated non-exclusivity of list that followed) — *S.B., N.J., 2017*
- **3** (holding that the ADA's direct-threat defense may apply not only to "other individuals in the workplace," as the statute states, but to the disabled individual himself) — *C.W. Ex Rel. K.S. v. Capistrano Unified School District, 9th Cir., 2015*
- **2** ("an employer is not required to accommodate an employee if the accommodation threatens the health or safety of that employee or other employees") — *Tielle, M.D. Penn., 2019*
- **2** ("Far from supporting Echazabal's position, the expansive phrasing of 'may include' points directly away from the sort of exclusive specification he claims.") — *Fox, Ky., 2010*

448. New York v. U.S. Environmental Protection Agency

413 F.3d 3, D.C. Cir., 2005

In 2020-24: cited by 12 decisions (appellate) · in all: 141 · 2021–2025: 49 · weight in the sub-cluster 4

Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 29%)

Good law: green? (read the newest 100 of 147 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: Chevron (cosine 0.03, 6 both); State Farm (cosine 0.02, 6 both)
How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** (stating that petitioners waive arguments that they fail to raise in their opening briefs) — *CC1 Ltd. P'ship v. Nat'l Labor Relations Bd., D.C. Cir., 2018*
- **2** ("Congress's failure to use such an express incorporation of prior regulations for 'modification' cuts against" any suggestion that "Congress intended to incorporate" into the Act the "preexisting regulatory definition" of "modification") — *Duke Energy, SCOTUS, 2007*
- **2** ("So far as appears,... [this] incorporation by reference [is] the equivalent of Congress's having simply repeated in the [PSD] context the definitional language used before in the NSPS context") — *Duke Energy, SCOTUS, 2007*
- **2** ("[The statutory] definition requires both a changewhether physical or operational and a resulting increase in emissions of a pollutant" (emphasis in original)) — *Duke Energy, SCOTUS, 2007*
- **1** ("[E]vidence submitted by petitioner in support of [his] 7 motion was not 'material' because it did not rebut the adverse credibility finding 8 that provided the basis for the IJ's denial of petitioner's underlying asylum 9 application.") — *Singh, 2d Cir., 2024*
- **1** ("Section 1331 provides jurisdiction for the exercise of the traditional powers of equity in actions arising under federal law. No more specific 25 statutory basis is required") — *Pinson, D. Ariz., 2024*
- **1** ("We have (naturally) required indications in the statutory language or history to infer that Congress intended to incorporate into a statue a preexisting regulatory definition.") — *Becerra, D.D.C., 2024*
- **1** ("[A] prosecutor may not assert blanket absolute 14 immunity by labeling all his actions as within a particular prosecutorial function.") — *Dashiell, E.D. Wash., 2024*

↑

449. Lindeen v. Securities & Exchange Commission

825 F.3d 646, D.C. Cir., 2016
In 2020-24: cited by 11 decisions (appellate) · in all: 22 · 2021–2025: 9 · weight in the sub-cluster 3
Fit: 71% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 29%)
Good law: green? (read the newest 22 of 22 citing opinions, filed 2017–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.03, 7 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("[W]e do not require [the Commission] to conduct a rigorous, quantitative economic analysis unless [a] statute explicitly directs it to do so." (internal quotation marks omitted)) — *Interfaith Center on Corporate Responsibility v. United States Securities and Exchange Commission, D.D.C., 2025*
- **2** ("A rule is arbitrary and capricious if an agency fail[s] to consider * * * a factor the agency must consider under its organic statute.") — *Mozilla Corporation v. FCC, D.C. Cir., 2019*
- **2** (sustaining an agency's exercise of express definitional authority because the agency "acted reasonably" in making its definitional decision) — *Am. Bankers Ass'n v. Nat'l Credit Union Admin., D.C. Cir., 2018*
- **1** ("The explicit grant of definitional authority manifests that the Congress intended the [agency] to enjoy broad discretion.") — *Seia, 9th Cir., 2023*
- **1** (upholding regulation where SEC explained that "[s]everal factors could mitigate" the risks of its rule) — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*
- **1** (noting that Commission was not required to "conduct a rigorous, quantitative economic analysis of every potential cost and benefit" to satisfy Exchange Act requirements (quotation omitted)) — *Chamber of Com. Of the United States v. SEC, 6th Cir., 2024*

↑

450. J. W. Hampton, Jr., & Co. v. United States

276 U.S. 394, SCOTUS, 1928
In 2020-24: cited by 35 decisions (appellate) · in all: 726 · 2021–2025: 60 · weight in the sub-cluster 62
Fit: 70% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 9%)
Good law: green? (read the newest 100 of 843 citing opinions, filed 2017–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Gundy, 588 U.S. 128 (2019) (69% of the 36 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Grimaud (cosine 0.14, 8 both); Ryan (cosine 0.12, 13 both); Skinner (cosine 0.11, 5 both)
How later courts describe it (37 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("In determining what [Congress] may do in seeking assistance from another branch, the extent and character of that assistance must be fixed according to common sense and the inherent necessities of the governmental co-ordination.") — *Intl. Refugee Assistance v. Donald J. Trump, 4th Cir., 2018*
- **2** (authority to raise customs duties to "equalize" cost of production)
- **2** (federal delegation of authority to set import tariff rates) — *Barasch, SCOTUS, 1989*
- **2** ("Congress may feel itself unable conveniently to determine exactly when its exercise of the legislative power should become effective, because dependent on future conditions, and it may leave the determination of such time to the decision of an

Executive") — *Clinton, SCOTUS, 1998*

2 ("[Legislative action is not a forbidden delegation of legislative power" if Congress provides an "intelligible principle to which the person or body authorized ... is directed to conform.") — *State of Hawaii v. Donald Trump, 9th Cir., 2017*

2 ("[I]t is a breach of the National fundamental law if Congress gives up its legislative power....") — *Kempthorne, D.C. Cir., 2008*

2 (a permissible delegation of legislative power must be accompanied by an "intelligible principle" to which the delega-tee's decisions must conform) — *United States of America v. Daniel Klubock, 1st Cir., 1987*

2 (Congress may not "invest itself or its members with either executive power or judicial power") — *Clinton, SCOTUS, 1997*

↑

451. Crandon v. United States

494 U.S. 152, SCOTUS, 1990

In 2020-24: cited by 30 decisions (appellate) · in all: 599 · 2021–2025: 37 · weight in the sub-cluster 21

Fit: 70% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 22%)

Good law: green (read 521 of 695 citing opinions)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (18%)

Travels with: Wiltberger (cosine 0.10, 13 both); Bass (cosine 0.08, 9 both); McBoyle (cosine 0.05, 10 both)

How later courts describe it (157 parentheticals; groups of similar wording, largest first; other courts' words)

86 (holding that meaning of statute is to be determined from design of statute as whole and its object and policy, in addition to its language) — *United States Ex Rel. Detrick v. Daniel F. Young, Inc., E.D. Va., 1995*

22 ("[The] construction of a criminal statute must be guided by the need for fair warning.") — *Gispert, S.D. Fla., 1994*

16 (noting that where the governing standard in a civil action is set forth in a criminal statute, the rule of lenity applies) — *Black & Decker (US), Inc. v. Smith, W.D. Tenn., 2008*

5 (stating that the rule of lenity "serves to ensure that there is fair warning of the boundaries of criminal conduct and that legislatures, not courts, define criminal liability") — *United States v. Peter A. Murphy, 3rd Cir., 2003*

2 (where Congress uses language in a particular section of an act that is in "harmony with what is thought to be the spirit and purpose of the act," there is no reason to depart from the statutory language) — *International Union, United Automobile, Aerospace & Agricultural Implement Workers Of America, Local 737 v. Auto Glass Employees Federal Credit Union, 6th Cir., 1996*

2 ("Finally, as we have already observed, we are construing a criminal statute and are therefore bound to consider application of the rule of lenity. To the extent that any ambiguity over the temporal scope of [18 U. S. C.] § 209(a) — *United States v. Thompson/Center Arms Co., SCOTUS, 1992*

2 (where Congress used "unambiguous language" in other sections to cover preemployment payments, "the absence of comparable language in § 209(a) indicates that Congress did not intend to broaden the pre-existing coverage to that provision") — *Ann Bogie v. Joan AlexandraSanger, 7th Cir., 2013*

2 (relying upon the definition of the term "salary" in Webster's Second International Dictionary to interpret statutory language) — *Ladd, D.D.C., 2009*

↑

452. Chickasaw Nation v. United States

534 U.S. 84, SCOTUS, 2001

In 2020-24: cited by 38 decisions (appellate) · in all: 354 · 2021–2025: 67 · weight in the sub-cluster 9

Fit: 70% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.4 Substantive due process: family, privacy and reproduction, 19%)

Good law: green? (read the newest 100 of 404 citing opinions, filed 2018–2026: status now, not the year it changed)

Travels with: Lamie (cosine 0.07, 9 both); Germain (cosine 0.03, 6 both); Brown (cosine 0.02, 5 both)

How later courts describe it (118 parentheticals; groups of similar wording, largest first; other courts' words)

15 (noting that the canon is "sometimes offset by the canon that permits a court to reject words as surplusage if inadvertently inserted or if repugnant to the rest of the statute") — *Dieter, 7th Cir., 2009*

13 (noting that statutory canons "are not mandatory rules" and that "other circumstances evidencing congressional intent can overcome their force") — *Buchanan, 4th Cir., 2011*

7 (explaining that "canons are not mandatory rules") — *United States v. Eric Lopez, 9th Cir., 2021*

7 (stating that a statute "is ambiguous * * * [if it is] capable of being understood in two or more possible senses or ways") — *Comm'r, Tax Ct., 2017*

5 (turning to canons of construction, including Indian canon, only after "nothing in the text, legislative history, or underlying policies" resolved an ambiguity in the Indian Gaming Regulatory Act) — *Burwell, D. Wyo., 2015*

5 (stating that canons of construction are "designed to help judges determine the Legislature's intent as embodied in particular statutory language" (emphasis added)) — *Levorsen, 10th Cir., 2016*

4 ("The Court has often said that every clause and word of a statute should, if possible, be given effect." (internal quotation marks omitted)) — *United States v. Jarnaro Middleton, 4th Cir., 2018*

4 (referring to "the canon that warns us against interpreting federal statutes as providing tax exemptions unless those exemptions are clearly expressed") — *US Venture Inc v. United States, E.D. Wis., 2020*

↑

453. Guedes v. Bureau of Alcohol, Tobacco, Firearms and Explosives

140 S. Ct. 789, SCOTUS, 2020 • Relating-to
In 2020-24: cited by 18 decisions (appellate) · in all: 27 · 2021–2025: 20 · weight in the sub-cluster 27
Fit: 70% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 21%)
Good law: green (read 27 of 27 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (20%)
Travels with: ATF (cosine 0.39, 14 both); Gutierrez-Brizuela (cosine 0.16, 6 both); William Akins v. United States (cosine 0.07, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (statement regarding denial of certiorari) — *Aposhian, 10th Cir., 2021*
- **1** (describing Chevron as a "standard of review") — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*
- **1** (Statement of Gorsuch, J., respecting the denial of 32 USCA11 Case: 16-16492 Date Filed: 04/01/2021 Page: 33 of 35 immunity—that because any retaliatory hostile work environment must "rise to the level of a 'personnel action" to pass muster under 42 U.S.C. § 2000e-16(a) — *Noris Babb v. Secretary, Department of Veterans Affairs, 11th Cir., 2021*
- **1** (acknowledging that "the Supreme Court has signaled some wariness about deferring to the government's interpretations of criminal statutes," but distinguishing Apel and Abramski and holding that Babbitt still "govern[s] us here") — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*

↑

454. Davis v. Michigan Department of the Treasury

489 U.S. 803, SCOTUS, 1989
In 2020-24: cited by 106 decisions (appellate) · in all: 1,051 · 2021–2025: 269 · weight in the sub-cluster 72
Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 8%)
Good law: green (read 580 of 1,221 citing opinions)
Role changed 2000-04: likely successor Brown & Williamson, 529 U.S. 120 (2000) (40% of the 76 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Travels with: Brown & Williamson (cosine 0.07, 33 both); Sea-Land (cosine 0.06, 7 both); Robinson (cosine 0.04, 18 both)
How later courts describe it (286 parentheticals; groups of similar wording, largest first; other courts' words)

- **176** (recognizing that "the words of a statute must be read in their context and with a view to their place in the overall statutory scheme") — *Abdelshafi, 4th Cir., 2010*
- **32** ("Legislative history is irrelevant to the interpretation of an unambiguous statute.") — *Clinton Cole v. Burns International Security Services, D.C. Cir., 1997*
- **10** (When Congress "codifies a judicially defined concept, ... absent an express statement to the contrary, ... Congress intended to adopt the interpretation placed on that concept by the courts.") — *Nunez-Reyes, 9th Cir., 2011*
- **6** (stating that to identify a nondiscretionary duty, a court must "interpret[] . . . the intent of the reg- ulation") — *Dehshiri, D.D.C., 2025*
- **6** (suggesting that a State's failure to respect intergovernmental tax immunity could be cured "either by extending [a discriminatory] tax exemption to retired federal employees ... or by eliminating the exemption for retired state and local government employees") — *Harper, SCOTUS, 1993*
- **4** (recognizing that "question[s] of state law [are] within the special expertise of the [state] courts") — *Murriel-Don Coal Co., Inc. v. Aspen Ins. UK Ltd., E.D. Ky., 2011*
- **4** (recognizing that courts must "construe th[e] provision [at issue] with the statutory scheme in which it is embedded") — *Manning v. Caldwell for City of Roanoke, 4th Cir., 2019*
- **3** (describing context of Act's enactment)

↑

455. Thorpe v. Housing Authority of Durham

393 U.S. 268, SCOTUS, 1969
In 2020-24: cited by 23 decisions (appellate) · in all: 968 · 2021–2025: 46 · weight in the sub-cluster 5
Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 31%)
Good law: green? (read the newest 100 of 1,074 citing opinions, filed 2012–2026: status now, not the year it changed)
Role changed 1990-94: likely successor Bowen, 488 U.S. 204 (1988) (34% of the 53 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (27%)
Travels with: United States v. Schooner Peggy (cosine 0.10, 8 both); Bradley (cosine 0.06, 7 both); Landgraf (cosine 0.01, 5 both)
How later courts describe it (80 parentheticals; groups of similar wording, largest first; other courts' words)

- **29** (noting that "if subsequent to the judgment and before the decision of the appellate court, a law intervenes and positively changes the rule which governs, the law must be obeyed") — *Sulzer Textil A.G. And Sulzer Textile, Inc. v. Picanol N v. Defendant-Cross, Fed. Cir., 2004*
- **5** (expanding on holding of United States v. Schooner Peggy, 1 Cranch 103, 2 L.Ed. 49 (1801)) — *McCullough, N.D. Ill., 1992*

5 (holding that a HUD circular — requiring notice of reasons for eviction be given to tenants in HUD-assisted housing projects — would apply to the eviction of a tenant whose judicial challenge to the eviction was pending at the time of the circular's issuance) — *Max Ralis v. Rfe/rl, Inc, D.C. Cir., 1985*

3 (applying Thorpe rule 16 to administrative agency decisions) — *Nikeesha Webb v. DC DOES, D.C., 2019*

3 (tenant was evicted under former regulations and eviction was upheld on appeal; while case was pending before the Supreme Court a new procedural rule was enacted; Supreme Court reversed eviction on the ground that landlord had not complied with the new rule) — *In Re Marriage of Duggan, Ill. App. Ct., 2007*

2 (circular issued pursuant to agency's rulemaking powers)

2 ('We do not sit . . . to decide abstract, hypothetical or contingent questions or to decide any constitutional question in advance of the necessity for its decision." (quotation and alterations omitted)) — *Bennington Housing Authority v. Danielle Lake Bennington Housing Authority v. Krista A. Saunders and Adam Rousseau, Vt., 2012*

2 (retroactive application of a Housing and Urban Development regulation. This principle of retroactivity " has been applied where the change (in the law) was constitutional, statutory or judicial") — *White v. Estelle, 5th Cir., 1977*

↑

456. United States v. Woods

134 S. Ct. 557, SCOTUS, 2013

In 2020-24: cited by 59 decisions (appellate) · in all: 304 · 2021–2025: 120 · weight in the sub-cluster 13

Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:21.1 Federal Arbitration Act (sub-cluster), 16%)

Good law: green? (read the newest 100 of 317 citing opinions, filed 2022–2026: status now, not the year it changed)

Travels with: Navarro (cosine 0.09, 11 both); Reiter (cosine 0.08, 11 both)

How later courts describe it (66 parentheticals; groups of similar wording, largest first; other courts' words)

20 (recognizing that the word "or" "is almost always disjunctive" and thus the "words it connects are to 'be given separate meanings'") — *Freedom From Religion Foundation Inc. v. Mercer County Board of Education, S.D.W. Va, 2020*

11 ("Whether or not legislative history is ever relevant, it need not be consulted when, as here, the statutory text is unambiguous.") — *United States v. Finley Hilliard, 5th Cir., 2015*

4 (noting the inherent mathematical problem of dividing a number by zero) — *Comm'r, Tax Ct., 2014*

2 ("Before 1982, the IRS had no way of correcting errors on a partnership's return in a single, unified proceeding. Instead, tax matters pertaining to all the members of a partnership were dealt ... through deficiency proceedings at the individual-taxpayer level.") — *Isler, Fed. Cl., 2016*

2 ("Once the adjustments to partnership items have become final, the IRS may undertake further proceedings at the partner level to make any resulting 'computational adjustments' in the tax liability of the individual partners.") — *Uniquest Del. LLC v. United States, W.D.N.Y., 2018*

2 (recognizing that while the connection of terms "by the conjunction 'or' ... can sometimes introduce an appositive-a word or phrase that is synonymous with what precedes it (Vienna or Wien, Batman or the Caped Crusader) — *Freitas, 1st Cir., 2018*

2 (holding that the gross valuation misstatement penalty applies when a transaction lacking economic substance results in a valuation misstatement) — *Comm'r, Tax Ct., 2014*

1 ("And the definition is clearly in the disjunctive[.]") — *United States v. Nigel Medlin, 6th Cir., 2023*

↑

457. Tamm v. UST-United States Trustee (In Re Hokulani Square, Inc.)

776 F.3d 1083, 9th Cir., 2015

In 2020-24: cited by 9 decisions (appellate) · in all: 23 · 2021–2025: 15 · weight in the sub-cluster 4

Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 31%)

Good law: green? (read the newest 23 of 23 citing opinions, filed 2015–2026: status now, not the year it changed)

Travels with: Crooks (cosine 0.19, 6 both); Lamie (cosine 0.03, 5 both)

How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("The absurdity canon isn't a license for us to disregard statutory text where it conflicts with our policy preferences.") — *United States v. Eric Lopez, 9th Cir., 2021*

1 ("The distinction drawn by section 27 326(a) — *Mohareb, D. Ariz., 2024*

1 ("The absurdity canon . . . is confined to situations where it is quite impossible that Congress could have intended the result . . . and where the alleged absurdity is so clear as to be obvious to most anyone.") — *United States v. Paul Torres, III, 9th Cir., 2021*

1 ("The distinction drawn by [the statute] may be harsh and misguided, but it is not absurd.") — *United States v. Trinity Phillips, 6th Cir., 2022*

1 (describing a secured creditor's purchase of estate property via credit bid, such that "the creditors get the property, and the estate's debt is reduced by the amount of the bid") — *IN RE: SANDRA TILLMAN V. LAWRENCE WARFIELD, 9th Cir., 2022*

1 (rejecting the argument that bankruptcy code provision was absurd because whether trustee received a fee for his services or worked for free turned on trivialities) — *United States v. James D. Paulson, 9th Cir., 2023*

↑

458. First National City Bank v. Banco Para El Comercio Exterior De Cuba

462 U.S. 611, SCOTUS, 1983

In 2020-24: cited by 24 decisions (appellate) · in all: 561 · 2021–2025: 64 · weight in the sub-cluster 3

Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:19.10 around Nelson, 31%)

Good law: yellow? (read the newest 100 of 607 citing opinions, filed 2018–2026: status now, not the year it changed)

2019 (2d Cir.): strong "superseded" — *Havlish*: dants as Iran under an alter-ego theory drawn from First National City Bank v. Banco Para El Comercio Exterior de Cuba (Bancec), 462 U.S. 611, 103 S.Ct. 2591, [77 L.Ed.2d 46] (1983), superseded in part by statute as stated in Rubin, 138 S. Ct. 816. In re 650 Fifth Ave., No. 08 Civ. 10934 (KBF)

Also ties to: 2020-24:19 Personal jurisdiction (minimum contacts) (25%)

Travels with: Crystallex Int'l Corp. v. Bolivarian Republic De Venezuel... (cosine 0.11, 5 both); Whitman (cosine 0.02, 6 both)

How later courts describe it (156 parentheticals; groups of similar wording, largest first; other courts' words)

- **17** (recognizing that government "appropriations to provide capital or to cover losses" do not prevent a typical government instrumentality from being considered a separate juridical entity) — *Uab Skyroad Leasing v. Ojsc Tajik Air, D.D.C., 2021*
- **16** (stating that "where state law provides a rule of liability governing private individuals, the FSIA requires the application of that rule to foreign states in like circumstances") — *Reed, D.D.C., 2006*
- **10** ("Different conflicts principles apply, however, where the rights of third parties external to the corporation are at issue.") — *Metropolitan Life Insurance v. RJR Nabisco, Inc., S.D.N.Y., 1989*
- **10** ("Separate legal personality has been described as 'an almost indispensable aspect of the public corpora tion' ") — *Samantar, SCOTUS, 2010*
- **9** (holding that the FSIA does not affect the substantive law determining liability of a foreign state) — *Mukaddam, S.D.N.Y., 2000*
- **8** ("[T]he Court has consistently refused to give effect to the corporate form where it is interposed to defeat legislative policies.") — *Brotherhood, 1st Cir., 2000*
- **4** (applying law of state of incorporation to reverse piercing claim) — *Sky Cable, LLC v. DirecTV, Inc., 4th Cir., 2018*
- **4** (distinguishing an alter ego claim from a vicarious liability claim) — *In Re South African Apartheid Litigation, S.D.N.Y., 2009*

↑

459. United States v. Smith

54 F.3d 690, 11th Cir., 1995

In 2020-24: cited by 9 decisions (appellate) · in all: 28 · 2021–2025: 10 · weight in the sub-cluster 3

Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.4 Eleventh Circuit sentencing reasonableness, 31%)

Good law: green? (read the newest 28 of 28 citing opinions, filed 1996–2023: status now, not the year it changed)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (25%)

Travels with: Stinson (cosine 0.04, 5 both); United States v. Jeffery Havis (cosine 0.03, 6 both)

How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (applying Stinson to the commentary in guideline section 4B1.2) — *United States v. Brandon Romel Dupree, 11th Cir., 2023*
- **1** (holding the Commission' was within its authority under § 994(a) to construe attempts to commit narcotics crimes as "controlled substance offenses" for purposes of § 4B1.1) — *United States v. John Albert Pearson, 11th Cir., 2016*

↑

460. Obduskey v. McCarthy & Holthus LLP

586 U.S. 466, SCOTUS, 2019

In 2020-24: cited by 34 decisions (appellate) · in all: 220 · 2021–2025: 133 · weight in the sub-cluster 2

Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:4.1 Pro se pleadings and Twombly/Iqbal in prisoner suits, 31%)

Good law: green? (read the newest 100 of 220 citing opinions, filed 2022–2026: status now, not the year it changed)

Also ties to: 2020-24:4 Federal civil-rights litigation: immunity, pleading, summary judgment (31%)

Travels with: Vien-Phuong Thi Ho v. ReconTrust Co. (cosine 0.05, 5 both); Henson (cosine 0.02, 6 both)

How later courts describe it (62 parentheticals; groups of similar wording, largest first; other courts' words)

- **10** (holding that those who engage in only nonjudicial foreclosure proceedings are not debt collectors within the meaning of the Act.) — *Parrish, N.D. Miss., 2019*
- **5** ("whether those who judicially enforce mortgages fall within the scope of the primary definition is a question we can leave for another day.") — *Berg, N.D. Ill., 2019*
- **3** ("The FCEUA therefore does not provide its own private cause of action; rather, it is enforced through the remedial provision of the UTPCPL.") — *RIVERA, E.D. Pa., 2020*
- **2** (discussing protections for borrowers set forth in § 1692f(6)) — *Michael Helms v. Wells Fargo Bank, N.A., 9th Cir., 2019*
- **2** (indicating the definition of a "debt collector," their limited purpose, and what behaviors they are prohibited from doing) — *Petway, D.D.C., 2024*
- **2** (noting that courts "generally presum[e] that statutes do not contain surplusage" (quoting Arlington Central School Dist. Bd. of Ed. v. Murphy, 548 U.S. 291, 299, n.1. (2006) (alteration in original)); see also Corley v. United States, 556 U.S. 303, 314 (2009) — *Duran, 2d Cir., 2020*
- **2** (engaging in only non-judicial deed of trust foreclosures is not subject to FDCPA's main coverage as debt collector) — *Davin J.*

Anderson v. Alaska Housing Finance Corporation, Alaska, 2020

2 (stating that statutory "exclusion of the enforcement of security interests must also exclude the legal means required to do so" (internal quotation marks omitted)) — *BENKO VS. QUALITY LOAN SERV. CORP., Nev., 2019*

↑

461. Snyder Bros., Inc. v. Pa. Pub. Util. Comm'n

198 A.3d 1056, Pa., 2018
In 2020-24: cited by 31 decisions (appellate) · in all: 55 · 2021–2025: 30 · weight in the sub-cluster 2
Fit: 69% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:9.8 around Commonwealth, 31%)
Good law: green? (read the newest 56 of 56 citing opinions, filed 2019–2026: status now, not the year it changed)
Also ties to: 2020-24:9 Anders briefs and appeals without merit (45%)
Travels with: UCBR (cosine 0.04, 6 both); Commonwealth (cosine 0.04, 5 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("If a statutory term, when read in context with the overall statutory framework in which it appears, has at least two reasonable interpretations, then the term is ambiguous.") — *Commonwealth, Pa., 2021*

2 ("It is axiomatic that, 'if the General Assembly defines words that are used in a statute, those definitions are binding.' ") — *In Re: Return of Seized Property of Lackawanna Cty, Pa., 2019*

1 ("we consider the meaning of the term 'any' to be wholly dependent on the context in which it is used in the particular statute under review") — *Commonwealth, Pa., 2020*

1 (courts "are required to interpret or construe a statute so as to give effect to all of its provisions, 'if possible' ") — *Community College of Philadelphia v. Faculty and Staff Federation of the Community College of Philadelphia, Local 2026, AFT, AFL-CIO, Pa. Commw. Ct., 2019*

1 (finding the term "any" in the Oil and Gas Act ambiguous and employing statutory construction principles, including consulting the agency's interpretation) — *Crown Castle NG East LLC v. PUC, Aplt., Pa., 2020*

1 (holding that the term "any" is ambiguous) — *IN RE: ESTATE OF HORST REVOCABLE TR., Nev., 2020*

↑

462. United States v. Kyle Boleyn

929 F.3d 932, 8th Cir., 2019
In 2020-24: cited by 28 decisions (appellate) · in all: 37 · 2021–2025: 20 · weight in the sub-cluster 3
Fit: 68% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 32%)
Good law: green? (read the newest 37 of 37 citing opinions, filed 2019–2025: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (26%)
Travels with: United States v. Edward Merritt (cosine 0.09, 8 both); United States v. Jose Maria Mendoza-Figueroa (cosine 0.03, 5 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

3 (concluding that Iowa's definition of aiding and abetting is "substantially equivalent to, not meaningfully broader than," the generic and federal definitions) — *United States v. Gilberto Chavez, 8th Cir., 2020*

1 (explaining the categorical approach to statutory interpretation) — *Kieffe, D.S.D., 2022*

1 ("As aiding and abetting liability is inherent in every conviction under [state law], it is consistent with the categorical approach to look to [the state's] aiding and abetting statute in determining whether the prior offense of conviction is overbroad.") — *United States v. Benjamin Yackel, 8th Cir., 2021*

1 (explaining that Iowa's aiding and abetting law is "substantially equivalent to" the federal standard for purposes of determining whether a controlled substance conviction is a qualifying predicate offense) — *United States v. Theodore Newcomb, 8th Cir., 2020*

1 (deciding "whether Iowa's doctrine of aiding and abetting liability renders every § 124.401 conviction overly broad") — *United States v. Eric Newman, 8th Cir., 2020*

1 (holding that regardless whether the defendants were convicted of knowingly or intentionally aiding and abetting delivery of a controlled substance, "[t]hey were convicted of conduct that 'involved' . . . drug distribution") — *United States v. Lonnie Howard, 8th Cir., 2020*

1 (holding that section 124.401(1) falls within the definition of a "serious drug offense," even if the conviction is based on an aiding- and-abetting theory) — *United States v. Gilberto Chavez, 8th Cir., 2020*

↑

463. A. L. A. Schechter Poultry Corp. v. United States

295 U.S. 495, SCOTUS, 1935
In 2020-24: cited by 45 decisions (appellate) · in all: 1,158 · 2021–2025: 70 · weight in the sub-cluster 57
Fit: 68% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 16%)
Good law: green? (read the newest 100 of 1,363 citing opinions, filed 2018–2026: status now, not the year it changed)
Role changed 2015-19: likely successor Department of Transportation v. Association of American R..., 575 U.S. 43 (2015) (37% of the 27 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: Ryan (cosine 0.32, 17 both); Carter (cosine 0.17, 8 both); Adkins (cosine 0.10, 9 both)
How later courts describe it (75 parentheticals; groups of similar wording, largest first; other courts' words)

8 ("The Congress is not permitted to abdicate or to transfer to others the essential legislative functions with which it is thus vested") — *Save Our Valley v. Sound Transit, 9th Cir., 2003*

6 (invalidating a statute that permitted members of an industry to propose, and the President to approve, "codes of fair competition" where Congress had neglected to define "fair competition") — *Jose Gubiensio-Ortiz v. Al Kanahele, Warden, Metropolitan Correctional Center, San Diego, California, United States of America v. Raul Chavez-Sanchez, 9th Cir., 1988*

5 (striking down delegation to industry associations comprised of private individuals to create legally binding codes of "fair competition")

5 (holding that Congress could not regulate activities that affect interstate commerce indirectly) — *Kitsch, E.D. Pa., 2004*

3 (striking the National Industrial Recovery Act as applied)

3 ("[T]he dis- tinction between direct and indirect effects of intrastate transactions upon interstate commerce must be recognized as a fundamental one.") — *NFIB, SCOTUS, 2012*

3 (wage and hour law provision of National Industrial Recovery Act had "no direct relation to interstate commerce") — *Lopez, SCOTUS, 1995*

3 (remarking that the National Industrial Recovery Act, which conferred upon private parties the authority to promulgate rules of "fair competition," represented "delegation running riot") — *Protz v. Workers' Compensation Appeal Board, Pa., 2017*

↑

464. Appalachian Power Co. v. Environmental Protection Agency

208 F.3d 1015, D.C. Cir., 2000

In 2020-24: cited by 18 decisions (appellate) · in all: 186 · 2021–2025: 25 · weight in the sub-cluster 3

Fit: 68% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 32%)

Good law: green? (read the newest 100 of 204 citing opinions, filed 2012–2026: status now, not the year it changed)

Travels with: Cal. Cmty. Against Toxics v. Envtl. Prot. Agency (cosine 0.07, 5 both); National Mining Association v. Gina McCarthy (cosine 0.07, 5 both); Perez (cosine 0.03, 7 both)

How later courts describe it (55 parentheticals; groups of similar wording, largest first; other courts' words)

7 (stating the EPA may not "escape the notice and comment requirements . . . by labeling a major substantive legal addition to a rule a mere interpretation") — *KY Waterways v. Johnson, 6th Cir., 2008*

4 (holding that when an agency "commands" "requires," "orders" or "dictates" a particular action is a factor in favor of finality) — *Radtke, D.D.C., 2025*

3 (concluding that "boilerplate" language in guidance released by an agency does not determine whether an agency action has legal consequences) — *Am. Acad. Pediatrics v. Food & Drug Admin., D. Maryland, 2019*

2 (interpreting the Clean Air Act's judicial review provision) — *American Petroleum Institute v. Environmental Protection Agency, D.C. Cir., 2017*

2 ("[T]he Guidance, insofar as relevant here, is final agency action; reflecting a settled agency position which has legal consequences both for State agencies administering their permit programs and for companies.") — *Pharmaceutical Research & Manufacturers of America v. United States Department of Health & Human Services, D.C. Cir., 2015*

2 ("EPA may think that because the Guidance, in all its particulars, is subject to change, it is not binding and therefore not final action. . . . But all laws are subject to change.") — *Nova, Fed. Cir., 2020*

2 (" 'Interpretative rules' and 'policy statements' may be rules within the meaning of the APA and the Clean Air Act, although neither type of 'rule' has to be promulgated through notice and comment rulemaking.") — *Hall, D.D.C., 2009*

2 (because Guidance "reads like a ukase" and "State authorities, with EPA's Guidance in hand, are insisting on [additional monitoring]," document was binding in effect and thus subject to notice and comment requirements) — *Util Air Regu Grp v. EPA, D.C. Cir., 2003*

↑

465. Federal Communications Commission v. Fox Television Stations, Inc.

556 U.S. 502, SCOTUS, 2009 • note built

In 2020-24: cited by 183 decisions (appellate) · in all: 1,259 · 2021–2025: 476 · weight in the sub-cluster 233

Fit: 68% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 15%)

Good law: green (read 521 of 1,339 citing opinions)

Role changed 2025-29: likely successor FCC v. Prometheus Radio Project, 592 U.S. 414 (2021) (30% of the 50 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)

Travels with: Encino Motorcars (cosine 0.17, 53 both); State Farm (cosine 0.12, 104 both); FDA (cosine 0.08, 11 both)

How later courts describe it (249 parentheticals; groups of similar wording, largest first; other courts' words)

93 (holding that an agency action that is a change of position is subject to review under the same arbitrary-or-capricious standard as an original action) — *Florida Wildlife Federation, Inc. v. Jackson, N.D. Fla., 2012*

15 (holding that a court should not substitute its judgment for that of an agency and should uphold an agency decision where the agency's path may be reasonably discerned) — *Agri, 9th Cir., 2015*

11 (holding that under the federal Administrative Procedure Act, an agency must provide a "detailed justification" when it announces a new policy if "its prior policy has engendered serious reliance interests that must be taken into account") — *Frederick Classical Charter School, Inc. v. Frederick County Board of Education, Md., 2017*

10 (describing the canon of constitutional avoidance as an "interpretive tool, counseling that ambiguous statutory language be construed to avoid serious constitutional doubts") — *Crawley, Minn., 2012*

7 (recognizing that the Administrative Procedure Act "makes no distinction . . . between initial agency action and subsequent agency action undoing or revising that action") — *Clean Water Action v. EPA, 5th Cir., 2019*

6 (requiring that an agency provide a "reasoned explanation" for its action) — *Musclemakers, Inc. v. United States Small Business Administration, Office of Capital Access, N.D.N.Y., 2024*

6 (stating that "[t]hreadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice[]" to plead a claim) — *Cooper, D. Maryland, 2022*

5 (summarizing what it takes to justify a change in policy, including "a reasoned explanation . . . for disregarding facts and circumstances that underlay or were engendered by the prior policy") — *RRVSG Assoc. v. Michael Regan, 8th Cir., 2023*

↑

466. Motor Vehicle Mfrs. Assn. of United States, Inc. v. State Farm Mut. Automobile Ins. Co.

463 U.S. 29, SCOTUS, 1983 • note built

In 2020-24: cited by 437 decisions (appellate) · in all: 8,045 · 2021–2025: 1,624 · weight in the sub-cluster 645

Fit: 68% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 19%)

Good law: green (read 614 of 8,450 citing opinions)

Role changed 2025-29: likely successor FCC v. Prometheus Radio Project, 592 U.S. 414 (2021) (26% of the 141 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)

Travels with: Burlington Truck Lines, Inc. v. United States (cosine 0.29, 75 both); FCC v. Fox (cosine 0.12, 104 both); Bowman Transp (cosine 0.10, 59 both)

How later courts describe it (1,052 parentheticals; groups of similar wording, largest first; other courts' words)

776 (holding that even "a decision of less than .ideal clarity" should be upheld in such circumstances) — *San Luis & Delta-Mendota Water v. Natural Resources Defense Coun, 9th Cir., 2014*

12 (finding that agencies "must be given ample latitude to adapt their rules to the demands of changing circumstances") — *Glukowsky, N.J., 2004*

9 (setting forth the circumstances under which the Court may find an agency decision arbitrary and capricious) — *Chestnut, D.S.C., 2022*

7 (applying the standard to agency rule making) — *California v. United States Department of Labor, E.D. Cal., 2014*

7 (holding that an agency's duty of reasoned decisionmaking includes the requirement to explain away contrary evidence) — *DOL, D.C. Cir., 2002*

6 ("It is not infrequent that the available data do not settle a regulatory issue, and the agency must then exercise its judgment in moving from the facts and probabilities on the record to a policy conclusion.") — *Dorbest Ltd. v. United States, Ct. Intl. Trade, 2006*

6 (holding that "[a] 'settled course of behavior embodies the agency's informed judgment that, by pursuing that course, it will carry out the policies [of applicable statutes or regulations]' ") — *Shalala, SCOTUS, 1994*

4 ("We start with the accepted ground that if used, seatbelts unquestionably would save many thousands of lives and would prevent tens of thousands of crippling injuries") — *Geier, SCOTUS, 2000*

↑

467. Ali v. Federal Bureau of Prisons

552 U.S. 214, SCOTUS, 2008

In 2020-24: cited by 107 decisions (appellate) · in all: 606 · 2021–2025: 272 · weight in the sub-cluster 57

Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:4.1 Pro se pleadings and Twombly/Iqbal in prisoner suits, 6%)

Good law: green? (read the newest 100 of 639 citing opinions, filed 2024–2026: status now, not the year it changed)

Travels with: Harrison (cosine 0.14, 9 both); United States v. Gonzales (cosine 0.14, 22 both); Beaty (cosine 0.05, 6 both)

How later courts describe it (174 parentheticals; groups of similar wording, largest first; other courts' words)

29 ("We are not at liberty to rewrite the statute to reflect a meaning we deem more desirable.") — *Samuel-Bassett, Pa., 2011*

21 (concluding that the use of the word "any" to modify "'other law enforcement officer' is most naturally read to mean law enforcement officers of whatever kind") — *Javier Chavez Gonzalez v. Merrick Garland, 4th Cir., 2021*

16 ("Read naturally, the word 'any* has an expansive meaning, that is, 'one or some indiscriminately of whatever kind.' ") — *Blixt, 9th Cir., 2008*

12 (holding that courts' construction of a statutory phrase "must, to the extent possible, ensure that the statutory scheme is coherent and consistent") — *Affinity First Federal Credit Union v. National Credit Union Administration Board, D. Kan., 2023*

10 ("In the FTCA, Congress waived the United States' sovereign immunity for claims arising out of torts committed by federal employees.") — *Moore, D.D.C., 2015*

6 ("we do not woodenly apply limiting principles every time Congress includes a specific example along with a general phrase") — *National Fire Insurance Co. of Hartford v. Visual Pak Co., Ill. App. Ct., 2023*

6 (noting that the "absence of a list . . . undercuts the inference embodied in ejusdem generis") — *Rehl, D.D.C., 2021*

6 (holding that BOP officers are "law enforcement officers" as that term is used in § 2680(c) and, therefore, § 2680(c) "forecloses lawsuits against the United States for the unlawful detention of property" by BOP officials) — *Jaber, N.D.W. Va., 2024*

↑ **468. Encino Motorcars, LLC v. Navarro**
579 U.S. 211, SCOTUS, 2016 • note built
In 2020-24: cited by 106 decisions (appellate) · in all: 473 · 2021–2025: 214 · weight in the sub-cluster 180
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 12%)
Good law: green (read 483 of 483 citing opinions)
Role changed 2025-29: likely successor FCC v. Prometheus Radio Project, 592 U.S. 414 (2021) (32% of the 25 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: FCC v. Fox (cosine 0.17, 53 both); FDA (cosine 0.08, 8 both); State Farm (cosine 0.08, 61 both)
How later courts describe it (122 parentheticals; groups of similar wording, largest first; other courts' words)

- **25** (holding that agency explanation for changed position must take account of reliance interests engendered by former policy) — *Pedro Jimenez-Cedillo v. Jefferson Sessions III, 4th Cir., 2018*
- **10** (explaining that an "unexplained inconsistency in agency policy is a reason for holding an [action] to be an arbitrary and capricious change from agency practice" (quotation omitted)) — *FDA, 5th Cir., 2021*
- **7** (holding that courts may not "speculate on reasons that might have supported an agency's decision" or "supply a reasoned basis for the agency's action that the agency itself has not given") — *Lyons, D. Minnesota, 2024*
- **5** ("[A]n agency must give adequate reasons for its decisions.") — *City of Phila. v. Sessions, E.D. Pa., 2018*
- **4** ("A premise of Chevron is that when Congress grants an agency the authority to administer a statute by issuing regulations with the force of law, it presumes the agency will use that authority to resolve ambiguities in the statutory scheme.") — *McCutchen, Fed. Cir., 2021*
- **4** ("Whatever potential reasons the Department might have given, the agency in fact gave almost no reasons at all. In light of the serious reliance interests at stake, the Department's conclusory statements do not suffice to explain its decision.") — *Kuang, N.D. Cal., 2018*
- **4** ("[W]here a proper challenge is raised to the agency procedures, and those pro- cedures are defective, a court should not accord Chevron def- erence to the agency interpretation.") — *Cook County, Illinois v. Chad F. Wolf, 7th Cir., 2020*
- **3** ("The requirement that agency action not be arbitrary or capricious includes a requirement that the agency adequately explain its result.") — *Carson, D.C. Cir., 2018*

↑ **469. Sebelius v. Cloer**
133 S. Ct. 1886, SCOTUS, 2013
In 2020-24: cited by 40 decisions (appellate) · in all: 900 · 2021–2025: 379 · weight in the sub-cluster 8
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 11%)
Good law: green? (read the newest 100 of 918 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: Wisconsin Central Ltd. v. United States (cosine 0.02, 8 both); Gustafson (cosine 0.02, 5 both); Brown & Williamson (cosine 0.02, 7 both)
How later courts describe it (161 parentheticals; groups of similar wording, largest first; other courts' words)

- **74** (holding that an untimely petition is eligible for an award of attorneys' fees, so long as the petition was brought in good faith and there was a reasonable basis for the claim) — *Janni, Fed. Cl., 2026*
- **38** (holding that " 'statutory terms are generally interpreted in accordance with their ordinary meaning' ") — *Thompson-Harbach, N.D. Iowa, 2019*
- **7** ("[W]here Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely in the disparate inclusion or exclusion.") — *Oi S.A. and Antonio Reinaldo Rabelo Filho, Bankr. S.D.N.Y., 2025*
- **7** ("when [a] statute's language is plain, the sole function of the courts-at least where the disposition required by the text is not absurd-is to enforce it according to its terms") — *Click-To-Call Technologies, Lp v. Ingenio, Inc., Fed. Cir., 2018*
- **4** ("The NCVIA [National Childhood Vaccine Injury Act] establishes a no-fault compensation program designed to work faster and with greater ease than the civil tort system.") — *BEASON, Okla., 2019*
- **3** ("As in any statutory construction case, '[w]e start, of course, with the statutory text.'" (alteration in original) (quoting BP Am. Prod. Co. v. Burton, 549 U.S. 84, 91 (2006))) — *Emergency Statutes That Do Not Expressly Require a National Emergency Declaration, OLC, 2016*
- **3** ("[R]ules of thumb give way when the words of a statute are unambiguous . . .") — *Richard Williamson v. Citrix Online, LLC, Fed. Cir., 2015*
- **3** (explaining that the cannon favoring strict construction of waivers of sovereign immunity gives way when the words of a statute are unambiguous) — *Rowan, Fed. Cl., 2020*

↑ **470. United States v. Jennifer Riccardi**
989 F.3d 476, 6th Cir., 2021
In 2020-24: cited by 73 decisions (appellate) · in all: 94 · 2021–2025: 94 · weight in the sub-cluster 82
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.1 Reasonableness review of federal sentences, 20%)

Good law: green (read 94 of 94 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (18%)
Travels with: United States v. Roberto Castillo (cosine 0.15, 7 both); United States v. Lenair Moses (cosine 0.13, 12 both); United States v. Malik Nasir (cosine 0.11, 14 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (invalidating § 2B1.1 cmt. n.3(F)(i)'s $500-per-access-device multiplier) — *United States v. Radu Miclaus, 6th Cir., 2021*
- **2** (recognizing that broad deference to Guidelines' commentary "could not stand after Kisor," and that Kisor "must awake us 'from our slumber of reflexive deference' to the commentary" (citation omitted)) — *United States v. Roberto Castillo, 9th Cir., 2023*
- **1** (applying Kisor to reach same result) — *United States v. Starsha Limbaugh, 4th Cir., 2023*
- **1** (only the Guidelines go through notice-and-comment rulemaking) — *United States v. Lois Jochinto Orta, 6th Cir., 2025*
- **1** ("The specific governs the general in the interpretation of a legal text.") — *Tennessee Valley Authority v. Fire Star Energy Resources, LLC, E.D. Tenn., 2024*
- **1** ("But guidelines commentary may only interpret, not add to, the guidelines themselves.") — *United States v. Tre Tate, 6th Cir., 2021*
- **1** ("Recently, however, the Supreme Court clarified Auer's narrow scope in the related context of an agency's interpretation of its regulations.") — *Bradford v. Team Pizza, Inc., S.D. Ohio, 2021*
- **1** (applying Kisor to the Guidelines and concluding that a court may defer to commentary only if the Guidelines are ambiguous) — *United States v. Joshua Scheu, 9th Cir., 2023*

↑

471. Jorge O. Arevalo v. U.S. Attorney General

872 F.3d 1184, 11th Cir., 2017
In 2020-24: cited by 8 decisions (appellate) · in all: 19 · 2021–2025: 8 · weight in the sub-cluster 8
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.7 around Yasmick Jeune v. U.S. Attorney General, 33%)
Good law: green? (read the newest 19 of 19 citing opinions, filed 2018–2024: status now, not the year it changed)
Travels with: Negusie (cosine 0.25, 5 both); Chevron (cosine 0.04, 5 both)
How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (explaining that Chevron provides a framework for judicial review "when a court reviews an agency's construction of the statute which it administers.") — *Marron, S.D. Fla., 2023*

↑

472. Sierra Club, Inc. v. U.S. Forest Service

897 F.3d 582, 4th Cir., 2018
In 2020-24: cited by 9 decisions (appellate) · in all: 26 · 2021–2025: 15 · weight in the sub-cluster 5
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 33%)
Good law: green? (read the newest 26 of 26 citing opinions, filed 2018–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Defenders of Wildlife v. U.S. Dept. of the Interior, 931 F.3d 339 (2019) (56% of the 9 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Ohio Valley Environmental Coalition v. Aracoma Coal Co. (cosine 0.10, 6 both); State Farm (cosine 0.06, 6 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (addressing process for compliance with other provisions of 2012 rule) — *Marten, D. Mont., 2021*
- **1** ("Pursuant to the [NGA], a natural gas company is not permitted to undertake construction of a pipeline unless FERC first issues a Certificate authorizing such construction." (citing 15 U.S.C. § 717f(c)(1)(A))) — *Parsons, S.D.W. Va, 2020*
- **1** ("The statement of a project's purpose and need is left to the agency's expertise and discretion, and we defer to the agency if the statement is reasonable." (quotation omitted)) — *In re Applications of Enbridge Energy, Ltd., Minn. Ct. App., 2019*
- **1** ("It is of course always possible to explore a subject more deeply and to discuss it more thoroughly.") — *Mountain Valley Pipeline, LLC v. Sierra Club, 4th Cir., 2021*
- **1** (addressing a pipeline that received a Certificate of Public Convenience and Necessity from FERC) — *Bolling, D. Idaho, 2021*
- **1** (vacating and remanding U.S. Forest Service's decision amending the National Forest Land and Resource Management Plan for 8 the Mainline Pipeline) — *Mountain Valley Pipeline, LLC v. Sierra Club, 4th Cir., 2021*

↑

473. Center for Biological Diversity v. National Highway Traffic Safety Administration

538 F.3d 1172, 9th Cir., 2008
In 2020-24: cited by 13 decisions (appellate) · in all: 132 · 2021–2025: 47 · weight in the sub-cluster 3
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 33%)
Good law: green? (read the newest 100 of 140 citing opinions, filed 2011–2026: status now, not the year it changed)
Travels with: Department of Transportation v. Public Citizen (cosine 0.04, 5 both); State Farm (cosine 0.02, 5 both)
How later courts describe it (20 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("The impact of [GHG] emissions on climate change is precisely the kind of cumulative impacts analysis that NEPA requires agencies to conduct.") — *R. Held v. State, Mont., 2024*

- **2** (Nos. 06-71891, 06-72317, 06- 72641, 06-72694, 06-73807, 06-73826) — *350 Montana v. Debra Haaland, 9th Cir., 2022*
- **2** ("We do not address this issue since the parties agreed . . . that the preemption SAFER CHEMICALS, HEALTHY FAMILIES V. USEPA 39 discussion in the preamble of the Final Rule is not final agency action and thus not currently reviewable.") — *Safer Chem Healthy Families v. Usepa, 9th Cir., 2019*
- **2** (agency "must provide the necessary contextual information about the cumulative and incremental environmental impacts" of the project) — *350 Montana v. Debra Haaland, 9th Cir., 2022*
- **1** ("Although an agency's obligation to consider alternatives under an EA is a lesser one than under an EIS, ... NEPA requires that alternatives ... be given full and meaningful consideration, whether the agency prepares an EA or an EIS.") — *Wilderness Society v. United States Forest Service, D. Idaho, 2012*
- **1** (this standard encompasses the "arbitrary and capricious standard" found in the APA) — *O'Neil, D. Mont., 2021*
- **1** ("Even if [the Agency] may use a cost-benefit analysis to determine the 'maximum feasible' fuel economy standard, it cannot put a thumb on the scale by undervaluing the benefits and overvaluing the costs of more stringent standards.") — *Montana Environmental Information Center v. U.S. Office of Surface Mining, D. Mont., 2017*
- **1** ("simply because the Final Rule may be an improvement over the [existing] standard does not necessarily mean that it will not have a 'significant effect' on the environment.") — *Wilderness Society v. United States Forest Service, D. Idaho, 2012*

↑

474. Wildearth Guardians v. Heather Provencio

923 F.3d 655, 9th Cir., 2019
In 2020-24: cited by 11 decisions (appellate) · in all: 26 · 2021–2025: 17 · weight in the sub-cluster 3
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 33%)
Good law: green? (read the newest 26 of 26 citing opinions, filed 2019–2025: status now, not the year it changed)
Travels with: In Defense of Animals v. U.S. Department of the Interior (cosine 0.21, 5 both); Blackwood (cosine 0.08, 5 both)
No parentheticals.

↑

475. Ad Hoc Shrimp Trade Action Committee v. United States

802 F.3d 1339, Fed. Cir., 2015
In 2020-24: cited by 12 decisions (appellate) · in all: 88 · 2021–2025: 44 · weight in the sub-cluster 2
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:26.1 Patent obviousness and PTAB review, 33%)
Good law: green? (read the newest 89 of 89 citing opinions, filed 2015–2026: status now, not the year it changed)
Also ties to: 2020-24:26 around Molina (33%)
Travels with: Yangzhou Bestpak Gifts & Crafts Co. v. United States (cosine 0.09, 5 both); Chevron (cosine 0.01, 7 both)
How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("'[A] statute shall not be given retroactive effect unless such construction is required by explicit language or by necessary implication.' ") — *Parkinson, Fed. Cir., 2017*
- **2** (holding that Section 502 of the TPEA "unambiguously applies only to Commerce determinations made after the date of enactment") — *Jiangsu Senmao Bamboo & Wood Indus. Co. v. United States, Ct. Intl. Trade, 2018*
- **1** ("To apply § 502 on remand would be in effect to apply the law retroactively by applying it to a determination that occurred before the new law became effective.") — *Foshan Shunde Yongjian Housewares & Hardware Co., Ltd. v. United States, Ct. Intl. Trade, 2016*
- **1** (rejection of separate rate status when the omissions went "to the heart of [the respondent's] ownership and control" and "cut across all aspects of the data.") — *Hubbell Power Systems, Inc. v. United States, Ct. Intl. Trade, 2019*
- **1** (respondent failed to disclose and repeatedly misrepresented information "core" to Commerce's determination whether the respondent is entitled to a separate rate) — *Coal. for Fair Trade in Garlic v. United States, Ct. Intl. Trade, 2020*
- **1** (affirming a determination that misrepresentations call into question accuracy of remain- ing information) — *Shanxi Hairui Trade Co., Ltd. v. United States, Fed. Cir., 2022*
- **1** (recognizing a distinction between subsections (a)(1) and (2)) — *Maverick Tube Corp. v. United States, Ct. Intl. Trade, 2016*
- **1** (discussing the statutory principle allowing a presumption of intent when Congress includes language in one statutory provision that is excluded from another provision) — *Fresh Garlic Producers Ass'n v. United States, Ct. Intl. Trade, 2015*

↑

476. City of Olmsted Falls, Ohio v. Federal Aviation Administration and Department of Transportation, City of Cleveland, Ohio, Intervenor

292 F.3d 261, D.C. Cir., 2002
In 2020-24: cited by 18 decisions (appellate) · in all: 178 · 2021–2025: 41 · weight in the sub-cluster 2
Fit: 67% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 33%)
Good law: green? (read the newest 100 of 181 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 10 both)
How later courts describe it (18 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (even if FAA erred, "the burden is on petitioners to demonstrate that [the FAA's] ultimate conclusions are unreasonable") — *County of Rockland v. Federal Aviation Administration, D.C. Cir., 2009*

2 ("[T]he party chal lenging an agency's action as arbitrary and capricious bears the burden of proof.") — *Donovan, D.D.C., 2011*
2 (giving deference to the FAA's judgment that improvement by moving a runway will not induce demand; "[h]ere the improvements are to move an existing runway, not the addition of a runway") — *Barnes, 9th Cir., 2011*
2 (holding that petitioners did not meet their burden of proof on whether a conformity determination was required by simply suggesting that it was an "open question" whether the emissions limits would be exceeded)
2 (holding that the "arbitrary and capricious" standard is applied to determine the adequacy of an EIS) — *FAA, D.C. Cir., 2004*
1 ("[T]he party chal- lenging an agency's action as arbitrary and capricious bears the burden of proof . . . . Indeed, even assuming the [agency] made missteps . . . the burden is on petitioners to demonstrate that the [agency's] ultimate conclusions are unreasonable.") — *George, 9th Cir., 2009*
1 ("geographic proximity does not, in and of itself, confer standing on any entity under NEPA or any other statute") — *FAA, D.C. Cir., 2022*
1 ("A supplemental EIS is only required where new information provides a seriously different picture of the environmental landscape." (emphasis in original) (quotation marks omitted)) — *Stop B2H Coalition v. Bureau of Land Management, D. Or., 2021*

↑

477. Shinseki, Secretary of Veterans Affairs v. Sanders

556 U.S. 396, SCOTUS, 2009
In 2020-24: cited by 98 decisions (appellate) · in all: 2,912 · 2021–2025: 1,847 · weight in the sub-cluster 26
Fit: 66% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:26.1 Patent obviousness and PTAB review, 9%)
Good law: green (read 505 of 2,959 citing opinions)
Travels with: Hoffman (cosine 0.12, 6 both); George (cosine 0.06, 5 both); FDA (cosine 0.04, 7 both)
How later courts describe it (580 parentheticals; groups of similar wording, largest first; other courts' words)

341 (holding that "the burden of showing that an error is harmful normally falls upon the party attacking the agency's determination") — *DOKA, D.N.J., 2024*
26 (holding that the harmless-error analysis applies to the Court's review of Board decisions and that the burden is on the appellant to show prejudice as a result of VA error) — *Spellersv. McDonald, Vet. App., 2018*
21 (concluding that errors in administrative rulings are subject to harmless-error analysis) — *Hartfield, S.D. Miss., 2024*
18 (holding that the harmless error rule requires the party seeking to overturn a ruling "carries the burden of showing that prejudice resulted.") — *Porter, N.D. Ill., 2024*
15 (holding remand not warranted without "reasonable likelihood" that ALJ's decision would have been different absent error) — *Gruber, W.D.N.Y., 2022*
14 (holding that 38 U.S.C. 7261(b)(2) requires the Veterans Court to apply the same kind of "harmless-error" rule that courts ordinarily apply in civil cases) — *Shinseki, Fed. Cir., 2009*
10 (stating that "no error can be predicated on insufficiency of notice since its purpose had been served.") — *14-36 669, Board of Vet. App., 2015*
8 (discussing the rule of prejudicial error) — *07-36 329, Board of Vet. App., 2017*

↑

478. Texas v. United States Environmental Protection Agency

829 F.3d 405, 5th Cir., 2016
In 2020-24: cited by 36 decisions (appellate) · in all: 104 · 2021–2025: 87 · weight in the sub-cluster 36
Fit: 66% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 16%)
Good law: green? (read the newest 100 of 104 citing opinions, filed 2018–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Alabama Assn. of Realtors v. Department of Health and Hum..., 594 U.S. 758 (2021) (36% of the 36 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: OSHA (cosine 0.14, 7 both); Luminant Generation Co. v. United States Environmental Pr... (cosine 0.13, 5 both); Alabama Assn. of Realtors v. Department of Health and Hum... (cosine 0.09, 13 both)
How later courts describe it (30 parentheticals; groups of similar wording, largest first; other courts' words)

6 (holding that "complying with a regulation later held invalid almost always produces the irreparable harm of nonrecoverable compliance costs") — *State of Texas v. Bureau of Alcohol, Tobacco, Firearms and Explosives, S.D. Tex., 2023*
3 (recognizing that "ERCOT's independence makes the Texas electrical grid uniquely vulnerable to sudden power shortages") — *Aspire Power Ventures, LP v. Public Utility Commission of Texas, Electric Reliability Council of Texas, Thomas Gleeson, Lori Cobos, Jimmy Glotfelty, Kathleen Jackson, and Courtney Hjaltman, Tex. App.-Houston [15th Dist.], 2024*
3 (holding that financial losses posed irreparable injury where "plant closures" would "threaten the very existence of" the plaintiffs' businesses) — *State of Texas v. United States Environmental Protection Agency, S.D. Tex., 2023*
2 ("We have the power to stay the agency's action 'to the extent necessary to prevent irreparable injury.'" (quoting § 705)) — *Federation of Americans for Consumer Choice, Inc. v. United States Department of Labor, E.D. Tex., 2024*
2 ("Because EPA offers nothing beyond this cursory comment, it has waived any argument about the scope of the stay.") — *FDA, 5th Cir., 2021*
2 (declining to consider a single comment in a House Report because "[w]e do not consider passing commentary in the legislative history ... when the statutory text itself yields a single meaning") — *United States v. Lauderdale Cnty., 5th Cir., 2019*

2 (determining what level of deference to accord to "EPA's interpretation of the Clean Air Act") — *Environmental Integrity Proj v. EPA, 5th Cir., 2020*

1 (Here, in the event that Movants prevail, any monetary costs they incur in complying with the Preliminary Injunction would not be recoverable on a claim for damages, given that Plaintiffs are a federal agency and the State of Ohio." (citations omitted)) — *Hains, M.D. La., 2023*

↑

479. Gustafson v. Alloyd Co.

513 U.S. 561, SCOTUS, 1995
In 2020-24: cited by 74 decisions (appellate) · in all: 1,142 · 2021–2025: 210 · weight in the sub-cluster 22
Fit: 66% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 11%)
Good law: green? (read the newest 100 of 1,256 citing opinions, filed 2024–2026: status now, not the year it changed)
Travels with: Mandel Bros (cosine 0.13, 5 both); Brown & Williamson (cosine 0.04, 8 both); Sebelius (cosine 0.02, 5 both)
How later courts describe it (270 parentheticals; groups of similar wording, largest first; other courts' words)

70 (noting that Supreme Court will avoid interpretation of statute that "renders some words altogether redundant") — *Enfield, 10th Cir., 2000*

61 (ruling that identical terms in different parts of 1933 Act are intended to have the same meaning — in context of term "prospectus") — *Stolz Family Partnership v. Daum, 2d Cir., 2004*

16 (holding that "a word is known by the company it keeps") — *Stone Ex Rel. Estate of Stone v. Frontier Airlines, Inc., D. Mass., 2002*

14 (noting that, under the doctrine of noscitur a sociis, "a word is known by the company it keeps") — *United States v. Samuel Alan Morton, 11th Cir., 2004*

13 (noting that the purpose of this rule is "to avoid ascribing to one word a meaning so broad that it is inconsistent with its accompanying words.") — *Fiess, Tex., 2006*

9 (noting that statutes "should not be read as a series of unrelated and isolated provisions") — *United States v. Real Property Located at 475 Martin Lane, 9th Cir., 2008*

9 (concluding that "[t]he intent of Congress and the design of the statute require that § 12[(a)](2) liability be limited to public offerings") — *In Re Fuwei Films Securities Litigation, S.D.N.Y., 2009*

5 ("It is understandable that Congress would provide [securities] buyers with a right to rescind, without proof of fraud.... ") — *Miller v. Thane International, Inc., 9th Cir., 2008*

↑

480. Francisco Garfias-Rodriguez v. Eric Holder, Jr.

702 F.3d 504, 9th Cir., 2012
In 2020-24: cited by 23 decisions (appellate) · in all: 125 · 2021–2025: 24 · weight in the sub-cluster 4
Fit: 66% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 34%)
Good law: green? (read the newest 100 of 141 citing opinions, filed 2014–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (34%)
Travels with: Montgomery Ward & Co., Incorporated v. Federal Trade Comm... (cosine 0.07, 6 both); Brand X Internet (cosine 0.02, 5 both); Chevron (cosine 0.01, 8 both)
How later courts describe it (27 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[DJeportation alone is a substantial burden that weighs against retroactive application of an agency adjudication.") — *Gilberto Acosta-Olivarria v. Loretta E. Lynch, 9th Cir., 2015*

2 (favoring retroactivity "if a party could reasonably have anticipated the change in the law such that the new requirement would not be a complete surprise") — *Jorge Velasquez-Garcia v. Eric Holder, Jr., 7th Cir., 2014*

2 (noting that the overall purpose of the Montgomery Ward test is to balance the agency's interest in changing its rule against the "regulated party's interest in being able to rely on the terms of a rule") — *Felipe Betansos v. William Barr, 9th Cir., 2019*

2 (holding that "when we overturn our own precedent following a contrary statutory interpretation by an agency authorized under Brand X, we analyze whether the agency's statutory interpretation (to which we defer) — *Caritina Diaz-Castaneda v. Eric Holder, Jr., 9th Cir., 2013*

2 (recognizing that 8 C.F.R. § 1240.26(i) automatically terminates a grant of voluntary departure when an alien files a petition for review) — *Ibeth Corral v. William Barr, 9th Cir., 2020*

1 ("We hold that Congress has unambigu- ously granted the Attorney General authority to control the scope of voluntary departure grants in § 1229c and that he has reasonably exercised his authority in promulgating the regu- lation.") — *David Bernardo-De La Cruz v. Merrick Garland, 7th Cir., 2024*

1 (where new decision resolves prior ambiguity, this factor leans in favor of the Government, "because non-retroactivity impairs the uniformity of a statutory scheme, and the importance of uniformity in immigration law is well established") — *Julio Fernandez v. William Barr, 9th Cir., 2020*

1 ("We wrote in Acosta that '[t]he statutes involved do not clearly indicate whether the inadmissibility provision or the penalty-fee adjustment of status provision should take precedence,' and reached our conclusion by relying heavily on our earlier Perez–Gonzalez decision.") — *Exelon Wind 1, L.L.C. v. Donna Nelson, et a, 5th Cir., 2014*

↑

481. Perrin v. United States

444 U.S. 37, SCOTUS, 1979

In 2020-24: cited by 101 decisions (appellate) · in all: 1,266 · 2021–2025: 218 · weight in the sub-cluster 61

Fit: 65% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 12%)

Good law: green? (read the newest 100 of 1,399 citing opinions, filed 2023–2026: status now, not the year it changed)

Role changed 2020-24: likely successor Wisconsin Central Ltd. v. United States, 585 U.S. 274 (2018) (34% of the 101 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: Wisconsin Central Ltd. v. United States (cosine 0.19, 34 both); Food Marketing Institute v. Argus Leader Media (cosine 0.04, 8 both); FCC v. AT&T (cosine 0.04, 6 both)

How later courts describe it (263 parentheticals; groups of similar wording, largest first; other courts' words)

- **192** (recognizing that undefined words in a statute ordinarily should "be interpreted as taking their ordinary, contemporary, common meaning") — *Nancy Strickland v. Commissioner, Maine Department of Human Services v. Secretary, U.S. Department of Agriculture, Third-Party, 1st Cir., 1995*
- **7** (noting that the canons of statutory interpretation apply to interpreting regulations) — *Vilfrancv. McDonald, Vet. App., 2017*
- **6** ("The general rule that ambiguity concerning the ambit of criminal statutes should be resolved in favor of lenity applies when the court is uncertain about the statute's meaning and is 'not to be used in complete disregard of the purpose of the legislature.'") — *Shaw, La., 2007*
- **5** ("We begin with the language of the [ ] Act itself.") — *Roberts, Vet. App., 2010*
- **3** (discussing the meaning of the term "bribery" and holding that the Travel Act, 18 U.S.C. § 1952, prohibits the bribery of a private individual) — *Cadle, W.D. Ky., 2020*
- **2** ("the sense in which it is used in everyday life") — *Cumberland Reclamation Company v. Secretary, United States Department of the Interior, 6th Cir., 1991*
- **2** (Travel Act, 18 U.S.C. Sec. 1952, requires an interstate commerce nexus) — *O'Rourke v. City of Norman, 10th Cir., 1989*
- **2** (Travel Act violation based on act of telephoning map service out of state) — *United States v. Smith, 3rd Cir., 1986*

↑

482. Nat'l Labor Relations Bd. v. SW Gen., Inc.

580 U.S. 288, SCOTUS, 2017

In 2020-24: cited by 90 decisions (appellate) · in all: 352 · 2021–2025: 204 · weight in the sub-cluster 22

Fit: 65% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 27%)

Good law: green? (read the newest 100 of 356 citing opinions, filed 2023–2026: status now, not the year it changed)

Travels with: Echazabal (cosine 0.08, 10 both); Marx (cosine 0.02, 12 both); Reiter (cosine 0.02, 9 both)

How later courts describe it (105 parentheticals; groups of similar wording, largest first; other courts' words)

- **19** (noting that the negative-impli- cation canon "applies only when circumstances support a sensible inference that the term left out must have been meant to be excluded") — *Sarah Simon v. Cooperative Educational Service Agency 5, 7th Cir., 2022*
- **9** (noting that when "[t]he text is clear," a court "need not consider [] extra-textual evidence") — *Manseth, W.D.N.Y., 2023*
- **9** (instructing that "floor statements by individual legislators rank among the least illuminating forms of legislative history") — *Hillen, Bankr. D. Idaho, 2017*
- **7** (noting that "'notwithstanding' clauses show that one provision prevails over another in the event of a conflict.") — *Nat'l Ass'n of Mfrs. v. United States, Ct. Intl. Trade, 2020*
- **4** ("If a sign at the entrance to a zoo says 'come see the elephant, lion, hippo, and giraffe,' and a temporary sign is added saying 'the giraffe is sick,' you would reasonably assume that the others are in good health.") — *United States v. Garnett Hodge, 4th Cir., 2018*
- **3** (explaining the expressio unius interpretive canon) — *Nayanaben Patel v. Merrick B. Garland, 6th Cir., 2024*
- **3** ("As a familiar canon of construction states, expressio unius est exclusio alterius: the expression of one thing is the exclusion of the other.") — *USCIS, D.N.J., 2024*
- **3** (" '[HJistorical practice' is too grand a title for the Board's evidence. The FVRA was not enacted until 1998 .... ") — *CFPB, D.C. Cir., 2018*

↑

483. United States v. Trudale Raymond Williams

926 F.3d 966, 8th Cir., 2019

In 2020-24: cited by 16 decisions (appellate) · in all: 21 · 2021–2025: 15 · weight in the sub-cluster 5

Fit: 65% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 35%)

Good law: green? (read the newest 21 of 21 citing opinions, filed 2019–2025: status now, not the year it changed)

Role changed 2020-24: likely successor United States v. Isaiah Henderson, 11 F.4th 713 (2021) (38% of the 16 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (18%)

Travels with: United States v. Edward Merritt (cosine 0.17, 5 both); United States v. Jose Maria Mendoza-Figueroa (cosine 0.08, 6 both)

How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[W]e look to the elements of the crime of conviction rather than how a particular defendant might have committed the offense.") — *United States v. Jaime Campos, 8th Cir., 2023*

↑

484. New Jersey v. Environmental Protection Agency

517 F.3d 574, D.C. Cir., 2008
In 2020-24: cited by 8 decisions (appellate) · in all: 53 · 2021–2025: 9 · weight in the sub-cluster 2
Fit: 65% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 35%)
Good law: green? (read the newest 59 of 59 citing opinions, filed 2008–2026: status now, not the year it changed)
Travels with: Brown & Williamson (cosine 0.03, 6 both); Whitman (cosine 0.02, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[P]revious statutory violations cannot excuse the one now before the court.") — *Noem, 9th Cir., 2025*
1 ("Congress . . . undoubtedly can limit an agency's discretion to reverse itself") — *Ivy Sports Medicine, LLC v. Sylvia Mathews Burwell, D.C. Cir., 2014*
1 ("[I]t is reasonable for the permitting authority — under these unique and compelling circumstances, and within the bounds of its discretion under ... Section 112(g) — *WILDEARTH, D. Colo., 2010*
1 (noting Congress's "concern[] about the slow pace" of EPA's regulation of hazardous air pollutants) — *Sierra Club v. Andrew Wheeler, D.C. Cir., 2020*
1 (removing certain electric utility steam generating units from a list of sources regulated by the Clean Air Act) — *Voyageur Outward Bound School v. United States of America, D.D.C., 2020*
1 (noting that "when Congress has provided a mechanism capable of rectifying mistaken actions ... it is not reasonable to infer authority to reconsider agency action" (internal quotation marks omitted)) — *Alabama Environmental Council v. Administrator, United States Environmental Protection Agency, 11th Cir., 2013*

↑

485. Cargill v. Garland

57 F.4th 447, 5th Cir., 2023
In 2020-24: cited by 18 decisions (appellate) · in all: 34 · 2021–2025: 34 · weight in the sub-cluster 14
Fit: 65% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.11 Second Amendment, 10%)
Good law: green? (read the newest 34 of 34 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: Cargill (cosine 0.50, 6 both); ATF (cosine 0.12, 8 both); Aposhian (cosine 0.07, 6 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("Va- catur is the only statutorily prescribed remedy for a successful APA challenge to a regulation.") — *Chamber of Commerce of the United States of America, E.D. Tex., 2024*
1 ("With statutes, '[c]ontext is a primary determinant of meaning.'" (quoting SCALIA & GARNER, supra, at 167)) — *Morris, E.D. Tex., 2023*
1 ("Perhaps Congress's choice of words was prudent, or perhaps it was not. That is not for us to decide.") — *VanDerStok, 5th Cir., 2023*
1 ("[A]ssuming the definition . . . is ambiguous, we are bound to apply the rule of lenity.") — *VanDerStok, 5th Cir., 2023*
1 (explaining that the National Firearms Act unambiguously "requires that a machinegun be capable of firing automatically once the trigger performs a single function") — *National Association for Gun Rights, Inc. v. Garland, N.D. Tex., 2023*
1 (holding that agency deference "does not apply [when] the statutory language at issue implicates criminal penalties") — *Nazerzadeh, 5th Cir., 2023*

↑

486. United States v. Malik Nasir

982 F.3d 144, 3rd Cir., 2020
In 2020-24: cited by 51 decisions (appellate) · in all: 77 · 2021–2025: 77 · weight in the sub-cluster 26
Fit: 64% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 27%)
Good law: green? (read the newest 77 of 77 citing opinions, filed 2021–2025: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (35%)
Travels with: United States v. Malik Nasir (cosine 0.09, 12 both); United States v. Aumbrey Winstead (cosine 0.06, 8 both); United States v. Kevin Hightower (cosine 0.06, 7 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[I]t bears repeating that, until Rehaif, § 922(g) had not been understood as the Supreme Court interpreted it there[;] [n]o knowledge-of-status element had previously been perceived in the statute, and no proof of it was required.") — *PENN, W.D. Pa., 2022*
1 ("the [invited error] doctrine does not apply [when] the law changes between trial and appeal") — *Culbreath, Conn., 2021*
1 ("[C]ounting up judges who see the issue differently does not alter our obligation. The answer to the old saw that 'fifty million

Frenchmen can't be wrong' is yes, they can.") — *FRANK VAN'S AUTO TAG, LLC v. SELECTIVE INSURANCE COMPANY OF THE SOUTHEAST, E.D. Pa., 2021*

↑

487. William Akins v. United States

312 F. App'x 197, 11th Cir., 2009 • Unpublished
In 2020-24: cited by 12 decisions (appellate) · in all: 25 · 2021–2025: 14 · weight in the sub-cluster 18
Fit: 64% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.11 Second Amendment, 15%)
Good law: green? (read the newest 25 of 25 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Camp (cosine 0.51, 8 both); ATF (cosine 0.14, 12 both); Aposhian (cosine 0.10, 7 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (deferring to ATF's decision to classify the Akins Accelerator as a machine gun) — *Guedes, D.C. Cir., 2019*
- **1** ("After a single application of the trigger by a gunman, the Accelerator uses its inter- nal spring and the force of recoil to fire continuously the rifle cradled inside until the gunman releases the trigger or the ammunition is exhausted.") — *McCutchen, Fed. Cir., 2021*
- **1** ("The interpretation by the [ATF] that the phrase 'single function of the trigger' means a 'single pull of the trigger' is consonant with the statute and its legislative history.") — *Aposhian, D. Utah, 2019*
- **1** ("Based on the operation of the Accelerator, the Bureau had authority to 'reconsider and rectify' what it considered to be a classification error.") — *McCutchen, Fed. Cir., 2021*
- **1** (finding that the ATF's interpretation of "single function of the trigger" meaning "single pull of the trigger" was consistent enough with the statute's text and legislative history so as to survive the APA's arbitrary-and-capricious standard) — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*
- **1** (concluding that the Akins Accelerator, a type of bump stock, was reasonably classified as a machine gun) — *Aposhian, 10th Cir., 2020*

↑

488. Eric White v. UAL

987 F.3d 616, 7th Cir., 2021
In 2020-24: cited by 24 decisions (appellate) · in all: 80 · 2021–2025: 80 · weight in the sub-cluster 12
Fit: 64% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.1 Reasonableness review of federal sentences, 18%)
Good law: green? (read the newest 81 of 81 citing opinions, filed 2021–2026: status now, not the year it changed)
Travels with: Guam v. United States (cosine 0.31, 5 both); Rimini Street, Inc. v. Oracle USA, Inc. (cosine 0.19, 8 both); National Assn. of Mfrs. v. Department of Defense (cosine 0.03, 5 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (noting that application of the "whole code canon"9 "rests on a shaky foundation. Appeals to consistency with other areas of the U.S. Code—especially different titles of the Code 'represent a ... risk of judicially overriding legislative assumptions and policies'") — *Segovia, N.D. Ga., 2024*
- **2** (presuming "identical words used in di?erent parts of 6 No. 24-2931 the same act are intended to have the same meaning" (citation modi?ed)) — *United States v. Town of Thornapple, Wisconsin, 7th Cir., 2025*
- **1** ("[S]ection 4303(4)(A)(i) does not require that an 'employer' have direct control over the matters that constitute a USERRA violation[,] . . . only that the employer must have control over the plaintiff's employment opportunities writ large.") — *United States v. State of Kansas Department of Health & Environment, 10th Cir., 2025*
- **1** (not assigning special weight to pres- ence of allegedly verbose and super?uous parenthetical) — *Reid Hospital and Health Care v. Conifer Revenue Cycle Solution, 7th Cir., 2021*
- **1** ("[W]e are loath to place as much weight as United does on the expressio unius canon, which we have characterized as much-derided and disfavored.") — *Barnes, N.D. Ill., 2023*
- **1** (declining to compare different but related titles of 1 federal law to avoid inconsistency and accepting the language Congress chose 2 when drafting the statute rather than reading "extratextual considerations" into the 3 law) — *Clarkson, E.D. Wash., 2021*
- **1** (suggesting those who determine certain terms and benefits of employment may be considered employers) — *United States v. State of Kansas Department of Health & Environment, 10th Cir., 2025*
- **1** (noting that the presence of some redundancy "is rarely fatal on its own to a statutory reading") — *Walker, Colo., 2022*

↑

489. Mississippi Commission on Environmental Quality v. Environmental Protection Agency

790 F.3d 138, D.C. Cir., 2015
In 2020-24: cited by 14 decisions (appellate) · in all: 39 · 2021–2025: 16 · weight in the sub-cluster 5
Fit: 64% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 36%)
Good law: green? (read the newest 43 of 43 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Catawba County v. Environmental Protection Agency (cosine 0.16, 6 both); State Farm (cosine 0.02, 7 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("[T]he fact that the State has long accepted billions of dollars notwithstanding the challenged conditions may be an additional relevant factor in the contract-like analysis the Court has in mind for assessing the constitutionality of Spending Clause legislation.") — *State of Tennessee v. Xavier Becerra, 6th Cir., 2024*

2 ("[A]lmost every court that has addressed an Information Quality Act challenge has held that the statute 'creates no legal rights in any third parties[]'".) — *Ohio Stands Up! v. U.S. Department of Health & Human Services, N.D. Ohio, 2021*

1 (EPA guidance recommending CBSAs as an option for geographic boundaries used in regulating certain air quality standards) — *United States of America v. Anthem, Inc., D.D.C., 2017*

1 (observing that the argument that "there likely would have been no violation at all . . . if it were not for the emissions resulting from [another source]" is "merely a rephrasing of the but-for causation rule that we rejected in Catawba County") — *State of Wisconsin v. EPA, D.C. Cir., 2019*

↑

490. United States v. Brandon Romel Dupree

57 F. 4th 1269, 11th Cir., 2023

In 2020-24: cited by 58 decisions (appellate) · in all: 118 · 2021–2025: 118 · weight in the sub-cluster 45

Fit: 64% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 10%)

Good law: green? (read the newest 100 of 118 citing opinions, filed 2023–2026: status now, not the year it changed)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (19%)

Travels with: United States v. Roberto Castillo (cosine 0.21, 9 both); United States v. Malik Nasir (cosine 0.09, 6 both); United States v. Jennifer Riccardi (cosine 0.09, 8 both)

How later courts describe it (1 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("[O]nly if a regulation is genuinely ambiguous should Auer deference be applied. . . . To determine whether ambiguity exists, courts first must exhaust all the traditional tools of construction." (internal citation and quotations omitted)) — *Yousefifar, S.D. Ga., 2025*

↑

491. Solid Waste Agency of Northern Cook County v. United States Army Corps of Engineers

531 U.S. 159, SCOTUS, 2001

In 2020-24: cited by 42 decisions (appellate) · in all: 415 · 2021–2025: 66 · weight in the sub-cluster 47

Fit: 64% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 12%)

Good law: yellow 2003 (read 477 of 477 citing opinions)

2001 (9th Cir.): weak "declining to extend" — *Katie John v. United States*: Second, it is not unheard of for a court to find that an agency interpretation is not reasonable. See, e.g., Solid Waste, [121 S. Ct. at 683683] (declining to extend Chevron deference to agency interpretation); SEC v. Sloan, 436 U.S. 103, 118 (1978) (same). We hav

2001 (9th Cir.): weak "declining to extend" — *John*: Second, it is not unheard of for a court to find that an agency interpretation is not reasonable. See, e.g., Solid Waste, [121 S.Ct. at 683683] (declining to extend Chevron deference to agency interpretation); SEC v. Sloan, 436 U.S. 103, 118, 98 S.Ct. 1702, 56 L.

2003 (D.N.J.): weak "declined to extend" — *FD & P Enterprises, Inc. v. United States Army Corps of Engi*: led to deference under Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc., 467 U.S. 837, 104 S.Ct 2778, 81 L.Ed.2d 694 (1984). The Supreme Court in [Solid Waste] declined to extend Chevron deference to the Corps, noting that "[w]here an administrative interpretation of a statute i

Travels with: Riverside Homes (cosine 0.15, 6 both); Rapanos (cosine 0.13, 8 both); Bass (cosine 0.06, 9 both)

How later courts describe it (104 parentheticals; groups of similar wording, largest first; other courts' words)

12 (stating that, "[a]lthough we have recognized congressional acquiescence to administrative interpretations of a statute in some situations, we have done so with extreme care") — *Nesmith, Haw., 2012*

7 (rejecting doctrine of agency deference "[w]here an administrative interpretation of a statute would raise serious constitutional problems") — *Dami Hospitality, LLC v. Industrial Claim Appeals Office, Colo. Ct. App., 2017*

6 ("'[w]here an otherwise acceptable construction of a statute would raise serious constitutional problems, [courts] will construe the statute to avoid such problems unless such construction is plainly contrary to the intent of Congress'") — *City of Urbana v. Andrew N.B., Ill., 2004*

6 (explaining that the Court "would not extend Chevron deference" to an agency interpretation involving "federal encroachment upon a traditional state power.") — *Commonwealth of Ky. v. Janet Yellen, 6th Cir., 2022*

5 (stating that failure to pass a bill outlawing an agency interpretation of the law does not imply Congress's "acquiescence" to that interpretation, in part because "[a] bill can be proposed for any number of reasons, and it can be rejected for just as many others") — *City of Chicago v. Fraternal Order of Police, Chicago Lodge No. 7, Ill., 2020*

5 (denying deference because the agency's interpretation "needlessly" raised serious "constitutional issues" and because the Court assumed "that Congress does not casually authorize administrative agencies to interpret a statute to push the limit of congressional authority") — *Raul Morales-Izquierdo v. Alberto R. Gonzales, Attorney General, 9th Cir., 2007*

4 ("The relationship between the actions and inactions of the 95th Congress and the intent of the 92nd Congress in passing § 404(a) is also considerably attenuated.") — *Williams v. Department of Public Safety, Colo. Ct. App., 2015*

3 (reading CWA as written to avoid constitutional and federalism questions raised by EPA's interpretation of "navigable waters" to include an abandoned sand and gravel pit because it was inhabited by migratory birds) — *Jones, M.D. Ga., 2003*

↑

492. United States v. R. L. C.

503 U.S. 291, SCOTUS, 1992
In 2020-24: cited by 16 decisions (appellate) · in all: 149 · 2021–2025: 13 · weight in the sub-cluster 14
Fit: 64% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.13 around Kelly, 17%)
Good law: green? (read the newest 100 of 179 citing opinions, filed 2005–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Booker, 543 U.S. 220 (2004) (37% of the 27 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Travels with: McBoyle (cosine 0.15, 9 both); Moskal (cosine 0.13, 5 both); Bass (cosine 0.07, 8 both)
How later courts describe it (33 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (stating that "the answer to any suggestion that the statutory character of a specific penalty provision gives it primacy over administrative sentencing guidelines is that the mandate to apply the Guidelines is itself statutory," as we're about to explain) — *Shea, 1st Cir., 2020*
- **6** (Scalia, X, with whom Kennedy and Thomas, Js., join, concurring in part and concurring in judgment) — *Courchesne, Conn., 2003*
- **4** ("[Tjhe rule [of lenity] has been applied not only to resolve issues about the substantive scope of criminal statutes, but to answer questions about the severity of sentencing....") — *United States v. Carlos Pacheco, 2d Cir., 2000*
- **2** ("[W]e have always reserved lenity for those situations in which a reasonable doubt persists about a statute's intended scope even after resort to 'the language and structure, legislative history, and motivating policies' of the statute.") — *Close, 9th Cir., 2011*
- **2** ("although determining [the maximum sentence] ... will [] require sentencing and reviewing courts to determine an appropriate Guideline range..., we emphasize that it does not require plenary application of the Guidelines to juvenile delinquents.") — *Juvenile, 9th Cir., 2003*
- **2** (courts imposing sentences under Juvenile Delinquency Act must also refer to punishments authorized under Sentencing Guidelines, which "limit the legitimacy of [courts'] exercise of [sentencing] power") — *United States v. Gregory Alan Kinder, 2d Cir., 1995*
- **2** (rule of lenity reserved for "those situations in which a reasonable doubt persists about a statute's intended scope" [internal quotation marks omitted]) — *Courchesne, Conn., 2010*
- **1** (interpreting language in a statute dealing with juveniles) — *Thompson, D.D.C., 1996*

↑

493. Guedes v. Bureau of Alcohol, Tobacco, Firearms

920 F.3d 1, D.C. Cir., 2019
In 2020-24: cited by 42 decisions (appellate) · in all: 136 · 2021–2025: 88 · weight in the sub-cluster 68
Fit: 63% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 10%)
Good law: green? (read the newest 100 of 136 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Guedes (cosine 0.39, 14 both); Aposhian (cosine 0.18, 6 both); Aposhian (cosine 0.18, 10 both)
How later courts describe it (41 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** ("A foundational requirement for obtaining preliminary injunctive relief is that the plaintiffs demonstrate a likelihood of success on the merits.") — *Mnuchin, D.D.C., 2020*
- **3** ("The independent power to identify and apply the correct law presumably includes application of the Chevron framework when determining the meaning of a statute.") — *Aposhian, D. Utah, 2023*
- **3** (finding that Staples does not "compel a particular interpretation of 'single function of the trigger'") — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*
- **2** (holding that an agency cannot waive Chevron deference) — *Juan Amaya v. Jeffrey Rosen, 4th Cir., 2021*
- **1** (describing Babbitt as applying Chevron) — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*
- **1** (articulating the Chevron step two standard) — *District of Columbia v. U.S. Department of Agriculture, D.D.C., 2020*
- **1** (reviewing the Final Rule under the Chevron framework) — *Aposhian, 10th Cir., 2020*
- **1** (similarly finding the government's interpretation of "automatically" permissible) — *Aposhian, D. Utah, 2023*

↑

494. Corley v. United States

556 U.S. 303, SCOTUS, 2009
In 2020-24: cited by 99 decisions (appellate) · in all: 855 · 2021–2025: 349 · weight in the sub-cluster 36
Fit: 63% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 11%)
Good law: green? (read the newest 100 of 913 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: Hibbs (cosine 0.14, 14 both); Russello (cosine 0.02, 10 both); Davis (cosine 0.01, 7 both)
How later courts describe it (251 parentheticals; groups of similar wording, largest first; other courts' words)

- **132** (holding that a "statute should be construed . . . so that no part will be inoperative or superfluous" (internal quotation marks omitted)) — *Salazar, 2d Cir., 2024*
- **43** (noting that courts "must give effect to the clear meaning of statutes as written" (citation omitted)) — *Prajapati, W.D. Mich., 2025*
- **14** (noting that "one of the most basic interpretative canons" is that a "statute should be construed so that effect is given to all its

provisions, so that no part will be inoperative or superfluous, void or insignificant" (quoting Hibbs v. Winn, 542 U.S. 88, 101 (2004) — *Duran, 2d Cir., 2020*

7 (stating that there is mounting empirical evidence that the pressures inherent in custodial interrogations can induce a "frighteningly high percentage of people to confess to crimes they never committed") — *Baker., Haw., 2020*

4 (a court should give each word effect) — *Taylor, 5th Cir., 2010*

4 (holding that § 3501 did not supplant McNabb-Mallory and that "[i]f the confession occurred before presentment and beyond six hours ... the court must decide whether delaying that long was unreasonable or unnecessary under the McNabb-Mallory cases") — *Kirkland, 7th Cir., 2009*

3 ("[A]n arrested person's confession is inadmissible if given after an unreasonable delay in bringing him before a judge.") — *United States v. Carmen Boche-Perez, 5th Cir., 2014*

3 (construing the statute as a whole to avoid "the absurd results of a literal reading") — *Whether Proposals by Illinois and New York to Use the Internet and Out-of-State Transaction Processors to Sell Lottery Tickets to In-State Adults Violate the Wire Act, OLC, 2011*

↑

495. Steward MacHine Co. v. Davis

301 U.S. 548, SCOTUS, 1937
In 2020-24: cited by 10 decisions (appellate) · in all: 644 · 2021–2025: 22 · weight in the sub-cluster 4
Fit: 63% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.14 Implied private rights of action (Cort v. Ash) and § 1983, 37%)
Good law: green? (read the newest 100 of 739 citing opinions, filed 2002–2026: status now, not the year it changed)
Role changed 2000-04: likely successor College Savings Bank v. Florida Prepaid Postsecondary Edu..., 527 U.S. 666 (1999) (56% of the 23 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Travels with: NFIB (cosine 0.07, 7 both); Dole (cosine 0.05, 5 both)
How later courts describe it (27 parentheticals; groups of similar wording, largest first; other courts' words)

4 (discussing genesis of unemployment insurance program and statutory mechanism) — *Watkins v. Cantrell, 4th Cir., 1984*

3 (upholding constitutionality of social security tax withholding provision) — *Roberts, D. Del., 1977*

3 (ruling that no such coercion had occurred in the case then before the Court, "assum[ing] that such a concept can ever be applied with fitness to the relations between state and nation") — *Commonwealth Of Virginia Department Of Education v. Richard W. Riley, 4th Cir., 1996*

2 (perhaps April 15, perhaps June 15) — *Boeri v. United States, Fed. Cir., 2013*

2 (Spending legislation is an "agreemen[t] . . . with Congress") — *Landor, SCOTUS, 2026*

2 (arbitrary application of the tax statute, "if gross enough, is equivalent to confiscation and subject under the Fifth Amendment to challenge and annulment") — *Boeri v. United States, Fed. Cir., 2013*

1 (301 U. S., at pp. 583, 584) — *Garbade and Boynton v. City of Portland, Or., 1950*

1 (upholding Titles II and VIII of the Social Security Act) — *Maruska, D. Minnesota, 1999*

↑

496. Martin v. Hadix

527 U.S. 343, SCOTUS, 1999
In 2020-24: cited by 26 decisions (appellate) · in all: 312 · 2021–2025: 32 · weight in the sub-cluster 6
Fit: 63% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 19%)
Good law: green? (read the newest 100 of 344 citing opinions, filed 2010–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Ponnapula v. Ashcroft, 373 F.3d 480 (2004) (28% of the 50 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Travels with: Landgraf (cosine 0.07, 17 both)
How later courts describe it (66 parentheticals; groups of similar wording, largest first; other courts' words)

8 ("[I]nquiry into whether a statute operates retroactively demands a common sense, functional judgment about 'whether the new provision attaches new legal consequences to events completed before its enactment' ")

6 (holding that section 803(d)(3) of the Prison Reform Litigation Act ("PLRA") — *Clifford K. Olatunji v. John Ashcroft, Attorney General of the United States, 4th Cir., 2004*

3 (" 'unambiguous directive' or 'express command' " overcomes presumption against retroactivity) — *Ali Hamza Ahmad al Bahlul v. United States, D.C. Cir., 2014*

3 ("After [the date of the amendment], any expectation of compensation at the [pre-amendment] rates was unreasonable.") — *Ponnapula v. Ashcroft, 3rd Cir., 2004*

3 ("When determining whether a new statute operates retroactively, it is not enough to attach a label Ce.g., 'procedural,' 'collateral') — *Barbara Combs v. Commissioner of Social Security, 6th Cir., 2006*

3 (affirming fee award under PLRA for postjudgment monitoring, while reducing award in accordance with PLRA's hourly rate cap; describing § 1997e(d)(1) — *Cody v. Hillard, 8th Cir., 2002*

3 (holding that the PLRA's limitation on attorneys' fees may not be applied to services performed prior to the PLRA's enactment) — *Frank Ervin Altizer, Jr. v. George Deeds, and Richard Fleming Sergeant Minton, Steven H. Goldblatt, Amicus Curiae, 4th Cir., 1999*

3 (holding that the PLRA's new attorneys' fees provision, although governing secondary conduct, could not be applied retroactively) — *Frank Ervin Altizer, Jr. v. George Deeds, and Richard Fleming Sergeant Minton, Steven H. Goldblatt, Amicus Curiae, 4th Cir., 1999*

↑

497. Carcieri v. Salazar

555 U.S. 379, SCOTUS, 2009
In 2020-24: cited by 40 decisions (appellate) · in all: 296 · 2021–2025: 79 · weight in the sub-cluster 12
Fit: 63% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 23%)
Good law: green? (read the newest 100 of 326 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Branch (cosine 0.19, 6 both); BedRoc (cosine 0.02, 5 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (67 parentheticals; groups of similar wording, largest first; other courts' words)

- **22** (holding that if the statutory text is unambiguous then we apply the statute according to its terms) — *Josendis v. Wall to Wall Residence Repairs, Inc., 11th Cir., 2011*
- **5** (emphasizing that powers expressly delegated to Congress do not implicate the Tenth Amendment, and that "[b]ecause Congress has plenary authority to regulate Indian affairs, [the challenged act] does not offend the Tenth Amendment.") — *Gila River Indian Community v. United States, 9th Cir., 2012*
- **5** (noting that a commissioner's responsibilities relating to the implementation of the Indian Reorganization Act of 1934 rendered his interpretations of the statute "unusually persuasive" but not deferring because the statute was unambiguous) — *Herman, 7th Cir., 2010*
- **4** (refusing to give Chevron deference to an agency interpretation of a statute where Congress "left no gap in [the statute] for the agency to fill") — *Ad Hoc Shrimp Trade Action Committee v. United States, Fed. Cir., 2010*
- **4** (stating that a court is "obliged to give effect, if possible, to every word Congress used" (citation omitted)) — *Vidal-Reyes, 1st Cir., 2009*
- **3** ("We begin with the ordinary meaning of the word 'now,' as understood when the [statute] was enacted.") — *Oliveira, 1st Cir., 2017*
- **3** (noting the author of the legislation was "an unusually persuasive source as to the meaning of the relevant statutory language") — *Brady, 8th Cir., 2011*
- **3** (reviewing the parties' conflicting textual interpretations of a statute but concluding that it was unambiguous nonetheless) — *Sossamon, SCOTUS, 2011*

↑

498. Brown v. Gardner

513 U.S. 115, SCOTUS, 1994
In 2020-24: cited by 57 decisions (appellate) · in all: 884 · 2021–2025: 133 · weight in the sub-cluster 28
Fit: 63% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: yellow 2017 (read 517 of 1,044 citing opinions)
2017 (Fed. Cir.): strong "abrogated" — *Ollis*: s used "typically to provide benefits to veterans for nonservice related disabilities" resulting from VA medical care. Brown v. Gardner, 513 U.S. 115, 116 n.1, [115 S.Ct. 552], 130 L.Ed.2d 462 (1994), abrogated in part by statute, Pub. L. No. 104-204, § 422(a), 110 Stat. 2874, 2926-27 (1996); s
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (28% of the 58 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Hudgens (cosine 0.11, 5 both); Boone (cosine 0.10, 7 both); King (cosine 0.07, 13 both)
How later courts describe it (285 parentheticals; groups of similar wording, largest first; other courts' words)

- **58** (noting that ambiguity "is a creature not of definitional possibilities but of statutory context") — *United States v. Carlos Ezeta, 9th Cir., 2014*
- **44** (noting that the presumption of consistent usage is "surely at its most vigorous when a term is repeated within a given sentence") — *Advocate Christ Medical Center v. Kennedy, SCOTUS, 2025*
- **36** (holding that interpretive doubt must be resolved in favor of the veteran) — *Pelegrini, Vet. App., 2004*
- **23** (noting that in the context of congressional approval of administrative regulations, "congressional silence lacks persuasive significance, particularly where administrative regulations are inconsistent with the controlling statute") — *Gray, D.D.C., 2014*
- **10** (finding "no antidote to [a regulation's] clear inconsistency with a statute") — *Murphy v. Internal Revenue Service, D.C. Cir., 2007*
- **10** (holding that where Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely in the disparate inclusion or exclusion) — *Amaya, D.N.M., 2016*
- **6** ("The meaning of statutory language, plain or not, depends on its context.") — *Beer, Fed. Cir., 2012*
- **6** (holding that "the text and reasonable inferences from it give a clear answer against the Government, and that, as we have said, is 'the end of the matter'" (quoting Good Samaritan Hosp. v. Shalala, 508 U.S. 402, 409 (1993) — *Pelegrini, Vet. App., 2004*

↑

499. United States v. Malik Nasir

17 F.4th 459, 3rd Cir., 2021
In 2020-24: cited by 69 decisions (appellate) · in all: 112 · 2021–2025: 112 · weight in the sub-cluster 72
Fit: 63% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.1 Reasonableness review of federal sentences, 13%)
Good law: green (read 112 of 112 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (21%)

Travels with: United States v. Luis Mercado (cosine 0.14, 5 both); United States v. Roberto Castillo (cosine 0.13, 6 both); United States v. Jennifer Riccardi (cosine 0.11, 14 both)
How later courts describe it (10 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("As a familiar canon of construction states, . . . the expression of one thing is the exclusion of the other.") — *Sports Enterprises Inc v. Marvin Goldklang, 3rd Cir., 2026*
- **2** ("The guideline does not even mention inchoate offenses.") — *Vargas, 5th Cir., 2023*
- **1** (sentencing enhancement provision later reversed.) — *Nasir, Del. Super. Ct., 2024*
- **1** (supporting classification of scales as drug distribution paraphernalia) — *United States v. Jerome Edmond, 3rd Cir., 2025*
- **1** ("the expression of one thing is the exclusion of the other") — *MCINTOSH, D.N.J., 2024*
- **1** (holding, based on unambiguous text, that Section 4B1.2(b) excluded "inchoate crimes" from "the definition of 'controlled substance offenses'") — *United States v. Nicholas Lucidonio, 3rd Cir., 2025*
- **1** (explaining that, after Kisor, it is clear that the court went "too far in affording deference to the guidelines' commentary under" Stinson) — *United States v. Roberto Castillo, 9th Cir., 2023*

↑

500. Securities & Exchange Commission v. Chenery Corp.

318 U.S. 80, SCOTUS, 1943
In 2020-24: cited by 210 decisions (appellate) · in all: 3,574 · 2021–2025: 824 · weight in the sub-cluster 118
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 8%)
Good law: green? (read the newest 100 of 3,974 citing opinions, filed 2025–2026: status now, not the year it changed)
Role changed 1985-89: likely successor Chevron, 467 U.S. 837 (1984) (27% of the 215 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Michigan v. EPA (cosine 0.07, 17 both); Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.04, 23 both); In Re Comiskey (cosine 0.04, 5 both)
How later courts describe it (523 parentheticals; groups of similar wording, largest first; other courts' words)

- **386** (holding that an administrative agency decision cannot be affirmed on a basis the agency did not explicitly consider) — *Christoper S. v. Stanislaus County Office Of Education, 9th Cir., 2004*
- **24** (stating that an "order may not stand if the agency has misconceived the law") — *Norton, D.D.C., 2003*
- **15** (recognizing that "courts cannot exercise their duty of review unless they are advised of the considerations underlying the action under review") — *At & T Communications of Southern States, Inc. v. GTE Florida, Inc., N.D. Fla., 2000*
- **6** (the Chenery doctrine "forbids an agency's lawyers to defend the agency's decision on grounds that the agency itself had not embraced.") — *Huffman, E.D. Ky., 2020*
- **6** (Agency action "cannot be upheld merely because findings might have been made and considerations disclosed which would justify its order.") — *The Timken Company v. The United States, and China National MacHinery and Equipment Import and Export Corporation, Fed. Cir., 1990*
- **4** (remanding case to agency while noting agency was free to reach same result for different reasons) — *Raymond J. Donovan, Secretary of Labor v. A. Amorello & Sons, Inc., and Occupational Safety and Health Review Commission, 1st Cir., 1985*
- **3** (if action of administrative agency rests upon a determination involving an exercise of judgment entrusted to that agency, that action may not be set aside because the reviewing court might have made a different determination) — *Garner, N.D. Ind., 2019*
- **3** (holding that reviewing court may not affirm agency decision on basis of rationale agency itself did not adopt) — *National Treasury Employees Union v. Federal Labor Relations Authority, D.C. Cir., 1998*

↑

501. National Cable & Telecommunications Assn. v. Brand X Internet Services

545 U.S. 967, SCOTUS, 2005 • note built
In 2020-24: cited by 115 decisions (appellate) · in all: 1,312 · 2021–2025: 313 · weight in the sub-cluster 113
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 11%)
Good law: green (read 547 of 1,503 citing opinions)
Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (25% of the 116 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Smiley (cosine 0.10, 12 both); Chevron (cosine 0.07, 77 both); Home Concrete (cosine 0.06, 5 both)
How later courts describe it (405 parentheticals; groups of similar wording, largest first; other courts' words)

- **140** (holding that agency interpretations are owed Chevron or other appropriate deference unless a prior court decision has unambiguously held that the statute's meaning is incompatible with the agency's interpretation)
- **52** (holding that an agency is free within "the limits of reasoned interpretation to change course" only if it "adequately justifies the change") — *National Ass'n of Home Builders v. Defenders of Wildlife, SCOTUS, 2007*
- **42** ("New regulations at variance with prior judicial precedents are upheld unless 'they exceeded the Secretary's authority [or] are arbitrary and 28 capricious.") — *Dan Cameron Geddes, Jr. v. Andrew Saul, C.D. Cal., 2020*
- **31** (explaining that "ambiguities in statutes within an agency's jurisdiction to administer are delegations of authority to the agency to fill the statutory gap in reasonable fashion") — *Tibble, 9th Cir., 2013*
- **9** (holding that "if the agency adequately explains the reasons for a reversal of policy, change is not invalidating, since the whole

point of Chevron is to leave the discretion provided by the ambiguities of a statute with the implementing agency." (internal quotations and citation omitted)) — *Sebelius, N.D.N.Y., 2011*

8 (holding that the two-step Chevron U.S.A. Inc. v. Natural Res. Def. Council, Inc., 467 U.S. 837, 104 S.Ct. 2778, 81 L.Ed.2d 694 (1984), analysis applies to FCC rulings) — *Sprint Telephony PCS, L.P. v. County of San Diego, 9th Cir., 2008*

7 (holding that, because the FCC is authorized to promulgate binding legal rules and it "issued the order under review in the exercise of that authority," its interpretation of the Communications Act was entitled to Chevron deference) — *Metrophones Telecommunications, Inc. v. Global Crossing Telecommunications, Inc., 9th Cir., 2005*

6 (holding that, "[b]efore a judicial construction of a statute, whether contained in a precedent or not, may trump an agency's, the court must hold that the statute unambiguously requires the court's construction") — *Echostar Satellite L.L.C. v. Federal Communications Commission, D.C. Cir., 2013*

↑

502. Kennecott Utah Copper Corporation v. United States Department of the Interior, American Iron and Steel Institute, Intervenor

88 F.3d 1191, D.C. Cir., 1996

In 2020-24: cited by 13 decisions (appellate) · in all: 156 · 2021–2025: 25 · weight in the sub-cluster 2

Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 38%)

Good law: green? (read the newest 100 of 168 citing opinions, filed 2008–2025: status now, not the year it changed)

Travels with: Natural Resources Defense Council v. Environmental Protec... (cosine 0.09, 5 both); State Farm (cosine 0.01, 5 both)

How later courts describe it (36 parentheticals; groups of similar wording, largest first; other courts' words)

3 (Clinton administration with- drawal of G.H.W. Bush administration regulation) — *Aldf, 9th Cir., 2006*

3 (a party "no longer suffer[s] a legally cognizable injury traceable to the alleged violations" where "the court can no longer provide ... any meaningful relief") — *Zukunft, D.C. Cir., 2017*

2 ("Interior has balanced the need for an early, rough estimate against the danger of that estimate being too rough. We must defer to the agency's decision about how to strike that balance unless it is unreasonable.") — *DOI, D.C. Cir., 1998*

2 ("Although ... spending priorities may, in turn, imply a hierarchy in the way trustees should assess damages in the first place, we do not find [in either the text of 107(f)(1) — *DOI, D.C. Cir., 1998*

2 ("The guidance offered [in rule's preamble] is hypothetical and non-specific; it is not crafted as a concrete rule that can be applied under identified circumstances.") — *DOI, D.C. Cir., 1998*

2 ("Providing documents to the individual fully relieves whatever informational injury may have been suffered by that particular complainant; ordering publication goes well beyond that need.") — *America First Legal Foundation v. United States Federal Trade Commission, D.D.C., 2024*

2 (characterizing the denial of the opportunity to participate in notice and comment as a deprivation of a "procedural right") — *Air Alliance Hous. v. U.S. Chem. & Safety Hazard Investigation Bd., D.C. Cir., 2019*

2 (assuming without deciding that Chevron deference was owed an Interior regulation interpreting a statute of limitations) — *Intermountain Insurance Serv. v. Commissioner, IRS, D.C. Cir., 2011*

↑

503. Robinson v. Shell Oil Co.

519 U.S. 337, SCOTUS, 1997

In 2020-24: cited by 171 decisions (appellate) · in all: 2,486 · 2021–2025: 517 · weight in the sub-cluster 79

Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 7%)

Good law: green? (read the newest 100 of 2,720 citing opinions, filed 2025–2026: status now, not the year it changed)

Travels with: Ron Pair Enterprises (cosine 0.06, 13 both); Davis (cosine 0.04, 18 both); Atlantic Cleaners & Dyers, Inc. v. United States (cosine 0.02, 6 both)

How later courts describe it (440 parentheticals; groups of similar wording, largest first; other courts' words)

225 (recognizing that the "first step in interpreting a statute is to determine whether the language at issue has a plain and unambiguous meaning") — *Thompson, 5th Cir., 2002*

94 (holding that the term "employees" carries a different meaning in different sections of Title VII) — *Joffe, 9th Cir., 2013*

42 (explaining that the process of statutory interpretation ceases if the language is plain and "'the statutory scheme is coherent and consistent'") — *United States v. Premo, 9th Cir., 2006*

6 (holding that "plain meaning" of statutory term "employee" absolutely excludes from its compass a "former employee") — *Torres, 4th Cir., 2010*

5 (in turn citing United States v. Ron Pair Enterprises, Inc., 489 U.S. 235, 240, 109 S.Ct. 1026, 103 L.Ed.2d 290 (1989)) — *Cox, N.D. Ohio, 2007*

3 (pro- tection of "employees" from retaliation included former em- ployees) — *Dale Kleber v. CareFusion Corporation, 7th Cir., 2019*

3 (the Court's construction of a statute's meaning based in part on its consideration of the statute's "primary purpose" (emphasis added)) — *PICCADILLY, SCOTUS, 2008*

3 (noting that a term that may " [a]t first blush" seem unambiguous can prove otherwise when examined in the context of the statute as a whole) — *Adoptive Couple v. Baby Girl, SCOTUS, 2013*

↑

504. K Mart Corp. v. Cartier, Inc.

486 U.S. 281, SCOTUS, 1988
In 2020-24: cited by 69 decisions (appellate) · in all: 997 · 2021–2025: 126 · weight in the sub-cluster 9
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.2 Speech regulation: content neutrality, forums, expressive conduct, 9%)
Good law: green? (read the newest 100 of 1,096 citing opinions, filed 2022–2026: status now, not the year it changed)
Also ties to: 2020-24:5 Fourth Amendment search and seizure (25%)
Travels with: Atlantic Cleaners & Dyers, Inc. v. United States (cosine 0.02, 6 both); Germain (cosine 0.02, 9 both); Perrin (cosine 0.01, 6 both)
How later courts describe it (222 parentheticals; groups of similar wording, largest first; other courts' words)

- **163** (holding that a construction of the statutory language which takes into account the design of the statute as a whole is preferred) — *ROLDAN, BIA, 1999*
- **5** ("The traditional deference courts pay to agency interpretation is not to be applied to alter the clearly expressed intent of Congress.") — *Legal Environmental Assistance Foundation, Inc. v. United States Environmental Protection Agency, 11th Cir., 1997*
- **5** ("A gray-market good is a foreign-manufactured good, bearing a valid United States trademark, that is imported without the consent of the United States trademark holder.") — *Martin's Herend Imports, Inc. v. Diamond & GEM Trading USA, Co., 5th Cir., 1997*
- **5** (stating that "any reference to legislative history. . . is in the first instance irrelevant" in step one of Chevron analysis) — *Francis Santiago v. Gmac Mortgage Group, Inc., 3rd Cir., 2005*
- **4** (explaining that to determine whether a regulation conflicts with a statute, the starting point is the statute itself; if the statute is clear and unambiguous the matter is over and the courts and agency must give effect to Congressional intent) — *Sharon R. Pfennig v. Household Credit Services, Inc., and Mbna America Bank, N.A., 6th Cir., 2002*
- **3** (interpreting § 526 of the Tariff Act) — *EEOC v. Total System Services, Inc., 11th Cir., 2000*
- **3** ("Particular phrases must be construed in light of the overall 13 purpose and structure of the whole statutory scheme.") — *U.S. Bank, N.A., as Trustee, Successor in Interest to Wachovia Bank National Association v. Fidelity National Title Group, Inc., D. Nev., 2021*
- **2** (where no reasonable interpretation can support the agency's interpretation, deference is inappropriate) — *Arkansas Afl-Cio v. Federal Communications Commission, 8th Cir., 1993*

↑

505. Chrysler Corp. v. Brown

441 U.S. 281, SCOTUS, 1979
In 2020-24: cited by 54 decisions (appellate) · in all: 1,284 · 2021–2025: 172 · weight in the sub-cluster 36
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 15%)
Good law: green? (read the newest 100 of 1,384 citing opinions, filed 2023–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Azar, 587 U.S. 566 (2019) (28% of the 54 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Perez (cosine 0.07, 17 both); Shalala (cosine 0.06, 6 both); Azar (cosine 0.06, 15 both)
How later courts describe it (253 parentheticals; groups of similar wording, largest first; other courts' words)

- **54** (holding that a private right of action under a 9 | criminal statute has rarely been implied) — *Martinez, E.D. Cal., 2020*
- **28** (finding that "[t]he remarks of a single legislator, even the sponsor, are not controlling in analyzing legislative history") — *Associated Builders & Contractors of Texas, Inc. v. National Labor Relations Board, 5th Cir., 2016*
- **21** (noting that it is "well established" that agency regulations have the force and effect of law) — *Hix, D. Colo., 1999*
- **11** (holding that a regulation may have "the force and effect of law" if: (1) it enacts substantive rules affecting individual rights and obligations, and is not merely an interpretive rule or general policy statement; (2) — *Dellita Johnson v. City of Detroit and City of Detroit Housing Commission, 6th Cir., 2006*
- **8** ("Certainly regulations subject to the APA cannot be afforded the force and effect of law if not promulgated pursuant to the statutory procedural minimum found in that Act.") — *Nat'l Org. Of Veterans Advocates v. Secr'y Of Veterans Affairs, Fed. Cir., 2001*
- **6** (distinguishing between "substantive rules" on the one hand and "interpretive rules, general statements of policy, or rules of agency organization, procedure, or practice" on the other) — *Herbert A. Dunn and Georgia E. Dunn v. Commissioner of Internal Revenue, 2d Cir., 1980*
- **5** (describing a "substantive rule" as "one 'affecting individual rights and obligations' " and observing that "[t]his characteristic is an important touchstone for distinguishing those rules that may be 'binding' or have the 'force of law' ") — *United States v. Walter Dunlap & Sons, Inc., in 85-1671. United States of America v. New Holland Sales Stables, Inc., in 85-1673, 3rd Cir., 1986*
- **5** (describing section 301 as a "housekeeping statute" and "simply a grant of authority to the agency to regulate its own affairs") — *Authority to Prescribe Regulations Limiting the Partisan Political Activities of the Commissioned Officers Corps in the National Oceanic and Atmospheric Administration, OLC, 2004*

↑

506. Florida Power & Light Co. v. Lorion

470 U.S. 729, SCOTUS, 1985
In 2020-24: cited by 58 decisions (appellate) · in all: 1,747 · 2021–2025: 408 · weight in the sub-cluster 16
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.1 Ninth Circuit asylum: particular social group and nexus, 10%)

Good law: green? (read the newest 100 of 1,821 citing opinions, filed 2024–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Immigration & Naturalization Service v. Ventura, 537 U.S. 12 (2002) (34% of the 91 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Also ties to: 2020-24:16 Immigration and agency review (17%)
Travels with: Camp (cosine 0.04, 6 both); Burlington Truck Lines, Inc. v. United States (cosine 0.03, 10 both); Volpe (cosine 0.02, 8 both)
How later courts describe it (315 parentheticals; groups of similar wording, largest first; other courts' words)

- **106** (holding that challenges to an agency's procurement decision should be sustained if, inter alia, the "agency has not considered all relevant factors") — *Weston Solutions, Inc. v. United States, Fed. Cl., 2010*
- **55** (noting that a district court's role is limited to "apply[ing] the appropriate APA standard of review[,]" and thus, "[t]he factfinding capacity of the district court is typically unnecessary to judicial review of agency decisionmaking") — *Moore, E.D. Ky., 2025*
- **47** (noting that when applying arbitrary and capricious standard under the APA, "[t]he focal point for judicial review should be the administrative record already in existence....") — *Wilson, D.C. Cir., 2018*
- **17** (recognizing that district courts may not "min[e] facts from the [administrative] record to support the ALJ's decisions") — *Debty, W.D.N.C., 2019*
- **16** (explaining that "[t]he reviewing court is not generally empowered to conduct a de novo inquiry" in these cases) — *In Re Reuning v. United States, Fed. Cir., 2008*
- **10** (concluding that "Congress intended to provide for initial court of appeals review of all final orders in licensing proceedings" before the NRC) — *Leavitt, 10th Cir., 2004*
- **5** (discussing the administrative record in terms of the "record before the agency") — *Bazzi, D.D.C., 2020*
- **5** (voicing strong preference for review of all preliminary or ancillary issues in a proceeding in the forum provided for the final agency order or action) — *Arnold, S.D. Fla., 1997*

↑

507. City of Philadelphia v. Attorney General United States

916 F.3d 276, 3rd Cir., 2019
In 2020-24: cited by 12 decisions (appellate) · in all: 36 · 2021–2025: 10 · weight in the sub-cluster 19
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 18%)
Good law: green? (read the newest 36 of 36 citing opinions, filed 2019–2025: status now, not the year it changed)
Travels with: City of Chicago v. Jefferson B. Sessions III (cosine 0.35, 8 both); Gonzales v. Oregon (cosine 0.17, 5 both); Duncan (cosine 0.07, 5 both)
How later courts describe it (32 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("the canon against surplusage counsels us to read the term 'appli- cable' in a way that gives it some independent heft.") — *City of Chicago v. William P. Barr, 7th Cir., 2020*
- **4** (noting that those four subsections all relate to the programs that will be funded under the grant, thus coun- seling against a broader interpretation of the applicable laws clause) — *City of Chicago v. William P. Barr, 7th Cir., 2020*
- **3** ("{sluch authorization is nowhere to be found in the text of the [Byrne JAG] statute") — *City of Providence v. Sessions, D.R.I., 2019*
- **1** (discussing use of immigration detainers) — *Jameice Nash v. James Kenney, 3rd Cir., 2019*
- **1** (affirming permanent injunction against notice, access, and compliance conditions) — *City of Evanston v. William P. Barr, N.D. Ill., 2020*
- **1** ("[W]e interpret [the coordination requirement] to require certification that there was appropriate coordination in connection with the grantee's application. This does not serve as a basis to impose an ongoing requirement to coordinate on matters unrelated to the use of grant funds.") — *State of Colorado, The v. United States Department of Justice, D. Colo., 2020*
- **1** ("If Congress had already given the Attorney General this sweeping authority to withhold all funds for any reason, it would have no need to delineate numerous, specific circumstances under which [he or she] may withhold limited amounts of funds.") — *Trump, D. Or., 2019*
- **1** ("The data-reporting requirement is expressly limited to . . . information regarding the handling of federal funds and the programs to which those funds are directed. It does not cover Department priorities unrelated to the grant program.") — *State of Colorado, The v. United States Department of Justice, D. Colo., 2020*

↑

508. United States v. Menasche

348 U.S. 528, SCOTUS, 1955
In 2020-24: cited by 41 decisions (appellate) · in all: 927 · 2021–2025: 98 · weight in the sub-cluster 15
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:4.1 Pro se pleadings and Twombly/Iqbal in prisoner suits, 11%)
Good law: green? (read the newest 100 of 1,032 citing opinions, filed 2020–2026: status now, not the year it changed)
Role changed 2000-04: likely successor Duncan, 533 U.S. 167 (2001) (27% of the 45 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Also ties to: 2020-24:1 Federal habeas: ineffective assistance and AEDPA (23%)
Travels with: Duncan (cosine 0.08, 12 both); Babbitt (cosine 0.02, 5 both); King (cosine 0.02, 8 both)

How later courts describe it (176 parentheticals; groups of similar wording, largest first; other courts' words)

148 (holding that it is the Court's duty to give effect to every clause and word of a statute) — *Sweet, Fed. Cl., 2002*

5 ("'The cardinal principle of statutory construction is to save and not to destroy.' Labor Board v. Jones & Laughlin Steel Corp., 301 U.S. 1, 30 (1937) — *Rand, Tax Ct., 2013*

2 ("The rules of statutory construction apply when interpreting an agency regulation.") — *Arthrex, Inc. v. Smith & Nephew, Inc., Fed. Cir., 2018*

2 (discussing the Court's inability to review the schedule of ratings for disabilities) — *McCarrollv. McDonald, Vet. App., 2016*

2 (rejecting an interpretation of a statutory provision that would nullify the effect of another provision)

2 (listing familiar canon of statutory interpretation that statutes should be interpreted to give meaning to each word) — *Peters, 3rd Cir., 2003*

2 (noting that the purpose of a saving clause in the immigration context was to "manifes[t] a well-established congressional policy not to strip [noncitizens] of advantages gained under prior laws") — *Jones, SCOTUS, 2023*

1 (statements of Sen. Kennedy and Sen. Hatch) — *Burwell, 10th Cir., 2015*

↑

509. Federal Communications Commission v. AT&T Inc.

131 S. Ct. 1177, SCOTUS, 2011

In 2020-24: cited by 59 decisions (appellate) · in all: 203 · 2021–2025: 83 · weight in the sub-cluster 21

Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 10%)

Good law: green? (read the newest 100 of 218 citing opinions, filed 2020–2026: status now, not the year it changed)

Travels with: Wisconsin Central Ltd. v. United States (cosine 0.04, 7 both); Sullivan (cosine 0.04, 7 both); Perrin (cosine 0.04, 6 both)

How later courts describe it (77 parentheticals; groups of similar wording, largest first; other courts' words)

20 (recognizing that, in construing a statute, "two words together may assume a more particular meaning than those words in isolation") — *Rounds, 8th Cir., 2011*

6 ("[C]onstruing statutory language is not merely an exercise in ascertaining the outer limits of [a word's] definitional possibilities" (internal quotation marks omitted; second alteration in original)) — *Whiting, SCOTUS, 2011*

5 (" '[I]dentical words and phrases within the same statute should normally be given the same mean- ing' ") — *Bufkin, SCOTUS, 2025*

4 (rejecting argument that "personal privacy" in Exemption 7(C) reaches corporations: "protection in FOIA against disclosure of law enforcement information on the ground that it would constitute an unwarranted invasion of personal privacy does not extend to corporations") — *Doe, D.C. Cir., 2018*

3 ("The construction of statutory language often turns on context, which certainly may include the definitions of related words." (citation omitted)) — *Vitol, 5th Cir., 2022*

3 (refusing to interpret "personal privacy" based on meaning of "personal" in isolation) — *McClennen, Ariz., 2015*

3 (citing, in deciding that the "personal privacy" exemption in the Freedom of Information Act did not encompass corporate privacy, examples of "personal" as an adjective limited to individuals-as in "personal expenses," "personal life," and "personal opinion") — *Rasabout, Utah, 2015*

3 (looking to cases construing Exemption 6 to hold that the "personal privacy" protected by Exemption 7(C) does not encompass corporations' privacy) — *Yonemoto, 9th Cir., 2011*

↑

510. National Assn. of Mfrs. v. Department of Defense

583 U.S. 109, SCOTUS, 2018

In 2020-24: cited by 60 decisions (appellate) · in all: 174 · 2021–2025: 107 · weight in the sub-cluster 15

Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 14%)

Good law: green (read 176 of 176 citing opinions)

Role changed 2025-29: likely successor Pulsifer, 601 U.S. 124 (2024) (30% of the 20 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)

Travels with: Reiter (cosine 0.03, 9 both); UAL (cosine 0.03, 5 both); Ali (cosine 0.02, 5 both)

How later courts describe it (43 parentheticals; groups of similar wording, largest first; other courts' words)

9 (holding that where statutory text is "unambiguous, [the Court's] inquiry begins with the statutory text, and ends there as well") — *Greene, E.D.N.Y, 2024*

5 (holding that the court must "give effect to Congress' express inclusions and exclusions, not disregard them") — *O'Brien, D. Maryland, 2018*

4 (reversing a panel of this Court and reaffirming that we are "obliged to give effect, if possible, to every word Congress used" in a statute) — *United States v. Derek Tagg, 6th Cir., 2018*

3 ("Even for those of us who make use of legislative history, ambiguous legislative history cannot trump clear statutory language." (internal alterations and quotations omitted) — *Michael Adkins v. US Dept of Agriculture, e, 5th Cir., 2018*

3 (explaining that "the Court is 'obliged to give effect, if possible, to every word Congress used'" (quoting Reiter v. Sonotone Corp., 442 U.S. 330, 339 (1979))) — *Roy, 1st Cir., 2021*

2 ("Because the plain language [the statute] is 'unambiguous,' 'our inquiry begins with the statutory text, and ends there as well.'" (quoting 23 BedRoc Ltd., LLC v. United States, 541 U.S. 176, 183 (2004) (plurality opinion)) — *Becerra, D.D.C., 2025*

2 ("Congress' use of the phrase 'effluent limitation or other limitation' in subparagraph (E) — *Chiayu Chang v. U.S. Citizenship & Immigration Servs., D.C. Cir., 2018*

2 ("Absent clear evidence that Congress intended this surplusage, the Court rejects an interpretation of the statute that would render an entire subparagraph meaningless.") — *Haymarket DuPage, LLC v. Village of Itasca, N.D. Ill., 2025*

↑

511. United Sav. Assn. of Tex. v. Timbers of Inwood Forest Associates, Ltd.

484 U.S. 365, SCOTUS, 1988
In 2020-24: cited by 71 decisions (appellate) · in all: 1,760 · 2021–2025: 188 · weight in the sub-cluster 18
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.16 Copyright: originality, infringement and fair use, 25%)
Good law: green? (read the newest 100 of 1,871 citing opinions, filed 2023–2026: status now, not the year it changed)
Role changed 1990-94: likely successor Ron Pair Enterprises, 489 U.S. 235 (1989) (27% of the 78 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Travels with: Davis (cosine 0.03, 6 both); Whitman (cosine 0.02, 13 both); Hartford Underwriters (cosine 0.02, 6 both)
How later courts describe it (323 parentheticals; groups of similar wording, largest first; other courts' words)

143 (noting that a provision that is ambiguous in isolation is "often clarified" by the rest of the statutory scheme) — *United States v. Jeffrey D. Lachowski, 8th Cir., 2005*

24 (holding that unsecured creditors are not entitled to have post-petition interest added to their claims) — *In Re Washington Mutual, Inc., Bankr. D. Del., 2011*

11 (noting that the requirement that the property be "necessary to an effective reorganization" requires a showing that there is "a reasonable possibility of a successful reorganization within a reasonable time" (internal quotation omitted)) — *In Re Indian Palms Associates, Ltd., 3rd Cir., 1995*

7 ("[I]t is most improbable that [Congress would have made a major change] ... without even any mention in the legislative history.") — *Prochazka, Fed. Cl., 2012*

5 ("adequate protection was protection ... against depreciation of the collateral when it erodes the allowed secured claim.") — *In re Kain, Bankr. W.D. Mich., 1988*

5 (construing section 506(a) "value of such creditor's interest" as "value of the collateral") — *Travelers Insurance Company v. Donald H. Bullington D/B/A Bullington Farms, Travelers Insurance Company v. John T. Bullington, D/B/A Bullington Farms, 11th Cir., 1989*

4 (declining to inter- pret a term in a way that "frustrates the obvious statutorily articulated purpose of the statute") — *United States v. Town of Thornapple, Wisconsin, 7th Cir., 2025*

4 (rejecting interpretation of one section that renders another "a practical nullity and a theoretical absurdity") — *United States v. Joseph A. Kirschenbaum, A/K/A Ari Kirschenbaum, Appeal Of: Julie Kirschenbaum, 7th Cir., 1998*

↑

512. United States v. Xiaorong You

74 F.4th 378, 6th Cir., 2023
In 2020-24: cited by 26 decisions (appellate) · in all: 37 · 2021–2025: 37 · weight in the sub-cluster 14
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.1 Reasonableness review of federal sentences, 13%)
Good law: green (read 37 of 37 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (22%)
Travels with: United States v. Baha Jaffal (cosine 0.07, 5 both); United States v. Jennifer Riccardi (cosine 0.05, 11 both); Kisor (cosine 0.05, 15 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

2 (holding that defendant's "joint venture" with a Chinese chemical company was a "foreign instrumentality" as defined in § 1839(1)) — *Zheng, 2d Cir., 2024*

1 (referencing, in proper construction of § 2B1.1 to capture relative culpability, § 1B1.3 principle "requiring that a defendant's offense level be determined in part by 'all harm that resulted' from the defendant's crimes and by 'all harm that was the object of such acts'") — *United States v. Omar Thomas Wala, 6th Cir., 2026*

1 (noting potential sentencing disparities if "loss" were to be so limited) — *United States v. Maggie Boler, 4th Cir., 2024*

1 ("Applying Kisor's framework, we defer to the Sentencing Commission's interpretation of 'loss.'") — *Rainford, 2d Cir., 2024*

1 (holding that the term "loss" is "genuinely ambiguous" and deferring to the Sentencing Commis- sion's interpretation in the Commentary) — *United States v. Jeffrey Alan Horn, 11th Cir., 2025*

↑

513. Usery v. Turner Elkhorn Mining Co.

428 U.S. 1, SCOTUS, 1976
In 2020-24: cited by 19 decisions (appellate) · in all: 1,123 · 2021–2025: 40 · weight in the sub-cluster 3
Fit: 62% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.4 Substantive due process: family, privacy and reproduction, 38%)
Good law: green? (read the newest 100 of 1,261 citing opinions, filed 2015–2026: status now, not the year it changed)

Role changed 1995-99: likely successor Concrete Pipe, 508 U.S. 602 (1993) (32% of the 100 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Travels with: Pension Benefit Guaranty Corporation v. RA Gray & Co. (cosine 0.07, 8 both); Landgraf (cosine 0.02, 8 both)
How later courts describe it (151 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (finding that the imposition of liability on former employers of coal miners was constitutional as a rational means to spread the costs of the miners' disabilities) — *Exide Technologies, LLC, Bankr. D. Del., 2020*
- **8** ("[L]egislation readjusting rights and burdens is not unlawful solely because it upsets otherwise settled expectations. This is true even though the effect of the legislation is to impose a new duty or liability based on past acts") — *McKesson, SCOTUS, 1990*
- **8** ("[T]he burden is on one complaining of a due process violation to establish that the legislature has acted in an arbitrary and irrational way.") — *HUNSUCKER, Okla., 2017*
- **8** ("hesitat[ing] to approve the retrospective imposition of liability on any theory of deterrence or blameworthiness") — *Glazner, 11th Cir., 2003*
- **7** (applying similar reasoning in noting 25 that legislation adjusting rights and burdens does not constitute a due process violation 26 "solely because it upsets otherwise settled expectations") — *Monarch Content Management LLC v. Arizona Department of Gaming, D. Ariz., 2019*
- **7** (holding that application of the Black Lung Benefits Act to former employees' claims for 12 black lung disease did not violate due process, even though employees may have terminated their employment before the Act was passed) — *Crowe, Md. Ct. Spec. App., 2019*
- **6** ("[W]hether a broader cost-spreading scheme would have been wiser or more practical under the circumstances is not a question of constitutional dimension.") — *Lindsey Coal Mining Company v. Chater, 3rd Cir., 1996*
- **5** ("The retrospective aspects of legislation, as well as the prospective aspects, must meet the test of due process....") — *Louis Vuitton S.A. v. Spencer Handbags Corp., 2d Cir., 1985*

↑

514. National Ass'n of Home Builders v. Defenders of Wildlife

551 U.S. 644, SCOTUS, 2007 • note built
In 2020-24: cited by 87 decisions (appellate) · in all: 857 · 2021–2025: 237 · weight in the sub-cluster 50
Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.19 Freedom of Information Act exemptions, 17%)
Good law: green (read 511 of 936 citing opinions)
Travels with: State Farm (cosine 0.05, 27 both); Brown & Williamson (cosine 0.04, 14 both); National Wildlife Federation v. National Marine Fisheries... (cosine 0.04, 7 both)
How later courts describe it (188 parentheticals; groups of similar wording, largest first; other courts' words)

- **18** (recognizing that statutory repeal may be inferred where a later statute expressly contradicts the original act) — *Simpson, N.D. Ill., 2018*
- **17** (cautioning against reading an agency regulation in a way that renders part of it redundant) — *Turtle Island Restoration Network v. United States Department of Commerce, 9th Cir., 2017*
- **10** ("In administrative law, as in federal civil and criminal litigation, there is a harmless error rule.") — *Drakes Bay Oyster Company v. Sally Jewell, 9th Cir., 2013*
- **10** (holding that a stray erroneous statement in the Federal Register "which could have had no effect on the underlying agency action being challenged" is not "the type of error that requires a remand") — *Rocky Mountain Wild v. Dallas, 10th Cir., 2024*
- **6** ("In administrative law ... there is a harmless error rule." (quoting PDK Labs., Inc. v. U.S. Drug Enforcement Admin., 362 F.3d 786, 799 (D.C.Cir.2004))) — *Aronov, 1st Cir., 2009*
- **6** (explaining that in a Chevron analysis the cou.rt should not review -the relevant statutory provision in isolation) — *Ortega, S.D. Tex., 2008*
- **5** (observing that "the fact that a preliminary determination by a local agency representative is later overruled at a higher level within the agency does not render the decisionmaking process arbitrary and capricious.") — *Ctr for Biological Diversity v. Ryan Zinke, 9th Cir., 2017*
- **5** (explaining that agencies may change their minds if proper procedures are followed and federal courts ordinarily review only an agency's final action) — *Salazar, 9th Cir., 2010*

↑

515. Marx v. General Revenue Corp.

133 S. Ct. 1166, SCOTUS, 2013
In 2020-24: cited by 107 decisions (appellate) · in all: 736 · 2021–2025: 415 · weight in the sub-cluster 49
Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.17 around United States v. Larry E. Stott, Jr., Robert A. Gaughan, ..., 5%)
Good law: green? (read the newest 100 of 758 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: Barnhart (cosine 0.09, 12 both); Echazabal (cosine 0.06, 6 both); i4i Ltd (cosine 0.06, 10 both)
How later courts describe it (230 parentheticals; groups of similar wording, largest first; other courts' words)

- **102** (observing that "the canon against surplusage is strongest when an interpretation would render superfluous another part of the same statutory scheme") — *State of South Carolina v. United States, 4th Cir., 2018*
- **26** (noting that Rule 54 "codifies a venerable presumption that prevailing parties are entitled to costs") — *Garraway, W.D.N.Y., 2020*

13 (recognizing that the expressio unius est exclu-sio alterius canon applies when it is "fair to suppose that Congress considered the unnamed possibility and meant to say no") — *Seaway Community Bank v. Progressive Casualty Insurance, 6th Cir., 2013*

13 (holding that although the "cannon against surplusage is not an absolute rule," it is "generally presumed that statutes do not contain surplusage") — *Zigman, E.D.N.Y, 2026*

8 ("[T]he canon against surplusage 'assists only where a competing interpretation gives effect to every clause and word of a statute' ") — *Marinello, SCOTUS, 2018*

6 ("The 14 force of any negative implication . . . depends on context.") — *Lee v. Seed Public Charter School of Washington, Dc, D.D.C., 2020*

4 (discussing the "ex-pressio unius" canon of statutory interpretation, by which Congress is assumed to act intentionally when it excludes something from a statute) — *Travelers Indemnity Co. v. Northrop Grumman Corp., S.D.N.Y., 2014*

4 (observing that when interpreting a statute, courts "assume that the ordinary meaning of the statutory language aecu-rately expresses the legislative purpose" (internal quotation marks and alterations omitted)) — *United States Commodity Futures Trading Commission v. Hunter Wise Commodities, LLC, 11th Cir., 2014*

↑

516. Kisor v. Wilkie

588 U.S. 558, SCOTUS, 2019 • note built
In 2020-24: cited by 457 decisions (appellate) · in all: 1,048 · 2021–2025: 778 · weight in the sub-cluster 501
Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 8%)
Good law: green (read 504 of 1,050 citing opinions)
Travels with: Auer (cosine 0.16, 107 both); Bowles (cosine 0.12, 43 both); United States v. Jennifer Riccardi (cosine 0.10, 40 both)
How later courts describe it (266 parentheticals; groups of similar wording, largest first; other courts' words)

127 (holding that, if a regulation is unambiguous, "[t]he regulation then just means what it means—and the court must give it effect") — *Sheppardv. McDonald, Vet. App., 2021*

7 (narrowing Auer v. Robbins, 519 U.S. 452, 117 S. Ct. 905 (1997) and Bowles v. Seminole 11 Rock & Sand Co., 325 U.S. 410 (1945)) — *Pels, N.D. Cal., 2019*

4 (noting the limitations to such deference) — *Pharmaessentia USA Corporation v. United States Department of Health and Human Services, D.D.C., 2025*

4 ("[T]he Congress delegating regulatory authority to an agency intends as well to give that agency considerable latitude to construe its ambiguous rules.") — *O'Connor, W.D.N.Y., 2021*

4 (explaining that courts can defer only to an agency's "authoritative, expertise-based, fair[, and] considered judgment" (internal quotation marks omitted)) — *STATE OF NORTH CAROLINA DIVISION OF SERVICES FOR THE BLIND V. UNITED STATES DEPARTMENT OF EDUCATION REHABILITATION SERVICES ADMINISTRATION, M.D.N.C., 2019*

3 ("[A] court should decline to defer to a merely 'convenient litigating position' or 'post hoc rationalizatio[n] ad- vanced' to 'defend past agency action against attack.'" (citation omitted)) — *Yeison Meza Morales v. William Barr, 7th Cir., 2020*

3 (indicating that "[s]ome interpretive issues," like "the elucidation of a sim- ple common-law property term" or "the award of an attor- ney's fee," "may fall more naturally into a judge's bailiwick") — *Nova, Fed. Cir., 2022*

3 (stating that courts afford deference to regulations that are "genuinely ambiguous" pursuant to Auer v. Robbins, 519 U.S. 452 (1997)) — *M-D-C-V, BIA, 2020*

↑

517. Hibbs v. Winn

542 U.S. 88, SCOTUS, 2004
In 2020-24: cited by 67 decisions (appellate) · in all: 607 · 2021–2025: 225 · weight in the sub-cluster 27
Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.6 Federal Indian law and tribal sovereignty, 12%)
Good law: green? (read the newest 100 of 670 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: Corley (cosine 0.14, 14 both); Levin (cosine 0.08, 6 both); Rimini Street, Inc. v. Oracle USA, Inc. (cosine 0.02, 6 both)
How later courts describe it (162 parentheticals; groups of similar wording, largest first; other courts' words)

45 (holding that the "rule against superfluities" means that "[a] statute should be construed so that effect is given to all its provisions, so that no part will be inoperative or superfluous, void or insignificant") — *C.F.C., S.D. Fla., 2018*

36 (noting that courts "must give effect to the clear meaning of statutes as written" (citation omitted)) — *Rivera-Cruz, W.D. Mich., 2025*

5 ("To determine whether this litigation falls within [the Act's] prohibition, it is appropriate, first, to identify the relief sought.") — *Dillon, 5th Cir., 2010*

5 (explaining that, in enacting the TIA, Congress was concerned with "taxpayers who sought to avoid paying their state tax bill by pursuing a challenge route other than the one specified by the taxing authority") — *Miles, E.D. Mich., 2025*

5 (noting that Fair Assessment "preclude[d] original federal-court jurisdiction only when plaintiffs have sought district-court aid in order to arrest or countermand state tax collection") — *Capra, 7th Cir., 2013*

4 (The Act has two objectives, (1) eliminating disparities between out-of-state taxpayers seeking relief in federal court and resident taxpayers seeking relief in state court, and (2) — *IN THE MATTER OF THE ASSESSMENTS FOR TAX YEAR 2012 OF CERTAIN*

PROPERTIES, Okla., 2021

4 (defining an "assessment" as "the official recording of liability that triggers levy and collection efforts") — *Anderson, 9th Cir., 2026*

3 ("From a purely financial perspective, ... a taxpayer is unaffected by his decision as to whether or not to make an STO contribution. The funds that he may contribute will be unavailable to him in any event: they will be used either to make the contribution or to pay the taxes he owes.") — *Winn, 9th Cir., 2009*

↑

518. Stinson v. United States

508 U.S. 36, SCOTUS, 1993

In 2020-24: cited by 195 decisions (appellate) · in all: 2,016 · 2021–2025: 206 · weight in the sub-cluster 165

Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 11%)

Good law: red 2023 (read 518 of 2,230 citing opinions)

2023 (3rd Cir.): strong "overruled" — *United States v. Tiesha Henderson*: 2 that incorporated conspiracy into the definition of a crime of violence.39 After the District Court sentenced Henderson, however, the Supreme Court overruled Stinson in Kisor v. Wilkie, revising the weight courts should afford agency interpretations.40 There, the Court cut back broad deference to…

2023 (11th Cir.): strong "overrule" — *United States v. Brandon Romel Dupree*: erence." Id. The Supreme Court did not overrule Stinson in Kisor, and Kisor did not concern the Sentencing Guidelines. So our task is to figure out how to read Stinson and Kisor together. And we think the only way to harmonize the two cases is to conclude that Kisor's gloss on Auer and Seminole…

2024 (2d Cir.): strong "overruled" — *Rainford*: mentary no weight."), with You, 74 F.4th at 397 ("Applying Kisor's framework, we defer to the Sentencing Commission's interpretation of 'loss.'"). We adhere to Stinson and defer to the application note for two reasons. First, the Supreme Court has not overruled Stinson. "[I]f a precedent of [the…

Role changed 2020-24: likely successor Kisor, 588 U.S. 558 (2019) (42% of the 195 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (29%)

Travels with: Bowles (cosine 0.18, 28 both); United States v. David Prien-Pinto (cosine 0.14, 10 both); United States v. Jeffery Havis (cosine 0.10, 38 both)

How later courts describe it (462 parentheticals; groups of similar wording, largest first; other courts' words)

366 (concluding that the Sentencing Commission's commentary on its Guidelines is analogous to an agency interpretation of its own regulations, entitled to Seminole Rock deference) — *Perez, SCOTUS, 2015*

11 (holding that Sentencing Guidelines as well as corresponding policy statements and commentary are "binding on federal courts") — *United States v. Edward Bahe, 9th Cir., 2000*

5 (stating "commentary . . . provides concrete guidance as to how even unambiguous guidelines are to be applied in practice" (emphasis added)) — *Vargas, 5th Cir., 2023*

4 ("Under Chevron, if a statute is unambiguous the statute governs .... " (citations omitted)) — *Aronov, 1st Cir., 2009*

3 (remanding the case to the Eleventh Circuit)

3 ("We use traditional canons of statutory construction to interpret the sentencing guidelines.") — *United States v. James Herrera, 9th Cir., 2020*

3 (rejecting the Commission's statement regarding the role of guidelines commentary and instead relying on "the uses to which the Commission in practice has put such commentary") — *United States v. Anthony Goines, 4th Cir., 2004*

3 (holding that possession of a firearm by a convicted felon in violation of 18 U.S.C. § 922(g)(1) is not a "crime of violence" for purposes of United States Sentencing Guidelines § 4B1.2(1)) — *United States v. Lawrence A. Saffeels, 8th Cir., 1994*

↑

519. Spector v. Norwegian Cruise Line Ltd.

545 U.S. 119, SCOTUS, 2005

In 2020-24: cited by 10 decisions (appellate) · in all: 114 · 2021–2025: 30 · weight in the sub-cluster 6

Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.6 Federal Indian law and tribal sovereignty, 29%)

Good law: green? (read the newest 100 of 123 citing opinions, filed 2009–2025: status now, not the year it changed)

Travels with: New York v. United States (cosine 0.04, 5 both); Whitman (cosine 0.02, 6 both); King (cosine 0.02, 5 both)

How later courts describe it (25 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("It is reasonable to presume Congress intends no interference with matters that are primarily of concern only to the ship and the foreign state in 12 Case: 10-13623 Date Filed: 01/07/2013 Page: 13 of 22 which it is registered.") — *Ignacio Lobo v. Celebrity Cruises, Inc., 11th Cir., 2013*

3 ("Title III does not define 'difficulty' ... but use of the disjunctive' — 'easily accomplishable and able to be carried out without much difficulty or expense' — indicates that it extends to considerations in addition to cost.") — *Polycarpe, 11th Cir., 2010*

3 ("These clear statement rules ensure Congress does not, by broad or general language, legislate on a sensitive topic inadvertently or without due deliberation.") — *Canadian Lumber Trade Alliance v. United States, Ct. Intl. Trade, 2006*

3 (referring to NCL as "a Bermuda corporation with a principal place of business in Miami, Florida") — *Lindo, 11th Cir., 2011*

2 (applying the Americans with Disabilities Act to foreign-flag cruise ships) — *Schultz, S.D. Fla., 2020*

2 ("[G]eneral statutes are presumed to apply to conduct that takes place aboard a foreign-flag vessel in United States territory if the interests of the United States or its citizens, rather than interests internal to the ship, are at stake.") — *Schultz, S.D. Fla., 2020*

2 (applying Title III of the ADA to "foreign ships in United States waters to the same extent that it is applicable to American ships in those waters") — *Tony Nguyen v. Chubb Insurance Corporation, C.D. Cal., 2025*

1 ("The relevant category for which the Court demands a clear congressional statement, then, consists not of all applications of a statute to foreign-flag vessels but only those applications that would interfere with the foreign vessel's internal affairs.") — *Schultz, S.D. Fla., 2020*

↑

520. Crooks v. Harrelson

282 U.S. 55, SCOTUS, 1930
In 2020-24: cited by 24 decisions (appellate) · in all: 488 · 2021–2025: 36 · weight in the sub-cluster 6
Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 21%)
Good law: green? (read the newest 100 of 586 citing opinions, filed 2007–2026: status now, not the year it changed)
Travels with: Tamm v. UST-United States Trustee (In Re Hokulani Square,... (cosine 0.19, 6 both); Griffin (cosine 0.07, 5 both); Lamie (cosine 0.02, 6 both)
How later courts describe it (54 parentheticals; groups of similar wording, largest first; other courts' words)

18 (noting that literal terms of statute are only overridden if absurdity "so gross as to shock the general moral or common sense.") — *Federal Election Commission v. Arlen Specter '96, E.D. Pa., 2001*

5 (finding "nothing in the context or in other provisions of the statute [§ 402 of the Internal Revenue Code] which warrants the conclusion that the word 'and' was used otherwise than in its ordinary sense," which is conjunctive) — *Fortis, Inc. v. United States, S.D.N.Y., 2004*

4 ("Laws enacted with good intention, when put to the test, frequently, and to the surprise of the law maker himself, turn out to be mischievous, absurd or otherwise objectionable.") — *Catholic Social Services, Inc. v. Meese, E.D. Cal., 1987*

4 (rejecting argument to ignore literal meaning of a statute based on Holy Trinity Church v. United States, 143 U.S. 457, 12 S.Ct. 511, 36 L.Ed. 226 (1892) — *Cardiac Pacemakers, Inc. v. St. Jude Medical, Inc., Fed. Cir., 2009*

2 ("It is not enough that hard and objectionable, or absurd consequences, which probably was not within the contemplation of the framers, are produced by an action of legislation ... [I]n such case the remedy lies with the law-making authority, and not with the courts.") — *Lecates, Del. Super. Ct., 1986*

2 (applying the principle that "unless the Constitution be violated, Congress may [set the rules] as it sees fit; and if it does so in plain terms, as it has done here, it is not within the province of the court to modify the law by construction.") — *Mullen, E.D. Mo., 2020*

2 (noting that the absurdity doctrine will "override the literal terms of a statute only under rare and exceptional circumstances") — *Abdul Hassan v. State of Montana, 9th Cir., 2013*

1 ("Courts have sometimes exercised a high degree of ingenuity in the effort to find justification for wrenching from the words of a statute a meaning which literally they did not bear in order to escape consequences thought to be absurd or to entail great hardship.") — *Julie Olden, Richard Hunter, Wilbur Bleau, and All Others Similarly Situated v. Lafarge Corp., 6th Cir., 2004*

↑

521. Atlantic Cleaners & Dyers, Inc. v. United States

286 U.S. 427, SCOTUS, 1932
In 2020-24: cited by 38 decisions (appellate) · in all: 539 · 2021–2025: 59 · weight in the sub-cluster 9
Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.4 Substantive due process: family, privacy and reproduction, 13%)
Good law: green (read 531 of 635 citing opinions)
Travels with: Duke Energy (cosine 0.05, 5 both); Robinson (cosine 0.02, 6 both); K Mart (cosine 0.02, 6 both)
How later courts describe it (89 parentheticals; groups of similar wording, largest first; other courts' words)

67 (stating that identical words used in different parts of the same statutory section are intended to have the same meaning) — *Laird, 5th Cir., 2003*

4 (observing that Congress's "power when exercised in respect of foreign commerce may be broader than when exercised as to interstate commerce") — *Thompson, D.D.C., 2016*

2 (Congress may legislate with respect to the District "so long as other provisions of the Constitution are not infringed" (citation omitted)) — *Castanon, D.D.C., 2020*

2 (demonstrating that the context of individual provisions is important to deciding the meaning of them by explaining that the same words in the Constitution often have different meanings depending on their context) — *National Labor Relations Board v. New Vista Nursing & Rehabilitation, 3rd Cir., 2013*

2 (holding that a word that appears in a statutory section is generally considered to have the same meaning throughout the section) — *Hakim Iddir v. Immigration And Naturalization Service, 7th Cir., 2002*

1 ("A consideration of the history [of the ECOA] . . . sanctions the conclusion that Congress meant to deal comprehensively and 74 Case: 17-11736 Date Filed: 08/28/2019 Page: 75 of 88 effectively with the evils resulting" from discrimination) — *Regions Bank v. Legal Outsource PA, 11th Cir., 2019*

1 (where the subject matter to which words refer is not the same in the several places where they are used, or the conditions are different, the meaning may well vary to meet the purposes of the law) — *Allen, Vet. App., 1995*

1 ("[T]o preserve statutory continuity, a term is . . . presumed to have the same meaning each time it appears within a single statutory framework." (citing Cohen v. de la Cruz, 523 U.S. 213, 220 (1998))) — *Arthur L Marquez and Victoria E Marquez, Bankr. D.N.M., 2020*

↑

522. United States v. Willie Garth

965 F.3d 493, 6th Cir., 2020
In 2020-24: cited by 29 decisions (appellate) · in all: 47 · 2021–2025: 35 · weight in the sub-cluster 17
Fit: 61% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 23%)
Good law: green? (read the newest 47 of 47 citing opinions, filed 2020–2025: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (33%)
Travels with: United States v. Darius Thomas (cosine 0.36, 10 both); Havis (cosine 0.17, 8 both); United States v. Jeffery Havis (cosine 0.07, 22 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** ("Tennessee possession with intent to deliver is categorically a controlled-substance offense under U.S.S.G. § 4B1.2(b).") — *Nevels, M.D. Tenn., 2022*
- **1** (applying this reasoning to Tennessee's delivery statute) — *United States v. John Booker, Jr., 6th Cir., 2021*
- **1** ("Delivery means attempted transfer, not attempted delivery.") — *United States v. Dorian Dawson, 3rd Cir., 2022*
- **1** ("Tennessee possession-with-intent- to-attempt-to-deliver, while theoretically possible, is thus not realistically probable.") — *United States v. Herbert Graham, 6th Cir., 2020*
- **1** ("As the majority opinion lays out, regardless of whether delivery includes attempted delivery, possession with intent to deliver under Tennessee law is a completed crime, not an attempted one that would implicate Havis.) — *Simmons, E.D. Tenn., 2020*
- **1** (explaining that Tennessee's drug laws were patterned after federal law) — *United States v. Daniel Miller, 6th Cir., 2022*
- **1** (holding that possession of a controlled substance with intent to deliver or sell in violation of Tenn. Code Ann. § 39-17-417(a)(4) qualifies as a "controlled substance offense" under U.S.S.G. § 4B1.2(b)) — *United States v. Jeremy Roberts, 6th Cir., 2020*

↑

523. Food & Drug Administration v. Brown & Williamson Tobacco Corp.

529 U.S. 120, SCOTUS, 2000 • note built
In 2020-24: cited by 212 decisions (appellate) · in all: 1,756 · 2021–2025: 431 · weight in the sub-cluster 285
Fit: 60% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 13%)
Good law: green (read 551 of 1,961 citing opinions)
Role changed 2015-19: likely successor King, 135 S. Ct. 2480 (2015) (28% of the 244 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: Mandel Bros (cosine 0.10, 8 both); Gonzales v. Oregon (cosine 0.08, 22 both); King (cosine 0.08, 38 both)
How later courts describe it (446 parentheticals; groups of similar wording, largest first; other courts' words)

- **227** (holding that "a reviewing court should not confine itself to examining a particular statutory provision in isolation") — *Texas v. United States, 5th Cir., 2007*
- **24** ("[W]e are confident that Congress could not have intended to delegate a decision of such economic and political significance to an agency in so cryptic a fashion") — *Gonzales v. Oregon, SCOTUS, 2006*
- **12** (explaining that the "meaning of [a] statute may be affected by other Acts, particularly where Congress has spoken subsequently and more specifically to the topic at hand") — *Thomas Reichert v. Kellogg Co., 6th Cir., 2026*
- **11** (An agency "may not exercise its authority in a manner that is inconsistent with the administrative structure that Congress enacted" (internal quotation marks omitted)) — *Department of Homeland Security v. Regents of Univ. of Cal., SCOTUS, 2020*
- **8** (denying deference at step one, not because the statute was entirely clear, but because "Congress ha[d] clearly pre- cluded" the agency's construction) — *Morales-Izquierdo, 9th Cir., 2007*
- **7** ("Viewing the FDCA as a whole, it is evident that one of the Act's core objectives is to ensure that any product regulated by the FDA is 'safe' and 'effective' for its intended use.") — *Natural Resources Defense Council, Inc. v. United States Food & Drug Administration, S.D.N.Y., 2012*
- **7** (holding that the interpretation of statutes "must be guided to a degree by common sense as to the manner in which Congress is likely to delegate a policy decision of such economic and political magnitude") — *Trump, N.D. Cal., 2019*
- **6** (noting in the context of Chevron that "[o]ver time, . . . subsequent acts can shape or focus" the initial "range of plausible meanings" that a statute may have) — *School District of City of Pontiac v. Secretary of US Department of Education, 6th Cir., 2009*

↑

524. Citizens to Preserve Overton Park, Inc. v. Volpe

401 U.S. 402, SCOTUS, 1971
In 2020-24: cited by 78 decisions (appellate) · in all: 7,189 · 2021–2025: 488 · weight in the sub-cluster 50
Fit: 60% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 25%)
Good law: green? (read the newest 100 of 7,560 citing opinions, filed 2025–2026: status now, not the year it changed)
Role changed 1985-89: likely successor State Farm, 463 U.S. 29 (1983) (26% of the 517 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Morgan (cosine 0.07, 5 both); Camp (cosine 0.06, 9 both); Department of Homeland Security v. Regents of Univ. of Cal. (cosine 0.06, 16 both)

How later courts describe it (464 parentheticals; groups of similar wording, largest first; other courts' words)

- **60** (holding that the court must follow a "presumption of regularity" and uphold the agency's action "as long as a rational basis is articulated and relevant factors are considered") — *Vintage Autoworks, Inc. v. United States, Fed. Cl., 2017*
- **48** (holding that review is generally limited to the "record that was before the [agency] at the time [it] made [its] decision") — *Rempfer, D.C. Cir., 2009*
- **23** (abrogated on other grounds by Califano v. Sanders, 430 U.S. 99, 105, 97 S.Ct. 980, 51 L.Ed.2d 192 (1977)) — *United States v. San Juan Bay Marina, 1st Cir., 2001*
- **22** (holding that reviewing courts may not substitute their judgment for that of the decision-maker under the arbitrary and capricious standard of review) — *Helms, Fed. Cir., 2001*
- **16** (remarking that "there must be a strong showing of bad faith or improper behavior before" a court can permit "the administrative officials who participated in the decision to give testimony explaining their action") — *Torres Advanced Enterprise Solutions, LLC v. United States, Fed. Cl., 2017*
- **14** ("In all cases agency action must be set aside if the action was ... 'not in accordance with law' or if the action failed to meet statutory, procedural, or constitutional requirements") — *Star Fruits v. United States, Fed. Cir., 2005*
- **10** ("Certainly, the [agency's] decision is entitled to a presumption of regularity.") — *Derwinski, D.D.C., 1993*
- **10** (noting that post hoc rationalizations "have traditionally been found to be an inadequate basis for review") — *Kgl Food Services Wll v. United States, Fed. Cl., 2021*

↑

525. Azar v. Allina Health Services

587 U.S. 566, SCOTUS, 2019
In 2020-24: cited by 74 decisions (appellate) · in all: 202 · 2021–2025: 148 · weight in the sub-cluster 54
Fit: 60% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 18%)
Good law: green? (read the newest 100 of 202 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: Brown (cosine 0.06, 15 both); Encino Motorcars (cosine 0.04, 18 both); Council For Urological Interes v. Sylvia Mathews Burwell (cosine 0.04, 5 both)
How later courts describe it (59 parentheticals; groups of similar wording, largest first; other courts' words)

- **14** ("This Court does not lightly assume that Congress silently attaches different meanings to the same term in the same or related statutes.") — *TSA, 3rd Cir., 2019*
- **5** (stating that "ambiguous legislative history" cannot "muddy clear statutory language" (quoting Milner v. Dep't of Navy, 562 U.S. 562, 572 (2011))) — *Bank of America Corporation v. United States, W.D.N.C., 2023*
- **3** (explaining that "legislative history is not the law") — *Avion Funding v. GFS Industries, 5th Cir., 2024*
- **3** (noting that the Medicare Act's 60-day comment period was "twice the APA minimum of 30 days") — *National Association of Manufacturers v. United States Securities and Exchange Commission, W.D. Tex., 2022*
- **3** (recognizing the "presumption that, when Congress uses a term in multiple places within a single statute, the term bears a consistent meaning throughout") — *Asset Marketing Services, LLC v. JAM Products, Inc.et al, D. Minnesota, 2021*
- **2** ("[W]e may say that the substantive law defines the remedy and the right, while the law of procedure defines the modes and conditions of the application of the one to the other.") — *Azar, D.C. Cir., 2019*
- **2** ("[U]nless and until the first and third branches of government swap duties and responsibilities, we cannot rewrite statutes.") — *MHG Hotels, LLC v. Studio 78, LLC, S.D. Fla., 2022*
- **2** (leaving open whether notice-and-comment requirements apply to all Medicare statutory interpretations) — *Azar, D.C. Cir., 2019*

↑

526. United States v. David Prien-Pinto

917 F.3d 1155, 9th Cir., 2019
In 2020-24: cited by 13 decisions (appellate) · in all: 16 · 2021–2025: 9 · weight in the sub-cluster 8
Fit: 60% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 20%)
Good law: green? (read the newest 16 of 16 citing opinions, filed 2019–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (26%)
Travels with: Stinson (cosine 0.14, 10 both); United States v. Steven Wang (cosine 0.08, 5 both)
How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (observing that Application Notes are the "authoritative" interpretation and explanation of the Guidelines, unless they are "inconsistent with, or a plainly erroneous reading of," the Guidelines (quoting Stinson v. United States, 508 U.S. 36, 38 (1993)). Section 2G2.2(b)(3)(B) — *United States v. Dustin Randall, 9th Cir., 2022*
- **1** ("Through traditional techniques of construction, we had been reading this enhancement to apply without a mens rea for fourteen years before the Sentencing Commission began directing us to do so. Application Note 8(B) — *Newton, 9th Cir., 2024*

↑

527. United States v. Price

361 U.S. 304, SCOTUS, 1960
In 2020-24: cited by 15 decisions (appellate) · in all: 457 · 2021–2025: 13 · weight in the sub-cluster 5

Fit: 60% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:23.5 around Lansing Schools Education Ass'n v. Lansing Board of Educa..., 40%)
Good law: green? (read the newest 100 of 551 citing opinions, filed 2008–2026: status now, not the year it changed)
Role changed 1980-84: likely successor Consumer Product Safety Commission v. GTE Sylvania, Inc., 447 U.S. 102 (1980) (58% of the 33 decisions citing this case in 1980-84 also cite it). (co-citation, not the text)
Also ties to: 2020-24:23 Michigan appeals: summary disposition, experts, parental rights (30%)
Travels with: Pension Benefit Guaranty (cosine 0.15, 10 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (83 parentheticals; groups of similar wording, largest first; other courts' words)

- **68** (holding that "the views of a subsequent Congress form a hazardous basis for inferring the intent of an earlier one") — *Massachusetts v. Environmental Protection Agency, SCOTUS, 2007*
- **3** ("Whether Congress thought the proposal unwise ... or unnecessary, we cannot tell; accordingly, no inference can properly be drawn from the failure of the Congress to act.") — *Depascale, N.J., 2012*
- **2** (denigrating argumentation based on subsequent legislative history) — *Liberty Mutual Insurance Company v. Commercial Union Insurance Company, 1st Cir., 1992*
- **2** (earlier congressional intent will not be inferred from a later amendment) — *District of Columbia v. Washington Home Ownership Council, Inc., D.C., 1980*
- **2** (noting that the purpose of the waiver provision is to allow a taxpayer who does not wish to contest the underlying liability to avoid accruing interest) — *Ulrich, 9th Cir., 2009*
- **1** ("deductions from congressional inaction are notoriously unreliable") — *Summers, Tex., 2009*
- **1** ("[T]he UNITED STATES v. RESSAM 7563 this appeal before our en banc court is that we could decide the proper interpretation of § 844(h)(2) — *Ressam, 9th Cir., 2007*
- **1** ("[P]ost-enactment legislative history is not only oxymoronic but inherently entitled to little weight") — *Massachusetts v. Environmental Protection Agency, SCOTUS, 2007*

↑

528. Hartford Underwriters Insurance v. Union Planters Bank, N. A.

530 U.S. 1, SCOTUS, 2000
In 2020-24: cited by 54 decisions (appellate) · in all: 1,205 · 2021–2025: 204 · weight in the sub-cluster 30
Fit: 59% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.16 Copyright: originality, infringement and fair use, 24%)
Good law: green? (read the newest 100 of 1,289 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: Lamie (cosine 0.09, 14 both); Ron Pair Enterprises (cosine 0.09, 9 both); BFP (cosine 0.04, 5 both)
How later courts describe it (213 parentheticals; groups of similar wording, largest first; other courts' words)

- **101** (stating that the court's role is to enforce the text according to its terms when the language is plain) — *In Re Astle, Bankr. D. Idaho, 2007*
- **8** ("Congress says in a statute what it means and means in a statute what it says there." (citation and internal quotation marks omitted)) — *J&J Sports Productions, Incorporated v. Mandell Family Ventures, LLC, 5th Cir., 2014*
- **7** (holding when statutory language is plain and unambiguous, a court need only enforce the statute " 'according to its terms' " (quoting United States v. Ron Pair Enters., Inc., 489 U.S. 235, 241, 109 S.Ct. 1026, 103 L.Ed.2d 290 (1989))) — *Gibson, 10th Cir., 2000*
- **7** (holding that a trustee had the exclusive right to exercise powers under section 506 where it was not absurd to read the text of the statute as authorizing only the trustee to do so) — *Deborah A. Roe, Bankr. D. Or., 2024*
- **6** ("Achieving a better policy outcome . . . is a task for Congress, not the courts.") — *SD3, LLC v. Black & Decker (U.S.) Inc., 4th Cir., 2015*
- **6** (holding that the right to assert a claim under 506(c) belongs to the trustee, and not to the administrative creditor seeking payment) — *In re Chatkhan, Bankr. E.D.N.Y., 2012*
- **5** (observing that if Congress had intended for 11 U.S.C. § 506(c) to provide certain parties with a right of recovery it would have said so) — *In Re Dow Corning Corp., Bankr. E.D. Mich., 2000*
- **3** (in interpreting 11 U.S.C. § 506, finding that "had Congress intended the provision to be broadly worded, it could simply have said so, as it did ... in other section of the Code.") — *In the Matter Of: Constance Luongo, Debtor. Internal Revenue Service v. Constance Luongo, 5th Cir., 2001*

↑

529. United States v. Granderson

511 U.S. 39, SCOTUS, 1994
In 2020-24: cited by 20 decisions (appellate) · in all: 272 · 2021–2025: 25 · weight in the sub-cluster 6
Fit: 59% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 22%)
Good law: green? (read the newest 100 of 310 citing opinions, filed 2010–2025: status now, not the year it changed)
Role changed 2005-09: likely successor Lamie, 540 U.S. 526 (2004) (44% of the 23 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Also ties to: 2020-24:38 around New Hampshire v. Maine (33%)
Travels with: Bass (cosine 0.08, 5 both); Wiltberger (cosine 0.03, 5 both); Chevron (cosine 0.01, 6 both)

How later courts describe it (84 parentheticals; groups of similar wording, largest first; other courts' words)

- **26** (applying the rule of lenity "where text, structure, and history fail to establish that the Government's position is unambiguously correct.") — *United States v. Charles R. Dauray, 2d Cir., 2000*
- **9** (noting how the Sentencing Reform Act of 1984 classified probation as a sentence) — *Anderson, Utah, 2009*
- **6** ("Supervised release, in contrast to probation, is not a punishment in lieu of incarceration.") — *United States v. Ronald J. Colt, 7th Cir., 1997*
- **5** (stating that different functions of supervised release and probation weigh heavily against an in pari materia reading of the separately worded revocation provisions) — *LaPlante, 1st Cir., 1994*
- **3** (statute's plain meaning disregarded if it "leads to an absurd result") — *United States v. Charles W. Ramsey, D.C. Cir., 1999*
- **2** (courts must resolve ambiguities in favor of criminal defendants) — *United States v. Williams, 2d Cir., 2009*
- **2** (the Supreme Court applied the rule of lenity and held a federal criminal sentencing statute will not be interpreted so as to increase the penalty when such an interpretation can be based on no more than a guess as to what Congress intended) — *In re Personal, Wash., 1994*
- **2** ("[W]e cannot divine from the legislators' many 'get tough on drug offenders' statements any reliable guidance to particular provisions. None of the legislators' expressions ... focuses on 'the precise meaning of the provision at issue in this case.' ") — *Natural Resources Defense Council, Inc. v. Carol M. Browner, Administrator, Environmental Protection Agency, D.C. Cir., 1995*

↑

530. Roberts v. Sea-Land Services, Inc.

132 S. Ct. 1350, SCOTUS, 2012
In 2020-24: cited by 36 decisions (appellate) · in all: 283 · 2021–2025: 179 · weight in the sub-cluster 11
Fit: 59% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:20.1 Speedy trial (sub-cluster), 10%)
Good law: green (read 296 of 296 citing opinions)
Role changed 2015-19: likely successor Sturgeon, 577 U.S. 424 (2016) (29% of the 45 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Travels with: Newton (cosine 0.12, 5 both); Davis (cosine 0.06, 7 both); Marx (cosine 0.02, 6 both)
How later courts describe it (27 parentheticals; groups of similar wording, largest first; other courts' words)

- **14** ("[T]he words of a statute must, be read in their context and with a view to then.- place in the overall statutory scheme.") — *Federal Energy Regulatory Commission v. Barclays Bank PLC, E.D. Cal., 2015*
- **5** (explaining that when Congress uses "different language" in different parts of the same statute, we normally "assume[] different meanings were intended" (quoting Sosa v. Alvarez-Machain, 542 U.S. 692, 711 n.9 (2004)) (internal quotation mark omitted)) — *Caplinger, 10th Cir., 2015*
- **4** (holding that § 906(c) of the Longshore and Harbor Workers' Compensation Act is unambiguous despite disagreement between the Fifth, Ninth, and Eleventh Circuits about its meaning) — *Jesus Ramirez v. Linda Dougherty, 9th Cir., 2017*
- **1** ("The text of § 906(c), standing alone, admits of either interpretation. But 'our task is to fit, if possible, all parts into an harmonious whole.'" (internal citation omitted)) — *United States v. Timothy Ward, 4th Cir., 2020*
- **1** (finding the "presumption overcome because several provisions of the Act would make no sense" if the word "award" had the same meaning across all provisions) — *Hartman, W.D. Va., 2021*
- **1** ("Construing any workers' com- pensation regime to encourage gratuitous confrontation between employers and employees strikes us as unsound.") — *Price v. Stevedoring Services of America, Inc., 9th Cir., 2012*
- **1** (finding that a federal court has subject matter jurisdiction under 15 U.S.C. § 634(b)(1) for Plaintiff's claims arising under the PPP) — *Imaginarium, D. Utah, 2022*

↑

531. Judulang v. Holder

132 S. Ct. 476, SCOTUS, 2011
In 2020-24: cited by 55 decisions (appellate) · in all: 372 · 2021–2025: 92 · weight in the sub-cluster 44
Fit: 59% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 20%)
Good law: green? (read the newest 100 of 387 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Bowman Transp (cosine 0.04, 8 both); State Farm (cosine 0.04, 24 both); Chevron (cosine 0.03, 30 both)
How later courts describe it (86 parentheticals; groups of similar wording, largest first; other courts' words)

- **11** (recognizing that Chevron step two is equivalent to the APA's arbitrary and capricious standard) — *Turtle Island Restoration Network v. United States Department of Commerce, 9th Cir., 2017*
- **6** (rejecting government assertion that regulation "saves time and money" in invalidating an "arbitrary agency policy") — *Armstrong, Tax Ct., 2012*
- **5** ("[U]nder Chevron step two, we ask whether an agency interpretation is "'arbitrary or capricious in substance.'" " (quoting Mayo Found, for Med. Ed. & Research v. United States, 562 U.S. 44,131 S.Ct. 704, 711,178 L.Ed.2d 588 (2011) — *Ingham Regional Medical Center v. United States, Fed. Cl., 2016*
- **5** ("When an administrative agency sets policy, it must provide a reasoned explanation for its action.") — *Am. Bar Ass'n v. U.S. Dep't of Educ., D.C. Cir., 2019*
- **5** (noting that agencies have a duty to engage in "reasoned decisionmaking," which may be found if "the decision was based on

a consideration of the relevant factors" and was not otherwise a "clear error of judgment" (internal quotations and citations omitted)) — *Glines, D.D.C., 2025*

5 (observing that "courts retain a role, and an important one, in ensuring that agencies have engaged in reasoned decisionmaking") — *Tradeways, Ltd v. The United States Department of the Treasury, D. Maryland, 2020*

3 (rejecting alien's argument that two BIA decisions were impermissibly retroactive on the grounds that the agency's "prior practice" in that area of the law was "so unsettled") — *Francisco Garfias-Rodriguez v. Eric Holder, Jr., 9th Cir., 2012*

3 (holding Board of Immigration Appeals' "policy for deciding when resident aliens may apply to the Attorney General for relief from deportation under a now- repealed provision of the immigration laws" was arbitrary and capricious) — *Simmons, D.D.C., 2022*

↑

532. National Mining Association v. Gina McCarthy

758 F.3d 243, D.C. Cir., 2014
In 2020-24: cited by 13 decisions (appellate) · in all: 116 · 2021–2025: 47 · weight in the sub-cluster 5
Fit: 59% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 41%)
Good law: green? (read the newest 100 of 123 citing opinions, filed 2016–2026: status now, not the year it changed)
Travels with: Cal. Cmty. Against Toxics v. Envtl. Prot. Agency (cosine 0.14, 5 both); Appalachian Power Co. v. Environmental Protection Agency (cosine 0.07, 5 both); Perez (cosine 0.05, 8 both)
How later courts describe it (47 parentheticals; groups of similar wording, largest first; other courts' words)

9 ("An agency action that merely explains how the agency will enforce a statute or regulation-in other words, how it will exercise its broad enforcement discretion or permitting discretion under some extant statute or rule-is a general statement of policy.") — *Vidal, E.D.N.Y, 2018*

7 ("The most important factor concerns the actual legal effect (or lack thereof) of the agency action in question on regulated entities.") — *State of Texas v. USA, 5th Cir., 2015*

5 ("When the agency applies a general statement of policy in a particular situation, it must be prepared to support the policy just as if the policy statement had never been issued." (internal brackets omitted)) — *State of Texas v. USA, 5th Cir., 2015*

3 (characterizing the inquiry for determining whether an agency action is a legislative rule, an interpretive rule, or a general statement of policy as "quite difficult and confused") — *Vidal, E.D.N.Y, 2018*

2 ("An agency action that purports to impose legally binding obligations or prohibitions on regulated parties—and that would be the basis for an enforcement action for violations of those obligations or requirements—is a legislative rule.") — *Cissna, D.D.C., 2020*

2 ("The APA divides agency action . . . into three boxes: legislative rules, interpretive rules, and general statements of policy.") — *American Bar Association v. United States Department of Education, D.D.C., 2019*

2 ("[T]he APA does not require notice and comment for interpretive rules, general statements of policy, and rules of organization, procedure, or practice.") — *Weichert, D.D.C., 2020*

2 ("Orn-eases also have looked to post-guidance events to determine whether the agency has applied the guidance as if it were binding on regulated parties.") — *Securities Industry & Financial Markets Ass'n v. United States Commodity Futures Trading Commission, D.D.C., 2014*

↑

533. Americans for Clean Energy v. Environmental Protection Agency

864 F.3d 691, D.C. Cir., 2017
In 2020-24: cited by 8 decisions (appellate) · in all: 21 · 2021–2025: 8 · weight in the sub-cluster 2
Fit: 59% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 41%)
Good law: green? (read the newest 21 of 21 citing opinions, filed 2000–2025: status now, not the year it changed)
Role changed 2020-24: likely successor American Fuel & Petrochemical v. EPA, 937 F.3d 559 (2019) (62% of the 8 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: American Fuel & Petrochemical v. EPA (cosine 0.11, 5 both); State Farm (cosine 0.02, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

2 (first quoting Renewable Fuel Standard Program: Standards for 2014, 2015, and 2016 and Biomass-Based Diesel Volume for 2017, 80 Fed. Reg. 77,420, 77,423 (Dec. 14, 2015); then quoting Monroe Energy, LLC v. EPA, 750 F.3d 909, 917 (D.C. Cir. 2014)) — *Growth Energy v. EPA, D.C. Cir., 2021*

1 (2014, 2015, and 2016 renewable fuel standards) — *Sinclair Wyoming Refining Company LLC v. EPA, D.C. Cir., 2024*

1 ("[T]he Renewable Fuel Program's increasing requirements are designed to force the market to create ways to produce and use greater and greater volumes of renewable fuel each year.") — *Renewable Fuels Association v. EPA, 10th Cir., 2020*

1 (commenting that the EPA's interpretation turned "the Renewable Fuel Program's 'market forcing' provisions on their head") — *Renewable Fuels Association v. EPA, 10th Cir., 2020*

↑

534. Babbitt v. Sweet Home Chapter, Communities for Great Ore.

515 U.S. 687, SCOTUS, 1995
In 2020-24: cited by 41 decisions (appellate) · in all: 569 · 2021–2025: 85 · weight in the sub-cluster 27

Fit: 58% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 19%)
Good law: green (read 507 of 630 citing opinions)
Role changed 2020-24: likely successor ATF, 920 F.3d 1 (2019) (29% of the 41 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (21%)
Travels with: ATF (cosine 0.08, 12 both); Guedes (cosine 0.06, 8 both); Gutierrez-Brizuela (cosine 0.06, 10 both)
How later courts describe it (198 parentheticals; groups of similar wording, largest first; other courts' words)

- **18** (noting that courts should show "reluctance to treat statutory terms as surplusage" in reviewing statutes) — *Bernhardt, D.D.C., 2022*
- **13** (noting that "the degree of regulatory expertise necessary to [the] enforcement" of the Endangered Species Act counseled deference to an agency interpretation) — *Perceira Goncalves v. INS, 1st Cir., 1998*
- **9** (noting that the Court has "never suggested that the rule of lenity should provide the standard for reviewing facial challenges to administrative regulations whenever the governing statute authorizes criminal enforcement") — *CFPB, D.C. Cir., 2018*
- **8** (upholding definition of "harm" in 50 C.F.R. § 17.3) — *Martin, E.D. Wash., 2006*
- **7** ("When it enacted the ESA, Congress delegated broad administrative and interpretative power to the Secretary.") — *Miccosukee Tribe of Indians of Florida v. United States, 11th Cir., 2009*
- **7** (observing that Congress's choice to "explicitly define[]" a statutory term "obviat[es] the need for us to probe its meaning as we must probe the meaning of [] undefined [] term[s]") — *Pennsylvania State Conference of NAACP Branches v. Northampton County Board of Elections, 3rd Cir., 2024*
- **6** ("We have applied the rule of lenity * * * where no regulation was present") — *Rand, Tax Ct., 2013*
- **6** (discussing change in wording in the Endangered Species Act from "willfully" to "knowingly" in order to indicate a general rather than a specific intent crime) — *United States v. Robert Ike George, Also Known as Robert George Ike, Also Known as George Edward Carter, 2d Cir., 2001*

↑

535. Wildearth Guardians v. Sally Jewell

738 F.3d 298, D.C. Cir., 2013
In 2020-24: cited by 17 decisions (appellate) · in all: 159 · 2021–2025: 80 · weight in the sub-cluster 7
Fit: 58% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 42%)
Good law: green? (read the newest 100 of 166 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: FERC (cosine 0.20, 5 both); State Farm (cosine 0.03, 11 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.02, 5 both)
How later courts describe it (34 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** ("A procedural injury claim ... must be tethered to some concrete interest adversely affected by the procedural deprivation .... ") — *National Wildlife Federation v. U.S. Army Corps of Engineers, D.D.C., 2016*
- **4** (finding that affidavits from environmental groups' members "attesting to those members' aesthetic interests in the land... and specific plans to visit the area regularly for recreational purposes" were sufficient to support Article III standing) — *Bernhardt, M.D. La., 2024*
- **3** (members had aesthetic interests in the land surrounding West Antelope II tracts, where an agency had authorized mining that would increase "local air, water and land pollution") — *Lohr, D.D.C., 2024*
- **2** (approving an EIS that took this approach) — *FERC, D.C. Cir., 2017*
- **2** ("Vacatur of the [agency] order would redress [plaintiffs'] injuries because, if the [agency] is required to adequately consider each environmental concern, it could change its mind about authorizing the lease offering.") — *Pollack, D.D.C., 2023*
- **2** ("[C]urrent science does not allow for the specificity demanded" by environmental challengers.) — *FERC, D.C. Cir., 2017*
- **2** (accepting an agency's contention that the "estimated level of [greenhouse-gas] emissions can serve as a reasonable proxy for assessing potential climate change impacts, and provide decision makers and the public with useful information for a reasoned choice among alternatives") — *FERC, D.C. Cir., 2017*
- **2** (describing "an agency's failure to prepare (or adequately prepare) an [Environmental Impact Statement] before taking action with adverse environmental consequences" as an "archetypal procedural injury") — *Bernhardt, D.D.C., 2020*

↑

536. Sullivan v. Finkelstein

496 U.S. 617, SCOTUS, 1990
In 2020-24: cited by 20 decisions (appellate) · in all: 672 · 2021–2025: 228 · weight in the sub-cluster 1
Fit: 58% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.6 Federal Indian law and tribal sovereignty, 42%)
Good law: green? (read the newest 100 of 705 citing opinions, filed 2023–2026: status now, not the year it changed)
Travels with: FCC v. AT&T (cosine 0.04, 7 both)
How later courts describe it (83 parentheticals; groups of similar wording, largest first; other courts' words)

- **16** (finding that a district court's order remanding under sentence four of § 405(g) "terminated the civil action challenging the Secretary's final determination that respondent was not entitled to benefits") — *Basich, M.D. Fla., 2023*

11 (sentence four provides appropriate relief when evidence on record is insufficient to support the Secretary's conclusions and further factfinding is necessary) — *Janet L. FAUCHER, Plaintiff-Appellee, Ronald L. Faucher, Plaintiff, v. SECRETARY OF HEALTH AND HUMAN SERVICES, Defendant-Appellant, 6th Cir., 1994*

5 (acknowledging "all the usual difficulties inherent in relying on subsequent legislative history") — *Wright, SCOTUS, 1992*

4 ("It is true ... that the District Court did not caption its order as a 'judgment,' much less a 'final judgment.' The label used by a District Court of course cannot control the order's appealability....") — *Bruce Clarke & Good Earth Recycling, Inc. v. Mindis Metals, Inc., 6th Cir., 1996*

4 (explaining "each final decision of the [Commissioner] will be reviewable by a separate piece of litigation" in the district court) — *Doris A. Railey v. Kenneth S. Apfel, Commissioner of Social Security, 10th Cir., 1998*

4 (explaining that a remand under sentence six is "appropriate when the district court learns of evidence not in existence or available to the claimant at the time of the administrative proceeding") — *DeGrazio, 7th Cir., 2014*

4 (holding that an order remanding a claim for Social Security benefits pursuant to sentence six of 42 U.S.C. § 405(g) is not a final order) — *Youngblood, D.S.C., 2025*

3 ("the issue before us is not the broad question whether remands to administrative agencies are always immediately appealable") — *Chr. Bjelland Seafoods A/S v. United States International Trade Commission, Fed. Cir., 1993*

↑

537. California Wilderness Coalition v. U.S. Department of Energy

631 F.3d 1072, 9th Cir., 2011

In 2020-24: cited by 14 decisions (appellate) · in all: 69 · 2021–2025: 26 · weight in the sub-cluster 1

Fit: 58% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 42%)

Good law: green? (read the newest 72 of 72 citing opinions, filed 2011–2026: status now, not the year it changed)

Travels with: State Farm (cosine 0.02, 7 both)

How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

5 ("When a court determines that an agency's action failed to follow Congress's clear mandate the appropriate remedy is to vacate that action.") — *East Bay Sanctuary Covenant v. Merrick Garland, 9th Cir., 2021*

2 ("Sanders clarifies that 4 the burden of showing an agency's deviation from the APA was not harmless rests with 5 the petitioner[.]") — *Grand Canyon Trust v. Williams, D. Ariz., 2020*

1 (applying Shinseki prejudice review to rulemaking) — *Agri, 9th Cir., 2015*

1 (courts 19 "must exercise great caution in applying the harmless error rule in the administrative 20 rulemaking context" because "[h]armless error is more readily abused there than in the civil 21 or criminal context") — *Grand Canyon Trust v. Williams, D. Ariz., 2020*

1 ("[W]e note that although the nature of consultation makes it difficult to determine the precise consequences of its absence, the prejudice to the party excluded is obvious.") — *South Carolina v. United States, D.S.C., 2018*

1 (Congress's enactment of a statute requiring agency to consult with states "reflects the desirability of the interactive process itself") — *Devos, N.D. Cal., 2019*

1 (reaffirming Circuit's "consistent case law holding that 'harmless error' requires a determination that the error 'had no bearing on the procedure used or the substance of [the] decision reached'" (alteration in original) — *Southeast Alaska Conservation Council v. United States Forest Service, D. Alaska, 2020*

1 (granting petition for review because "we are left with substantial doubt as to whether [the agency] would have made the same findings had it consulted with the affected" parties) — *Faa, 9th Cir., 2023*

↑

538. Appalachian Power Company v. Environmental Protection Agency, Public Service Electric & Gas Company, Intervenors

135 F.3d 791, D.C. Cir., 1998

In 2020-24: cited by 8 decisions (appellate) · in all: 105 · 2021–2025: 12 · weight in the sub-cluster 1

Fit: 58% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 42%)

Good law: green? (read the newest 100 of 112 citing opinions, filed 2000–2026: status now, not the year it changed)

Role changed 2000-04: likely successor Sierra Club v. United States Environmental Protection Agency, 167 F.3d 658 (1999) (34% of the 32 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)

Travels with: State Farm (cosine 0.02, 7 both)

How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

4 ("Statistical analysis is perhaps the prime example of those areas of technical wilderness into which judicial expeditions are best limited to ascertaining the lay of the land.") — *San Luis & Delta-Mendota Water v. Natural Resources Defense Coun, 9th Cir., 2014*

3 ("Our analysis is guided by the deference traditionally given to agency expertise, particularly when dealing with a statutory scheme as unwieldy and science-driven as the Clean Air Act.") — *American Corn Growers Association v. Environmental Protection Agency, State of Michigan, Department of Environmental Quality, Intervenors, D.C. Cir., 2002*

3 ("[O]ur consideration of EPA's use of computer models proceeds with considerable deference to the agency's expertise.") — *American Corn Growers Association v. Environmental Protection Agency, State of Michigan, Department of Environmental Quality, Intervenors, D.C. Cir., 2002*

2 (upholding the EPA's use of the IPM)
2 (an objection need not be "phrased in exactly the same way in each forum") — *EME Homer City Generation, L.P. v. Environmental Protection Agency, D.C. Cir., 2012*
2 ("the word 'reasonable' cannot be read out of the statute in favor of a hair-splitting approach") — *EME Homer City Generation, L.P. v. Environmental Protection Agency, D.C. Cir., 2012*
2 ("the Calsim II to Dayflow comparison has the potential to introduce significant, if not overwhelming, bias") — *San Luis & Delta-Mendota Water v. Natural Resources Defense Coun, 9th Cir., 2014*
2 (noting that "computer models are a useful and often essential tool for performing the Herculean labors Congress imposed on EPA in the Clean Air Act," and that "their scientific nature does not easily lend itself to judicial review" (internal quotation marks omitted)) — *American Corn Growers Association v. Environmental Protection Agency, State of Michigan, Department of Environmental Quality, Intervenors, D.C. Cir., 2002*

↑

539. Department of Transportation v. Association of American Railroads

575 U.S. 43, SCOTUS, 2015
In 2020-24: cited by 47 decisions (appellate) · in all: 159 · 2021–2025: 64 · weight in the sub-cluster 73
Fit: 58% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 20%)
Good law: green? (read the newest 100 of 176 citing opinions, filed 2019–2026: status now, not the year it changed)
Role changed 2020-24: likely successor Gundy, 588 U.S. 128 (2019) (49% of the 47 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: Association of American Railroads v. United States Depart... (cosine 0.17, 7 both); State of Okla. v. United States (cosine 0.13, 5 both); National Horsemen's Benevolent v. Black (cosine 0.13, 5 both)
How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

3 (holding that, where a constitutional claim is at issue, "the practical reality of federal control and supervision prevails over Congress' disclaimer.") — *Altair Global Credit Opportunities Fund (A), LLC v. United States, Fed. Cl., 2018*
2 ("for purposes of separation-of-powers analysis under the Constitution") — *Biden, SCOTUS, 2023*
2 (apply- ing Lebron v. Nat'l R.R. Passenger Corp., 513 U.S. 374 (1995)) — *The Test for Determining "Officer" Status Under the Appointments Clause, OLC, 2025*
2 ("for pur- poses of the Constitution's separation of powers provisions") — *Biden, SCOTUS, 2023*
2 ("for purposes of determining the constitutional issues presented in this case") — *Biden, SCOTUS, 2023*
2 (remanding for decision as to whether Amtrak unconstitutionally exercised "regulatory authority" over its competitors) — *DOT, D.C. Cir., 2018*
1 (Thomas, J,, concurring in the judgment) — *Association of American Railroads v. United States Department of Transportation, D.C. Cir., 2016*
1 (noting those factors as consistent with governmental control) — *United States Institute of Peace v. Jackson, D.D.C., 2025*

↑

540. United States v. Camp

343 F.3d 743, 5th Cir., 2003
In 2020-24: cited by 10 decisions (appellate) · in all: 15 · 2021–2025: 12 · weight in the sub-cluster 12
Fit: 58% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.11 Second Amendment, 19%)
Good law: green? (read the newest 15 of 15 citing opinions, filed 2015–2024: status now, not the year it changed)
Travels with: William Akins v. United States (cosine 0.51, 8 both); Cargill (cosine 0.13, 6 both); Aposhian (cosine 0.11, 7 both)
How later courts describe it (10 parentheticals; groups of similar wording, largest first; other courts' words)

4 (up- holding classification of fishing reel attached to a rifle trigger that, upon activation, repeatedly operated the curved lever of the rifle) — *Garland v. Cargill Revisions: 6/17/24, SCOTUS, 2024*
2 (using trigger "pull" and "function" interchangeably) — *ATF, D.C. Cir., 2019*
1 (uphold- ing classifcation of fshing reel attached to a rife trigger that, upon activa- tion, repeatedly operated the curved lever of the rife) — *Cargill, SCOTUS, 2024*
1 (using "pull" and "function" synonymously in classifying weapon as a machine gun) — *ATF, D.C. Cir., 2022*
1 (holding that modifying a rifle with a switch, which allowed the weapon to fire until either the shooter released the switch or the loaded ammunition was expended, converted the weapon into a machine gun) — *United States v. Thomas Brooks, II, 7th Cir., 2024*
1 (holding that a switch—which, if flipped, would cause a semi-automatic rifle to fire continuously—is a device that turns an ordinary firearm into a machinegun) — *Cargill, 5th Cir., 2023*

↑

541. Alabama Assn. of Realtors v. Department of Health and Human Servs.

594 U.S. 758, SCOTUS, 2021
In 2020-24: cited by 56 decisions (appellate) · in all: 141 · 2021–2025: 141 · weight in the sub-cluster 36
Fit: 57% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 14%)

Good law: green (read 141 of 141 citing opinions)
Role changed 2025-29: likely successor NFIB, 595 U.S. 109 (2022) (35% of the 20 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: Texas v. United States Environmental Protection Agency (cosine 0.09, 13 both); OSHA (cosine 0.07, 8 both); Brown & Williamson (cosine 0.04, 18 both)
How later courts describe it (31 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (holding CDC's eviction moratorium "intrude[d] into an area that is the particular domain of state law: the landlord-tenant relationship") — *Angela Horton and Kevin Houser v. the Kansas City Southern Railway Company, Tex., 2023*
- **3** ("It would be one thing if Con- gress had specifically authorized the action that the CDC has taken. But that has not happened.") — *State of Florida v. Department of Health and Human Services, 11th Cir., 2021*
- **3** (holding that CDC did not have power to impose nationwide moratorium on the eviction of renters during pandemic) — *Hayslett, W.D. Tenn., 2023*
- **2** ("We expect Congress to speak clearly when authorizing an agency to exercise powers of vast economic and political significance.") — *Biden, E.D. Ky., 2021*
- **2** (applying the doctrine where the Centers for Disease Control and Prevention implemented a nationwide eviction moratorium affecting up to 17 million tenants) — *National Council of Nonprofits v. Office of Management and Budget, D.D.C., 2025*
- **1** (same result for malicious prosecution claim) — *El-Bey, S.D. Ohio, 2023*
- **1** (describing the history of the federal eviction moratorium) — *Jones, D. Maryland, 2022*
- **1** ("Landlord- tenant law is traditionally the province of the states") — *Snead, D. Maryland, 2026*

↑

542. Henson v. Santander Consumer USA Inc.

582 U.S. 79, SCOTUS, 2017
In 2020-24: cited by 105 decisions (appellate) · in all: 556 · 2021–2025: 339 · weight in the sub-cluster 52
Fit: 57% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 8%)
Good law: green (read 502 of 571 citing opinions)
Travels with: Rodriguez (cosine 0.08, 12 both); Wisconsin Central Ltd. v. United States (cosine 0.05, 11 both); William Akins v. United States (cosine 0.04, 7 both)
How later courts describe it (144 parentheticals; groups of similar wording, largest first; other courts' words)

- **38** (holding that a debt purchaser that collects debts for its own account is not a "debt collector" under the FDCPA) — *Tatten, 10th Cir., 2018*
- **30** (noting that typically, "differences in language . . . convey differences in meaning") — *Preemption of State and Local Requirements Under a PREP Act Declaration, OLC, 2021*
- **10** (concluding that loan originators and debt purchasers, alike, are excluded from the FDCPA's definition of a "debt collector" because they are not collecting debts owed to another) — *Dicent, M.D. Penn., 2025*
- **8** ("[W]hile it is of course our job to apply faithfully the law Congress has written, it is never our job to rewrite a constitutionally valid statutory text ....") — *Tree of Life Christian Sch. v. City of Upper Arlington, Ohio, 6th Cir., 2018*
- **5** ("Legislation is, after all, the art of compromise, the limitations expressed in statutory terms often the price of passage") — *Navarro, SCOTUS, 2018*
- **5** (stating that "the proper role of the judiciary" in statutory interpretation is "to apply, not amend, the work of the People's representatives") — *JPMCC 2007-C1 Grasslawn Lodging, LLC v. Transwest Resort Properties Inc. (In Re Transwest Resort Properties, Inc.), 9th Cir., 2018*
- **4** (stating that the statutory "language seems to focus our attention on third party collection agents working for a debt owner—not on a debt owner seeking to collect debts for itself") — *HENDRICKSON, D.N.J., 2025*
- **3** ("[I]t is quite mistaken to assume ... that whatever might appear to further the statute's primary objective must be the law" (internal quotation marks and alterations omitted)) — *Navarro, SCOTUS, 2018*

↑

543. Pension Benefit Guaranty Corporation v. LTV Corp.

496 U.S. 633, SCOTUS, 1990
In 2020-24: cited by 40 decisions (appellate) · in all: 706 · 2021–2025: 67 · weight in the sub-cluster 29
Fit: 57% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 17%)
Good law: green? (read the newest 100 of 774 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Price (cosine 0.15, 10 both); Council For Urological Interes v. Sylvia Mathews Burwell (cosine 0.05, 5 both); Encino Motorcars (cosine 0.03, 11 both)
How later courts describe it (130 parentheticals; groups of similar wording, largest first; other courts' words)

- **22** (cautioning that "subsequent legislative history is a hazardous basis for inferring the intent of an earlier Congress") — *Entitlement to Reservist Differential Pay Under the Preamendment Version of 5 U.S.C. § 5538, OLC, 2010*
- **13** ("Congressional inaction lacks persuasive significance because several equally tenable inferences may be drawn from such inaction, including the inference that the existing legislation already incorporated the offered change.") — *Plascencia, N.D. Cal., 2008*

11 ("[P]ractical agency expertise is one of the principal justifications behind Chevron deference") — *LaBonte, SCOTUS, 1997*

9 (suggesting that the APA, by directing a court to ensure that agency action is not arbitrary or capricious, functionally requires an agency to "take whatever steps it needs" to create a record sufficient to "enable the court to evaluate the agency's rationale at the time of decision")

4 (noting that "courts are not free to impose upon agencies specific procedural requirements that have no basis in the APA" and that informal adjudications are governed by "the minimal requirements . . . set forth in the APA, 5 U.S.C. § 555") — *TSA, D.C. Cir., 2021*

4 (applying Chevron principles to the Pension Benefit Guaranty Corporation's decision to terminate ERISA pension plans) — *State of Georgia, Department of Medical Assistance v. Shalala, 11th Cir., 1994*

3 (Chevron deference appropriate for opinion letters) — *Reich v. Gateway Press, Inc., 3rd Cir., 1994*

3 ("[T]he language of a statute-particularly language expressly granting an agency broad authority-is not to be regarded as modified by examples set forth in the legislative history.") — *Nat'l Veterans Legal Servs. Program v. United States, D.C. Cir., 2018*

↑

544. Connecticut National Bank v. Germain

503 U.S. 249, SCOTUS, 1992
In 2020-24: cited by 165 decisions (appellate) · in all: 2,832 · 2021–2025: 439 · weight in the sub-cluster 69
Fit: 56% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:12.1 Employment discrimination: McDonnell Douglas pretext, 8%)
Good law: green (read 594 of 3,102 citing opinions)
Travels with: Rubin (cosine 0.12, 16 both); Moskal (cosine 0.03, 5 both); BedRoc (cosine 0.03, 15 both)
How later courts describe it (639 parentheticals; groups of similar wording, largest first; other courts' words)

509 (holding that "when the words of a statute are unambiguous, ... 'judicial inquiry is complete' ") — *Robert Reich, Secretary of Labor v. Great Lakes Indian Fish and Wildlife Commission, 7th Cir., 1993*

22 (stating that redundancies are not un usual, and the court should give effect to both statutes so long as there is no "positive repugnancy" (quoting Wood v. United States, 16 Pet. 342, 363, 10 L.Ed. 987 (1842)). . Docket 8 (Deckers Reply Br.) — *Decker, D. Alaska, 2015*

16 (explaining that "canons of construction are no more than rules of thumb that help courts determine the meaning of legislation" (cleaned up)) — *Wynn, N.C., 2023*

10 ("Bankruptcy appeals are governed for the most part by [28 U.S.C.] § 158.") — *In Re: Parks Diversified, L.P., C.D. Cal., 2024*

7 (holding that 28 U.S.C. Sec. 158(d) does not disallow the courts of appeals from hearing interlocutory appeals of district court orders reviewing bankruptcy court decisions) — *In Re Bank Building And Equipment Corporation Of America, Debtor, 8th Cir., 1994*

5 (noting that "[Redundancies across statutes are not unusual events in drafting") — *Corley, SCOTUS, 2009*

4 (explaining that overlapping statutes may be given effect so long as there is no "positive repugnancy" between them) — *Hymas, Fed. Cir., 2016*

3 (for a discussion of the cardinal canon) — *Sklar, Greenstein & Scheer, P.C. v. Commissioner, Tax Ct., 1999*

↑

545. Md. Office of People's Counsel v. Md. Pub. Serv. Comm'n

461 Md. 380, Md., 2018
In 2020-24: cited by 10 decisions (appellate) · in all: 13 · 2021–2025: 9 · weight in the sub-cluster 5
Fit: 56% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:48.3 around Dept. of Env. v. Carroll Cnty. Frederick Cnty. v. Dept. o..., 44%)
Good law: green? (read the newest 13 of 13 citing opinions, filed 2019–2024: status now, not the year it changed)
Role changed 2020-24: likely successor Comptroller, 482 Md. 343 (2022) (60% of the 10 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Also ties to: 2020-24:48 around Blackstone (41%)
Travels with: CWA. (cosine 0.11, 5 both); PSC (cosine 0.11, 5 both); State Farm (cosine 0.04, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("It is true that the public interest is important to nearly everything a utility does.") — *Matter of Md. Off. of People's Counsel, Md. Ct. Spec. App., 2023*

↑

546. Hughes v. Talen Energy Marketing, LLC

578 U.S. 150, SCOTUS, 2016
In 2020-24: cited by 23 decisions (appellate) · in all: 85 · 2021–2025: 37 · weight in the sub-cluster 7
Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.12 Federal preemption, 45%)
Good law: green (read 90 of 90 citing opinions)
Travels with: Electric Power Supply (cosine 0.12, 10 both); Mississippi Power & Light (cosine 0.09, 7 both); Morgan Stanley (cosine 0.04, 6 both)
How later courts describe it (16 parentheticals; groups of similar wording, largest first; other courts' words)

5 ("But Mississippi Power & Light and Nantahala make clear that States interfere with FERC's authority by disregarding interstate wholesale rates FERC has deemed just and reasonable, even when States exercise their traditional authority over retail rates[.]")

— *Mehl, D. Kan., 2025*

3 ("Nothing in this opinion should be read to foreclose . . . States from encouraging production of new or clean generation through measures 'untethered to a generator's wholesale market participation.'") — *FERC, 3rd Cir., 2024*

2 ("Put simply, federal law preempts contrary state law.") — *Dutcher, 10th Cir., 2016*

2 (observing "'the purpose of Congress is the ultimate touchstone in every pre-emption case'") — *Richards, D. Maryland, 2022*

1 (discussing FERC regulation of capacity markets) — *State of North Dakota v. Beverly Heydinger, 8th Cir., 2016*

1 ("We ... need not and do not address the permissibility of various other measures States might employ to encourage development of new or clean generation, including tax incentives, land grants, [and] direct subsidies .... ") — *Zibelman, S.D.N.Y., 2017*

1 ("States, of course, may regulate within the domain Congress assigned to them even when their laws incidentally affect areas within FERC's domain.") — *Allco Fin. Ltd. v. Robert J. Klee, 2d Cir., 2017*

1 (discussing the movement toward divestment of energy monopolies in the late twentieth century) — *Energy Mich., Inc. v. Mich. Pub. Serv. Comm'n, 6th Cir., 2025*

↑

547. BST Holdings, L.L.C. v. OSHA

17 F.4th 604, 5th Cir., 2021

In 2020-24: cited by 20 decisions (appellate) · in all: 51 · 2021–2025: 51 · weight in the sub-cluster 13

Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 21%)

Good law: green? (read the newest 51 of 51 citing opinions, filed 2021–2026: status now, not the year it changed)

Travels with: Texas v. United States Environmental Protection Agency (cosine 0.14, 7 both); Alabama Assn. of Realtors v. Department of Health and Hum... (cosine 0.07, 8 both); NFIB (cosine 0.03, 5 both)

How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[T]he companies seeking a stay in this case will also be irreparably harmed in the absence of a stay, whether by the business and financial effects of a lost or USCA11 Case: 21-14098 Date Filed: 12/06/2021 Page: 90 of 94 46 Judge Lagoa, Dissenting 21-14098 suspended employee.") — *State of Florida v. Department of Health and Human Services, 11th Cir., 2021*

2 ("A person's choice to remain unvaccinated and forgo regular testing is noneco- nomic inactivity. . . . The Commerce Clause power may be expan- sive, but it does not grant Congress the power to regulate noneco- nomic inactivity traditionally within the States' police power.) — *State of Florida v. Department of Health and Human Services, 11th Cir., 2021*

2 ("The States, too, have an interest in seeing their constitutionally reserved police power over public health policy defended from federal overreach.") — *State of Florida v. Department of Health and Human Services, 11th Cir., 2021*

2 ("Any interest [the agency] may claim in enforcing an unlawful . . . [agency action] is illegitimate.") — *Ulloa Lujan v. U.S. Department of Education, W.D. Tex., 2023*

1 (ordering a nationwide stay that included non-parties) — *State of Louisiana v. U S Environmental Protection Agency, W.D. La., 2024*

1 ("The public interest is also served by maintaining our constitutional structure[.]") — *United States v. State of Idaho, 9th Cir., 2023*

1 ("society's interesting in slowing the spread of COVID-19 cannot qualify as compelling forever") — *Poffenbarger, S.D. Ohio, 2022*

1 (observing OSHA's covid vaccine mandate was challenged "in federal courts of appeals across the nation") — *FDA, 5th Cir., 2026*

↑

548. United States v. Montes Miller

75 F.4th 215, 4th Cir., 2023

In 2020-24: cited by 11 decisions (appellate) · in all: 23 · 2021–2025: 23 · weight in the sub-cluster 2

Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:9.4 Texas Anders procedure in the 2020s, incl. parental-termination appeals, 45%)

Good law: green? (read the newest 23 of 23 citing opinions, filed 2023–2026: status now, not the year it changed)

Role changed 2025-29: likely successor United States v. Jarvis Jackson, 127 F.4th 448 (2025) (56% of the 9 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)

Also ties to: 2020-24:9 Anders briefs and appeals without merit (33%)

Travels with: United States v. Trey Campbell (cosine 0.10, 6 both)

How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

2 (holding N.C. Gen Stat. § 90- 95(a)(1) (2021) is a controlled substance offense for purposes of U.S. Sentencing Guidelines Manual §§ 2K2.1(a)(2), 4B1.2(b)) — *United States v. Marcus McDougald, 4th Cir., 2025*

1 ("This cannot be what the Sentencing Commission intended.") — *United States v. Keith Thompson, Jr., 4th Cir., 2024*

1 (holding that N.C. Gen Stat. § 90-95(a)(1), which makes it unlawful for person to sell or possess with intent to sell controlled substance, "is a categorical match" with the definition of a controlled substance offense under the Guidelines) — *United States v. Houston Phillips, 4th Cir., 2025*

↑

549. United States v. American Trucking Associations

310 U.S. 534, SCOTUS, 1940

In 2020-24: cited by 20 decisions (appellate) · in all: 1,873 · 2021–2025: 76 · weight in the sub-cluster 1

Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.4 Substantive due process: family, privacy and reproduction, 45%)

Good law: green? (read the newest 100 of 2,268 citing opinions, filed 2018–2026: status now, not the year it changed)

Role changed 1990-94: likely successor Griffin, 458 U.S. 564 (1982) (33% of the 67 decisions citing this case in 1990-94 also cite it). (co-citation, not the text)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (132 parentheticals; groups of similar wording, largest first; other courts' words)

- **26** (ruling that "[t]here is, of course, no more persuasive evidence of the purpose of a statute than the words by which the legislature undertook to give expression to its wishes") — *ADENIJIi, BIA, 1999*
- **19** ("When aid to construction of the meaning of words, as used in the statute, is available, there certainly can be no 'rule of law' which forbids its use, however clear the words may appear on 'superficial examination'") — *Public Citizen v. United States Department of Justice, SCOTUS, 1989*
- **19** (holding that the function of a court in statutory interpretation is "to construe the language so as to give effect to the intent of Congress.") — *Kelly Schultz v. Secretary of Health and Human Services, Fed. Cl., 2013*
- **14** (holding that where plain meaning produces an "unreasonable result", court will follow purpose, not rule) — *Kilpatrick, Vet. App., 2002*
- **5** (noting that a court's power to interpret the text of a statute is not limited to a "superficial examination" of the text but also includes looking to the purpose of the statute as a whole) — *Blanchard, W.D. Tenn., 2020*
- **5** (asserting that primary purpose in construing a statute is to give effect to congressional intent) — *In Re Sedona Institute, 9th Cir. BAP, 1998*
- **4** (refusing to follow words of statute when absurd or futile results reached) — *In Re Uncle Bud's Inc., Bankr. M.D. Tenn., 1997*
- **4** (explaining that when a court is construing a statute, it should prevent absurd results and constructions that are inconsistent with the policy of the statute as a whole) — *Shull, S.D. Ohio, 2011*

↑

550. Masih v. Mukasey

536 F.3d 370, 5th Cir., 2008
In 2020-24: cited by 15 decisions (appellate) · in all: 46 · 2021–2025: 12 · weight in the sub-cluster 1
Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.4 around Jose Orellana-Monson v. Eric Holder, Jr., 45%)
Good law: green? (read the newest 46 of 46 citing opinions, filed 2008–2026: status now, not the year it changed)
Also ties to: 2020-24:16 Immigration and agency review (45%)
Travels with: L-A-B-R (cosine 0.04, 6 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (reviewing the denial of a continuance for abuse of discretion) — *Elue, 5th Cir., 2022*
- **1** (distinguishing between cases in which alien was statutorily eligible and those in which he was statutory ineligible in determining whether good cause existed) — *Ali Mehndy v. Eric Holder, Jr, U S Attorney, 5th Cir., 2009*

↑

551. Barragan-Lopez v. Mukasey

508 F.3d 899, 9th Cir., 2007
In 2020-24: cited by 12 decisions (appellate) · in all: 42 · 2021–2025: 10 · weight in the sub-cluster 1
Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 45%)
Good law: green? (read the newest 43 of 43 citing opinions, filed 2008–2025: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (45%)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("Barragan-Lopez's own admissions constitute clear, convincing, and unequivocal evidence, and therefore we conclude that the government met its evidentiary burden of demonstrating removability.") — *Roman, 2d Cir., 2009*
- **3** (explaining that when the conviction for solicitation is not for "unspecified criminal conduct," the court considers the "underlying crime[] in determining whether convictions for inchoate offenses constitute crimes involving moral turpitude") — *Espino-Lopez, 9th Cir., 2024*
- **1** (so stating and underscoring just how turpitudinous drug trafficking is) — *Eva Gonzalez Romo v. William Barr, 9th Cir., 2019*
- **1** (crime of solicitation under Arizona law requires consideration of the "underlying crimes" solicited) — *Borislav Zaprianov v. William Barr, 9th Cir., 2020*
- **1** (addressing solicitation to possess over four pounds of marijuana for sale under Arizona law) — *Everton Daye v. U.S. Attorney General, 11th Cir., 2022*
- **1** (concluding that possession of marijuana for sale was a crime of moral turpitude) — *Sara Sanchez-Resendez v. Loretta E. Lynch, 9th Cir., 2015*

↑

552. American Bankers Association v. National Credit Union Administration

934 F.3d 649, D.C. Cir., 2019
In 2020-24: cited by 12 decisions (appellate) · in all: 31 · 2021–2025: 24 · weight in the sub-cluster 1
Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 45%)

Good law: green? (read the newest 31 of 31 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (characterizing remand without vacatur as an "equitable remedy") — *Iap Worldwide Services, Inc. v. United States, Fed. Cl., 2022*
- **1** (remanding, as arbitrary and capricious under 5 U.S.C.S. § 706(2)(A) — *District of Columbia v. U.S. Department of Agriculture, D.D.C., 2020*
- **1** ("An express delegation of definitional power necessarily suggests that Congress did not intend the terms to be applied in their plain meaning sense[.]") — *Seia, 9th Cir., 2023*
- **1** (emphasizing that the sheer "power to [reinstitute] a challenged law is not a sufficient basis on which a court can conclude that a challenge remains live" (quotation marks omitted and alteration by Am. Bankers Assoc. court)) — *Baker, 1st Cir., 2021*
- **1** (deciding mootness question "[b]ased on the government's submission and representations at oral argument" (emphasis added)) — *Jens Porup v. CIA, D.C. Cir., 2021*

↑

553. American Bar Ass'n v. Federal Trade Commission

430 F.3d 457, D.C. Cir., 2005
In 2020-24: cited by 9 decisions (appellate) · in all: 66 · 2021–2025: 12 · weight in the sub-cluster 1
Fit: 55% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 45%)
Good law: green? (read the newest 76 of 76 citing opinions, filed 2006–2024: status now, not the year it changed)
Travels with: Chevron (cosine 0.01, 6 both)
How later courts describe it (9 parentheticals; groups of similar wording, largest first; other courts' words)

- **1** (refusing to affirm agency action based on post hoc rationale) — *Humane Society of the United States v. United States Postal Service, D.D.C., 2009*
- **1** ("[I]f there is the sort of ambiguity that supports an implicit congressional delegation of authority to the agency to make a deference-worthy interpretation of the statute, we must look elsewhere than the [statute's] failure to negate[.]") — *Nacs, D.D.C., 2013*
- **1** ("[I]f Congress intends to alter the usual constitutional balance between the States and the Federal Government, it must make its intention to do so unmistakably clear in the language of the statute." (internal quotations omitted) — *American Bar Ass'n v. Federal Trade Commission, D.D.C., 2009*
- **1** ("Although the district judge never formally ordered the two actions consolidated, he dealt with them together and ultimately disposed of them in a single opinion and order.") — *Mazer, D.D.C., 2022*
- **1** (expressly stating that its holding was not meant to suggest that the federal government could not regulate the practice of law) — *Consumer Financial Protection Bureau v. Frederick J. Hanna & Associates, P.C., N.D. Ga., 2015*
- **1** (whether a federal statute should be interpreted to regulate the practice of law, which has long been regulated at the state level) — *FERC, D.C. Cir., 2007*
- **1** (a court "will uphold the [agency's] interpretation of [an] ambiguous statute if that interpretation is 'permissible,' that is, if it is 'reasonable' ") — *Leavitt, D.D.C., 2008*
- **1** (noting that "the sort of ambiguity giving rise to Chevron deference is a creature not of definitional possibilities, but of statutory context" and declining to defer to an agency's interpretation given the sort of ambiguity at issue (quotation marks and citation omitted)) — *Gordon, 1st Cir., 2015*

↑

554. Natural Resources Defense Council v. Environmental Protection Agency

571 F.3d 1245, D.C. Cir., 2009
In 2020-24: cited by 9 decisions (appellate) · in all: 32 · 2021–2025: 7 · weight in the sub-cluster 3
Fit: 54% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 46%)
Good law: green? (read the newest 34 of 34 citing opinions, filed 2011–2026: status now, not the year it changed)
Travels with: Kennecott Utah Copper Corporation v. United States Depart... (cosine 0.09, 5 both); State Farm (cosine 0.03, 8 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (finding "reasonably available control technology" under the Clean Air Act to be ambiguous) — *Sierra Club v. EPA, 3rd Cir., 2020*
- **1** (remanding without vacating for EPA to "conduct[] a technical analysis") — *Town of Weymouth v. MA Dept. of Envir. Protection, 1st Cir., 2020*
- **1** ("In order to ensure that an agency's decision has not been arbitrary, we require the agency to have identified and explained the reasoned basis for its decision." (internal quotation marks omitted)) — *Natural Res. Def. Council v. Epa, 2d Cir., 2011*
- **1** ("EPA cannot be expected to take [an] argument, raised in support of one specific objection, and apply it sua sponte to another provision.") — *EME Homer City Generation, L.P. v. Environmental Protection Agency, D.C. Cir., 2012*

↑

555. King v. Burwell

135 S. Ct. 2480, SCOTUS, 2015 • note built
In 2020-24: cited by 177 decisions (appellate) · in all: 852 · 2021–2025: 376 · weight in the sub-cluster 146

Fit: 54% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 16%)
Good law: green (read 501 of 918 citing opinions)
Travels with: Industrial Union (cosine 0.09, 8 both); Interstate Commerce Commission v. Cincinnati, New Orleans... (cosine 0.09, 5 both); Brown & Williamson (cosine 0.08, 38 both)
How later courts describe it (282 parentheticals; groups of similar wording, largest first; other courts' words)

- **102** (holding that courts are meant "to construe statutes, not isolated provisions" (internal quotation marks omitted)) — *Kelley, W.D. Okla., 2025*
- **13** ("If the statutory language is plain, the Court must enforce it according to its terms.") — *In re CS Mining, LLC, Bankr. D. Utah, 2017*
- **13** (cautioning that courts should not interpret "statutes to negate their own stated purposes" in interpreting the Patient Protection and Affordable Care Act) — *Bogom-Shanon, Civ. Ct. NYC, NY Cty., 2024*
- **10** ("In a democracy, the power to make the law rests with those cho- sen by the people") — *Consumer Financial Protection Bureau v. Community Financial Services Assn. of America, Ltd., SCOTUS, 2024*
- **9** ("[A] fair reading of legislation demands a fair understanding of the legislative plan.") — *Patrick Hately v. Dr. David Watts, 4th Cir., 2019*
- **7** (adopting a reading of the Affordable Care Act in line with Congress's aim to "improve health insurance markets, not to destroy them") — *Usdoj, 9th Cir., 2017*
- **6** (describing an exchange as "a marketplace that allows people to compare and purchase insurance plans") — *Maine Community Health Options v. United States, Fed. Cl., 2019*
- **5** (finding it "especially unlikely that Congress would have delegated this decision to the /RS, which has no expertise in crafting health insurance policy of this sort') — *Association for Community Affiliated Plans v. United States Department of Treasury, D.D.C., 2019*

↑

556. Natural Resources Defense Council v. Andrew Wheeler

955 F.3d 68, D.C. Cir., 2020
In 2020-24: cited by 12 decisions (appellate) · in all: 45 · 2021–2025: 40 · weight in the sub-cluster 1
Fit: 54% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 46%)
Good law: green? (read the newest 45 of 45 citing opinions, filed 2020–2026: status now, not the year it changed)
Travels with: Perez (cosine 0.04, 7 both)
How later courts describe it (7 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (defining a "legislative rule" as "one that has "legal effect" or, alternately, one that an agency promulgates with the "intent to exercise" its "delegated legislative power" by speaking with the force of law") — *Gregory v. Toler Appraisal Group, LLC, S.D.W. Va, 2023*
- **1** ("[A]n agency's suspension of regulatory requirements ordinarily affects regulated parties' rights or obligations" (cleaned up)) — *Sierra County Commission v. The United States Department of the Interior, D.N.M., 2022*
- **1** (permitting "NRDC to proceed in a representational capacity in an environmental lawsuit") — *Raimondo, D.D.C., 2024*
- **1** (describing an interpretive rule as one that purports to "derive[]" its conclusions from "statute[s]" or other "existing . . . document[s]" that the agency interprets as "compel[ling] or logically justif[ying] the proposition") — *Widakuswara, D.D.C., 2026*
- **1** (finding a rule "published in the Federal Register . . . was the culmination" of an agency's rulemaking process) — *AGRI, D.C. Cir., 2022*
- **1** (explaining that failure to provide notice and comment "is a fundamental flaw that normally requires vacatur of the rule" (quotation omitted)) — *Biden, M.D. Fla., 2022*

↑

557. United States v. Wiltberger

18 U.S. 76, SCOTUS, 1820
In 2020-24: cited by 79 decisions (appellate) · in all: 749 · 2021–2025: 99 · weight in the sub-cluster 70
Fit: 54% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 8%)
Good law: green? (read the newest 100 of 894 citing opinions, filed 2021–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (22%)
Travels with: Crandon (cosine 0.10, 13 both); McBoyle (cosine 0.06, 19 both); Bass (cosine 0.06, 24 both)
How later courts describe it (53 parentheticals; groups of similar wording, largest first; other courts' words)

- **20** (noting "[t]he power of punishment is vested in the legislative, not in the judicial department") — *Com., Va. Ct. App., 2010*
- **11** ("The rule that penal laws are to be construed strictly, is perhaps not much less old than construction itself.") — *Graham, 6th Cir., 2010*
- **5** (holding that the rule of lenity applies to "statutes imposing criminal liability") — *State of Iowa v. Allan Robert Sievers, Iowa, 2025*
- **4** ("probability is not a guide which a court, in construing a penal statute, can safely take.") — *Commonwealth, Aplt v. Kingston, S., Pa., 2016*
- **3** ("The intention of the legislature is to be collected from the words they employ.") — *Powell, Colo., 2007*
- **2** ("The case must be a strong one indeed, which would justify a Court in departing from the plain meaning of words, especially in a penal act, in search of an inten- tion which the words themselves did not suggest.") — *United States v. Timothy Jermaine Pate,*

11th Cir., 2022

2 (noting that the inclusion of the words "owing allegiance" in a statute punishing treason are surplus-age because the concept is implicit in the term) — *Rahman, 2d Cir., 1999*

1 (the "maxim" that "penal laws are to be construed strictly . . . is not to be so applied as to narrow the 6 words of the statute to the exclusion of cases which those words, in their ordinary acceptation, . . . would comprehend.") — *Robertson, D.D.C., 2022*

↑

558. Vartelas v. Holder

132 S. Ct. 1479, SCOTUS, 2012

In 2020-24: cited by 34 decisions (appellate) · in all: 214 · 2021–2025: 59 · weight in the sub-cluster 12

Fit: 54% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 25%)

Good law: green? (read the newest 100 of 228 citing opinions, filed 2017–2026: status now, not the year it changed)

Travels with: Landgraf (cosine 0.06, 19 both); Barnhart (cosine 0.04, 5 both); Martin (cosine 0.03, 5 both)

How later courts describe it (58 parentheticals; groups of similar wording, largest first; other courts' words)

5 (rejecting notion that presumption against retroactivity requires showing of detrimental reliance) — *Koe, Mass., 2017*

4 (implying in dicta that 'clear and convincing evidence' might be the appropriate standard for a determination at the border.") — *Gonzaga-Ortega, 9th Cir., 2012*

3 ("Armed with knowledge that a guilty plea would preclude travel abroad, alien[ ] [defendants] might endeavor to negotiate a plea to a nonexcludable offense") — *United States v. Elizabeth Rodriguez-Vega, 9th Cir., 2015*

3 (holding that an IIRIRA provision was imper- missibly retroactive because it "attached a new disability" to Vartelas's pre-IIRIRA guilty plea and conviction) — *Francisco Garfias-Rodriguez v. Eric Holder, Jr., 9th Cir., 2012*

2 (scope of agencies' inherent reconsideration authority) — *Mexichem Fluor, Inc. v. Environmental Protection Agency, D.C. Cir., 2017*

2 ("The operative presumption, after all, is that Congress intends its laws to govern prospectively only.") — *Jorge Velasquez-Garcia v. Eric Holder, Jr., 7th Cir., 2014*

2 (seemingly suggesting that severity of the effect of a statutory change affects whether an outcome "ranks as a 'new disability.'") — *Lands' End, Inc. v. City of Dodgeville, Wis., 2016*

2 (assuming that respondent "likely relied on then-existing immigration law" in shaping his conduct) — *Carlos Eduardo Rendon v. U.S. Attorney General, 11th Cir., 2020*

↑

559. Encino Motorcars, LLC v. Navarro

584 U.S. 79, SCOTUS, 2018

In 2020-24: cited by 107 decisions (appellate) · in all: 408 · 2021–2025: 265 · weight in the sub-cluster 26

Fit: 54% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)

Good law: green (read 410 of 410 citing opinions)

Travels with: Woods (cosine 0.09, 11 both); Kdfw-Tv (cosine 0.04, 6 both); Reiter (cosine 0.03, 6 both)

How later courts describe it (81 parentheticals; groups of similar wording, largest first; other courts' words)

12 (explaining that the word "or" is "almost always disjunctive") — *State of Tennessee v. Bryan Anthony Capps, Tenn. Crim. App., 2024*

10 (noting that "'or' is 'almost always disjunctive'" (quoting United States v. Woods, 571 U.S. 31, 45 (2013)) — *Ready for Ron v. Federal Election Commission, D.D.C., 2023*

6 (emphasizing that courts "have no license to give the exemption[s] anything but a fair reading") — *Hewitt, 5th Cir., 2021*

4 ("If the text is clear, it needs no repetition in the legislative history . . . .") — *3M Company and Subsidiaries, Tax Ct., 2023*

3 ("[S]ilence in the legislative history, no matter how clanging, cannot defeat the better reading of the text and statutory context.") — *Facebook Inc. v. Daron Wint, D.C., 2019*

3 ("Unsurprisingly, statutory context can overcome the ordinary, disjunctive meaning of 'or.'") — *United States v. Julian Garcon, 11th Cir., 2021*

3 (declining to construe exemptions from the FLSA narrowly and explaining that "[t]he narrow-construction principle relies on the flawed premise that the FLSA "'pursues'" its remedial purpose "'at all costs.'") — *XIAO, W.D. Pa., 2022*

3 (rejecting "the principle that exemptions to the FLSA should be construed narrowly ... as a useful guidepost for interpreting the FLSA") — *Buehlman, W.D.N.Y., 2018*

↑

560. United States v. Bass

404 U.S. 336, SCOTUS, 1971

In 2020-24: cited by 82 decisions (appellate) · in all: 1,424 · 2021–2025: 103 · weight in the sub-cluster 85

Fit: 53% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 7%)

Good law: yellow 2016 (read 639 of 1,738 citing opinions)

2016 (M.C.): strong "superseded" — *Al-Nashiri*: . Bond v. United States, — U.S. -, 134 S.Ct. 2077, 2089, 189 L.Ed.2d 1 (2014) (citing United States v. Bass, [404 U.S. 336, 351351], 92 S.Ct. 515, 30 L.Ed.2d 488 (1971), superseded in part by statute Firearms Owners' Protection Act, Pub. L. No. 99-308

Role changed 1995-99: likely successor Lopez, 514 U.S. 549 (1995) (39% of the 155 decisions citing this case in 1995-99 also cite

it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (28%)
Travels with: Crandon (cosine 0.08, 9 both); Granderson (cosine 0.08, 5 both); Bell v. United States (cosine 0.08, 5 both)
How later courts describe it (225 parentheticals; groups of similar wording, largest first; other courts' words)

- **32** (noting policy that "unless Congress conveys its purpose clearly, it will not be deemed to have significantly changed the federal-state balance. Congress has traditionally been reluctant to define as a federal crime conduct readily denounced as criminal by the States.") — *United States v. Photogrammetric Data Services, Incorporated, United States of America v. David G. Webb, 4th Cir., 2001*
- **31** (stating that "ambiguity concerning the ambit of criminal statutes should be resolved in favor of lenity") — *Wright, 10th Cir., 2006*
- **24** (noting that "criminal punishment usually represents the moral condemnation of the community") — *Sherri Williams v. Attorney General of Alabama, 11th Cir., 2004*
- **10** (recognizing that "courts should interpret a statute with an eye to the surrounding statutory landscape and an ear for harmonizing potentially discordant provisions.") — *Robert P. Conrad, Jr. and Lisa Lanocha Conrad, Bankr. M.D. Penn., 2019*
- **9** (explaining that in "legislation affecting the federal balance, the requirement of clear statement assures that the legislature has in fact faced, and intended to bring into issue, the critical matters involved in the judicial decision.") — *Consolidated Doors, Inc. v. Mid-America Door Co., E.D. Wis., 2000*
- **8** (reliance on the rule of lenity should occur only if "[ajfter 'seizfing] every thing from which aid can be derived,' " a court is left with an ambiguous statute) — *United States v. Andre Cruz, A/K/A Anthony Torres, A/K/A Anthony Zayas, Andre Cruz, 3rd Cir., 1997*
- **7** ("[W]hen choice has to be made between two readings of what conduct Congress has made a crime, it is appropriate, before we choose the harsher alternative, to require that Congress should have spoken in language that is clear and definite.") — *United States v. James Cabaccang, United States of America v. Richard T. Cabaccang, United States of America v. Roy Toves Cabaccang, 9th Cir., 2003*
- **6** (requiring that "Congress convey[] its purpose clearly" before courts find Congress intends "to effect a significant change in the sensitive relation between federal and state criminal jurisdiction") — *In Re the Marriage of quijada/dominguez, Ariz., 2024*

↑

561. Yakus v. United States

321 U.S. 414, SCOTUS, 1944
In 2020-24: cited by 67 decisions (appellate) · in all: 1,678 · 2021–2025: 115 · weight in the sub-cluster 44
Fit: 53% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.2 Federal plain-error review (Fifth Circuit), 26%)
Good law: green? (read the newest 100 of 1,934 citing opinions, filed 2021–2026: status now, not the year it changed)
Role changed 2010-14: likely successor Puckett, 556 U.S. 129 (2009) (33% of the 69 decisions citing this case in 2010-14 also cite it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (31%)
Travels with: NBC v. USA (cosine 0.14, 9 both); Grimaud (cosine 0.11, 5 both); Touby (cosine 0.08, 8 both)
How later courts describe it (158 parentheticals; groups of similar wording, largest first; other courts' words)

- **57** (holding that a claim may be forfeited if it is not timely asserted) — *Lezell, D.C. Cir., 2016*
- **31** (holding that Emergency Price Control Act of 1942 did not unconstitutionally delegate the legislative power of Congress) — *Kamplain v. Curry County Board Of Commissioners, 10th Cir., 1998*
- **6** (upholding statute giving agency power to set prices that "will be generally fair and equitable")
- **4** (adoption of wartime price regulations) — *Goldberg, SCOTUS, 1970*
- **3** ("The award of an interlocutory injunction by courts of equity has never been regarded as strictly a matter of right, even though irreparable injury may otherwise result to the plaintiff.") — *Wreal, LLC v. Amazon.com, Inc., 11th Cir., 2016*
- **3** ("Congress is not confined to that method of exercising its policy which involves the least possible delegation of discretion to administrative officers.") — *Ruiz-Villanueva, S.D. Cal., 1988*
- **3** (standards were "sufficiently definite and precise to enable . . . the public to ascertain . . . conform[ity]") — *Clinton, SCOTUS, 1998*
- **3** (holding that Congress "gave clear indication that the validity of the Administrator's regulations or orders should not be subject to attack in criminal prosecutions") — *In Re John H. McBryde U.S. District Judge, 5th Cir., 1997*

↑

562. Department of Homeland Security v. Regents of Univ. of Cal.

140 S. Ct. 1891, SCOTUS, 2020 • note built
In 2020-24: cited by 148 decisions (appellate) · in all: 440 · 2021–2025: 360 · weight in the sub-cluster 147
Fit: 52% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 19%)
Good law: green (read 440 of 440 citing opinions)
Travels with: Michigan v. EPA (cosine 0.15, 32 both); State Farm (cosine 0.10, 65 both); Richard A. Batterton, Secretary of Employment & Social Se... (cosine 0.08, 5 both)
How later courts describe it (138 parentheticals; groups of similar wording, largest first; other courts' words)

- **17** (holding that an agency "must defend its actions based on the reasons it gave when it acted" and not on post hoc rationalizations) — *Palmer v. Montana Department of Health and Human Services, D. Mont., 2024*

6 ("It is a foundational principle of administrative law that judicial review of agency action is limited to the grounds that the agency invoked when it took the action." (cleaned up)) — *Ross, D.D.C., 2021*

4 ("Permitting agencies to invoke belated justifications . . . can upset the orderly functioning of the process of review, forcing both litigants and courts to chase a moving target.") — *Bernhardt, D. Mont., 2022*

4 (holding that reliance interests "must be taken into account") — *Bonney Forge Corp. v. United States, Ct. Intl. Trade, 2023*

4 ("Making that difficult decision was the agency's job, but the agency failed to do it.") — *FDA, 5th Cir., 2023*

3 (applying arbitrary and capricious review to the decision to rescind the Deferred Action for Childhood Arrivals (DACA) program) — *Trump, D. Or., 2020*

2 ("Section 1252(g) is . . . narrow.") — *D.A.M., D.D.C., 2020*

2 ("§ 1252(b)(9) does not present a jurisdictional bar where those bringing suit are 28 not asking for review of an order of removal, the decision to seek removal, or the process by which removability will be determined.") — *Munoz, D. Ariz., 2020*

↑

563. Gustavo Monteon-Camargo v. William Barr, U. S. Att

918 F.3d 423, 5th Cir., 2019

In 2020-24: cited by 33 decisions (appellate) · in all: 43 · 2021–2025: 30 · weight in the sub-cluster 8

Fit: 52% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.4 around Jose Orellana-Monson v. Eric Holder, Jr., 25%)

Good law: green? (read the newest 43 of 43 citing opinions, filed 2019–2026: status now, not the year it changed)

Also ties to: 2020-24:16 Immigration and agency review (31%)

Travels with: Obeya (cosine 0.15, 5 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.03, 7 both); Landgraf (cosine 0.01, 5 both)

How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("Generally speaking, a [party] waives an issue if he fails to adequately brief it." (quoting United States v. Martinez, 263 F.3d 436, 438 (5th Cir. 2001))) — *Laird, 5th Cir., 2025*

2 ("Generally speaking, a [party] waives an issue if he fails to adequately brief it." (alteration in original) — *Oldham, 5th Cir., 2025*

1 ("Federal Rule of Appellate Procedure 28(a)(8)(A) instructs a party to brief his 'contentions and the reasons for them, with citations to the authorities and parts of the record on which the [party] relies.'" (alteration in original)) — *Israel, 5th Cir., 2020*

1 ("An alien fails to exhaust his administrative remedies with respect to an issue when the issue is not raised in the first instance before the BIA." (citation omitted)) — *Rodriguez-Velasquez, 5th Cir., 2024*

1 (noting that failure to adequately brief an issue on appeal can constitute waiver of that argument) — *OSHC, 5th Cir., 2021*

↑

564. United States v. Montalvo-Murillo

495 U.S. 711, SCOTUS, 1990

In 2020-24: cited by 21 decisions (appellate) · in all: 207 · 2021–2025: 26 · weight in the sub-cluster 6

Fit: 52% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:4.6 around Mathews, 26%)

Good law: green? (read the newest 100 of 231 citing opinions, filed 2011–2026: status now, not the year it changed)

Also ties to: 2020-24:4 Federal civil-rights litigation: immunity, pleading, summary judgment (33%)

Travels with: Brock (cosine 0.16, 6 both); Barnhart (cosine 0.10, 6 both)

How later courts describe it (79 parentheticals; groups of similar wording, largest first; other courts' words)

9 (missed deadline for holding bail detention hearing does not require judge to release defendant) — *Dolan, SCOTUS, 2010*

5 (use of word "shall" in context of bail hearing makes duty "mandatory" but does not mean that the "sanction for breach" is "loss of all later powers to act") — *Dolan, SCOTUS, 2010*

5 (refusing to "invent a remedy to satisfy some perceived need to coerce the courts and the Government into complying with the statutory time limits") — *Roland, Tex., 1998*

5 (holding that the government may detain criminal defendants leading up to trial even if they do not comply with the relevant statute's command that a judicial officer "shall" hold a bail hearing "immediately upon the person's first appearance" before the officer) — *Lora, 2d Cir., 2015*

4 ("There is no presumption or general rule that for every duty imposed upon the court or the Government and its prosecutors there must exist some corollary punitive sanction for departures or omissions, even if negligent.")

4 (concerning whether failure to comply with the prompt hearing provision of the Bail Reform Act of 1984 requires release) — *Ramirez, S.D. Tex., 2025*

4 (emphasizing that defendant was not prejudiced by court's failure to hold hearing in conformity with Bail Reform Act's timing requirements) — *Dolan, 10th Cir., 2009*

3 ("there is no reason to bestow upon the defendant a windfall and to visit upon the Government and the citizens a severe penalty by mandating release of possibly dangerous defendants every time some deviation from the strictures of 3142(f) occurs") — *Joost, 1st Cir., 1994*

↑

565. City of Chicago v. Jefferson B. Sessions III

888 F.3d 272, 7th Cir., 2018

In 2020-24: cited by 11 decisions (appellate) · in all: 51 · 2021–2025: 4 · weight in the sub-cluster 15
Fit: 52% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 33%)
Good law: yellow? (read the newest 51 of 51 citing opinions, filed 2018–2022: status now, not the year it changed)
2018 (S.D. Ill.): strong "vacated" — *State v. U.S. Dep't of Justice*: The Court notes that the label of "sanctuary" cities or states "is commonly misunderstood." City of Chicago v. Sessions, [888 F.3d 272], 281 (7th Cir. 2018), vacated in part, No. 17-2991, 2018 WL 4268814 (7th Cir. Aug. 10, 2018). Although Defendants claim
Role changed 2020-24: likely successor East Bay Sanctuary Covenant v. William Barr, 934 F.3d 1026 (2019) (55% of the 11 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)
Travels with: City of Philadelphia v. Attorney General United States (cosine 0.35, 8 both); Louisiana Pub. Serv. Comm'n v. FCC (cosine 0.05, 6 both); Dole (cosine 0.05, 6 both)
How later courts describe it (43 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** (noting that "[a] clause in a catch-all provision at the end of a list of explicit powers would be an odd place indeed to put a sweeping power to impose any conditions on any grants") — *Allen, 7th Cir., 2018*
- **3** (ruling as to Notice and Access Conditions) — *New York v. United States Dep't of Justice, 2d Cir., 2020*
- **3** (detailing the Attorney General's express grants of authority and concluding that none approach the purported authority to "impose conditions that require states or local governments to assist in immigration enforcement") — *Trump, D. Or., 2019*
- **3** (concluding that the district court did not "abuse[ ] its discretion in determining that the scope of the injunction should be nationwide") — *Trump, D.C. Cir., 2018*
- **2** ("Our role in this case is not to assess the optimal immigration policies for our country.") — *City of Chi. v. Sessions, E.D. Ill., 2018*
- **2** (expressing "no opinion" as to the denial of the Compliance Condition) — *City of Chi. v. Sessions, E.D. Ill., 2018*
- **2** (noting the term is "commonly misunderstood" and does not accurately describe the effect of such policies) — *City of Chi. v. Sessions, E.D. Ill., 2018*
- **2** (finding it noteworthy that "the City is obligated to apply for Byrne JAG funds not only for itself but for eleven neighboring localities.") — *City & Cnty. of S.F. v. Sessions, N.D. Cal., 2018*

↑

566. Field v. Clark

143 U.S. 649, SCOTUS, 1892
In 2020-24: cited by 20 decisions (appellate) · in all: 772 · 2021–2025: 35 · weight in the sub-cluster 16
Fit: 52% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 20%)
Good law: green? (read the newest 100 of 885 citing opinions, filed 2010–2026: status now, not the year it changed)
Role changed 1935-39: likely successor Ryan, 293 U.S. 388 (1935) (40% of the 45 decisions citing this case in 1935-39 also cite it). (co-citation, not the text)
Travels with: Wayman (cosine 0.08, 6 both); Industrial Union (cosine 0.05, 5 both); Department of Transportation v. Association of American R... (cosine 0.04, 6 both)
How later courts describe it (40 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** ("That congress cannot delegate legislative power to the president is a principle universally recognized as vital to the integrity and maintenance of the system of government ordained by the constitution.") — *Hinen, W.D. Va., 2007*
- **4** (deeming "forbidden by the respect due to a coordinate branch of the government" "[judicial action" requiring a belief in a "deliberate conspiracy" by the Senate and House of Representatives "to defeat an expression of the popular will") — *Zivotofsky, SCOTUS, 2012*
- **4** (holding that an enrolled bill is conclusive evidence of its validity; refusing to evaluate the process or rules by which it reached that point) — *Hinrichs, 7th Cir., 2007*
- **2** (historically in the flexible tariff statutes Congress has "invest[ed] the President with large discretion") — *Clinton, SCOTUS, 1998*
- **2** ("[N]o valid objection can be made" to such statutes "conferring authority or discretion" on the President) — *Clinton, SCOTUS, 1998*
- **2** (President's power to raise tariff rates " was a part of the law itself, as it left the hands of Congress " (emphasis added)) — *Clinton, SCOTUS, 1998*
- **2** (rejecting challenge to validity of tariff act, despite evidence that rebate provisions approved by both chambers of Congress had improperly been omitted from enrolled bill presented to and signed by the President) — *Whether Bills May Be Presented by Congress and Returned by the President by Electronic Means, OLC, 2011*
- **2** (stating it is "the duty of this court, from the performance of which it may not shrink, to give full effect to the provisions of the Constitution relating to the enactment of laws") — *Caulkins, Ill., 2023*

↑

567. Wisconsin Central Ltd. v. United States

585 U.S. 274, SCOTUS, 2018
In 2020-24: cited by 121 decisions (appellate) · in all: 273 · 2021–2025: 207 · weight in the sub-cluster 90
Fit: 51% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 11%)
Good law: green (read 278 of 278 citing opinions)
Travels with: Perrin (cosine 0.19, 34 both); Henson (cosine 0.05, 11 both); FCC v. AT&T (cosine 0.04, 7 both)

How later courts describe it (55 parentheticals; groups of similar wording, largest first; other courts' words)

17 (explaining that we "interpret . . . words consistent with their ordinary meaning," using dictionary definitions to aid in this task (internal quotation marks omitted)) — *United States v. Lonnel Porter, 8th Cir., 2021*

10 (recognizing that courts usually presume that differences in language of companion statutes convey differences in meaning) — *Hoops, S.D.W. Va, 2022*

3 ("every statute's meaning is fixed at the time of enactment") — *Scott McLaughlin v. Anne Precythe, 8th Cir., 2021*

2 ("Congress alone has the institutional competence, democratic legitimacy, and (most importantly) — *Reese, W.D. Mo., 2021*

2 ("Congress alone has the . . . constitutional authority to revise statutes . . . . Until it exercises that power, the people may rely on the original meaning of the written law.") — *United States v. James Kerns, 6th Cir., 2021*

2 ("The problem with the government's and the dissent's position today is not that stock and stock options weren't common in 1937, but that they were not then-and are not now-recognized as mediums of exchange.") — *Espinoza, Fla. Dist. Ct. App., 2019*

2 (looking to dictionary definition in determining ordinary meaning of a statutory phrase) — *United States v. Matthew Bryan Caniff, 11th Cir., 2019*

2 (looking to the "broader statutory context" for confirmation of the ordinary meaning of a term at the time of a statute's enactment) — *McDonnell, E.D. Mo., 2022*

↑

568. Whitman v. American Trucking Assns., Inc.

531 U.S. 457, SCOTUS, 2001 • note built

In 2020-24: cited by 242 decisions (appellate) · in all: 1,259 · 2021–2025: 402 · weight in the sub-cluster 280

Fit: 51% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 12%)

Good law: green (read 572 of 1,410 citing opinions)

Travels with: J. W. Hampton, Jr., & Co. v. United States (cosine 0.10, 22 both); NBC v. USA (cosine 0.08, 11 both); Department of Transportation v. Association of American R... (cosine 0.08, 24 both)

How later courts describe it (362 parentheticals; groups of similar wording, largest first; other courts' words)

191 (recognizing that Congress "does not alter the fundamental details of a regulatory scheme in vague terms or ancillary provisions") — *Home Confinement of Federal Prisoners After the COVID-19 Emergency, OLC, 2021*

12 (ruling that an agency "may not construe the statute in a way that completely nullifies textually applicable provisions meant to limit its discretion") — *Garcia Ramirez v. U.S. Immigration and Custom Enforcement, D.D.C., 2025*

8 ("Words that can have more than one meaning are given content, however, by their surroundings.") — *Decicco, 1st Cir., 2006*

7 ("[T]he interpretive role of the title" is to "shed light on some ambiguous word or phrase in the statute itself." (quotation and alteration omitted)) — *Rohrbough, 10th Cir., 2008*

7 (refusing to "find implicit in ambiguous sections of the [Clean Air Act] an authorization to consider costs that has elsewhere, and so often, been expressly granted.") — *Alliance for Community Media v. Federal Communications Commission, 6th Cir., 2008*

6 (noting that Congress delegates constitutionally when it "lay[s] down by legislative act an intelligible principle to which the person or body authorized to [act] is directed to conform.") — *United States v. Terry Dahl, 9th Cir., 2002*

5 (upholding delegation to EPA to regulate "ambient air quality standards the attainment and maintenance of which in the judgment of the Administrator . . . are requisite to protect the public health") — *FDA, 5th Cir., 2020*

5 (acknowledging that "the degree of agency discretion that is acceptable varies according to the scope of the power congressionally conferred") — *Earl, E.D. Tex., 2021*

↑

569. Huddleston v. United States

415 U.S. 814, SCOTUS, 1974

In 2020-24: cited by 19 decisions (appellate) · in all: 364 · 2021–2025: 26 · weight in the sub-cluster 11

Fit: 51% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.17 around United States v. Larry E. Stott, Jr., Robert A. Gaughan, ..., 34%)

Good law: green? (read the newest 100 of 421 citing opinions, filed 2010–2025: status now, not the year it changed)

Role changed 1995-99: likely successor Lopez, 514 U.S. 549 (1995) (26% of the 38 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (33%)

Travels with: Chapman (cosine 0.12, 5 both); Moskal (cosine 0.05, 7 both); Wiltberger (cosine 0.05, 5 both)

How later courts describe it (54 parentheticals; groups of similar wording, largest first; other courts' words)

11 (concluding that the "principal purpose" of the Act was "to prevent those deemed too dangerous or irresponsible due to age, criminal background, or incompetency from obtaining firearms and ammunition") — *Boles, M.D.N.C., 2014*

3 ("acquire" defined as "possession" or "control") — *American Medicorp, Inc., Appellees/cross-Appellants v. Richard S. Schweiker, Appellant/cross-Appellee, 9th Cir., 1983*

3 (ambiguity concerning ambit of criminal statutes should be resolved in favor of lenity) — *United States of America, Appellee-Cross-Appellant v. Plaza Health Laboratories, Inc., Geronimo Villegas, Defendant-Appellant-Cross-Appellee, 2d Cir., 1993*

3 ("Although penal laws are to be construed strictly, they 'ought not be construed so strictly as to defeat the obvious intention of the legislature.' ") — *United States v. William Waldo Emerson, United States of America v. Scott Wollman, United States of America v. Bruce Ehrlich, 9th Cir., 1988*

3 (discussing legislative history of § 922 in context of appeal from a criminal prosecution for unlawful possession) — *Shirley, Kan. Ct. App., 2010*

2 ("acquisition" of firearm held to include redemption from pawnshop) — *United States v. Jeffrey Otherson, United States of America v. Bruce Brown, 9th Cir., 1981*

2 ("other disposition" refers to the means by which a firearm can be transferred other than by "sale" or "delivery," such as "through a redemptive transaction") — *Timperio, S.D. Ill., 2019*

2 ("Reduced to a minimum, § 922(a)(6) relates to any false statement made 'in connection with the acquisition ... of a firearm' from a licensed dealer .... ") — *Dulal-Whiteway, 2d Cir., 2007*

↑

570. United States v. Butler

297 U.S. 1, SCOTUS, 1936
In 2020-24: cited by 27 decisions (appellate) · in all: 706 · 2021–2025: 51 · weight in the sub-cluster 4
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.5 Ballot access and election regulation: Anderson-Burdick, 25%)
Good law: green? (read the newest 100 of 822 citing opinions, filed 2012–2026: status now, not the year it changed)
Role changed 2000-04: likely successor College Savings Bank v. Florida Prepaid Postsecondary Edu..., 527 U.S. 666 (1999) (32% of the 31 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Travels with: Dole (cosine 0.08, 5 both); NFIB (cosine 0.01, 5 both)
How later courts describe it (79 parentheticals; groups of similar wording, largest first; other courts' words)

29 (explaining "[t]hese words cannot be meaningless, else they would not have been used") — *Woolley, M.D. Penn., 2023*

6 ("There is an obvious difference between a statute stating the conditions upon which moneys shall be expended and one effective only upon assumption of a contractual obligation to submit to a regulation which otherwise could not be enforced.") — *Commonwealth of Virginia Department of Education v. Riley, 4th Cir., 1997*

6 ("A tax, in the general understanding of the term, and as used in the Constitution, signifies an exaction for the support of the Government") — *Rosenberger, SCOTUS, 1995*

5 (striking down part of the Agricultural Adjustment Act that imposed taxes on agricultural processors under the Tenth Amendment) — *Gila River Indian Community v. United States, 9th Cir., 2012*

3 (striking provisions of the Agricultural Adjustment Act)

2 (Stone, Brandéis, & Cardozo, JJ., dissenting) — *Garcia, Tex. App.-San Antonio, 1993*

2 (Justice Story's "reading . . . is the correct one") — *Medina, SCOTUS, 2025*

2 (spending power does not authorize Congress to subsidize farmers) — *New York v. United States, SCOTUS, 1992*

↑

571. State ex rel. Holdridge v. Industrial Commission

11 Ohio St. 2d 175, Ohio, 1967
In 2020-24: cited by 10 decisions (appellate) · in all: 62 · 2021–2025: 9 · weight in the sub-cluster 3
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:7.7 around Guyton, 50%)
Good law: green? (read the newest 67 of 67 citing opinions, filed 1968–2026: status now, not the year it changed)
Also ties to: 2020-24:7 Ohio criminal appeals: sufficiency and manifest weight (28%)
Travels with: Landgraf (cosine 0.05, 5 both)
How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("It is doubtful if a perfect definition of 'substantive law' or 'procedural or remedial law' could be devised.") — *State ex rel. Prinkey v. Emerine's Towing, Inc., Ohio Ct. App., 2024*

1 ("in general terms, [a] substantive law is 1. The strikethrough language represents what S.B. 175 deleted from R.C. 2901.09, while the underlined language represents what S.B. 175 added to it. 8 January Term, 2024 that which creates duties, rights, and obligations") — *Miree, Ohio, 2024*

1 (the court found that where the amendment at issue affected "only the manner of arriving at a fact conclusion, upon which the substantive law would operate, it was itself procedural or remedial rather than substantive.") — *Pitts, Ohio Ct. App., 2020*

1 (stating that because the "prima facie proof factor concerned only the manner of arriving at a fact conclusion, upon which the substantive law would operate, it was itself procedural or remedial rather than substantive") — *State ex rel. Prinkey v. Emerine's Towing, Inc., Ohio Ct. App., 2024*

↑

572. National Labor Relations Board v. United Food & Commercial Workers Union, Local 23

484 U.S. 112, SCOTUS, 1987
In 2020-24: cited by 24 decisions (appellate) · in all: 460 · 2021–2025: 44 · weight in the sub-cluster 2
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.5 Ballot access and election regulation: Anderson-Burdick, 25%)
Good law: green? (read the newest 100 of 523 citing opinions, filed 2008–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (25%)
Travels with: Beth Israel Hospital v. National Labor Relations Board (cosine 0.06, 5 both); Chevron (cosine 0.01, 5 both)
How later courts describe it (74 parentheticals; groups of similar wording, largest first; other courts' words)

15 (stating that the primary task of a court engaging in statutory construction is to "determine congressional intent, using traditional tools of statutory construction") — *Northern Colorado Water Conservancy District v. United States, Fed. Cl., 2009*

6 (stating that a court should "consider the consistency with which an agency interpretation has been applied, and whether the interpretation was contemporaneous with the enactment of the statute being construed") — *Davis, Fed. Cl., 2001*

5 (explaining that Chevron deference to agency interpretations of statutes applies only to regulations "promulgated pursuant to congressional authority") — *Kolev, 9th Cir., 2011*

5 (stating that courts owe deference to agency interpretation "as long as [ ] interpretation is rational and consistent with statute")

3 (noting "General Counsel's unreviewable discretion to file and withdraw a complaint") — *National Labor Relations Board v. G&t Terminal Packaging Co., Inc., Mr. Sprout, Inc., Chain Trucking, Inc., Tray Wrap, Inc., and Slow Pack, Inc., 2d Cir., 2001*

3 (quoting, respectively, INS v. Cardoza-Fonseca, 107 S.Ct. 1207, 1221 (1987) and Chevron, U.S.A. v. Natural Resources Defense Council, 467 U.S. 837, 843, 104 S.Ct. 2778, 2781-82, 81 L.Ed.2d 694 (1984)) — *Conecuh-Monroe Community Action Agency v. Otis R. Bowen, Secretary, United States Department of Health & Human Services, D.C. Cir., 1988*

3 (explaining that "the General Counsel's approval of a determination not to file an unfair labor practice complaint is not subject to judicial review") — *Zak Shimose v. Ilwu, Local 142, 9th Cir., 2026*

2 (discussing legislative history and contemporaneous agency interpretation) — *No. 90-1503, D.C. Cir., 1991*

↑

573. Sinclair Wyo. Ref. Co. v. U.S. Envtl. Prot. Agency

887 F.3d 986, 10th Cir., 2017

In 2020-24: cited by 12 decisions (appellate) · in all: 20 · 2021–2025: 15 · weight in the sub-cluster 1

Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 50%)

Good law: green? (read the newest 20 of 20 citing opinions, filed 2018–2025: status now, not the year it changed)

Travels with: Chevron (cosine 0.01, 5 both)

How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

2 (holding EPA could not consider only the long-term viability of the refinery when determining whether it faced an economic hardship) — *Sinclair Wyoming Refining Company LLC v. EPA (PUBLIC AMENDED OPINION), D.C. Cir., 2024*

1 ("Indeed, the [EPA's] decisions have no precedential value even for the refiner , since each petition must be resolved on a case-by-case basis ....") — *Ergon-W. Va., Inc. v. U.S. Envtl. Prot. Agency, 4th Cir., 2018*

1 (defining hardship as "something that 'makes one's life hard or difficult'" (citation omitted)) — *Sinclair Wyoming Refining Company LLC v. EPA (PUBLIC AMENDED OPINION), D.C. Cir., 2024*

1 (noting that Chevron deference is generally appropriate for agency interpretations produced by informal notice-and- comment rulemaking) — *Bains, M.D. Penn., 2021*

↑

574. TX Assn of Manufacturers v. CPSC

989 F.3d 368, 5th Cir., 2021

In 2020-24: cited by 8 decisions (appellate) · in all: 14 · 2021–2025: 14 · weight in the sub-cluster 1

Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 50%)

Good law: green? (read the newest 14 of 14 citing opinions, filed 2021–2025: status now, not the year it changed)

Travels with: State Farm (cosine 0.02, 5 both)

How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 ("Associations may assert the standing of their own members.") — *Apfa, Inc. v. UATP Management, LLC, N.D. Tex., 2021*

1 (remanding rule to relevant agency because agency had changed the primary justification for the rule based on new data) — *Airlines for Amer v. Dept of Trans, 5th Cir., 2025*

↑

575. Duncan v. Walker

533 U.S. 167, SCOTUS, 2001

In 2020-24: cited by 110 decisions (appellate) · in all: 2,203 · 2021–2025: 727 · weight in the sub-cluster 41

Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 17%)

Good law: green? (read the newest 100 of 2,365 citing opinions, filed 2025–2026: status now, not the year it changed)

Travels with: Menasche (cosine 0.08, 12 both); City of Philadelphia v. Attorney General United States (cosine 0.07, 5 both); i4i Ltd (cosine 0.04, 5 both)

How later courts describe it (579 parentheticals; groups of similar wording, largest first; other courts' words)

240 (holding that the statute of limitations is not tolled during the pendancy of a federal petition) — *Rhines, SCOTUS, 2005*

194 (holding that "effect [must be given], if possible, to every clause and word of a statute") — *In Re: Charter Oak Associates, Debtor. Neal Ossen, Trustee v. Department of Social Services, State of Connecticut, 2d Cir., 2004*

28 (noting that where Congress introduces language in one section yet omits it in another, the disparate inclusion or exclusion is deemed intentional) — *Norfolk Dredging Company, Inc. v. United States, and Bean Stuyvesant, L.L.C., Fed. Cir., 2004*

16 (providing that "[t]he exhaustion requirement of § 2254(b) ensures that the state courts have the opportunity fully to consider

federal-law challenges to a state custodial judgment before the lower federal courts may entertain a collateral attack upon that judgment.") — *Clark-Bey, E.D. Tenn., 2021*

7 (noting that federal habeas corpus review may be available to challenge the legality of a state court order of civil contempt) — *Armstrong, 2d Cir., 2004*

6 (holding that a state court order of civil commitment satisfies § 2254's "in custody" requirement) — *Kreger-Mueller, Valerie v. Shiner, Justin, W.D. Wis., 2019*

5 (recognizing that "the 1 year limitation period of § 2244(d)(1) quite plainly serves the well-recognized interest in the finality of state court judgments") — *Guy Billy Lee Scott v. Terry Collins, Warden, 6th Cir., 2002*

4 (counseling against statutory constructions that have this effect) — *Kay Coles James, Director, Office of Personnel Management v. Frank Santella and Joseph Jech, and Merit Systems Protection Board, Fed. Cir., 2003*

↑

576. United States Telecom Assoc. v. FCC [Order In Slip Opinion Format]

855 F.3d 381, D.C. Cir., 2017

In 2020-24: cited by 17 decisions (appellate) · in all: 33 · 2021–2025: 22 · weight in the sub-cluster 22

Fit: 49% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.2 Speech regulation: content neutrality, forums, expressive conduct, 29%)

Good law: green? (read the newest 34 of 34 citing opinions, filed 2018–2026: status now, not the year it changed)

Travels with: Interstate Commerce Commission v. Cincinnati, New Orleans... (cosine 0.13, 8 both); Federal Trade Commission v. Bunte Bros. (cosine 0.10, 8 both); Industrial Union (cosine 0.07, 7 both)

How later courts describe it (3 parentheticals; groups of similar wording, largest first; other courts' words)

2 ("[T]he [Brand X] Court made clear in its decision— over and over—that the Act left the [classification] to the agency's discretion." (Srinivasan, J., joined by Tatel, J., concurring in denial of rehearing en banc)) — *Mozilla Corporation v. FCC, D.C. Cir., 2019*

1 (Kavanaugh, J, dissenting from denial of rehearing en banc) — *Damien Guedes v. ATF (ORDER IN SLIP OPINION FORMAT), D.C. Cir., 2023*

↑

577. United States v. Universal C. I. T. Credit Corp.

344 U.S. 218, SCOTUS, 1952

In 2020-24: cited by 21 decisions (appellate) · in all: 539 · 2021–2025: 22 · weight in the sub-cluster 6

Fit: 48% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.13 around Kelly, 17%)

Good law: green? (read the newest 100 of 656 citing opinions, filed 2012–2025: status now, not the year it changed)

Role changed 2005-09: likely successor Booker, 543 U.S. 220 (2004) (29% of the 41 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (33%)

Travels with: Bass (cosine 0.04, 9 both); Wiltberger (cosine 0.04, 8 both); McBoyle (cosine 0.03, 5 both)

How later courts describe it (47 parentheticals; groups of similar wording, largest first; other courts' words)

8 (each breach of Fair Labor Standards Act duty to a single employee in any single workweek does not constitute a separate offense) — *United States v. Theodore Edmonds, 3rd Cir., 1996*

6 (It is appropriate, before choosing the harsher alternative of separately punishable crimes, to require that Congress should have spoken in language that is clear and definite.) — *Abiodun, Colo., 2005*

3 (introducing concept of "unit of prosecution") — *United States v. Private (E1) RYAN T. MCGEE, A.C.C.A., 2015*

2 ("We should not derive criminal outlawry from some ambiguous implication.") — *Lurie, 2d Cir., 2000*

2 (various sections of statute "must be read in relation to each other") — *In Re Timbers Of Inwood Forest Associates, Ltd., 5th Cir., 1986*

2 (whether a prosecutor may treat each breach of a statute as a separate offense requires a determination of what Congress has made the allowable unit of prosecution) — *Carter, Ill., 2004*

2 (rejecting a once-per-week unit of prosecution for criminal violations of the Fair Labor Standards Act absent proof of "wholly distinct managerial decision[s]" to support each violation) — *United States v. Marcos L. Anderson, A/K/A Marcos Loinas Anderson, D.C. Cir., 1995*

2 (construing the criminal provisions of the Fair Labor Standards Act, 29 U. S. C. §§215, 216(a)) — *United States v. Thompson/Center Arms Co., SCOTUS, 1992*

↑

578. Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.

467 U.S. 837, SCOTUS, 1984 • note built

In 2020-24: cited by 784 decisions (appellate) · in all: 18,640 · 2021–2025: 1,567 · weight in the sub-cluster 711

Fit: 48% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 7%)

Good law: red 2024 (read 1,010 of 20,639 citing opinions)

2025 (SCOTUS): strong "overrule", could overrule — *Kennedy v. Braidwood Management, Inc.*: or's convening power constitutes an express vesting of appointment authority that overcomes the constitutional default. And, surely this Court did not overrule Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc., 467 U. S. 837 (1984), only to defer to concededly unlawful executive…

2025 (SCOTUS): strong "overrule", could overrule — *Kennedy v. Braidwood Management, Inc.*: or's convening power constitutes an express vesting of appointment authority that overcomes the constitutional default. And, surely this Court did not overrule Chevron U. S. A. Inc. v. Natural Re- Cite as:

606 U. S. 748 (2025) 817 Thomas, J., dissenting The majority likewise cannot explain why…
2024 (9th Cir.): strong "overruled" — *China Unicom (Americas) Opera v. FCC*: S.C. § 706 (2)(A), (C). In its answering brief, the FCC asked us, in reviewing this issue, to defer to the FCC's interpretation of the Communications Act under Chevron U.S.A, Inc. v. Natural Resources Defense Council, Inc., 467 U.S. 837, 843843 (1984). However, the Supreme Court recently overruled…
Role changed 2025-29: likely successor Raimondo, 603 U.S. 369 (2024) (37% of the 164 decisions citing this case in 2025-29 also cite it). (co-citation, not the text)
Travels with: Skidmore (cosine 0.08, 100 both); Mead (cosine 0.08, 99 both); Brand X Internet (cosine 0.07, 77 both)
How later courts describe it (1,809 parentheticals; groups of similar wording, largest first; other courts' words)

1368 (holding that "a court may not substitute its own construction of a statutory provision for a reasonable interpretation made by the administrator of an agency") — *Jean Patrick Michel v. Immigration and Naturalization Service, 2d Cir., 2000*
40 (holding when "the intent of Congress is clear [from the statutory text], that is the end of. the matter") — *United States v. James Bruguier, 8th Cir., 2013*
20 ("An initial agency interpretation is not instantly carved in stone") — *Brown & Williamson, SCOTUS, 2000*
19 (emphasizing that an "agency . . . must consider varying interpretations and the wisdom of its policy on a continuing basis") — *J-S, BIA, 2008*
11 ("A bedrock principle upon which our appellate review has relied is that the appeal is not from the opinion of the district court but from its judgment.") — *U.S. Federal Credit Union v. Gateway Radiology Consultants, P.A., 11th Cir., 2020*
9 (applying the Chevron test to the BIA's interpretation of the Immigration and Nationality Act) — *Kaganovich, 9th Cir., 2006*
8 (challenge to agency construction of statutory term must fail if challenge centers on wisdom of agency's policy, rather than on whether construction is reasonable choice within gap left open by Congress) — *Hicks v. Cantrell, 4th Cir., 1986*
8 (stating that courts must not "reconcile competing political interests ... on the basis of the judges' personal policy preferences") — *Nos. 89-70061, 89-70308, 9th Cir., 1990*

↑

579. Gundy v. United States

588 U.S. 128, SCOTUS, 2019 • note built
In 2020-24: cited by 120 decisions (appellate) · in all: 265 · 2021–2025: 184 · weight in the sub-cluster 127
Fit: 47% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.9 Wisconsin statutory interpretation, 14%)
Good law: green (read 265 of 265 citing opinions)
Travels with: Department of Transportation v. Association of American R... (cosine 0.11, 23 both); J. W. Hampton, Jr., & Co. v. United States (cosine 0.10, 24 both); Grimaud (cosine 0.09, 6 both)
How later courts describe it (34 parentheticals; groups of similar wording, largest first; other courts' words)

3 (plurality opinion of Kagan, J.) — *Mingo, 2d Cir., 2020*
3 (rejecting defendant's construction of statutory language as divorced from the statute's context and history) — *Tradeways, Ltd v. The United States Department of the Treasury, D. Maryland, 2020*
3 (holding that a delegation of authority to an agency is constitutional so long as "Congress 'lay[s] down by legislative act an intelligible principle to which the person or body authorized to [exercise the delegated authority] is directed to conform'") — *Walsh, M.D. Penn., 2024*
2 ("It is wisdom and humility alike that this Court has always upheld such 'necessities of government.'") — *Wisconsin Legislature v. Andrea Palm, Wis., 2020*
2 ("[I]ndeed, once a court interprets the statute, it may find that the constitutional question all but answers itself.") — *Allstates Refractory Contractors v. Julie Su, 6th Cir., 2023*
2 (describing statutory interpretation as a "holistic endeavor, which deter- mines meaning by looking not to isolated words, but to text in context, along with purpose and history") — *United States v. Jay Liestman, 7th Cir., 2024*
2 (noting that "a nondelegation inquiry always begins (and often almost ends) with statutory interpretation" and that "[t]he constitutional question is whether Congress has supplied an intelligible principle to guide the delegee's use of discretion) — *Bradford v. U.S. Department of Labor, D. Colo., 2022*
1 ("It is a 21 fundamental canon of statutory construction that the words of a statute must be read in their 22 context and with a view to their place in the overall statutory scheme . . . the Court often looks to 23 history [and] purpose to divine the meaning of language.") — *Adelson, D. Nev., 2020*

↑

580. L-A-B-R

27 I. & N. Dec. 405, BIA, 2018
In 2020-24: cited by 67 decisions (appellate) · in all: 93 · 2021–2025: 62 · weight in the sub-cluster 17
Fit: 47% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.7 Jurisdictional vs claim-processing rules in immigration cases (2015-24), 20%)
Good law: green? (read the newest 93 of 93 citing opinions, filed 2018–2026: status now, not the year it changed)
Also ties to: 2020-24:16 Immigration and agency review (33%)
Travels with: RAJAH (cosine 0.09, 6 both); HASHMI (cosine 0.08, 13 both); L-N-Y (cosine 0.06, 7 both)
How later courts describe it (37 parentheticals; groups of similar wording, largest first; other courts' words)

6 (stating that good cause for a continuance does not exist where the potential for the collateral relief sought will not materially affect the outcome of removal proceedings) — *Ilma Soriano Nunez v. Attorney General United States, 3rd Cir., 2020*

3 ("An immigration judge considering a motion for continuance to await the resolution of a collateral matter must focus principally on two factors: (1) the likelihood that the alien will receive the collateral relief, and (2) — *Anesh Gupta v. U.S. Attorney General, 11th Cir., 2020*

3 (noting that good cause requires diligence) — *Jose Molina-Bulnes v. Attorney General United States, 3rd Cir., 2019*

2 ("A respondent bears the burden of establishing good cause for a continuance.") — *Pinzon Rozo, BIA, 2026*

2 ("The immigration judge should not grant a continuance where the respondent appears to be seeking interim relief as a way of delaying the ultimate disposition of the case.") — *Yaya Toure v. William P. Barr, 7th Cir., 2019*

2 (immigration judge need not treat DHS's position on requested continuance as controlling: "the regulation does not include an exception for unopposed motions or those filed on consent") — *Yaya Toure v. William P. Barr, 7th Cir., 2019*

2 ("Good cause also may not exist when the alien has not demonstrated reasonable diligence in pursuing the collateral adjudication") — *Yaya Toure v. William P. Barr, 7th Cir., 2019*

2 (stating that "the good-cause standard . . . requires consideration and balancing of all relevant factors in assessing a motion for continuance to accommodate a collateral matter") — *R-C-R, BIA, 2020*

↑

581. United States v. Malachi Glass

904 F.3d 319, 3rd Cir., 2018 • Unpublished

In 2020-24: cited by 22 decisions (appellate) · in all: 52 · 2021–2025: 23 · weight in the sub-cluster 3

Fit: 47% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 31%)

Good law: green? (read the newest 52 of 52 citing opinions, filed 2018–2026: status now, not the year it changed)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (53%)

Travels with: United States v. Aumbrey Winstead (cosine 0.04, 5 both); Stinson (cosine 0.02, 5 both); Kisor (cosine 0.01, 5 both)

How later courts describe it (5 parentheticals; groups of similar wording, largest first; other courts' words)

2 (holding that a conviction under 35 Pa. Cons. Stat. § 780-113(a)(30) "may serve as a predicate offense to a career-offender enhancement under [U.S.S.G.] § 4B1.1") — *United States v. Joseph Jackson, 3rd Cir., 2020*

1 ("We have 2 For ACCA, "[t]he term 'distribute' means to deliver (other than by administering or dispensing) a controlled substance or a listed chemical," 21 U.S.C. § 802(11) — *United States v. Raheem Slone, 3rd Cir., 2018*

1 (noting that both 35 Pa. Stat. § 780-102(b) and 21 U.S.C. § 802(8) define delivery to mean a transfer) — *United States v. Hassan Ward, 3rd Cir., 2018*

1 (holding that Pennsylvania drug distribution in violation of 35 Pa. C.S. § 780- 113(a)(30) qualifies as a controlled substance offense under Career Offender Guidelines) — *United States v. Shawn Cavanaugh, 3rd Cir., 2021*

↑

582. King v. St. Vincent's Hospital

502 U.S. 215, SCOTUS, 1991

In 2020-24: cited by 45 decisions (appellate) · in all: 621 · 2021–2025: 93 · weight in the sub-cluster 17

Fit: 46% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.2 Speech regulation: content neutrality, forums, expressive conduct, 25%)

Good law: green (read 516 of 703 citing opinions)

Travels with: Fishgold (cosine 0.15, 7 both); Boone (cosine 0.13, 9 both); Brown (cosine 0.07, 13 both)

How later courts describe it (194 parentheticals; groups of similar wording, largest first; other courts' words)

139 (holding that "a statute is to be read as a whole, since the meaning of statutory language, plain or not, depends on context" (citation omitted)) — *City of New York v. Beretta U.S.A. Corp., 2d Cir., 2008*

13 (stating that " '[w]ords are not pebbles in alien juxtaposition; they have only a communal existence; and not only does the meaning of each interpene-traté the other, but all in their aggregate take their purport from the setting in which they are used' ") — *Mayfield, Vet. App., 2005*

9 (recognizing "canon that provisions for benefits to members of the Armed Services are to be construed in the beneficiaries' favor") — *Hollis Boatswain v. Alberto Gonzales, 1 Attorney General of the United States, 2d Cir., 2005*

4 ("We also read a statute 'as a whole' rather than 'as a series of unrelated and isolated pro- visions.'") — *Joseph Brown v. Jeffrey Kemp, 7th Cir., 2023*

4 (holding that all parts of a statute must be construed together without according undue importance to a single or isolated portion) — *Caseyv. McDonald, Vet. App., 2019*

3 ("[P]rovisions for benefits to members of the Armed Services are to be construed in the beneficiaries' favor." (citing Fishgold v. Sullivan Drydock & Repair Corp., 328 U.S. 275, 285, 66 S.Ct. 1105, 90 L.Ed. 1230 (1946))) — *Guerra, Fed. Cir., 2011*

3 (invoking the rule that a court should consider the text of a statute as a whole) — *General Electric Co. v. American Annuity Group, Inc., D.N.H., 2001*

2 (words have only a communal existence) — *Guidry v. Sheet Metal Workers International Association, Local No. 9, 10th Cir., 1993*

↑

583. Merrill Lynch, Pierce, Fenner & Smith Inc. v. Dabit

547 U.S. 71, SCOTUS, 2006

In 2020-24: cited by 40 decisions (appellate) · in all: 531 · 2021–2025: 102 · weight in the sub-cluster 5

Fit: 46% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.13

around Kelly, 15%)
Good law: green? (read the newest 100 of 550 citing opinions, filed 2021–2026: status now, not the year it changed)
Role changed 2015-19: likely successor Troice, 134 S. Ct. 1058 (2014) (32% of the 54 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Also ties to: 2020-24:18 around Batson (25%)
Travels with: Bragdon (cosine 0.06, 8 both); King (cosine 0.03, 6 both); Cyan, Inc. v. Beaver County Employees Retirement Fund (cosine 0.02, 5 both)
How later courts describe it (88 parentheticals; groups of similar wording, largest first; other courts' words)

- **12** (noting that when "judicial interpretations have settled the meaning of an existing statutory -20- provision, repetition of the same language in a new statute" generally indicates "the intent to incorporate its . . . judicial interpretations as well") — *Mayo Clinic v. United States, 8th Cir., 2021*
- **6** (stating that when analyzing the "in connection with" requirement "it is enough that the fraud alleged 'coincide' with a securities transaction") — *R.W. Grand Lodge of Free & Accepted Masons v. Meridian Capital Partners, Inc., 2d Cir., 2015*
- **5** ("The Act does not deny any individual plaintiff, or indeed any group of fewer than 50 plaintiffs, the right to enforce any state-law cause of action that may exist.") — *In Re Beacon Associates Litigation, S.D.N.Y., 2010*
- **4** ("Application of [the prior-construction canon] is particularly apt here; not only did Congress use the same words as are used in § 10(b) and Rule 10b–5, but it used them in a provision that appears in the same statute as § 10(b).") — *Joseph Brown v. Jeffrey Kemp, 7th Cir., 2023*
- **4** ("The magnitude of the federal interest in protecting the integrity and efficient operation of the market for nationally traded securities cannot be overstated.") — *In re Facebook, Inc., IPO Securities & Derivative Litigation, S.D.N.Y., 2014*
- **4** ("Generally, identical words used in different parts of the same statute are ... presumed to have the same meaning") — *Disabled in Action of Pennsylvania v. Southeastern Pennsylvania Transportation Authority, 3rd Cir., 2008*
- **3** ("[W]hen this Court has sought to give meaning to the phrase [in connection with] in the context of § 10(b) and Rule 10b-5, it has espoused a broad interpretation.") — *In re Optimal U.S. Litigation, S.D.N.Y., 2012*
- **3** (noting "presumption that Congress envisioned a broad construction follows not only from ordinary principles of statutory construction but also from the particular concerns that culminated in SLUSA's enactment") — *In Re Beacon Associates Litigation, S.D.N.Y., 2010*

↑

584. Moskal v. United States

498 U.S. 103, SCOTUS, 1990
In 2020-24: cited by 45 decisions (appellate) · in all: 627 · 2021–2025: 75 · weight in the sub-cluster 26
Fit: 46% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.17 around United States v. Larry E. Stott, Jr., Robert A. Gaughan, ..., 22%)
Good law: green? (read the newest 100 of 741 citing opinions, filed 2019–2025: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (50%)
Travels with: United States v. R. L. C. (cosine 0.13, 5 both); Koray (cosine 0.12, 5 both); Fisher (cosine 0.08, 5 both)
How later courts describe it (119 parentheticals; groups of similar wording, largest first; other courts' words)

- **41** (observing that courts must "giv[e] the words used their ordinary meaning" (internal quotation marks omitted))
- **21** (observing that lenity is "reserved ... for those situations in which a reasonable doubt persists about a statute's intended scope even after resort to the language and structure, legislative history, and motivating policies of the statute" (internal quotation marks omitted)) — *United States v. Randy W. Blankenship, 11th Cir., 2004*
- **9** (holding that the rule of lenity is not triggered because it is "possible to articulate" a narrower construction of a statute) — *Nosal, 9th Cir., 2016*
- **4** ("We have repeatedly emphasized that the touchstone of the rule of lenity is statutory ambiguity." (citation and internal quotation marks omitted)) — *AlixPartners, LLP and AlixPartners Holdings, LLP v. David Benichou, Del. Ch., 2019*
- **3** (recognizing that words are to be given their ordinary meaning, in context of the statute overall) — *FARIAS, BIA, 1996*
- **2** ("As the United States conceded at oral argument, and as any dictionary will confirm, 'forged' and 'counterfeited' mean -3- "steal" from Black's Law Dictionary, which would render the separate claim of "embezzling property" in MCL 600.2919a surplusage, or (2) — *Matthew J Shiffman v. Auto Source Wholesale LLC, Mich. Ct. App., 2018*
- **2** (division of judicial authority over meaning of statute is not automatically sufficient to show statute is ambiguous so as to trigger policy of lenity) — *United States v. Murphy Oil USA, Inc., W.D. Wis., 2001*
- **2** ("This Court has never required that every permissible application of a statute be expressly referred to in its legislative history.") — *United States v. Jack Lande, 9th Cir., 1992*

↑

585. Branch v. Smith

538 U.S. 254, SCOTUS, 2003
In 2020-24: cited by 25 decisions (appellate) · in all: 223 · 2021–2025: 37 · weight in the sub-cluster 13
Fit: 45% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.6 around United States v. Orbie Chambliss, 19%)
Good law: green? (read the newest 100 of 256 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: Posadas (cosine 0.28, 7 both); Carcieri (cosine 0.19, 6 both); Whitman (cosine 0.02, 6 both)

How later courts describe it (58 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (stating that "[a]n implied repeal will only be found where provisions in two statutes are in 'irreconcilable conflict,' or where the latter Act covers the whole subject of the earlier one and 'is clearly intended as a substitute' ") — *Leavitt, D.D.C., 2006*
- **8** (stating that "absent a clearly expressed congressional intention, repeals by implication are not favored" (citations and internal quotation marks omitted)) — *JL, 9th Cir., 2010*
- **4** (explaining that "courts do not interpret statutes in isolation, but in the context of the corpus juris of which they are a part") — *Mnuchin, D.D.C., 2020*
- **3** (defining the term "enactment" using both Black's Law Dictionary and Webster's Dictionary) — *In Re Tomco, Bankr. W.D. Pa., 2006*
- **2** (plurality opinion of Scalia, J.) — *Pugin, SCOTUS, 2023*
- **2** (considering historical context surrounding passage of the Voting Rights Act) — *Santiago-Mendez, 1st Cir., 2012*
- **2** ("it certainly remains preferable for the State's legislature to complete its constitutionally required redistricting") — *Opinion No., Tex. Att'y Gen., 2003*
- **2** (Section 5 "requires preclearance of all voting changes" and "there is no dispute that this includes voting changes mandated by order of a state court") — *State of South Carolina v. United States of America, D.D.C., 2012*

↑

586. United States v. Zimmian Tabb

949 F.3d 81, 2d Cir., 2020
In 2020-24: cited by 28 decisions (appellate) · in all: 35 · 2021–2025: 29 · weight in the sub-cluster 12
Fit: 45% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 33%)
Good law: green? (read the newest 35 of 35 citing opinions, filed 2020–2025: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (49%)
Travels with: United States v. Richardson (cosine 0.17, 10 both); United States v. Jackson (cosine 0.10, 5 both); United States v. Aumbrey Winstead (cosine 0.03, 5 both)
How later courts describe it (15 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** ("The text and structure of Application Note 1 demonstrate that it was intended to include Section 846 narcotics conspiracy.") — *United States v. Richardson, 2d Cir., 2020*
- **2** ("[W]e find 4 that Jackson precludes Tabb's argument that Application Note 1 is invalid.") — *Wynn, 2d Cir., 2021*
- **1** (post-Kisor decision applying Stinson deference) — *United States v. Smith, 2d Cir., 2024*
- **1** ("Because [New York] attempted assault in the second degree . . . qualifies as a crime of violence under the [Guideline's] Force Clause, we need not determine whether it would also meet the enumerated offenses clause definition of a crime of violence.") — *Scott, 2d Cir., 2021*
- **1** ("[T]he [Sentencing] Commission had the 'authority to expand the definition of "controlled substance offense" to include aiding and abetting, conspiring, and attempting to commit such offenses' through Application Note 1.") — *James, 2d Cir., 2020*
- **1** (specific intent to commit second-degree assault plus substantial step in any form categorically involved the attempted use of physical force) — *Sandoval-Flores, D. Utah, 2022*
- **1** (disregarding a defendant's argument that Application Note 1 is not controlling in light of Kisor because Jackson remains controlling law) — *Montes, S.D.N.Y., 2023*
- **1** (rejecting the argument 18 that "'attempt' under New York law is broader than the generic 'attempt' described in the 19 guidelines") — *Perez, 2d Cir., 2021*

↑

587. United States v. Jeffery Havis

927 F.3d 382, 6th Cir., 2019
In 2020-24: cited by 146 decisions (appellate) · in all: 267 · 2021–2025: 154 · weight in the sub-cluster 117
Fit: 45% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.1 Reasonableness review of federal sentences, 26%)
Good law: green (read 267 of 267 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (42%)
Travels with: United States v. Aumbrey Winstead (cosine 0.20, 20 both); Havis (cosine 0.16, 14 both); United States v. Darryl Rollins (cosine 0.12, 10 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (concluding attempt crimes do not qualify as controlled substance offenses) — *United States v. Rafael Cabrera, 3rd Cir., 2021*
- **2** (Doc. No. 22 at PageID # 80) — *Brooks, M.D. Tenn., 2024*
- **1** (extending Winstead's reasoning to § 2K2.1) — *United States v. Johnson, D.D.C., 2022*
- **1** ("An offer to sell a controlled substance is an act perpetrated in furtherance of a sale, typically as part of the negotiation for the price and quantity, and it is therefore a substantial step in attempting to consummate a sale.") — *Babcock, 10th Cir., 2022*
- **1** ("How is it fair in a court of justice for judges to defer to one of the litigants? . . . Such deference is found nowhere in the Constitution—the document to which judges take an oath.") — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*
- **1** ("[T]he Commission knows how to include attempt crimes when it wants to—in subsection (a) — *United States v. Junior Abreu, 3rd Cir., 2022*

1 ("[A]pplication notes are to be interpretations of, not additions to, the Guidelines themselves[.]" (quotations and emphases omitted)) — *United States v. Paul Piper, 6th Cir., 2021*

1 ("[C]ommentary has no independent legal force—it serves only to interpret the Guidelines' text, not to replace or modify it.") — *United States v. Justin McIntosh, 6th Cir., 2021*

↑

588. Ramon Jasso Arangure v. Matthew Whitaker

911 F.3d 333, 6th Cir., 2018
In 2020-24: cited by 32 decisions (appellate) · in all: 65 · 2021–2025: 46 · weight in the sub-cluster 6
Fit: 44% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 12%)
Good law: green? (read the newest 65 of 65 citing opinions, filed 2019–2025: status now, not the year it changed)
Also ties to: 2020-24:16 Immigration and agency review (18%)
Travels with: Chevron (cosine 0.02, 14 both); Kisor (cosine 0.02, 7 both)
How later courts describe it (11 parentheticals; groups of similar wording, largest first; other courts' words)

2 (Courts "must first exhaust the 'traditional tools' of statutory interpretation and 'reject administrative constructions' that are contrary to the clear meaning of the statute." (quoting Chevron, 467 U.S. at 843 n.9)) — *State of Ohio v. Xavier Becerra, 6th Cir., 2023*

1 (describing the "common-law principle" of res judicata) — *Scott, W.D. Ky., 2021*

1 ("Congress addresses [its] purposes by negotiating, crafting, and enacting statutory text.") — *Black Farmers & Agriculturalists Ass'n v. Brooke Rollins, 6th Cir., 2025*

1 ("[S]tatutes are motivated by many competing—and often contradictory—purposes. Con- gress addresses these purposes by negotiating, crafting, and enacting statutory text. It is that text that controls, not a court's after-the-fact reevaluation of the purposes behind it.") — *Talal Qais Abdulmunem Al Zawawi v. Colin Diss, 11th Cir., 2024*

1 ("The Board is eligible for Chevron deference when it interprets the INA.") — *Roderico Filadelfo Perez-Perez v. Pamela Bondi, 6th Cir., 2025*

1 ("What really matters is the effect of the judgment. And, critically here, a judgment dismissing a case 'without prejudice' is not truly 'final.'") — *Liberty Insurance Corporation v. LSP Products Group, Inc., E.D. Mich., 2022*

1 (noting that DHS "initiated a second removal proceeding against Jasso") — *Ramon Jasso Arangure v. Merrick B. Garland, 6th Cir., 2022*

1 (explaining that "[w]hen courts find ambiguity where none exists, they are abdicating their judicial duty," "impermissibly expand[ing] an already-questionable Chevron doctrine," and "abrogat[ing the] separation of powers") — *Gun Owners of America, Inc. v. Merrick B. Garland, 6th Cir., 2021*

↑

589. Environmental Defense v. Duke Energy Corporation

549 U.S. 561, SCOTUS, 2007
In 2020-24: cited by 32 decisions (appellate) · in all: 175 · 2021–2025: 36 · weight in the sub-cluster 4
Fit: 43% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 14%)
Good law: green? (read the newest 100 of 189 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Atlantic Cleaners & Dyers, Inc. v. United States (cosine 0.05, 5 both); Robinson (cosine 0.01, 5 both); Brown & Williamson (cosine 0.01, 5 both)
How later courts describe it (46 parentheticals; groups of similar wording, largest first; other courts' words)

6 (discussing the "presum[ption] that the same term has the same meaning when it occurs here and there in a single statute") — *State of Cal. Dtsc v. Westside Delivery LLC, 9th Cir., 2018*

6 (recognizing the "natural presumption that identical words used in different parts of the same act are intended to have the same meaning" (quoting Atl. Cleaners & Dyers v. United States, 286 U.S. 427, 433 (1932))) — *K. Lewis v. PBGC [REISSUED OPINION], D.C. Cir., 2018*

4 ("[M]ost words have different shades of meaning and consequently may be variously construed ... in different statutes ...." (citation omitted)) — *American Bankers Association v. National Credit Union Administration, D.C. Cir., 2019*

4 (explaining that "[a] given term in the same statute may take on distinct characters from association USCA11 Case: 20-12960 Date Filed: 11/23/2022 Page: 44 of 48 14 JORDAN, J., Concurring 20-12960 with distinct statutory objects calling for different implementation strategies") — *Javier Garcia-Bengochea v. Royal Caribbean Cruises, Ltd., 11th Cir., 2022*

3 (interpreting the federal Clean Air Act without North Carolina's participation) — *School District of City of Pontiac v. Secretary of US Department of Education, 6th Cir., 2009*

3 (stating that "[c]ontext counts" when interpreting the "same defined term in different provisions of the same statute") — *Davis, 10th Cir., 2023*

3 (noting that the identical words used in the same act are presumed to have the same meaning) — *Novo Nordisk A/S v. Caraco Pharmaceutical Laboratories, Ltd., Fed. Cir., 2010*

2 ("When Congress repeats the same word in a different statutory context, it is possible that Congress might have intended the context to alter the meaning of the word.") — *In Re Sanders, Bankr. W.D. Tex., 2007*

↑

590. Bragdon v. Abbott

524 U.S. 624, SCOTUS, 1998

In 2020-24: cited by 61 decisions (appellate) · in all: 1,283 · 2021–2025: 213 · weight in the sub-cluster 18

Fit: 43% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 41%)

Good law: green (read 532 of 1,377 citing opinions)

Role changed 2000-04: likely successor Sutton, 527 U.S. 471 (1999) (49% of the 207 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)

Travels with: Lorillard (cosine 0.12, 9 both); Lightfoot (cosine 0.12, 5 both); Dabit (cosine 0.06, 8 both)

How later courts describe it (316 parentheticals; groups of similar wording, largest first; other courts' words)

- **34** (stating that the presumption applies "[w]hen administrative and judicial interpretations have settled the meaning of an existing statutory provision . . .") — *Micron Technology, Inc. v. United States, Fed. Cir., 2001*
- **25** (concluding that HIV infection is a disability that can substantially limit the "major life activity" of reproduction) — *Taylor, Lorenzo v. Rice, Condoleeza, D.C. Cir., 2006*
- **23** (holding that plaintiffs' a-symptomatic HIV infection constituted a disability with the protection of the ADA but rejecting attempt to create HIV as a per se disability) — *Roig, S.D. Fla., 2005*
- **20** (holding that § 12201(a)"requires [courts] to construe the ADA to grant at least as much protection as provided by ... the Rehabilitation Act") — *Nicole Haberle v. Daniel Troxell, 3rd Cir., 2018*
- **12** ("[T]he well-reasoned views of the agencies implementing a statute constitute a body of experience and informed judgment to which courts and litigants may properly resort for guidance") — *In Re Enron Corp. Securities, Derivative & ERISA Lit., S.D. Tex., 2002*
- **10** (observing that "courts should assess the objective reasonableness of the views of health care professionals without deferring to their individual judgments") — *U.S. Equal Employment Opportunity Commission v. T&T Subsea, LLC, E.D. La., 2020*
- **8** (noting that DOJ is "the agency directed by Congress to issue implementing regulations, to render technical assistance explaining the responsibilities of covered individuals and institutions, and to enforce Title III in court") — *Guillermo Robles v. Dominos Pizza LLC, 9th Cir., 2019*
- **8** (stating that "Congress' repetition of a well-established term carries the implication that Congress intended the term to be construed in accordance with preexisting regulatory interpretations") — *Jarnagin, Fed. Cl., 2017*

↑

591. Mistretta v. United States

488 U.S. 361, SCOTUS, 1989 • note built

In 2020-24: cited by 149 decisions (appellate) · in all: 2,104 · 2021–2025: 213 · weight in the sub-cluster 151

Fit: 42% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 14%)

Good law: yellow 2021 (read 607 of 2,439 citing opinions)

2017 (D.N.M.): weak "eroded" — *Edwards*: a Guidelines sentence. The Sentencing Guidelines, enacted pursuant to Congress' power to make laws and to delegate that power, see Mistretta v. United States, [488 U.S. at 361361], 109 S.Ct. 647, therefore have necessarily eroded the jury's ability to take into consideration the potential sentence

2018 (D.N.M.): weak "eroded" — *Baker*: a Guidelines sentence. The Sentencing Guidelines, enacted pursuant to Congress' power to make laws and to delegate that power, see Mistretta v. United States, [488 U.S. at 361], 109 S.Ct. 647, therefore have necessarily eroded the jury's ability to take into consideration the potential sentence

2021 (6th Cir.): weak "questioned" — *United States v. John Bass*: (1989). In light of the resulting sentencing disparities across federal courts, this emphasis on rehabilitation was questioned and later discarded by Congress. [Id. at 365-66365]

Role changed 2005-09: likely successor Booker, 543 U.S. 220 (2004) (46% of the 196 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (17%)

Travels with: J. W. Hampton, Jr., & Co. v. United States (cosine 0.10, 19 both); Gundy (cosine 0.08, 35 both); Grimaud (cosine 0.08, 7 both)

How later courts describe it (475 parentheticals; groups of similar wording, largest first; other courts' words)

- **152** (holding that congressional creation of United States Sentencing Guidelines Commission did not violate separation of powers) — *Brayton, Minn., 2010*
- **29** (noting that "the scope of judicial discretion with respect to a sentence is subject to congressional control") — *United States v. Jane Doe, D.C. Cir., 1991*
- **11** ("The legitimacy of the Judicial Branch ultimately depends on its reputation for impartiality and nonpartisanship.") — *White, SCOTUS, 2002*
- **11** (recognizing that "Congress simply cannot do its job absent an ability to delegate power under broad general directives," and upholding "Congress' ability to delegate power under broad standards") — *Sebelius, S.D. Ind., 2012*
- **10** (stating that "the Guidelines bind judges and courts in the exercise of their uncontested responsibility to pass sentence in criminal cases") — *United States v. David Williams, 3rd Cir., 2000*
- **9** (discussing the Sentencing Reform Act of 1984 and its legislative history) — *Neal, SCOTUS, 1996*
- **8** (noting that the non-delegation doctrine "is rooted in the principle of separation of powers that underlies our tripartite system of Government") — *Trent, S.D. Ohio, 2008*
- **7** (statutory provisions restricting presidential removal of agency heads are "specifically crafted to prevent the President from exercising 'coercive influence' over independent agencies") — *In Re Aiken County, D.C. Cir., 2011*

↑ **592. Exxon Mobil Corp. v. Allapattah Services, Inc.**
545 U.S. 546, SCOTUS, 2005
In 2020-24: cited by 71 decisions (appellate) · in all: 2,634 · 2021–2025: 1,423 · weight in the sub-cluster 10
Fit: 42% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 16%)
Good law: green? (read the newest 100 of 2,710 citing opinions, filed 2025–2026: status now, not the year it changed)
Travels with: King (cosine 0.02, 10 both); Brand X Internet (cosine 0.02, 7 both); Brown & Williamson (cosine 0.01, 9 both)
How later courts describe it (335 parentheticals; groups of similar wording, largest first; other courts' words)

- **68** (holding that 26 proper jurisdiction under Section 1332 requires complete diversity of citizenship, so each plaintiff must be diverse from each defendant) — *Jefferson, D. Nev., 2024*
- **55** (holding that if the claims of a single plaintiff meet the jurisdictional threshold the court may assert supplemental jurisdiction over additional plaintiffs' claims) — *Katie Lowery v. Honeywell International, Inc., 11th Cir., 2007*
- **26** (holding that statutory text and not legislative history is the preferred evidence of legislative intent.) — *Paxton, S.D. Tex., 2023*
- **20** (holding that to be useful, the legislative history must shed a reliable light on the Legislature's understanding of a statute) — *AD Global Fund, LLC ex rel. North Hills Holding, Inc. v. United States, Fed. Cl., 2005*
- **13** (recognizing that "legislative history is itself often murky, ambiguous, and contradictory") — *American Trucking Associations, Inc. v. Delaware River Joint Toll Bridge Commission, 3rd Cir., 2006*
- **11** (observing that "[t]he district courts of the United States ... are 'courts of limited jurisdiction'" and "'possess only that power authorized by Constitution and statute'") — *Davis, N.D. Tex., 2025*
- **6** ("When the well-pleaded complaint contains at least one 11 |}claim that satisfies the amount-in-controversy requirement .. . the district court . . . has 12 || original jurisdiction.'") — *Badin, S.D. Cal., 2025*
- **6** ("Incomplete diversity destroys original jurisdiction with respect to all claims, so 21 there is nothing to which supplemental jurisdiction can adhere.") — *Ved, N.D. Cal., 2026*

↑ **593. Maracich v. Spears**
133 S. Ct. 2191, SCOTUS, 2013
In 2020-24: cited by 75 decisions (appellate) · in all: 282 · 2021–2025: 134 · weight in the sub-cluster 27
Fit: 42% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 16%)
Good law: green? (read the newest 100 of 295 citing opinions, filed 2022–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (32%)
Travels with: Mont (cosine 0.08, 6 both); Gundy (cosine 0.03, 8 both); Jones (cosine 0.02, 6 both)
How later courts describe it (65 parentheticals; groups of similar wording, largest first; other courts' words)

- **6** (stating "an interpretation of a phrase of uncertain reach is not confined to a single sentence when the text of the whole statute gives instruction as to its meaning") — *Kathleen Bliss v. Corecivic, Inc., 9th Cir., 2020*
- **5** (examining DPPA's litigation exception and noting that "[u]nless commanded by the text ... these exceptions ought not operate to the farthest reach of their linguistic possibilities if that result would contravene the statutory design") — *Gordon, 2d Cir., 2013*
- **3** ("Respondents are trial lawyers . . . [who] obtained names and addresses of thousands of individuals from the South Carolina DMV in order to send [attorney solicitation materials].") — *Durham v. City of Charlotte, W.D.N.C., 2024*
- **3** (noting that "[t]he phrase 'in connection with' provides little guidance without a limiting principle") — *State of Rhode Island v. Shell Oil Products Co., LLC, 1st Cir., 2022*
- **3** (instructing that statutory provisions should "be construed within the context of the [Act] as a whole") — *FTC v. Margaret Cumming, 7th Cir., 2025*
- **3** (stating that the phrase "in connection with" is essentially " !ndeterminat[e]' because connections, like relations, 'stop nowhere'") — *IN RE EDWARD T. SMITH BRUCE E. GARDNER, D.C., 2016*
- **2** (interpreting a statute to avoid creating tension between provisions) — *Saint Anthony Hospital v. Elizabeth M. Whitehorn, 7th Cir., 2025*
- **2** ("To obtain a driver's license . . . state DMVs, as a general rule, require an individual to disclose detailed personal information, including name, home address, telephone number, Social Security number, and medical information.") — *Michael Crist v. State of Florida, Fla. Dist. Ct. App., 2025*

↑ **594. Jones v. United States**
529 U.S. 848, SCOTUS, 2000
In 2020-24: cited by 31 decisions (appellate) · in all: 568 · 2021–2025: 31 · weight in the sub-cluster 8
Fit: 42% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.7 around Press-Enterprise Co. v. Superior Court of Cal., Riverside..., 38%)
Good law: green? (read the newest 100 of 626 citing opinions, filed 2014–2026: status now, not the year it changed)
Role changed 2005-09: likely successor Booker, 543 U.S. 220 (2004) (29% of the 116 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (47%)
Travels with: Bass (cosine 0.08, 7 both); Bond (cosine 0.05, 7 both); Maracich (cosine 0.02, 6 both)
How later courts describe it (91 parentheticals; groups of similar wording, largest first; other courts' words)

13 (holding § 844(i) element that subject property be "used" in activity affecting commerce to require "active employment for commercial purposes") — *United States v. Curtis Lee Terry, United States of America v. Ronnie Williams, 4th Cir., 2001*

11 (holding that a private residence is not "used in" interstate commerce and therefore concluding that federal arson statute does not cover arson of a private residence) — *United States v. Brian Keller, Cross-Appellee, 7th Cir., 2004*

10 (reading 18 U.S.C. § 844(i) narrowly to avoid the constitutional issue of transforming all arson subject to state regulation into federal felonies) — *United States v. Jay Scott Ballinger, 11th Cir., 2005*

8 ("[Ujnless Congress conveys its purpose clearly, it will not be deemed to have significantly changed the federal-state balance in the prosecution of crimes" (internal quotation marks omitted)) — *Fowler, SCOTUS, 2011*

7 ("[W]here a statute is susceptible of two constructions, by one of which grave and doubtful constitutional questions arise and by the other of which such questions are avoided, our duty is to adopt the latter.") — *UAW, 6th Cir., 2007*

5 (avoiding constitutional challenge by construing statute's text to hold that certain owner-occupied residences do not qualify as property "used in" commerce) — *United States v. Michael Lewis Clark, 9th Cir., 2006*

4 ("Judges should hesitate to treat statutory terms in any setting as surplusage, and resistance should be heightened when the words describe an element of a criminal offense.") — *Brock, 6th Cir., 2007*

2 (limiting the reach of the federal arson statute) — *United States v. Horace Andrew Davis, Jr., 8th Cir., 2002*

↑

595. Cyan, Inc. v. Beaver County Employees Retirement Fund

583 U.S. 416, SCOTUS, 2018

In 2020-24: cited by 66 decisions (appellate) · in all: 128 · 2021–2025: 74 · weight in the sub-cluster 20

Fit: 41% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.6 around United States v. Orbie Chambliss, 19%)

Good law: green? (read the newest 100 of 129 citing opinions, filed 2020–2026: status now, not the year it changed)

Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (20%)

Travels with: Duguid (cosine 0.04, 10 both); Barnhart (cosine 0.03, 13 both); Jama (cosine 0.03, 7 both)

How later courts describe it (42 parentheticals; groups of similar wording, largest first; other courts' words)

6 (issue was whether SLUSA stripped state courts of jurisdiction over class actions involving 1933 Act violations, and investors did not dispute their class action would be "covered") — *Susan Nielen-Thomas v. Concorde Investment Services, 7th Cir., 2019*

3 ("Even assuming clear [statutory] text can ever give way to purpose, [the petitioner] would need some monster arguments on this score to create doubts about [the statute's] meaning.") — *Allen, 10th Cir., 2018*

3 ("[F]ederal-law suits like this one — alleging only 1933 Act claims — are . . . subject to the 1933 Act's removal ban." (emphasis omitted)) — *Williams v. Bristol-Myers Squibb Company, S.D.N.Y., 2022*

2 (addressing petitioner's interpretive arguments based on SLUSA's legislative history) — *Susan Nielen-Thomas v. Concorde Investment Services, 7th Cir., 2019*

2 ("The statute says what it says—or perhaps better put here, does not say what it does not say.") — *Torrez, 10th Cir., 2025*

2 (applying the limiting phrase "as set forth in subsection (b)" to "any covered class action" where the statute at issue referred to "[a]ny covered class action brought in any State court involving a covered security, as set forth in subsection (b) — *Usda, 9th Cir., 2020*

2 (eschewing the last- antecedent rule to apply the modifier to the entire phrase "[a]ny covered class action brought in any State court involving a covered security," rather than the partial phrase "involving a covered security" (emphasis added)) — *Maxwell Kadel v. N.C. State Health Plan, 4th Cir., 2021*

2 (rejecting the plaintiff's attempt to "cherry pick from the material covered by the statutory cross-reference" because the relevant clause "points to section 77p as a whole—not to paragraph 77p(f)(2) — *Azar, S.D.N.Y., 2023*

↑

596. Landgraf v. USI Film Products

511 U.S. 244, SCOTUS, 1994

In 2020-24: cited by 261 decisions (appellate) · in all: 4,389 · 2021–2025: 499 · weight in the sub-cluster 96

Fit: 41% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 6%)

Good law: green? (read the newest 100 of 4,801 citing opinions, filed 2025–2026: status now, not the year it changed)

Travels with: Hallowell (cosine 0.12, 7 both); Martin (cosine 0.07, 17 both); United States v. Schooner Peggy (cosine 0.07, 11 both)

How later courts describe it (895 parentheticals; groups of similar wording, largest first; other courts' words)

247 (holding that a statute is not retrospective simply because it upsets expectations based on prior law) — *Goode, Tenn. Ct. App., 1997*

33 (requiring assessment to determine when retroactive application of a rule is warranted or when it would violate principles of "fairness dictat[ing] that individuals should have an opportunity to know what the law is and to conform their conduct accordingly") — *JOHEL VALIENTE V. SWIFT TRANSP. CO. OF ARIZ., 9th Cir., 2022*

27 (holding that "application of new statutes passed after the events in suit is unquestionably proper in many situations") — *Drayton, 2016*

25 (stating that truly jurisdictional statutes speak to the "power of the court" whereas claim-processing rules speak "to the rights or obligations of the parties" (quoting Republic Nat'l Bank of Miami v. United States, 506 U.S. 80, 100 (Thomas, J., concurring

in part))) — *Belagio Fine Jewelry, Inc., Tax Ct., 2024*

19 (pointing out that statutes repealing grants of jurisdiction apply to pending cases, notwithstanding reliance interests) — *Felzen v. Andreas, 7th Cir., 1998*

19 (observing that "the presumption against retroactive legislation is deeply rooted in our jurisprudence, and embodies a legal doctrine centuries older than our Republic") — *Stichting, Utah, 2017*

18 ("When the intervening statute authorizes or affects the propriety of prospective relief, application of the new provision is not retroactive") — *French, SCOTUS, 2000*

17 ("Since the early days of this Court, we have declined to give retroactive effect to statutes burdening private rights unless Congress had made clear its intent.") — *Commonwealth Edison Company v. United States, Fed. Cir., 2001*

↑

597. Jama v. Immigration and Customs Enforcement

543 U.S. 335, SCOTUS, 2005

In 2020-24: cited by 87 decisions (appellate) · in all: 516 · 2021–2025: 177 · weight in the sub-cluster 44

Fit: 41% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 26%)

Good law: green? (read the newest 100 of 562 citing opinions, filed 2023–2026: status now, not the year it changed)

Travels with: Gutierrez (cosine 0.12, 6 both); Lockhart (cosine 0.05, 11 both); Barnhart (cosine 0.04, 9 both)

How later courts describe it (197 parentheticals; groups of similar wording, largest first; other courts' words)

68 (recognizing that courts "do not lightly assume that Congress has omitted from its adopted text re- quirements that it nonetheless intends to apply") — *Brown, N.D. Okla., 2025*

21 ("Dictum settles nothing, even in the court that utters it.") — *Wercinski, 5th Cir., 2008*

14 (noting that discretionary nature of "may" and mandatory nature of "shall" are particularly contraposed when both terms used in same section) — *Strong, 1st Cir., 2013*

13 ("The word 'may' customarily connotes discretion.") — *Sebelius, D.D.C., 2010*

12 (stating that there is a "customary policy of deference to the President in matters of foreign affairs") — *Hamlily, D.D.C., 2009*

9 (noting "our customary policy of deference to the President in matters of foreign affairs" that "may implicate our relations with foreign powers ... requiring] consideration of changing political and economic circumstances" (quotation marks omitted)) — *Zivotofsky Ex Rel. Ari Z. v. Secretary of State, D.C. Cir., 2013*

4 ("Each clause is distinct and ends with a period, strongly suggesting that each may be understood completely without reading any further.") — *Perkins, S.D.N.Y., 2023*

4 (stating the "the grammatical rule of the last antecedent, according to which a limiting clause or phrase ... should ordinarily be read as modifying only the noun or phrase that it immediately follows" (internal quotation marks omitted)) — *Christy, D.N.M., 2012*

↑

598. South Dakota v. Dole

483 U.S. 203, SCOTUS, 1987

In 2020-24: cited by 44 decisions (appellate) · in all: 590 · 2021–2025: 88 · weight in the sub-cluster 30

Fit: 41% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.14 Implied private rights of action (Cort v. Ash) and § 1983, 25%)

Good law: green? (read the newest 100 of 677 citing opinions, filed 2020–2026: status now, not the year it changed)

Role changed 2000-04: likely successor College Savings Bank v. Florida Prepaid Postsecondary Edu..., 527 U.S. 666 (1999) (47% of the 106 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)

Travels with: New York v. United States (cosine 0.08, 15 both); Butler (cosine 0.08, 5 both); City of Chicago v. Jefferson B. Sessions III (cosine 0.05, 6 both)

How later courts describe it (143 parentheticals; groups of similar wording, largest first; other courts' words)

56 (holding that federal statute conditioning receipt of highway funds on adoption of minimum drinking age is valid use of Congress' spending power) — *Nell D. Autery, as Administratrix of the Estate of Roy Franklin Autery Charlotte Schreiner v. United States, 11th Cir., 1993*

8 ("In considering whether a particular expenditure is intended to serve general public purposes, courts should defer substantially to the judgment of Congress") — *Cleveland v. State (Slip Opinion), Ohio, 2019*

8 (finding that the Tenth Amendment limits congressional regulation of state affairs, not the conditions attachable to federal grants) — *City & Cnty. of S.F. v. Sessions, N.D. Cal., 2018*

6 ("Congress . . . has repeatedly employed the spending power 'to further broad policy objectives by conditioning receipt of federal moneys upon compliance by the recipient with federal statutory and administrative directives.'" (emphasis added) — *State of Tennessee v. Xavier Becerra, 6th Cir., 2024*

4 (holding that pursuant to the Spending Clause, U.S. Const, art. I, § 8, cl. 1, Congress may condition its appropriation of money to the states on their agreement to impose restrictions that would be beyond Congress's constitutional legislative authority to enact directly) — *Moghadam, 11th Cir., 1999*

3 ("The "unconstitutional conditions" doctrine is based on the proposition that government incentives may be inherently coercive.") — *Pace, 5th Cir., 2005*

3 ("We cannot conclude . . . that a conditional grant of federal money... is unconstitutional simply by reason of its success in

achieving the congressional objective.") — *NFIB, SCOTUS, 2012*

3 (finding no coercion when "all South Dakota would lose if she adheres to her chosen course as to a suitable minimum drinking age is 5% of the funds otherwise obtainable under specified highway grant programs") — *Florida Ex Rel. Attorney General v. United States Department of Health & Human Services, 11th Cir., 2011*

↑

599. McBoyle v. United States

283 U.S. 25, SCOTUS, 1931
In 2020-24: cited by 46 decisions (appellate) · in all: 412 · 2021–2025: 47 · weight in the sub-cluster 27
Fit: 40% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.3 ACCA and the categorical approach, 17%)
Good law: green (read 500 of 514 citing opinions)
Role changed 1995-99: likely successor Lanier, 520 U.S. 259 (1997) (28% of the 36 decisions citing this case in 1995-99 also cite it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (29%)
Travels with: United States v. R. L. C. (cosine 0.15, 9 both); Bass (cosine 0.07, 17 both); Wiltberger (cosine 0.06, 19 both)
How later courts describe it (38 parentheticals; groups of similar wording, largest first; other courts' words)

11 (fair warning should be given to world of what the law intends to do if a certain line is passed; to make the warning fair, so far as possible the law should be clear) — *Victor Miranda v. Southern Pacific Transportation Company, 9th Cir., 1983*

3 ("Although it is not likely that a criminal will carefully consider the text of the law . . . fair warning should be given to the world in lan- guage that the common world will understand") — *Wooden, SCOTUS, 2022*

3 (in ordinary speech, "vehicle" does not cover an aircraft, even though "etymolog- ically it is possible to use the word" that way) — *Niz-Chavez, SCOTUS, 2021*

3 (a criminal statute should be construed in such a way that its language gives "fair warning" to the "common mind") — *RLC, SCOTUS, 1992*

2 ("Ignorance of the law excuses no man; not that all men knoiv the law, but because 'tis an excuse every man will plead, and no man can tell how to confute him." (emphasis added)) — *DC, D.C. Cir., 2015*

2 ("vehicle" in the 1930s did not include aircraft be- cause "in everyday speech 'vehicle' calls up the picture of a thing moving on land") — *Rutledge, SCOTUS, 2020*

2 (declining "to read words that so carefully enumerate the different forms of motor vehicles" that .are subject to the National Motor Vehicle Theft Act as including airplanes where the statute contains "no reference of any kind to aircraft") — *J.D. Donovan, Inc. v. Minnesota Department of Transportation, Minn., 2016*

2 (refusing to expand a criminal statute's reach without "a fair warning ... given to the world in language the common world will understand") — *United States v. Sean Fitzgerald, 6th Cir., 2018*

↑

600. Bell v. United States

349 U.S. 81, SCOTUS, 1955
In 2020-24: cited by 33 decisions (appellate) · in all: 1,069 · 2021–2025: 38 · weight in the sub-cluster 7
Fit: 40% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:38.1 Double jeopardy: same offense and multiple punishment, 23%)
Good law: green? (read the newest 100 of 1,299 citing opinions, filed 2015–2026: status now, not the year it changed)
Role changed 2000-04: likely successor Adel, 136 Wash. 2d 629 (1998) (31% of the 71 decisions citing this case in 2000-04 also cite it). (co-citation, not the text)
Also ties to: 2020-24:38 around New Hampshire v. Maine (33%); 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (28%)
Travels with: Bass (cosine 0.08, 5 both); United States v. Douglas Lee Dunford, Sr. (cosine 0.06, 6 both); Wiltberger (cosine 0.02, 6 both)
How later courts describe it (120 parentheticals; groups of similar wording, largest first; other courts' words)

33 (holding that transporting two women across state lines for immoral purposes in a single transaction constituted the same offense, i.e., one violation of the Mann Act, not two) — *Watkins, Tenn., 2012*

19 (holding "ambiguity should be resolved in favor of lenity") — *In Re Disciplinary Proceeding Against Haley, Wash., 2006*

18 (holding that if "Congress does not fix the punishment for a federal offense clearly and without ambiguity, doubt will be resolved against turning a single transaction into multiple offenses") — *United States v. William Moye, 4th Cir., 2006*

7 (holding it is "a presupposition of our law to resolve doubts in the enforcement of a penal code against the imposition of a harsher punishment") — *Mullins, Neb., 2024*

4 ("The punishment appropriate for the diverse federal offenses is a matter for the discretion of Congress") — *Geraghty v. United States Parole Commission, 3rd Cir., 1978*

4 (reviewing the defendant's conviction on two counts of violating the Mann Act, arising out of a single trans- action) — *United States v. Walter Overton, 9th Cir., 2009*

3 (Mann Act did not expressly make the simultaneous interstate transportation of more than one woman for the purpose of prostitution liable to cumulative punishment for each woman transported) — *McCarroll, La., 1976*

3 (When determining how many times a federal offense has been committed, courts must determine "[what Congress has made

the allowable unit of prosecution." (internal quotation marks omitted)) — *Rasabout, Utah, 2015*

↑

601. Food Marketing Institute v. Argus Leader Media

588 U.S. 427, SCOTUS, 2019
In 2020-24: cited by 87 decisions (appellate) · in all: 315 · 2021–2025: 244 · weight in the sub-cluster 28
Fit: 39% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 10%)
Good law: green (read 315 of 315 citing opinions)
Travels with: Perrin (cosine 0.04, 8 both); Posadas (cosine 0.03, 5 both); Kozminski (cosine 0.02, 5 both)
How later courts describe it (82 parentheticals; groups of similar wording, largest first; other courts' words)

- **24** (holding that when the first Chevron step "yields a clear answer, judges must stop") — *Barefordv. McDonald, Vet. App., 2022*
- **11** ("Even [courts] who sometimes consult legislative history will never allow it to be used to 'muddy' the meaning of 'clear statutory language.'") — *United States v. Eric Lopez, 9th Cir., 2021*
- **4** (noting that courts do not "ordinarily imbue statutory terms with a specialized . . . meaning when Congress has not itself invoked" one) — *Apache Stronghold v. USA, 9th Cir., 2024*
- **4** (holding that for information to be confidential, "the person imparting it" must "customarily [keep it] private") — *Naumes, D.D.C., 2022*
- **4** (holding that legislative history should never "muddy the meaning of clear statutory language" (quotation marks omitted) (citation omitted)) — *Meyer, D. Alaska, 2023*
- **3** (concluding that there was a justiciable controversy because the government "represented unequivocally" that it would not voluntarily moot the controversy absent a final judicial order, and "[t]hat is enough to satisfy Article III") — *State of Texas v. USA, 5th Cir., 2019*
- **2** ("[W]here a statute's terms are undefined, our interpretation is guided by the terms' 'regular usage.'") — *Teva Pharmaceuticals USA, Inc. v. United States Food and Drug Administration, D.D.C., 2020*
- **2** (noting the Supreme Court "has repeatedly refused to alter" statute's "plain terms on the strength only of arguments from legislative history") — *Avion Funding v. GFS Industries, 5th Cir., 2024*

↑

602. United States v. Kozminski

487 U.S. 931, SCOTUS, 1988
In 2020-24: cited by 25 decisions (appellate) · in all: 385 · 2021–2025: 113 · weight in the sub-cluster 13
Fit: 39% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:4.1 Pro se pleadings and Twombly/Iqbal in prisoner suits, 11%)
Good law: green (read 409 of 409 citing opinions)
Travels with: Calimlim (cosine 0.21, 6 both); Bass (cosine 0.08, 6 both); Moskal (cosine 0.04, 6 both)
How later courts describe it (66 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (observing that' "threatening ... an immigrant with deportation could constitute the threat of legal coercion that induces involuntary servitude") — *Aragon, D. Minnesota, 2017*
- **8** (every case in which this Court has found a condition of involuntary servitude, the victim had no available choice but to work or be subject to legal sanction) — *Schachter, 2d Cir., 2003*
- **5** (tension between requirement of "definite standard of guilt" and "incorporat[ion] by reference a large body of potentially evolving federal law" is resolved with strict scienter requirement) — *Daniel Schleifer v. City Of Charlottesville, 4th Cir., 1998*
- **4** (identifying purposes underlying rule of lenity as: the promotion of fair notice "to those subject to the criminal laws, minimiz[ing] the risk of selective or arbitrary enforcement, and ... maintain[ing] the proper balance between [the legislature], prosecutors and courts....") — *Roberts, 1st Cir., 1995*
- **3** ("By employing the constitutional language, Congress apparently was focusing on the prohibition of comparable conditions") — *Bossier Parish, SCOTUS, 2000*
- **2** (involuntary servitude is established when a "victim had no available choice but to work or be subject to legal sanction") — *Burns v. First American Trustee Servicing Solutions LLP, 9th Cir., 2012*
- **2** (defining "involuntary servitude" as "a condition of servitude in which the victim is forced to work for the defendant by the use or threat of physical restraint or physical injury, or by the use or threat of coercion through law or the legal process") — *Marcus Kyle Free v. Cathy Diane Lewis, Tex. App.-Edinburg-Corpus Christi, 2012*
- **2** (observing that requiring inmates to work without pay does not violate the Thirteenth Amendment's prohibition against involuntary servitude) — *Joseph G. Givens v. AL Dept. of Corrections, 11th Cir., 2004*

↑

603. Holder v. Martinez Gutierrez

132 S. Ct. 2011, SCOTUS, 2012
In 2020-24: cited by 16 decisions (appellate) · in all: 94 · 2021–2025: 15 · weight in the sub-cluster 11
Fit: 39% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 35%)
Good law: green? (read the newest 100 of 103 citing opinions, filed 2012–2026: status now, not the year it changed)
Travels with: Jama (cosine 0.12, 6 both); Encino Motorcars (cosine 0.03, 7 both); Brand X Internet (cosine 0.03, 6 both)

How later courts describe it (41 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("[T]he doctrine of congressional ratification applies only when Congress reenacts a statute without relevant change.") — *Cook County, Illinois v. Chad F. Wolf, 7th Cir., 2020*
- **4** ("We cannot read a silent statute as requiring (not merely allowing) imputation just because that rule would be family-friendly.") — *Annachamy, 9th Cir., 2012*
- **2** (construing § 1229b(a) both with and without Chevron deference) — *Ramiro Tula Rubio v. Loretta Lynch, 5th Cir., 2015*
- **2** ("Congress eliminated the very term — 'domicile'—on which the appeals courts had founded their imputation decisions.") — *Chris McDaniel v. Thad Cochran, Miss., 2014*
- **2** (unanimously reversing the Ninth Circuit's determination that the BIA's construction of the INA was not permissible) — *RAFAEL DIAZ-RODRIGUEZ V. MERRICK GARLAND, 9th Cir., 2022*
- **2** ("The first paragraph of [1229b(a)] requires that the alien have held the status of a lawful permanent resident (LPR) for at least five years") — *Ramiro Tula Rubio v. Loretta Lynch, 5th Cir., 2015*
- **2** ("[T]he alien must have lived in the United States for at least seven continuous years after a lawful admission _") — *Ramiro Tula Rubio v. Loretta Lynch, 5th Cir., 2015*
- **2** ("The immigration laws have long given the Attorney General discretion to permit certain otherwise-removable aliens to remain in the United States") — *United States v. State of Alabama, 11th Cir., 2012*

↑

604. Yates v. United States

135 S. Ct. 1074, SCOTUS, 2015
In 2020-24: cited by 40 decisions (appellate) · in all: 331 · 2021–2025: 28 · weight in the sub-cluster 6
Fit: 39% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 25%)
Good law: green? (read the newest 100 of 364 citing opinions, filed 2019–2026: status now, not the year it changed)
Also ties to: 2020-24:21 around Armendariz (18%)
Travels with: Azar (cosine 0.03, 7 both); King (cosine 0.02, 5 both); Brand X Internet (cosine 0.02, 6 both)
How later courts describe it (93 parentheticals; groups of similar wording, largest first; other courts' words)

- **17** (finding that a fish was not a "tangible object" under the statute because "[i]n law as in life, however, the same words, placed in different contexts, sometimes mean different things") — *Mohammad Jahir v. Ryman Hospitality Properties, 4th Cir., 2015*
- **6** (holding that courts should "avoid ascribing to one word a meaning so broad that it is inconsistent with its accompanying words" (citation omitted)) — *Trump, D. Or., 2019*
- **5** (noting that the interpretation of statutory language is "determined not only by reference to the language itself, but as well by the specific context in which that language is used, and the broader context of the statute as a whole" (citation omitted, alterations incorporated)) — *Disney Enterprises, Inc. v. Vidangel, Inc., 9th Cir., 2017*
- **4** ("[A]lthough dictionary defini- tions of the words 'tangible' and 'object' bear consideration, they are not dispositive of the meaning of 'tangible object' ....") — *Cook County, Illinois v. Chad F. Wolf, 7th Cir., 2020*
- **4** (declining to read statute so as to "significantly overlap" with a distinct statute, resisting a reading that would "render superfluous an entire provision passed in proximity as part of the same Act") — *Greenwald, D.D.C., 2022*
- **4** (stating that canon as "a word is known by the company it keeps") — *Garcia-Ortiz, 1st Cir., 2018*
- **3** ("The crime of importing or ex- porting illegal articles or articles on which duties have not been paid.") — *United States v. Heon Seok Lee, 7th Cir., 2019*
- **3** (recognizing while "headings are not commanding, they supply cues" with respect to a drafter's intent) — *United States v. Staff Sergeant CALVIN R. GIBBS, A.C.C.A., 2018*

↑

605. Keene Corp. v. United States

508 U.S. 200, SCOTUS, 1993
In 2020-24: cited by 41 decisions (appellate) · in all: 824 · 2021–2025: 133 · weight in the sub-cluster 3
Fit: 39% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.5 Ballot access and election regulation: Anderson-Burdick, 33%)
Good law: green (read 527 of 893 citing opinions)
Travels with: Russello (cosine 0.03, 7 both)
How later courts describe it (229 parentheticals; groups of similar wording, largest first; other courts' words)

- **85** (holding that the jurisdiction of the Court of Federal Claims depends "upon the state of things at the time of the action brought") — *Resource Investments v. United States, Fed. Cl., 2014*
- **70** ("[I]t is generally presumed that Congress acts intentionally and purposely in the disparate inclusion or exclusion" of "particular language") — *Procopio, Fed. Cir., 2019*
- **13** (providing that courts have a "duty to refrain from reading a phrase into the statute when Congress has left it out") — *United States v. Health Possibilities, P.S.C., 6th Cir., 2000*
- **8** (noting that "we apply the presumption that Congress was aware of these earlier judicial interpretations and, in effect, adopted them") — *McLean, 4th Cir., 2009*
- **5** (requiring a change in the underlying substantive law to be clearly expressed) — *In re Waindel, 5th Cir., 1995*
- **5** (holding that section 1500 "bar[s] jurisdiction over the claim of a plaintiff who, upon filing [in the Claims Court — now the

Court of Federal Claims], has an action pending in any other court 'for or in respect to' the same claim") — *Wilson, Fed. Cl., 1995*

4 (finding that the use of a phrase in one part of a statutory scheme "only underscores our duty to refrain from reading a phrase into the statute when Congress has left it out" of another section) — *United States v. Lopez de Victoria, C.A.A.F., 2008*

3 ("That the two actions were based on different legal theories [does] not matter.") — *Trusted Integration, Inc. v. United States, Fed. Cir., 2011*

↑

606. Louisiana Pub. Serv. Comm'n v. FCC

476 U.S. 355, SCOTUS, 1986

In 2020-24: cited by 44 decisions (appellate) · in all: 839 · 2021–2025: 64 · weight in the sub-cluster 25

Fit: 38% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 23%)

Good law: green (read 507 of 913 citing opinions)

Role changed 2020-24: likely successor Trump, 585 U.S. 667 (2018) (27% of the 44 decisions citing this case in 2020-24 also cite it). (co-citation, not the text)

Travels with: City of Chicago v. Jefferson B. Sessions III (cosine 0.05, 6 both); City of Philadelphia v. Attorney General United States (cosine 0.05, 6 both); Brown & Williamson (cosine 0.05, 10 both)

How later courts describe it (166 parentheticals; groups of similar wording, largest first; other courts' words)

56 (recognizing that "an agency literally has no power to act ... unless and until Congress confers power upon it") — *Atlantic City Electric Co. v. Federal Energy Regulatory Commission, D.C. Cir., 2002*

17 (holding that preemption may result not only from congressional action, but also from federal agencies acting within the scope of their congressionally delegated authority) — *Petix, W.D.N.Y., 1995*

16 ("As we so often admonish, only Congress can rewrite [a] statute.") — *Simmons, 4th Cir., 2011*

10 (noting that "technical terms of art should be interpreted by reference to the trade or industry to which they apply") — *Belt v. EmCare, Inc., 5th Cir., 2006*

9 (arguing that statutory provisions should be read to avoid conflict with each other) — *In Re Certified Air Technologies, Inc., Bankr. C.D. Cal., 2003*

7 ("The critical question in any pre-emption analysis is always whether Congress intended that federal regulation supersede state law.")

5 (overturning agency preemption determination without mention of Chevron deference) — *Garrelts, N.D. Iowa, 1996*

5 ("Pre-emption occurs when Congress, in enacting a federal statute, expresses a clear intent to pre-empt state law.") — *Conley, E.D. Mich., 2009*

↑

607. Microsoft Corp. v. i4i Ltd. Partnership

131 S. Ct. 2238, SCOTUS, 2011

In 2020-24: cited by 56 decisions (appellate) · in all: 771 · 2021–2025: 272 · weight in the sub-cluster 20

Fit: 38% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 18%)

Good law: green? (read the newest 100 of 825 citing opinions, filed 2023–2026: status now, not the year it changed)

Also ties to: 2020-24:26 around Molina (20%)

Travels with: I4i Ltd. Partnership v. Microsoft Corp. (cosine 0.31, 12 both); Marx (cosine 0.06, 10 both); Duncan (cosine 0.04, 5 both)

How later courts describe it (125 parentheticals; groups of similar wording, largest first; other courts' words)

26 (holding that patent invalidity defense under 35 U.S.C. § 282 must be "proved by clear and convincing evidence.") — *On Track Innovations Ltd. v. T-Mobile USA, Inc., S.D.N.Y., 2015*

9 ("The canon against superfluity assists only where a competing interpretation gives effect to every clause and word of a statute." (internal quotation marks omitted)) — *Seila Law LLC v. Consumer Financial Protection Bureau, SCOTUS, 2020*

7 ("'[T]he burden of establishing invalidity 19 of a patent or any claim thereof shall rest on the party asserting such invalidity.'" (quoting 20 35 U.S.C. § 282)) — *Bell Semiconductor, LLC v. NXP USA, Inc., S.D. Cal., 2023*

6 ("[A] defendant rais- ing an invalidity defense bore a heavy burden of persua- sion, requiring proof of the defense by clear and convincing evidence.") — *Parkervision, Inc. v. Qualcomm Incorporated, Fed. Cir., 2024*

5 (reaffirming that where Congress uses a common-law term in a statute, the court must assume the term comes with a common law meaning, absent anything pointing another way)

5 (stating that "new evidence supporting an invalidity defense may 'carry more weight' in an infringement action than evidence previously considered by the PTO") — *Only the First, Ltd. v. Seiko Epson Corp., N.D. Ill., 2011*

4 (declining to rely on the surplusage canon because "no interpretation" of the statute "avoids excess language") — *Whole Woman's Health v. Judge Austin Reeve Jackson Penny Clarkston Mark Lee Dickson Stephen Brint Carlton Katherine A. Thomas Cecile Erwin Young Allison Vordenbaumen Benz Ken Paxton, Tex., 2022*

3 (referring to it as the "canon against superfluity") — *Compania Embotelladora Del Pacifico, S.A. v. Pepsi Cola Co., 2d Cir., 2020*

↑

608. SIBRUN

18 I. & N. Dec. 354, BIA, 1983

In 2020-24: cited by 18 decisions (appellate) · in all: 144 · 2021–2025: 21 · weight in the sub-cluster 2

Fit: 38% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:16.2 Asylum credibility and corroboration (Second Circuit), 31%)

Good law: green? (read the newest 100 of 146 citing opinions, filed 2009–2025: status now, not the year it changed)

Role changed 2005-09: likely successor Mu Xiang Lin v. United States Department of Justice, 432 F.3d 156 (2005) (52% of the 54 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)

Also ties to: 2020-24:16 Immigration and agency review (21%)

Travels with: L-A-B-R (cosine 0.06, 6 both)

How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (concluding that an alien seeking a continuance based on an asserted lack of preparation "at least must make a reasonable showing that the lack of preparation occurred despite a diligent good faith effort to be ready to proceed") — *J-A-F-S, BIA, 2025*
- **7** (holding that possible criminal punishment for "illegal departure" "does not demonstrate a likelihood of persecution under the Act") — *Mei Fang Cai v. Holder, 2d Cir., 2009*
- **2** ("Prejudice is the sine qua non for establishing that a hearing was unfair.") — *Matter of KHAN, BIA, 2024*
- **2** (affirming the IJ's denial of alien's motion to continue his removal hearing "to obtain and present additional evidence") — *Wakkary, 9th Cir., 2009*
- **1** (bare allegation that alien could have located unnamed witnesses if given a continuance is not sufficient to show abuse of discretion; the movant must show what the witness would have said, that he was available and willing to testify, and how it would have changed outcome) — *Modou Thiam v. . U.S. Attorney General, 11th Cir., 2021*
- **1** (petitioner must show actual prejudice from denial of continuance) — *Paz Palma v. Garland, 5th Cir., 2023*
- **1** ("Bare, unsupported allegations are insufficient; the alien must specifically articulate the particular facts involved or evidence which he would have presented, and otherwise fully explain how denial of his motion fundamentally changed the result reached.") — *Jack, 2d Cir., 2023*
- **1** (cited by this court in unpublished cases, e.g., Mejia-Oviedos v. Sessions, 728 F. App'x 277, 279 (5th Cir. 2018) (per curiam); Arora v. Keisler, 250 F. App'x 615, 616 (5th Cir. 2007) (per curiam)) — *Pan, 5th Cir., 2022*

↑

609. Chapman v. United States

500 U.S. 453, SCOTUS, 1991

In 2020-24: cited by 61 decisions (appellate) · in all: 1,209 · 2021–2025: 91 · weight in the sub-cluster 9

Fit: 37% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:1.12 Texas criminal: Eighth Amendment disproportionality and preservation, 17%)

Good law: green? (read the newest 100 of 1,361 citing opinions, filed 2020–2026: status now, not the year it changed)

Also ties to: 2020-24:1 Federal habeas: ineffective assistance and AEDPA (17%)

Travels with: Huddleston (cosine 0.12, 5 both); Moskal (cosine 0.03, 5 both); Koray (cosine 0.02, 5 both)

How later courts describe it (285 parentheticals; groups of similar wording, largest first; other courts' words)

- **32** (holding that a vagueness claim must be evaluated as "applied to the facts of [the] case" when "First Amendment freedoms are not infringed") — *United States v. Vassilios K. Handakas, 2d Cir., 2002*
- **26** (holding that a defendant is "eligible for, and the court may impose, whatever punishment is authorized by statute for his offense") — *Albert Williams v. Warden, Federal Bureau of Prison, 11th Cir., 2013*
- **26** (holding that the Legislature can define criminal punishment "without giving the courts any sentencing discretion.") — *Kelly, Fla. Dist. Ct. App., 2001*
- **22** (holding that the weight of the blotter paper containing LSD, and not the weight of the pure LSD, determines eligibility for the minimum sentence) — *United States v. William Scott Blythe, 7th Cir., 1991*
- **18** (explaining that the rule of lenity does not apply unless a statute remains ambiguous even after a court has considered every source available to aid in interpretation) — *In Re Avery W. Vial, Movant, 4th Cir., 1997*
- **18** (concluding that terms "must be given their ordinary meaning" where "[n]either the statute nor the Sentencing Guidelines define the terms 'mixture' and 'substance,' " and where they do not "have any established commonlaw meaning") — *United States v. Brad Wayne Young, 9th Cir., 2006*
- **15** (holding that the term "mixture or substance" in 21 U.S.C. § 841(b)(1) includes the carrier medium in which LSD is absorbed) — *United States v. Robert James Stoneking, 8th Cir., 1995*
- **11** (applying rational basis test to classification based on nature of offense)

↑

610. Bond v. United States

134 S. Ct. 2077, SCOTUS, 2014

In 2020-24: cited by 113 decisions (appellate) · in all: 351 · 2021–2025: 171 · weight in the sub-cluster 52

Fit: 37% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.7 around Press-Enterprise Co. v. Superior Court of Cal., Riverside..., 11%)

Good law: yellow 2024 (read 374 of 374 citing opinions)

2024 (N.D. Ala.): strong "overturned" — *Yellen*: tion on Chemical Weapons "pursuant to the Federal Government's constitutionally enumerated power to make treaties." Id. On appeal, the Supreme Court overturned Bond's conviction, ruling that the Chemical Weapons Act did not "reach purely

local crimes." Id. at 860860 . Instead, the Court held that…
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (21%)
Travels with: Gregory v. Ashcroft (cosine 0.09, 19 both); Bass (cosine 0.06, 13 both); Jones (cosine 0.05, 7 both)
How later courts describe it (71 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** (recognizing the "well-established principle" that a federal court "will not decide a constitutional question if there is some other ground upon which to dispose of the case" (quoting Escambia Cnty. v. McMillian, 466 U.S. 48, 51 (1984) (per curiam))) — *CPSC, D.C. Cir., 2023*
- **7** ("In settling on a fair reading of a statute, it is not unusual to consider the ordinary meaning of a defined term . . . .") — *JOHNSON v. MATTRESS WAREHOUSE, INC., E.D. Pa., 2021*
- **7** (noting that when Congress changes the balance of the vertical separation of powers, courts look for a clear statement) — *Trump, D.C. Cir., 2018*
- **4** ("It has long been settled . . . that we presume federal statutes do not . . . preempt state law." (citations omitted)) — *Marc Wiersum v. U.S. Bank, N.A., 11th Cir., 2015*
- **3** ("[I]t is appropriate to refer to basic principles of federalism embodied in the Constitution to resolve ambiguity in a federal statute.") — *Mark Suesz v. Med-1 Solutions, LLC, 7th Cir., 2014*
- **3** (noting that "our constitutional structure leaves local criminal activity primarily to the States") — *State of Arizona v. Giovani Fuster Melendez, Ariz., 2025*
- **2** (employing "background principles" to construe ambiguous text) — *N.H. Lottery Comm'n v. Barr, D.N.H., 2019*
- **2** (applying Medellín to hold as non-self-executing the Chemical Weapons Convention, which "provides that '[e]ach State Party shall, in accordance with its constitutional processes, adopt the necessary measures to implement its obligations under this Convention'" (alteration in original) — *Green Enterprises, LLC v. Hiscox Syndicates Limited at Lloyd's of London, 1st Cir., 2023*

↑

611. Reiter v. Sonotone Corp.

442 U.S. 330, SCOTUS, 1979
In 2020-24: cited by 93 decisions (appellate) · in all: 1,137 · 2021–2025: 192 · weight in the sub-cluster 34
Fit: 36% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 23%)
Good law: green? (read the newest 100 of 1,276 citing opinions, filed 2023–2026: status now, not the year it changed)
Role changed 1985-89: likely successor Chevron, 467 U.S. 837 (1984) (36% of the 94 decisions citing this case in 1985-89 also cite it). (co-citation, not the text)
Travels with: Reiter (cosine 0.29, 8 both); Woods (cosine 0.08, 11 both); Consumer Product Safety Commission v. GTE Sylvania, Inc. (cosine 0.05, 5 both)
How later courts describe it (277 parentheticals; groups of similar wording, largest first; other courts' words)

- **78** (holding that courts must give effect to every word when interpreting a statute) — *Giattina, E.D. Va., 1996*
- **54** (reiterating that "[c]anons of construction ordinarily suggest that terms connected by a disjunctive be given separate meanings, unless the context dictates otherwise") — *United States v. E-Gold, Ltd., D.D.C., 2008*
- **23** (holding that district courts are vested with broad power and discretion in matters of certification and management of class actions) — *Jones, D. Minnesota, 2003*
- **13** ("Money, of course, is a form of prop- erty") — *Horn, SCOTUS, 2025*
- **13** (explaining that the phrase "business or property" in the Clayton Act, 15 U.S.C. § 15, "retains restrictive significance" and "would ... exclude personal injuries suffered") — *Abdiel Echeverria v. BAC Home Loans Servicing, LP, 11th Cir., 2013*
- **12** (noting that private antitrust suits "provide a significant supplement to the limited resources available at the Department of Justice") — *Williams v. Mohawk Industries, Inc., 11th Cir., 2006*
- **11** (noting that Congress designed the Sherman Act as a "consumer welfare prescription") — *Vandebrake, N.D. Iowa, 2011*
- **9** (holding that consumers have standing under the Clayton Act) — *Salveson, N.D. Cal., 1981*

↑

612. New York v. United States

505 U.S. 144, SCOTUS, 1992
In 2020-24: cited by 81 decisions (appellate) · in all: 1,121 · 2021–2025: 117 · weight in the sub-cluster 73
Fit: 34% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 21%)
Good law: green (read 562 of 1,297 citing opinions)
Travels with: Printz (cosine 0.25, 33 both); NFIB (cosine 0.08, 34 both); Dole (cosine 0.08, 15 both)
How later courts describe it (368 parentheticals; groups of similar wording, largest first; other courts' words)

- **100** (holding that the Congress may not order state legislatures to enact or enforce a federal regulatory program) — *Jeffrey Washington v. Sunny Schriver, Superintendent, Wallkill Correctional Facility, 2d Cir., 2001*
- **12** (noting that the "Constitution's division of power among the three branches is violated where one branch invades the territory of another, whether or not the encroachedupon branch approves the encroachment") — *National Labor Relations Board v. Enterprise Leasing Co. Southeast, LLC, 4th Cir., 2013*
- **12** (noting that the Court has addressed the merits of claims founded on the Guarantee Clause, but has declined to resolve the question whether all claims under the Clause present nonjusticiable political questions) — *Manussier, Wash., 1996*

11 (holding that Congress may not compel states to enact legislation through coercive "take title" provisions regarding hazardous waste) — *Ssc Corp. v. Town Of Smithtown, 2d Cir., 1995*

8 (holding take-title provision severable from Low-Level Radioactive Waste Policy Amendments Act of 1985) — *Florida Ex Rel. Attorney General v. United States Department of Health & Human Services, 11th Cir., 2011*

6 ("State sovereignty is not just an end in itself: Rather, federalism secures to citizens the liberties that derive from the diffusion of sovereign power." (internal quotation marks and citation omitted)) — *United States v. The State Of Vermont Agency Of Natural Resources, 2d Cir., 1998*

6 (holding that the federal Low-Level Radioactive Waste Policy Act's provision, requiring states to pass regulations, was inconsistent with the Tenth Amendment) — *Accounting Outsourcing, LLC v. Verizon Wireless Personal Communications, L.P., M.D. La., 2004*

6 (holding that Congress can regulate interstate commerce directly under the Commerce Clause but cannot regulate state governments' regulation of interstate commerce) — *United States v. Nathan Wall (95-5007) and Donald Wall (95-5008), 6th Cir., 1996*

↑

613. National Federation of Independent Business v. Sebelius

132 S. Ct. 2566, SCOTUS, 2012 • note built
In 2020-24: cited by 187 decisions (appellate) · in all: 949 · 2021–2025: 335 · weight in the sub-cluster 118
Fit: 34% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 13%)
Good law: green (read 507 of 1,024 citing opinions)
Travels with: New York v. United States (cosine 0.08, 34 both); Davis (cosine 0.07, 7 both); Reorganized CF&I (cosine 0.06, 9 both)
How later courts describe it (301 parentheticals; groups of similar wording, largest first; other courts' words)

35 (joint opinion of Scalia, Kennedy, Thomas and Alito, J.J.) — *Randy Haight v. LaDonna Thompson, 6th Cir., 2014*

15 (holding that the individual mandate is a penalty in the context of the Anti- Injunction Act and a tax in the context of the Constitution) — *In Re. Daley, D. Mass., 2018*

11 ("Where Congress uses certain language in one part of a statute and different language in another, it is generally presumed that Congress acts intentionally.") — *Davis, E.D. Va., 2013*

11 (holding that Congress "had the power to impose the exaction in § 5000A under the taxing power") — *John Dierlam v. Donald Trump, President, 5th Cir., 2020*

9 (separate opinion of Roberts, C.J.) — *HHS, D.C. Cir., 2014*

8 (holding that the SRP is not a "tax" for purposes of the Anti-Injunction Act, and noting that how two federal statutes relate to each other "is up to Congress, and the best evidence of Congress's intent is the statutory text.") — *In re: Howard D. Juntoff, 6th Cir., 2022*

6 (stating that the AIA "protects the Government's ability to collect a consistent stream of revenue, by barring litigation to enjoin or otherwise obstruct the collection of taxes") — *Rueda, D. Maryland, 2022*

5 (noting it is not the Court's role to pass upon the wisdom of the Federal Affordable Care Act's requirement that individuals pay a tax if they do not obtain health insurance, but rather only upon its constitutionality) — *State of Iowa v. Christopher Craig Thompson, Iowa, 2013*

↑

614. Paroline v. United States

134 S. Ct. 1710, SCOTUS, 2014
In 2020-24: cited by 151 decisions (appellate) · in all: 533 · 2021–2025: 222 · weight in the sub-cluster 25
Fit: 34% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.8 around Alleyne, 26%)
Good law: green? (read the newest 100 of 558 citing opinions, filed 2024–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (34%)
Travels with: Mor (cosine 0.12, 15 both); Barnhart (cosine 0.07, 16 both); United States v. David Rothenberg (cosine 0.05, 6 both)
How later courts describe it (156 parentheticals; groups of similar wording, largest first; other courts' words)

14 ("The primary goal of restitution is remedial or compensatory, but it also serves punitive purposes." (citations omitted)) — *United States v. Angel Puentes, 11th Cir., 2015*

8 (noting that the production of child pornography "involves child abuse" and that child pornography is a permanent record of "the depicted child's abuse") — *United States v. Augustin Arce, 4th Cir., 2022*

8 (recognizing that "[p]roximate cause is a standard aspect of causation in criminal law and the law of torts," and discussing the need to establish both causation in fact and proximate causation with respect to a federal restitution statute) — *Brianna Marie Peterson v. Municipality of Anchorage, Alaska Ct. App., 2021*

8 (recognizing that "[d]istrict courts routinely exercise wide discretion ... in fashioning restitution orders") — *United States v. David Rothenberg, 11th Cir., 2019*

6 (holding that restitution is "proper under § 2259 only to the extent the defendant's offense proximately caused a victim's losses") — *United States v. Albert Burgess, Jr., 4th Cir., 2016*

5 ("Proximate cause is often explicated in terms of foreseeability or the scope of the risk created by the predicate conduct.") — *Soto, 1st Cir., 2015*

5 (stating that "the words 'as a result of' plainly suggest causation" within a federal restitution provision) — *Boettcher, Minn., 2019*

4 ("The full extent of this victim's suffering is hard to grasp.") — *United States v. Gregorio Gonzalez-Longoria, 5th Cir., 2016*

↑

615. Immigration & Naturalization Service v. Aguirre-Aguirre

526 U.S. 415, SCOTUS, 1999
In 2020-24: cited by 65 decisions (appellate) · in all: 1,027 · 2021–2025: 75 · weight in the sub-cluster 32
Fit: 33% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 27%)
Good law: green? (read the newest 100 of 1,159 citing opinions, filed 2020–2026: status now, not the year it changed)
Also ties to: 2020-24:16 Immigration and agency review (22%)
Travels with: Negusie (cosine 0.09, 14 both); Chevron (cosine 0.06, 42 both); Brand X Internet (cosine 0.03, 9 both)
How later courts describe it (207 parentheticals; groups of similar wording, largest first; other courts' words)

- **56** (holding that decisions of the BIA interpreting the INA are entitled to Chevron deference) — *Bah, 2d Cir., 2008*
- **40** (recognizing that "the BIA should be accorded Chevron deference as it gives ambiguous statutory terms 'concrete meaning through a process of case-by-case adjudication' ") — *Mejia-Orellana, 1st Cir., 2007*
- **24** (noting that "judicial deference to the Executive Branch is especially appropriate in the immigration context where officials exercise especially sensitive political functions that implicate questions of foreign relations") — *Auguste v. Ridge, 3rd Cir., 2005*
- **6** (holding that BIA interpretations of the Immigration and Nationality Act are entitled to deference under Chevron, U.S.A., Inc. v. Nat. Res. Def. Council, Inc., 467 U.S. 837 (1984)) — *Florinda Gomez-Chavez v. William P. Barr, 6th Cir., 2019*
- **6** (holding that the BIA's "construction of the statute [that] it administers" is entitled to Chevron deference) — *Parveen Singh (04-4352) and Amandeep Singh (04-4353) v. Alberto R. Gonzales, Attorney General, 6th Cir., 2006*
- **5** ("The U.N. Handbook may be a useful interpretative aid, but it is not binding on the Attorney General, the BIA, or United States courts.") — *Kane, 5th Cir., 2009*
- **4** (explaining that the "decision whether asylum should be granted to an eligible alien is committed to the Attorney General's [and the Secretary's] discretion" under the INA) — *East Bay Sanctuary Covenant v. Joseph Biden, 9th Cir., 2021*
- **3** ("The judiciary is not well positioned to shoulder primary responsibility for assessing the likelihood and importance of such diplomatic repercussions") — *Zadvydas, SCOTUS, 2001*

↑

616. Negusie v. Holder

555 U.S. 511, SCOTUS, 2009
In 2020-24: cited by 52 decisions (appellate) · in all: 292 · 2021–2025: 56 · weight in the sub-cluster 27
Fit: 33% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.8 around Winter, 28%)
Good law: green? (read the newest 100 of 322 citing opinions, filed 2018–2026: status now, not the year it changed)
Also ties to: 2020-24:16 Immigration and agency review (34%)
Travels with: Jorge O. Arevalo v. U.S. Attorney General (cosine 0.25, 5 both); Aguirre-Aguirre (cosine 0.09, 14 both); Securities & Exchange Commission v. Chenery Corp. (cosine 0.02, 8 both)
How later courts describe it (73 parentheticals; groups of similar wording, largest first; other courts' words)

- **7** (where "the BIA has not yet exercised its Chevron discretion to interpret the statute" at issue, the proper course is to remand to the BIA to permit the agency to address the matter in the first instance) — *Martinez-Perez, 10th Cir., 2020*
- **4** (a plaintiffs "[f]actual allegations must be enough to raise a right to relief above the speculative level .... ") — *Berry, D.D.C., 2011*
- **3** ("[I]f an agency erroneously contends that Congress' intent has been clearly expressed and has rested on that ground, we remand to require the agency to consider the question afresh in light of the ambiguity we see.") — *City of Glendale v. United States, 9th Cir., 2013*
- **3** (stating it "is well settled" that principles of Chevron deference apply to the Attorney General's interpretation of the INA) — *Grace, D.C. Cir., 2018*
- **3** (remanding the case to the Board of Immigration Appeals to determine whether coercion or distress is relevant to the "persecutor bar" to asylum status under the Immigration and Nationality Act) — *In Re South African Apartheid Litigation, S.D.N.Y., 2009*
- **3** (concluding that the BIA did not "exercise[] its Chevron discretion to interpret the statute in question" when the. BIA adopted a rule it believed was compelled by Supreme Court precedent interpreting a similar statute) — *R-S-C, 10th Cir., 2017*
- **2** ("ambiguities in statutes within an agency's jurisdiction to administer are delegations of authority to the agency to fill the statutory gap in reasonable fashion. Filling these gaps ... involves difficult policy choices that agencies are better equipped to make than courts.") — *Rojas-Perez, 1st Cir., 2012*
- **2** ("If the BIA decides to adopt a standard that [differs from the existing standard], it may be prudent and necessary for the Immigration Judge to conduct additional factfinding based on the new standard." (emphasis added)) — *VALDIVIEZO-GALDAMEZ, 3rd Cir., 2011*

↑

617. Parker Drilling Management Services, Ltd. v. Newton

587 U.S. 601, SCOTUS, 2019
In 2020-24: cited by 34 decisions (appellate) · in all: 119 · 2021–2025: 93 · weight in the sub-cluster 7
Fit: 33% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s), 18%)
Good law: green (read 119 of 119 citing opinions)

Also ties to: 2020-24:1 Federal habeas: ineffective assistance and AEDPA (25%)
Travels with: Sea-Land (cosine 0.12, 5 both); Food Marketing Institute v. Argus Leader Media (cosine 0.02, 5 both); Perrin (cosine 0.02, 5 both)
How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

- **9** (concluding that "Congress legislates against the backdrop of existing law") — *George DeGrella v. Department of the Air Force, MSPB, 2022*
- **4** (noting that one of the "cardinal principle[s]" of statutory interpretation is "that courts 'must give effect, if possible, to every clause and word of a statute'" (citation omitted)) — *Barbera, S.D.N.Y., 2025*
- **2** (holding that "the words of a statute must be read in their context and with a view to their place in the overall statutory scheme") — *United States v. Levian Pacheco Pacheco, 9th Cir., 2020*
- **2** (holding that a state law passed after 8 an area becomes a federal enclave "presumptively does not apply to the enclave") — *Williams v. Aramark Campus LLC, E.D. Cal., 2023*
- **1** (referring to the FAA's "saving clause") — *Meeks, E.D. Ky., 2019*
- **1** ("Generally, when an area in a state becomes a federal enclave, only the state law in effect at the time of the transfer of jurisdiction continues in force as surrogate federal law.") — *Ambler, D. Mont., 2025*
- **1** (California 27 minimum wage law did not apply on OCS even though the FLSA does not "excuse 1 because federal law addresses the minimum wage on the OCS) — *Mauia, N.D. Cal., 2020*
- **1** ("[W]hatever the import of 2 these provisions in an ordinary pre-emption case, they do not help Newton here[.]") — *Mauia, N.D. Cal., 2020*

↑

618. The Emily and the Caroline

22 U.S. 381, SCOTUS, 1824
In 2020-24: cited by 11 decisions (appellate) · in all: 73 · 2021–2025: 22 · weight in the sub-cluster 3
Fit: 33% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:12.1 Employment discrimination: McDonnell Douglas pretext, 22%)
Good law: green? (read the newest 77 of 77 citing opinions, filed 1825–2026: status now, not the year it changed)
Also ties to: 2020-24:12 around McDonnell-Douglas (22%)
Travels with: Camp (cosine 0.10, 5 both); William Akins v. United States (cosine 0.09, 5 both); ATF (cosine 0.05, 5 both)
How later courts describe it (6 parentheticals; groups of similar wording, largest first; other courts' words)

- **3** (rejecting an interpretation that would facilitate "evasion of the law") — *County of Maui v. Hawaii Wildlife Fund, SCOTUS, 2020*
- **3** (rejecting construction of statute offered by claimants because that construction 18 UNITED STATES V. PRASAD would "render[] the law in a great measure nugatory[] and enable offenders to elude its provisions in the most easy manner," thereby frustrating the law's purpose) — *United States v. Abhijit Prasad, 9th Cir., 2021*

↑

619. Gregory v. Ashcroft

501 U.S. 452, SCOTUS, 1991
In 2020-24: cited by 88 decisions (appellate) · in all: 1,127 · 2021–2025: 145 · weight in the sub-cluster 53
Fit: 31% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.2 Speech regulation: content neutrality, forums, expressive conduct, 11%)
Good law: green (read 584 of 1,324 citing opinions)
Travels with: Nixon (cosine 0.15, 7 both); Bond (cosine 0.09, 19 both); PICCADILLY (cosine 0.08, 5 both)
How later courts describe it (278 parentheticals; groups of similar wording, largest first; other courts' words)

- **50** (holding that Missouri's mandatory retirement requirement for state judges does not violate the Age Discrimination in Employment Act (ADEA)) — *Granville Amos v. Maryland Dept. Of Public Safety And Correctional Services, 4th Cir., 1997*
- **46** (holding that a federal statute should not be interpreted to "upset the usual constitutional balance of federal and state powers," unless Congress has clearly expressed an intent to do so) — *Flaherty, D. Mass., 2004*
- **23** (recognizing that "[t]hrough the structure of its government ... a State defines itself as a sovereign") — *State Ex Rel. Clark v. Johnson, N.M., 1995*
- **10** ("[a]s long as it is acting within the powers granted it under the Constitution, Congress may impose its will on the States") — *Gillespie v. City Of Indianapolis, 7th Cir., 1999*
- **9** ("The ADEA plainly covers all state employees except those excluded by one of the exceptions.") — *Hurd, 10th Cir., 1997*
- **8** (stating that "the Fourteenth Amendment does not override all principles of federalism") — *Granville Amos v. Maryland Department Of Public Safety And Correctional Services, 4th Cir., 1999*
- **6** ("In cases where a classification burdens neither a suspect group nor a fundamental interest, 'courts are quite reluctant to overturn governmental action on the ground that it denies equal protection of the laws.'") — *Evans, Colo., 1994*
- **6** (noting that enforcement of a "balance of power between the States and the Federal Government will reduce the risk of tyranny and abuse from either front," just as the balance of power among the branches of the federal government does) — *Guillen, Wash., 2001*

↑

620. Russello v. United States

464 U.S. 16, SCOTUS, 1983
In 2020-24: cited by 226 decisions (appellate) · in all: 2,433 · 2021–2025: 403 · weight in the sub-cluster 78
Fit: 29% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:3.9 around Schriro, 25%)
Good law: green (read 650 of 2,703 citing opinions)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (35%)
Travels with: United States v. Wong Kim Bo, A/K/A Yee Kuk Ho, Etc. (cosine 0.14, 17 both); Keene Corp. v. United States (cosine 0.03, 7 both); Ransom (cosine 0.02, 7 both)
How later courts describe it (639 parentheticals; groups of similar wording, largest first; other courts' words)

- **511** (holding that "where Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely [sic] in the disparate inclusion or exclusion") — *Robert Collinsgru Maura Collinsgru, on Behalf of Their Son, Francis Collinsgru v. Palmyra Board of Education, 3rd Cir., 1998*
- **26** (holding that when a legislature includes language in an earlier version of a bill but deletes it prior to enactment, it may be presumed that the deletion was intentional) — *In Re: Century Cleaning Services, Inc. Debtor, United States Trustee v. Garvey, Schubert & Barer Michael Batlan, Trustee, 9th Cir., 1999*
- **11** (observing that the RICO statute "was intended to provide new weapons of unprecedented scope for an assault upon organized crime and its economic roots") — *United States v. Cathryn M. Simmons, United States of America v. Michael L. Fisher, 8th Cir., 1998*
- **6** (refusing to conclude that "the differing language" in two statutory provisions "has the same meaning in each") — *Murphy v. Smith, SCOTUS, 2018*
- **4** (" 'the views of a subsequent Congress form a hazardous basis for inferring the intent of an earlier one' ") — *United States v. Lloyd Williams, 2d Cir., 1994*
- **4** (when Congress deletes limiting language, "it may be presumed that the limitation was not intended") — *John Hancock, SCOTUS, 1993*
- **4** (stating congressional "silence compels us to 'start with the assumption that the legislative purpose is expressed by the meaning of the words used' " (quoting Richards v. United States, 369 U.S. 1, 9, 82 S.Ct. 585, 7 L.Ed.2d 492 (1962))) — *Bruce Goldfarb v. Mayor and City Council of Baltimore, 4th Cir., 2015*
- **3** ("If the statutory language is unambiguous, in the absence of a clearly expressed legislative intent to the contrary, that language must ordinarily be regarded as conclusive.") — *Long Term Capital Holdings v. United States, D. Conn., 2004*

↑

621. PDK Laboratories Inc. v. United States Drug Enforcement Administration

362 F.3d 786, D.C. Cir., 2004
In 2020-24: cited by 102 decisions (appellate) · in all: 609 · 2021–2025: 222 · weight in the sub-cluster 7
Fit: 27% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1 Article III standing, 19%)
Good law: green? (read the newest 100 of 687 citing opinions, filed 2024–2026: status now, not the year it changed)
Travels with: Brunner (cosine 0.11, 7 both); State Farm (cosine 0.01, 8 both); FCC v. Fox (cosine 0.01, 5 both)
How later courts describe it (99 parentheticals; groups of similar wording, largest first; other courts' words)

- **44** ("[I]f it is not necessary to decide more, it is necessary not to decide more.") — *Langbord v. United States Department of the Treasury, 3rd Cir., 2016*
- **21** (stating that, under the harmless error rule, "[i]f the agency's mistake did not affect the outcome, if it did not prejudice the petitioner, it would be senseless to vacate and remand for reconsideration") — *Hesai Technology Co., Ltd v. United States Department of Defense, D.D.C., 2025*
- **7** ("In administrative law, as in federal civil and criminal litigation, there is a harmless error rule") — *National Ass'n of Home Builders v. Defenders of Wildlife, SCOTUS, 2007*
- **4** ("Deference to an agency's interpretation of a statute is not appropriate when the agency wrongly believes that [its] interpretation is compelled by Congress." (citations omitted)) — *In Re Polar Bear Endangered Species Act Listing, D.D.C., 2010*
- **3** ("The law of this circuit requires in those circumstances that we withhold Chevron deference and remand to the agency so that it can fill in the gap.") — *Kempthorne, D.D.C., 2008*
- **2** ("Yes, DEA did exercise discretion when it issued the order here, but before doing so it necessarily had to decide what [the provision] meant. That is the issue the agency must reconsider on remand ... so that it can fill in the [interpretative] gap" left unexplained.) — *Noble Energy, Inc. v. Kenneth Salazar, D.C. Cir., 2012*
- **2** ("[I]t is important to remember that if we find that an agency's stated rationale for its decision is erroneous, we cannot sustain its action on some other basis the agency did not mention.") — *Cigar Ass'n of Am. v. U.S. Food & Drug Admin., D.C. Cir., 2018*
- **2** ("DEA neither invokes Chevron ... nor asks us to give any special deference to the Deputy Administrator's judgment about the meaning of the provision.") — *FMCSA, D.C. Cir., 2006*

↑

622. Printz v. United States

521 U.S. 898, SCOTUS, 1997
In 2020-24: cited by 69 decisions (appellate) · in all: 803 · 2021–2025: 116 · weight in the sub-cluster 47
Fit: 23% of its co-citations in 2020-24 are with this sub-cluster's members; this is its best-fitting sub-cluster (next: 2020-24:2.1

Article III standing, 18%)
Good law: green (read 539 of 932 citing opinions)
Role changed 2005-09: likely successor Crosby, 530 U.S. 363 (2000) (34% of the 85 decisions citing this case in 2005-09 also cite it). (co-citation, not the text)
Travels with: New York v. United States (cosine 0.25, 33 both); NFIB (cosine 0.06, 26 both); City of Chicago v. Jefferson B. Sessions III (cosine 0.04, 6 both)
How later courts describe it (255 parentheticals; groups of similar wording, largest first; other courts' words)

- **102** (holding that Congress may not enact a law pursuant to one of its enumerated powers and then compel state officers to execute those federal laws) — *Florida Ex Rel. Attorney General v. United States Department of Health & Human Services, 11th Cir., 2011*
- **20** (reasoning that the lack of early federal statutes commandeering state executive officers "suggests an assumed absence of such power" given "the attractiveness of that course to Congress") — *Luis, SCOTUS, 2016*
- **6** ("It is an essential attribute of the States' retained sovereignty that they remain independent and autonomous within their proper sphere of authority.") — *Qwest Corp. v. City of Santa Fe, New Mexico, D.N.M., 2002*
- **5** ("Although the States surrendered many of their powers to the new Federal Government, they retained 'a residuary and inviolable sovereignty.'") — *Steinman, 9th Cir., 2025*
- **5** (noting that the Constitution contemplates that "a State's government will represent and remain accountable to its own citizens")
- **4** (state courts "have been viewed distinctively in this regard" because "unlike legislatures and executives, they applied the law of other sovereigns all the time") — *Brackeen, 5th Cir., 2021*
- **4** (holding that the federal government cannot commandeer state officials to enforce federal law) — *Barber, N.D. Ala., 2021*
- **3** ("By forcing state governments to absorb the financial burden of implementing a federal regulatory program, Members of Congress can take credit for 'solving' problems without having to ask their constituents to pay for the solutions with higher federal taxes") — *Rui One Corporation v. City Of Berkeley, 9th Cir., 2004*

Fit better in another sub-cluster

↑ **623. Standefer v. United States**
447 U.S. 10, SCOTUS, 1980
In 2020-24: cited by 18 decisions (appellate) · in all: 606 · 2021–2025: 43 · weight in the sub-cluster 1
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.4 Substantive due process: family, privacy and reproduction (50%)
Good law: green? (read the newest 100 of 692 citing opinions, filed 2015–2026: status now, not the year it changed)
Travels with: Printz (cosine 0.03, 6 both)
How later courts describe it (135 parentheticals; groups of similar wording, largest first; other courts' words)

- **16** (holding that an aider and abettor can be convicted of a charge even if the principal is acquitted) — *Jonathan C. Shaw v. Cal Terhune, 9th Cir., 2003*
- **13** (holding that nonmutual collateral es-toppel was not applicable in criminal context so as to preclude prosecution of an aider and abettor where a jury had already acquitted the principal) — *Reid, Ind. Ct. App., 1999*
- **11** (noting that collateral estoppel "is premised upon an underlying confidence that the result achieved in the initial litigation was substantially correct") — *Huskey, Tenn. Crim. App., 2001*
- **9** (listing the many reasons the application of nonmutual collateral estoppel against the government in criminal cases is disfavored) — *United States v. Desmond Christian, 7th Cir., 2003*
- **8** ("[Principals] are punishable for their criminal conduct; the fate of other participants is irrelevant.") — *United States v. William Ranney, United States of America v. Dennis Cioffi, 1st Cir., 1983*
- **6** (inconsistency of verdict "is reason, in itself, for not giving preclusive effect to the acquittals") — *United States v. Ira Paul Citron, 2d Cir., 1988*
- **6** (noting that contemporary principles of collateral estoppel militate against giving preclusive effect to an acquittal because the government does not have a right to appeal an acquittal in a criminal case)
- **5** (noting that a "'full and fair opportunity to litigate' ... is a prerequisite of estoppel") — *Gillis, Md., 1993*

↑ **624. National Ass'n of Reversionary Property Owners v. Surface Transportation Board**
158 F.3d 135, D.C. Cir., 1998
In 2020-24: cited by 8 decisions (appellate) · in all: 58 · 2021–2025: 9 · weight in the sub-cluster 1
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.1 Article III standing (50%)
Good law: green? (read the newest 61 of 61 citing opinions, filed 1998–2025: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 6 both)
How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts' words)

- **5** ("When an agency invites debate on some aspects of a broad subject, ... it does not automatically reopen all related aspects including those already decided.") — *Natural Resources Defense Council v. Environmental Protection Agency, D.C. Cir., 2009*
- **1** ("Ambiguity in an NPRM may also tilt toward a finding that the issue has been reopened.") — *Appalachian Power Co. v. Environmental Protection Agency, D.C. Cir., 2001*
- **1** (discussing limits on when a subsequent agency decision "reopens" a previous decision to challenge) — *Department, 5th Cir., 2020*

1 (describing the doctrine as an "exception to statutory limits on the time for seeking review of an agency decision" (alterations omitted)) — *Biden, SCOTUS, 2022*

↑

625. Johnson v. United States

544 U.S. 295, SCOTUS, 2005
In 2020-24: cited by 23 decisions (appellate) · in all: 399 · 2021–2025: 156 · weight in the sub-cluster 1
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:1.3 Federal habeas: AEDPA deference and procedural default (50%)
Good law: green? (read the newest 100 of 425 citing opinions, filed 2022–2026: status now, not the year it changed)
Also ties to: 2020-24:1 Federal habeas: ineffective assistance and AEDPA (50%)
Travels with: Landgraf (cosine 0.01, 5 both)
How later courts describe it (101 parentheticals; groups of similar wording, largest first; other courts' words)

18 (stating that "the Court has never accepted pro se representation alone or procedural ignorance as an excuse for prolonged inattention when a statute's clear policy calls for promptness.") — *Doly, S.D. Fla., 2023*

9 (stating that "a defendant given a sentence enhanced for a prior conviction is entitled to a reduction if the earlier conviction is vacated") — *Stephens, D. Maryland, 2020*

5 (holding that a notice of order vacating a federal prisoner's prior state conviction used to enhance federal sentence triggers AEDPA's one year limitations period, provided petitioner has shown due diligence in seeking the order) — *Patrick, D. Del., 2011*

5 (concluding that defendant who waited more than three years after federal sentencing to seek the vacatur of state convictions did not exercise due diligence) — *United States v. Williams, 4th Cir., 2006*

4 ("[DJiligence can be shown by prompt action on the part of the petitioner as soon as he in a position to realize that he has an interest in challenging the prior conviction.") — *Stephens, D. Mass., 2010*

4 (holding that petitioner "fell far short of reasonable diligence in challenging [his] state conviction) — *McDaniel, M.D. Ala., 2025*

3 (calling it "highly doubtful" that Congress intended a time limit on pursuing a claim to expire before the claim arose) — *Graham County Soil & Water Conservation District v. United States Ex Rel. Wilson, SCOTUS, 2005*

3 (recognizing a basis for relief when a sentence is erroneously enhanced under the mandatory guidelines) — *Kevin Spencer v. United States, 11th Cir., 2014*

↑

626. United States v. Dennis Smith

960 F.3d 883, 6th Cir., 2020
In 2020-24: cited by 12 decisions (appellate) · in all: 17 · 2021–2025: 14 · weight in the sub-cluster 1
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:3.1 Reasonableness review of federal sentences (50%)
Good law: green? (read the newest 17 of 17 citing opinions, filed 2020–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (50%)
Travels with: United States v. Jeffery Havis (cosine 0.02, 5 both)
How later courts describe it (2 parentheticals; groups of similar wording, largest first; other courts' words)

1 (holding that the criminal defendant's waiver of appeal rights was knowing and voluntary because he indicated at a 18 Nos. 24-3308/3309/3364/3389/3400/3438, United States v. Radovic, et al. plea hearing that he understood and agreed to the waiver) — *United States v. Ronnie Radovic, 6th Cir., 2025*

1 (holding that Ohio Rev. Code § 2925.03(A)(2) "falls safely within the confines of § 4B1.2(b)" and constitutes a controlled substances offense sufficient to permit application of the career offender enhancement) — *United States v. Robert Starr, 6th Cir., 2023*

↑

627. NFIB v. OSHA

595 U.S. 109, SCOTUS, 2022
In 2020-24: cited by 12 decisions (appellate) · in all: 56 · 2021–2025: 56 · weight in the sub-cluster 1
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s) (50%)
Good law: green (read 56 of 56 citing opinions)
Travels with: Whitman (cosine 0.02, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

2 (joint opinion of Breyer, SOTOMAYOR, and KAGAN, JJ.) — *Learning Resources, Inc. v. Trump Revisions: 2/23/26, SCOTUS, 2026*

2 (applying the doctrine where OSHA required all federal employees to obtain COVID-19 vaccinations) — *National Council of Nonprofits v. Office of Management and Budget, D.D.C., 2025*

2 (staying an illegal vaccine mandate even though the Government said the mandate would save more than 6,500 lives) — *Association of American Universities v. Department of Defense, D. Mass., 2025*

1 (relevant provisions dated to 1970) — *Alliance for Fair Board Recruitment v. SEC, 5th Cir., 2024*

1 (per cu- Page Proof Pending Publication riam) — *Trump, SCOTUS, 2025*

1 ("Administrative agencies are creatures of statute. They accordingly possess only the authority that Congress has provided.") — *In Re Demaree Reed, Tex., 2026*

1 (agreeing with us that "the Secretary lacked authority to impose the [covid vaccine] mandate") — *FDA, 5th Cir., 2026*

1 (applying major questions doctrine to rule setting "public health measures" that were "outside of OSHA's sphere of expertise" rather than "workplace safety standards") — *ATS TREE SERVICES, LLC v. FEDERAL TRADE COMMISSION, E.D. Pa., 2024*

↑

628. Federal Communications Commission v. Pottsville Broadcasting Co.

309 U.S. 134, SCOTUS, 1940
In 2020-24: cited by 11 decisions (appellate) · in all: 642 · 2021–2025: 21 · weight in the sub-cluster 1
Fit: 50% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.10 Separation of powers: removal power and non-Article III adjudication (2020s) (50%)
Good law: green? (read the newest 100 of 749 citing opinions, filed 2000–2026: status now, not the year it changed)
Travels with: Vermont Yankee Nuclear Power Corp. v. Natural Resources D... (cosine 0.03, 5 both)
How later courts describe it (28 parentheticals; groups of similar wording, largest first; other courts' words)

6 (noting the "familiar doctrine that a lower court is bound to respect the mandate of an appellate tribunal and cannot reconsider questions which the mandate has laid to rest") — *Newton-Sealey, 2d Cir., 2020*

3 ("On review the court may . . . correct errors of law[,] and on remand the [Federal Communications] Commission is bound to act upon the correction.") — *Bolio, D. Vt., 2019*

2 ("[A]n administrative determination in which is imbedded a legal question open to judicial review does not impliedly foreclose the administrative agency, after its error has been corrected, from enforcing the legislative policy committed to its charge.")

2 (no right of priority for consideration of application conferred in Act) — *In Re Atlantic Business And Community Development Corporation, 3rd Cir., 1993*

2 (the standard "is as concrete as the complicated factors for judgment in such a field of delegated authority permit") — *James U. Steele v. Federal Communications Commission, Dale Bell, Intervenor, D.C. Cir., 1985*

2 (under § 4(j), "the subordinate questions of procedure in ascertaining the public interest ... were explicitly and by implication left to the Commission's own devising")

2 (setting aside lower court order on priority in which FCC should consider license applications)

1 (vacating administrative action entirely inconsistent with an initial Court order) — *Becerra, D.D.C., 2022*

↑

629. Cal. Cmty. Against Toxics v. Envtl. Prot. Agency

934 F.3d 627, D.C. Cir., 2019
In 2020-24: cited by 13 decisions (appellate) · in all: 33 · 2021–2025: 22 · weight in the sub-cluster 6
Fit: 49% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.1 Article III standing (51%)
Good law: green (read 33 of 33 citing opinions)
Travels with: National Mining Association v. Gina McCarthy (cosine 0.14, 5 both); Appalachian Power Co. v. Environmental Protection Agency (cosine 0.07, 5 both); Shalala (cosine 0.06, 5 both)
How later courts describe it (12 parentheticals; groups of similar wording, largest first; other courts' words)

3 (directing that the Bennett prong-two determinations be made "based on the concrete consequences an agency action has or does not have as a result of the specific statutes and regulations that govern it") — *Hargan, D.D.C., 2020*

1 ("[W]hen assessing the nature of an agency action (including whether it is final), * * * courts should take as their NorthStar the unique constellation of statutes and regulations that govern the action at issue.") — *FDA, D.C. Cir., 2022*

1 ("The Policy renders an entire category of investors ineligible for an entire category of visas.) — *Delaware Valley Regional Center, LLC v. United States Department of Homeland Security, D.D.C., 2023*

1 (What "can only reasonably be described as [an agency's] last word" on a question "marks the consummation of [its] decisionmaking process.") — *FRA, D.C. Cir., 2020*

1 (recognizing relationship between finality and legislative rules) — *State of Tenn. v. Dep't of Educ., 6th Cir., 2024*

1 (drawing a distinction between finality analysis and rule classification under the APA) — *Hargan, D.D.C., 2020*

1 (stating section 307(b)(1) "confers jurisdiction . . . in this court for, inter alia, final action of the Administrator that is 'nationally applicable.'" (quoting 42 U.S.C. § 7607(b)(1))) — *Sierra Club v. EPA, D.C. Cir., 2020*

1 (distinguishing case from the "circumstance where the action at issue may be legally consequential because its binds agency staff") — *Hiv and Hepatitis Policy Institute v. United States Department of Health and Human Services, D.D.C., 2023*

↑

630. Reno v. Koray

515 U.S. 50, SCOTUS, 1995
In 2020-24: cited by 28 decisions (appellate) · in all: 629 · 2021–2025: 129 · weight in the sub-cluster 5
Fit: 45% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:3.17 around United States v. Larry E. Stott, Jr., Robert A. Gaughan, ... (55%)
Good law: green? (read the newest 100 of 695 citing opinions, filed 2021–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (52%)
Travels with: Moskal (cosine 0.12, 5 both); Chapman (cosine 0.02, 5 both)
How later courts describe it (193 parentheticals; groups of similar wording, largest first; other courts' words)

39 (holding that an "internal agency guideline, which is akin to an.'interpretive rule'" not subject to notice-and-comment

rule-making, “is still entitled to some deference”) — *Curtis Davis v. Producers Agricultural Insurance Company, 11th Cir., 2014*

33 (holding that an internal agency guideline, which is not “subject to the rigors of the Administrative Procedure] Act, including public notice and comment,” is entitled only to “some deference”) — *Commonwealth, Cabinet for Health & Family Services v. Saint Joseph Health System, Inc., Ky. Ct. App., 2017*

19 (rule of lenity applies “only if ... [the Court] can make no more than a guess as to what Congress intended” (internal quotation marks omitted)) — *United States v. Nicholas Slatten, D.C. Cir., 2017*

18 (holding that a defendant required to reside at a community treatment center while released on bail is not entitled to credit pursuant to § 3585(b)) — *Cain, 9th Cir., 2009*

5 (construing statutory language in context of entire statutory scheme) — *Robinson, Vet. App., 2009*

5 (explaining circumstances in which rule of lenity applies) — *O’Hagan, SCOTUS, 1997*

5 (finding, in the rule of lenity context, that a “statute is not ‘ambiguous’ . . . merely because there is a division of judicial authority over its proper construction”) — *United States of America v. Crim. Steven Potter, D.N.H., 2022*

4 (holding that time spent by prisoner at a community treatment center while "released on bail" was not "official detention") — *Rodriguez, 9th Cir., 2008*

↑

631. Palmer v. Hoffman

318 U.S. 109, SCOTUS, 1943

In 2020-24: cited by 26 decisions (appellate) · in all: 1,035 · 2021–2025: 46 · weight in the sub-cluster 6

Fit: 43% of its co-citations in 2020-24 are with this sub-cluster’s members; fits best in 2020-24:6.4 Confrontation Clause after Crawford (57%)

Good law: green? (read the newest 100 of 1,191 citing opinions, filed 2015–2025: status now, not the year it changed)

Role changed 2010-14: likely successor Melendez-Diaz, 557 U.S. 305 (2009) (41% of the 51 decisions citing this case in 2010-14 also cite it). (co-citation, not the text)

Also ties to: 2020-24:6 California criminal: harmless error, Crawford and Apprendi (35%)

Travels with: Shinseki (cosine 0.12, 6 both)

How later courts describe it (97 parentheticals; groups of similar wording, largest first; other courts’ words)

25 (holding that accident report provided by railroad company employee did not qualify as business record where essentially prepared for use “in litigating, not in railroading”) — *Commonwealth, Mass., 2011*

11 (noting that setting aside a judgment because of an erroneous ruling requires a showing of prejudice) — *Personalized Media Communications, L.L.C. v. Scientific-Atlanta, Inc., Fed. Cir., 2012*

9 (noting that an objection to a charge “must ... bring into focus the precise nature of the alleged error”) — *Morse/Diesel, Inc. v. Trinity Industries, Inc., S.D.N.Y., 1994*

6 (noting that “the fact that a company makes a business out of recording its employees’ versions of their accidents does not put those statements in the class of records made ‘in the regular course’ of the business”) — *Thompson v. the State, Ga. Ct. App., 2015*

3 (finding state law governs the allocation of the burden of proof in diversity cases) — *California Sansome Co. Polk Market Co. v. U.S. Gypsum W.R. Grace & Company,–Conn., 9th Cir., 1995*

3 (holding that statements obtained in anticipation of litigation are not business records) — *Campos, Tex. App.-Houston [1st Dist.], 2010*

2 (“Mere ‘technical errors’ which do not ‘affect the substantial rights of the parties’ are not sufficient to set aside a jury verdict in an appellate court. He who seeks to have a judgment set aside because of an erroneous ruling carries the burden of showing that prejudice resulted.”) — *Lillian Weiss v. Chrysler Motors Corporation and Chrysler Corporation, 2d Cir., 1975*

2 (under Erie, federal court must apply state burdens of proof) — *Federal Insurance Company v. Areias, 3rd Cir., 1982*

↑

632. Delaware Department of Natural Resources & Environmental Control v. Environmental Protection Agency

785 F.3d 1, D.C. Cir., 2015

In 2020-24: cited by 12 decisions (appellate) · in all: 50 · 2021–2025: 30 · weight in the sub-cluster 2

Fit: 42% of its co-citations in 2020-24 are with this sub-cluster’s members; fits best in 2020-24:2.1 Article III standing (58%)

Good law: green? (read the newest 50 of 50 citing opinions, filed 2015–2026: status now, not the year it changed)

Travels with: State Farm (cosine 0.02, 5 both)

How later courts describe it (8 parentheticals; groups of similar wording, largest first; other courts’ words)

2 (stating that "[a]dministrative law does not permit" an agency to "dodge" its own responsibilities or "to excuse its inadequate responses by passing the entire issue off onto a different agency") — *New York v. U.S. Dep’t of Commerce, S.D. Ill., 2019*

1 ("EPA seems to have missed the forest for the trees") — *Huntco Pawn Holdings, LLC v. U.S. Department of Defense, D.D.C., 2016*

1 (the “only examples” Delaware provided “of these remote locations are references to the Powder River Basin of Wyoming and fields of generators visibly evident across Wyoming and Colorado, and throughout Nebraska and California” (ellipsis and internal quotation marks omitted)) — *Utah Physic. for Healthy Env’t v. Diesel Power Gear, 10th Cir., 2021*

1 (“We will reverse ... when the agency did not ‘engage the arguments raised before it.’ ” (quoting NorAm Gas Transmission Co. v. FERC, 148 F.3d 1158, 1165 (D.C. Cir. 1998))) — *Aragon, D.D.C., 2017*

1 (invalidating rule in part because the EPA had failed to consult with other expert agencies on grid 92 reliability issues) — *American Lung Association v. EPA, D.C. Cir., 2021*

1 (stating that an agency need not "discuss every item of fact or opinion included in the submissions made to it" (citation omitted)) — *Loper Bright Enterprises, Inc. v. Wilbur L. Ross, Jr., D.D.C., 2021*

1 (holding that a district court abused its discretion in part because the record did not indicate that the trial court denied the defendant's motion because of the demands of its calendar) — *Hampton, Wash., 2015*

↑

633. Levin v. Commerce Energy, Inc.

176 L. Ed. 2d 1131, SCOTUS, 2010
In 2020-24: cited by 17 decisions (appellate) · in all: 200 · 2021–2025: 50 · weight in the sub-cluster 3
Fit: 40% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.6 Federal Indian law and tribal sovereignty (60%)
Good law: green? (read the newest 100 of 212 citing opinions, filed 2019–2026: status now, not the year it changed)
Travels with: Hibbs (cosine 0.08, 6 both)
How later courts describe it (41 parentheticals; groups of similar wording, largest first; other courts' words)

3 ("Because we conclude that the comity doctrine justifies dismissal of respondents' federal-court action, we need not decide whether the TIA would itself block the suit.") — *Islamic Community Center for Mid Westchester v. City of Yonkers Landmark, 2d Cir., 2018*

2 ("This Court and others have continued to regard the Act as jurisdictional.") — *Seven-Sky, D.C. Cir., 2011*

2 (the tax comity doctrine "restrains federal courts from entertaining claims for relief that risk disrupting state tax administration") — *Lierman, D. Maryland, 2022*

2 ("[S]tanding is determined as of the date of the filing of the complaint . . . . [t]he party invoking the jurisdiction of the court cannot rely on events that unfolded after the filing of the complaint to establish its standing.") — *Northstar Financial Advisors Inc. v. Schwab Investments, 9th Cir., 2015*

2 (reversing the Sixth Circuit for having attributed unwarranted significance to an "unelaborated footnote" in an earlier Supreme Court opinion) — *Dealer Computer Services, Inc. v. Dub Herring Ford, 6th Cir., 2010*

2 (explaining that "if the Ohio scheme is in- deed unconstitutional, surely the Ohio courts are better posi- tioned to determine—unless and until the Ohio legislature weighs in—how to comply with the mandate of equal treat- ment") — *DIRECTTV, 7th Cir., 2021*

2 (noting that an adequate legal remedy "must be one cognizable in federal court " (internal quotation marks omitted)) — *Willis Management (Vermont), Ltd. v. United States, 2d Cir., 2011*

1 (discussing ab- stention in the interest of comity) — *Karen Scalin v. Societe Nationale SNCF SA, 7th Cir., 2021*

↑

634. Rivers v. Roadway Express, Inc.

511 U.S. 298, SCOTUS, 1994
In 2020-24: cited by 42 decisions (appellate) · in all: 734 · 2021–2025: 116 · weight in the sub-cluster 3
Fit: 38% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:3.9 around Schriro (38%)
Good law: green? (read the newest 100 of 820 citing opinions, filed 2021–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (35%)
Travels with: Landgraf (cosine 0.02, 12 both); Bowen (cosine 0.02, 5 both)
How later courts describe it (187 parentheticals; groups of similar wording, largest first; other courts' words)

67 (holding that "judicial construction of a statute is an authoritative statement of what the statute meant before as well as after the decision of the case giving rise to that construction")

17 (stating that "the principle that statutes operate only prospectively, while judicial decisions operate retrospectively, is familiar to every law student" (quotation simplified)) — *McFarland, Utah Ct. App., 2021*

11 (observing "once the Court has spoken, it is the duty of other courts to respect that understanding of the governing rule of law") — *Tann, 3rd Cir., 2009*

11 (explaining that section 1981's prohibition against racial discrimination now "applies to all phases and incidents of the contractual relationship, including discriminatory contract terminations") — *Andrews, 11th Cir., 1998*

6 ("[W]hen this Court construes a statute, it is explaining its understanding of what the statute has meant continuously since the date when it became law") — *O'Brien, SCOTUS, 2010*

6 (holding that § 101 of the 1991 Act does not apply retroactively) — *Cassas, S.D.N.Y., 1999*

5 ("Even when Congress intends to supersede a rule of law embodied in one of our decisions with what it views as a better rule established in earlier decisions, its intent to reach conduct preceding the 'corrective' amendment must clearly appear.") — *Equal Employment Opportunity Commission v. Agro Distribution, LLC, 5th Cir., 2009*

4 (acknowledging that Congress "legislatively overrule [d]" the Court's decision in Patterson by passing Section 101) — *Ronald Shields v. Fort James Corporation, 11th Cir., 2002*

↑

635. Nixon v. Missouri Municipal League

541 U.S. 125, SCOTUS, 2004
In 2020-24: cited by 14 decisions (appellate) · in all: 102 · 2021–2025: 18 · weight in the sub-cluster 5
Fit: 37% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.12 Federal preemption (63%)
Good law: green? (read the newest 100 of 120 citing opinions, filed 2006–2026: status now, not the year it changed)
Travels with: Gregory v. Ashcroft (cosine 0.15, 7 both)

How later courts describe it (34 parentheticals; groups of similar wording, largest first; other courts' words)

- **10** (stating that "'any' can and does mean different things depending on the setting") — *Frederick County, Virginia v. Virginia Department of the Treasury, Va. Ct. App., 2024*
- **6** (considering Supremacy Clause challenge by municipalities and utilities against state statute) — *Tong, 2d Cir., 2019*
- **2** (the 47 U.S.C. § 253 prohibition of "ability of any entity" to provide telecommunications services does not apply to subdivisions of states) — *In Re Qwest's Wholesale Service Quality, Minn. Ct. App., 2004*
- **2** (refusing to read a statute in a way that leads to an absurd result) — *In Re Mirant Corp., Bankr. N.D. Tex., 2004*
- **2** (refusing to adopt a textually plausible interpretation of a statute because it was "farfetched that Congress meant ... to start down such a road in the absence of any clearer signal") — *del Rosario Ortega v. Star Kist, 1st Cir., 2004*
- **2** (noting that the word "any" may mean a single item if "used in [the] context of [a] singular noun") — *Sheldon, D. Maryland, 2020*
- **2** (holding that another provision of federal telecommunications law does not permit a municipality to disregard state controls on its conduct) — *City of Chicago v. Comcast Cable Holdings, L.L.C., 7th Cir., 2004*
- **1** (eschewing federal creation of a "one-way ratchet") — *McCrory, M.D.N.C., 2016*

↑

636. Mont v. United States

587 U.S. 514, SCOTUS, 2019
In 2020-24: cited by 37 decisions (appellate) · in all: 73 · 2021–2025: 46 · weight in the sub-cluster 4
Fit: 33% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:3.8 around Alleyne (67%)
Good law: green? (read the newest 73 of 73 citing opinions, filed 2019–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (48%)
Travels with: Maracich (cosine 0.08, 6 both)
How later courts describe it (17 parentheticals; groups of similar wording, largest first; other courts' words)

- **4** ("Supervised release is a form of punishment that Congress prescribes along with a term of imprisonment as part of the same sentence.") — *United States v. Nolan Nathaniel Edwards, 11th Cir., 2021*
- **3** ("The objectives of supervised release would be unfulfilled if excess prison time were to offset and reduce terms of supervised release because [s]upervised release has no statutory function until confinement ends.") — *Casper, M.D. Ala., 2024*
- **1** (challenging constitutionality of 18 U.S.C. § 3583(g)) — *HIMMELREICH, D.N.J., 2024*
- **1** ("Supervised release is a form of postconfinement monitoring that permits a defendant a kind of conditional liberty by allowing him to serve part of his sentence outside of prison." (internal quotation marks and citation omitted)) — *Oliveras, 2d Cir., 2024*
- **1** ("The Court has often recognized that 'in connection with' can bear a 'broad interpretation.' " (quoting Merrill Lynch, Pierce, Fenner & Smith Inc. v. Dabit, 547 U.S. 71, 85 (2006))) — *Whistleblower 972-17W, Tax Ct., 2022*
- **1** ("This Court has . . . recognized that "'in connection with" is essentially indeterminate because connections, like relations, stop nowhere.'" (quoting Maracich v. Spears, 570 U.S. 48, 59 (2013))) — *Commonwealth of Ky. v. Joseph R. Biden, 6th Cir., 2022*
- **1** (the district court has the duty to "screen out" petitions that lack merit on their face) — *Minichiello, E.D. Mich., 2021*
- **1** (interpreting that language in another statute) — *City of Hoboken v. Chevron Corp, 3rd Cir., 2022*

↑

637. Republic of Iraq v. Beaty

556 U.S. 848, SCOTUS, 2009
In 2020-24: cited by 16 decisions (appellate) · in all: 123 · 2021–2025: 28 · weight in the sub-cluster 2
Fit: 33% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:3.3 ACCA and the categorical approach (39%)
Good law: green? (read the newest 100 of 130 citing opinions, filed 2010–2026: status now, not the year it changed)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (32%)
Travels with: Ali (cosine 0.05, 6 both)
How later courts describe it (40 parentheticals; groups of similar wording, largest first; other courts' words)

- **8** (explaining that "the whole value of a generally phrased residual clause, like the one used in the second proviso, is that it serves as a catchall for matters not specifically contemplated-known unknowns") — *Dale Kleber v. CareFusion Corporation, 7th Cir., 2019*
- **6** (observing that although Congress repealed § 1605(a)(7), courts "retain jurisdiction pursuant to § 1605(a)(7) over cases that were pending under that section when the Congress [repealed it]") — *Estate of Botvin v. Islamic Republic of Iran, D.D.C., 2012*
- **4** (discussing the President's waiver of § 1083 with regard to Iraq.) — *Wyatt, D.D.C., 2010*
- **2** (the word "any" in "any other provision of law" was "no warrant to limit the class of provisions of law") — *Abbott, SCOTUS, 2010*
- **2** (explaining NDAA's advantages to terrorism plaintiffs generally, including limiting foreign states' appeal rights, permitting plaintiffs to attach property in advance of judgment, and providing for punitive damages) — *Roeder, D.D.C., 2010*
- **2** (assuming the correctness of the proposition that "the President cannot waive a fact") — *Estate of Parsons v. Palestinian Authority, D.C. Cir., 2011*
- **2** (stating that "[i]f the political branches decide [that] tort suits against a foreign sovereign are contrary to the foreign policy of the Nation, then they may by law remove them from [the court's] jurisdiction") — *Wyatt, D.D.C., 2010*
- **2** (stating that Rule 6(e) is "by any definition . . . a statute") — *Authority of the Department of Justice to Disclose Statutorily Protected Materials to Its Inspector General in Light of Section 540 of the Commerce, Justice, Science, and Related Agencies Appropriations Act, 2016, OLC, 2016*

↑ **638. United States v. Jose Garcia**
946 F.3d 413, 8th Cir., 2019
In 2020-24: cited by 25 decisions (appellate) · in all: 27 · 2021–2025: 24 · weight in the sub-cluster 2
Fit: 28% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:9.4 Texas Anders procedure in the 2020s, incl. parental-termination appeals (72%)
Good law: green? (read the newest 27 of 27 citing opinions, filed 2020–2026: status now, not the year it changed)
Also ties to: 2020-24:9 Anders briefs and appeals without merit (59%)
Travels with: United States v. Jose Maria Mendoza-Figueroa (cosine 0.06, 5 both)
How later courts describe it (4 parentheticals; groups of similar wording, largest first; other courts' words)

- **2** (holding that a prior conviction for aiding and abetting the distribution of meth is a controlled substance offense) — *United States v. Antonio Johnson, 8th Cir., 2021*
- **1** ("[O]ur court has previously recognized that this commentary is a reasonable interpretation of the career offender guidelines . . . ." (cleaned up)) — *United States v. Jaime Campos, 8th Cir., 2023*
- **1** (reviewing district court's refusal to apply mitigating-role reduction for clear error) — *United States v. Eduardo Garcia Rios, 8th Cir., 2024*

↑ **639. Posadas v. National City Bank**
296 U.S. 497, SCOTUS, 1936
In 2020-24: cited by 15 decisions (appellate) · in all: 426 · 2021–2025: 27 · weight in the sub-cluster 6
Fit: 27% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:3.6 around United States v. Orbie Chambliss (50%)
Good law: green? (read the newest 100 of 497 citing opinions, filed 2009–2026: status now, not the year it changed)
Role changed 1970-74: likely successor Sullivan, 396 U.S. 229 (1969) (63% of the 19 decisions citing this case in 1970-74 also cite it). (co-citation, not the text)
Also ties to: 2020-24:3 Federal sentencing, Guidelines and Apprendi/Booker (34%)
Travels with: Branch (cosine 0.28, 7 both); Food Marketing Institute v. Argus Leader Media (cosine 0.03, 5 both)
How later courts describe it (56 parentheticals; groups of similar wording, largest first; other courts' words)

- **11** (explaining that when two statutes "are in irreconcilable conflict, the later act to the extent of the conflict constitutes an implied repeal of the earlier one.") — *Lozano, M.D. Penn., 2007*
- **8** ("[T]he intention of the legislature to repeal must be clear and manifest") — *National Ass'n of Home Builders v. Defenders of Wildlife, SCOTUS, 2007*
- **5** (noting standard for repeal by implication)
- **5** (holding that "[w]here there are two acts upon the same subject, effect should be given to both if possible") — *Hassan, D.D.C., 2012*
- **4** ("The cardinal rule is that repeals by implication are not favored.") — *Passamaquoddy Tribe v. State of Maine, D. Me., 1995*
- **3** (earlier statute directed that subsequent laws "shall not apply to the Philippine Islands, except when they specifically so provide") — *Passamaquoddy Tribe v. State of Maine, 1st Cir., 1996*
- **2** (describing this as a "well-approved form" of "amendment") — *DOJ, 9th Cir., 2021*
- **2** ("It is the Government's responsibility to determine what offense to bring against an accused.") — *United States v. Private E2 MATTHEW L. COE, A.C.C.A., 2025*

↑ **640. Home Depot U. S. A., Inc. v. Jackson**
587 U.S. 435, SCOTUS, 2019
In 2020-24: cited by 50 decisions (appellate) · in all: 714 · 2021–2025: 596 · weight in the sub-cluster 2
Fit: 27% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:2.1 Article III standing (33%)
Good law: green? (read the newest 100 of 714 citing opinions, filed 2025–2026: status now, not the year it changed)
Also ties to: 2020-24:57 around Watson (20%)
Travels with: Davis (cosine 0.02, 8 both)
How later courts describe it (100 parentheticals; groups of similar wording, largest first; other courts' words)

- **40** (holding that third-party counterclaim defendants do not have the right to 13 remove because that right is limited to the defendant to the original complaint) — *Ranchod, W.D. Wash., 2024*
- **12** ("[W]hen federal jurisdiction 10 is based on diversity jurisdiction. . . the case may not be removed if any defendant is a 11 Citizen of the State in which such action is brought") — *Wright, S.D. Cal., 2023*
- **5** ("[T]he words of a statute must be read in their context and with a view to their place in the overall statutory scheme.") — *In Re VIVINT, INC., Fed. Cir., 2021*
- **5** (extending Home Depot to hold that a third-party counterclaim defendant could not remove under 28 U.S.C. § 1441(c)) — *Spain, N.D. Ala., 2024*
- **4** (holding that, in the context of removal provisions, "the term 28 'defendant' refers only to the party sued by the original plaintiff")
- **3** ("[W]e concluded that § 1441(a) does not permit removal by any counterclaim defendant, including parties brought into the lawsuit for the first time by the counterclaim.") — *Nelson v. St. Paul's Senior Community, S.D. Ill., 2022*

2 (narrowly reading a term that, “standing alone, is broad”) — *Feliciano, SCOTUS, 2025*

2 (“It is a fundamental canon of statutory construction that the words of a statute must be read in their context and with a view to their place in the overall statutory scheme.” (quoting Davis v. Mich. Dep’t of Treasury, 489 U.S. 803, 809 (1989))) — *In re: Courtney Wild, 11th Cir., 2021*

↑

641. Tennessee Valley Authority v. Hill

437 U.S. 153, SCOTUS, 1978
In 2020-24: cited by 40 decisions (appellate) · in all: 1,711 · 2021–2025: 137 · weight in the sub-cluster 2
Fit: 26% of its co-citations in 2020-24 are with this sub-cluster’s members; fits best in 2020-24:2.1 Article III standing (34%)
Good law: green? (read the newest 100 of 1,926 citing opinions, filed 2022–2026: status now, not the year it changed)
Travels with: State Farm (cosine 0.02, 10 both)
How later courts describe it (262 parentheticals; groups of similar wording, largest first; other courts’ words)

34 (holding that the ESA reflects “a conscious decision by Congress to give endangered species priority over the ‘primary missions’ of federal agencies”) — *San Luis & Delta-Mendota Water v. Natural Resources Defense Coun, 9th Cir., 2014*

24 ("[w]hen confronted with a statute which is plain and unambiguous on its face, we ordinarily do not look to legislative history as a guide to its meaning") — *Abramson, SCOTUS, 1982*

20 (finding that the ESA embodies Congress’s "plain intent" to "halt and reverse the trend toward species extinction, whatever the cost" (emphasis added)) — *Raimondo, 1st Cir., 2021*

19 (emphasizing that Congress has struck a balance in "favor of affording endangered species the highest of priorities" and upholding application of the ESA because "[o]nce the meaning of an enactment is discerned and its constitutionality determined, the judicial process comes to an end") — *Gibbs v. Babbitt, 4th Cir., 2000*

10 ("Our individual appraisal of the wisdom or unwisdom of a particular course consciously selected by the Congress is to be put aside in the process of interpreting a statute") — *Wyeth, SCOTUS, 2009*

7 (“It is not for us to speculate, much less act, on whether Congress would have altered its stance had the specific events of this case been anticipated”) — *Brown & Williamson, SCOTUS, 2000*

6 (stating that "the intention of the legislature to repeal must be ‘clear and manifest’") — *Auburn Housing Authority v. Mel Martinez, 2d Cir., 2002*

6 (holding that Congress’s enumeration of a number of “hardship exemptions” to the Endangered Species Act in the act itself signified that those were the only exemptions to the act Congress intended) — *Brown, E.D. Va., 2011*

↑

642. I4i Ltd. Partnership v. Microsoft Corp.

598 F.3d 831, Fed. Cir., 2010
In 2020-24: cited by 20 decisions (appellate) · in all: 350 · 2021–2025: 115 · weight in the sub-cluster 10
Fit: 26% of its co-citations in 2020-24 are with this sub-cluster’s members; fits best in 2020-24:26.2 Patent claim construction (74%)
Good law: green? (read the newest 100 of 374 citing opinions, filed 2021–2026: status now, not the year it changed)
Role changed 2015-19: likely successor Ericsson, Inc. v. D-Link Systems, Inc., 773 F.3d 1201 (2014) (34% of the 29 decisions citing this case in 2015-19 also cite it). (co-citation, not the text)
Also ties to: 2020-24:26 around Molina (40%)
Travels with: i4i Ltd (cosine 0.31, 12 both)
How later courts describe it (89 parentheticals; groups of similar wording, largest first; other courts’ words)

10 (“When the methodology is sound, and the evidence relied upon sufficiently related to the case at hand, disputes about the degree of relevance or accuracy (above this minimum threshold) may go to the testimony’s weight, but not its admissibility.”) — *Apple Inc. v. Motorola, Inc., Fed. Cir., 2014*

6 (stating that “Daubert and Rule 702 are safeguards against unreliable or irrelevant opin- ions, not guarantees of correctness”) — *Apple Inc. v. Motorola, Inc., Fed. Cir., 2014*

3 (“Difficulty in estimating monetary damages is evidence that remedies at law are inadequate”) — *Jewell, D.D.C., 2017*

3 (“The jury was entitled to hear the expert testimony and decide for itself what to accept or reject.”) — *Ravgen, Inc. v. Laboratory Corporation of America Holdings, W.D. Tex., 2025*

3 (affirming permanent injunction and finding of inadequate remedies at law, as "loss of market share, brand recognition, and customer goodwill ... may frequently defy attempts at valuation, particularly when the infringing acts significantly change the relevant market") — *Tex. Advanced Optoelectronic Solutions, Inc. v. Renesas Elecs. Am., Inc., Fed. Cir., 2018*

3 (affirming jury’s finding of induced infringement where Microsoft sold software products with an infringing XML editor and using the XML editor as directed by Microsoft’s instructions constituted infringement) — *Beacon Navigation GmbH v. Bayerische Motoren Werke AG, E.D. Mich., 2023*

3 (finding that harm to a party’s market share, revenues, and brand recognition is relevant for determining whether the party has suffered an irreparable injury) — *Oracle USA, Inc. v. Rimini St., Inc., D. Nev., 2018*

2 (patent suits implicate public interests of consumers, licensees, and manufacturers) — *Schlumberger Limited and Schlumberger Technology Corporation v. Charlotte Rutherford, Tex. App.-Houston [1st Dist.], 2015*

↑

643. BFP v. Resolution Trust Corporation

511 U.S. 531, SCOTUS, 1994
In 2020-24: cited by 47 decisions (appellate) · in all: 969 · 2021–2025: 151 · weight in the sub-cluster 6
Fit: 24% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:4.3 Eighth Amendment deliberate indifference in prisons (50%)
Good law: green? (read the newest 100 of 1,011 citing opinions, filed 2022–2026: status now, not the year it changed)
Also ties to: 2020-24:4 Federal civil-rights litigation: immunity, pleading, summary judgment (42%)
Travels with: Gregory v. Ashcroft (cosine 0.07, 5 both); Hartford Underwriters (cosine 0.04, 5 both)
How later courts describe it (203 parentheticals; groups of similar wording, largest first; other courts' words)

- **48** (noting that "Congress acts intentionally and purposely when it includes particular language in one section of a statute but omits it in another") — *In Re Wiegand, 9th Cir. BAP, 2008*
- **34** (holding that the neologism "reasonably equivalent value" does not necessarily carry the same meaning as traditional "fair market value")
- **6** (The power to ensure "the security of the titles to real estate . . . inheres in the very nature of state government.") — *Brown, D.D.C., 2022*
- **4** (interpreting the same term in the Bankruptcy Code) — *Loftis, 5th Cir., 2010*
- **4** (whether Bankruptcy Code displaced state laws relating to title in real estate) — *Gulino v. New York State Education Department, 2d Cir., 2006*
- **4** ("where the meaning of the Bankruptcy Code's text is itself clear, its operation is unimpeded by contrary state law") — *Tronox Inc. v. Anadarko Petroleum Corp. (In re Tronox Inc.), Bankr. S.D.N.Y., 2012*
- **4** (refusing to interpret a statute "[t]o displace traditional state regulation" unless Congress's intent to do so was clear from the statute (citing Gregory v. Ashcroft, 501 U.S. 452, 460–61 (1991)) — *J.K.J., 7th Cir., 2020*
- **4** (explaining that foreclosure is a remedy pertaining to debtor's interest in specific property) — *Sky Cable, LLC v. DirecTV, Inc., 4th Cir., 2018*

↑

644. Florida Department of Revenue v. Piccadilly Cafeterias, Inc.

554 U.S. 33, SCOTUS, 2008
In 2020-24: cited by 32 decisions (appellate) · in all: 249 · 2021–2025: 64 · weight in the sub-cluster 4
Fit: 20% of its co-citations in 2020-24 are with this sub-cluster's members; fits best in 2020-24:4.3 Eighth Amendment deliberate indifference in prisons (40%)
Good law: green? (read the newest 100 of 271 citing opinions, filed 2018–2026: status now, not the year it changed)
Also ties to: 2020-24:4 Federal civil-rights litigation: immunity, pleading, summary judgment (47%)
Travels with: Gregory v. Ashcroft (cosine 0.08, 5 both)
How later courts describe it (95 parentheticals; groups of similar wording, largest first; other courts' words)

- **31** (noting that "statutory titles and section headings are tools available for the resolution of a doubt about the meaning of a statute.") — *Sherman, 9th Cir., 2011*
- **8** (noting that it is inappropriate for courts to substitute their view of policy for the legislation that has been passed by Congress) — *Daniel Sherzer v. Homestar Mortgage Services, 3rd Cir., 2013*
- **7** (noting that a statutory provision's placement in a particular section "cannot substitute for the operative text of the statute") — *Weinstein, 2d Cir., 2010*
- **4** ("[S]tatutory titles and section headings are 'tools available for the resolution of a doubt about the meaning of a statute.'" (quoting Porter v. Nussle, 534 U.S. 516, 528 (2002))) — *Moore, 5th Cir., 2023*
- **4** (holding the "federalism canon … obliges us to construe [a statute]'s ex- emption narrowly") — *J.K.J., 7th Cir., 2020*
- **3** ("Chapter 11 strikes a balance between a debtor's interest in reorganizing and restructuring its debts and the creditors' interest in maximizing the value of the bankruptcy estate.") — *In Re Moody Nat. Shs Houston H, LLC, Bankr. S.D. Tex., 2010*
- **3** ("under" in 11 U. S. C. §1146(a), a Bankruptcy Code provi sion exempting certain asset transfers from stamp taxes, means "pursuant to") — *Kirtsaeng, SCOTUS, 2013*
- **3** (relying on subchapter's title— "Postconfirmation matters" — to undermine respondent's argument that a statute within that subchapter covered preconfirmation transfers) — *Lawson, 1st Cir., 2012*